THE ADMINISTRATOR GENERAL'S ACT, 1913

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THE ADMINISTRATOR GENERAL'S ACT, 1913

ACT No. III OF 1913

[27th *February,* 1913]

An Act to consolidate and amend the Law relating to the office and duties of Administrator General.

WHEREAS it is expedient to consolidate and amend the law relating to the office and duties of Administrator General; It is hereby enacted as follows:—

PART I
PRELIMINARY

1. Short title, extent and commencement.—(1) This Act may be called the Administrator General's Act, 1913.

(2) It extends to [1][the whole of Pakistan] [2][* * *]

(3) It shall come into force on such date as the [3][Federal Government] may, by notification in the [4][official Gazette], direct.

2. Interpretation clause.—In this Act, unless there is anything repugnant in the subject or context,—

(1) "assets" means all the property, movable and immovable, of a deceased person, which is chargeable with, and applicable to, the payment of his debts and legacies, or available for distribution among his heirs and next-of-kin:

(2) "exempted person" means [5][a] [6][Pakistani Christian], a Hindu, Muhammadan, Parsi or Buddhist, or a person exempted under section [2][3 of the Succession Act, 1925 (XXXIX of 1925)], from the operation of that Act:

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[4][(3) "Government" or "the Government" means, in relation to any Province, the Provincial Government [2][* * *]:]

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[1]Subs. by the Central Laws (Statute Reform) Ordinance, 1960 (XXI of 1960), s.3 and Sch. II. (*with effect from the 23rd March, 1956*).
[2]Omitted and subs. by the Federal Laws (Revision and Declaration) Ordinance, 1981 (XXVII of 1981), s. 3 and Sch. II.
[3]Subs. by Federal Adaptation of Laws Order, 1975 (P. O. No. 4 of 1975), Art. 2 and Table.
[4]Subs. by A. O., 1937.
[5]Subs. by the Federal Laws (Revision and Declaration) Act, 1951 (XXVI of 1951), s. 4 and Sch. III.
[6]Subs. by the Adaptation of Central Acts and Ordinances Order, 1949 (Order No. 4 of 1949), Art. 3 and Sch.

(4) [1]["Pakistani Christian" means a person domiciled in Pakistan] who is or in good faith claims to be of unmixed Asiatic descent, and who professes any form of the Christian religion:

(5) "letters of administration" includes any letters of administration, whether general or with a copy of the will annexed, or limited in time or otherwise:

(6) "next-of-kin" includes a widower or widow of a deceased person, or any other person who by law would be entitled to letters of administration in preference to a creditor or legatee of the deceased:

(7) [2][* * * * * * *]

(8) "prescribed" means prescribed by rules under this Act:

(9) [2][* * * * * * *]

(10) [3][* * * * * * *]

[3][(11) [2][* * * * * * *]

(12) [4][* * * * * * *]

(13) [4][* * * * * * *]

PART II
THE OFFICE OF ADMINISTRATOR GENERAL

[4][**3. Appointment of Administrators General.**—(1) The Provincial Government for each Province shall appoint an Administrator General.

(2) No person shall be appointed to the office of the Administrator General who is not an advocate practising in a High Court or a person already in the service of the State.]

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4. Appointment and powers of Deputy Administrators General.—The Government may appoint a Deputy or Deputies to assist the Administrator General; and any Deputy so appointed shall, subject to the control of the Government and the general or special orders of the Administrator General, be competent to discharge any of the duties and to exercise any of the powers of the Administrator General, and when discharging such duties or exercising such powers shall have the same privileges and be subject to the same liabilities as the Administrator General.

5. Administrator General to be a corporation sole, to have perpetual succession and official seal, and to sue and be sued in his corporate name.—The Administrator General shall be a corporation sole by the name of the Administrator General of the [3][Province] for which he is appointed and, as such Administrator General, shall have perpetual succession and an official seal, and may sue and be sued in his corporate name.

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[1]Subs. by the Adaptation of Central Acts and Ordinances Order, 1949 (Order No. 4 of 1949), Sch.
[2]Rep.by A.O., 1973.
[3]Ins. by the Official trustees & Administrator General's Acts (Amdt.) Act, 1922 (XXI of 1922) s. 5.
[4]Omitted and subs. by the Federal Laws (Revision and Declaration) Ordinance, 1981 (Ordinance No. XXVII of 1981), s. 3 and Sch. II.

PART III
RIGHTS, POWERS, DUTIES AND LIABILITIES OF THE ADMINISTRATOR GENERAL.

(a) Grants of Letters of Administration and Probate

6. [1][* * * * * * *]

7. Administrator General entitled to letters of administration, unless granted to next-of-kin.— Any letters of administration, which are granted after the commencement of this Act by the High Court [1][* * *] shall be granted to the Administrator General of the [2][Province] unless they are granted to the next-of-kin of the deceased.

8. Administrator General entitled to letters of Administration in preference to creditor, non-universal legatee or friends.—The Administrator General of the [1][Province] shall be deemed by all the Courts in the [2][Province] to have a right to letters of administration other than letters *pendente lite* in preference to that of—

(a) a creditor; or

(b) a legatee other than an universal legatee; or

(c) a friend of the deceased.

9. When Administrator General is to administer estates of persons other than exempted persons.—If any person, not being an exempted person, has died leaving within any [2][Province] assets exceeding the value of [2][ten thousand] rupees,

and if no person to whom any Court would have jurisdiction to commit administration of such assets has, within one month after his death, applied in such [1][Province] for probate of his will, or for letters of administration of his estate,

the Administrator General of the [1][Province] in which such assets are shall, subject to any rules made by the Government, within a reasonable time after he has had notice of the death of such person, and of his having left such assets, take such proceedings as may be necessary to obtain from the High Court [2][* * *] letters of administration of the estate of such person.

[1] Omitted & subs. by the Federal Laws (Revision and Declaration) Ordinance, 1981 (XXVII of 1981), s. 3 and Sch. II.
[2] Rep. by A. O., 1937.
[3]Subs. by Act No. XXII of 1974, s. 2.

10. Power to direct Administrator General to apply for administration.—Whenever any person has died leaving assets within the local limits of the ordinary original civil jurisdiction of [1][a High Court], the Court, on being satisfied that danger is to be apprehended of misappropriation, deterioration or waste of such assets unless letters of administration of the estate of the such person are granted, may upon the application of the Administrator General or of any person interested in such assets or in the due administration thereof, make an order, upon such terms as to indemnifying the Administrator General against costs and other expenses as the Court thinks fit, directing the Administrator General to apply for letters of administration of the estate of such person:

Provided that, in the case of an application being made under this section for letters of administration of the estate of an exempted person, the Court may refuse to grant letters of administration, if it is satisfied that such grant is unnecessary for the protection of the assets; and in such case the Court shall make such order as to the costs of the application as it thinks fit.

11. Power to direct Administrator General to collect and hold assets until right of succession or administration is determined.— (1) Whenever any person has died leaving assets within the local limits of the ordinary original civil jurisdiction of [1][a High Court],

and such Court is satisfied that there is no person immediately available, who is legally entitled to the succession to such assets, or that danger is to be apprehended of misappropriation, deterioration or waste of such assets, before it can be determined who may be legally entitled to the succession thereto, or whether the Administrator General is entitled to letters of administration of the estate of such deceased person,

the Court may, upon the application of the Administrator General or of any person interested in such assets, or in the due administration thereof, forthwith direct the Administrator General to collect and take possession of such assets, and to hold, deposit, realize, sell or invest the same according to the directions of the Court, and in default of any such directions according to the provisions of this Act so far as the same are applicable to such assets.

(2) Any order of the Court made under the provisions of this section shall entitle the Administrator General,

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(a) to maintain any suit or proceeding for the recovery of such assets, and

(b) if he thinks fit, to apply for letters of administration of the estate of such deceased person, and

(c) to retain out of the assets of the estate any fees chargeable under rules made under this Act, and to reimburse himself for all payments made by him in respect of such assets which a private administrator might lawfully have made.

12. Grant of probate or letter of administration to person appearing in the course of proceedings taken by Administrator General under section 9, 10 and 11.—If, in the course of proceedings to obtain letters of administration under the provisions of section 9, section 10, or section 11, any person appears and establishes his claim—

[1]Subs. by the Federal Laws (Revision and Declaration) Ordinance, 1981 (Ordinance No. XXVII of 1981), ss. 3 and Sch. II.

(a) to probate of the will of the deceased; or

(b) to letters of administration as next-of-kin of the deceased, and gives such security as may be required of him by law,

the Court shall grant probate of the will or letters of administration accordingly, and shall award to the Administrator General the costs of any proceedings taken by him, under those sections to be paid out of the estate as part of the testamentary or intestate expenses thereof.

13. Grant of administration to Administrator General in certain cases.—If, in the course of proceedings to obtain letters of administration under the provisions of section 9, section 10, or section 11, no person appears and establishes his claim to probate of a will, or to a grant of letters of administration as next-of-kin of the deceased, within such period as to the Court seems reasonable,

or if a person who has established his claim to a grant of letters of administration as next-of-kin of the deceased fails to give such security as may be required of him by law,

the Court may grant letters of administration to the Administrator General.

14. Administrator General not precluded from applying for letters within one month after death.—Nothing in this Act shall be deemed to preclude the Administrator General from applying to the Court for letters of administration in any case within the period of one month from the death of the deceased.

(*b*) *Estates of Persons subject to the Army Act* [1][*or the Air Force Act*].

15. [2][* * * * * * *]

16. [2][* * * * * * *]

17. [2][* * * * * * *]

(*c*) *Revocation of Grants*

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18. Recall of Administrator General's administration, and grant of probate, etc., to executor or next-of-kin.—If an executor or next-of-kin of the deceased, who has not been personally served with a citation or who has not had notice thereof in time to appear pursuant thereto establishes to the satisfaction of the Court a claim to probate of a will or to letters of administration in preference to the Administrator General, any letters of administration granted in accordance with the provisions of this Act to the Administrator General may be revoked, and probate or letters of administration may be granted to such executor or next-of-kin as the case may be:

[1]Ins. by the Repealing and Amending Act, 1927 (X of 1927), s. 2 and Sch. I.
[2]Omitted by the Federal Laws (Revision and Declaration) Ordinance, 1981 (XXVII of 1981), s. 3 and Sch. II.

Provided that no letters of administration granted to the Administrator General shall be revoked for the cause aforesaid, except in cases in which a will of the deceased is proved in the [1][Division], unless the application for that purpose is made within six months after the grant to the Administrator General and the Court is satisfied that there has been no unreasonable delay in making the application, or in transmitting the authority under which the application is made.

19. Cost of obtaining administration, etc., may, on revocation, be ordered to be paid to Administrator General out of assets.—If any letters of administration granted to the Administrator General in accordance with the provisions of this Act are revoked, the Court may order the costs of obtaining such letters of administration, and the whole or any part of any fees which would otherwise have been payable under this Act, together with the costs of the Administrator General in any proceedings taken to obtain such revocation, to be paid to or retained by the Administrator General out of the estate:

Provided that nothing in this section shall affect the provisions of clause (*c*) of sub-section (2) of section 11.

20. After revocation, letters granted to Administrator General to be deemed as to him to have been voidable only.—If any letters of administration granted to the Administrator General in accordance with the provisions of this Act are revoked, the same shall, so far as regards the Administrator General and all persons acting under his authority in pursuance thereof, be deemed to have been only voidable, except as to any act done by any such Administrator General or other person as aforesaid, after notice of a will or of any other fact which would render such letters void:

Provided that no notice of a will or of any other fact which would render any such letters void shall affect the Administrator General or any person acting under his authority in pursuance of such letters unless, within the period of one month from the time of giving such notice, proceedings are commenced to prove the will, or to cause the letters to be revoked, and such proceedings are prosecuted without unreasonable delay.

21. Payments made by Administrator General prior to revocation.—If any letters of administration granted to the Administrator General in accordance with the provisions of this Act are revoked, upon the grant of probate of a will, or upon the grant of letters of administration with a copy of the will annexed, all payments made or acts done by or under the authority of the Administrator General in pursuance of such letters of administration, prior to the revocation, which would have been valid under any letters of administration lawfully granted to him with a copy of such will annexed, shall be deemed valid notwithstanding such revocation.

(*d*) *General*

22. Administrator General's petition for grant of letters of administration.—Whenever any Administrator General applies for letters of administration in accordance with the provisions of this Act, it shall be sufficient if the petition required to be presented for the grant of such letters states,—

(i) the time and place of the death of the deceased to the best of the knowledge and belief of the petitioner,

[1]Subs. by A. O., 1937.

(ii) the names and addresses of the surviving next-of-kin of the deceased if known,

(iii) the particulars and value of the assets likely to come into the hands of the petitioner,

(iv) Particulars of the liabilities of the estate if known.

[1][**23. Name in which probate or letters to be granted.**—All probates or letters of administration granted to any Administrator General shall be granted to him by that name.]

24. Effect of probate or letters granted to Administrator General.—Probate or letters of administration granted by the High Court [1][* * *] to the Administrator General of any [2][Province] shall have effect over all the assets of the deceased throughout such [2][Province], and shall be conclusive as to the representative title against all debtors of the deceased and all persons holding such assets, and shall afford full indemnity to all debtors paying their debts and all persons delivering up such assets to such Administrator General:

Provided that the High Court may direct, by its grant, that such probate or letters of administration shall have like affect throughout one or more of the other [2][provinces].

Whenever a grant is made by a High Court to the Administrator General with such effect as last aforesaid, the Court shall send to the other High Courts a certificate that such grant has been made, and such certificate shall be filed by the Courts receiving the same.

[2][* * * * * * *]

25. Transfer by private executor or administrator of interest under probate or letters.—(1) Any private executor or administrator may with the previous consent of the Administrator General of the [2][Province] in which any of the assets of the estate, in respect of which such executor or administrator has obtained probate or letters of administration, are situate, by an instrument in writing under his hand notified in the official Gazette, transfer the assets of the estate vested in him by virtue of such probate or letters to the Administrator General by that name or any other sufficient description.

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(2) As from the date of such transfer the transferor shall be exempt from all liability as such executor or administrator, as the case may be, except in respect of acts done before the date of such transfer, and the Administrator General shall have the rights which he would have had, and be subject to the liabilities to which he would have been subject, if the probate or letters of administration, as the case may be, had been granted to him by that name at the date of such transfer.

26. Distribution of assets.— (1) When the Administrator General has given the prescribed notice for creditors and others to send in to him their claims against the estate of the deceased, he shall, at the expiration of the time therein named for sending in claims, be at liberty to distribute the assets or any part thereof in discharge of such lawful claims as he has notice of.

[1]Subs. and rep. by A.O., 1937.
[2]Subs. and omitted by the Federal Laws (Revision and Declaration) Ordinance 1981 (XXVII of 1981), s. 3 and Sch. II.

(2) He shall not be liable for the assets so distributed to any person of whose claim he had not notice at the time of such distribution.

(3) No notice of any claim which has been sent in and has been rejected or disallowed in part by the Administrator General shall affect him unless proceedings to enforce such claim are commenced within one month after notice of the rejection or disallowance of such claim has been given in the prescribed manner and unless such proceedings are prosecuted without unreasonable delay.

(4) Nothing in this section shall prejudice the right of any creditor or other claimant to follow the assets or any part thereof in the hands of the persons who may have received the same respectively.

(5) In computing the period of limitation for any suit, appeal or application under the provisions of any law for the time being in force, the period between the date of submission of the claim of a creditor to the Administrator General and the date of the final decision of the Administrator General on such claim shall be excluded.

27. Appointment of Official Trustee as trustee assets after completion of administration.— (1) When the Administrator General has, so far as may be, discharged all the liabilities of an estate administered by him, he shall notify the fact in the official Gazette, and he may, by an instrument in writing, with the consent of the Official Trustee and subject to any rules made by the Government, appoint the Official Trustee to be the trustee of any assets then remaining in his hands.

(2) Upon such appointment such assets shall vest in the Official Trustee as if he had been appointed trustee in accordance with the provisions of the Official Trustees Act, 1913 (II of 1913), and shall be held by him upon the same trusts as the same were held immediately before such appointment.

28. Power for High Court to give directions regarding administration of estate.—(1) The High Court [1]* * * may, on application made to it, give to the Administrator General of the [1][Division] any general or special directions as to any estate in his charge or in regard to the administration of any such estate.

(2) Applications under sub-section (1) may be made by the Administrator General or any person interested in the assets or in the due administration thereof.

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29. No security nor oath to be required from Administrator General.—(1) No Administrator General shall be required by any Court to enter into any administration-bond, or to give other security to the Court, on the grant of any letters of administration to him by that name.

(2) **Manner in which petitions to be verified by Administrator General and his Deputy.** — No Administrator General or Deputy Administrator General shall be required to verify, otherwise than by his signature, any petition presented by him under the provisions of this Act, and, if the facts stated in any such petition are not within the Administrator General's own personal knowledge, the petition may be subscribed and verified by any person competent to make the verification.

[1]Rep. and sub. by A. O., 1937.

(3) Entry of Administrator General not to constitute notice of a trust.—The entry of the Administrator General by that name in the books of a Company shall not constitute notice of a trust, and a Company shall not be entitled to object to enter the name of the Administrator General on its register by reason only that the Administrator General is a corporation and in dealing with assets the fact that the person dealt with is the Administrator General shall not of itself constitute notice of a trust.

30. Power to examine on oath.—The Administrator General may, whenever he desires, for the purposes of this Act, to satisfy himself regarding any question of fact, examine upon oath (which he is hereby authorised to administer) any person who is willing to be so examined by him regarding such question.

31. In what case Administrator General may grant certificate.—Whenever any person has died leaving assets within any [1][Province], and the Administrator General of such [1][Province], is satisfied that such assets, excluding any sum of money deposited in a Government Savings Bank, or in any Provident Fund to which the provisions of the [1][Provident Funds Act, 1925 (XIX of 1925)] apply, did not at the date of death exceed in the whole [2][ten thousand] rupees—in value, he may, after the lapse of one month from the death if he thinks fit, or before the lapse of the said month if he is requested so to do by writing under the hand of the executor or the widow or other person entitled to administer the estate of the deceased, grant to any person, claiming otherwise than as a creditor to be interested in such assets, or in the due administration thereof, a certificate under his hand entitling the claimant to receive the assets therein mentioned left by the deceased, within the [1][Province] to a value not exceeding in the whole [2][ten thousand] rupees:

Provided that no certificate shall be granted under this section—

(i) where probate of the deceased's will or letters of administration of his estate has or have been granted, or

(ii) in respect of any sum of money deposited in a Government Savings Bank or in any Provident Fund to which the provisions of the [1][Provident Funds Act, 1925(XIX of 1925)], apply.

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32. Grant of certificate to creditors and powers to take charge of certain estates.—If, in cases falling within section 31, no person claiming to be interested otherwise than as a creditor in such assets or in the due administration thereof obtains, within three months of the death of the deceased a certificate from the Administrator General under the same section, or probate of a will or letters of administration of the estate of the deceased, and such deceased was not an exempted person, or was an exempted person who has left assets within the ordinary original civil jurisdiction of the High Court, or within any area notified by the Government in this behalf in the official Gazette, the Administrator General may administer the estate without letters of administration, in the same manner as if such letters had been granted to him;

and if he neglects or refuses to administer such estate, he shall, upon the application of a creditor, grant a certificate to him in the same manner as if he were interested in such assets otherwise than as a creditor.

[1]Subs. by the Federal Laws (Revision and Declaration) Ordinance, 1981 (XXVII of 1981), s. 3 and Sch. II. .
[2]Subs. by Act No. XXII of 1974, s. 3.

and such certificate shall have the same effect as a certificate granted under the provisions of section 31, and shall be subject to all the provisions of this Act which are applicable to such certificate:

Provided that the Administrator General may, before granting such certificate, if he thinks fit, require the creditor to give reasonable security for the due administration of the estate of the deceased.

33. Administrator General not bound to grant certificate unless satisfied of claimant's title, etc.—The Administrator General shall not be bound to grant any certificate under section 31 or section 32, unless he is satisfied of the title of the claimant and of the value of the assets left by the deceased within the [1][Province], either by the oath of the claimant, or by such other evidence as he requires.

34. Effect of certificate.—The holder of a certificate granted in accordance with the provisions of section 31 or section 32, shall have in respect of the assets specified in such certificate the same powers and duties, and be subject to the same liabilities as he would have had or been subject to if letters of administration had been granted to him:

Provided that nothing in this section shall be deemed to require any person holding such certificate,

(a) to file accounts or inventories of the assets of the deceased before any Court or other authority, or

(b) save as provided in section 32 to give any bond for the due administration of the estate.

35. Revocation of certificate. The Administrator General may revoke a certificate granted under the provisions of section 31 or section 32 on any of the following grounds, namely:—

(i) that the certificate was obtained by fraud or misrepresentation made to him,

(ii) that the certificate was obtained by means of an untrue allegation of a fact essential in law to justify the grant though such allegation was made in ignorance or inadvertently.

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36. Surrender of revoked certificate.—(1) When a certificate is revoked in accordance with the provisions of section 35, the holder thereof shall, on the requisition of the Administrator General, deliver it up to such Administrator General, but shall not be entitled to the refund of any fee paid thereon.

(2) If such person wilfully and without reasonable cause omits to deliver up the certificate, he shall be punishable with imprisonment which may extend to three months, or with fine which may extend to one thousand rupees, or with both.

[1]Subs. by the Federal Laws (Revision and Declaration) Ordinance, 1981 (XXVII of 1981), s. 3 and Sch. II.

37. Administrator General not bound to take out administration on account of assets for which he has granted certificate.—The Administrator General shall not be bound to take out letters of administration of the estate of any deceased person on account of the assets in respect of which he grants any certificate, under section 31 or section 32, but he may do so if he revokes such certificate under section 35 or ascertains that the value of the estate exceeded [1][ten thousand] rupees.

38. Transfer of certain assets from Pakistan to executor or administrator in country of domicile for distribution.—Where a person not having his domicile in [2][Pakistan] has died leaving assets in any [3][Province] and in the country in which he had his domicile at the time of his death, and proceedings for the administration of his estate with respect to assets in any such [3][Province] have been taken under section 31 or section 32, and there has been a grant of administration in the country of domicile with respect to the assets in that country,

the holder of the certificate granted under section 31 or section 32, or the Administrator General, as the case may be, after having given the prescribed notice for creditors and others to send in to him their claims against the estate of the deceased, and after having discharged, at the expiration of the time therein named, such lawful claims as he has notice of, may, instead of himself distributing any surplus or residue of the deceased's property to persons residing out of [2][Pakistan] who are entitled thereto transfer, with the consent of the executor or administrator, as the case may be, in the country of domicile, the surplus or residue to him for distribution to those persons.

(f) Liability

39. Liability of Government.—(1) The revenues of the Government [4][* *] shall be liable to make good all sums required to discharge any liability which the Administrator General, if he were a private administrator, would be personally liable to discharge, except when the liability is one to which neither the Administrator General nor any of his officers has in any way contributed, or which neither he nor any of his officers could, by the exercise of reasonable diligence have averted, and in either of those cases the Administrator General shall not, nor shall the revenues [4][of the Government [5][*] * *], be subject to any liability.

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[3][* * * * * * *]

40. Creditors' suits against Administrator General.— (1) If any suit be brought by a creditor against any Administrator General, such creditor shall be liable to pay the costs of the suit unless he proves that not less than one month previous to the institution of the suit he had applied in writing to the Administrator General, stating the amount and other particulars of his claim, and had given such evidence in support thereof as, in the circumstances of the case, the Administrator General was reasonably entitled to require.

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[1]Subs. by Act No. XXII of 1974, s. 4.
[2]Subs. by the Central Laws (Statute Reform) Ordinance, 1960 (XXI of 1960), s. 3 and Sch., II. (*with effect from the 14th October, 1955*).
[3]Subs. and omitted by the Federal Laws (Revision and Declaration) Ordinance, 1981 (XXVII of 1981), s.3 and Sch. II.
[4]Rep. and ins. by the Official Trustees and Administrator General's Acts Amendment Act, 1922 (XXI of 1922), s. 6.
[5]Rep. by A. O. 1937.

(2) If any such suit is decreed in favour of the creditor, he shall, nevertheless, unless he is a secured creditor, be only entitled to payment out of the assets of the deceased equally and rateably with the other creditors.

41. Notice of suit not required in certain cases.—Nothing in section 80 of the Code of Civil Procedure, 1908 (V of 1908), shall apply to any suit against the Administrator General in which no relief is claimed against him personally.

PART IV
FEES

42. Fees.—(1) There shall be charged in respect of the duties of the Administrator General such fees, whether by way of percentage or otherwise, as may be prescribed by the Government:

Provided that, in the case of any estate, the administration of which has been committed to the Administrator General before the commencement of this Act, the fees prescribed under this section shall not exceed the fees leviable in respect of such estate under the Administrator General's Act, 1874[1] (II of 1874), as subsequently amended:

[2][* * * * * * * *]

(2) The fees under this section may be at different rates for different estates or classes of estates or for different duties, and shall, so far as may be, be arranged so as to produce an amount sufficient to discharge the salaries and all other expenses incidental to the working of this Act (including such sum as Government may determine to be required to insure the revenues of the Government [3][* *] against loss under this Act).

43. Disposal of fees.— (1) Any expenses which might be retained or paid out of any estate in the charge of the Administrator General, if he were a private administrator of such estate, shall be so retained or paid and the fees prescribed under section 42 shall be retained or paid in like manner as and in addition to such expenses.

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(2) The Administrator General shall transfer and pay to such authority, in such manner and at such time as the government may prescribe, all fees received by him under this Act, and the same shall be carried to the account and credit of the Government [3][* *].

PART V
AUDIT OF THE ADMINISTRATOR GENERAL'S ACCOUNTS

44. Audit of Administrator General's Accounts.—The accounts of every Administrator General shall be audited at least once annually, and at any other time if the Government so direct, by the prescribed person and in the prescribed manner.

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[1]Omitted by the Federal Laws (Revision and Declaration) Ordinance, 1981 (XXVII of 1981), s. 3 and Sch. II.
[2]Rep. by the Official Trustees and Administrator General`s Acts Amdt. Act, 1922 (XXI of 1922), s.7.

45. Auditors to examine accounts and report to Government.—The auditors shall examine the accounts and forward to the Government a statement thereof in the prescribed form, together with a report thereon and a certificate signed by them showing—

(a) whether they contain a full and true account of everything which ought to be inserted therein,

(b) whether the books which by any rules made under this Act are directed to be kept by the Administrator General, have been duly and regularly kept, and

(c) whether the assets and securities have been duly kept and invested and deposited in the manner prescribed by this Act, or by any rules made thereunder,

or (as the case may be) that such accounts are deficient, or that the Administrator General has failed to comply with this Act or the rules made there under, in such respects as may be specified in such certificate.

46. Power of auditors to summon and examine witnesses, and to call for documents.— (1) Every auditor shall have the powers of a Civil Court under the Code of Civil Procedure, 1908 (V of 1908),

(*a*) to summon any person whose presence he thinks necessary to attend him from time to time; and

(*b*) to examine any person on oath to be by him administered; and

(*c*) to issue a commission for the examination on interrogatories or otherwise of any person; and

(*d*) to summon any person to produce any document or thing the production of which appears to be necessary for the purpose of such audit or examination.

(2) Any person who when summoned refuses, or without reasonable cause, neglects to attend or to produce any document or thing or attends and refuses to be sworn, or to be examined, shall be deemed to have committed an offence within the meaning of, and punishable under, section 188 of the Pakistan Penal Code (XLV of 1860), and the auditor shall report every case of such refusal or neglect to Government.

47. Costs of audit, etc.—The costs of and incidental to such audit and examination shall be determined in accordance with rules made by the Government, and shall be defrayed in the prescribed manner.

PART VI
MISCELLANEOUS

48. General powers of administration.—The Administrator General may, in addition to, and not in derogation of, any other powers of expenditure lawfully exerciseable by him, incure expenditure—

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(a) on such acts as may be necessary for the proper care and management of any property belonging to any estate in his charge; and

(b) with the sanction of the High Court [1][* * *] on such religious, charitable and other objects, and on such improvements, as may be reasonable and proper in the case of such property.

49. Power of person beneficially interested to inspect Administrator General's accounts, etc., and take copies.—Any person interested in the administration of any estate, which is in the charge of the Administrator General shall, subject to such conditions and restrictions as may be prescribed, be entitled at all reasonable times to inspect the accounts relating to such estate and the reports and certificates of the auditor, and on payment of the prescribed fee, to copies thereof and extracts therefrom.

50. Power to make rules.—(1) The Government shall make rules for carrying into effect the objects of this Act and for regulating the proceedings of the Administrator General.

(2) In particular and without prejudice to the generality of the foregoing power, such rules may provide for—

(a) the accounts to be kept by the Administrator General and the audit and inspection thereof,

(b) the safe custody, deposit and investment of assets and securities which come into the hands of the Administrator General,

(c) the remittance of sums of money in the hands of the Administrator General in cases in which such remittances are required,

(d) subject to the provisions of this Act, the fees to be paid under this Act, and the collection and accounting for any such fees,

(e) the statements, schedules and other documents to be submitted to the Government or to any other authority by the Administrator General, and the publication of such statements, schedules or other documents,

(f) the realization of the cost of preparing any such statements, schedules or other such documents,

(ff) [2][* * * * * * *]

(g) the manner in which and the person by whom the costs of and incidental to any audit under the provisions of this Act are to be determined and defrayed,

[1]Rep. by A. O., 1937.
[2]Rep. by the Destruction of Records Act, 1917 (V of 1917), s. 6 and Sch.

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(h) the manner in which summonses issued under the provisions of section 46 are to be served and the payment of the expenses of any person summoned or examined under the provisions of this Act and of any expenditure incidental to such examination, and

(i) any matter in this Act directed to be prescribed.

(3) All rules made under this Act shall be published in the official Gazette and, on such publication, shall have effect as if enacted in this Act.

51. False evidence.—Whoever, during any examination authorised by this Act, makes upon oath a statement which is false and which he either knows or believes to be false or does not believe to be true, shall be deemed to have intentionally given false evidence in a stage of a judicial proceeding.

52. Assets unclaimed for twelve years to be transferred to Government.—All assets in the charge of the Administrator General which have been in his custody for a period of twelve years or upwards whether before or after the commencement of this Act without any application for payment thereof having been made and granted by him shall be transferred, in the prescribed manner, to the account and credit of the Government [1]* *:

Provided that this section shall not authorise the transfer of any such assets as aforesaid, if any suit or proceeding is pending in respect thereof in any Court.

53. Mode of proceeding by claimant to recover principal money so transferred.—(1) If any claim is hereafter made to any part of the assets transferred to the account and credit of the Government [1]* * under the provisions of this Act, or any Act hereby repealed, and if such claim is established to the satisfaction of the prescribed authority, the Government [1]* * shall pay to the claimant the amount of the principal so transferred to its account and credit or so much thereof as appears to be due to the claimant.

(2) If the claim is not established to the satisfaction of the prescribed authority, the claimant may, without prejudice to his right to take any other proceedings for the recovery of such assets, apply by petition to the High Court [2]* * * against the [2][Government], and such Court, after taking such evidence as it thinks fit, shall make such order in regard to the payment of the whole or any part of the said principal sum as it thinks fit, and such order shall be binding on all parties to the proceeding [3][.]

[3][* * * * * * *]

(3) The Court may further direct by whom the whole or any part of the cost of each party shall be paid.

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[1]Rep. by the Official Trustees and Administrator General's Acts (Amdt.) Act, 1922 (XXI of 1922), s. 7.
[2]Rep. and subs. by A.O., 1937.
[3]Subs. and omitted by the Central Laws (statute reform) Ordinance, 1960 (XXI of 1960), Art. 2 and Sch., (*with effect from the 23rd March, 1956*).

54. District Judge in certain cases to take charge of property of deceased persons, and to report to Administrator General.— (1) Whenever any person, other than an exempted person, dies leaving assets within the limits of the jurisdiction of a District Judge, the District Judge shall report the circumstance without delay to the Administrator General of the [1][Division] stating the following particulars so far as they may be known to him :—

(a) the amount and nature of the assets,

(b) whether or not the deceased left a will and, if so, in whose custody it is,

(c) the names and addresses of the surviving next-of-kin of the deceased, and, on the lapse of one month from the date of the death,

(d) whether or not any one has applied for probate of the will of the deceased or letters of administration of his estate.

(2) The District Judge shall retain the assets under his charge, or appoint an officer under the provisions of section [2][269 of the Succession Act, 1925 (XXXIX of 1925)], to take and keep possession of the same until the Administrator General has obtained letters of administration, or until some other person has obtained probate or such letters or a certificate from the Administrator General under the provisions of this Act, when the assets shall be delivered over to the holder of such probate, letters of Administration or certificate:

Provided that the District Judge may, if he thinks fit, sell any assets which are subject to speedy and natural decay, or which for any other sufficient cause he thinks should be sold, and he shall thereupon credit the proceeds of such sale to the estate.

(3) The District Judge may cause to be paid out of any assets of which he or such officer has charge, or out of the proceeds of such assets or of any part thereof, such sums as may appear to him to be necessary for all or any of the following purposes, namely:—

(a) the payment of the expenses of the funeral of the deceased and of obtaining probate of his will or letters of administration of his estate or a certificate under this Act,

(b) the payment of wages due for services rendered to the deceased within three months next preceding his death by any labourer, artizan or domestic servant,

(c) the relief of the immediate necessities of the family of the deceased, and

(d) such acts as may be necessary for the proper care and management of the assets left by the deceased,

[1]Subs. by A. O., 1937.
[2]Subs. by the Federal Laws (Revision and Declaration) Ordinance, 1981 (Ordinance No. XXVII of 1981), s. 3 and Sch. II.

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and nothing in section [1][230, section 321 or section 322 of the Succession Act, 1925 (XXXIX of 1925)], or in any other law for the time being in force with respect to rights of priority of creditors of deceased persons shall be held to affect the validity of any payment so caused to be made.

55. Succession Act and Companies Act not to affect Administrator General.— (1) Nothing contained in the [1][Succession Act, 1925 (XXXIX of 1925)], or the [1][Companies Act, 1913 (VII of 1913)], shall be taken to supersede or affect the rights, duties and privileges of any Administrator General.

(2) [2][* * * * * * *]

56. Order of Court to be equivalent to decree.—Any order made under this Act by any Court shall have the same effect as a decree.)

57. Provision for administration by Consular Officer in case of death in certain circumstances of foreign subject.—Notwithstanding anything in this Act, or in any other law for the time being in force, the [3][Federal Government] may, by general or special order, direct that, where a subject of a foreign State dies in [4][Pakistan], and it appears that there is no one in [4][Pakistan] other than the Administrator General, entitled to apply to a Court of competent jurisdiction for letters of administration of the estate of the deceased, letters of administration shall, on the application to such Court of any Consular Officer of such foreign State, be granted to such Consular Officer on such terms and conditions as the Court may, subject to any rules made in this behalf by the [3][Federal Government] by notification in the [5][official Gazette] think fit to impose.

58. [5][* * * * * * *]

59. Saving of provisions Registration Act, 1908.—Nothing in this Act shall be deemed to affect the provisions of the Registration Act, 1908 (XVI of 1908).

59-A. [1][* * * * * * *]

60. [6][* * * * * * *]

THE SCHEDULE.— [6][* * * * * * *]

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Date: 09-04-2025

[1]Subs. and omitted by the Federal Laws (Revision and Declaration) Ordinance, 1981 (XXVII of 1981), ss. 14-15 and Sch. II.
[2]Omitted by the Adaptation of Central Acts and Ordinances Order, 1949 (Order No. 4 of 1949), Sch.
[3]Subs. by the Federal Adaptation of Laws Order, 1975 (P. O. No. 4 of 1975), Art. 2 and Table.
[4]Subs. by the Central Laws (Statute Reform) Ordinance, 1960 (XXI of 1960), s. 3 and Sch. II. (*with effect from the 14th October, 1955*).
[5]Subs. & Rep. by A. O., 1937.
[6]Rep. by the Repealing Act, 1927 (XII of 1927), s. 2 and Sch.

THE AIRCRAFT (REMOVAL OF DANGER TO SAFETY) ORDINANCE, 1965

CONTENTS

SECTIONS:

1. Short title, extent and commencement.
2. Definitions.
3. Measures to avoid attraction of birds.
4. Non-compliance with order under section 3.
5. Restriction on construction or extension of tannery, etc.
6. Power of entry in premises, etc.
7. Penalty.
8. Powers to try an offence.
9. Indemnity.
10. Power to make rules.

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THE AIRCRAFT (REMOVAL OF DANGER TO SAFETY) ORDINANCE, 1965.

[1]ORDINANCE NO. XII OF 1965

An Ordinance to make provision for the removal of danger to the safety of aircraft.

WHEREAS it is expedient to make provision for the removal of danger to the safety of aircraft caused by the location of bird attracting sites around certain airfields ;

AND WHEREAS the National Assembly is not in session and the President is satisfied that circumstances exist which render immediate legislation necessary ;

NOW, THEREFORE in exercise of the powers conferred by clause (1) of Article 29 of the Constitution, and of all other powers enabling him in that behalf, the President is pleased to make and promulgate the following Ordinance : —

1. Short title, extent and commencement. — (1) This Ordinance may be called the Aircraft (Removal of Danger to Safety) Ordinance, 1965.

(2) It extends to the whole of Pakistan.

(3) It shall come into force at once.

2. Definitions. — In this Ordinance, unless there is anything repugnant in the subject or context,—

[2][(a) "airfield" means all airports, aerodromes or runways of Civil Aviation Authority, Pakistan Army, Pakistan Navy, Pakistan Air Force and including landing areas approved by the Director-General, Civil Aviation Authority ;]

(b) "specified area" means the area lying within a radius of [2][seven nautical miles (13 kilometers) from the landing or take off ends of the runway and five nautical miles (9.25 kilometers) from both the shoulders of the entire length of the runway] from either end of a runway of an airfield.

3. Measures to avoid attraction of birds. — (1) The [3][Federal Government] may by order require the owner or the person in possession or having the management or control of any tannery, slaughter-house, cattle-yard, fish-drying area, refuse-dump or other place within a specified area which attracts birds to take within such period as may be specified in the order such measures for avoiding attraction of birds which may endanger the safety of aircraft as may be so specified [4][including closure of the source of such danger].

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[1] Approved by the National Assembly of Pakistan on the 16th July, 1965, see Gaz. of P., 1965, Ext., pp. 567-569.
[2] Subs. by Ord. X of 2001, s. 2.
[3] Subs. by F.A.O, 1975, Art. 2 and Table, for "Central Government".
[4] Added by Ord. X of 2001, s. 3.

(2) Any person affected by an order under sub-section (1) may, within thirty days following the order, make an application to the [1][Federal Government] for a review of the order on the ground that the measures directed to be taken are not necessary or that alternative measures described in the application would be equally effective for avoiding attraction of birds.

(3) The [1][Federal Government] may, after considering the application made under sub-section (2) and giving the applicant an opportunity of being heard, modify, cancel or confirm the order made under sub-section (1).

4. Non-compliance with order under section 3. Where an order made under sub-section (1) of section 3 is not complied with, the [1][Federal Government] may, by notification in the official Gazette, prohibit the use of, or the carrying on of any trade or occupation in, the tannery, slaughter-house, cattle-yard, fish-drying area, refuse-dump or other place with respect to which the order was made.

5. Restriction on construction or extension of tannery, etc. Within a specified area, no tannery, slaughter-house or cattle-yard shall be constructed, established or extended and no place shall be used for fish-drying or as a refuse-dump or for carrying on any trade or occupation which attracts birds except with the prior permission in writing of the [1][Federal Government] and in accordance with the terms and conditions, if any, on which the permission is granted.

6. Power of entry in premises, etc. Any person authorised in this behalf by the [1][Federal Government] may at any time between sunrise and sunset enter and inspect any tannery, slaughter-house, cattle-yard or fish drying area or any premises or land used as a refuse-dump or for carrying on any trade or occupation which may attract birds, for the purpose of ascertaining the extent of danger to the safety of aircraft caused by the attraction of birds and seeing whether the provisions of this Ordinance and any order or notification made or issued thereunder have been complied with.

7. Penalty. Whoever fails to comply with or contravenes any of the provisions of this Ordinance or any order, direction or notification issued or made thereunder, or wilfully obstructs any person in doing any of the acts authorised by this Ordinance shall be punishable with imprisonment for a term which may extend to six months, or with fine which may extend to [2][ten thousand] rupees, or with both, and in the case of a continuing offence, with an additional fine which may extend to [2][five hundred] rupees for every day after the first during which the offence continues.

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8. Powers to try an offence. No court inferior to that of a Magistrate of the first class shall try an offence punishable under this Ordinance.

9. Indemnity.—(1) No order made, notification issued or proceeding taken under this Ordinance shall be called in question in any court.

(2) No suit, prosecution or other legal proceeding shall lie against any person for anything which is in good faith done or intended to be done under this Ordinance.

10. Power to make rules. The [1][Federal Government] may, by notification in the official Gazette, make rules for carrying out the purposes of this Ordinance.

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[1]Subs. by F.A.O., 1975, Art. 2 and Table, for "Central Government".
[2]Subs. by Ord. X of 2001, s. 4.

THE ANTIQUITIES ACT, 1975

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23. Prohibition of bill posting, neon signs, other kinds of advertisements, etc.,
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25. Dealing in antiquities.
26. Export of antiquities.
27. Traffic in movable antiquities.
28. Regulation of mining, quarrying, etc.,
29. Prohibition of archaeological excavation or exploration without licence.
30. Prohibition of making copies of protected antiquities without licence.
31. Right of access to protected immovable antiquities.
32. Penalty.
33. Jurisdiction to try offences.
34. Power to arrest without warrant.
35. Confiscated antiquities to be made over to Director General.
36. Indemnity.
37. Power to make rules.
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THE ANTIQUITIES ACT, 1975

[1]Act No. VII OF 1976

[14th January, 1976]

An Act to repeal and re-enact the law relating to the preservation and protection of antiquities.

WHEREAS it is expedient to repeal and re-enact the law relating to the preservation and protection of antiquities and to provide for matters connected therewith or ancillary thereto;

It is hereby enacted as follows:—

1. Short title, extent and commencement.—(1) This Act may be called the Antiquities Act, 1975.

(2) It extends to the whole of Pakistan.

(3) It shall come into force at once.

2. Definitions.—In this Act, unless there is any thing repugnant in the subject of context,—

(a) "Advisory Committee" means the Advisory Committee constituted under section 3;

[2][(b) "ancient", in relation to an antiquity, means an antiquity which has been in existence for a period of not less than seventy-five years;]

(c) "antiquity" means—

(i) any ancient product of human activity, movable or immovable, illustrative of art, architecture, craft, custom, literature, morals, politics, religion, warfare or science or of any aspect of civilization or culture,

(ii) any ancient object or site of historical, ethnographical, anthropological, military or scientific interest,

(iii) any national monument, and

(iv) any other object or class of such objects declared by the Federal Government, by notification in the official Gazette, to be an antiquity for the purposes of this Act;

(d) "dealer" means a person engaged in the business of buying and selling antiquities; and "deal in antiquities" means to carry on such business;

(e) [3][Director-General] means the [3][Director-General] of Archaeology, Government of Pakistan, and includes an officer authorised by him to exercise or perform all or any of the powers or functions of the [3][Director-General] under this Act ;

[1]For Statement of Objects and Reasons, see Gaz. of P., 1975, Ext., Pt. III, p. 1541.
The Act has been applied to Provincially Administered Tribal Areas of N.W.F.P. with certain modifications, see Notifn. No. 14/43-505(II) (H.D)/80. dt. 29-1-81, see Gaz. of N.W.F.P, Ext., p.
[2]Subs. by the Antiquities (Amdt.) Act, 1992 (21 of 1992), s. 2, for clause (b).
[3] Subs. by the Antiquities (Amdt.) Act, 1992 (21 of 1992), s. 2, for "Director".

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(f) "export" means taking out of Pakistan by land, sea or air;

(g) "immovable antiquity" means an antiquity of any of the following descriptions, namely:—

(i) any archaeological deposit on land or under water,

(ii) any archaeological mound, tumulus, burial place or place of internment, or any ancient garden, structure, building, erection or other work of historical, archaeological military or scientific interest,

(iii) any rock, cave or other natural object of historical, archaeological artistic or scientific interest or containing sculpture, engraving, inscription or painting of such interest, and includes—

(1) any gate, door, window, paneling, dado, ceiling, inscription, wall-painting, wood work, metal work or sculpture or any other thing which is attached or fastened to an immovable antiquity;

(2) the remains of an immovable antiquity;

(3) the site of an immovable antiquity;

(4) such portions of land or water adjoining the site of an immovable antiquity as are reasonably required for fencing or covering or otherwise preserving such antiquity;

(5) the reasonable means of access to, and convenient inspection of an immovable antiquity; and

(6) any urban site, street, group of buildings or public square of special value which the Federal Government, being of the opinion that its preservation is a matter of public interest by reason of its arrangement, architecture or materials of construction, by notification in the official Gazette, declares to be an immovable antiquity for the purposes of this Act;

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(h) "national monument" means any building, structure, erection, place of internment, garden, portion of land or any other place or thing of national importance as may be determined and notified as such from time to time by the Federal Government in consultation with the Advisory Committee;

(i) "owner" includes—

(i) any person legally competent to act on behalf of the owner, when by reason of infancy or other disability the owner is unable to act;

(ii) a joint owner invested with powers of management on behalf of himself and other joint owners and the successor in interest of such owner; and

(iii) any manager or trustee exercising the powers of management and the successor in office of such manager or trustee;

(j) "protected antiquity" means an antiquity which is declared under section 10 to be a protected antiquity; and

(k) "rules" means rules made under this Act.

3. Advisory Committee.—[1][(l) For the purposes of this Act, the Federal Government shall, by notification in the Official Gazette, constitute an Advisory Committee comprising of such members, including one member each from the Senate and the National Assembly, as may be deemed necessary. The Chairman of the Advisory Committee shall be the member of Parliament.]

(2) No act or proceeding of the Advisory Committee shall be deemed to be invalid by reason only of the existence of a vacancy in, or defect in the constitution of, the Committee.

4. Dispute as to whether any product etc., is an antiquity.—If any question arises whether any product, object or site is an antiquity within the meaning of this Act it shall be referred to the Federal Government which shall, after consultation with the Advisory Committee, decide the same; and the decision of the Federal Government shall be final.

5. Custody, preservation etc., of certain antiquities.—(1) Where the [2][Director General] receives any information or otherwise has the knowledge of the discovery or existence of an antiquity of which there is no owner, he shall, after satisfying himself as to the correctness of the information or knowledge, take such steps as he may consider necessary for the custody, preservation and protection of the antiquity.

(2) Where the owner of an antiquity is not traceable, the [2][Director General] may, with the approval of the Federal Government, take such as he may consider necessary for the custody, preservation and protection of the antiquity.

[3]**[5A Accidental discovery of antiquity to be reported to [2][Director-General]**.—(1) Whoever discovers, or finds accidentally any movable antiquity shall inform the [2][Director General] within seven days of its being discovered or found and preserve it for the period specified in sub-section (2).

(2) If, within seven days of his being informed under sub-section (1) of the discovery of a movable antiquity or of a movable antiquity having been found, the [2][Director General] decides to take over the antiquity for purposes of custody, preservation and protection the person discovering or finding it shall hand it over to the [1][Director General] or a person authorised by him in writing.

[4][(3) Where the Director General decides to take over an antiquity he may pay to the person by whom it is handed over to him such cash reward as the Advisory Committee may deem fit.]

(4) If any person who discovers or finds any movable antiquity contravenes the provisions of sub- section (1) or sub-section (2), he shall be punishable with imprisonment for a term which may extend to three years, or with fine, or with both, and; the court convicting such person shall direct that the antiquity in respect of which such contravention has taken place shall stand forfeited to the Federal Government.]

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[1]Subs. by the Antiquities (Amdt.) Act, 1992 (21 of 1992), s. 4, for sub-section (1).
[2]Subs. by the Antiquities (Amdt.) Act, 1992 (21 of 1992), s. 2, for "Director".
[3]Section 5A ins. by the Antiquities (Amdt.) Ordinance, 1978 (42 of 1978), s. 2.
[4]Subs. by Act. 2l of 1992, s. 5, for sub-section (3).

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6. Power of entry, inspection, etc.—(1) The [1][Director General] may, after giving reasonable notice, enter into, inspect and examine any premises, place or area which or the sub-soil of which may have reason to believe to be, or to contain an antiquity and may cause any site, building, object or any antiquity or the remains of any antiquity in such premises, place or area to be photo graphed, copied or reproduced by any process suitable for the purpose.

(2) The owner or occupier of the premises, place or area shall afford all reasonable opportunity and assistance to the [1][Director General] for the purpose of sub-section (1).

(3) No photograph, copy or reproduction taken or made under or for the purposes of sub-section (1) shall be sold or offered for sale except by or with the consent of the owner of the object of which the photograph, copy or reproduction has been taken or made.

(4) Where substantial damage is caused to any property as a result of the inspection under sub-section (1), the [1][Director General] shall pay to the owner thereof reasonable compensation for the damage.

7. Acquisition of land containing antiquities.—If the Federal Government has reasonable grounds to believe that any land contains any antiquity it may direct the Provincial Government to acquire such land or any part thereof; and the Provincial Government shall thereupon acquire such land or part under the Land Acquisition Act, 1894 (I of 1894), as for a public purpose.

8. Purchase, taking lease, etc., of antiquity. (1) The [1][Director General] may, with the previous sanction of the Federal Government, purchase, or take lease or accept a gift or bequest of, an antiquity.

(2) The [1][Director General] may receive voluntary contributions and donations for the acquisition, preservation or restoration of antiquities and may make suitable arrangements for the management and application of the fund created by such contributions and donations:

Provided that a contribution or donation made for any specified purpose shall not be applied to any purpose other than that for which it has been made.

9. Right of pre-emption in case of a sale of antiquity.— (1) Where the [1][Director General] receives any information or otherwise has the knowledge that any antiquity or any immovable property containing an antiquity is offered for sale or is about to be sold, he may, with the approval of the Federal Government, exercise the right of pre-emption with respect to such antiquity or property and, if he intends to exercise the right, shall give to the person competent to sell a notice in writing according.

(2) If the [1][Director General] does not exercise with respect to any antiquity or property the right of pre-emption within a period of three months from the date of notice given under subsection (l), the antiquity or property may be sold to any person after the expiry of the said period and a notice of such sale shall be given to the [1][Director General].

(3) Save as provided in sub-section (2), no antiquity or property in respect of which a notice under sub-section (1) has been given shall be sold to any person.

(4) All sales in contravention of sub-section (3) shall be void and the antiquity or property so sold shall be forfeited to the Federal Government.

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[1]Subs. by the Antiquities (Amdt.) Act, 1992 (21 of 1992), s. 2, for "Director".

10. Declaration of protected antiquities.—(1) The Federal Government may, by notification in the official Gazette, declare any antiquity to be a protected antiquity for the purposes of this Act.

(2) A copy of a notification under sub-section (1) shall be served on the owner of the antiquity and; in the case of an immovable antiquity, shall also be fixed up in a conspicuous place of or near the antiquity.

(3) A notification under sub-section (1) shall, unless it is cancelled by the Federal Government, be conclusive evidence of the fact that the antiquity to which it relates is a protected antiquity for the purposes of this Act.

(4) Antiquities declared to be protected antiquities under the Antiquities Act, 1968 (XIV of 1968), and ancient monuments deemed to be protected antiquities for the purposes of that Act, shall be deemed to be protected antiquities for the purposes of this Act.

11. Representation against declaration of protected antiquities.—(1) The owner of an antiquity to which a notification under section 10 relates, or any person having any right or interest in the antiquity, may, within three months of the service of a copy of the notification, make a representation in writing to the Federal Government against the notification.

(2) Upon the receipt of a representation under sub-section (1) against a notification, the Federal Government, after giving the person making it an opportunity of being heard and after consultation with the Advisory Committee, may, if it is satisfied that there are good and sufficient reasons for objection to the notification, cancel it.

12. The guardianship of antiquity by agreement.—(1)The owner of any immovable antiquity or protected antiquity may, by an agreement in writing constitute the [1][Director General] the guardian of such antiquity and the [1][Director General] may, with the previous sanction of the Federal Government, accept such guardianship.

(2) Where the [1][Director General] has accepted the guardianship of an antiquity in pursuance of an agreement under sub-section (1), the owner shall, except as expressly provided in this Act and in the agreement, have the same right, title and interest in and to the antiquity as if the 1[Director General] had not been constituted the guardian thereof.

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(3) An agreement under this section in relation to an antiquity may provide for all or any of the following matters, namely:

(a) the maintenance of an antiquity;

(b) the custody of the antiquity and the duties of any person who may be employed to watch it;

(c) the restrictions upon the right of the owner to alienate, destroy, remove, alter or deface the antiquity or to build on or near the site of the antiquity;

(d) the facilities of access to be allowed to the public;

(e) the facilities to be allowed to persons deputed by the owner or the [1][Director General] for inspection aid maintenance of the antiquity;

[1]Subs. by the Antiquities (Amdt.) Act, 1992 (21 of 1992), s. 2, for "Director".

(f) the expenses to be incurred in connection with the preservation of the antiquity and payment of such expenses if incurred by the owner;

(g) compensation to be paid for any loss sustained by the owner or occupier or any other person as a result of the enforcement or observance of the agreement; and

(h) any other matter connected with the custody, management and preservation of the antiquity.

(4) The terms of an agreement under this section may be altered from time to time with the sanction of the Federal Government and with the consent of the owner.

(5) An agreement under this section in relation to an antiquity may be terminated upon six months' notice in writing given by the [1][Director General], with the previous sanction of the Federal Government, to the owner or by the owner to the [1][Director General].

13. Purchasers at certain sales and persons claiming through owner bound by agreement entered into by owner.—Notwithstanding anything contained in any other law for the time being in force, every person who, at a sale for the recovery of arrears of land revenue or any other public demand, purchases any land or property, or any right or interest in land or property, which contains or in which is situated an antiquity in respect of which an agreement under section 12 subsists, and every person claiming any title to any antiquity from, through or under an owner who entered into such agreement, shall be bound by such agreement.

[2][**13A. Ownership of buried antiquities.** Notwithstanding anything contained in any other law for the time being in force, the ownership of all buried antiquities shall vest in the Federal Government.]

14. Application of endowment for maintenance and preservation of antiquity.—(1) Where any endowment has been created for the maintenance and preservation of any protected antiquity, or for that purpose among others, and the owner or other person competent in this behalf fails in the proper application of such endowment and, when proposed to him by the [1][Director General], refuses or fails to enter into an agreement under section 12, the [1][Director General] may, for the proper application of such endowment or part thereof, institute a suit in the Court of the District Judge, or, where the estimated cost of maintaining and preserving the antiquity does not exceed on thousand rupees, make an application to the District Judge.

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(2) On the bearing of an application under sub-section (1), the District Judge may summon and examine the owner and any person whose evidence appears to him necessary, and may pass an order for the proper application of the endowment or of any part thereof, and any such order may be executed as if it were the decree of a Civil Court.

15. Compulsory acquisition of protected Immovable antiquity.—(1) If the Federal Government apprehends that a protected immovable antiquity is in danger of being destroyed, injured or allowed to fall into decay, it may, [3]* * * direct the Provincial Government to acquire such antiquity or any part thereof ; and the Provincial Government shall thereupon acquire such antiquity or part under the Land Acquisition Act, 1894 (I of 1894), as for a public purpose.

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[1]Subs, by the Antiquities (Amdt.) Act, 1992 (21 of 1992), s. 2, for "Director".

[2]New section I3A ins. ibid., s. 6.

[3]The words "after consultation with the Advisory Committee" omitted by the Antiquities (Amdt.) Act, 1976 (6 of 1976), s. 2, (w.e.f. 2-8-76).

(2) The power of compulsory acquisition under sub-section (1) shall not be exercised in the case of—

(a) any antiquity which or any part of which is periodically used for religious observances ; or

(b) any antiquity which is the subject of a subsisting agreement under section 12 [1][.]

[2]* * * * * * *

16. Compulsory acquisition of movable antiquities.—(1) If the Federal Government is of the opinion that any movable antiquity should, by reason of its cultural, historical or archaeological importance, be acquired for the purpose of preservation, the Federal Government may, by order in writing addressed to the owner, acquire such antiquity:

Provided that the power to acquire under this sub-section shall not extend to—

(a) any image or symbol in actual use for the purpose of any religious observance ; and

(b) anything which the owner desires to retain on any reasonable ground personal to himself or to any of his ancestors or to any member of his family.

(2) When an order under sub-section (1) has been served upon the owner, the antiquity to which the order relates shall immediately vest in the Federal Government free from all encumbrances and the owner shall be entitled to compensation, the amount of which shall be determined in the manner, and in accordance with the principles, hereinafter set out, that is to say,—

(a) where the amount of compensation can be fixed by agreement, it shall be paid in accordance with such agreement ;

(b) where no such agreement can be reached, the Federal Government shall appoint as arbitrator a person who has been, or is qualified for appointment as, a Judge of a High Court;

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(c) at the commencement of the proceedings before the arbitrator, the Federal Government and the person to be compensated shall state what in their respective opinions is a fair amount of compensation ;

(d) the arbitrator in making his award shall have regard to the price which the antiquity is likely to fetch on a sale in open market between a buyer and a seller independent of each other;

(e) an appeal shall lie to the High Court against any award of an arbitrator except in case where the amount thereof does not exceed an amount prescribed in this behalf by rules ; and

(f) save as provided in this sub-section and in any rules made in this behalf, nothing in any law for the time being in force shall apply to arbitrations under this sub-section.

[1]Subs. Ibid., s. 2, or "; or".
[2]Clause(c) omitted ibid., (w.e.f. 2-8-76).

17. Protection of place of worship from misuse, etc.—(1) A place of worship or shrine, being an antiquity maintained by the Federal Government, shall not be used for any purpose inconsistent with its character.

(2) A place of worship or shrine in respect of which the [1][Director-General] has accepted guardianship in pursuance of an agreement under section 12 shall, unless the agreement otherwise provides, be maintained by the person in whom it is vested or, if there is no such person, by the Federal Government.

(3) Where any antiquity in respect of which the Federal Government has acquired any right under this Act or the [1][Director-General] has accepted guardianship is periodically used for religious worship or observance by any community, the [1][Director General] shall provide for the protection of such antiquity from pollution or desecration—

(a) by prohibiting the entry therein, except in accordance with the conditions prescribed with the concurrence of the person in charge of the antiquity, of any person not entitled so to enter by the religious usages of the community by which the antiquity is used ; and

(b) by taking with the concurrence of the person in charge of the antiquity such other action as he may think necessary for the purpose.

(4) Whoever contravenes the provisions of sub-section (3) shall be punishable with imprisonment for a term which may extend to three months, or with fine, or with both.

18. Restriction on use of protected immovable antiquity. A protected immovable antiquity shall not be used for any purpose inconsistent with its character or for a purpose other than that directly related to its administration and preservation.

19. Prohibition of destruction, damage, etc., of protected antiquities.—(1)No person shall, except for carrying out the purposes of this Act, destroy, break, damage, alter, injure, deface or mutilate or scribble, write or engrave any inscription or sign on, any antiquity or take manure from any protected antiquity.

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(2) Whoever contravenes the provisions of sub-section (1) shall be punishable with rigorous imprisonment, for a, term which may extend to three years, or with fine, or with both.

(3) The court trying an offence under sub-section (2) may direct that the whole or any part of the fine recovered shall be applied in defraying the expenses of restoring the antiquity to the condition in which it was before the commission of the offence.

20. Restriction on repairs, renovation, etc., of protected immovable antiquity.—(1) The owner of a protected immovable antiquity shall not make any alteration or renovation in, or addition to the antiquity:

Provided that he may, with the permission of the [1][Director-General], make minor adjustments considered necessary for the day to day use of the antiquity:

Provided further that the work for which permission has been given shall be carried out under the supervision of the [1][Director-General] or a person authorised by him in this behalf.

[1]Subs. by the Antiquities (Amdt.) Act, 1992 (21 of 1992), s. 2, for "Director"

(2) Whoever contravenes the provisions of sub-section (1) shall be punishable with rigorous imprisonment for a term which may extend to one year, or with fine, or with both.

21. Direction to the owner to take measures for preservation of antiquity.—(1)Where the [1][Director General] considers that any antiquity is not being preserved or conserved properly by its owner, the 1[Director General] may, by order in writing, direct the owner to take such measures for its proper preservation and conservation, and within such time, as may be specified in the order.

(2) If the owner fails to take the measures specified in the order referred to in sub-section (1), the 1[Director General] may take all such measures in respect of the antiquity and the expenses incurred for the purpose shall be recoverable from the owner as an arrear of land revenue.

22. Execution of development schemes and new constructions in proximity to immovable antiquity. Notwithstanding anything contained in any other law for the time being in force, no development plan or scheme or new construction on, or within a distance of two hundred feet of, a protected immovable antiquity shall be undertaken or executed except with the approval of the [1][Director-General].

23. Prohibition of bill posting, neon signs, other kinds of advertisements, etc.—(1) No person shall put any neon signs or other kinds of advertisement, including bill posting, commercial signs, poles or pylons, electricity or telephone cables and television aerials, on or near any protected immovable antiquity.

(2) Whoever contravenes the provision of sub-section (1) shall be punishable with rigorous imprisonment for a term which may extend to one year, or with fine which may extend to ten thousand rupees, or with both.

(3) The court trying an offence under sub-section (2) may direct that the whole or any part of the fine recovered shall be applied in defraying the expenses of restoring the antiquity to the condition in which it was before the commission of the offence.

24. Penalty for counterfeiting, etc., of antiquity.—(1) Whoever counterfeits, or commits forgery in respect of any antiquity with intent to commit fraud or knowing to be likely that fraud will thereby be committed, or causes anything to appear like, or to be believed to be, an antiquity with intent to cause wrongful gain to one person or wrongful loss to another person shall be punishable with imprisonment for a term which may extend to six months or with fire, or with both.

(2) The Court trying an offence under sub-section (1) may direct that anything the making or forging of which has constituted such offence shall stand forfeited to the Federal Government.

25. Dealing in antiquities.—(1) No person shall deal in antiquities except under, and in accordance with, a licence granted by the [1][Director-General].

(2) Every dealer shall maintain a register in such manner and form as the [1][Director-General] may prescribe from time to time.

(3) A licence granted under sub-section (1) may be cancelled by the [1][Director-General] for the breach of any condition of the licence.

[1]Subs. by the Antiquities (Amdt.) Act, 1992 (21 of 1992), s. 2, for "Director".

(4) The [1][Director-General] may, with a view to securing compliance with the provisions of this section,—

(a) require any person dealing in antiquities to give such information in his possession with respect to any business carried on by him as the [1][Director-General] may demand ;

(b) inspect or cause to be inspected any book, register or other document belonging to or under the control of any person dealing in antiquities ; and

(c) enter and search, or authorise any officer subordinate to him to enter and search, any premises and seize, or authorise any such officer or a police officer, to seize, any antiquity in respect of which he has reason to believe that a contravention of any provision of this section or a breach of any condition of the licence has been committed.

(5) Whoever contravenes the provisions of this section shall be punishable with rigorous imprisonment for a term which may extend to three years, or with fine, or with both.

(6) The Court trying an offence under sub-section (5) may direct that any antiquity in respect of which the offence has been committed shall stand forfeited to the Federal Government.

26. Export of antiquities.—(1) No person shall export any antiquity except under a licence to be granted by the [1][Director-General]

(a) for the temporary export of antiquities for the purpose of exhibition, examination or treatment for preservation ; or

(b) in accordance with agreements with foreign licences for archaeological exploration and excavations within the term of their licences ; or

(c) for the export of antiquities which are not of a unique nature in exchange for antiquities of any foreign country.

(2) All antiquities the export of which is prohibited under sub-section (1) shall be deemed to be goods of which the export has been prohibited under section 16 of the Customs Act, 1969 (IV of 1969), and all the provisions of that Act shall have effect accordingly, except that the antiquity in respect of which the provisions of that Act have been contravened shall be confiscated where confiscation is authorised under that Act.

27. Traffic in movable antiquities.—(1) If the Federal Government apprehends that movable antiquities in any place in Pakistan are being sold or removed to the detriment of Pakistan, it may, by notification in the official Gazette, prohibit or restrict the movement of any such antiquity or any class of such antiquities for such period and between such places in Pakistan as may be specified in the notification, except with, and in accordance with the terms of, the written permission of the [1][Director-General].

(2) Whoever contravenes the provisions of a notification under sub-section (1) shall be punishable with rigorous imprisonment for a term which may extend to three year, or with fine, or with both.

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[1]Subs. by the Antiquities (Amdt.) Act, 1992 (21 of 1992), s. 2, for "Director".

(3) The Court trying an offence under sub-section (2) may direct that any antiquity in respect of which the offence has been committed shall stand forfeited to the Federal Government.

28. Regulation of mining, quarrying etc.—(1) If the Federal Government is of the opinion that for the purpose of protecting or preserving any immovable antiquity it is necessary so to do, it may, by notification in the official Gazette, prohibit or restrict, within such area as may be specified therein, mining, quarying, excavating. blasting and other operations of a like nature, or the movement of heavy vehicles, except under and in the accordance with the terms of a licence granted by the [1][Director-General] and rules, if any, made in this behalf.

(2) Any owner or occupier of land who sustains any loss by reason of any prohibition or restriction by a notification under sub-section (1) shall be paid reasonable compensation for such loss.

(3) Whoever contravenes the provisions of sub-section (1) shall be punishable with imprisonment for a term which may extend to one year, or with fine, or with both.

29. Prohibition of archaeological excavation or exploration without licence.—(1) No person shall make on any land any excavation or exploration for archaeological purposes, or unearth or attempt to unearth or make any digging in any land or site for taking out antiquities, except under, and in accordance with, a licence granted by the [1][Director-General].

(2) A licence under sub-section (1) in respect of any land shall not be granted to any person other than the owner of the land except in accordance with the term of an agreement with the owner, and any such agreement may provide for

(a) the restriction of the owner's rights in respect of the use and occupation of such land ;

(b) the compensation or any other consideration to be paid to the owner ; and

(c) any other matter connected with the use of the land for the purpose of such excavation.

(3) A licence under sub-section (1) shall not be refused to an owner if he undertakes to carry on the excavation in such manner that it will not result in the loss of archaeological or historical material which in the national interest should be preserved.

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(4) Whoever contravenes the provisions of sub-section (1) shall be punishable with imprisonment for a term which may extend to three years, or with fine, or with both.

(5) The Court trying an offence under sub-section (4) may direct that any object found in the course of an excavation, exploration, unearthing or digging constituting such offence shall stand forfeited to the Federal Government.

30. Prohibition of making copies of protected antiquities without licence.—No person shall, for any commercial purpose, make a cinematograph film of any protected antiquity or any part thereof except under, and in accordance with, a licence granted by the [1][Director-General].

31. Right of access to protected immovable antiquities.—Subject to the provisions of this Act and the rules, the public shall have a right of access to any immovable protected antiquity maintained by the Federal Government under this Act.

[1]Subs. by the Antiquities (Amdt.) Act, 1992 (21 of 1992), s. 2, for "Director".

32. Penalty. A contravention of any provision of this Act or the rules shall, where no punishment has been specifically provided, be punishable with rigorous imprisonment for a term which may extend to six months, or with fine which may extend to five thousand rupees, or with both.

[1][**33. Jurisdiction to try offence**.—No Court inferior to that of a Magistrate of the first class shall take cognizance of or try an offence punishable under this Act].

34. Power to arrest without warrant.—[2][(1) The [3][Director-General] or any officer duly empowered by him in this behalf may arrest without warrant any person against whom reasonable ground to believe that he has committed an offence under sections 5A, 19, 25, 26, 27 or 29].

(2) Subject to sub-section (3), every person arrested under sub-section (1) shall be taken forthwith to the officer-in-charge of the nearest police station.

(3) The [3][Director-General] or the officer arresting any person, or the officer-in charge of a police station to whom any person is taken under sub-section (2), shall either admit him to bail to appear before the Magistrate having jurisdiction or have him taken in custody before such Magistrate.

35. Confiscated antiquities to be made over to [3][Director General].—Any antiquity which is confiscated or forfeited under this Act shall be made over to the [3][Director-General] for custody, preservation and protection.

36. Indemnity.—No suit, prosecution or other legal proceeding shall lie against Government or any person for anything which is in good faith done or intended to be done under this Act.

37. Power to make rules.—(1) The Federal Government may after previous publication, make rules for carrying out the purposes of this Act.

(2) In particular, and without prejudice to the generality of the foregoing power, such rules may provide for

(a) the form and the conditions of any licence granted under this Act ;

(b) regulation of admission of the public to any immovable protected antiquity ;

(c) the levy of fees for the grant of any licence under this Act and for admission of the public to an immovable protected antiquity ;

(d) the procedure to be followed in arbitrations, the principles to be followed in apportioning the costs of proceedings before the arbitrator and on appeal, and the maximum amount of an award against which no appeal shall lie, under sub-section (2) of section 16 ;

(e) such other matters as are or may be required for carrying into effect the provisions of this Act.

(3) Rules made under this section may provide that the contravention of any of the provisions thereof or of any condition of a licence granted under this Act shall be punishable with fine which may extend to [2][two hundred thousand] rupees.

38. *[Repeal] Omitted by the Federal Laws (Revision and Declaration) Ordinance, 1981 (XXVII of 1981), s. 3 and Sch., II.*

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[1]Subs. ibid., s. 7, for section 33.
[2]Subs. by the Antiquities (Amdt.) Ordinance, 1978 (42 of 1978), s. 3, for section 34.
[3]Subs. by the Antiquities (Amdt.) Act, 1992 (21 of 1992), s. 2, for "Director".
[4] Subs. ibid., s. 8 for "five hundred".

THE ARCHIVAL MATERIAL (PRESERVATION AND EXPORT CONTROL) ACT, 1975

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THE ARCHIVAL MATERIAL (PRESERVATION AND EXPORT CONTROL) ACT, 1975

Act No. XLVI OF 1975

[24th April, 1975]

An Act to provide for the preservation, and control of the export, of archival material

WHEREAS it is expedient to provide for the preservation, and control of the export, of archival material of national significance;

It is hereby enacted as follows :—

1. Short title, extent and commencement.— (1) This Act may be called the Archival Material (Preservation and Export Control) Act, 1975.

(2) It extends to the whole of Pakistan.

(3) It shall come into force at once.

2. Definition.— In this Act, unless there is anything repugnant in the subject or context,—

(a) "Advisory Committee" means the Advisory Committee constituted under the Government of Pakistan, Education Division, Notification No. F. 8-5/74-AD (Arch), dated the 10th June, 1974, or any other committee that may be set up by the Federal Government for the purpose;

(b) "archival material" means any book, pamphlet, brochure, letter, hand-out, gazette, newspaper, journal, file, manuscript, whether written, printed or typed, which is not less than twenty-five years old and is of, historical significance to Pakistan;

Explanation.—For the purpose of this clause, a book, pamphlet, brochure, letter, hand-out, gazette, newspaper, journal, file or manuscript shall be deemed to be of historical significance to Pakistan if—

(i) its subject matter is the political situation in or religious or communal matters relating to South Asia, or

(ii) it is, or contains, the original of a letter written by or to the Quaid-e-Azam or the All-India Muslim League, or

(iii) it is, or contains, the original of a letter written to the President or other office-bearer of the All-India Muslim League or any other political, social or cultural organisation concerning itself with the Muslims of South Asia, and includes an enclosure or appendix to any such book, pamphlet, brochure, letter, hand-out, gazette, newspaper, journal, file or manuscript;

(c) "Director" means the Director of Archives, Government of Pakistan, and includes an officer authorised by him to exercise or perform all or any of the powers or functions of the Director under this Act; and

(d) "export" means export from Pakistan by sea, land or air.

3. Dispute as to whether any document is archival material.—If any question arises whether any document is or is not an archival material within the meaning of this Act, it shall be referred to the Federal Government which shall, after consultation with the Advisory Committee, decide the same, and the decision of the Federal Government shall be final.

4. Purchase, gifts, etc., of archival material.—The Director may, with the approval of the Advisory Committee, purchase such archival material as is offered for sale and may accept donations and gifts of archival material from individuals or organizations for preservation in the National Archives of Pakistan.

5. Export of archival material.—No person shall export any archival material except under the authority of a licence granted by the Director for its temporary export for the purpose of exhibition, examination or treatment for preservation.

6. Penalty.— (1) All archival material the export of which is prohibited under section 5 shall be deemed to be goods the export of which has been prohibited under section 16 of the Customs Act, 1969 (IV of 1969), and all the provisions of that Act shall have effect accordingly, except that the archival material in respect of which the provisions of that Act have been contravened shall be confiscated where confiscation is authorised under that Act.

(2) Without prejudice to any action that may be taken under sub-section (1), any person who exports or attempts to export any archival material in contravention of section 5 shall be punishable with imprisonment for a term which may extend to three months, or with fine which may extend to five thousand rupees, or with both.

7. Jurisdiction to try offences.—No court shall take cognizance of an offence punishable under this Act except upon a complaint in writing made by an officer authorised in this behalf by the Federal Government and no court inferior to that of a Magistrate of the first class shall try any such offence.

8. Indemnity.—No suit, prosecution or other legal proceeding shall lie against any person for anything in good faith done or intended to be done under this Act.

9. Confiscated archival material to be made over to Director.—Any archival material which is confiscated under this Act shall be made over to the Director for safe custody, preservation and protection.

10. Power to make rules.—(1) The Federal Government may, by notification in the official Gazette, make rules for carrying out the purposes of this Act.

(2) In particular and without prejudice to the generality of the foregoing provision, such rules may provide for the procedure for the grant of a licence for the export of archival material.

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THE ASSOCIATED CEMENT (VESTING) ACT, 1974

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THE ASSOCIATED CEMENT (VESTING) ACT, 1974

[1]ACT No. VII OF 1975

[13th January, 1975]

An Act to provide for the vesting of the Associated Cement in the State Cement Corporation of Pakistan Limited.

WHEREAS it is expedient to provide for the vesting of the Associated Cement in the State Cement Corporation of Pakistan Limited and for matters connected there with or incidental thereto;

It is hereby enacted as follows:—

1. Short title and commencement.—(1) This Act may be called the Associated Cement (Vesting) Act, 1974.

(2) It shall come into force at once.

2. Definitions.— In this Act, unless there is anything repugnant in the subject or context,—

(a) "Associated Cement" means the undertakings known as Associated Cement which immediately before the commencing day vested in the Federal Government, together with all lands, buildings, machinery, appliances, fixtures and funds appertaining thereto;

(b) "commencing day" means the day on which this Act comes into force; and

(c) "Corporation" means the State Cement Corporation of Pakistan Limited formed and registered under the Companies Act, 1913 (VII of 1913).

3. Vesting of Associated Cement in Corporation.— As from the commencing day,—

(a) the Associated Cement shall vest in the Corporation and all powers which immediately before that day were exerciseable by the Federal Government in relation to the Associated Cement shall be exerciseable by the Corporation ;

(b) all rights, properties, assets, liabilities, debts and obligations of the Federal Government relating to the Associated Cement shall be the rights, properties, assets, liabilities, debts and obligations of the Corporation;

(c) any contract made, or deemed to have been made, on behalf of the President for the purposes of the Associated Cement shall be deemed to have been made on behalf of the Corporation;

(d) all suits and other legal proceedings in relation to the Associated Cement instituted, or deemed to have been instituted, by or against the Federal Government shall be deemed to be suits and proceedings instituted by or against the Corporation and may be proceeded with accordingly ; and

[1]For Statement of Objects and Reasons, *see* Gaz. of P., 1974, Ext., Pt.III, p.1357.

(e) all orders and instructions issued by the President or the Federal Government before the commencing day in relation to the Associated Cement shall, to the extent they are not inconsistent with the provisions of this Act, be deemed to be orders and instructions issued by the Corporation.

4. Continuance in service of employees, etc.— (1) Every officer and employee employed for the purposes of the Associated Cement shall, on the commencing day, become an officer or employee, as the case may be, of the Corporation and shall hold office therein on such terms and conditions, which are not less favourable than those to which he was entitled immediately before the commencing day, as the Corporation may determine:

Provided that an officer or employee of the Corporation shall, unless his services are earlier terminated in accordance with the terms and conditions applicable to him, retire from service on the completion of the fifty-eighth year of his age.

(2) Any officer or employee who becomes an officer or employee of the Corporation under sub-section (1) may be transferred—

(a) by the Corporation, to any company or project set up by it, or

(b) by the Federal Government, to any other corporation, company or industrial unit controlled by it,

and shall hold office therein on terms and conditions which are not less favourable than those to which he was entitled immediately before such transfer.

(3) Any officer or employee who becomes an officer or employee of the Corporation under sub-section (1), or is transferred under sub-section (2), shall not be entitled to any compensation or to the designation which he was holding immediately before the commencing day or, as the case may be, the date of such transfer, and no claim for such compensation or designation shall be entertained by any court, tribunal or other authority.

(4) If any question arises as to whether any person was, immediately before the commencing day, an officer or employee employed for the purposes of the Associated Cement, the question shall be referred to the Federal Government whose decision shall be final.

5. Administration, etc., of the Associated Cement.— (1) The Corporation shall, subject to the provisions of this Act, be competent to administer, control, operate, manage, reorganise or dispose of the Associated Cement in such manner as it deems fit.

(2) In particular and without prejudice to the generality of the foregoing provision, the Corporation may, with the approval of the Federal Government, transfer the management of the Associated Cement to one or more companies sponsored by the Corporation and registered under the Companies Act, 1913 (VII of 1913).

6. Provident Fund.— (1) Notwithstanding anything contained in the rules relating to the Provident Fund of the Staff of the Associated Cement and the Provident Fund of the Workers of Associated Cement, the accumulated balance standing to the credit of every officer or employee referred to in sub-section (1) of section 4 in either of those Funds immediately before the commencing day shall be paid to the Corporation.

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(2) An officer or employee referred to in sub-section (1) of section 4 shall be deemed to have become as from the commencing day a member of the Provident Fund established, by the Corporation and, in the records of such Provident Fund, a separate account shall be opened for such officer or employee and be credited with the amount of the accumulated balance standing to the credit of such officer or employee in the Provident Fund of the Staff of the Associated Cement or, as the case may be, the Provident Fund of the Workers of the Associated Cement immediately before the commencing day.

(3) Where the services of any officer or employee referred to in sub-section (1) of section 4 are transferred to any other corporation or company, the accumulated balance standing to the credit of every such officer or employee in the Provident Fund of the Corporation immediately before such transfer shall be paid to such other corporation or company and, in the records of the Provident Fund of the corporation or company, a separate account shall be opened for such officer or employee and be credited with the amount of the accumulated balance standing to his credit in the Provident Fund of the Corporation immediately before such transfer.

7. Investment by the Federal Government.— (1) The investment made by the Federal Government in the Associated Cement before the commencing day shall be deemed to be the Federal Government's equity in the Corporation:

Provided that the loans advanced for the expansion of the factories of the Associated Cement and the interest thereon shall be repayable by the Corporation.

(2) The amount of equity referred to in sub-section (1) shall be determined by the Federal Government in consultation with the Corporation.

8. Indemnity.— No suit, prosecution or other legal proceeding shall lie against the Federal Government, the Corporation or any other person for anything in good faith done or intended or purported to be done under this Act.

9. Bar of jurisdiction.— (1) No court shall call in question, or permit to be called in question any provision of this Act, or of any rule or order made or anything done or any action taken or purporting to be made, done or taken thereunder.

(2) No court shall grant any injunction, make any order or entertain any proceedings in relation to anything done or intended or purporting to be done under this Act.

10. Power to make rules.— The Federal Government may, by notification in the official Gazette, make such rules as appear to it to be necessary or expedient for carrying out the purposes of this Act.

11. Removal of difficulties.— If any difficulty arises in giving effect to any provision of this Act, the Federal Government may make such order or issue such directive, not inconsistent with the provisions of this Act, as may appear to it to be necessary or expedient for the purpose of removing the difficulty:

Provided that no such order shall be made after the expiry of one year from the commencing day.

12. ***[Repeal].—*** *Omitted by the Federal Laws (Revision and Declaration) Ordinance, 1981 (XXVII of 1981),s.3 and Sch.,II.*

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THE CENTRAL DEPOSITORIES ACT, 1997

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THE CENTRAL DEPOSITORIES ACT, 1997

ACT NO. XIX OF 1997

An Act to make provision for the establishment and operation of book-entry systems for the transfer of securities by central depository companies

WHEREAS it is expedient to make provisions for the establishment and operation of book-entry systems for the transfer of securities by central depository companies;

It is hereby enacted as follows:—

1. Short title and commencement.—(1) This Act may be called the Central Depositories Act, 1997.

(2) It extends to the whole of Pakistan.

(3) It shall come into force at once.

2. Definitions.—In this Act, unless there is anything repugnant in the subject or context,—

(1) "access" in relation to the central depository system maintained by a central depository, means the placing of information on that system or the retrieval of information therefrom;

(2) "account" means an account maintained by a central depository in the name of an account-holder so as to record the title of the account-holder to any book-entry securities entered in such account;

(3) "account-holder" means a person who opens and maintains an account with a central depository and operates such account;

(4) "Authority" means the Corporate Law Authority constituted under section 11 of the Companies Ordinance, 1984, (XLVII of 1984).

(5) "book-entry security", in relation to a central depository, means a security which is transferable by book-entry in the central depository register pursuant to a declaration made by the central depository under sub-section (6) of section 4 and which is—

(a) in the case of security transferable by registration, registered in the name of the central depository or issued to the central depository pursuant to section 14; or

(b) in the case of a security transferable by delivery or endorsement, deposited with or transferred by endorsement to the central depository;

(6) "central depository" means a central depository as defined in clause (cc) of section 2 of the Securities and Exchange Ordinance, 1969, (XVII of 1969). and registered with the Authority under section 32-A of that Ordinance;

(7) "central depository register" means a computerized electronic register maintained by a central depository in respect of book-entry securities;

(8) "central depository system" means central depository system established under section 4;

(9) "debenture" means a debenture as defined in clause (12) of sub-section (1) of section 2 of the Companies Ordinance, 1984, (XLVII of 1984). and includes a debenture issued by an issuer other than a company;

(10) "document evidencing title" includes,—

(a) in the case of any security which is not a Government security, the shares certificate, debentures certificate, modaraba certificate or any other certificate representing the security; and

(b) in the case of any security which is a Government security, such document or other evidence of title thereto as a central depository may require;

(11) "eligible pledgee" means any person who, in accordance with the regulations, is recognised by a central depository as eligible for the purpose of receiving any pledge of book-entry securities;

(12) "handling", with its grammatical variations and cognate expressions, in relation to a book-entry security, means the transfer of a book-entry security by electronic or similar means, the pledging of a book-entry security in accordance with section 12 or the withdrawal from the central depository system of the security represented by the book-entry security;

(13) "information" includes data recorded in a form which can be processed by equipment operating automatically in response to instructions given for a particular purpose;

(14) "issuer" means any person, the Federal Government or a Provincial Government who or which has issued or proposes to issue any security;

(15) "jumbo certificates" means one or more consolidated certificates of the securities of one kind or class issued by an issuer which are registered in the name of a central depository;

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(16) "member" means a member as defined in clause (21) of sub-section (1) of section 2 of the Companies Ordinance, 1984, (XLVII of 1984). and includes the registered owner of any equity security of an issuer which is established under any other law;

(17) "participant" means—

(a) an account-holder who is a member of a stock exchange; and

(b) any other account-holder who meets the qualifications of a participant prescribed in the regulations:

Provided that such account holders—

(i) perform services for sub-account-holders in accordance with the terms of an agreement entered into between the central depository and each of he participants;

(ii) transfer any securities to the central depository to the credit of any sub-accounts under their respective accounts; and

(iii) handle, on behalf of sub-account holders, the book-entry securities in the sub-accounts under their respective accounts;

(18) "prescribed" means prescribed by regulations made under this Act;

(19) "record" includes, in addition to a record in writing,—

(a) any photograph;

(b) any disc, tape, sound-track or other device in which sounds or other data (not being visual images) are embodied so as to be capable (with or without the aid of some other instrument or machine) of being reproduced therefrom in audible or readable form; and

(c) any film, tape of other device in which visual images are embodied so as to be capable (with or without the aid of some other instrument) of being reproduced therefrom in visual form; and

(d) any reference to a copy of a record includes—

(i) in the case of a record falling within paragraph (b) but not paragraph (c) of this clause, a transcript of the sounds or other data embodied therein;

(ii) in the case of a record falling within paragraph (c) but not paragraph (b) of this clause, a still reproduction of the images embodied therein, whether enlarged or not; and

(iii) in the case of a record falling within paragraph (b) and paragraph (c) of this clause, the transcript of the sounds or other data embodied therein together with the still reproduction of the images embodied therein;

(20) "register of members" means the register of members referred to in section 147 of the Companies Ordinance, 1984, (XLVII of 1984), and includes the register of owners of any equity securities of an issuer established under any other law;

(21) "register of debenture-holders" means the register of debenture-holders referred to in section 149 of the Companies Ordinance, 1984, (XLVII of 1984), and includes the register of holders of any non-equity securities of an issuer other than a company;

(22) "Registrar" means the Registrar as defined in clause (31) of sub-section (1) of section 2 of the Companies Ordinance, 1984, (XLVII of 1984).

(23) "regulations" means the regulations made pursuant to section 35;

(24) "security" means—

(a) a security as defined in sub-clause (i) of clause (1) of section 2 of the Securities and Exchange Ordinance, 1969, (XVII of 1969).

(b) any Government security;

(c) any derivative relating to a security or a Government security; or

(d) any other instrument specified by the Federal Government, by a notification in the official gazette, to be a security for the purposes of this Act;

(25) "State Bank" means the State Bank of Pakistan established under the State Bank of Pakistan Act, 1956, (XXXIII of 1956).

(26) "stock exchange" means a stock exchange registered under the Securities and Exchange Ordinance, 1969, (XVII of 1969).

(27) "sub-account" means a sub-account maintained, as part of the account of a participant, in accordance with the regulations by a central depository in the name of a sub-account holder so as to record the title of sub-account holder to any book-entry securities entered in such sub-account; and

(28) "sub-account holder" means a person in whose name a sub-account is opened and maintained by a participant with a central depository and is operated by that participant.

3. Overriding effect.—The provisions of this Act shall have effect notwithstanding anything contained in the Companies Ordinance, 1984, or in any other law or in any charter, statute or memorandum or articles of association or in any applicable document or resolution.

4. Central depository system. —(1) A central depository shall establish a central depository system whereby, in accordance with the regulations,—

(a) (i) accounts may be opened and maintained with the central depository by the account-holders so as to record the title of the account-holders to book-entry securities entered in such accounts; or

(ii) where the account-holders are participants, sub-accounts may be opened and maintained, as part of the accounts of the participants, with the central depository by the participants on behalf of the sub-account holders so as to record the title of the sub-account holders to book-entry securities entered in such sub-accounts;

(b) transfers of such book-entry securities shall be effected electronically or by any similar means; and

(c) pledging of such book-entry securities may be effected in accordance with section 12.

(2) Where any securities are issued to or registered in the name of a central depository or transferred by endorsement to or deposited with a central depository, such securities shall, in accordance with the regulations, be entered in the relevant accounts or sub-accounts, as the case may be, as book-entry securities.

(3) Notwithstanding anything contained in sub-section (1), a participant may, with the written authorisation of his clients, enter book-entry securities beneficially owned by the clients in his own account without establishing sub-accounts in the names of such clients in the central depository system:

Provided that the central depository may, at its discretion, enquire whether such authorisation has been obtained by the participant.

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(4) Subject to the provisions of this Act, a central depository system shall be operated by a central depository for holding book-entry securities as a nominee for account-holders and for facilitating the transfer of such book-entry securities:

Provided that nothing containing herein shall be construed as preventing a central depository from holding book-entry securities, as a beneficial owner of such securities, in its own account opened and maintained on its own central depository system.

(5) The title to any book-entry securities entered in an account shall vest in the account holder and the title to any book-entry securities entered in a sub-account shall vest in the sub-account holder.

(6) The central depository system of a central depository shall handle such securities as book-entry securities as are declared as such by the central depository.

(7) Different types of accounts and sub-accounts for different classes of persons may be opened with a central depository in accordance with the regulations.

5. Central depository not to be a member of an issuer, etc.— (1) Where a central depository is named in the register of members of an issuer,

(a) the central depository shall be deemed not to be a member of the issuer; and

(b) the persons named as the account-holders or, as the case may be, the sub-account holders shall, for such period as the book-entry securities representing securities carrying voting rights in the issuer are entered against their names in the central depository register, be deemed to be members of the issuer in respect of such securities and shall, except as is otherwise provided in this Act, be entitled to all the rights, powers and privileges and be subject to all the liabilities, duties and obligations of a member as are or may be conferred by the Companies Ordinance, 1984, (XLVII of 1984) or by any other law for the time being in force or by the charter, statute or memorandum or the articles of association of the issuer.

(2) Where a central depository is a debenture-holder of an issuer or is the owner of securities of an issuer (whether equity securities or debt securities) which do not carry voting rights in the issuer,—

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(a) the central depository shall be deemed not to be the owner of such securities; and

(b) the persons named as the account-holders or, as the case may be, the sub-account holders shall, for such period as the book-entry securities representing such securities are entered against their names in the central depository register, be deemed to be the owners of such securities and shall, except as is otherwise provided in this Act, be entitled to all the rights, powers and privileges and be subject to all the liabilities, duties and obligations of the owners of such securities as are or may be conferred by the Companies Ordinance, 1984, (XLVII of 1984), or by any other law for the time being in force or in terms of any documents creating such securities.

(3) Nothing in this Act shall be construed as affecting,—

(a) the obligation of an issuer to keep a register of its members or debenture holders or allow inspections of such register under the provisions of the Companies

Ordinance, 1984 (XLVII of 1984), or under any other law for the time being in force:

Provided that the issuer shall not be obliged to enter in any registers maintained by it the names and particulars of persons who are members of the issuer under clause (b) of sub-section (1) or owners of the securities of the issuer order clause (b) of sub-section (2);

(b) (i) the right of an account-holder to request withdrawal of his securities from the central depository system at any time and, where applicable, to have them registered in his name, or where the account-holder is a participant, in any other name; or

(ii) the right of a participant to request a withdrawal of his sub-accountholders securities from the central depository system at any time and, where applicable, to have them registered in the name of his sub-account holder; or

(c) the rights of a central depository to hold book-entry securities beneficially in its own behalf.

(4) Notwithstanding anything contained in this Act, an account-holder or a sub-account holder, who is named in the central depository register, at the close of business hours of the central depository on the day before the first day of the period of closure of register of members of an issuer as the holder of book-entry securities representing securities carrying voting rights in issuer, shall be regarded as a member of the issuer for the purpose of attending and exercising all rights at a general meeting of the members of the issuer in respect of which the register of members has been closed.

(5) Notwithstanding anything contained in this Act, an account-holder or a sub-account-holder, who is named in the central depository register, as at the close of business hours of the central depository on the day before the first day of the period of closure of register of non-equity securities of an issuer, as the owner of book-entry securities representing such securities of the issuer, shall be regarded as an owner of such securities for the purpose of attending and exercising all rights at a general meeting of the owners of such securities of the issuer in respect of which the register of such securities has been closed.

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6. Transfers under book-entry system.—(1) Subject to the provisions of this Act, a transfer of book-entry securities from accounts or sub-accounts to other accounts or sub-accounts shall be made in such manner as may be prescribed and shall be effected by making of an appropriate entry in the central depository register in accordance with such regulations.

(2) A transfer of book-entry securities in the manner set out in subsection (1) shall be valid and effective transfer of title to the securities represented by the book-entry securities.

7. Effect of book-entry transfer on transferee.—If a transfer of book-entry securities takes place at a particular time in accordance with the provisions of section 6—

(a) the transferee shall be deemed to have agreed to have accepted the transfer of such book-entry securities subject to the terms and conditions on which the transfer or held them immediately before the time of such transfer; and

(b) the transferee shall be deemed to have agreed to become a member of the issuer and to be bound by the issuer's charter, statute or Memorandum and Articles of Association, as the case may be.

8. Central depository discharged from liability if acting on instructions.—(1) A central depository, if acting in good faith and without negligence, shall not be liable for any loss, damages, compensation, costs and expenses in tort or under any law or contract for any breach of trust or duty and in the cases where the central depository has, in the accounts or sub-accounts maintained by it, made or allowed to be made entries or handled or allowed handling of any book-entry securities, according to the instructions of an account-holder or a participant, notwithstanding that the account-holder or the participant, as the case may be, had no right to dispose of or take any other action in respect of such book-entry securities.

(2) A central depository, if acting in good faith and without negligence, shall be fully discharged of its obligations to an account-holder and participant, upon the transfer or delivery of book-entry securities under the instructions of the account holder or participant, as the case may be.

(3) A central depository shall not be required to enquire whether or not.—

(a) an account-holder or a participant, has a right to handle any book-entry securities entered in his account or in any sub-account under his account, as the case may be, or to take any action in that regard; or

(b) the document of title in respect of a security deposited with an issuer for the purpose of registration of the transfer of the security in the name of the central depository is genuine.

(4) Except as provided in this Act, a central depository shall not owe any fiduciary or any other obligations whatsoever, including, without limitation to the generality of the foregoing, any obligations in law, contract, tort, warranty or strict liability, to the sub-account holders in whose name sub-accounts are maintained in the central depository system.

(5) Without prejudice to the provisions of any other law for the time being in force, if any loss is caused to an account-holder or a sub-account holder due to any negligent or wrongful act or omission of a central depository or any of its employees, the central depository shall compensate such account-holder or sub-account holder for such loss.

9. Central depository to supply information.—(1) Every issuer which is a company or other body corporate and whose securities are entered in the central depository system of a central depository shall request the central depository, at such times as may be prescribed in the regulations, for a list of the names and other relevant details of the account-holders and sub-account holders, holding the book-entry securities of such issuer together with details of the book-entry securities of such issuer entered in the accounts of such account-holders of sub-account holders, as the case may be—

(a) for sending notices to any account-holders and sub-account holders of general meetings of the holders of any securities of the issuer;

(b) for sending any other notices to any account holders and sub-account holders which are required to be sent by the issuer to holders of any securities of the issuer;

(c) for the purpose of allowing any account-holders and sub-account holders to attend general meetings of any holders of securities of the issuer or to appoint proxies for this purpose;

(d) for despatching dividend or other warrants to any account-holders and sub-account holders;

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(e) for despatching to any account-holders and sub-account holders any other payments or benefits paid by the issuer; or

(f) for despatching to any account-holders and sub-account holders formal offers for subscription of securities of the issuer.

(2) A participant may, in respect of such book-entry securities as are beneficially owned by his clients and entered in his account, supply to the central depository the names and other details of such clients together with instructions that such names and other details be forwarded to the issuer upon a request for information made by the issuer under sub-section (1):

Provided that the persons whose names are supplied by a participant under this sub-section shall be deemed to be sub-account holders holding the book-entry securities to which they are stated by the participant to be entitled and shall be entitled to the rights of sub-account holders set out in section 5.

(3) Subject to sub-section (2), the central depository shall supply to an issuer the information requested by the issuer under sub-section (1) in such manner and within such time as may be prescribed in the regulations:

Provided that in cases where the information requested by the issuer under sub-section (1) is for the determination of entitlement of any accoun-holders and sub-account holders, in relation to the book-entry securities of the issuer held by them, to attend any meetings called by the issuer or to receive payments of any dividends or other amounts payable by the issuer or to receive any offers for subscription of any shares in the issuer or for any other purpose as required by any law or the issuer's charter, statute or Memorandum or Articles of Association, the central depository shall supply such information to the issuer as is correct as at the close of business hours of the central depository on the day before the first day of the period of closure of register of members, debenture holders or any other securities of the issuer.

(4) Subject to sub-sections (5) and (6), an issuer to whom sub-section (1) applies shall rely upon the information supplied by the central depository under sub-section (3).

(5) An issuer who is liable to pay any dividend or other amount or issue any offer for subscription of any securities to any account-holders or sub-account holders shall pay such dividend or other amount or issue such offer for subscription of securities in accordance with such information as central depository may give in accordance with the regulations and such payment or issue shall discharge the issuer from any liability in respect of that payment or issue to the relevant account-holders or sub-account holders.

(6) All notices and other documents which an issuer is obliged or required to send to its members or holders of any of its securities, shall in cases where an account-holder or a sub-account holder is deemed to be a member or holder of any securities of the issuer, be sent directly to the account-holder or the sub-account holder, as the case may be, on the basis of information provided by the central depository under sub-section (3) and in such manner as notices and documents are required to be sent by the Companies Ordinance, 1984, (XLVII of 1984), or any other applicable law or Articles of Association.

10. Bonus issue by an issuer. —(1) Where an issuer whose securities are entered in the central depository system makes a bonus issue, the securities to be issued on the number of securities of that issuer registered in the name of the central depository shall be allotted to the central depository.

(2) The central depository shall, upon allotment of securities under sub-section (1), determine the entitlements of the relevant account-holders, and sub-account holders to such securities in

proportion to the other securities of the same issuer standing in their accounts and sub-accounts, as of the close of business hours of the central depository on the day before the first day of the period of closure of register of members, debenture-holders or any other securities of the said issuer and enter the book-entry securities in the relevant accounts and sub-accounts in accordance with the determined entitlements:

Provided that fractional entitlements to book-entry securities relating to the bonus securities shall not be credited by the central depository to the relevant accounts and sub-accounts but the book-entry securities representing such fractional entitlements shall be consolidated and dealt with in accordance with the regulations.

11. Bar on rectification of central depository register.—Notwithstanding anything contained in section 152 of the Companies Ordinance, 1984, (XLVII of 1984), if—

(a) an account-holder or a sub-account holder did not consent to a transfer of any book-entry securities from, or to, his account or sub-account, as the case may be; or

(b) the name of any account-holder or sub-account holder is fraudulently or without sufficient cause entered in, or omitted from, the central depository register.

the aggrieved party may apply to the Court for relief and the Court may award damages to the aggrieved party but shall not order rectification of the central depository register.

Explanation.—The expression "court" for the purposes of this section shall mean the High Court having jurisdiction over the defendant.

12. Pledge of book-entry securities.— (1) Book-entry securities shall be pledged only in favour of an eligible pledgee to secure the payment of a debt or liability or performance of any obligation by any account-holder directly or by any sub-account holder through instructions given to a participant when the book-entry securities are blocked in the manner set out in sub-section (2).

(2) The book-entry securities to be pledged shall be blocked when an account-holder or a participant gives instructions to the central depository system in a manner that the pledgor or the relevant participant when the pledgor is sub-holder ceases to handle the pledged book-entry securities and notice of the blocking is available through the central depository system to the eligible pledgee.

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(3) A pledge of the pledged book-entry securities shall, in addition to the powers available to him under the Contract Act, 1872, (IX of 1872), have the following powers:—

(a) a power, upon the default of the pledgor, to transfer the pledged book-entry securities or any part thereof; and

(b) any other power which may be granted to him in writing by the pledgor in relation to the pledged book-entry securities provided that the central depository shall not be concerned with or affected by the exercise of any such power.

(4) The central depository system shall only allow the pledgee to remove the block from the pledged book-entry securities in such manner that they are available to the pledgor for the purpose of handling them.

(5) The central depository system shall not allow the pledgor to handle the pledged book-entry securities save upon the removal by the pledgee of the block from such pledged book-entry securities.

(6) A participant shall not create a pledge over any book-entry securities entered in any sub-accounts maintained under his account with the central depository without the authorisation of the sub-account holder concerned.

(7) No pledge of any book-entry securities may be made except as provided in this section.

(8) Except as otherwise provided in this section, the provisions of the Contract Act, 1872, shall be applicable to pledging of book-entry securities.

Explanation.—For the purpose of this section, the account-holder or sub-account holder, as the case may be, pledging any book-entry securities shall be called the "pledgor", the eligible pledgee in whose favour a pledge of book-entry securities is made shall be called the "pledgee" and the book-entry securities when blocked be called the "pledged book-entry securities".

13. Consolidation or subdivision of securities by an issuer.—When an issuer announces a consolidation or sub-division of his securities, the book-entry securities of such issuer as are entered in the accounts and sub-accounts maintained in the central depository register shall in like manner and in accordance with the regulations, be consolidated or sub-divided, as the case may be, in the central depository register.

14. Regulations for issue or offer for sale of securities.—(1) A central depository may make regulations which permit any issuer to enter into an arrangement with the central depository whereunder the issuer may register in the name of the central depository all the securities of one class after making allocation of such securities to subscribers of the securities.

(2) Where any issuer enters into an arrangement referred to in sub-section (1) with a central depository and registers the securities in the name of the central depository, the central depository shall ensure that every subscriber of the securities or any account-holder designated by such subscriber is credited with book-entry securities representing his entitlement to such securities.

(3) A central depository may make regulations which permit any person intending to make an offer for sale of securities to the public to enter into an arrangement with the central depository where under the securities which are to be offered for sale by that person may be transferred in the name of the central depository after the acceptance of offer from persons who apply to purchase such securities.

(4) Where any person intending to make an offer for sale of securities to the public enters into any arrangement referred to in sub-section (3) with a central depository and transfers the securities in its name, the central depository shall ensure that every purchaser of the securities or any account-holder designated by such purchaser is credited with book-entry securities representing his entitlement to such securities.

15. Conversion of non-equity securities into equity securities.—Where any debentures, bonds or any other non-equity securities, whether partly or wholly convertible into equity securities or with warrants to subscribe to equity securities of an issuer, are converted into equity securities, a central depository shall take appropriate action, in accordance with the regulations, in respect of the book-entry securities representing such debentures, bonds or other non-equity securities to give effect to such conversion.

16. Issuance of Jumbo Certificates.—Every issuer of the securities registered in the name of a central depository shall, if so requested by the central depository in writing, issue to it jumbo certificates, of such denominations as may be requested by the central depository, upon the occurrence of any increase or decrease in the number of the securities of such issuer held by the central depository.

17. Inspection of the central depository register.—(1) The central depository register shall, to the extent that it records the holdings of book-entry securities representing securities of an issuer,

be open to inspection at the registered or head office of the issuer in the same manner and to the extent provided in any law for the time being in force pursuant to or by which such issuer was established or is governed.

Explanation.—For the purposes of this sub-section, the expression "law" shall include any rules or regulations governing such issuer. -

(2) The information made available upon any request for inspection under sub-section (1) shall be correct as of the close of business hours of the central depository on its first working day in the month preceding the month in which the request for inspection is made:

Provided that where any closure of the register of members or debenture holders or of the holders of any other equity or non-equity securities of the issuer has occurred subsequent to the first working day of the central depository in the month preceding the month in which the request for inspection is made, the information made available upon any request for inspection shall be correct as of the close of business hours of the central depository on the day before the first day of the latest period of closure of register of members on debenture holders or of the holders of any other equity or non-equity securities, as the case may be, of the issuer :

Provided further that where notice of a general meeting of the members or debenture holders or of the holders of any other equity or non-equity securities of the issuer has been issued, the information made available upon any request for inspection under sub-section (1) shall be correct as of the close of business hours of the central depository on the third day before the date of receiving the request for inspection.

18. Record of an entry prima facie evidence. —A record of an entry in an account or a sub-account shall be *prima facie* evidence of the truth of the matters so recorded.

19. Borrowing or lending of securities.—Book-entry securities may, in accordance with the regulations, be borrowed or lent in the interest of the smooth and orderly functioning of stock exchanges.

20. Duty to maintain secrecy.—(1) Except as provided in this Act or in any other law for the time being in force, no director or officer of a central depository or a participant, whether during his tenure of office or during his employment or thereafter; and no other person who has by any means knowledge of any information or document whatsoever relating to the affairs of any of the account-holders, and in particular, relating to their accounts or sub-accounts, shall give, divulge, reveal or otherwise disclose such information or document to any other person.

(2) A person who has any information or document which to his knowledge has been disclosed in contravention of sub-section (1) shall not in any manner howsoever disclose it to any other person.

21. Permitted disclosures.—Subject to the provisions of this Act, the provision of section 20 shall not entitle any person to refuse to disclose any information or documents—

(a) which an account-holder or a sub-account holder has authorised in writing to disclose.

(b) in a case where an account-holder or a sub-account holder is declared a bankrupt, or, if the account-holder or sub-account holder, as the case may be, is a company or body corporate and is being or, has been, wound up within or outside Pakistan;

(c) in the case of any litigation or other legal proceedings ;

(d) to any person duly authorised by a competent court, the Authority or the State Bank of Pakistan to investigate into any offence under any law for the time being in force ;

(e) for the purpose of enabling or assisting the Authority to exercise any power conferred on it by this Ordinance or by any other law for the time being in force;

(f) for the purpose of enabling or assisting the State Bank of Pakistan to exercise any power conferred on it by any other law for the time being in force;

(g) for the purpose of enabling or assisting a stock exchange or clearing house of a stock exchange to discharge its functions;

(h) for the purpose of enabling or assisting auditors of a central depository or participant to discharge their functions; or

(i) to the Authority if the disclosure is required in the interest of investors or in the public interest.

22. Regulation of access to the computer system.—(1) A central depository may, in accordance with the regulations, authorise any account-holders, the stock exchanges on which the securities in relation to book-entry securities entered in the central depository register of the central depository are listed, clearing houses of such stock exchanges or issuers to have access to its computer system within such limits and for such purposes as may be specified in such regulations.

(2) No person—

(a) who, being a person authorised to have access under sub-section (1), shall gain access, or attempt to gain access, to a computer system of a central depository, whether by means of any device or apparatus forming part of the computer system or by any other means, beyond the limits or for purposes other than for which he is authorised thereunder

(b) who; not being a person authorised to have access under sub-section (1), shall gain access, or attempt, to gain access, to a computer system of a central depository, whether by means of any device or apparatus forming part of the computer system or by any other means; or

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(c) shall unlawfully interfere with, or impede, or attempt to interfere with or impede, the operation of a computer system of a central depository.

23. Central depository to provide assistance to the Registrar, the Authority, the State Bank of Pakistan and the stock exchanges.—A central depository shall provide such assistance to the Authority, the State Bank of Pakistan, the Registrar, stock exchanges and to any person acting on their behalf, as they reasonably require for the performance of their functions and duties under this Act or under any other law for the time being in force.

24. Handing book-entry securities without authority.—(1) A participant shall not handle or authorise or permit any handling of book-entry securities entered in the sub-accounts maintained under his account without authority of the sub-account holder.

(2) A participant shall not, except with the authority of his clients, handle or authorise or permit any handling of book-entry securities beneficially owned by such clients and entered in his account.

25. Nomination and transmission.—The provisions of sections 79, 80 and 81 of the Companies Ordinance, 1984,(XLVII of 1984), shall mutatis mutandis, apply to book-entry securities

and all references to member or holder of debentures in those sections shall be construed as references to account-holders or sub-account holders, and all references to a company shall be construed as references to a central depository in case the book-entry securities belong to an account-holder and to a participant in case the book-entry securities belong to a sub-account holder.

26. Settlement of securities transactions using the central depository system.—(1) Subject to the provisions of this Act, no transfer of book-entry securities shall be effected on the central depository system unless at least one party to the transaction in respect of which the transfer of book-entry securities is sought to be effected is a member of a stock exchange.

(2) Notwithstanding the provisions of sub-section (1), a central depository shall make regulations prescribing transactions, other than the transactions referred to in that sub-section, in respect of which transfers of book-entry securities may be effected on the central depository system :

Provided that a central depository may, before making or allowing the entry to be made, require the production of such documentary evidence as may be prescribed in the regulations.

27. Power of Registrar and Authority to call for information or appoint inspectors.—(1) Nothing contained in this Act shall be construed to impose any limits on the powers of the Registrar or the Authority under the Companies Ordinance, 1984,(XLVII of 1984), as regards calling for any information from and appointing any persons as inspectors to investigate the affairs of a central depository or of any participant which is a company or is corporation to which the provisions of the Companies Ordinance, 1984,(XLVII of 1984), apply.

(2) Nothing contained in this Act shall be construed to impose any limits on the powers of any competent authority under any other law for the time being in force as regards calling for any information from or carrying out any investigation into the affairs of a participant which is established under, or is otherwise governed by, such law.

(3) The Authority, on being satisfied that the affairs of a participant, not being a participant referred to in sub-sections (1) of (2), in relation to his account on a central depository system are being or have been conducted with intent to defraud his creditors or any other persons or for a fraudulent or unlawful purpose, may by order in writing,—

(a) call upon such participant to furnish in writing such information relating to book-entry securities held by him on the central depository register, whether on his own behalf or on behalf of a client; or

(b) authorise any one or more competent persons as inspectors to investigate the affairs of such participant:

Provided that before making an order for enquiry or inspection, the Authority shall give, the participant an opportunity to show cause against the action proposed to be taken.

(4) A person appointed as inspector under sub-section (3) shall, for the purposes of his investigation, have the same powers as are vested in a court under the Code of Civil Procedure, 1908, (Act V of 1908) while trying a suit, in respect of the following matters, namely :—

(a) enforcing the attendance of persons and examining them on oath or affirmation;

(b) compelling the discovery and production of books and papers and any material objects; and

(c) issuing commissions for the examination of witnesses;

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and every proceeding before such person shall be deemed to be "judicial proceeding" within the meaning of sections 193 and 228 of the Pakistan Penal Code, 1860, (Act XLV of 1860).

(5) Any contravention of or non-compliance with any orders, directions or requirement of the inspector exercising powers of a court under sub-section (4) shall, in all respects, entail the same liabilities, consequences and penalties as are provided for such contravention, non-compliance or default under the Code of Civil Procedure, 1908, and the Pakistan Penal Code, 1860.

(6) Every past and present partner, proprietor or employee of a participant shall on demand produce before inspector all information or such records and other documents in his custody having a bearing on the subject-matter of the investigation.

(7) The inspector may, and if so directed by the Authority shall, make interim reports to the Authority, and on the conclusion of the investigation, shall make a final report to the Authority on the basis of which it may take such action as it deems expedient.

(8) If, from any report made under sub-section (7), it appears to the Authority that any participant on any other person has been guilty of any offence for which he is criminally liable, the Authority may prosecute such participant or other person for the offence.

(9) When an investigation is ordered to be made under this section, the expenses of the investigation shall, in the first instance be defrayed by the Authority; but any person who is convicted on a prosecution instituted in pursuance of sub-section (8) may, in the same proceedings, be ordered to pay the said expenses to such extent as may be specified by the Authority or as the court may so direct.

(10) The amount of expenses which any person is liable under this section to reimburse to the Authority shall be recoverable from that person as arrears of land revenue.

(11) In so far as the expenses to be defrayed by the Authority under this section are not recovered thereunder, those shall be borne by the Federal Government.

(12) A copy of any report of any inspector or inspectors appointed under this section authenticated in such manner as may be prescribed, shall be admissible in any legal proceedings as evidence of the opinion of the inspector or inspectors in relation to any matter contained in the report.

28. Offences.—(1) Whoever knowingly and wilfully contravenes or attempts to contravene or abets the contravention of any of the provisions of this Act or the regulations made thereunder shall be punishable with a fine which may extend to five hundred thousand rupees and to a further fine not exceeding ten thousand rupees for every day if such contravention continues after the imposition of the fine.

(2) Notwithstanding anything contained in sub-section (1), whoever knowingly and wilfully contravenes or attempts to contravene or abets the contravention of the provisions of section 24 shall be punishable with a fine which may extend to one million rupees and to a further fine not exceeding twenty thousand rupees for every day after the first contravention during which the contravention continues or with imprisonment for a term which may extend to five years, or with both.

(3) Where an offence under this Act has been committed by a company, every person who at the time the offence was committed was in charge of, and was responsible, to, the company for the con- duct of the business of the company shall be deemed to be guilty of the offence and shall be liable to be proceeded against and punished accordingly.

(4) Notwithstanding anything contained in sub-section (3), where an offence under this Act has been committed by a company and it is proved that the offence has been committed with the

consent or connivance of, or is attributable to any neglect on the part of any director, manager, secretary or other employee of the company, such director, manager, secretary or other employees shall also be deemed to be guilty of the offence.

Explanation.—For the purposes of this section,—

(a) "company" means any body corporate and includes a partnership firm or other association of individuals ; and

(b) "director", in relation to a firm, means a partner in the firm.

29. Cognizance of offences by courts.—No court or authority or officer shall take cognizance of any offence punishable under this Act or any regulations or under any bye-laws made thereunder, save on a complaint made in writing by the Authority.

30. Offences to be non-cognizable.— Notwithstanding anything contained in the Code of Criminal Procedure, 1898,(Act V of 1898), every offence under this Act shall for the purposes of the said Code, be deemed to be non-cognizable.

31. Punishment and adjudication of fine or penalty.—(1) A fine for any offence under, or contravention of any provisions of, this Act may be adjudged and imposed by any member of the Authority.

(2) The fine as aforesaid shall be imposed after giving the person concerned an opportunity to show cause why he should not be punished for the alleged offence or contravention and, if he so requests, after giving him a reasonable opportunity of being heard personally or through such person as may be prescribed in this behalf.

(3) Where imprisonment is provided for any offence under or contravention of any provisions of this Act, it shall be adjudged by a court not inferior to that of a court of session.

32. Review and appeal.— Any person—

(a) aggrieved by any order or sentence passed under sub-section (1) of section 31 may, within thirty days of such order or sentence for a review of such order or sentence; or

(b) aggrieved by any order or sentence passed under sub-section (1) of section 31, may within sixty days of such order or sentence, prefer an appeal to the Authority and the Authority may pass such order in relation to the appeal as it thinks fit:

Provided that no order enhancing the fine shall be passed unless the applicant has been given an opportunity of showing cause against it and, it he so requests, of being heard personally or though such person as may be prescribed in this behalf.

33. Powers of the Authority in relation to proceedings.—(1) The Authority shall, for the purposes of a proceeding in exercise of its powers and discharge of functions under this Act, have the same powers as are vested in a court under the Code of Civil Procedure, 1908, while trying a suit, in respect of the following matters, namely :—

(a) summoning and enforcing the attendance of any witnesses and examining him on oath or affirmation ;

(b) compelling the discovery or production of any document or other material object;

(c) receiving evidence on affidavit; and

(d) issuing commissions for the examination of witnesses and documents.

(2) Any proceeding before the Federal Government of the Authority or a member of the Authority under this Act shall be deemed to be a judicial proceeding within the meaning of section 193 and section 228 of the Pakistan Penal Code, 1860, and such Government or Authority or a member of the Authority shall be deemed to be a Civil Court for the purposes of section 195 and Chapter XXXV of the Code of Criminal Procedure, 1898.

34. Amendment of Ordinance XLVII of 1984.—As from the date of commencement of this Act, sections 2, 3, 74, 77 and 209 of the Companies Ordinance, 1984,(XLVII of 1984), shall have effect subject to the amendments specified in the Schedule to this Act

35. Central depository to have power to make regulations.—(1) Subject to prior approval of the regulations by the Authority, a central depository shall have the power to make regulations from time to time to carry out its functions in accordance with the provisions of this Act.

(2) In particular, and without prejudice to the generality of the foregoing power, such regulations may provide for all or any of the following matters, namely :—

(a) manner of opening and maintaining accounts and sub-accounts with the central depository ;

(b) criteria for recognition of persons as eligible pledgees ;

(c) qualifications of account-holders for the purposes of becoming participants ;

(d) manner and procedure of effecting transfers of book-entry securities;

(e) manner and timing of entering book-entry securities in accounts and sub-accounts ;

(f) types of accounts and sub-accounts which may be established with the central depository for different classes of persons;

(g) manner of withdrawing securities from the central depository system of the central depository ;

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(h) criteria for determining close of business hours of the central depository on each day ;

(i) manner of making entries in accounts and sub-accounts maintained with the central depository ;.

(j) manner of provision of information to a central depository by a participant under sub- section (2) of section 9 ;

(k) manner and timing of provision of information by the central depository to issuers under sub-section (3) of section 9 ;

(l) details of information to be given by the central depository to issuers under sub-section (5) of section 9 ;

(m) procedure for consolidation and sub-division of book-entry securities representing securities which have been consolidated or sub-divided by an issuer

(n) new issues or offer for sale of securities ;

(o) manner of conversion of debt-based book-entry securities into equity-based book-entry securities ;

(p) borrowing and lending of book-entry securities ;

(q) regulating access to the computer system of the central depository and the limit of such access ;

(r) direct statements sent by a central depository to sub-account holders ; and

(s) any other matter for which a regulation is required to be or may be made to carry out the purposes of this Act.

(3) All regulations made under this section shall be published in the official gazette and shall take effect upon such publication.

(4) Where the Authority considers it expedient so to do, it may, by order in writing, direct a central depository to make any regulation, or to amend or rescind any regulation already made, within such period as it may specify in this behalf.

(5) If a central depository fails or neglects to comply with any direction under sub-section (4) within the specified period, the Authority may make or amend, with or without modifications, or rescind, any regulation directed to be made, amended or rescinded; and a regulation so made, amended, rescinded by the Authority shall be deemed to have been made, amended or rescinded by the central depository in accordance with the provisions of this section and shall have effect accordingly.

36. Removal of difficulties.—If any difficulty arises in giving effect to any provisions of this Act, the Authority may by notification in the official gazette, make such provisions as may appear to it to be necessary for the purpose of removing such difficulty.

SCHEDULE

(*See section* 34)

AMENDMENT OF ORDINANCE XLVII OF 1984

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As from the commencement of this Act, the following amendments shall be made in the Companies Ordinance, 1984, (XLVII of 1984). namely :—

(a) in section 2, in sub-section (1),—

i. in clause (2), in sub-clause (iii), in the second proviso, in item (ii), after the words “Provincial Government”, occurring at the end, the words and comma “or shares registered in the name of a central depository, where such shares are beneficially owned by the central depository” shall be inserted; and

ii. after clause (5), the following new clause shall be inserted, namely :—

(5A) central depository” means a central depository as defined in clause (cc) of section 2 of the Securities and Exchange Ordinance, 1969, (XVII of 1969). and registered with the Authority under section 32A of that” Ordinance;”;

(b) in section 3, in sub-section (1), in clause (b), for the full stop at the end a colon shall be substituted and thereafter the following proviso shall be added, namely :—

"Provided that, where a central depository holds more than fifty per cent of the voting securities of a company, such company shall not be deemed to be a subsidiary of the central depository save where such voting securities are held beneficially by the central depository in its own behalf";

(c) in section 74, in sub-section (1), for the full stop at the end, a colon shall be substituted and thereafter the following proviso shall be added, namely :—

"Provided that, the company shall ; within five days after an application is made for the registration of the transfer of any; shares debentures or debenture stock to a central depository, register such transfer in the name of the central depository,";

(d) in section 77, in th first proviso, after the words "thirty days", the words and comma or, where the transferee is a central depository, within five days" shall be inserted ; and

(e) in section 209, in sub-section (5),—

i. in clause (b), in the proviso, the word 'or' occurring at die end, shall be omitted; and

ii. in clause (c), for the full stop, at the end, the semicolon and word or shall be substituted and thereafter the following new clause shall be added, namely:—

(d) "from depositing with, or transferring to, or holding, or registering in the name of a central depository any shares or securities.".

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THE CHURCH OF SCOTLAND KIRK SESSIONS ACT, 1899

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1. Short title and extent
2. Scotch Kirk Sessions to be bodie corporate
3. Power to hold and dispose of property

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THE CHURCH OF SCOTLAND KIRK SESSIONS ACT, 1899

[1]ACT NO. XXIII OF 1899

[27*th September,* 1899]

An Act to provide for the Incorporation of Kirk Sessions of the Church of Scotland in [2][Pakistan].

WHEREAS there are in [2][Pakistan] Kirk Sessions of the Church of Scotland which have been duly constituted to be Church Courts for ecclesiastical purposes in pursuance of Acts of the General Assembly of the Church of Scotland;

And whereas it is expedient that such Kirk Sessions and any others which may hereafter be so constituted, should be incorporated with the powers hereinafter provided;

It is hereby enacted as follows:–

1. Short title and extent.— (1) This Act may be called the Church of Scotland Kirk Sessions Act, 1899 ;

[3][(2) It extends to the whole of Pakistan] ; [4]*

[4]* * * * * * *

2. Scotch Kirk Sessions to be bodie corporate.— (1) Every Kirk Session which has been or may hereafter be, duly constituted to be a Church Court for ecclesiastical purposes in pursuance of an Act of the General Assembly of the Church of Scotland, is hereby declared to be, and the same shall be, a body corporate having perpetual succession and a common seal.

(2) A notification by the [5][Federal Government] in the [6][official Gazette] that a Kirk Session has been duly constituted[7] in pursuance of an Act of the General Assembly of the Church of Scotland shall be conclusive proof that it has been so constituted.

3. Power to hold and dispose of property.— (1) Every Kirk Session constituted as aforesaid shall, as a body corporate, have power to acquire and hold any property which has been, or may hereafter be, vested in it for the purposes of the Congregation for which it has been, or may hereafter be, constituted, or of any trust which may have been or may hereafter be, accepted by it, to transfer the same, to contract and to do all other things necessary for, or incidental to, the purposes of its constitution or of any such trust as aforesaid.

(2) The signature of the Moderator and Treasurer or Session-clerk for the time being of a Kirk Session constituted as aforesaid shall, if affixed on behalf and by order of the Kirk Session, be sufficient for all purposes for which the signature of the Kirk Session is required.

Date: 11-09-2024

[1] For Statement of Objects and Reasons, *see* Gaz. of India, 1899, Pt. V. p.79 ; for Proceedings in Council, *see ibid.*, Pt. VI, pp. 181, 212 and 213.
[2]Subs. by the Central Laws (Statute Reform) Ordinance, 1960 (21 of 1960), s. 3 and 2nd Sch. (*with effect from* the *14th October,* 1955), for "the Provinces and the Capital of the Federation" which had been subs. by A.O., 1949, Arts. 3(2) and 4, for "British India".
[3]Subs. by Ordinance 21 of 1960, s. 3 and 2nd Sch. (*with effect from the 14th October,* 1955), for the original sub-section (2) as amended by A.O., 1949, Arts. 3(2) and 4.
[4]The word "and" and sub-section (3) rep. by the Repealing and Amending Act, 1914 (10 of 1914), s. 3 and Sch. II.
[5]Subs. by F.A.O., 1975, Art. 2 and Table, for "Central Government", which had been subs. by A.O.,1937, for "G. G. in C".
[6]Subs. *ibid*., for "Gazette of India".
[7]For notification declaring the Kirk Sessions at Rawalpindi and Karachi to be duly constituted, *see* Gazette of India, 1917, Pt. I, p. 1097, and *ibid*., 1921, Pt. I. p. 856, respectively.

THE CIGARETTES (PRINTING OF WARNING) ORDINANCE, 1979

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THE CIGARETTES (PRINTING OF WARNING) ORDINANCE 1979.

ORDINANCE No. LXXIII OF 1979

[31st December, 1979]

An Ordinance to provide for printing of a health warning on packets of cigarettes.

WHEREAS it is expedient to provide for printing or health warning on packets of cigarettes and for matters connected therewith;

AND WHEREAS the President is satisfied that circumstances exist which render it necessary to take immediate action;

NOW, THEREFORE, in pursuance of the Proclamation of the fifth day of July, 1977, read with the Laws (Continuance in Force) Order, 1977 *(C.M.L.A. Order No. 1 of 1977)*, and in exercise of all powers enabling him in that behalf, the President is pleased to make and promulgate the following Ordinance:—

1. Short title, extent [1][application] and commencement:—(1) This Ordinance may be called the Cigarettes (Printing of Warning) Ordinance, 1979.

(2) It extends to the whole of Pakistan.

[2][(2A) It shall apply to Cigarettes manufactured for consumption in Pakistan.]

(3) It shall come into force on the first day of [3][September], 1980.

2. Definition.—In this Ordinance, unless there is anything repugnant in the subject or context,—

(a) "cigarette" includes Biri;

(b) "health warning" means the health warning specified in section 3; and

(c) "packet" includes a wrapper or other container.

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[4][3. Printing of health warning.—There shall be printed legibly and prominently, both in English and Urdu, on every packet of tobacco and on all types of advertisements on any media, a health wraning as the Ministry of Health may, by notification in the official Gazette, prescribe.]

4. **Prohibition to sell, etc.—** No person shall—

(a) manufacture packets of cigarettes; or

(b) sell or offer for sale cigarettes from packets of cigarettes; or

(c) possess or sell or offer for sale packets of cigarettes, on which the health warning is not printed as required by Section 3.

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[1]Ins. by the Cigarettes (Printing of Warning) (Amendment) Ordinance, 1980 (40 of 1980.) ,s.2.
[2]Sub-section (2A) ins. *ibid*., s.2.
[3]Subs. by Cigarettes (Printing of Warning) (Amdt.) Ordinance, 1980 (40 of 1980), s.2.
[4]Subs. by Ord. LXXV of 2002,s.2.

5. Penalties.—(1) Whoever contravenes any provision of Section 4 shall be punishable with imprisonment for a term which may extend to two years, or with fine which may extend to ten thousand rupees, or with both.

(2) Where a Court convicts a person of an offence punishable under sub-section (1), it shall direct that the packets of cigarettes and the cigarettes in respect of which the offence has been committed be forfeited to the Federal Government.

6. Offences by companies.— If the person contravening any provision of Section 4 be a company or other body corporate, every director, manager, secretary or other officer or agent thereof shall, unless he proves that the contravention took place without his knowledge or that he exercised all due diligence to prevent such contravention, be deemed to be guilty of such contravention.

7. Cognizance of offences.—(1) No Court inferior to that of a Magistrate of the First Class shall try any offence punishable under this Ordinance.

(2) No Court shall take cognizance of an offence punishable under this Ordinance except on a complaint made in writing by a police officer not below the rank of an Assistant Sub-Inspector or an Excise Officer not below the rank of an Sub-Inspector or any other officer authorised in this behalf by the Federal Government.

8. Power to make rules.—The Federal Government may, by notification in the official Gazette, make rules[1] for carrying out the purposes of this Ordinance.

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[1]For such rules, see S.R.O. 45(1)/82, dated 19.1.1982, Gaz. of P., 1982, Ext., Pt. IIp. 68.

UNDER PROOF READING

THE CIVIL PIONEER FORCE ORDINANCE, 1965

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UNDER PROOF READING

THE CIVIL PIONEER FORCE ORDINANCE, 1965

[1]ORDINANCE NO. XXVII OF 1965

[9th September, 1965]

An Ordinance to constitute a Civil Pioneer Force for service in Pakistan and to provide for the organization, control and discipline thereof.

WHEREAS it is expedient to constitute a Civil Pioneer Force for service in Pakistan and to provide for the organization, control and discipline thereof;

AND WHEREAS a Proclamation of Emergency issued under clause (1) of Article 30 of the Constitution is in force;

AND WHEREAS the President is satisfied that immediate legislation is necessary to meet the emergency ;

NOW, THEREFORE, in exercise of the powers conferred by clause (4) of Article 30 of the Constitution, read with clause (2) of Article 131 thereof, and of all other powers enabling him in that behalf, the President is pleased to make and promulgate the following Ordinance:—

1. Short title, extent and commencement.—(1) This Ordinance may be called the Civil Pioneer Force Ordinance, 1965.

(2) It extends to the whole of Pakistan.

(3) It shall come into force at once.

2. Definitions. In this Ordinance, unless there is anything repugnant in the subject or context,—

(a) "Chief Controller" means the gazetted officer appointed to command all the units of the Civil Pioneer Force constituted in, a Province;

(b) " Civil Pioneer" means an enrolled person other than a gazetted or non-gazetted officer;

(c) "Controller" means the gazetted officer appointed to command a unit of the Civil Pioneer Force, and includes, in his absence from duty, the senior gazetted officer of the unit present with the unit;

(d) "Detachment" means any portion of a unit of the Civil Pioneer Force serving away from the headquarters of the unit;

(e) "enrolled person" means a person for the time being subject to the provisions of this Ordinance;

[1]Approved by the National Assembly of Pakistan on 26th November, 1965, *see* Gaz. of P., 1965, Ext., pp. 1416-1423.
For notifn. Entrusting to the Provincial Government the functions of the Central Government under this Ordinance, *see* Gaz., of P., 1965, Ext., p. 1152.

(f) "party" means any portion of a unit or detachment ordered to perform any particular job or duty at the headquarters or elsewhere ;

(g) "prescribed" means prescribed by rules made under this Ordinance ;

(h) "service in a war area" means service in an area in Pakistan in which for the time being enemy action is taking place, or in an area in Pakistan declared by the [1][Federal Government], by notification in the official Gazette, to be a war area for the purposes of this Ordinance;

(i) "Superior Officer" means, in relation to a person subject to this Ordinance, a gazetted afficer or a non-gazetted officer who is of a class higher than that person or is senior to that person in the same class;

(j) "unit" means a unit of the Civil Pioneer Force constituted under section 3.

3. Constitution of the Civil Pioneer Force.—(1) There shall be raised and maintained in the manner hereinafter provided a force to be designated the Civil Pioneer Force (hereinafter called the "Force ") to perform in Pakistan the duties hereinafter specified.

(2) The [1][Federal Government] may constitute for service in any part of Pakistan one or more units and may disband or reconstitute any unit so constituted.

(3) The strength and composition of a unit shall be such as may be prescribed.

4. Duties of the Force.— (1) It shall be the duty of the Force and of the persons enrolled therein as and when required by the [2][Federal]or a Provincial Government or by an authority authorised in this behalf by the [2][Federal] or Provincial Government, for the purpose of securing the defence of Pakistan or any part thereof, the public safety, the maintenance of public order or the efficient prosecution of war, or for maintaining supplies and services essential to the life of the community—

(a) to repair and maintain important lines of communications, to clear roads after an enemy raid, to construct diversions in case of floods, bridges and air landing grounds;

(b) to load, unload or stack large quantity of warlike and other important items which of necessity may, have to be moved from one place to another;

(c) to construct defence works and air raid shelters;

(d) to man vital or other installations in case of emergencies;

(e) to clear debris from important headquarters and offices after enemy bombardment;

(f) to perform work in factories, workshops and shipyards;

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[1] Subs,. by F.A.O., 1975, Art. 2 and Table, for "Central Government".
[2] Subs. *ibid*., for "Central".

(g) to render such other services as, in the opinion of the [1][Federal]or a Provincial Government, are necessary or expedient for the purposes aforesaid:

Provided that the [2][Federal Government] may, subject to such conditions as may be prescribed, levy a charge for any work or carried out by the Force for or on behalf of a Provincial Government, a local authority or industrial commercial undertaking.

(2) A unit shall be liable for service in the part of Pakistan for which it has been constituted under section 3, and shall be liable, if the [2][Federal Government] so orders, for service in any other part of Pakistan.

5. Officers of the Force. There shall be the following classes of officers in the Force, namely:

(i) gazetted officers Class I—

(a) Chief Controllers,

(b) Controllers,

(c) Deputy Controllers,

(d) Assistant Controllers,

(e) Group Officers;

(ii) gazetted officers Class II—

(a) Administrative Officers,

(b) Store Officers;

(iii) non-gazetted officers—

(a) Chief Supervisors,

(b) Group Supervisors,

(c) Assistant Group Supervisors;

and such grades in the classes of non-gazetted officers as the [2] [Federal Government] may direct

6. Appointment of officers.— (1) Gazetted officers, Class I and Class II shall respectively be selected by the [3][Federal Government] and the Provincial Government and the [3][Federal Government] shall issue to each such officer on order of appointment.

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[1] Subs. by F.A.O., 1975, Art. 2 and Table, for Central Government.
[2]Subs. *ibid*., for "Central "Government".
[3] Subs. by F.A.O., 1975, Art. 2 and Table, for Central Government.

(2) Non-gazetted officers shall be appointed from amongst Civil Pioneers in the unit by the Controller of the unit or by such other authority and in such manner as may be prescribed.

7. Enrolment and appointment to units.—(1) Any person who is or is deemed to be a citizen of Pakistan may, if he has attained the age of eighteen and is not employed in the Army, Navy or Air Force of Pakistan or in the Civil Armed Forces including their Reserves, the Pakistan National Guard, village defence or such functionary bodies as are planned to be co-opted by the Armed Forces in time of war, including Ansars, unless any of them is specifically allowed by the competent authority, or in any employment to which the Pakistan Essential Services (Maintenance) Act, 1952 (LIII of 1952), for the time being applies, offer himself for appointment to or enrolment in the Force, and, if he satisfies the prescribed conditions, may be enrolled therein in such manner and for such period as may be prescribed, and shall thereupon become subject to the provisions of this Ordinance.

(2) Subject to the prescribed conditions, if any, an applicant for enrolment may apply to be enrolled for service in a particular unit.

(3) Any person enrolled shall without unnecessary delay be appointed in the prescribed manner to a unit constituted for the part in which he for the time being resides, or if he applies for enrolment in a particular unit to that unit.

8. Transfers. Any person appointed to a unit under section 7 may be transferred, whether on disbandment of the unit or otherwise, to another unit in such manner as may be prescribed :

Provided that a person who is not a gazetted officer shall not, without his own consent, be transferred to a unit constituted for a part other than that in which he was enrolled.

9. Liability for service. Every person subject to this Ordinance shall be bound to serve in the unit of the Force to which he has been appointed or transferred or is for the time being attached until he is discharged from the Force.

10. Discharge and dismissal.— (1) Every person subject to this Ordinance shall be entitled to receive his discharge from the Force on the expiration of the period for which he was enrolled or on his attaining the age of fifty; but any such person may, before he becomes so entitled, be discharged by such authority and subject to such conditions as may be prescribed.

(2) The prescribed authority may, subject to such conditions as may be prescribed, dismiss any person from the Force.

11. Major offences. Any person subject to this Ordinance who—

(a) begins, incites, causes or conspires with any other person to cause, or joins in any mutiny, or

(b) being present at any mutiny, does not use his utmost endeavour to supress it, or

(c) knowing or having reason to believe in the existence of any mutiny or of any intention to mutiny, does not, without delay, give information thereof to his superior officer, or

(d) uses or attempts to use criminal force to, or commits an assault on, his superior officer, whether on or off duty, knowing or having reason to believe him to be such, or

(e) while on service in a war area,—

(i) disobeys the lawful command of his superior officer, or

(ii) deserts or attempts to desert the service, or

(iii) quits his post or party without being relieved or without leave, or

(iv) fails to perform his duty, or

(v) intentionally causes or spreads a false alarm, or

(vi) plunders, destroys or damages property of any kind,

shall be punishable with imprisonment for a term which may extend to seven years and with fine which may extend to five hundred rupees.

12. Minor offences. Any person subject to this Ordinance who—

(a) is in a state of intoxication when on or detailed for duty, or

(b) is grossly insubordinate or insolent to his superior officer in the execution of his office, or

(c) refuses or wilfully neglects to perform or assist in any work or duty ordered to be done either in quarters or elsewhere, or

(d) while incharge of a party, permits behaviour prejudicial to good order and discipline, or

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(e) uses criminal force to, or commits an assault on, or otherwise ill-treats, any member of the Force subordinate to him in rank or position, or

(f) designedly or through neglect injures or loses, or fraudulently or without due authority disposes of, his clothes, tools or equipment or any such articles entrusted to him or belonging to any other member of the Force, or

(g) malingers, feigns or produces disease or infirmity in himself, or intentionally delays his cure or aggravates his disease or infirmity, or

(h) with intent to render himself or any other member of the Force unfit for service, voluntarily causes hurt to himself or that other member, or

(i) while not on service in a war area,—

(i) disobeys the lawful command of his superior officer, or

(ii) deserts or attempts to desert the service or his party or his post or his duty, or

(j) is guilty of any act or omission not otherwise punishable which is prejudicial to good order and discipline,

shall be punishable with imprisonment for a term which may extend to one year, or with fine which may extend to five hundred rupees, or with both [1][:]

[2][Provided that offences under clause (a) shall be tried under the Prohibition (Enforcement of Hadd) Order, 1979 (P.O. No. 4 of 1979)].

13. Attempts to commit offences and abetment of offences. Any enrolled person who attempts to commit or abets the commission of an offence under this Ordinance shall be punishable with the punishment provided for such offence.

14. Summary disposal of minor offences of Civil Pioneers. When a Civil Pioneer is charged with an offence punishable under section 12 [3][except clause (a) thereof,] the Controller or the gazetted officer commanding the detachment in which such person is serving if so authorized in writing by the Chief Controller, may dispose of the charge without formal trial and may award one or more of the following punishments, namely :—

(a) confinement in such place as may be considered suitable for a period not exceeding seven days ;

(b) punishment drill, extra work, fatigue or other duty, for a period not exceeding thirty days, with or without confinement to quarters or lines ;

(c) forfeiture of pay and allowances for a period not exceeding one month.

15. Summary disposal of minor offences of non-gazetted officers. When a non-gazetted officer is charged with an offence punishable under section 12 [4][except clause (a) thereof,], the Controller or the gazetted officer commanding the detachment in which the non-gazetted officer is serving, if so authorised in writing by the Chief Controller, may dispose of the charge without formal trial and award to such non-gazetted officer any one or more of the following punishments, namely:—

(a) reduction to a lower class or to the ranks ;

(b) forfeiture of pay and allowances for a period not exceeding one month ;

(c) reprimand or severe reprimand;

Provided that no such non-gazetted officer shall be reduced in grade, class or rank except by an order of the Controller.

[1] Subs. by the Civil Pioneer Force (Amdt.) Ordinance, 1983 (30 of 1983), s.2 for full-stop.
[2] Provis. added *ibid*.
[3] Ins. *ibid.*
[4] Ins. by the Civil Pioneer Force (Amdt.) Ordinance, 1983 (30 of 1983), ss. 3 and 4.

16. Summary disposal of minor offences of gazetted officers. When a gazetted officer is charged with an offence punishable under section 12 [1][except clause (a) thereof,], the Chief Controller or Controller may, subject to any rules in this behalf, without formal trial, reprimand or severely reprimand such officer or may refer the matter to the Provincial Government for disposal.

17. Reduction in rank for inefficiency or lack of zeal. Subject to any rules made in this behalf, the Controller may reduce to a lower grade or a lower class or to the ranks any non-gazetted officer in his unit on the grounds of ineffciency or lack of zeal.

18. Trial of minor offences. — (1) An offence punishable under section 12 [1][except clause (a) thereof,] and not disposed of under section 14, 15 or 16 may be tried by the Summary Court, constituted as provided in sub-section (2).

(2) A Summary Court shall consist of a Magistrate of the first class appointed by the District Magistrate, sitting with the Controller or a gazetted officer of the Force nominated by him and a third person to be selected by the Provincial Government. The Magistrate so appointed shall be president of the Court and, in the event of any difference of opinion, the opinion of the majority shall prevail.

(3) A Summary Court may take cognizance of an offence upon a report in writing made by a gazetted officer of the Force authorized in this behalf by the Chief Controller, and such officer shall in making complaint be deemed to be a public servant acting in the discharge of his official duties.

(4) A Summary Court shall in the trial of an offence follow as far as possible the procedure for the trial of summary cases in which an appeal lies as laid down in Chapter XXII of the Code of Criminal Procedure, 1898 (Act V of 1898).

(5) A Summary Court may pass any sentence authorized by section 12 for the offence.

(6) An appeal from a sentence passed by a Summary Court may be made within thirty days of the sentence to the authority appointed by the Provincial Government and such authority shall in disposing of such appeals follow the same procedure and have the same powers as an appellate Court follows and has under the Code of Criminal Procedure, 1898 (Act V of 1898).

(7) The provisions of the Code of Criminal Procedure, 1898 (Act V of 1898), and of any other law for the time being in force, in so far as they may be applicable and in so far as they are not inconsistent with the provisions of this Ordinance, shall apply to all matters connected with, arising from or consequent upon a trial by a Summary Court.

19. Power of Controller to make deduction from pay.—The following deductions may, subject to the rules made in this behalf, be made by the Controller from the pay and allowances of any person subject to this Ordinance, namely:-

(a) all pay and allowances for every day on which such person is absent either on desertion or without leave or because of imprisonment awarded by a Criminal Court or a Court constituted under this Ordinance ;

[1] Ins. by the Civil Pioneer Force (Amdt.) Ordinance, 1983 (30 of 1983), ss. 3 and 4.

(b) all pay and allowances for every day on which such person is in custody on a charge for an offence of which he is afterwards convicted by a Criminal Court or a Court constituted under this Ordinance, or on a charge of absence without leave for which he is afterwards awarded punishment under section 14, 15 or 16;

(c) all pay and allowances for every day on which such person is in hospital on account of sickness certified by the medical officer attending him to have been caused by an offence punishable under this Ordinance committed by him, or, subject to any rules made in this behalf, on account of a venereal disease ;

(d) all pay and allowances which may be forfeited under section 14 or 15 ;

(e) any deduction from pay which may be ordered under clause (b) of section 20 ;

(f) any sum required to defray any expenditure incurred as a consequence of misconduct by him or to make good any loss of, or of damage or destruction done by him to, any clothes, tools or equipment or to any building or property :

Provided that the total deductions from the pay and allowances of any person under clauses (d) to (f) shall not in any one month exceed one-half of his pay and allowances for that month.

20. Power of Provincial Government to award punishment. The following punishments may, subject to the rules made in this behalf, be awarded to a gazetted officer by the Provincial Government, namely:—

(a) reprimand or severe reprimand ;

(b) deductions from pay to defray expenditure or recoup loss incurred as a consequence of misconduct by him ; and

(c) forfeitue of service for purposes of seniority, promotion and annual increments.

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21. Custody during investigation. Any person charged with an offence punishable under this Ordinance may be taken into and kept in custody in the prescribed manner by the unit to which he belongs pending investigation of the offence.

22. Arrest of deserters.—(1) Whenever any enrolled person deserts his unit, the Controller or the gazetted officer commanding the detachment to which he belongs may give written information of the desertion to the officer in charge of the nearest police station, and such police officer shall thereupon take steps for the apprehension of the deserter in like manner as if he were a person for whose apprehension a warrant had been issued by a Magistrate, and shall deliver the deserter when apprehended to the custody of his unit.

(2) Any police officer may arrest without warrant any person reasonably believed by him to be enrolled person who has deserted his unit and shall on making an arrest bring or send the arrested person without delay to the nearest unit.

23. Place of trial. An enrolled person charged with an offence punishable under this Ordinance may be tried and punished for such offence in any place in Pakistan.

24. Proof of appointment or enrolment. In any proceedings before a Court the fact that a person is a person subject to this Ordinance may be provided by the production of a certificate purporting to be signed by the Controller of the unit in which he is so serving.

25. Power of [1]Federal Government to exercise powers of Provincial Government. The [1][Federal Government] may exercise any power vested by this Ordinance in the Provincial Government.

26. Power to make rules. The [1][Federal Government] may, by notification in the official Gazette, make rules2 to carry out the purposes of this Ordinance.

(2) In particular and without prejudice to the generality of the foregoing power, rules may be made to provide for any of the following matters, namely :—

(a) appointment of officers ;

(b) delegation of powers ;

(c) enrolment and appointment to units ;

(d) transfers ;

(e) reduction in rank for inefficiency or lack of zeal;

(f) power of Controllers to make deductions from pay ;

(g) power of Provincial Governments ;

(h) custody during investigation ;

(i) the duties, training, clothing, equipment and conditions of service of enrolled persons, the payment of compensation to or in respect of such persons for injuries received or death suffered by them ;

(j) the organisation of the Force and of the units thereof ;

(k) medical examination of persons offering themselves for appointment or enrolment ;

(l) any matter which is to be or may be prescribed under this Ordinance.

[1] Subs. by F.A.O., 1975, Art. 2 and Table, for "Central Government".
[2] For such rules, *see* Gaz. of P., 1965, Ext., pp. 1132-1143.

THE COCONUT COMMITTEE ACT, 1944

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THE COCONUT COMMITTEE ACT, 1944

[1]ACT NO. X OF 1944

[31st March, 1944]

[2][An Act to provide for the levy and collection of a cess on copra consumed in mills.]

Preamble [3][Whereas it is expedient to provide for the levy and collection of a cess on copra consumed in mills.]

It is hereby enacted as follows:—

1. Short title and extent. –[4][(1) This Act maybe called the Coconut cess Act, 1944.]

[5][(2) It extends to the whole of Pakistan.]

2. Definitions.— In this Act, unless there is anything repugnant in the subject or context,—

[6][(a) "Collector" means the officer appointed by the [7][Federal Government] to perform in any specified area the duties of a Collector under the provisions of this Act and the rules made thereunder, and includes any officer sub-ordinate to that officer whom he may by order and in writing authorize to perform his duties under those provisions;]

[8][* * * * * * *]

[9][* * * * * * *]

(c) "mill" means any place in which copra is crushed for the extraction of oil, which is a factory as defined in section 2 of the [10][Factories Act, 1934 (XXV of 1934)],

(d) "prescribed" means prescribed by rules made under this Act.

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[1]The Act has been extended to__

(a) the Leased Areas of Baluchistan, see the Leased Areas (Laws) Order, 1950 (G.G.O.3 of 1950);

(b) the Baluchistan States union by the Baluchistan States Union (Federal Laws) (Extension) Order, 1953 (G.G.O.4 of 1953), as amended;

(c) the Khairpur State, see the Khairpur (Federal Laws) (Extension) Order, 1953 (G.G.O.5 of 1953), as amended; and

(d) the State of Bahawalpur, see the Bahawalpur (Extension of Federal Laws) Order, 1953 (G.G.O.11 of 1953), as amended.

The Act has been and shall be deemed to have been brought into force in Gwadur (*with effect from the 8th September, 1958*), by the Gwadur (Application of Central Laws) Ordinance, 1960 (XXXVII of 1960), s.2.

[2]Subs. by the Act relating to Cesses on Agricultural Products (Amendment) Ordinance, 1982 (X of 1982), s.2 and Sch., for the long title which was previously subs. by Act XVIII of 1950, s.2 and 3.

[3]Subs. by Ordinance X of 1982, s.2 and Sch., for the Preamble which was previously subs. by Act XVIII of 1950, ss.2 and 3.

[4]Subs. by Ordinance X of 1982, s.2 and Sch., for sub-section(1), which was previously subs. by Act XVIII of 1950, s.4.

[5]Subs. by the Central Laws (Statute Reform) Ordinance, 1960 (XXI of 1960), s.3 and 2nd Sch., (*with effect from the 14th October, 1955*),for the original sub-section (2), as amended by A.O.,1949.

[6]Subs. by the Indian Coconut Committee (Amdt.) Act, 1946 (XV of 1946),s.2, for the original clause.

[7]Subs. by F.A.O., 1975, Art.2 and Table, for "Central Government".

[8]Cl. (b) omitted by the Act relating to Cesses on Agricultural Products (Amdt.) Ordinance, 1982 (X of 1982),s.2 and Sch., which was previously amended by various enactments.

[9]Cl.(bb) which was ins. by Act XV of 1946, s.2, omitted by Act XVIII of 1950, s.5.

[10]Subs. by the Repealing and Amending Act, 1945 (VI of 1945), s.3 and 2nd Sch., for words, brackets and figures "Indian Factories Act, 1934 (XXV of 1934)".

[1][**3. Imposition of coconut cess**.— (1)] There shall be levied and collected, as a cess for the purposes of this Act, on all copra consumed in any mill in [2][Pakistan], whether produced in or imported from outside [2][Pakistan], a duty of excise at such rate not exceeding four annas per cwt., as the [5][Federal Government] may, [3][* * *] by notification in the official Gazette, fix in this behalf [4][;]

[6][Provided that the [5][Federal Government] may by notification in the official Gazette vary the rate at which the duty of excise shall be levied and collected.]

[7][* * * * * * *]

[8][* * * * * * *]

4 to 8. [9][Omitted]

9. [10][*Omitted*]

10. Delivery of monthly returns.—(1) The owner of every mill shall furnish to the Collector on or before the 7th day of each month, a return stating the total amount of copra consumed in the mill during the preceding month, together with such further information in regard thereto as maybe prescribed:

Provided that no return shall be required in regard to copra consumed before the commencement of this Act.

(2) Every such return shall be made in such form and shall be verified in such manner as may be prescribed.

11. Collection of cess by Collector.—(1) On receiving any return made under section 10, the Collector shall assess the amount of the duty payable under section 3 in respect of the period to which the return relates, and if the amount has not already been paid shall cause a notice to be served upon the owner of the mill requiring him to make payment of the amount assessed within thirty days of the service of the notice.

(2) If the owner of any mill fails to furnish in due time the return referred to in sub-section (1) of section 10 or furnishes a return which the Collector has reason to believe is incorrect or defective, the Collector shall assess the amount if any, payable by him in such manner as may be prescribed, and the provisions of sub-section (1) shall thereupon apply as if such assessment had been made on the basis of a return furnished by the owner:

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[1]Section.3 was re-numbered as sub-section (1) of that section by Act XV of 1946, s.3.
[2]Subs. by the Central Laws (Statute Reform) Ordinance, 1960 (XXI of 1960), s.3 and 2nd Sch. (*with effect from the 14th October, 1955*), for "the Provinces and the Capital of the Federation" which had been subs.by A.O., 1949, for "British India".
[3]The words "after consulting the Committee" omitted by Act XVIII of 1950, s.6.
[4]Subs. *ibid*., for full-stop.
[5]Subs. by F.A.O., 1975, Art.2 and Table, for "Central Government".
[6]Proviso added by the Coconut Committee (Amdt.) Act, 1950 (XVIII of 1950),s.6
[7]Sub-section (2) omitted by the Act relating to Cesses on Agricultural Products (Amendment) Ordinance, 1982 (X of 1982),s.2 and Sch., which was previously amended by various enactments.
[8]Sub-section (3) omitted by the Federal laws (Revision and Declaration) Ordinance, 1981 (XXVII of 1981),s.3 and 2nd Sch.
[9]Omitted by the Coconut Committee (Amendment) Act, 1950 (XVIII of 1950), s. 7.
[10]Omitted by the Acts relating to Cesses on Agricultural Products (Amendment) Ordinance, 1980 (X of 1980), s.2 and Sch.

Provided that in the case of a return which he has reason to believe is incorrect or defective, the Collector shall not assess the duty at an amount higher than that at which it is assessable on the basis of the return without giving to the owner a reasonable opportunity of proving the correctness and completeness of the return.

(3) A notice under sub-section (1) may be served on the owner of a mill either by post or by delivering it or tendering it to the owner or his agent at the mill.

12.Fianlity of assessment and recovery of unpaid duty.— [1][(1) Any owner of a mill who is aggrieved by an assessment made under section 11 may, within three months of service of the notice referred to in sub-section (1) of that section, apply to the District Judge, [2][* * *] for the cancellation or modification of the assessment and on such application the said Judge may cancel or modify the assessment and order the refund to such owner of the whole part, as the case may be, or any amount paid thereunder.

(2) The decision under sub-section (1) of the District Judge [3][* * *] shall be final.

(3) Any sum recoverable under section 11 may be recovered as an arrear of land-revenue.

13. Power to inspect mills and take copies of records and accounts.—(1) The Collector or any officer empowered by general or special order of the [4][Federal Government] in this behalf shall have free access to all reasonable times during working hours to any mill or to any part of any mill.

(2) The Collector or any such officer may at any time [5][during working hours], with or without notice to the owner, examine the [6][purchase, sale and stock] records and accounts of any mill and take copies of or extracts from all or any of the said records or accounts for the purpose of testing the accuracy of any return or of informing himself as to the particulars regarding which information is required for the purposes of this Act or any rules made thereunder:

[7][Provided that nothing in this section shall be deemed to authorise the examination of any description or formulae of any trade process.]

[8][* * * * * * *]

14.Information acquired to be confidential.—(1) All such copies and extracts and all information acquired by a Collector or any other officer from an inspection of any mill or warehouse or from any return submitted under this Act shall be treated as confidential.

(2) If the Collector or any such officer discloses to any person other than a superior officer any such information as aforesaid without the previous sanction of the [4][Federal Government] he shall be punishable with imprisonment which may extend to six months and shall also be liable to fine:

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[1]Subs. by the Indian Coconut Committee (Amdt.) Act, 1946 (XV of 1946),s.6, for sub-sections (1) and (2).
[2]The Words "or in a Presidency-town, to the Chief Judge of the Small Cause Court'"omitted by the Coconut Committee (Amdt.) Act, 1950 (XVIII of 1950), s.9.
[3]The words "or the Chief Judge of the Small Cause Court, as the case may be," omitted, ibid.
[4]Subs. by F.A.O., 1975, Art.2 and Table for "Central Government".
[5]Ins. by the Indian Coconut Committee (Amdt.) Act, 1946 (XV of 1946), section 7.
[6]Subs. *ibid*., for "working records, sale".
[7]This proviso was added, *ibid.*
[8]Sub-section (3) omitted, *ibid.*

Provided that nothing in this section shall apply to the disclosure of any such information for the purposes of a prosecution in respect of the making of a false return under this Act.

15. [Omitted.]

16 and 17. [Omitted.]

18. Power of the Federal Government to make rule.—(1) The [3][Federal Government] may make rules for the purpose of carrying into effect the provisions of this Act.

[4][* * * * * * *]

[5]**[18A.Penalty for contravention of rules.** Rules made under section 18 may provide that a breach of any of them shall be punishable with fine not exceeding one thousand rupees.]

19. [6][Omitted.]

20. Publication of rules and regulations. All rules made under section 18 [7][* * *] shall be published in the [8][official Gazette].

THE PAKISTAN CODE

Date:-22.04.2024

[1]Omitted by the Indian Coconut Committee (Amdt.) Act, 1946 (XV of 1946), s.8.
[2]Omitted by the Coconut Committee (Amdt.) Act, 1950 (XVIII of 1950), s.10.
[3]Subs. by .F.A.O., 1975, Art. 2 and Table, for "Central Government".
[4]Sub-section (2) omitted by the Coconut Committee (Amdt.) Act, 1950 (18 of 1950),s.11.
[5]S. 18A ins. by the Coconut and Oilseeds Committees Acts (Amdt.) Ordinance, 1962 (25 of 1962), s. 2.
[6]Omitted by the Coconut Committee (Amdt.) Act, 1950 (XVIII of 1950) s.12.
[7]The words "and all regulations mde under section 19" omitted by the Coconut Committee (Amdt.) Act, 1950 (18 of 1950), s. 13.
[8]Subs. *ibid.*, for "Gazette of India".

THE CUTCHI MEMONS ACT, 1938

CONTENTS

1. Short title and commencement
2. Cutchi Memons to be governed in certain matters by Muslim Law
3. Savings
4. [Repeal]

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THE CUTCHI MEMONS ACT, 1938

ACT NO. X OF 1938

[8th April, 1938]

An Act to provide that all Cutchi Memons shall be governed in matters of succession and inheritance by the [1][Muslim] Law.

WHEREAS it is expedient that all Cutchi Memons be governed in matters of succession and inheritance by the [1][Muslim] Law;

It is hereby enacted as follows:—

1. Short title and commencement.—(1) This Act may be called the Cutchi Memons Act, 1938.

(2) It shall come into force on the 1st day of November, 1938.

2. Cutchi Memons to be governed in certain matters by [1][Muslim] Law.—Subject to the provisions of section 3, all Cutchi Memons shall, in matters of succession and inheritance, be governed by the [1][Muslim] Law.

3. Saving.—Nothing in this Act shall affect any right or liability acquired or incurred before its commencement, or any legal proceeding or remedy in respect of any such right or liability; and any such legal proceeding or remedy may be continued or enforced as if this Act had not been passed.

4. [2][*Repeal*.]

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Date: 01-08-2024

[1]Subs. by Federal Adaptation of Laws Order, 1975, (P. O. 4 of 1975) Art 2 and Table.
[2]Rep. by the Repealing and Amending Act, 1942 (XXV of 1942), s.2 and First Schedule.

CUTTING OF TREES (PROHIBITION) ACT, 1992

CONTENTS

1. Short title, extent and commencement
2. Definitions
3. Cutting of trees etc. Prohibited
4. Penalty
5. Cognizance of offences
6. Seizure and confiscation of Property
7. Power to prevent commission of offences
8. Provincial Governments to demarcate zones
9. Power to enter etc.
10. Rules
11. Repeal

THE PAKISTAN CODE

THE CUTTING OF TREES (PROHIBITION) ACT, 1992

ACT NO. XVIII OF 1992

[29th July, 1992]

An Act to provide for the prohibition of cutting of trees near the external frontiers of Pakistan

WHEREAS it is expedient to provide for the prohibition of cutting of trees or causing damage to trees near the external frontiers of Pakistan and matters ancillary thereto ;

It is hereby enacted as follows :—

1. Short title, extent and commencement. This Act may be called the Cutting of Trees (Prohibition) Act, 1992.

(2) It extends to the whole of Pakistan.

(3) It shall come into force at once.

2. Definitions. In this Act, unless there is anything repugnant in the subject or context,—

(a) 'authorised officer' means an officer authorised by a Provincial Government;

(b) 'field' means a *khasra* number as defined in the Provincial law relating to land revenue;

(c) 'first zone' means an area adjacent to and beyond the external frontier of Pakistan extending towards Pakistan to a line at four kilometers measured from the external frontiers of Pakistan;

(d) 'second zone' means an area adjacent to and beyond the first zone extending towards Pakistan to a line at four kilometers measured from the first zone ; and

(e) 'tree' means a large plant with a self-supporting trunk.

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3. Cutting of trees etc. Prohibited.—(1) Except as hereinafter provided, no person shall, without the prior written approval of the authorised officer, cut, fell or damage or cause to be cut, felled or damaged any tree growing—

(i) in the first zone,, if the number of remaining trees in any field falls short of the number to be calculated at the rate of fifteen trees per acre ; and

(ii) in the second zone, if the number of remaining trees in any field falls short of the number to be calculated at the rate of ten trees per acre.

(2) Nothing contained in sub-section (1) shall apply to a tree growing on land occupied as the site of a town or village or in a dwelling-house, including its curtilage.

4. Penalty. Whoever contravenes the provisions of this Act shall be guilty of an offence punishable—

(i) with fine which may extend to five thousand rupees, if he contravention relates to the first zone ; and

(ii) with fine which may extend to two thousand and five hundred rupees, if the contravention relates to the second zone.

5. Cognizance of offences. No court shall take cognizance of an offence under this Act, except on a complaint by the authorised officer or the local formation commander of the Pakistan Army.

6. Seizure and confiscation of Property.— (1) When any tree has been cut, felled or damaged in contravention of the provisions of this Act or rules made thereunder, such tree together with all tools used in committing any such contravention may be seized by the authorised officer.

(2) Every officer seizing any property under this section shall place on such property a mark indicating that the same has been so seized and shall, as soon as may be, make report of such seizure to the Magistrate having jurisdiction to try the offence under this Act.

(3) Upon the receipt of any such report, the Magistrate shall, with all convenient despatch, take such measures as may be necessary for the trial of the offender and the disposal of the property according to law.

(4) Any tree in respect of which an offence has been committed under this Act and all tools used in committing any such offence shall be liable to confiscation, and such confiscation shall be in addition to any other punishment prescribed for such offence.

7. Power to prevent commission of offences. The authorised officer shall prevent the commission of any offence under this Act and for that purpose may take such measures as may be prescribed by the rules under this Act.

8. Provincial Governments to demarcate zones. The Provincial Governments may, whenever it may deem expedient, cause the zones defined in section 2 to be demarcated and the trees growing in any zone to be enumerated.

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9. Power to enter etc. Any authorised officer or any other person authorized to demarcate the zones and enumerate the trees shall be entitled to enter upon any land, and—

(i) to survey and land;

(ii) to make map of any zone ;

(iii) to erect or cause to be erected boundaries marks ; and

(iv) to blaze any tree.

10. Rules. The Provincial Government may make rules for carrying out the purposes of this Act.

11. Repeal. The Cutting of Trees (Prohibition) Act, 1975 (LXXIV of 1975) is hereby repealed.

THE DECORATIONS ACT, 1975.

CONTENTS

1. Short title and commencement
2. Definitions
3. Institution or creation of decorations
4. Continuance of existing decorations and their warrants of institution and statutes
5. Restriction on creation, conferment or acceptance of decorations
6. Penalty and procedure
7. Repeal

SCHEDULE.

THE PAKISTAN CODE

THE DECORATIONS ACT, 1975.

[1]ACT NO.XLIII OF 1975

[24th April 1975]

An Act to provide for the conferment by the President of decorations in recognition of gallantry, meritorious service in the Armed Forces [2][, academic distinction or distinction in the field of sports or nursing.]

WHEREAS it is expedient to provide for the conferment by the President of decorations in recognition of gallantry, meritorious service in the Armed forces [2][,academic distinction or distinction in the field of sports or nursing], restriction on the acceptance of [3][foreign decorations by the citizens and persons in the service of] Pakistan and matters ancillary thereto;

It is hereby enacted as follows :-

1. Short title and commencement.- (1) This Act may be called the Decorations Act, 1975.

(2) It shall come into force at once and shall be deemed to have taken effect on the fourteenth day of August, 1973.

2. Definitions.– In this Act, unless there is anything repugnant in the subject or context,

(a) "academic distinction" includes–

(i) research, achievement or performance in medicine, science, engineering, technology, philosophy, history, literature or the arts ;

(ii) invention of national importance;

(b) "decorations" means any Title, Honour, Award, Order, Medal, Bar, Clasp or Commendation instituted or created under section 3, and includes the decorations enumerated in the Schedule;

[4][(c) "gallantry" includes an act of bravery, heroism, courage and rendering of dedicated services with selfless devotion in human rights and public service;]

(d) "meritorious service in the Armed Forces" means service rendered by the members of the Armed Forces in Peace or War or Emergency or in relation to any national historic occasion which is worthy of decoration.

THE PAKISTAN CODE

[1]For Statement of Objects and Reasons, see Gaz. of P., 1975, Ext., Pt. III, p.183.
[2]Subs. by the Decorations (Amdt.) Ordinance, 1981 (35 of 1981),s.2.
[3]By corrigenda.
[4]Subs. by the Decorations (Amdt.) Act, 1997 (8 of 1997),s.2, for clause (c).

3. Institution or creation of decorations.— (1) The President may, by warrant, institute, or create, from time to time any decorations in recognition of gallantry, meritorious service in the Armed Forces [1][, academic distinction or distinction in the field of sports or nursing] and prescribe the conditions under which a decoration may be awarded, conferred, withdrawn, forfeited or annulled, or may be restored after its withdrawal, forfeiture or annulment.

(2) The President may also award decoration posthumously and the monetary reward, if any, attached to the decoration shall be paid to the next of kin of the person to whom the decoration is awarded.

(3) No decoration shall be awarded, conferred, withdrawn, forfeited or annulled, and no decoration which has been withdrawn, forfeited or annulled shall be restored, except with the personal approval of the President.

(4) Every award, conferment, withdrawal, forfeiture, annulment and restoration of a decoration shall be published in the official Gazette.

4. Continuance of existing decorations and their Warrants of Institution and statutes.— (1) All the decorations enumerated in the Schedule and the Warrants of institution and statutes, rules, regulations and instructions pertaining thereto, which were in force immediately before the commencement of this Act, shall continue to be in force until altered, repealed or amended by the President.

(2) The President may, by order, amend the Schedule so as to include therein or exclude therefrom any decoration.

(3) Notwithstanding anything contained in sub-section (1), the President may, at any time, withdraw, forfeit or annul any decoration awarded to, or conferred on, any person, and upon such withdrawal, forfeiture or annulment of any decoration, the person concerned shall cease to have any right or privilege appertaining thereto; but the President may restore any such decoration after its withdrawal, forfeiture or annulment.

5. Restriction on creation, conferment or acceptance of decorations.— (1) Subject to the provisions of this Act, no person or authority in Pakistan shall institute or create, or confer on any person, any Title, Honour, Award, Order, Medal, Bar, Clasp or Commendation of the nature of a decoration or which is an imitation of any decoration.

(2) No citizen of Pakistan and no person in the service of Pakistan shall accept any title, honour or decoration from any foreign State or sovereign except with the approval of the Federal Government.

(3) No person to whom a decoration has not been awarded or on whom a decoration has not been conferred, and no person whose decoration has been withdrawn, forfeited or annulled, shall use or cause to be used with his name any words or letters representing that the decoration has been awarded to, or conferred on, him.

[1]Subs. by the Decoration (Amdt.) Ordinance, 1981 (35 of 1981),s.3.

6. Penalty and procedure.– (1) Whoever contravenes the provisions of section 5 shall be punished with fine which may extend to twenty thousand rupees.

(2) A person convicted under this section for accepting any decoration from a foreign State or sovereign shall be deemed to have been deprived of such decoration.

(3) No prosecution for an offence punishable under this Act shall be instituted except with the previous sanction of the Federal Government.

(4) No Court inferior to a Court of Session shall try an offence punishable under this Act.

7. ***[Repeal.]*** *Omitted by the Federal Laws (Revision and Declaration) Ordinance, 1981 (XXVII of 1981), s.3 and Sch.,II.*

SCHEDULE

1. Nishan-i-Haider.
2. Nishan-i-Shujaat.
3. Nishan-i-Imtiaz.
4. Hilal-i-Juraat.
5. Hilal-i-Shujaat.
6. Hilal-i-Imtiaz.
7. Sitara-i-Juraat.
8. Sitara-i-Shujaat.
9. Sitara-i-Imtiaz.
10. Sitara-i-Basalat.
11. Tamgha-i-Juraat.
12. Tamgha-i-Shujaat.
13. Tamgha-i-Imtiaz.
14. Tamgha-i-Basalat.
15. Quaid-i-Azam Police Medal for Gallantry.
16. President's Police Medal for Gallantry.
17. I'zaz-i-Kamal.

THE PAKISTAN CODE

18. Izaz-i-Fazeelat.

19. I’zaz-i-Sabqat.

20. President's Medal for Technology.

21. President's Award for Children.

22. Imtiazi-Sanad.

23. Campaign/War Medals:—

    1. Tamgha-i-Difaa with Clasp Kashmir 1948.

    2. Tamgha-i-Difaa with Clasp Dir-Bajaur 1960—62.

    3. Tamgha-i-Difaa with Clasp kutch 1965.

    4. Tamgha-i-Difaa with Clasp Kashmir 1964-65.

    5. Sitara-i-Harb 1965 War.

    [1][(5A) Sitara-i-Harb 1971 War.]

    6. Tamgha-i-Jang 1965 War.

    [1][(7) Tamjha-i-Jang 1971 War]

24. Tamgha-i-Khidmat (Military) Class I, II and III.

25. President's Medal for Best Shot.

26. Pakistan Medal.

27. Republic Commemoration Medal.

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[1]Ins. and added by order dated. 22-3-76 published in the Gaz. of P., Ext., (Islamabad), Pt. III, pp. 261-62.

THE DESTRUCTION OF RECORDS ACT 1917

CONTENTS

1. Short title
2. [*Definitions*.]
3. Power to certain authorities to make rules for disposal of documents
4. Validation of former rules for disposal of documents
5. Saving of certain documents
6. [*Repeals.*]

THE SCHEDULE

THE PAKISTAN CODE

THE DESTRUCTION OF RECORDS ACT 1917

[1]ACT NO. V OF 1917

[*28th February, 1917*]

An Act to consolidate and amend the law providing for the destruction or other disposal of certain documents in the possession or custody of Courts and Revenue and other public officers.

WHEREAS it is expedient to consolidate and amend the law providing for the destruction or other disposal of certain documents in the possession or custody of Courts and Revenue and other public officers, It is hereby enacted as follows :—

1. Short title. This Act may be called the Destruction of Records Act, 1917.

2. [*Definitions*] *Rep. by the A.O., 1937.*

3. Power to certain authorities to make rules for disposal of documents.— (1) The authorities hereinafter specified may, from time to time, make rules[2] for the disposal, by destruction or otherwise, of such documents as are, in the opinion of the authority making the rules, not of sufficient public value to justify their preservation.

(2) The authorities shall be—

(a) in the case of documents in the possession or custody of a High Court or of the Courts of Civil or Criminal jurisdiction subordinate thereto,— the High Court;

(b) in the case of documents in the possession or custody of Revenue Courts and officers,-the Chief Controlling Revenue-authority[3] ; and

(c) in the case of documents in the possession or custody of any other public officer,—

[4][(i) if the documents relate to purposes of a Province, the Provincial Government or any officer specially authorised in that behalf by that Government ;

(ii) in any other case, the [5][Federal Government] or an officer specially authorised in that behalf by that Government.]

[6][(3) Rules made under this section by any High Court or by a Chief Controlling Revenue-authority[3] or by an officer specially authorised in that behalf by any Provincial Government shall be subject to the previous approval of the Provincial Government; and rules made by an officer specially authorised in that behalf by the [5][Federal Government] shall be subject to the previous approval of the [5][Federal Government]].

[1]For Statement of Objects and Reasons, see Gazette of India, 1917, Pt. V, p. 2 ; and for Proceedings in Council, see Ibid, 1917, Pt. VI, pp. 17 and 292.
[2]For the Income-tax Appellate Tribunal (Destruction of Record Rules, 1960 *see* Gazette of Pakistan 1960, Pt. I, pp. 330-331.
[3]For definition of Chief Controlling Revenue-authority, formerly included in s. 2, see now the General Clauses Act, 1897 (10 of 1897), s. 3 (9a).
[4]Subs by A. O., 1937, for the L. G ., or any officer specially authorized in that behalf by the L.G.",.
[5]Subs. by F.A.O., 1975, Art, 2 and Table for "Central Government".
[6]Subs. *ibid.*, for the original sub-section (3)

4. Validation of former rules for disposal of documents. All rules and orders directing or authorising the destruction or other disposal of documents in the possession or custody of any public officer, heretofore made by a [1][Provincial Government], or with the approval of the [1][Provincial Government] by any authority not empowered to make such rules under the Destruction of Records Act, 1879 (III of 1879) shall be deemed to have had the force of law from the date on which they were made, and all such rules and orders now in force shall continue to have the force of law until they are superseded by rules made under this Act.

5. Saving of certain documents. Nothing in this Act shall be deemed to authorise the destruction of any document which, under the provisions of any law for the time being in force, is to be kept and maintained.

6. [Repeals.] : [*Rep. by the Repealing Act, 1927 (XII of 1927)*].

THE SCHEDULE [Repeal of Enactments.] *Rep. by the Repealing Act, 1927 (Xll of 1927), s. 2 and Schedule.*

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Date: 11-09-2024

[1]Subs. by F.A.O., 1975, Art. 2 and Table, for "Central Government".

THE DEVELOPMENT OF INDUSTRIES (GOVERNMENT CONTROL) ACT, 1949

CONTENTS

1. Short title, extent and commencement

2. Definitions

3. Declaration

3A. Power to regulate industry

4. Power to make rules

5. Rules to be subject to previous publication

SCHEDULE

THE PAKISTAN CODE

THE DEVELOPMENT OF INDUSTRIES (GOVERNMENT CONTROL) ACT, 1949

ACT NO. XIII OF 1949

[21st March, 1949]

An Act to make provision for certain matters connected with the development of industries under [1][Government Control].

WHEREAS it is expedient to make provision for certain matters connected with the development of industries under [1][Government Control];

AND WHEREAS it appears to the [2][Federal Government] to be expedient in the public interest to make such provision to the extent hereinafter appearing;

It is hereby enacted as follows:—

1. Short title, extent and commencement.—(1) This Act may be called the Development of Industries [1][Government Control] Act, 1949.

[3][(2) It extends to the whole of Pakistan.]

(3) It shall come into force at once.

2. Definitions. In this Act unless there is anything repugnant in the subject or context,—

(a) "industry" means any industry engaged in the manufacture or processing of specified goods or commodities and includes any industry ancillary to such an industry, and "industries" shall be construed accordingly;

(b) "specified" means specified in the Schedule to this Act.

[2][(c) "appropriate Government" means, in relation to industries relating to or connected with any matter enumerated in the Federal Legislative List in the Fourth Schedule to the Constitution, including industries the development whereof under Federal Control is declared by Federal Law to be expedient in the public interest, the Federal Government and, in relation to other industries, the Provisional Government].

[1]Subs. by A.O., 1964, Art. 2 and Sch., for "Federal Control".
[2]Subs. by F.A.O. 1975, Art. 2 and Table, for "Central Government".
[3]Subs. by the Central Laws (Statute Reform) Ordinance, 1960 (21 of 1960), s. 3 and 2nd Sch.

3. Declaration. It is hereby declared that the development under [1][Government Control] of industries to which this Act applies is expedient in the public interest.

[2]**[3A. Power to regulate industry.** [In pursuance of the declaration made in the last preceding section the [3][appropriate Government] may in respect of any industry to which this Act applies, plan and regulate the setting up of any new undertaking or the development of any new or existing undertaking.]

4. Power to make rules. The [3][appropriate Government] may, by notification in the official Gazette, make rules to carry the provisions of this Act into effect.

5. Rules to be subject to previous publication.—(1) All rules made under this Act shall be subject to the condition of previous publication and the date to be specified under clause (3) of section 23 of the General Clauses Act, 1897 (X of 1897), shall not be less than one month from the date on which the draft of the proposed rules was published.

(2) All such rules shall be published in the official Gazette and shall, unless some later date is appointed in such rules, come into force on the date of such publication.

SCHEDULE

1. Arms and Munitions of War.
2. Cement and Cement Products.
3. Edible Oil, Hydrogenated or otherwise.
4. Electrical communications and Broadcasting equipment.
5. Electricity, including hydro-electric power.
6. Electrical equipment, appliances and goods.
7. Glass and Ceramics.
8. Heavy Chemicals.
9. Iron and Steel.
10. Machine-tools, Precision-tools, Gauges and Workshop equipment.
11. Manufactures of Heavy Engineering Industry.
12. Minerals including salt and coal.
13. Non-ferrous metals and alloy manufactures.
14. Paper, Cardboard and Pulp.

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[1]Subs. by A.O., 1964 Art. 2 and Sch., for "Federal Control".
[2]Ins. by Act No. (XLIV of 1950), s.2.
[3]Subs. by A. O., 1964, Art. 2 and Sch, for "Central Government".

15. Petroleum and mineral oils.

16. Pharmaceuticals, drugs and light chemicals.

17. Power and industrial alcohol.

18. Preserved and prepared foods.

19. Products of carbonisation Industry.

20. Rubber manufactures.

21. Scientific and Mathematical instruments.

22. Sea fish and its products.

23. Ships, barges, river-boats and lighters.

24. Sugar.

25. Tanned leather and Leather goods.

26. Textiles—Cotton, Wollen, Jute, Silk and Rayon.

27. Tobacco.

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RGN Date: 13-06-2024

THE DISTURBED AREAS (SPECIAL POWERS) ORDINANCE, 1962

CONTENTS

1. Short title, extent and commencement
2. Definitions
3. Special powers of Magistrates and Police officers
4. Special powers of officers of the Armed Forces, etc.
5. Bar to suits, etc.
6. Omitted

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THE DISTURBED AREAS (SPECIAL POWERS) ORDINANCE, 1962

ORDINANCE NO. LIV OF 1962

[5th June, 1962]

An Ordinance to confer certain special powers upon officers in respect of disturbed areas.

WHEREAS it is expedient to confer certain special powers upon officers in respect of disturbed areas;

NOW; THEREFORE, in pursuance of the Proclamation of the seventh day of October, 1958, and in exercise of all powers enabling him in that behalf, the President is pleased to make and promulgate the following Ordinance: —

1. Short title, extent and commencement.—(1) This Ordinance may be called the .

(2) It extends to the whole of Pakistan.

(3) It shall come into force at once.

2. Definitions.—In this Ordinance, unless there is anything repugnant in the subject or context, —

(*a*) "disturbed area" means an area declared by the Provincial Government, by notification in the official Gazette, to be a disturbed area for the purposes of this Ordinance;

(*b*) "officer of the Armed Forces" means an officer of the Pakistan Army, the Pakistan Navy or the Pakistan Air Force, and includes—

(*i*) in the case of Pakistan Army, a junior commissioned officer and a non-commissioned officer;

(*ii*) in the case of Pakistan Navy, a superior officer; and

(*iii*) in the case of Pakistan Air Force, a junior commissioned officer, a warrant officer, a petty officer and a non-commissioned officer; and

(*c*) "officer of the Civil Armed Forces" means an officer of the Civil Armed Forces not below the rank corresponding to that of an Assistant Sub-Inspector of Police.

3. Special powers of Magistrates and Police officers.—(1) If in the opinion of any Magistrate, or any police officer in charge of a police party, it is necessary for the maintenance of public order so to do, he may, after giving such warning as may be appropriate in the circumstances of the case, fire upon, or otherwise use force against, any person who is acting in contravention of any law or order for the time being in force in a disturbed area prohibiting the assembly of five or more persons, or the carrying of weapons, or of things capable of being used as weapons.

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(2) It shall be lawful for any Magistrate or police officer exercising powers under sub-section (1) so to fire or use force as to cause death, and for any person employed in the use of such force to cause death of the person against whom he is authorized to use force.

4. Special powers of officers of the Armed Forces, etc. —Any officer of the Armed Forces, or any officer of the Civil Armed Forces may, in a disturbed area, —

(a) exercise the powers of a Magistrate or police officer conferred by section 3;

(b) arrest without warrant any person who has committed a cognizable offence, or against whom a reasonable suspicion exists that he has committed or is about to commit a cognizable offence; and

(c) enter and search, without warrant, any premises to make any such arrest as is referred to in clause (b), or to recover any person believed to be wrongfully restrained or confined, or any property reasonably suspected to be stolen property, or any arms believed to be unlawfully kept in such premises.

5. Bar to suits, etc.—No prosecution, suit or other legal proceedings shall be instituted against any person in respect of anything done or purporting to be done in exercise of the powers conferred by sections 3 and 4, except with the previous sanction in writing, —

(a) in the case of a Magistrate or police officer, of the Provincial Government; and

(b) in the case of an officer of the Armed Forces or an officer of the Civil Armed Forces, of the [1][Federal Government].

6. [2][Omitted]

[3][*]

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RGN Date: 29-05-2024

[1]Subs. by Federal Adaptation of Laws Order, 1975. (P.O. No. 4 of 1975), Art. 2 and Table.
[2]Omitted by the Federal Laws (Revision and Declaration) Ordinance No. XXVII of 1981, s. 3 and Sch. II.
[3]Schedule omitted by the Federal Laws (Revision and Declaration) Ordinance No. XXVII of 1981, s. 3 and Sch. II.

THE DOURINE ACT, 1910

CONTENTS

1. Short title and extent
2. Definitions
3. Registration of horses
4. Appointment of inspectors and veterinary practitioners
5. Powers of inspector
6. Duties of inspector
7. Inspection of horses
8. Powers of veterinary practitioner
9. Compensation for horse destroyed, etc.
10. Settlement of compensation
11. Committees for hearing appeals
12. Appeals
13. Vexatious entries and searches
14. Rules
15. Penalties
16. Protection to persons acting under Act

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THE DOURINE ACT, 1910

[1]ACT No. V OF 1910

[25th February, 1910]

An Act to provide for the prevention of the spread of Dourine

WHEREAS it is expedient to provide for the prevention of the spread of dourine; It is hereby enacted as follows:—

1. Short title and extent.—(1) This Act may be called the , 1910.

(2) This section extends to [2][the whole of Pakistan]: the rest of this Act extends only to such areas as the [3][Provincial Government] may, by notification in the [4][official Gazette], direct.

2. Definition.— (1) In this Act, the expressions "inspector" and "veterinary practitioner" mean, respectively, the officers appointed as such under this Act, acting within the local limits for which they are so appointed.

(2) The provisions of this Act in so far as they relate to entire horses shall, if the

[3][Provincial Government], by notification as aforesaid, so directs, apply also to entire asses used for mule-breeding purposes.

3. Registration of horses.— The [3][Provincial Government] may, by notification as aforesaid, make such orders as it thinks fit directing and regulating the registration of entire horses maintained for breeding purposes.

4. Appointment of inspectors and veterinary practitioners.—(1) The [3][Provincial Government] may, by notification as aforesaid, appoint any persons it thinks fit to be inspectors, and any qualified veterinary surgeons to be veterinary practitioners, under this Act, and to exercise and perform, within any area prescribed by the notification, the powers conferred and duties imposed by this Act upon such officers respectively.

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(2) Every person so appointed shall be deemed to be a public servant within the meaning of the Pakistan Penal Code (XLV of 1860).

5. Powers of inspector.— An inspector may, subject to such rules as the [3][Provincial Government] may make in this behalf,–

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[1]For Statement of Objects and Reasons, *see* Gazette of India, 1909, Pt. V, p. 96; for Report of Select Committee, *see ibid.*, 1910, Pt. V, p. 27; and for Proceedings in Council, *see ibid.*, 1909, Pt. VI, p. 157, and *ibid.*, 1910, Pt. VI, pp. 13, 90 and 121, dated the 5th February, 1910, the 26th February 1910, and the 12th March, 1910, respectively.
This Act has been extended to Baluchistan by notification under the Scheduled Districts Act, 1874, (14 of 1874), s. 5, *see* Gazette of India, 1916 Pt. II, p. 211.
It has also been extended to the Leased Areas of Baluchistan, *see* G.G.O. 3 of 1950, and applied in the Federated Areas of Baluchistan, *see* Gaz. of India, 1937, Pt. I, p. 1499.
[2]Subs. by the Central Laws (Statute Reform) Ordinance, 1960 (21 of 1960), s. 3 and 2nd Sch. (*with effect from the 14th October,* 1955), for "all the Provinces and the Capital of the Federation" which had been subs. by A.O., 1949, for "the whole of British India".
[3]Subs. by A.O., 1937, for "L.G.".
[4]Subs. *ibid*., for "local Gazette".

(a) enter and search any building, field or other place for the purpose of ascertaining whether there is therein any horse which is affected with dourine; [1]*

(b) prohibit, by order in writing, the owner or keeper of any horse, which in his opinion is affected with dourine, from using such horse for breeding purposes, pending examination by the veterinary practitioner ;

[2][(c) direct, by order in writing, the owner or keeper of any horse which, in the opinion of the inspectors, is affected with dourine to remove it or permit it to be removed for the purpose of segregation to a place specified in the order, and such direction shall be sufficient authority for the detention of the horse in that place for that purpose.]

6. Duties of inspector.— An inspector issuing an order under section 5, [3]* * shall forthwith forward a copy of such order to the veterinary practitioner.

7. Inspection of horses.— A veterinary practitioner receiving a copy of an order forwarded under section 6 shall, as soon as possible after receipt of such copy, examine the horse mentioned therein, and may for such purpose enter any building, field or other place.

8. Powers of veterinary practitioner.— A veterinary practitioner may–

(a) cancel any order issued under section 5 [4]* *; or

(b) if on microscopical examination [5][or by other scientific test] he finds that any horse is affected with dourine,—

(i) in the case of an entire horse, cause it to be castrated,

[6](ii) in the case of a mare, with the previous sanction of such authority as the [7][Provincial Government] may appoint in this behalf, or, if so empowered by the [7][Provincial Government], without such sanction, cause it to be destroyed.]

9. Compensation for horse destroyed, etc.— When any horse is castrated or destroyed under section 8, the market-value of such horse immediately before it became affected with dourine shall be ascertained; and the [7][Provincial Government] shall pay as compensation to the owner thereof—

(a) in the case of a mare which has been destroyed, or of an entire horse which has died in consequence of castration, such market-value, and,

(b) in the case of an entire horse which survives castration, half the amount by which such value has been diminished owing to infection with dourine and castration.

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[1]The words "and" omitted by the Dourine (Amdt.) Act, 1920 (8 of 1920), section 2.
[2]Clause (*c*) ins. *ibid.*
[3]The word, brackets and letter "clause (b)" omitted by the Dourine (Amdt.) Act, 1920 (8 of 1920*)*, s.3.
[4]The word, brackets and letter "clause (b)" omitted *ibid.*, s. 4.
[5]Ins. *ibid*., s. 4.
[6]Subs. *ibid*., for the original sub clause (ii).
[7]Subs. by A.O., 1937, for "L.G.".

10. Settlement of compensation.—(1) A veterinary practitioner may award, as compensation to be paid under section 9 in respect of each horse castrated or destroyed under section 8, a sum not exceeding two hundred and fifty rupees.

(2) If, in the opinion of the veterinary practitioner, the amount which should be paid as such compensation exceeds two hundred and fifty rupees, he shall report accordingly to the Collector, who shall decide the amount to be so paid.

11. Committees for hearing appeals.— (1) The [1][Provincial Government] shall, by rules published in the [2][official Gazette], make provision for the constitution of a committee or committees for the hearing of appeals from decisions under section 10.

(2) Such rules shall provide that not less than one member of any committee constituted thereunder shall be a person not in the [3][service of the Government] or of a local authority.

12. Appeals.— Any owner may, within two months from the date of a decision under section 10, appeal against such decision to the committee constituted in that behalf by rules made under section 11, and the decision of such committee shall be final.

13. Vexatious entries and searches.— (1) Whoever, being an inspector appointed under this Act, vexatiously and unnecessarily enters or searches any field, building or other place, shall be punishable with imprisonment for a term which may extend to six months, or with fine which may extend to five hundred rupees, or with both.

(2) No prosecution under this section shall be instituted after the expiry of three months from the date on which the offence has been committed.

14. Rules.— (1) The [1][Provincial Government] may make rules for the purpose of carrying into effect the provisions of this Act.

(2) In particular, and without prejudice to the generality of the foregoing power such rules as aforesaid may—

[4][(*a*) regulate the exercise of the powers conferred on Inspectors under section 5;]

(*b*) regulate the action to be taken by veterinary practitioners under section 8; [5]*

[5]* * * * * * *

(3) All such rules shall be published in the [6][official Gazette], and, on such publication, shall have effect as if enacted in this Act.

(4) In making any rule under this section the [7][Provincial Government] may direct that a breach of it shall be punishable with fine which may extend to fifty rupees.

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[1]Subs. by A.O., 1937, for "L. G.".
[2]Subs. *ibid.*, for "local official Gazette".
[3]The original words "employ of Government" were first subs., by A.O., 1937, and then amended by A.O., 1961 Art. 2 (*with effect from the 23rd March*, 1956), to read as above.
[4]Subs. by the Dourine (Amdt.) Act, 1920 (8 of 1920), s. 5, for the original clause (*a*).
[5]The word "and" at the end of cl. (*b*), and cl. (*c*) omitted, *ibid.*
[6]Subs. by A.O., 1937, for "local official Gazette".
[7]Subs. *ibid.*, for "L, G.".

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15. Penalties.— Whoever uses or permits to be used for breeding purposes–

(*a*) any horse which has not been registered in accordance with the requirements of a notification under section 3. or

[1][(*b*) any horse in respect of which an order under clause (b) or clause (c) of section 5 is in force,] shall be punishable with fine which may amount, in the case of a first conviction, to fifty rupees, or, in the case of a second or subsequent conviction, to one hundred rupees.

16. Protection to persons acting under Act.— No suit, prosecution or other legal proceeding shall lie against any person for anything which is, in good faith, done or intended to be done under this Act.

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Date: 11-09-2024

[1]Subs. by the Dourine (Amdt.) Act, 1920 (8 of 1920), s. 6, for the original clauses (b) and (c).

THE ELEPHANTS' PRESERVATION ACT, 1879

CONTETNS

Preamble

1. Short title
   Local extent
   Commencement
2. [Repeal]
3. Killing and capture of wild elephants prohibited
4. Rights of Government with respect to certain elephants and tusks.
5. License to kill and capture wild elephants
6. Power of Provincial Government to declare what are main roads and canals, and to make rules as to licenses
7. Penalty for contravening section 3
8. License to be produced and shown on requisition of certain officers
9. Limitation of prosecution
10. Recovery of fees

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THE ELEPHANTS' PRESERVATION ACT, 1879

[1]ACT No. VI OF 1879

[22nd *March,* 1879]

An Act for the preservation of wild elephants.

Preamble. WHEREAS it is expedient to provide for the preservation of wild elephants; it is hereby enacted as follows:–

Short title. This Act may be called the Elephants' Preservation Act, 1879:

Local extent. [2][It may be extended to any local area by the Provincial Government by notification in the official Gazette.]

Commencement. So far as regards the power to make declarations and rules, it shall come into force on the passing thereof. In other respects it shall come into force on the first day of April, 1879.

2. [*Repeal.*] *Rep.* by *the Repealing* and *Amending Act, 1930 (VIII of 1930),* s. 3 *and Sch. II.*

3. Killing and capture of wild elephants prohibited. No person shall kill, injure or capture, or attempt to kill, injure or capture, any wild elephant unless–

(a) in defence of himself or some other person;

(b) when such elephant is found injuring houses or cultivation, or upon, or in the immediate vicinity of, any main public road or any railway or canal; or

(c) as permitted by a license granted under this Act.

[3][**4. Rights of Government with respect to certain elephants and tusks.** Every wild elephant captured, and the tusks of every wild elephant killed, by any person not licensed under this Act, shall be the property of Government.]

5. License to kill and capture wild elephants. The Collector or Deputy Commissioner of any district may, subject to such rules as may for the time being be in force under this Act, grant licenses to kill, or to capture, or to kill and capture, wild elephants in such district:

Provided that no such license shall authorize any person to enter upon any land without the consent of the owner or occupier thereof.

[4]**6. Power of Provincial Government to declare what are main roads and canals, and to make rules as to licenses.** The [5][Provincial Government] may from time to time , [6][* * *] declare what shall be deemed to be main public roads and canals within the meaning of this Act, and make rules consistent with this Act for regulating—

[1]The Act has been repealed in its application to the Province of Punjab by Punjab Ordinance XXI of 1972, s. 42 with effect from the 25th October, 1972 which was temporarily enacted by the Punjab Act, VI of 1973 and on the expiry of the Ordinance as so enacted by Punjab Act No. II of 1974, s. 48. This Act has been repealed to the extent of Islamabad Capital Territory, *See Ordinance* No. XXVII of 1981 s. 4 and 3rd Sch.
[2]Subs. by Adaptation Order, 1949, Sch., for the original paragraph, as amended by Adaptation Order, 1937 and Act No. XXXVIII of 1920, s. 2 and Sch. I.
[3]Subs. by Act No. II of 1883.
[4]For rules under this section, *see* different local R. and O.
[5]Subs. by Adaptation Order, 1937.
[6]The words "subject to the control of the Governor General in Council" rep. by Act No. XXXVIII of l920, s. 2 and Sch. I.

(a) the grant and renewal of licenses under this Act;

(b) the fees (if any) in money, tusks or captured elephants to be charged on such grant and renewal;

(c) the time during which such licenses shall continue in force; and

(d) the conditions (if any) on which they shall be granted.

All such declarations and rules shall be published in the [1][official Gazette] and shall thereupon have the force of law.

7. Penalty for contravening section 3. Whoever, in contravention of section 3, kills, injures or captures, or attempts to kill, injure or capture, any wild elephant, shall be punished with fine which may extend to five hundred rupees for each elephant concerned;

and whoever breaks any condition contained in a license granted under this Act shall be punished with fine which may extend to five hundred rupees.

Any person convicted of a second offence under this section shall be punished with imprisonment which may extend to six months, or with fine, or with both.

When any person holding a license under this Act is convicted under this section, such license shall become void and shall be delivered up to the convicting Magistrate.

8. License to be produced and shown on requisition of certain officers. Any officer of Revenue or Police, or any Forest-officer, who may find any person killing, injuring or capturing, or attempting to kill, injure or capture, any wild elephant, except in the cases mentioned in section 3, clauses (a) and (b), may require him to produce and show a license granted to him under this Act.

Any person who, on such request, wilfully refuses or is unable to produce and show such license as aforesaid, shall, in addition to any other punishment to which he may be liable under this Act, be punished with fine which may extend to one hundred rupees.

9. Limitation of prosecution. Every prosecution under this Act shall be commenced within six months from the commission of the offence in respect of which it is instituted.

10. Recovery of fees. The amount or value of any fee payable under any license granted under this Act may be recovered from the licensee as if it were an arrear of land-revenue.

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Date; 16-09-2024

[1]Subs. by Adaptation Order, 1937.

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THE ENEMY AGENTS ORDINANCE, 1943

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1. Short title, extent and commencement
2. Definitions
3. Penalty for aiding the enemy
4. Offences triable under this Ordinance
5. Appointment and jurisdiction of Special Judge
6. Transfer of cases from one Special Judge to another
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10. Hearing of proceedings in camera
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17. Power to make rules

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THE ENEMY AGENTS ORDINANCE, 1943

ORDINANCE No. I OF 1943

[9th *January*, 1943]

An Ordinance to provide for the trial and punishment of enemy agents and persons committing certain offences with intent to aid the enemy.

WHEREAS an emergency has arisen which makes it necessary to provide for the trial and punishment of enemy agents and persons committing certain offences with intent to aid the enemy;

Now, THEREFORE, in exercise of the powers conferred by section 72 of the Government of India Act, as set out in the Ninth Schedule to the Government of India Act, 1935 (26 Geo 5,c.2.), the Governor-General is pleased to make and promulgate the following Ordinance :—

1. Short title, extent and commencement.—(1) This Ordinance may be called the Enemy Agents Ordinance, 1943.

[1][(2) It extends to the whole of Pakistan and applies also—

(*i*) to all citizens of Pakistan and persons in the service of Government wherever they may be; and

(*ii*) to persons on board any ship or aircraft registered in Pakistan.]

(3) It shall come into force at once.

2. Definitions. In this Ordinance, unless there is anything repugnant in the subject or context,—

(a) "enemy" means any State at war with [2][Pakistan] ;

(b) "enemy agent" means a person, not operating as a member of an enemy armed force, who is employed by, or works for, or acts on instructions received from, the enemy.

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3. Penalty for aiding the enemy. Whoever is an enemy agent, or, with intent to aid the enemy, does, or attempts or conspires with any other person to do, any act which is designed or likely to give assistance to the naval, military or air operations of the enemy or to impede the naval, military or air operations of [3][the Armed Forces of Pakistan or the forces of a foreign power allied [2][with Pakistan] [3][* * *] or to endanger life], shall be punishable with death.

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[1]Subs by the Central Laws (Statute Reform) Ordinance, 1960 (XXI of 1960), s. 3 and 2nd Sch. (*with effect from the 14th October, 1955*).
[2]Subs. by the Federal Laws (Revision & Declaration) Act, 1951 (XXVI of 1951), s. 4 and 3rd Sch.
[3]Omitted by the Federal Laws (Revision and Declaration) Ordinance, 1981 (XXVII of1981), s. 3 and Sch., II.

4. Offences triable under this Ordinance.—(1) Any offence punishable under section 3 committed at any time after the 2nd day of September, 1939, whether committed before or after the commencement of this Ordinance, shall be triable under the provisions of this Ordinance.

(2) Where a person is charged before a Special Judge with an offence punishable under section 3, he may be charged with and tried at the same trial for any other offence with which he might, under the Code of Criminal Procedure, 1898 (V of 1898), be charged at one trial, and the procedure of this Ordinance shall apply to the trial of any such other offence.

5. Appointment and jurisdiction of Special Judges.—(1) For the trial of offences punishable under section 3, the [1][Federal Government] may appoint as Special Judges, having jurisdiction throughout [2][Pakistan], any persons who have acted for a period of not less than two years in the exercise of the powers of a Sessions Judge or an Assistant Sessions Judge under the Code of Criminal Procedure, 1898 (V of 1898) .

(2) A Special Judge shall try any offence punishable under section 3 which the [1][Federal Government] by general or special order in writing directs to be tried by him, and may hold his sittings for the trial of any case in any place fixed by the [1][Federal Government].

6. Transfer of cases from one Special Judge to another.— (1) The [1][Federal Government] may, at any stage of the proceedings before a Special Judge, transfer the case to another Special Judge.

(2) Notwithstanding anything contained in the Code of Criminal Procedure, 1898 (V of 1898), when a case is transferred under subsection (1), the Special Judge to whom the case is transferred shall not be bound to re-summon or re-hear the witnesses or any of them unless he is satisfied that such a course is necessary in the interests of justice.

7. Procedure of Special Judges.—(1) A Special Judge may take cognizance of an offence without the accused being committed to his Court for trial, and, in trying accused persons, shall follow the procedure prescribed by the Code of Criminal Procedure, 1898 (V of 1898), for the trial of warrant cases by Magistrates:

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Provided that a Special Judge shall ordinarily record a memorandum only of the substance of the evidence of each witness examined, may refuse to summon any witness if satisfied after examination of the accused that the evidence of such witness will not be material, and shall not be bound to adjourn any trial for any purpose unless such adjournment is in his opinion necessary in the interests of justice.

(2) In matters not coming within the scope of sub-section (1) the provisions of the Code of Criminal Procedure, 1898 (V of 1898), so far as they are not inconsistent with this Ordinance, shall apply to the proceedings of a Special Judge; and for the purposes of the said provisions the Court of the Special Judge shall be deemed to be a Court of Session.

8. Sentences by Special Judges. A Special Judge may pass any sentence authorised by law.

9. Review of convictions.— [3][(1)] If in any proceedings before a Special Judge—

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[1]Subs by the Federal Adaptation of Laws Order, 1975 (P. O. No. 4 of 1975), Art.2 and Table.
[2]Subs by the Central Laws (Statute Reform) Ordinance, 1960 (XXI of 1960), s. 3 and 2nd Sch. (*with effect from the 14th October, 1955*).
[3]Re-numbered by Ordinance No. XV of 1943.

(a) a person convicted is sentenced to death, or to transportation for life, or

(b) though no person is so sentenced, the Special Judge certifies that in his opinion the case has involved questions of special difficulty, whether of law or fact, or is one which for any other reason ought properly to be reviewed,

the proceedings shall be submitted for review by a person appointed in this behalf by the [1][Federal Government], which person shall be chosen from the Jugdes of a High Court in [2][Pakistan], and the decision of that person shall be final.

[3][(2) Where any proceedings are so submitted for review, [4][* * *] the Judge reviewing the proceedings may [4][* * *] exercise in his discretion any of the powers exercisable under section 439 of the Code of Criminal Procedure 1898 (V of 1898), by a High Court in the case of any proceeding to which the said section 439 refers:

[5][Provided that, where in the exercise of these powers the Judge reviewing the proceedings directs a re-trial of the accused, or directs further evidence to be taken, the reviewing Judge may direct the re-trial to be held or the further evidence to be taken by the Special Judge by whom the case was tried in the first instance, or by any other Special Judge, or by a Special Judge to be appointed for the purpose by the [1][Federal Government].]

(3) The person appointed under sub-section (1) to review the proceedings of a Special Judge may call for and examine the record of any proceedings before the Special Judge for the purpose of satisfying himself as to the correctness, legality or propriety of any finding, sentence or order recorded or passed and as to the regularity of any proceedings of the Special Judge, and may exercise in the case of proceedings the record of which has been so called for any of the powers which would have been exercisable by him in the case of such proceedings had they been submitted to him for review under sub-section (1).]

10. Hearing of proceedings in camera. If, as respects any proceedings before a Special Judge or before a Judge reviewing under section 9 the proceedings of a Special Judge, the Special Judge or reviewing Judge, as the case may be, is satisfied that it is expedient in the interests of the public safety or the defence of [2][Pakistan] so to do, such Judge may give directions that throughout or during any part of the proceedings such persons or classes of persons as the Judge may determine shall be excluded.

11. Limitation on appearance of Pleaders.— (1) In any proceedings before a Special Judge, and in proceedings before a Judge reviewing under section 9 the proceedings of a Special Judge when the reviewing Judge grants permission in this behalf, a person accused of an offence triable under this Ordinance may of right be defended by a pleader, but such pleader shall be a person whose name is entered in a list prepared in this behalf by the [1][Federal Government] or who is otherwise approved by the [1][Federal Government].

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[1]Subs. by the Federal Adaptation of Laws Order, 1975 (P. O. No. 4 of 1975), Art.2 and Table.
[2]Subs. by the Central Laws (Statute Reform) Ordinance, 1960 (Ordinance No. XXI of 1960), s. 3 and 2nd Sch. (*with effect from the 14th October, 1955*).
[3]Added by Ordinance No. XV of 1943.
[4]Rep. by the Federal Laws (Revision and Declaration) Act, 1951 (XXVI of 1951), s. 3 and 2nd Sch.
[5]Added by Ordinance No. XI of 1944, s. 3.

(2) A Special Judge, or a Judge reviewing under section 9 the proceedings of a Special Judge, may appoint a pleader whose name is entered in the list referred to in sub-section (1) or who is otherwise approved by the [1][Federal Government] to defend at any stage of the proceedings a person accused of an offence triable under this Ordinance who has not himself engaged a pleader.

(3) A Special Judge shall not be required to grant an adjournment for the purpose of securing the attendance of a pleader, if in the opinion of the Special Judge such adjournment would cause unreasonable delay in the disposal of the case.

12. Special rule of evidence. Notwithstanding anything contained in the Evidence Act, 1872 (I of 1872), when the statement of any person has been recorded by any Magistrate, such statement may be admitted in evidence in any trial before a Special Judge, if such person is dead or cannot be found or is incapable of giving evidence.

13. Special rule of procedure.—(1) When any accused in a trial before a Special Judge has by his voluntary act rendered himself incapable of appearing before the Court, or resists his production before it, or behaves before it in a persistently disorderly manner, the Court may, at any stage of the trial, by order in writing, made after such inquiry as it may think fit, dispense with the attendance of such accused for such period as it may think fit and proceed with the trial in his absence.

(2) Where a plea is required in answer to a charge from an accused whose attendance has been dispensed with under sub-section (1), such accused shall be deemed not to plead guilty.

(3) An order under sub-section (1) dispensing with the attendance of an accused shall not affect his right of being represented by a pleader at any stage of the trial, or being present in person, if he has become capable of appearing, or appears in Court and undertakes to behave in an orderly manner.

(4) Notwithstanding anything contained in the Code of Criminal Procedure, 1898 (V of 1898), no finding, sentence or order passed in a trial before a Special Judge shall be held to be illegal by reason of any omission or irregularity whatsoever arising from the absence of any or all of the accused whose attendance has been dispensed with under sub-section (1).

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14. Exclusion of interference of other Courts. Notwithstanding the provisions of the Code of Criminal Procedure, 1898 (V of 1898) , or of any other law for the time being in force, or of anything having the force of law by whatsoever authority made or done, there shall be no appeal from any order or sentence made or passed by a Special Judge, or a reviewing Judge under this Ordinance and, save as provided in this Ordinance, no Court shall have authority to revise such order or sentence or to transfer any case from the Court of a Special Judge, or to make any order under section 491 of the Code of Criminal Procedure, 1898 (V of 1898), or have any jurisdiction of any kind in respect of any proceedings under this Ordinance.

[2][**14A. Copies of proceedings.**—(1) Notwithstanding the provisions of the Code of Criminal Procedure, 1898 (V of 1898), or of any other law for the time being in force, or of anything having the force of law by whatsoever authority made or done, no person other than the accused or his pleader shall be entitled to be furnished with a copy of any part of the records of, or of any document relating to, any proceedings under this Ordinance.

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[1]Subs by the Federal Adaptation of Laws Order, 1975 (P. O. No. IV of 1975), Art. 2 and Table,
[2]Ins. by Ordinance No. XI of 1944, s. 4.

(2) Any such copy furnished to the accused or his pleader shall be kept by the person to whom it was furnished in his personal custody, and it shall be an offence punishable under section 16 for that person to show it to any person other than his pleader or his client as the case may be, or to divulge its contents except in the course of the proceedings for the purpose of which is was obtained.

(3) Any such copy shall be returned to the authority from which it was obtained within ten days of the conclusion of the proceedings for the purpose of which it was furnished, and any failure so to do shall be punishable with the punishment provided for an offence under section 16.]

15. Application of ordinary law. The provisions of the Code of Criminal Procedure, 1898 (V of 1898), and of any other law for the time being in force in so far as they may be applicable and in so far as they are not inconsistent with the provisions of this Ordinance, shall apply to all matters connected with, arising from, or consequent upon, a trial under this Ordinance.

16. Disclosure of information relating to proceedings under this Ordinance. Any person who, without the previous authorisation of the [1][Federal Government], discloses or publishes any information with respect to any proceedings or with respect to any person proceeded against under this Ordinance, shall be punishable with imprisonment for a term which may extend to two years or with fine or with both.

17. Power to make rules. The [1][Federal Government] may make rules providing for any matter necessary to carry into effect the purposes of this Ordinance.

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Date: 14-02-2025

[1]Subs by the Federal Adaptation of Laws Order, 1975 (P. O. No. IV of 1975), Art. 2 and Table.

THE ESSENTIAL PERSONNEL (REGISTRATION) ORDINANCE, 1948

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3. Liability to register at Employment Exchanges
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THE ESSENTIAL PERSONNEL (REGISTRATION) ORDINANCE, 1948

[1]Ordinance No. X of 1948

[17th February, 1948]

An Ordinance to provide for the compulsory registration of Essential Personnel at Employment Exchanges.

WHEREAS an emergency has arisen which renders it necessary to take power to require essential personnel to register at Employment Exchanges set up by the Government of Pakistan ;

NOW, THEREFORE, in exercise of the powers conferred by section 42 of the Government of India Act 1935, as adapted by the Pakistan (Provisional Constitution) Order, 1947, the Governor-General is pleased to make and promulgate the following Ordinance:—

1. Short title, extent and commencement.—(1) This Ordinance may be called the Essential Personnel (Registration) Ordinance, 1948.

(2) It extends to the whole of [2][* * *] Pakistan.

(3) It shall come into force at once.

2. Definitions. In this Ordinance, unless there is anything repugnant in the subject or context,

(a) "essential personnel" includes all persons normally [3][exercising or following any of the professions, occupations or employments] specified in Schedule 1 [2][and persons trained or qualified to exercise or follow any such profession or employment.]

[2][(b) "Employment Exchanges" means an Employment Exchange set up by the [4][Provincial Government].

(c) "Manager of an Employment Exchange" means the Officer-in Charge of an Employment Exchange and so appointed by the Government.

[3][(d) "Schedule" means a Schedule to this Ordinance.]

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[1]The Ordinance has been applied to Baluchistan, see Gaz. of P., 1952, Pt. I, p. 146; and extended to the Leased Areas of Baluchistan, by the Leased Areas (Laws) Order, 1950 (G.G.O. 3 of 1950).
It has been applied also in the Federated Areas of Baluchistan, see Gaz. of P., 1953, Pt. I, p. 152.
It has also been extended to ___
(i) the Baluchistan States Union, by the Baluchistan States Union (Federal Laws) (Extension) Order, 1953 (G.G.O. 5 of 1953); and
(ii) the Khairpur State, see the Khairpur (Federal Laws) (Extension) Order, 1953 (G.G.O. 5 of 1953); and
(iii) the State of Bahawalpur by the Bahawalpur (Extension of Federal Laws), Order, 1953 (G.G.O. 11 of 1953).
Also applied to PATA (Baluchistan + NWFP) by Reg. I of 1972, Art. 2 + sch.
This Ordinance has been amended in its application to the Province of West Pakistan by West Pakistan Ordinance No. 5 of 1965 (with effect from the 1st April, 1965).
The Ordinance has been and shall be deemed to have been brought into force in Gwadur, with effect from the 8th September, 1958, by the Gwadur (Application of Central Laws) Ordinance, 1960 (XXXVII of 1960), s. 2.
[2]Omitted, added and subs. by Ordinance No. XXXIII of 1960, ss. 2 and 3.
[3]Subs, and added by Act No. XXVIII of 1948, s. 2.
[4]Subs. by Central Adaptation Order of Laws 1964 (President's Order No. 1 of 1964).

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[1][3. Liability to register at employment exchanges.—(1) All essential personnel over the age of 18 and under the age of 60 years, residing in Pakistan, and not being employees of the [2][Federal] or any Provincial Government, shall be liable to register themselves at an Employment Exchange.

(2) Every person in charge of any institution which trains such essential personnel as aforesaid, or from where such personnel qualify, shall furnish to the Manager of the Employment Exchange concerned such information as he may from time to time require.

(3) All employers other than the [2][Federal Government] and Provincial Governments shall be liable to get all persons to whom this Ordinance applies and who are employed by them registered at an Employment Exchange, if such persons are not already so registered.

(4) Every person registered under this Ordinance shall notify any change of address, acquisition of new skills and change in employment status, at once to the Employment Exchange where he is registered.]

4. Place of Registration.—(1) All persons included within the definition of essential personnel shall register themselves at one of the Employment Exchanges detailed in Schedule III.

(2) In cases where it is not feasible for the essential personnel to call in person at the Employment Exchange to get registered they may submit by registered (acknowledgment due) post their particulars for registration on the form prescribed in Schedule II, to—

(a) the Manager, Employment Exchange within whose area they reside ; or

(b) the District Magistrate of the district in which they reside.

5. Registration Certificate.—(1) The Employment Exchange to which application is made shall issue within 10 days of the receipt of the application a registration certificate in the form prescribed in Schedule IV.

(2) When the application is made personally the Employment Exchange to which the application is made shall forthwith give to the applicant a memorandum as given in Schedule V acknowledging receipt of the application and specifying the time and date when the applicant should present himself to receive the registration certificate.

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(3) When the application is received by post the registration certificate shall be issued within 10 days by registered (acknowledgment due) post to the applicant.

(4) When the application is submitted to the District Magistrate/Deputy Commissioner, he shall then issue to the applicant by registered (acknowledgment due) post a memorandum as specified in Schedule VI acknowledging receipt of the application and shall forward the application to the Employment Exchange whose area covers the district concerned. On receipt of the application from the District Magistrate the Exchange shall register the applicant and issue a registration certificate in respect of the applicant in accordance with section 5 (1) above and forward the registration certificate to the District Magistrate who will then issue it to the applicant concerned.

[1]Subs. by Ordinance No. XXXIII of 1960, s. 4.
[2]Subs. by Federal Adaptation of Laws Order 1975 (President's Order No. 4 of 1975), Art. 2 and Table.

6. Penalties and Procedure.— [1][(1) Any person who, being within the age limits mentioned in [2][sub-section (1) of section 3] and normally exercising or following any profession, occupation or employment which is, in pursuance of the provisions of section 7, may be specified in Schedule I, fails without sufficient cause to apply for registration within two months of that profession, occupation or employment being so specified [2][and any person who otherwise contravenes the provision of section 3], shall be punishable with fine not exceeding five hundred rupees.

[2][Explanation.— The provisions of this sub-section shall apply—

(a) to any person normally exercising or following any profession, occupation or employment specified in Schedule I who—

(i) enters Pakistan with the intention of permanent residence therein and is within the age-limits mentioned in sub-section (1) of section 3, or

(ii) attains the age of eighteen years, or

(b) to any person who, with the intention of exercising or following such profession, occupation or employment, becomes qualified so to do and is within the said age-limits, as if for the date of specification the date of entry or attainment of that age or qualification, as the case may be, were substituted.]

[1][(3)] No Court shall take cognizance of the offence except on complaint lodged by or made on the authority of the [2][Regional Head of Employment Exchanges] of the Region in whose jurisdiction the offence is alleged to have been committed.

[3][**7. Powers to amend Schedules.** The [4][appropriate Government] may, by notification in the official Gazette, amend or alter any Schedule.]

[5][Explanation.— 'Appropriate Government' in relation to Schedules I and II means the Federal Government and the Provincial Government and, in relation to other Schedules, the Provincial Government].

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[1]Subs. and re-numbered by Act No. XXVIII of 1948, s. 3.
[2]Subs. by Ordinance No. XXXIII of 1960, s. 5.
[3]Subs. by Ordinance, No. XVII of 1949, s. 2.
[4]Subs. by Central Adaptation Order of Laws 1964 (President's Order No. 1 of 1964).
[5]Subs. by Federal Adaptation of Laws Order 1975 (President's Order No. 4 of 1975), Art. 2 and Sch.

SCHEDULE I

Schedule of Essential Personnel

1. Engineer (Civil).
2. Engineer (Electrical).
3. Engineer (Mechanical).
4. Engineer (Aeronautical).
5. Engineer (Wireless).
6. Engineer (Sound).
7. Engineer (Marine).

7A. [1][* * *]

8. Chemist.
9. Metallurgist.
10. Geologist.
11. Mineralogist.
12. Meteorologist.
13. Workshop Foreman.
14. Surgeon.
15. Physician.
16. Radiologist.
17. Pathologist.
18. Bacteriologist.
19. Dentist.
20. Public Health Officer.

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20A. [1][* * *]

20B. [1][* * *]

20C. [1][* * *]

20D. [1][* * *]

21. Nurse.

21A [1][* * *]

[1]Omitted by S.R.O No. 980 (I)/72, dated 20th Dec. 1972, see Gaz. of P., 1972 Ext. Pt. II, dated 25th Oct. 1972, p. 1000.

22. Veterinary Surgeon.

[1][23. Armourer.

24. Blacksmith.

25. Springsmith.

26. Heavy forge smith.

27. Drop stamper.

28. Boiler maker.

29. Boiler plater.

30. Riveter.

30A [2][* * *]

31. Bronzer.

32. Lacquerer.

33. Draughtsman (mechanical).

24. Die sinker.

35. Engine driver (steam).

36. Engine driver (internal combustion engines).

37. Fitter (heavy industrial machines).

38. Fitter (gauge and tool).

39. Instrument mechanic.

40. Machinist.

41. Mouldor.

42. Pattern maker.

43. Refrigerator mechanic.

44. Template maker.

45. Tool maker.

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[1]For addition of entries 23 of 80, see Gaz. of P., 1949, Pt. I, p. 58.
[2]Omitted by S.R.O., 980 (I)/72, dated 20th Oct., 1972 Ext. Pt. II dated 25th Oct., 1972, p. 1000. Engineering (Civil)

46. Welder (oxy-acetylene).

47. Welder (electrical).

48. Aircraft mechanic.

49. Aircraft fitter.

50. Precision grinder (optical).

Engineering (Power House)

51. Cable Joiner.

52. Electrician.

53. Linesman (overhead).

54. Main superintendent.

55. Meter reader.

56. Sub-station attendant.

57. Switchboard operator.

58. Wireman.

Engineering (Electrical)

59. Armature winder.

60. Electroplater.

61. Fitter.

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Engineering (Civil)

62. Draughtsman (architectural).

63. Surveyor.

64. Spray painter.

65. Plumber.

Miscellaneous

66. Cabinet maker.

67. Saddler.

68. Harness maker.

68A. [1][* * *]

69. Stenographer (having a speed of 80 words and above).

70. Lithographer.

71. Lithoprinter.

72. Boat builder.

73. Shipwright.

74. Telecommunication mechanic.

75. Crystal cutter (Telecommunications).

76. Coach builder (Railway).

77. Dipper checker (Petroleum storage and supply).

78 Fitter (Petroleum storage and supply).

79. Wireless operator.

80. Aircraft Pilot.]

[2][81. Tailors (Machine and hand).

82. Fire Engine Drivers.

83. Fire leaders.

84. Firemen.

85. Vehicle Mechanic.]

85A. [1][* * *]

85B. [1][* * *]

85C. [1][* * *]

85D. [1][* * *]

85E. [1][* * *]

[1][86. Radio Mechanic.

87. Foreman excavating machinery.

88. Draftsman topographical.

89. General outdoor mechanic operator.

90. Driver mobile crane.

91. Heavy motor or lorry driver.

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[1]Omitted and added by S.R.O. No. 980 (I)/72, dated 20th Oct., 1972, see Gaz. of P., 1972, Ext. Pt. II, p. 1000.
[2]Added by S. R. O. No. E. E. (A) 81 (I) see Gaz. of P., 1954, Pt. I, p. 334.

92 Mechanic (IC).

93. Ordnance artificer.

94. Operator excavating machinery.

95. Operator tele-printer.

96. Tin and copper-smith.

97 Anesthetist.

98. X-ray Technician.

99. Laboratory Technician.

100. Dispenser.

101. Radiographer.

102. Physiotherapist.

103. Operation Theatre-Attendant.

104. Turner.

105. Grinder (General Machine).

106. Barber.

107 Dhobi.

108. ENT Specialist.

109. Opthalmologist.

110. Dermatologist.

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111. Engineer (Electronics).

112. Mental Nursing Assistant.

113. Boiler Attendant.

114. Equipment & Boot Repairer.

115. Cook.

116. Operator Laundry Plant.

117. Storekeeper.

118. Sweeper.

119. Watchmaker.]

[1][120. Dressers. Veterinary.

121. Vulcanizer.

122. upholsterer.

123. Life Saving Equipment Worker.

124. Medical Assistant (Hygienist).

125. Radar Fitter.

126. General Duty Medical Officer.].

[2][Ep Category
Number

127. Foreman (Electrical).

128. Draughtsman Civil Engineering.

129. M.T. Fitter (Motor Veh Mech.).

130. Electrician (Auto).

131. Psychiatrist (Psychologist)].

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[1]Added by Manpower Division's Notification No. F. 4(1)/80 MP., dated 26th Feb. 1981, see Gaz. of P., I, p. 215.
[2]Added by Notification No. F. 2 (4)/ 79 MP I vol. V, dated 21992, See Gaz, of Pak., Ext. Pt III, dt. 141192, p. 219.

[1][SCHEDULE II

Registration Form for Essential Personnel

Industry code No	Name of Exchange	category and occupational code No.	S. No.	Year
1	2	3	4	5

ENTRIES ABOVE THIS LINE TO BE FILLED BY THE EMPLOYMENT EXCHANGE.

1. Name in full (Block letters)……
2. Father's Name ……
3. Home address……
4. Present address ……
5. Date (if available), year of birth……
6. Profession……
7. Actual occupation……
8. Religion ……
9. Employed/Un-employed/self-employed ……
10. Educational qualifications (Enclose attested copies of certificates, available):

    (a) General

    (b) Technical.

11. Languages : Read Speak Write

2. Apprenticeship.

    Name of Factory Shop in which trained From To

13. Research papers published.
14. Special/Additional qualifications or Courses.
15. Occupational record: —

Name and address of Factory/Institutions/ employers	Post	Date of joining	Date of leaving	Date Leave

The information recorded above is correct to the best of my knowledge.

Date 19. Signature

Note:— A separate sheet may be attached if the space provided for items 10, 11, 12, 13, 14 and 15 is not sufficient.

Signature.....
(Manager)

[1]Subs. by S.R.O. 1395 (K)/60, dated the 13th Oct., 1960, see Gaz. of P., 1960, P.I, p. 499.

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SCHEDULE III

List of Employment Exchangers together with their addresses and area served by them

S. No.	Employment Exchanges	Address	Area served
1	Regional Employment Exchanges, Karachi.	Valika Mahal, Jehangir Sehtna Road, Karachi.	Whole of the Federal Territory of Karachi suburbs excluding areas served by Employment Exchange Industrial Trading Estate, Karachi.
2	Employment Exchange, Industrial Trading Estate, Karachi.	Industrial Trading Estate, Manghopir Road, Karachi	In the south it will be bound by Harris Road, Starting from Karachi Health Association Building going eastward meet Embankment Road, Lea Market Quarters, Harichand Rai Road up to the Crossing of Harichang Rai Road and Sobhraj Chetumal Road from thence the boundary line will go along the north of River Lyari up to the Municipal boundary. On the east the boundary will statrt from the Kyc. Health Association Building and will go along the north nulla up to the sea beach. In the north it will go right up to the sea beach.
3	Employment Exchange Hyderabad.	41/526, Miani Rd. near Ritz Hotel, Hyderabad Contonment.	Hyderabad and Khairpur Divison.
4	Employment Exchange, Quetta.	Barrack No. 2021 Police Line, Jail Road, Quetta.	Quetta and Kalat Division.

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5	Employment Exchange, Multan.	Sindhu Hessam Road, near Chowk Nawan Shaher, Multan.	Bahawalpur Division and the District of Multan.
6	Employment Exchange, [1][Sahiwal].	Station Road, Opposite General Post Office, [1][Sahiwal].	District of [1][Sahiwal].
7	Regional Employment Exchange, Lahore.	34, Lawarence Road, Lahore	Districts of Lahore, Sheikhupura.
8	Employment Exchange, Sialkot.	Sufaid Kothi, Paris Road, Sialkot.	District of Sialkot.
9	Employment Exchange, [1][Faisalabad].	District Board Sarai, [1][Faisalabad].	Districts of [1][Faisalabad and Jhang
10	Employment Exchange, Gujranwala.	Road No. 35, Satellite Town, Gujranwala	District of Gujranwala.
11	Employment Exchange, Sargodha.	8A, New Civil Line, Haripur Road, Sargodha.	Districts of Sargodha and Mianwali.
12	Employment Exchange, Jhelum.	Lodhi Building, Tallianwala, Road Jhelum.	Districts of Jhelum and Gujrat
13	Regional Employment Exchange, Rawalpindi.	145, Murree Road, Rawalpindi.	Districts of Rawalpindi and Campbellpur.
14	Employment Exchange, Peshawar.	4, The Mall, Peshawar.	Districts of Peshawar, Mardan and Hazara and the adjoining special Areas.
15	Employment Exchange, Kohat.	1, Hangu Road, Kohat.	Districts of Kohat, Bannu and D.I. Khan and the adjoining Special Areas
16	[2][* * *]		
17	[2][* * *]		
18	[2][* * *]		
19	[2][* * *]		
20	[2][* * *]		

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SCHEDULE IV

[2][Government of ……
(Name of the Province)
Department of ……...
(Name of the department concerned)

Directorate of ……..... (Name of directorate concerned)]

[1]Subs. by the Federal Laws (Revision and Declaration) Ordinance No. XXVII of 1981, s. 2 and II Sch.
[2]Omitted and subs. by Federal Adaptation of Laws Order 1975 (President's Order No. 4 of 1975), Art. 2 and Sch.

Employment Exchange

ESSENTIAL PERSONNEL REGISTRATION CERTIFICATE

[Vide Section 5 (1) of Ordinance No. X of 1948]

It is hereby certified that Mr…….. son of Mr. …….residing at…….. was registered at this Employment Exchange on……. [1][in the category of essential personnel] and that his registration number is……..... Employment Exchange, Signature……. ……. (Manager) Dated ……. 194 .

SCHEDULE V

[2][Government of …….
Name of the Province
Department of…….
(Name of the Department concerned)
Directorate of ……
(Name of the Directorate concerned)]

No…….. Employment Exchange, ……
Dated …… 194

MEMORANDUM

[*Vide* section 5 (2) of Ordinance No. X of 1948]

The receipt of your application dated……for registration at this office [3][in the category of essential personnel] in accordance with section 4(1) of Ordinance, No. X of 1948, is hereby acknowledged.

2. You are requested to call at this office on …… at ……. For receiving your registration certificate. You should bring this memorandum with you.

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Signature…….

(Manager)

To Mr…….

……

…….

[1]Subs. by the Government of Pakistan, Ministry of Labour Notification. No. EE (A) 81 (1), dated the 27th December, 1954, see Gaz. of p., 1954, pt. I, P. 335.
[2]Amended by Federal Adaptation of Laws Order 1975 (President's Order No. 4 of 1975), Art. 2 and Sch.
[3]Subs. by the Government of Pakistan, Ministry of Labour Notification. No. EE (A)81 (1), dated the 27th Dec., 1954, see Gaz. of P., 1954, Pt. I, p. 335.

SCHEDULE VI

Reference No. …… ……..Office of the District Magistrate/Deputy Commissioner.…. Dated……. 194.

MEMORANDUM

[*Vide* section 5(4) of Ordinance No. X of 1948]

The receipt of your application dated …… for registration at an Employment Exchange as an essential personnel in accordance with section 4(1) of Ordinance, No. X of 1948, is hereby acknowledged.

2. On receipt of the registration certificate from the Employment Exchange it will be forwarded to you by registered (acknowledgement due) post.

3. Please quote the above reference number in future correspondence

Signature……..

Designation……..

To Mr ……

….……

….……

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RGN Date: 09-08-2024

THE ESSO UNDERTAKINGS (VESTING) ACT, 1976.

CONTENTS

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2. Definitions
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18. Removal of doubts

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21. *Repeal*

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THE ESSO UNDERTAKINGS (VESTING) ACT, 1976.

[1]Act No. LXXIX OF 1976

[*27th December, 1976*]

An Act to provide for vesting in the Federal Government of certain undertakings of Esso Eastern Inc. in Pakistan.

WHEREAS it is expedient to provide for vesting in the Federal Government of certain undertakings of Esso Eastern Inc. in Pakistan and for matters connected therewith or ancillary thereto;

AND WHEREAS Esso Eastern Inc., a foreign company, has approached the Federal Government for vesting of certain of its undertakings in Pakistan in the Federal Government;

AND WHEREAS the scope of such vesting and the amount and manner of the payment to be made to Esso Eastern Inc. for such undertakings has been agreed upon between the Federal Government and Esso Eastern Inc.;

It is hereby enacted as follows:—

1. Short title, extent and commencement.—(1) This Act may be called the Esso Undertakings (Vesting) Act, 1976.

(2) It extends to the whole of Pakistan.

(3) It shall come into force at once.

2. Definitions.— In this Act, unless there is anything repugnant in the subject or context,—

(a) "commencing day" means the day on which this Act comes into force;

(b) "Government company" means a company directly or indirectly owned or controlled by the Federal Government in which the Esso undertakings are vested by notification under sub-section (1) of section 5;

(c) "Esso" means Esso Eastern Inc., incorporated under the laws of the State of Delaware in the United States of America, having its principal office at 2401 South Gessner, City of Houston, State of Texas, in the United States of America, and having a branch in Pakistan;

(d) "Esso undertakings" means the business in Pakistan of Esso of purchasing, storing, distributing, blending, marketing and selling of refined petroleum products, of lubricants and of chemical products, and includes—

[1]For Statement of Objects and Reasons, *see* Gaz., of P., 1976, Ext., Pt. Ill, p. 1218.

(i) all assets, rights, powers, authorities and privileges and all property, movable and immovable, book-debts, cash balances, reserves, provisions and investments pertaining to such business, and all other rights and interests in or arising out of such property, in Pakistan, as were, immediately before the commencing day, in the ownership, possession, power or control of Esso;

(ii) all books of accounts, registers, records and all other documents of Whatever nature pertaining to such business in Pakistan, as were, immediately before the commencing day, in the possession, power or control of Esso;

(iii) all debts, liabilities and obligations of whatever kind in Pakistan pertaining to such business, as were immediately before the commencing day, subsisting against Esso;

(iv) all liabilities and entitlements of Esso undertakings for amounts payable to and recoverable from any other businesses or undertakings of Esso in Pakistan which, immediately before the commencing day, were subsisting on the basis of moneys pertaining to or arising out of any other businesses or undertakings of Esso in Pakistan which were utilized for the purposes of Esso undertakings being treated as liabilities and moneys pertaining to or arising out of Esso undertakings which were utilized for the purposes of any other businesses or undertakings of Esso in Pakistan being treated as entitlements;

(v) all liabilities and entitlements of the Esso branch in Pakistan for amounts payable to and receivable from the principal office of Esso in the United States of America which, immediately before the commencing day, were subsisting on account of products and services pertaining to Esso undertakings;

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(vi) all liabilities and obligations of Esso for the payment of pensions to such of its former employees, or their personal representatives, who were, immediately before the commencing day, entitled to receive pensions on account of the past service of such former employees with Esso in Pakistan;

(vii) all contracts and agreements pertaining to Esso undertakings, including the Sale and Purchase Agreement dated the first day of January, 1976, between Pakistan Refinery and Esso and the Agreements between Burmah Shell Oil Storage and Distributing Company of Pakistan Limited, Standard-Vacuum Oil Company and Caltex Oil (Pakistan) Limited relating to the Joint Hydrant System at the Karachi Airport;

(viii) the profit or loss arising out of any Esso undertakings during the period between the first day of January, 1976, and the close of business on the day immediately preceding the commencing day;

(ix) all liabilities of Esso for taxes and surcharges thereon leviable on or in relation to the income, profits or gains of Esso arising out of any Esso undertakings up to and inclusive of the year of account ending the thirty-first day of December, 1975;

(x) all entitlements of Esso to credit or refund of taxes or any payments made for or in respect of any assessment or liability under the Income-tax Act, 1922 (XI of 1922), relating to any income, profits or gains of Esso arising out of any Esso undertakings up to and inclusive of the year of account ending the thirty-first day of December, 1975;

but does not include—

(1) the business of Esso in Pakistan relating to natural gas and crude oil;

(2) the corporate name, trading styles and trade and service names, marks and other insignia used by Esso, any trade marks registered by Esso in Pakistan, or any right of Esso to use any trade mark registered in Pakistan by Exxon Corporation, a corporation incorporated in the State of New Jersey, United States of America, and having its principal office in New York, State of New York, United States of America;

(3) any patent or design registered in Pakistan in the name of Esso or any affiliate of Esso;

(4) any confidential and proprietary information and material or information and material pertaining to trade secrets belonging to Esso or procured by Esso for use in connection with Esso undertaking;

(5) the business and any assets of Esso situated in the territories which immediately before the sixteenth day of December, 1971, constituted the Province of East Pakistan, and any claims by or against Esso and any receivables and payables of Esso pertaining to any business at any time carried on by Esso in such territories;

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(6) the Agreement dated the fifteenth day of September, 1976, between the President of Pakistan and Esso;

(7) the policies of insurance issued in Pakistan by New Hampshire Insurance Company of Manchester, New Hampshire, U.S.A., in favour of Esso;

(8) the benefits of any policies of insurance available to Esso in connection with the supply in Pakistan of aviation fuels and lubricants to international airlines; or

(9) any contracts entered into by Esso for the delivery of aviation fuels and lubricants outside Pakistan to aircraft operated by the Pakistan International Airlines Corporation;

(e) "Pak-Stanvac Petroleum Project" means the joint exploration and production arrangements created by the Memorandum of Agreement between Esso under its former name of Standard-Vaccum Oil Company and the Governor-General of Pakistan, dated the 24th September, 1954, as amended; and

(f) "Pakistan Refinery" means Pakistan Refinery Limited, a company incorporated in Pakistan under the Companies Act, 1913 (VII of 1913) and having its registered office at Korangi Creek Road, Karachi.

3. Act to override other laws.— This Act shall have effect notwithstanding anything contained in any other law for the time being in force or in any instrument having effect by virtue of any law other than this Act and notwithstanding any decree or order of any court, tribunal, commission or other authority.

4. Vesting of Esso undertakings.—(1) As from the commencing day, the Esso undertakings, and all rights, titles and interests therein, shall stand transferred to and vest in the Federal Government.

(2) All deeds, bonds, contracts, agreements, powers-of-attorney, grants of legal representation and other instruments of whatever nature in relation to Esso undertaking subsisting and having effect immediately before the commencing day to which Esso is a party or which are in favour of Esso shall be of full force and effect against or in favour of the Federal Government and may be enforced and acted upon as fully and effectively as if references in such deeds, bonds, contracts, agreements, powers, grants and instruments to Esso were references to the Federal Government.

(3) All suits, appeals and other legal proceedings instituted by or against Esso for the purpose of, or in relation to, Esso undertakings, and pending immediately before the commencing day, shall be deemed to be suits, appeals and legal proceedings by or against the Federal Government and the same shall not abate, be discontinued or be in any way prejudicially affected by reason of the vesting of Esso undertakings, or of anything contained in this Act, but the suit, appeal or other proceeding may be continued, prosecuted and enforced by or against the Federal Government.

(4) where any property is held by Esso for the purpose of or in relation to Esso undertakings under any lease or licence or under any right of tenancy or occupancy, the Federal Government shall be deemed to have become the lessee, licencee, occupant or tenant, as the case may be, in respect of such property as if the lease, licencee, right of occupancy or tenancy had been granted to the Federal Government and thereupon all rights under such lease, licence, occupancy or tenancy, including any right of renewal thereof, shall be deemed to have vested in the Federal Government.

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(5) The profit or loss arising during the period between the first day of January, 1976, until the close of business on the day immediately preceding the commencing day out of any business comprised in Esso undertakings shall be deemed to be the profit or loss of the Federal Government and such profit or loss shall not be treated as accruing or arising or as having been received, whether actually or nationally, by Esso for any purpose including, the computation of Esso's taxable income for the year 1976 or any other period for purposes of assessment of taxes and surcharges thereon levied on or in relation to income, profits or gains.

5. Vesting in a Government company.—(1) The Federal Government may, by notification in the official Gazette, direct that the Esso undertakings shall stand transferred to and vest in the Government company on such day, not being a day earlier than the commencing day, as may be specified in the notification.

(2) Where Esso undertakings vest in the Government company under sub-section (1), the Government company shall, on and from the day of such vesting, be deemed to have become the owner, tenant, occupant, lessee or licence, as the case may be, in relation to Esso undertakings, and all the rights and liabilities of the Federal Government in relation to Esso undertakings shall, on and from the day of such vesting, be deemed to have become the rights and liabilities, respectively, of the Government company.

(3) Where Esso undertakings vest in the Government company, under sub-section (1), all officers and employees transferred to the Federal Government under sub-section (1) of section 10 shall, on and from the day of such vesting, stand transferred to the Government company, and the provisions of sub-sections (2), (3), (4) and (5) of section 4, sections 6 and 7, sub-section (5) of section 10 and sections 11, 12, 13, 15 and 17 shall apply to the Government company as they apply to the Federal Government and, in the application of the said sections for the purposes of this section, a reference to the Federal Government shall be construed as a reference to the Government company.

6. Contracts.—(1) Every contract referred to in sub-clause (vii) of clause (d) of section 2 and entered into by Esso for any service, sale or supply in Pakistan or abroad and in force immediately before the commencing day shall, unless terminated under sub-section (2) within one year from the commencing day, continue to be of full force and effect against or in favour of the Federal Government.

(2) The Federal Government may, if it is satisfied that any contract referred to in sub-section (1) is unduly onerous or is detrimental to the interests of the Federal Government, by order in writing, either terminate such contract or make such alterations or modifications therein as it may think fit:

Provided that the Federal Government shall not terminate any contract or make any alteration or modification therein except after giving to the parties to the contract a reasonable opportunity of being heard and except after recording its reasons for such termination, alteration or modification, as the case may be.

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7. Lease.— On the expiry of the term of any lease, licence or tenancy referred to in sub-section (4) of section 4, such lease, licence or tenancy shall, if so desired by the Federal Government, be renewed on the same terms and conditions on which the lease, licence or tenancy was held by Esso immediately before the commencing day.

8. Re-organization of Government company.—(1) If the Esso undertakings are vested in a Government company under sub-section (1) of section 5, the Federal Government may direct the Board of Management constituted under the Marketing of Petroleum Products (Federal Control) Act, 1974 (XVII of 1974), to draw up a plan for the re-organization of the company with a view to increasing its efficiency and rationalising its operations, hereafter in this section referred to as the re-organization plan.

(2) The re-organization plan may include provision for amalgamation of the Government company with any one or more managed companies under the Marketing of Petroleum Products (Federal Control) Act, 1974 (XVII of 1974), and may provide for a scheme for the re-construction of the Government company or such company or companies or amalgamation of the Government company with any one or more such company or companies and such scheme may provide for

all or any of the matters contained in section 153 or section 153B of the Companies Act, 1913 (VII of 1913), or for alteration of share capital or loan structure and alteration of existing, or adoption of fresh, memorandum or articles of association of such companies.

(3) The re-organization plan shall be submitted to the Federal Government for approval and shall be simultaneously published in the official Gazette accompanied by a certified statement showing the value of the holdings of the shares of the Federal Government in the companies covered by the plan on the date of the submission of the plan, and, from the date of such submission, dealings in shares of the companies covered by the plan in any of the stock exchanges shall remain suspended until the Federal Government has approved the re-organization plan.

(4) The re-organization plan shall be implemented and shall take effect in such manner and at such time and with such modification as may be approved by the Federal Government.

9. Payment.—The Federal Government shall pay Esso for Esso undertakings on the commencing day the sum set forth in the Agreement dated the fifteenth day of September, 1976, between the President of Pakistan and Esso, and such payment shall be made in the currencies and in the manner provided in the said Agreement.

10. Provisions relating to officers and other employees of Esso undertakings.— (1) Except as otherwise agreed between the Federal Government and Esso, every whole time officer or other employee of Esso who was, immediately before the commencing day, employed by Esso in Pakistan in connection with Esso undertakings, and every such whole time officer or other employee of Esso in Pakistan who was, immediately before the commencing day, temporarily holding any assignment outside Pakistan, shall, on the commencing day, become an officer or other employee, as the case may be, of the Federal Government and shall hold office on the same terms and conditions and with the same rights to pension, gratuity and other matters as would have been admissible to him if this Act had not come into force and shall continue to do so unless and until his employment by the Federal Government is terminated or until his remuneration and conditions of service are altered by the Federal Government.

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(2) Any officer or employee who becomes an officer or employee of the Government company under sub-section (3) of section 5 may be transferred by the Federal Government to any other corporation, company or industrial unit controlled by it, and shall hold office therein on such terms and conditions as are not less favourable than those to which he was entitled immediately before such transfer.

(3) Any officer or employee who becomes an officer or employee of the Government company under sub-section (3) of section 5 or is transferred under sub-section (2) shall not be entitled to any compensation or to the designation which he was holding immediately before the commencing day or on the date of such transfer, as the case may be, and no claim for such compensation or designation shall be entertained by any court, tribunal or other authority.

(4) Notwithstanding anything contained in any agreement or any law for the time being in force, and notwithstanding any decree, order, award or direction of any court, tribunal, arbitrator, commission or other authority, the transfer of the services of any officer or other employee under sub-section (1) shall not entitle any such officer or other employee to any payment, whether by

way of separation benefits, compensation, gratuity or otherwise, by reason only of his ceasing to be an employee of Esso, and no proceedings for the declaration, recognition, quantification or enforcement of any such entitlement or payment, whether filed before, on or after the commencing day, shall be adjudicated upon or otherwise entertained by any court, tribunal, arbitrator, commission or other authority.

(5) Where any officers or employees have become officers or employees of the Federal Government under sub-section (1), the Federal Government may, for the purpose of rationalising the pay scales of such officers or employees or for any other good and adequate reason, alter the terms and conditions of service of such officers or employees as to their remuneration in such manner as it thinks fit; and if the alteration thus made is not accepted in writing by the officer or employee concerned within such period as may be specified, which period shall not be less than thirty days, he shall be deemed to have resigned from service on the expiry of such period, and notwithstanding anything contained in any other law, or in any agreement or in any decree, order, award, or directions of any Court, arbitrator, Commission or other authority, or in any conditions of service, he shall only be entitled to benefits payable on resignation and not termination of employment.

(6) Where any question arises as to whether any person was immediately before the commencing day a permanent officer or other employee of Esso for the purpose of or in relation to Esso undertakings, the question shall be referred to the Federal Government whose decision thereon shall be final.

11. Provident Fund.—(1) The moneys and investments in the provident fund established by Esso for the benefit of the persons employed by it in Pakistan shall, on the commencing day, stand transferred to and vest in the Federal Government free from any trust that may have been constituted by Esso in respect thereof, and the trustees of the provident fund shall, as from the commencing day, stand discharged from the trust, expect as respects things done or omitted to be done before the commencing day.

(2) The Federal Government shall cause the firm of chartered accountants in Pakistan agreed with Esso to determine as of the day immediately preceding the commencing day the contributions to the provident fund of such officers and other employees of Esso as are excepted under sub-section (1) of section 10 by agreement between the Federal Government and Esso and the contributions of Esso to the provident fund in respect of such officers and employees, and the interest due on all such contributions, and within thirty days of the commencing day the Federal Government shall—

(a) pay to the new trustees of the provident fund to be appointed by Esso the amount of all such contributions and interest; and

(b) pay and transfer the balance of the moneys and investment then remaining to the trustees of the trust or trusts referred to in sub-section (3).

(3) The Federal Government shall, as soon as may be after the commencing day, constitute, in respect of the balance of moneys and investments referred to in clause (b) of sub-section (2) one or more trusts having such objects as in the circumstances may be practicable so, however, that the rights and interests of the beneficiaries under the trust created by Esso are not in any way prejudiced or diminished:

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Provided that the Federal Government may not constitute any new trust if a suitable trust already exists for the benefit of the officers and employees for whose benefit a trust is to be created and may transfer the balance of the said moneys and investments to the existing trust.

(4) The Federal Government may, by order, vest in the trustees of the trust or trusts referred to in sub-section (3) all collateral securities assigned to the trustees of the provident fund mentioned in sub-section (1) by officers or employees whose services stand transferred to the Federal Government under subsection (1) of section 10.

12. Delivery of possession of vested property.—(1) Where any property or other assets stand transferred to and vested in the Federal Government under this Act, every person in whose possession, custody or control any such property or assets (including books, documents, or other papers relating to Esso undertakings) may be, shall be liable to account for such property or assets and shall deliver the same to the Federal Government upon demand.

(2) Without prejudice to the provisions of sub-section (1), the Federal Government may take all such steps as may be necessary to take possession or assume control of the properties, assets, books, documents and other papers referred to in that sub-section.

13. Penalty. Any person who—

(a) wrongfully obtains possession of, or retains, or having in his possession, custody or control, wrongfully withholds, any property or other assets transferred to and vested in the Federal Government under this Act; or

(b) having in his possession, custody or control any book, register, document or other papers relating to Esso undertakings, wilfully withholds or fails to furnish or deliver the same to the Federal Government,

shall he punishable with imprisonment for a term which may extend to five years, or with fine which may extend to fifty-thousand rupees, or with both.

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14. Offences by companies.— Where an offence under this Act has been committed by a company, every person who, at the time the offence was committed was in charge of, and was responsible to, the company for the conduct of its business, as well as the company, shall be deemed to be guilty of the offence and shall be liable to be proceeded against and punished accordingly:

Provided that nothing contained in this section shall render any such person liable to any punishment, if he proves that the offence was committed without his knowledge or that he had exercised all due diligence to prevent the commission of such offence.

15. Protection of action taken in good faith.— No suit prosecution or other legal proceeding shall lie against the Federal Government or any person for anything which is in good faith done or intended to be done under this Act.

16. Cognizance of offences.— Notwithstanding anything contained in the Code of Criminal Procedure, 1898 (Act V of 1898), no court shall take cognizance of any offence under this Act except on a complaint in writing made by or under the authority of the Federal Government.

17. Savings.—(1) Nothing contained in this Act shall affect any undertaking or business of Esso in connection with the exploration of petroleum, the production, refining, treating and transportation of natural gas and crude oil, and the purchase, distribution, marketing and selling of natural gas and crude oil.

(2) In particular, and without prejudice to the generality of the provisions of sub-section (1), nothing contained in this Act shall affect—

(a) any share held by Esso in the equity capital of the Pakistan Refinery, or any deed, bond, agreement other than the Agreements referred to in sub-clause (vii) of clause (d) of section 2, power-of-attorney, proxy, grant of legal representation or other instrument of whatever nature pertaining to the Pakistan Refinery, including specifically but without limitation the agreement entitled "Refinery Agreement" between the President of Pakistan, the Burmah Oil Company Limited, California Texas Oil Corporation, the Shell Petroleum Company Limited and Esso under its former name of Standard-Vacuum Oil Company, as supplemented by the Refinery letter Agreements Nos. 1, 2 and 3 and by the Tanker Letter Agreement, all dated the 28th November, 1959, and by the Ministry of Industries and Natural Resources, Government of Pakistan, letter No. P-III-1 (49)61, dated the 9th November, 1962, and the agreement between the Government of Pakistan and the parties to the Refinery Agreement, including the Pakistan Refinery, dated the 21st November, 1975;

(b) any part of the interest held by Esso in the Pak-Stanvac Petroleum Project, in any licence or lease issued pursuant thereto or in any asset belonging to or held for the benefit of the participants in the Pak-Stanvac Petroleum Project;

(c) the assets identified in the second Schedule to the Agreement referred to in section 9;

(d) any contracts, agreements, assets, rights, powers, authorities and privileges, or any property movable or immovable, book-debts, cash balances, reserves, provisions or investments pertaining to any undertaking or business mentioned in sub-section (1), or any other rights and interest in or arising out of such property, as are in the ownership, possession, power or control of Esso;

(e) any books of account, registers, records or any other documents of whatever nature pertaining to any undertaking or business mentioned in sub-section (1);

(f) any liability of Esso for taxes and duties payable in relation to production, sale, import, export or other dealings pertaining to any undertaking or business mentioned in sub-section (1), or any entitlement of Esso to credit for or refund of payments made for or in respect of any such liability;

(g) any liability of Esso for payment of annuities pensions, gratuities or other separation benefits to such officers and employees of Esso as are excepted under sub-section (1) of section 10 by agreement between the Federal

Government and Esso, or any liability or entitlement of Esso for sums payable to or receivable from such officers and employees;

(h) any other liability, indebtedness or obligation of Esso of whatever kind pertaining to any undertaking or business mentioned in sub-section (1);

(i) the claim or entitlement, if any, of Esso to payment out of the moneys declared and paid to the Administrator under the Abandoned Properties and Management Act, 1975 (XX of 1975), by the trustees of the provident fund established by Esso for the benefit of its employees;

(j) any suit, application or other legal proceeding instituted against Esso relating to the inland mechanically propelled vessel M.V Esso Ark registered in the territories which immediately before the sixteenth day of December, 1971, constituted the Province of East Pakistan;

(k) any provisions or allocations of money made in the accounts of the Esso branch in Pakistan for liabilities accrued or accruing in respect of any period preceding the commencing day on account of—

(i) any liability indebtedness or obligations of the kind mentioned in clause (f), (g), or (h) or sub-clause (5) of clause (d) of section 2; or

(ii) any profits arising from any undertakings or business mentioned in sub-section (1).

(3) The payment of the amount determined in accordance with section 9 to Esso for Esso undertakings shall not release the Federal Government from payment to Esso, or release Esso from payment to the Federal Government, of the net amount of the accounts pertaining to Esso undertakings—

(i) for sums payable to and receivable from the Esso branch in Pakistan from and to Esso abroad and Esso affiliates (that is Exxon Corporation or any company of which Exxon Corporation controls directly or indirectly, fifty per cent or more of the voting shares) with respect to products and services; and

(ii) for sums payable to and receivable from Esso undertakings from and to the other business and undertakings of Esso in Pakistan with respect to the moneys pertaining to or arising out of the one being utilized for the purposes of the other.

18. Removal of doubts.—(1) For the removal of doubts, it is hereby declared that the provisions of section 4 shall apply to the extent to which any property appertains to the Esso undertakings and to the rights, powers, debts, liabilities and obligations of Esso comprised in Esso undertakings referred to in clause (d) of section 2, and to contracts, agreements and other instruments made by Esso in Pakistan in relation to Esso undertakings, and to legal proceedings relating to those matters pending in any court or tribunal in Pakistan.

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(2) If any question arises, otherwise than as between the Federal Government or the Government company and Esso or between Esso and any other persons, as to whether any property in Pakistan appertains, on the commencing day, to Esso undertakings, or whether any leases, licences, rights, powers, debts, liabilities or obligations were vested under this Act or whether any contract, agreement or other instrument was made by Esso for the purposes of Esso undertakings, or whether any documents relate to those purposes, the question shall be referred to the Federal Government which shall, after giving an opportunity of being heard to the persons interested in the matter, decide it in such manner as it may think fit.

19. Power to make rules.—The Federal Government may, by notification in the official Gazette, make rules for carrying out the purposes of this Act.

20. Power to remove difficulties.— If any difficulty arises in giving effect to the provisions or carrying out the purposes of this Act, the Federal Government may make such orders as it may consider necessary to remove the difficulty:

Provided that no such power shall be exercised after the expiry of one year from the commencement of this Act.

21. [*Repeal.*]— *Omitted by the Federal Laws (Revision and Declaration) Ordinance, 1981 (XXVII of 1981), s. 3 and Sch., II.*

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THE EXCLUSIVE FISHERY ZONE (REGULATION OF FISHING) ACT, 1975.

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THE EXCLUSIVE FISHERY ZONE (REGULATION OF FISHING) ACT, 1975.

[1]ACT No. XXXII OF 1975

[1st March, 1975]

An Act to provide for the regulation of fishing within the exclusive fishery zone of Pakistan.

WHEREAS it is expedient to provide for the regulation of fishing within the exclusive fishery zone of Pakistan and for matters ancillary thereto;

It is hereby enacted as follows:—

1. Short title, extent, application and commencement.— (1) This Act may be called the Exclusive Fishery Zone (Regulation of Fishing) Act, 1975.

[2][(2) It extends to the whole of Pakistan and to waters within the zone].

(3) It applies to all fishing crafts within the Zone and to all persons on board such fishing crafts.

(4) It shall come into force at once.

2. Definitions. In this Act, unless there is anything repugnant in the subject or context,—

(a) "fish" includes molluscs, crustaceans, kelp and other marine animals;

(b) "Fishery Officer" means any person who is authorised by the Federal Government, by notification in the official Gazette, to exercise or perform any of the powers or functions of Fishery Officer under this Act;

(c) "fishing" means taking or catching of fish within the Zone by any means;

(d) "fishing craft" includes every vessel of whatever description and size and in whatever way propelled or moved which is used in fishing or the transport or processing thereof;

(e) "fishing gear" includes all appliances used for fishing;

(f) "licencing authority" means any person authorized by the Federal Government, by notification in the official Gazette, to issue licenses under this Act;

(g) "prescribed" means prescribed by rules; [3]*

(h) "rules" means rules made under this Act [4][; and].

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[1]For Statement of Objects and Reasons, see Gaz. of P., 1974, Ext., Pt. III, p. 600.

[2]Subs. by the Exclusive Fishery Zone (Regulation of Fishing) (Amdt.) Ordinance. 1983(29 of 1983), s. 2.

[3]Omitted by the Exclusive Fishery Zone (Regulation of Fishing) (Amdt.) Ordinance, 1983 (29 of 1983) s. 3.

[4]Subs. *ibid*..

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[1][(i) "Zone" means the Exclusive Economic Zone specified in section 6 of the Territorial Waters and Maritime Zones Act, 1976 (LXXXII OF 1976)].

3. Fishing without licence prohibited. No person shall, for the purpose of fishing, operate a fishing craft or use any kind of fishing gear within the Zone except under the authority of a licence granted by the licencing authority nor otherwise than in accordance with the terms and conditions of such licence.

4. Fishing craft subject to navigational regulations.— (1) Every fishing craft shall be subject to any law relating to navigation for the time being in force.

(2) The location of nets and traps set by a fishing craft shall be prominently displayed by such means as may be prescribed.

(3) Every fishing gear shall be clear of the navigation channel and specified routes of commercial vessels.

5. Dynamiting and poisoning prohibited. No person shall use dynamite or any other explosive substance or poison, lime or noxious material for fishing or destroying fish in the Zone.

6. Closed season and prohibited area. Notwithstanding anything contained in this Act, the Federal Government may, by notification in the official Gazette, declare any period to be period during which, and any area to be an area within which, fishing of all or any specified description of fish shall be prohibited in the Zone.

7. Power to search. Any Fishery Officer may search any fishing craft or landing ground in or on which he has reason to believe to be concealed any fish caught or taken, or anything used, in contravention of any provision of this Act or the rules.

8. Seizure and disposal.—(1) If any Fishery Officer has reason to believe that any fish has been caught or taken in contravention of any provision of this Act or the rules, or that any fishing craft and fishing gear has been used for such fishing, he may arrest without warrant the owner or the person in charge of the vessel and seize such fish.

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(2) Every officer making an arrest under sub-section (1) shall, without unnecessary delay, take or send the person arrested before a Magistrate having jurisdiction in the case or before the officer in charge of the nearest police-station; and thereupon the provisions of the Code of Criminal Procedure, 1898 (Act V of 1898) applicable in respect of a person who, having been arrested without warrant, has been taken or sent before a Magistrate or an officer in charge of a police-station shall apply to him.

(3) Any fish seized under sub-section (1) shall be disposed of in accordance with the decision of the court before which the owner or person in charge of the fishing craft is prosecuted under sub- section (2):

Provided that, if the fish seized is such as is likely to perish unless preserved or processed without delay, it may be sold or otherwise disposed of and, if it is sold, its value shall be treated as seized property for the purpose of this sub-section.

[1]Added by the Exclusive Fishery Zone (Regulation of Fishing) (Amdt.) Ordinance, 1983 (29 of 1983),s.3.

9. Penalty [1][and procedure].— (1) Whoever contravenes any provision of this Act or the rules shall be punishable with [2][rigorous imprisonment for a term which may extend to five years, or with fine which may extend to ten million rupees, or with both].

(2) Any court convicting any person under sub-section (1) may order that any fish caught or taken [3][and any fishing craft and fishing gear used,] in contravention of the provisions of this Act or the rules, shall be forfeited to the Federal Government.

(3) Where the person contravening any provision of this Act or the rules is a company or other body corporate, every director, manager, secretary or other officer or agent thereof shall, unless he proves that the contravention was committed without his knowledge or that he exercised all due diligence to prevent such contravention, be deemed to be guilty of such contravention.

(4) Whoever, attempts to contravene, or abets the contravention of, any provision of this Act or the rules shall be deemed to have contravened the provisions of this Act or the rules.

[4][(5) No court inferior to that of a Magistrate of the first class shall try any offence punishable under this Act.

(6) Notwithstanding anything contained in the Code of Criminal Procedure, 1898 (Act V of 1898) it shall be lawful for any Magistrate of the first class specially empowered by the Provincial Government in this behalf to pass any sentence authorised by this Act or by any of the laws extended under this Act.].

10. False statement. Whoever, upon being so required by a police officer not below the rank of Sub-Inspector or a Fishery Officer, makes any statement or furnishes any information which is false in any material particulars and which he knows or has reason to believe to be false, or does not believe to be true, or makes any such statement as aforesaid in any book, account, record, declaration, or any document which he is required to maintain, shall be punishable with imprisonment for a term which may extend to one month, or with fine which may extend to five thousand rupees, or with both.

11. Burden of proof. Where any person is prosecuted for doing any act or being in possession of anything without lawful authority or licence, the burden of proving that he has such authority or licence shall lie on that person.

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12. Liability of the owner etc. The owner or the person in charge of any fishing craft carrying anything in contravention of any provision of this Act or the rules shall be deemed to have contravened the provisions of this Act or the rules, as the case may be, if—

(i) such carriage is part of the transaction involving the contravention; and

(ii) if the owner or person in charge knew or had reason to believe that a contravention was being committed;

and shall be punishable under section 9.

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[1]Added by the Exclusive Fishery Zone (Regulation of Fishing) (Amdt.) Act,1993 (5 of 1993), s. 2.

[2]Subs, by the Exclusive Fishery Zone (Regulation of Fishing) (Amdt.) Ordinance, 1983 (29 of 1983), s. 4.

[3]ins. *ibid*..

[4]Added by the Exclusive Fishery Zone (Regulation of Fishing) (Amdt.) Act, 1993 (5 of 1993), s. 2

13. Indemnity. No suit or other legal proceeding shall lie against the Federal Government or any Fishery Officer for anything in good faith done or intended to be done under this Act or any rule.

14. Delegation of Powers. The Federal Government may, by notification in the official Gazette, delegate all or any of its powers under this Act or the rules to any officer.

15. Jurisdiction of courts. For the purpose of giving jurisdiction to courts under this Act, a fishing craft shall be deemed to be a ship within the meaning of any enactment for the time being in force relating to offences committed on board a ship, and every court shall have the same jurisdiction over a foreign fishing craft within the Zone and persons belonging to such fishing craft as such court would have if such fishing craft were a Pakistan fishing craft.

16. Power to make rules.— (1) The Federal Government may, by notification in the official Gazette, make rules for carrying out the purposes of this Act.

(2) In particular and without prejudice to the generality of the foregoing power, such rules may provide for all or any of the following matters, namely:—

(a) the sizes of meshes and the sizes and types of nets;

(b) the size and the quantity of fish which may be caught by any fishing gear or processed at any time;

(c) the terms and conditions to which licences for fishing shall be subject;

(d) the registration of fishing craft and fishing gear;

(e) the regulation of operations of fishing craft;

(f) registration fee, licence fee and royalties on catches, and other dues of the Federal Government;

(g) specification of the area for landing of fish taken or caught in the Zone; and

(h) regulation of landing and inspection of fish taken or caught in the Zone.

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THE FEE-CHARGING EMPLOYMENT AGENCIES (REGULATION) ACT, 1976

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THE FEE-CHARGING EMPLOYMENT AGENCIES (REGULATION) ACT, 1976

[1]ACT NO. LXXVII OF 1976

[1st December, 1976]

An Act to regulate the working of fee-charging and other employment agencies conducted with a view to profit for placement of workers within Pakistan.

WHEREAS it is expedient to regulate the working of fee-charging and other employment agencies conducted with a view to profit for placement of workers within Pakistan and for matters connected therewith or ancillary thereto;

It is hereby enacted as follows:—

1. Short title, extent and commencement.—(1) This Act may be called the Fee-Charging Employment Agencies (Regulation) Act, 1976.

(2) It extends to the whole of Pakistan.

(3) It shall come into force in such areas and on such dates[2] as the Federal Government may, by notification in the official Gazette, specify in this behalf:

Provided that the Federal Government may, by notification in the official Gazette, exclude certain industries or establishments or classes of employment or employment agencies from the operation of all or any of the provisions of this Act.

2. Definitions. In this Act, unless there is anything repugnant in the subject or context,—

(a) "competent authority" means an officer appointed to be the competent authority under section 4;

(b) "employment agency" means a person, company, institution, agency, firm or other organization who or which acts as intermediary for the purpose of procuring employment for a worker, or supplying a worker for an employer, in Pakistan;

(c) "establishment" means any office, firm, industrial unit, undertaking, shop or premises in which persons are employed;

(d) "industry" means any business, trade, manufacture, calling, service employment or occupation;

(e) "fee-charging employment agency" means—

(i) an employment agency conducted with a view to deriving either directly or indirectly any pecuniary or other material advantage from an employer or worker;

[1]For Statement of Objects and Reasons, see Gaz. of P., 1976, Ext., Pt. 111. p. 1149.
[2] i.e. 8.1.2003, whole of Pakistan, see SRO 5(1)/03 dated 1.1.2003.

(ii) an employment agency though not conducted with a view to deriving any pecuniary or other material advantage, levies on the employer or worker for its services an entrance fee, a periodical contribution or any other charge;

(f) "licence" means a licence issued under section 5;

(g) "prescribed" means prescribed by rules;

(h) "public employment service" means any office, agency or service set up and maintained by the Federal Government or a Provincial Government to find or procure employment for workers, or to supply, or assist in the supply of, workers to employers;

(i) "rules" means rules made under this Act; and

(j) "worker" means a person seeking employment.

3. Prohibition to act as fee-charging employment agency. After the enforcement of this Act, no employment agency shall, save as hereinafter provided, act as a fee-charging employment agency in any area:

Provided that an employment agency acting immediately before the enforcement of this Act as a fee-charging employment agency may continue so to act for, and may apply for a licence within, a period of six months from such enforcement.

4. Appointment and powers of competent authority.—(1) The Federal Government may, by notification in the official Gazette, appoint an officer to be the competent authority for the purposes of this Act.

(2) The competent authority or an officer uthorized by it in writing in this behalf may, with a view to securing compliance with the provisions of this Act or the rules, or any order or direction made or issued thereunder, or the terms or conditions of any licence,—

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(a) require any person to give such information or produce such documents in his possession with respect to any business or service of the nature of employment agency carried on or rendered by such person or any person employed by him as the competent authority or such officer may demand;

(b) enter into and search any premises of an establishment or industry with such assistance as may be necessary and inspect any book or other document belonging to or under the control of any person acting or reasonably suspected to be acting as an employment agency; and

(c) take on the spot or otherwise such evidence of any person as the competent authority or such officer may deem necessary:

Provided that no one shall be required under this section to answer any question or give any evidence tending to incriminate himself.

5. Issue, renewal, cancellation and suspension of licence.—(1) The competent authority may issue a licence for operating a fee-charging employment agency to—

(a) a person who is a citizen of Pakistan;

(b) a firm, all the partners of which are citizens of Pakistan; or

(c) a company, the majority of the shares of which is held by citizens of Pakistan.

(2) A licence shall be issued in such manner and form, and on payment of such fee and deposits, as may be prescribed.

(3) A licence shall, unless earlier cancelled or suspended, be valid for one year, and may, in the discretion of the competent authority and on payment of the prescribed fee, be renewed for a like period.

(4) A licence shall be liable to be cancelled or suspended and the deposits forfeited in whole or in part by the competent authority for the contravention of any of the provisions of this Act or the rules, or any order or direction made or issued thereunder, or the breach of any of its terms and conditions.

[1][(5) Any person aggrieved by an order under sub-section (4) may, within sixty days of the date of the order, appeal to the Federal Government, and the Federal Government may pass such order thereon as it may deem fit.

(6) No order affecting any person under sub-section (4) or sub-section (5) shall be passed without giving such person a reasonable opportunity of being heard.]

6. Prohibition of operation of fee-charging employment agency in certain cases. Where a public employment service has been set up for any area, the competent authority may, by notification in the official Gazette, prohibit from such date as may be specified therein the operation of, or the rendering of any service by, all or any of the fee-charging employment agencies operating in such area, and on such prohibition the licences issued for such area shall stand cancelled from the date specified in the notification and no compensation shall be paid therefor:

Provided that the competent authority may, in consultation with the organisations of employers, and workers in that area, exempt from the operation of the notification the placing or recruitment of specified categories of workers with respect to whom appropriate arrangements for placing or recruitment cannot conveniently be made by a public employment service.

7. Offences and penalties. —(1) Whoever wilfully contravenes any provision of this Act or the rules, or any order or direction made or issued thereunder, or the terms or conditions of any licence, shall be punishable with imprisonment for a term which may extend to one year, or with fine which may extend to five thousand rupees, or with both.

[1]Added by the Fee-Charging Employment Agencies (Regulation) (Amdt.) Ordinance, 1984, (12 of 1984), s. 2.

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(2) Where an offence punishable under sub-section (1) is committed by a corporation, firm, establishment, industry or undertaking, every director, manager, secretary, partner, agent or other officer or person concerned with the management thereof shall, unless he proves that the offence was committed without his knowledge or consent or that he exercised due diligence to prevent its commission, be deemed to be guilty or such offence.

8. Cognizance of offences. No court shall take cognizance of an offence under this Act except upon a complaint in writing made by the competent authority or an officer authorised by it in this behalf.

9. Competent authority, etc., to be public servants. The competent authority or the officer authorised by it under sub-section (2) of section 4 shall be deemed to be a public servant within the meaning of section 21 of the Pakistan Penal Code (Act. XLV of 1860).

10. Indemnity. No suit, prosecution or other legal proceedings shall lie against any person for anything which is in good faith done or intended to be done in pursuance of this Act or any rule.

11. Power to make rules.—(1) The Federal Government may, by notification in the official Gazette, make rules for carrying out the purposes of this Act.

(2) In particular, and without prejudice to the generality of the foregoing power, such rules may provide for all or any of the following matters, namely:—

(a) form of licence to be issued;

(b) procedure for the issue and renewal of licences, the fees and deposits for their issue and renewal;

(c) procedure for the cancellation or suspension of a licence, or prohibition of operation of fee-charging employment agencies;

(d) fees and expenses to be charged by the fee-charging employment agencies;

(e) manner of recruitment and placement of various type of workers;

(f) returns and forms; and

(g) procedure of consultation with organisation of workers and employers.

12. Act not to apply to certain, persons. Nothing in this Act shall apply to—

(a) any person licensed under the Merchant Shipping Act, 1923 (XXI of 1923) to engage or supply seamen to merchant ships;

(b) employment exchanges or any other public employment service managed by the Federal Government or a Provincial Government; and

(c) any person permitted under the [1][Emigration Ordinance, 1979 (XVII of1979)] to engage persons for placement abroad.

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[1]Subs. by the Federal Laws (Revision and Declaration) Ordinance. 1981 (27 of 1981), s. 3 and Sch., II.

THE FERRIES ACT, 1878

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THE FERRIES ACT, 1878

[1]ACT No. XVII OF 1878

[9th November, 1878]

An Act to regulate Ferries [2]* * *.

Preamble. WHEREAS it is expedient to regulate ferries in [3][certain Provinces]; It is hereby enacted as follows:—

I.–PRELIMINARY

1. Short title. This Act may be called the [4]* * Ferries Act, 1878.

Local extent. [5][It extends only to [6][the Punjab] [7][and the North-West Frontier Province].

Commencement. It shall come into force in each of the said territories on such date[8] as the [9][appropriate Government] may, by notification in the official Gazette, fix in this behalf.

2. [*Repeal.*] *Rep. by the Repealing Act,* 1938 *(I of* 1938), *s.* 2 *and Sch.*

3. Interpretation clause. In this Act the word "ferry" includes also a bridge of boats, pontoons or rafts, a swing-bridge, a flying-bridge and a temporary bridge, and the approaches to, and landing-places of, a ferry.

[10][**3A. Definition.** In this Act, "appropriate Government" means–

(a) in relation to national highways and strategic roads declared as such by or under a Federal Law, the Federal Government; and

(b) in relation to other matters the Provincial Government.]

II.–PUBLIC FERRIES

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4. Power to declare, establish, define, and discontinue public ferries.–The [11][appropriate Government] may from time to time–

(a) declare what ferries shall be deemed public ferries, and the respective districts in which, for the purposes of this Act, they shall be deemed to be situate;

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[1]For Statement of Objects and Reasons, *see* Gazette of India, 1878. Pt. V, p. 135, for Preliminary Report of the Select Committee, *see ibid.,* p. 210; for Proceedings in Council, *see ibid.* Supplement, pp. 286, 325, 1104 and 1194.
[2]The words "in Northern India" omitted by A. O., 1949, Sch.
[3]Subs. *ibid.,* for "the Punjab, the North-Western Provinces, Oudh, Central Provinces, Assam, and Ajmer and Merwara".
[4]The words "Northern India" omitted *ibid.*
[5]Subs. *ibid.,* for the original paragraph.
[6]Subs. by the Federal Laws (Revision and Declaration) Act, l95l (26 of 1951), s. 8, for "West Punjab".
[7]Subs. by F.A.O., 1975 Art. 2 and Sch., for "the North-West Frontier and the district of Sylhet".
[8]The Act was brought into force in –
The Punjab on 1st April 1881: *see* Punjab Gazette, Pt. I, p. 139.
[9]Subs. by F.A.O., 1975, Art. 2 and Sch., for "Provincial Government" which was subs. by A. O., 1937, for "L. G.".
[10]Section 3A ins. by the Federal Laws (Revision and Declaration) Ordinance, 1981 (27 of 1981), s. 3 and 2nd Sch..
[11]Subs. by F.A.O., 1975, Art 2 and Sch., for "Provincial Government" which had been subs by A.O., 1907, for "L.G".

(b) take possession of a private ferry and declare it to be a public ferry;

(c) establish new public ferries where, in its opinion, they are needed;

(d) define the limits of any public ferry ;

(e) change the course of any public ferry; and

(f) discontinue any public ferry which it deems unnecessary.

Every such [1]declaration, establishment, definition, change or discontinuance shall be made by notification in the official Gazette.

[2][* * * * * * *]

Provided [3]* that, when any alteration in the course or in the limits of a public ferry is rendered necessary by changes in the river, such alteration may be made, by an order under his hand, by the [4]Commissioner of the division in which such ferry is situate, or by such other officer as the [5][appropriate Government] may, from time to time, appoint by name or in virtue of his office in this behalf.

5. Claims for compensation. Claims for compensation for any loss sustained by any person in consequence of a private ferry being taken possession of under section 4 shall be inquired into by the Magistrate of the district in which such ferry is situate, or such officer as he appoints in this behalf, and submitted for the consideration and orders of the [5][appropriate Government].

6. Superintendence of public ferries. The immediate superintendence of every public ferry shall, except as provided in section 7 [6][and section 7A], be vested in the Magistrate of the district in which such ferry is situate, or in such other officer as the [5][appropriate Government] may, from time to time, appoint by name or in virtue of his office in this behalf[7],

and such Magistrate or officer shall, except when the tolls at such ferry are leased, make all necessary arrangements for the supply of boats for such ferry, and for the collection of the authorised tolls leviable thereat.

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7. Management may be vested in municipality. The [5][appropriate Government] may direct that any public ferry situate within the limits of a town be managed by the officer or public body charged with the superintendence of the municipal arrangements of such town;

[8][and thereupon that ferry shall be managed accordingly.]

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[1]For such declarations, etc. *see* different local rules and orders.
[2]The original provisio which was first subs. by the Devolution Act, 1920 (28 of 1920) and then amended by A.O., 1937, have been omitted by the Central Laws (Statute Reform) Ordinance, 1960 (21 of 1960), s. 3 and Second Sch. (with effect from the 14th October I955).
[3]The word "also" omitted by Ord. 21 of 1960, s. 3 and Second Sch. (with effect from the 14th October, 1955).
[4]In the N.W.F.P. references to "Commissioner" or "Commissioner or a division" are to be construed as referring to the Revenue Commissioner: *see* the N.W.F.P. Law and Justice Regulation, 1901 (7 of 1901), s. 6 (1) (f).
[5]Subs. by F.A.O., 1975, Art 2 and Sch., for "Provincial Government" which had been subs by A.O., 1907, for "L.G".
[6]Ins. in the application of the Act to–
The Punjab, by the Punjab District Boards Act, 1883 (20 of 1883), s. 79.
[7]For notifications as to the superintendence of ferries in the Punjab *see* Punjab Rules and Orders.
[8]Subs. by A.O., 1937, for the following words:-
"and may further direct that all or any part of the proceeds from such ferry be paid into the municipal fund of such town ;
And thereupon such ferry shall be managed, and such proceeds or part thereof shall be paid, accordingly".

[1][**7A**. **Management may be vested in District Council or District or Local Board.** The l[appropriate Government] may direct [2]that any public ferry, wholly or partly within the area subject to the authority of a District Council or a District Board or a Local Board in the Province be managed by that Council or Board, and there upon that ferry shall be managed accordingly.]

[3][**8. Letting ferry tolls by auction.** The tolls of any public ferry may, from time to time be let by public auction for a term not exceeding five years with the approval of the [4]Commissioner, or by public auction, or otherwise than by public auction, for any term with the previous sanction of the l[appropriate Government.]

The lessee shall conform to the rules made under this Act for the management and control of the ferry, and may be called upon by the officer in whom the immediate superintendence of the ferry is vested, or, if the ferry is managed by a municipal or other public body under section 7 or section 7A, then by that body, to give such security for his good conduct and for the punctual payment of the rent as the officer or body, as the case may be, thinks fit.

When the tolls are put up to public auction, the said officer or body, as the case may be, or the officer conducting the sale on his or its behalf, may, for reasons recorded in writing, refuse to accept the offer of the highest bidder, and may accept any other bid, or may withdraw the tolls from auction.]

9. Recovery of arrears from lessee. All arrears due by the lessee of the tolls of a public ferry on account of his lease may be recovered from the lessee or his surety (if any) by the Magistrate of the district in which such ferry is situate as if they were arrears of land-revenue.

10. Power to cancel lease. The [5][appropriate Government] may cancel the lease of the tolls of any public ferry on the expiration of six months' notice in writing to the lessee of its intention to cancel such lease.

When any lease is cancelled under this section, the Magistrate of the district in which such ferry is situate shall pay to the lessee such compensation as such Magistrate may, with the previous sanction of the [5][appropriate Government], award.

11. Surrender of lease. The lessee of the tolls of a public ferry may surrender his lease on the expiration of one month's notice in writing to the [5][appropriate Government] of his intention to surrender such lease, and on payment to the Magistrate of the district in which such ferry is situate of such compensation as such Magistrate, subject to the approval of the [4]Commissioner, may in each case direct.

12. Power to make rules. Subject to the control of the [5][appropriate Government] the [4]Commissioner of a division, or such other officer as the [5][appropriate Government] may from time to time, appoint in this behalf, by name or in virtue of his office, may, from time to time, make rules, consistent with this Act—

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[1]Subs. *ibid.,* for section 7A inserted by the Acts mentioned in foot note 6 *supra.*
[2]For notifications vesting the management of certain ferries in District Boards *see* the Punjab Rules and Orders.
[3]Subs. for the original section 8 by the Northern India Ferries Act Amdt. Act, 1886 (3 of 1886), s. 1.
[4]In the N.W.F.P. references to "Commissioner" or "Commissioner or a division" are to be construed as referring to the Revenue Commissioner: *see* the N.W.F.P. Law and Justice Regulation, 1901 (7 of 1901), s. 6 (1) (f).
[5]Subs. by F.A.O., 1975, Art. 2 and Sch., for "Provincial Government" which had been subs by A.O., 1907, for "L.G".

(a) for the control and the management of all public ferries [1]within such division and for regulating the traffic at, such ferries;

[2][(b) for regulating the time and manner at and in which and the terms on which, the tolls of such ferries may be let by auction, and prescribing the persons by whom auctions may be conducted ;]

(c) for compensating persons who have compounded for tolls payable for the use of any such ferry when such ferry has been discontinued before the expiration of the period compounded for; and

(d) generally to carry out the purposes or this Act;

and, when the tolls of a ferry have been let under section 8, such 2 Commissioner or other officer may, from time to time subject as aforesaid), make additional rules consistent with this Act–

(e) for collecting the rents payable for the tolls of such ferries;

(f) in cases in which the communication is to be established by means of a bridge of boats, pontoons or rafts, or a swing-bridge, flying-bridge or temporary bridge, for regulating the time and manner at and in which such bridge shall be constructed and maintained and opened for the passage of vessels and rafts through the same, and

(g) in cases in which the traffic is conveyed in boats, for regulating (1) the number and kind of such boats and their dimensions and equipment, (2) the number of the crew to be kept by the lessee for each boat; (3) the maintenance of such boats continually in good condition ; (4) the hours during which, and the intervals within which, the lessee shall be bound to ply; and (5) the number of passengers, animals and vehicles, and the bulk and weight of other things, that may be carried in each kind of boat at one trip.

The lessee shall make such returns of traffic as the [3]Commissioner or other officer as aforesaid may, from time to time, require.

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13. Private ferry not to ply within two miles of public ferry without sanction. [4][Except with the sanction of the Magistrate of the district or of such other officer as the [5][appropriate Government] may, from time to time, appoint in this behalf, by name or in virtue of his office, no person shall establish, maintain or work a ferry to or from any point within a distance of two miles from the limits of a public ferry]:

Provided that, in the case of any specified public ferry, the [5][appropriate Government] may, by notification in the official Gazette, reduce or increase the said distance of two miles to such extent as it thinks fit:

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[1]The words "within such division" are to be omitted in the N. W.F.P. *see* the N.W.F.P. Law and Justice Regulation, 1901 (7 of 1901), s. 3 and Sch.
[2]Subs. by the Northern India Ferries Act Amendment Act, 1886 (3 of 1886), s. 1 (2), for the original cl. (b).
[3]In the N.W.F.P. reference to "Commissioner" or "Commissioner or a division" are to be construed as referring to the Revenue Commissioner: *see* the N.W.F.P. Law and Justice Regulation, 1901 (7 of 1901), s. 6 (1) (f).
[4]Subs. by the Northern India Ferries Act Amendment Act, 1886 (3 of 1886), s. 2 (I), for the original para.
[5]Subs. by F.A.O., 1975, Art. 2 and Sch., for "Provincial Government" which had been subs. by A.O., 1907, for "L.G".

Provided also that nothing hereinbefore contained shall prevent persons plying between two places, one of which is without, and one within, the said limits, when the distance between such two places is not less than three miles, or apply to boats [2][which do not ply for hire, or] which the [1][appropriate Government] expressly exempts from the operation of this section.

14. Person using approaches, etc., liable to pay toll. Whoever uses the approach to, or landing-place of, a public ferry is liable to pay the toll payable for crossing such ferry.

15. Tolls. [3]Tolls, according to such rates as are, from time to time, fixed by the [1][appropriate Government], shall be levied on all persons, animals, vehicles and other things crossing any river by a public ferry and not employed or transmitted on the public service:

Provided that the [1][appropriate Government] may, from time to time, declare that any persons, animals, vehicles or other things shall be exempt from payment of such tolls. Where the tolls of a ferry have been let under section 8, any such declaration, if made after the date of the [4][lease], shall entitle the lessee to such abatement of the rent payable in respect of the tolls as may be fixed by the [5]Commissioner of the division or such other officer as the [1][appropriate Government] may, from time to time, appoint in this behalf by name or in virtue of his office.

16. Table of tolls. The lessee or other person authorised to collect the tolls of any public ferry shall affix a table of such tolls, legibly written or printed in the vernacular language and, also if the [5]Commissioner of the division so directs, in English in some conspicuous place near the ferry,

List of tolls. and shall be bound to produce, on demand, a list of the tolls, signed by the Magistrate of the district or such other officer as he appoints in this behalf.

[6][**17. Tolls, rents, compensation and fines are to form part of revenues of Province.** All tolls, rents, compensation and fines under this Act (other than tolls received by any lessee) shall form part of the revenues of the [7][Federation of the Province, as the case may be].

18. Compounding for tolls. The [1][appropriate Government] may, if it thinks fit, from time to time, fix rates at which any person may compound for the tolls payable for the use of a public ferry.

III.–PRIVATE FERRIES

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19. Power to make rules.–The [4]Commissioner of the division may, with the pre-vious sanction of the [1][appropriate Government], from time to time, make rules for the maintenance of order and for the safety of passengers and property at ferries other than public ferries.

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[1]Subs. by F.A.O., 1975, Art. 2 and Sch., for "Provincial Government" which had been subs. by A.O., 1907, for "L.G".
[2]Ins. by Act 3 of 1886, s. 2 (2).
[3]So much of section 15 is repealed as provides for the exemption from tolls of any person, animals, vehicles or other things exempted by the Indian Tolls (Army) Act, 1901 (2 of 1901), s. 3 ; *see* section 8 of that Act.
For rates and exemptions under this section, *see* different local R. and O.
[4]Subs. by the Northern India Ferries Act Amdt. Act, 1886 (3 of 1886), s. 1 (3) for "auction".
[5]In the N.W.F.P. references to "Commissioner" or "Commissioner or a division" are to be construed as referring to the Revenue Commissioner: *see* the N.W.F.P. Law and Justice Regulation, 1901 (7 of 1901), s. 6 (1) (f).
[6]Subs. by A.O., 1937 for the original section 17, which prescribed how the tolls, rents, compensation and fines under the Act should be disposed of in the various Provinces. *See,* however, para. 4 of the India and Burma (Transitory Provisions) Order, 1937.
[7]Subs. by F.A.O., 1975, Art. 2 and Sch., for "Province".

20. Tolls. The tolls charged at such ferries shall not exceed the highest rates for the time being fixed under section 15 for similar public ferries.

IV.–PENALTIES AND CRIMINAL PROCEDURE

21. Penalty for breach of provisions as to table of tolls, list of tolls and return of traffic. Every lessee or other person authorised to collect the tolls of a public ferry, who neglects to affix and keep in good order and repair the table of tolls mentioned in section 16, or who willfully removes, alters or defaces such table, or allows it to become illegible, or who fails to produce on demand the list of the tolls mentioned in section 16, and every lessee who neglects to furnish any return required under section 12, shall the punished with fine which may extend to fifty rupees.

22. Penalty for taking unauthorized toll, and for causing delay. Every such lessee or other person as aforesaid and any person in possession of a private ferry asking or taking more than the lawful toll, or without due cause delaying any person, animal, vehicle or other thing, shall be punished with fine which may extend to one hundred rupees.

23. Penalty for breach of rule made under sections 12 and 19. Every person breaking any rule made under section 12 or section 19 shall be punished with imprisonment for a term which may extend to six months, or with fine which may extend to two hundred rupees, or with both.

24. Cancelment of lease on default or breach of rules. When any lessee of the tolls of a public ferry makes default in the payment of the rent payable in respect of such tolls, or has been convicted of an offence under section 23, or, having been convicted of an offence under section 21 or section 22, is again convicted of an offence under either of those sections, the Magistrate of the district may, with the sanction of the [1]Commissioner of the division, cancel the lease of the tolls of such ferry, and make other arrangements for its management during the whole or any part of the term for which the tolls were let.

25. Penalties on passengers offending. Every person crossing by any public ferry, or using the approach to, or landing place thereof, who refuse to pay the proper toll, and every person-

who, with intent to avoid payment of such toll, fraudulently or forcibly crosses by any such ferry without paying the toll, or

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who obstructs any toll-collector or lessee of the tolls of a public ferry or any of his assistants in any way in the execution of their duty under this Act, or

who, after being warned by any such toll-collector, lessee or assistant not to do so, goes or takes any animals, vehicles or other things into any ferry-boat, or upon any bridge at such a ferry, which is in such a state or so loaded as to endanger human life or property, or

who refuses or neglects to leave, or remove any animals, vehicles or goods from , any such ferry-boat or bridge, on being requested by such toll-collector, lessee or assistant to do so,

shall be punished with fine which may extend to fifty rupees.

[1]In the N.W.F.P. references to "Commissioner" or "Commissioner or a division" are to be construed as referring to the Revenue Commissioner: *see* the N.W.F.P. Law and Justice Regulation, 1901 (7 of 1901), s. 6 (1) (f).

[1][**26. Penalty for maintaining private ferry within prohibited limits.** Whoever establishes, maintains or works a ferry in contravention of the provisions of section 13 shall be punished with fine which may extend to five hundred rupees, and with a further fine which may extend to one hundred rupees for every day during which the ferry is maintained or worked in contravention of those provisions.]

27. Fines payable to lessee. Where the tolls of any public ferry have been let under the provisions herein before contained, the whole or any portion of any fine realised under section 25 or section 26 may, notwithstanding anything contained in section 17, be at the discretion of the convicting Magistrate or Bench of Magistrates, paid to the lessee.

28. Penalty for rash navigation and stacking of timber. Whoever navigates, anchors, moors or fastens any vessel or raft, or stacks any timber in a manner so rash or negligent as to damage a public ferry shall be punished with imprisonment for a term which may extend to three months, or with fine which may extend to five hundred rupees, or with both; and the toll-collector or lessee of the tolls of such ferry, or any of his assistants, may seize and detain such vessel, raft or timber pending the inquiry and assessment hereinafter mentioned.

29. Power to arrest without warrant. The police may arrest without warrant any person committing an offence against section 25 or section 28.

30. Power to try summarily. Any Magistrate or Bench of Magistrates having summary jurisdiction under Chapter [2][XXII of the Code of Criminal Procedure, 1898 (Act V of 1898)], may try any offence against this Act in manner provided by that Chapter.

31. Magistrate may assess damage done by offender. Every Magistrate or Bench of Magistrates trying any offence under this Act may inquire into and assess the value of the damage (if any) done or caused by the offender to the ferry concerned, and shall order the amount of such value to be paid by him in addition to any fine imposed upon him under this Act; and the amount so ordered to be paid shall be leviable as if it were a fine, or, when the offence is one under section 28, by the sale of the vessel, raft or timber causing the damage and of anything found in or upon such vessel or raft.

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The [3]Commissioner of the division may, on the appeal of any person deeming himself aggrieved by an order under this section, reduce or remit the amount payable under such order.

V.-MISCELLANEOUS

32. Power to take possession of boats, etc., on surrender or cancellation of lease. When the lease of the tolls of any ferry is surrendered under section 11 or cancelled under section 24, the Magistrate of the district may take possession of all boats and their equipment and all other material and appliances used by the lessee for the purposes of such ferry, and use the same (paying such compensation for the use thereof as the [4][appropriate Government] may in each case direct) until such Magistrate can conveniently procure proper substitutes therefor.

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[1]Subs. by the Northern India Ferries Act Amdt. Act, 1886 (3 of 1886), s. 2(3), for the original section 26.
[2]Subs. by the Federal Laws (Revision and Declaration) Ordinance, 1981 (27 of 1981), s. 3 and 2nd Sch., for "XVIII of the Code of Criminal Procedure".
[3]In the N.W.F.P. references to "Commissioner" or "Commissioner or a division" are to be construed as referring to the Revenue Commissioner: *see* the N.W.F.P. Law and Justice Regulation, 1901 (7 of 1901), s. 6 (1) (f).
[4]Subs. by F.A.O., 1975, Art 2 and Sch., for "Provincial Government" which had been subs. by A.O., 1907, for "L.G".

33. Similar power in cases of emergency.- When any boats or their equipment or any materials or appliances suitable for setting up a ferry, are emergently required for facilitating the transport of officers, or troops of [1][Pakistan] on duty, or of any other persons on the business of [1][Government], or of any animals, vehicles or baggage belonging to such officers, troops or persons or of any property of [1][Government], the Magistrate of the district may take possession of and use the same (paying such compensation for the use thereof as [2][the [3][Federal Government], where the transport is in connection with the affairs of the [3][Federal Government] and the Provincial Government in other cases], may in each case direct) until such transport is completed.

34. Jurisdiction of Civil Courts barred.–No suit to ascertain the amount of any compensation payable, or abatement of rent allowable, under this Act shall be cognizable by any Civil Court.

35. Delegation of Powers.–The [4][appropriate Government] may, from time to time, delegate, under such restrictions as it thinks fit, any of the powers conferred on it by this Act to any [5]Commissioner of a division or Magistrate of a district, or to such other officer as it thinks fit, by name or by virtue of his office.

36. [*Validation of proceeding since repeal of Regulation VI of* 1891 *in Punjab.*] *Rep. by the Amending Act,* 1891 *(XII of* 1891).

THE PAKISTAN CODE

Date: 16-09-2024

[1]Subs. by A.O., 1961, Art. 2 and Sch. for "Her Majesty" (with effect from the 23rd March, 1956).
[2]Subs. by A.O., 1937, for "the LG.".
[3]Subs. by F.A.O., 1975, Art. 2 and Table, for "Central Government".
[4]Subs. by F.A.O., 1975, Art. 2 and Sch., for "Provincial Government" which had been subs. by A.O., 1907, for "L.G".
[5]In the N.W.F.P, references to "Commissioner" or "Commissioner or a division" are to be construed as referring to the Revenue Commissioner; see the N.W.F.P. Law and Justice Regulation, 1901 (7 of 1901), s. 6 (1)(f).

THE FISHERIES ACT, 1897

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7. Arrest without warrant for offences under this Act

THE PAKISTAN CODE

THE FISHERIES ACT, 1897

[1]ACT No. IV OF 1897

[*4th February,* 1897]

An Act to provide for certain matters relating to Fisheries in [2][Pakistan].

WHEREAS it is expedient to provide for certain matters relating to fisheries in 2[Pakistan] ; It is hereby enacted as follows:—

1. Title and extent.—(1) This Act may be called the [3]* Fisheries Act, 1897.

[4][(2) It extends to the whole of Pakistan.]

[5][* * * * * * *]

2. Act to be read as supplemental to other Fisheries Laws.— Subject to the provisions of sections [6][4 and 26 of the General Clauses Act, 1887 (I of 1887)], this Act shall be read as supplemental to any other enactment[7] for the time being in force relating to fisheries in any part [2][Pakistan] [8][* *].

3. Definitions. In this Act, unless there is anything repugnant in the subject or context,-

(1) "fish" includes shell-fish:

(2) "fixed engine" means any net, cage, trap or other contrivance for taking fish, fixed in the soil or made stationary in any other way: and

(3) "private water" means water which is the exclusive property of any person or in which any person has for the time being an exclusive right of fishery whether as owner, lessee or in any other capacity.

Explanation.-Water shall not cease to be "private water" within the meaning of this definition by reason only that other persons may have by custom a right of fishery therein.

4. Destruction of fish by explosives in inland waters and on coasts.—(1) If any person uses any dynamite or other explosive substance in any water with intent thereby to catch or destroy any of the fish that may be therein, he shall be punishable with imprisonment for a term which may extend to two months, or with fine which may extend to two hundred rupees.

THE PAKISTAN CODE

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[1]For Statement of Objects and Reasons, *see* Gazette of India, 1893, Pt. V, p. 101 ; for Report of the Select Committee, *see ibid.*, 1897, Pt. V, ,p. 15 ; and for Proceedings in Council, *see ibid.*, 1893, Pt. VI, p. 207, *ibid.*, 1896, p. 250, and *ibid.*, 1897, p. 21.
This Act has been declared to be in force in Baluchistan by the British Baluchistan Laws Regulation, 1913 (2 of 1913), s. 3 and Sch. I.
It has also been extended to the Leased Areas of Baluchistan, *see* the Leased Areas (Laws) Order, 1950 (G.G.O. 3 of 1950); and applied in the Federated Areas of Baluchistan, *see* Gazette ofIndia, 1937, Pt. I, p.1499.
It has been applied to Phulera in the Excluded Area of Upper Tanawal to the extent the Act is applicable in the N.W.F.P., subject to certain modifications ; and also extended to the Excluded Area of Upper Tanawal other than Phu!era with effect from such date and 'subject to such modifications as may be notified, *see* N.W.F.P. (Upper Tallawal) (Excluded Area) Laws Regulation, 1950.
It has been amended in its application to the Federal Capital by Ord. 32 of 1959, s.2.
This Act has been amended to the extent of Islamabad Capital Territory, *see* Ord. No. 27 of 1981, s. 5 and 4th Sch.

[2]Subs. by the Central Laws (Statute Reform) Ordinance, 1960 (21 of 1960), s. 3 and 2nd Sch. *(with effect from the 14th October,* 1955), for "the Provinces and the Capital of the Federation" which had been subs. by AO., 1949, Arts. 3(2) and 4, for "British India".

[3]The word "Indian" rep. by the Federal Laws (Revision and Declaration) Act, 1951 (26 of 1951), s. 3 and Sch. II.

[4]Subs. by Ord. 21 of 1960, s. 3 and 2nd Sch. *(with effect from the 14th October,* 1955), for the original sub-section (2), as amended by the Repealing and Amending Act, 1914) (10 of 1914), A.O., 1937 and A. 0., 1949.

[5]Sub-section (3), rep. by Act, 10 of 1914, s. 3 and Sch. II.

[6]Subs. by Ord. XXVII of 1981, s. 5 and Sch. IV. (Only to the extent of ICT).

[7]For law relating to Fisheries in-
(1) Punjab, *see* the Punjab Fisheries Act, 1914 (Punjab 2 of 1914).

[8]The words "except Burma" rep. by A.O., 1937.

(2) In sub-section (1) the word "water" includes the sea within a distance of one marine league of the sea-coast: and an offence committed under that sub-section in such sea may be tried, punished and in all respects dealt with as if it had been committed on the land abutting on such coast.

5. Destruction of fish by poising waters.—(1) If any person puts any poison, lime or noxious material into any water with intent thereby to catch or destroy any fish, he shall be punishable with imprisonment for a term which may extend to two months, or with fine which may extend to two hundred rupees.

(2) The [1][Provincial Government] may, by notification in the official Gazette, suspend the operation of this section in any specified area, and may in like manner modify or cancel any such notification.

6. Protection of fish in selected waters by rules of Provincial Government.—(1) The [1][Provincial Government] may make rules[2] for the purposes hereinafter in this section mentioned, and may by notification in the official Gazette apply all or any of such rules to such waters, not being private waters, as the [1][Provincial Government] may specify in the said notification.

(2) The [1][Provincial Government] may also, by a like notification, apply such rules or any of them to any private water with the consent in writing of the owner thereof and of all persons having for the time being any exclusive right of fishery therein.

(3) Such rules may prohibit or regulate all or any of the following matters, that is to say—

(a) the erection and use of fixed engines;

(b) the construction of weirs; and

(c) the dimension and kind of the nets to be used and the modes of using them.

(4) Such rules may also prohibit all fishing in any specified water for a period not exceeding two years.

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[3](5) In making any rule under this section the [1][Provincial Government] may—

(*a*) direct that a breach *of* it shall be punishable with fine which may extend to one hundred rupees, and, when the breach is a continuing breach, with a further fine which may extend to ten rupees for every day after the date of the first conviction during which the breach is proved to have been persisted in; and

(*b*) provide for—

(i) the seizure, forefeiture and removal of fixed engines, erected, or used, or nets used, in contravention of the rule, and

(ii) the forfeiture of any fish taken by means of any such fixed engine or net.

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[1]Subs. by A. O., 1937, for "L. G.".

[2]For rules under s. 6, *see* different local Rules and Orders, and for Karachi *see* Gaz. of P. 1952, Pt. VI, p. 17.

[3]For the amendment *of* sub-section (5) in its application to the Federal Capital, *see* the Fisheries Act (Amdt.) Ordinance, 1959, (32 *of* 1959), s. 2.

(6) The power to make rules under this section is subject to the condition that they shall be made after previous publication.

7. Arrest without warrant for offences under this Act.—(1) Any police-officer, or other person specially empowered by the [1][provincial Government] in this behalf, either by name or as holding any office, for the time being, may, without an order from a Magistrate and without warrant, arrest any person committing in his view any offence punishable under section 4 or 5 or under any rule under section 6

(*a*) if the name and address of the person are unknown to him, and

(*b*) if the person declines to give his name and address, or if there is reason to doubt the accuracy of the name and address if given.

(2) A person arrested under this section may be detained until his name and address have been correctly ascertained:

Provided that no person so arrested shall be detained longer than may be necessary for bringing him before a Magistrate, except under the order of a [2][Judicial Magistrate] for his detention.

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Date: 05-09-2024

[1]Subs. by A.O., 1937. for "L.G.".
[2]Subs. by and, XXVII of 1981, s. 5, Sch 4, only extent to ICT.

THE FOREIGN CULTURAL ASSOCIATIONS (REGULATION OF FUNCTIONING) ACT, 1975

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4. Responsibilities of foreign cultural association
5. Dissolution of foreign cultural association
6. Consequences of dissolution
7. Government servant not to become member of a foreign cultural association
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9. Acceptance of foreign assistance
10. Financial assistance by foreign cultural association prohibited
11. Destruction, etc. of books and records prohibited
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17. [Omitted]

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THE FOREIGN CULTURAL ASSOCIATIONS (REGULATION OF FUNCTIONING) ACT, 1975

ACT No. LXXIX OF 1975

[13th December, 1975]

An Act to provide for the regulation of the functioning of foreign cultural associations

WHEREAS it is expedient to provide for the regulation of the functioning of foreign cultural associations;

It is hereby enacted as follows:—

1. Short title, extent and commencement.— (l) This Act may be called the Foreign Cultural Associations (Regulation of Functioning) Act, 1975.

(2) It extends to the whole of Pakistan.

(3) It shall come into force at once.

2. Definitions. In this Act unless there is anything repugnant in the subject or context,—

(a) "foreign cultural association" means an association, by whatever name called, having as its object the promotion of cultural and friendly relations between Pakistan and a foreign country and includes a branch of such association; and

(b) "prescribed" means prescribed by rules made under section 15.

3. Formation of foreign cultural associations.—(1) No foreign cultural association shall be formed with the object of, or engage itself in, propagating any opinion, or acting in any manner, prejudicial to the ideology, integrity, security, constitution or system of Government of Pakistan or Pakistan's relations with any foreign country or contrary to morality or any law for the time being in force.

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(2) A foreign cultural association shall have only one head office, but may, with the prior permission in writing of the Federal Government, set up a branch at the principal seat of a Provincial Government.

(3) Every foreign cultural association shall appoint its President with the approval of the Federal Government in the prescribed manner.

(4) No new foreign cultural association shall be set up or shall start functioning unless registered by the Federal Government and such registration may be granted subject to such conditions as the Federal Government may specify.

(5) An existing foreign cultural association shall apply in the prescribed manner for registration within one month of the coming into force of the rules to be made under this Act and the Federal Government may grant registration subject to such conditions as it may specify.

4. Responsibilities of foreign cultural association.— (1) Every foreign cultural association shall—

(a) maintain audited accounts in the prescribed manner;

(b) pay all moneys received by it into a separate account kept in its name at a bank which is a scheduled bank within the meaning of the State Bank of Pakistan Act, 1956 (XXXIII of 1956);

(c) submit to the Federal Government such information relating to its accounts and affairs as the Federal Government may from time to time require.

(2) Any officer authorised in this behalf by the Federal Government may at all reasonable times inspect the books of account and other records of a foreign cultural association, the securities, cash and other properties held by the association, and all documents relating thereto.

5. Dissolution of foreign cultural association.— (l) No foreign cultural association shall be dissolved otherwise than in accordance with its constitution or with the provisions of sub-sections (2) and (3).

(2) Not less than sixty per cent of the members of a foreign cultural association may make an application to the Federal Government in the prescribed manner for making an order for the dissolution of the association.

(3) If an application is made to it under sub-section (2), or if it has reason to believe that a foreign cultural association has acted or is acting in contravention of its constitution or of the provisions of section 3, the Federal Government may, by order in writing after giving the association an opportunity of being heard, direct that the association shall stand dissolved on and from such date as may be specified in the order.

(4) Where an order of dissolution has been made otherwise than on an application made under sub-section (2), the foreign cultural association to which the order relates or any member thereof aggrieved by the order may apply to the Federal Government for a review of the order; and the order of the Federal Government passed after giving the applicant an opportunity of being heard shall be final and shall not be questioned, or be permitted to be questioned, by or before any court.

(5) Subject to any order of the Federal Government in review under sub-section (4), the dissolution of a foreign cultural association in pursuance of an order of the Federal Government under sub-section (3) shall be deemed to be a dissolution in accordance with the provisions of the constitution of the association and the affairs of association shall be wound up in accordance with those provisions.

6. Consequences of dissolution.—Where any foreign cultural association is dissolved, the association or any of its members shall not engage itself or himself in any activities other than such as may be necessary for the winding up of its affairs.

7. Government servant not to become member of a foreign cultural association.— Without prejudice to the provisions of any law for the time being in force no person in the service of the Federal Government or a Provincial Government shall, without the prior permission in writing of such Government, become a member or office-bearer of any foreign cultural association.

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8. Members not to obtain pecuniary advantage. —No member of a foreign cultural association shall, by virtue of being such member, obtain any pecuniary advantage for himself or any other person.

9. Acceptance of foreign assistance. —No foreign cultural association shall, without the previous permission in writing of the Federal Government accept any assistance or aid, in any form whatever, from the government or any other authority, body or organization of a foreign country or from a national thereof.

10. Financial assistance by foreign cultural association prohibited. —No foreign cultural association shall, directly or through any person or in any other manner make any contribution of money or other thing of value, or promise, expressly or impliedly, to make any such contribution in connection with an election to a political office or in connection with any election to the National Assembly, the Senate or a Provincial Assembly of Pakistan.

11. Destruction, etc. of books and records prohibited. —No person shall willfully conceal, destroy, obliterate or mutilate, or attempt to conceal, destroy, obliterate or mutilate, or cause to be concealed, destroyed, obliterated or mutilated, any books or records of any foreign cultural association required to be kept under this Act.

12. Filing of copies of political propaganda. —Every foreign cultural association which, and every member of such association who, transmits by post or otherwise any political propaganda for or in the interests of such association in the form of prints or in any other form which is reasonably adapted to being, or which it or he believes will be, or which it or he intends to be disseminated or circulated among two or more persons shall—

(a) conspicuously mark such political propaganda at its beginning with, or preface it by or attach to it, a true and accurate statement, in the language used in such propaganda, setting forth the connection or relationship between the association or, as the case may be, such member and the political propaganda; and

(b) not later than forty-eight hours after its transmission, file with the Federal Government two copies thereof and a statement, duly signed by a member on behalf of the association or by such member on his own behalf setting forth full information as to the places, times and extent of such transmission.

Explanation.—In this section, "political propaganda" includes any oral, visual, graphic, written, pictorial or other communication or expression by any person which is reasonably adapted to, or which the person disseminating the same believes will, or which he intends to, prevail upon, convert, induce, or in any other way influence a recipient or any section of the public within Pakistan with reference to the political or public interests, policies or relations of the government of a foreign country or a foreign political party or with reference to the foreign policies of Pakistan or promote in Pakistan racial, parochial, religious or social dissension, or which advocates, advises, instigates or promotes any racial, parochial, social, political or religious disorder, civil riot or other conflict involving the use of force or violence or the overthrow of the Government established by law in Pakistan, by any means involving the use of force or violence.

13. Penalties and procedure.— (1) Any person who—

(a) contravenes or does not comply with, any of the provisions of this Act or any rule or order made thereunder;

(b) is a member or office-bearer of a foreign cultural association formed or functioning in contravention of section 3; or

(c) in any report or statement submitted under this Act to the Federal Government or other authority, makes any false statement or false representation;

shall be punishable with imprisonment for a term which may extend to two years, or with fine which may extend to ten thousand rupees, or with both.

(2) No Court shall take cognizance of an offence under this Act except upon a complaint in writing made by or under the authority of the Federal Government.

14. Indemnity. —No suit, prosecution or other legal proceeding shall lie against any person for anything which is in good faith done or intended to be done under this Act.

15. Power to make rules. —The Federal Government may, by notification in the official Gazette make rules for carrying into effect the provisions of this Act.

16. Delegation of Powers. —The Federal Government may, by order, direct that any power conferred on it by this Act shall, in such circumstances and subject to such conditions, if any, as may be specified in the direction, be exercisable also—

(a) by any officer or authority subordinate to the Federal Government; or

(b) by any Provincial Government or by any officer or authority subordinate to such Government.

17. [1][Omitted]

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RGN Date: 08-05-2024

[1]Omitted by the Federal Laws (Revision and Declaration) Ordinance No. XXVII of 1981, s.3 and sch.II.

THE FOREST ACT, 1927

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THE FOREST ACT, 1927

[1]ACT NO. XVI OF 1927

[21st *September,* 1927**]**

An Act to consolidate the law relating to forests, the transit of forest produce and the duty leviable on timber and other forest-produce

WHEREAS it is expedient to consolidate the law relating to forests, the transit of Forests, the transit of forest-produce and the duty leviable on timber and other forest-produce ; It is hereby enacted as follows:—

CHAPTER I

PRELIMINARY

1. Short title and extent,—(1) This Act may be called [2][*] Forest Act, 1927.

[3][(2) It extends to Sind, the Punjab and the North-West Frontier Province (except the District of Hazara).

(3) The Provincial Government of a Province may, by notification in the official Gazette, extend this Act to the whole or any specified part thereof.]

2. Interpretation clause. In this Act, unless there is anything repugnant in the subject or context,—

(1) "cattle" includes elephants, camels, buffaloes, horses, mares, geldings, ponies colts, fillies mules, asses, pigs, rams, ewes, sheep, lambs, goats and kids;

(2) "Forest-officer" means, any person whom [4][* * *] the [5][Provincial Government] or any officer empowered by [4][* * *] the [5][Provincial Government] in this behalf, may appoint to carry out all or any of the purposes of this Act or to do anything required by this Act or any rule made thereunder to be done by a Forest-officer;

(3) "forest-offence" means an offence punishable under this Act or under any rule made thereunder;

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[1]It has also been applied to Phulera in the Excluded Area of Upper Tanawal to the extent the Act is applicable in the N.W.F.P and extended to the Excluded Area of Upper Tanawal (N.W.F.P) other than Phulera with effect from such date and subject to such modifications as may be notified, *see* N.W.F.P (Upper Tanawal) (Excluded Area) Laws Regulation, 1950.
It has been amended in its application to the Province of ___
(i) Punjab, *see* Punjab Act No. IV of 1948, s. 2.
(ii) Sind, *see* Sind Act No. VIII of 1953, s. 2 and
(iii) West Pakistan, by West Pakistan Ordinance IV of 1962, s. 2 (*with effect from the 22nd January, 1962*) and by West Pakistan Act No.VII of 1964, s. 2 (*with effect from he 17th March, 1964*).
The Act, as in force in the North-West Frontier Province immediately before the commencement of N.W.F.P Regulation No. II of 1974, has been applied to the Provincially Administered Tribal Areas of Chitral, Dir, Kalam, Swat and Malakand Protected Area, by N.W.F.P. Regulation, No. II of 1974, s. 3.
[2]The word "Indian" omitted by A.O., 1949.
[3]Subs. by the Federal Laws (Revision and Declaration) Ordinance, 1981 (XXVII of 1981), s. 5 and Sch., IV, for sub-sections (2) and (3).
[4]The words "the G.G. in C. or" omitted by A.O., 1937.
[5]Subs. *ibid.,* for "L.G."

(4) "forest-produce" includes—

(*a*) the following whether found in, or brought from, a forest or not, that is to say:—

timber, charcoal, caoutchouc, catechu, wood-oil, resin, natural varnish, bark, lac, mahua flowers, mahua seeds [1][kuth] and myrabolams, and

(*b*) the following when found in, or brought from, a forest, that is to say:—

(i) trees and leaves, flowers and fruits, and all other parts or produce not herein before mentioned, of trees,

(ii) plants not being trees (including grass, creepers, reeds and moss), and all parts or produce of such plants,

(iii) wild animals and skins, tusks, horns, bones, silk, cocoons, honey and wax, and all other parts or produce of animals, and

(iv) peat, surface soil, rock, and minerals (including limestone, laterite, mineral oils, and all products of mines or quaries);

[2][(4A) "owner" includes a Court of Wards in respect of property under the superintendence or charge of such Court;]

(5) "river" includes any stream, canal, creek or other channels, natural or artificial;

(6) "timber" includes trees, when they have fallen or have been felled, and all wood whether cut up or fashioned or hollowed out for any purpose or not; and

(7) "tree" includes palms, bamboos, stumps, brunch-wood and canes.

CHAPTER II

OF RESERVED FORESTS

THE PAKISTAN CODE

3. Power to reserve forests.—The [3][Provincial Government] may constitute any forest-land or waste-land which is the property of Government, or over which the Government has proprietary rights, or to the whole or any part of the forest produce of which the Government is entitled, a reserved forest in the manner hereinafter provided.

4. Notification by Provincial Government.—(1) Whenever it has been decided to constitute any land a reserved forest, the [3][Provincial Government] shall issue a notification[4] in the [5][official Gazette]—

[1]Ins. by the Indian Forest (Amdt.) Act, 1930 (XXVI of 1930), s. 2.
[2]Clause (4A) ins. by the Indian Forest (Amdt.) Act, 1933 (III of 1933), section. 2.
[3]Subs. by A.O., 1937, for "L.G.".
[4]*See* Government of N.W.F.P., Development Department Notification No. 47207-DD, dated the 21st September, 1951, published in the N.W.F.P. Govt. Gazette dated the 18th September, 1951, Pt. I, p. 285.
[5]Subs. by A.O., 1937, for "local official Gazette".

(*a*) declaring that it has been decided to constitute such land a reserved forest;

(*b*) specifying, as nearly as possible, the situation and limits of such land; and

(*c*) appointing an officer (hereinafter called "the Forest Settlement-officer") to inquire into and determine the existence, nature and extent of any rights alleged to exist in favour of any person in or over any land comprised within such limits or in or over any forest-produce, and to deal with the same as provided in this Chapter.

Explanation.— For the purpose of clause (*b*), it shall be sufficient to describe the limits of the forest by roads, rivers, ridges or other well-known or readily intelligible boundaries.

(2) The officer appointed under clause (*c*) of sub-section (1) shall ordinarily be a person not holding any forest-office except that of Forest Settlement-officer.

(3) Nothing in this section shall prevent the [1][Provincial Government] from appointing any number of officers not exceeding three, not more than one of whom shall be a person holding any forest-office except as aforesaid, to perform the duties of a Forest Settlement-officer under this Act.

5. Bar of accrual of forest-rights.— After the issue of a notification under section 4, no right shall be acquired in or over the land comprised in such notification, except by succession or under a grant or contract in writing made or entered into by or [2][on behalf of the Government] or some person in whom such right was vested when the notification was issued; and no fresh clearings for cultivation or for any other purpose shall be made in such land except in accordance with such rules as may be made by the [1][Provincial Government] in this behalf.

6. Proclamation by Forest Settlement-officer.—When a notification has been issued under section 4, the Forest Settlement-officer shall publish in the local vernacular in every town and village in the neighborhood of the land comprised therein, a proclamation—

(a) specifying, as nearly as possible, the situation and limits of the proposed forest;

(b) explaining the consequences which, as hereinafter provided, will ensue on the reservation of such forest; and

(c) fixing a period of not less than three months from the date of such proclamation, and requiring every person claiming any right mentioned in section 4 or section, 5 within such period either to present to the Forest Settlement officer a written notice specifying or to appear before him and state, the nature of such right and the amount and particulars of the compensation (if any) claimed in respect thereof.

7. Inquiry by Forest Settlement-officer.— The Forest Settlement-officer shall take down in writing all statements made under section 6, and shall at some convenient place inquire into all claims duly preferred under that section, and the existence of any rights mentioned in section 4 or section 5 and not claimed under section 6 so far as the same may be ascertainable from the records of Government and the evidence of any persons likely to be acquainted with the same.

[1]Subs. *ibid.*, for "L.G.".

[2]The original words "on behalf of Govt." were first subs. by A. O., 1937 and then amended by A.O., 1961, Art. 2 (*with effect from the 23rd March, 1956)*, to read as above.

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8. Powers of Forest Settlement-Officers.— For the purpose of such inquiry, the Forest Settlement-officer may exercise the following powers, that is to say:—

(a) power to enter, by himself or any officer authorised by him for the purpose, upon any land, and to survey, demarcate and make a map of the same; and

(b) the powers of a Civil Court in the trial of suits.

9. Extinction of rights.— Rights in respect of which no claim has been preferred under section 6, and of the existence of which no knowledge has been acquired by inquiry under section 7, shall be extinguished, unless before the notification under section 20 is published, the person claiming them satisfies the Forest Settlement-officer that he had sufficient cause for not preferring such claim within the period fixed under section 6.

10. Treatment of claims relating to practice of shifting cultivation.—(1) In the case of a claim relating to the practice of shifting cultivation, the Forest Settlement-officer shall record a statement setting forth the particulars of the claim and of any local rule or order under which the practice is allowed or regulated, and submit the statement to the [1][Provincial Government], together with his opinion as to whether the practice should be permitted or prohibited wholly or in part.

(2) On receipt of the statement and opinion, the [1][Provincial Government] may make an order permitting or prohibiting the practice wholly or in part.

(3) If such practice is permitted wholly or in part, the Forest Settlement-officer may arrange for its exercise—

(*a*) by altering the limits of the land under settlement so as to exclude land of sufficient extent, of a suitable kind, and in a locality reasonably convenient for the purposes of the claimants, or

(*b*) by causing certain portions of the land under settlement to be separately demarcated, and giving permission to the claimants to practice shifting cultivation therein under such conditions as he may prescribe.

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(4) All arrangements made under sub-section (3) shall be subject to the previous sanction of the [1][Provincial Government].

(5) The practice of shifting cultivation shall in all cases be deemed a privilege subject to control, restriction and abolition by the [1][Provincial Government].

11. Power to acquire land over which right is claimed.—(1) In the case of a claim to a right in or over any land, other than a right-of-way or right of pasture, or a right to forest produce or a water-course, the Forest Settlement-officer shall pass an order admitting or rejecting the same in whole or in part.

(2) If such claim is admitted in whole or in part, the Forest Settlement-officer shall either—

(*i*) exclude such land from the limits of the proposed forest; or

(*ii*) come to an agreement with the owner thereof for the surrender of his rights; or

[1]Subs. by A.O., 1937, for "L.G.".

(*iii*) proceed to acquire such land in the manner provided by the Land Acquisition Act, 1894 (I of 1894).

(3) For the purpose of so acquiring such land—

(*a*) the Forest Settlement-officer shall be deemed to be a Collector proceeding under the Land Acquisition Act, 1894 (I of 1894);

(*b*) the claimant shall be deemed to be a person interested and appearing before him in pursuance of a notice given under section 9 of that Act;

(*c*) the provisions of the preceding sections of that Act shall be deemed to have been complied with; and

(*d*) the Collector, with the consent of the claimant, or the Court, with the consent of both parties, may award compensation in land, or partly in land and partly in money.

12. Order on claims to rights of pasture or to forest-produce.—In the case of a claim to rights of pasture or to forest-produce, the Forest Settlement-Officer shall pass an order admitting or rejecting the same in whole or in part.

13. Record to be made by Forest Settlement-Officer.—The Forest Settlement-officer, when passing any order under section 12, shall record, so far as may be practicable,—

(a) the name, father's name, caste, residence and occupation of the person claiming the right; and

(b) the designation, position and area of all fields or groups fields (if any), and the designation and position of all buildings (if any) in respect of which the exercise of such rights is claimed.

14. Record where he admits claim.—If the Forest Settlement-officer admits in whole or in part any claim under section 12, he shall also record the extent to which the claim is so admitted, specifying the number and description of the cattle which the claimant is from time to time entitled to graze in the forest, the season during which such pasture is permitted, the quantity of timber and other forest produce which he is from time to time authorised to take or receive, and such other particulars as the case may require. He shall also record whether the timber or other forest-produce obtained by the exercise of the rights claimed may be sold or bartered.

15. Exercise of rights admitted.—(1) After making such record the Forest Settlement-officer shall, to the best of his ability, having due regard to the maintenance of the reserved forest in respect of which the claim is made, pass such orders as will ensure the continued exercise of the rights so admitted.

(2) For this purpose the Forest Settlement-officer may—

(*a*) set out some other forest-tract of sufficient extent, and in a locality reasonably convenient, for the purposes of such claimants, and record an order conferring upon them a right of pasture or to forest-produce (as the case may be) to the extent so admitted; or

(*b*) so alter the limits of the proposed forest as to exclude forest-land of sufficient extent, and in a locality reasonably convenient, for the purposes of the claimants; or

(*c*) record an order, continuing to such claimants a right of pasture or to forest-produce, as the case may be, to the extent so admitted, at such seasons, within such portions of the proposed forest, and under such rules, as may be made in this behalf by the [1][Provincial Government].

16. Commutation of rights.—In case the Forest Settlement-officer finds it impossible, having due regard to the maintenance of the reserved forest, to make such settlement under section 15 as shall ensure the continued exercise of the said rights to the extent so admitted, he shall, subject to such rules as the [1][Provincial Government] may make in this behalf, commute such rights, by the payment to such persons of a sum of money in lieu thereof, or by the grant of land, or in such other manner as he thinks fit.

17. Appeal from order passed under section 11, section 12, section 15 or section 16.— Any person who has made a claim under this Act, or any Forest-officer or other person generally or specially empowered by the [1][Provincial Government] in this behalf, may, within three months from the date of the order passed on such claim by the Forest Settlement-officer under section 11, section 12, section 15 or section 16, present an appeal from such order to such officer of the Revenue Department, of rank not lower than that of a Collector, as the [1][Provincial Government] may, by notification in the [2][official Gazette], appoint to hear appeals from such orders:

Provided that the [1][Provincial Government] may establish a Court (hereinafter called the Forest Court) composed of three persons to be appointed by the [1][Provincial Government], and, when the Forest Court has been so established, all such appeals shall be presented to it.

18. Appeal under section 17.—(1) Every appeal under section 17 shall be made by petition in writing, and may be delivered to the Forest Settlement-officer, who shall forward it without delay to the authority competent to hear the same.

(2) If the appeal be to an officer appointed under section 17, it shall be heard in the manner prescribed for the time being for the hearing of appeals in matters relating to land-revenue.

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(3) If the appeal be to the Forest Court, the Court shall fix a day and a convenient place in the neighborhood of the proposed forest for hearing the appeal, and shall give notice thereof to the parties, and shall near such appeal accordingly.

(4) The order passed on the appeal by such officer or Court, or by the majority of the members of such Court, as the case may be, shall, subject only to revision by the [1][Provincial Government], be final.

19. Pleaders.—The [1][Provincial Government], or any person who has made a claim under this Act, may appoint any person to appear, plead and act on its or his behalf before the Forest Settlement-officer, or the appellate officer or Court, in the course of any inquiry or appeal under this Act.

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[1]Subs. by A.O., 1937, for "L.G.".
[2]Subs. *ibid.*, for "local official Gazette".

20. Notification declaring forest reserved.—(1) When the following events have occurred, namely:–

(*a*) the period fixed under section 6 for preferring claims has elapsed and all claims, if any made under that section or section 9 have been disposed of by the Forest Settlement-officer ;

(*b*) if any such claims have been made, the period limited by section 17 for appealing from the orders passed on such claims has elapsed, and all appeals (if any) presented within such period have been disposed of by the appellate officer or Court; and

(*c*) all lands (if any) to be included in the proposed forest, which the Forest Settlement-officer has, under section 11, elected to acquire under the Land Acquisition Act, 1894 (I of 1894), have become vested in the Government under section 16 of that Act**,**

[1][Provincial Government] shall publish a notification[2] in the [3][official Gazette], specifying definitely, according to boundary-marks erected or otherwise, the limits of the forest which is to be reserved, and declaring the same to be reserved from a date fixed by the notification.

(2) From the date so fixed such forest shall be deemed to be a reserved forest.

21. Publication of translation of such notification in neighborhood of forest.—The Forest-officer shall, before the date fixed by such notification, cause a translation thereof into the local vernacular to be published in every town and village in the neighborhood of the forest.

22. Power to revise arrangement made under section 15 or section 18.—The [1][Provincial Government] may, within five years from the publication of any notification under section 20, revise any arrangement made under section 15 or section 18, and may for this purpose rescind or modify any order made under section 15 or section 18, and direct that any one of the proceedings specified in section 15 be taken in lieu of any other of such proceedings, or that the rights admitted under section 12 be commuted under section 16.

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23. No right acquired over reserved forest, except as here provided.—No right of any description shall be acquired in or over a reserved forest except by succession or under a grant or contract in writing made by or [4][on behalf of the Government] or some person in whom such right was vested when the notification under section 20 was issued.

24. Rights not to be alienated without sanction.—(1) Notwithstanding anything contained in section 23, no right continued under clause (c) of sub-section (2) of section 15 shall be alienated by way of grant, sale, lease, mortgage or otherwise, without the sanction of the [1][Provincial Government]:

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[1]Subs. by A.O., 1937, for "L.G.".
[2]For such Notifn., *see* Gazette of Sind, 1954, Pt. I, p. 897.
[3]Subs. by A.O., 1937, for "local official Gazette".
[4]The original words "on behalf of the Govt." were first subs. by A.O., 1937 and then amended by A.O., 1961, Art. 2 (*with effect from the 23rd March, 1956*), to read as above

Provided that, when any such right is appendant to any land or house, it may be sold or otherwise alienated with such land or house.

(2) No timber or other forest-produce obtained in exercise of any such right shall be sold or bartered except to such extent as may have been admitted in the order recorded under section 14.

25. Power to stop ways and water-courses in reserved forests.—The Forest-officer may, with the previous sanction of the [1][Provincial Government] or of any officer duly authorised by it in this behalf, stop any public or private way or water-course in a reserved forest, provided that a substitute for the way or water-course so stopped, which the [1][Provincial Government] deems to be reasonably convenient, already exists, or has been provided or constructed by the Forest-officer in lieu thereof.

26. Acts prohibited in such forests.—(1) Any person who—

(*a*) makes any fresh clearing prohibited by section 5, or

(*b*) sets fire to a reserved forest, or, in contravention of any rules made by the [2][Provincial Government] in this behalf, kindles any fire, or leaves any fire burning, in such manner as to endanger such a forest; or who, in a reserved forest—

(*c*) kindles, keeps or carries any fire except at such seasons as the Forest-officer may notify in this behalf,

(*d*) trespasses or pastures cattle, or permits cattle to trespass;

(*e*) causes any damage by negligence in felling any tree or cutting or dragging any timber;

(*f*) fells, girdles, lops, or burns any tree or strips off the bark or leaves from, or otherwise damages, the same;

(*g*) quarries stone, burns lime or charcoal, or collects, subjects to any manufacturing process, or removes, any forest-produce;

(*h*) clears or breaks up any land for cultivation or any other purpose; [or][2]

(*i*) in contravention of any rules made in this behalf by the [1][Provincial Government] hunts, shoots, fishes, poisons water or sets trapes or snares;

[3][* * * * * * *]

[4][* * * * * * *]

[1]Subs. by A.O., 1937, for "L.G.".
[2]The word "or" omitted *ibid.*,
[3]Clause (j) omitted *ibid.*
[4]Subs. by A.O., 1937, for "L.G.".

shall be punishable with imprisonment for a term which may extend to six months, or with fine which may extend to five hundred rupees, or with both, in addition to such compensation for damage done to the forest as the convicting Court may direct to be paid.

(2) Nothing in this section shall be deemed to prohibit—

(*a*) any act done by permission in writing of the Forest-officer, or under any rule made by the [1][Provincial Government] ; or

(*b*) the exercise of any right continued under clause (c) of sub-section (2) of section 15, or created by grant or contract in writing made by or [2][on behalf of the Government] under section 23.

(3) Whenever fire is caused wilfully or by gross negligence in a reserved forest, the [1][Provincial Government] may (notwithstanding that any penalty has been inflicted under this section) direct that in such forest or any portion there of the exercise of all rights of pasture or to forest produce shall be suspended for such period as it thinks fit.

27. Power to declare forest no longer reserved.—(1) The [1][Provincial Government] may, [3][* * *] by notification[4] in the [5][official Gazette], direct that, from a date fixed by such notification, any forest or any portion thereof reserved under the Act shall cease to be a reserved forest.

(2) From the date so fixed, such forest or portion shall cease to be reserved, but the rights (if any) which have been extinguished therein shall not revive in consequence of such cessation.

CHAPTER III

OF VILLAGE-FORESTS

28. Formation of village-forests.—(1) The [1][Provincial Government] may assign to any village-community the rights of Government to or over any land which has been constituted a reserved forest, and may cancel such assignment. All forests so assigned shall be called village-forests.

(2) The [1][Provincial Government] may make rules for regulating the management of village-forests, prescribing the conditions under which the community to which any such assignment is made may be provided with timber or other forest-produce or pasture, and their duties for the protection and improvement of such forest.

(3) All the provisions of this Act relating to reserved forests shall (so far as they are not inconsistent with the rules so made) apply to village-forests.

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[1]Subs. by A.O., 1937, for "L.G.".
[2]The original words "on behalf of Govt." were first subs. by A.O., 1937 and then amended by A.O., 1961, Art. 2 (*with effect from the 23rd March, 1956*), to read as above.
[3]The words "subject to the control of the G.G. in C." omitted, *ibid.,*
[4]For such Notifn., *see* Gazette of West Pakistan, 1957, Pt. I, p. 426.
[5]Subs. by A.O., 1937, for "local official Gazette".

CHAPTER IV

OF PROTECTED FORESTS

29. Protected forests.—(1) The [1][Provincial Government] may, by notification in the [2][official Gazette], declare the provisions of this Chapter applicable to any forest-land or waste-land which, is not included in a reserved forest, but which is the property of Government, or over which the Government has proprietary rights, or to the whole or any part of the forest produce of which the Government is entitled.

(2) The forest-land and waste-lands comprised in any such notification shall be called a "protected forest".

(3) No such notification shall be made unless the nature and extent of the rights of Government and of private persons in or over the forest-land or waste-land comprised therein have been inquired into an recorded at a survey or settlement, or in such other manner as the [1][Provincial Government] thinks sufficient. Every such record shall be presumed to be correct until the contrary is proved:

Provided that, if, in the case of any forest-land or waste land, the [1][Provincial Government] thinks that such inquiry and record are necessary, but that they will occupy such length of time as in the meantime endanger the rights of Government, the [1][Provincial Government] may, pending such inquiry and record, declare such land to be a protected forest, but so as not to abridge or affect any existing rights of individuals or communities.

30. Power to issue notification reserving trees, etc.—The [1][Provincial Government] may, by notification in the [2][official Gazette],—

(a) declare any trees or class of trees in a protected forest to be reserved from a date fixed by, the notification;

(b) declare that any portion of such forest specified in the notification shall be closed for such term, not exceeding thirty years, as the [1][Provincial Government] thinks fit, and that the rights of private persons, if any, over such portion shall be suspended during such terms, provided that the remainder of such forest be sufficient, and in a locality reasonably convenient, for the due exercise of the rights suspended in the portion so closed; or

(c) prohibit, from a date fixed as aforesaid, the quarrying of stone, or the burning of lime or charcoal, or the collection or subjection to any manufacturing process, or removal of, any forest-produce in any such forest, and the breaking up or clearing for cultivation, for building, for herding cattle or for any other purpose, of any land in any such forest.

31. Publication of translation of such notification in neighborhood.—The Collector shall cause a translation into the local vernacular of every notification issued under section 30 to be affixed in a conspicuous place in every town and village in the neighborhood of the forest comprised in the notification.

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[1]Subs. by A.O., 1937, for "L.G.".
[2]Subs. *ibid.*, for "local official Gazette".

32. Power to make rules for protected forests.—The [1][Provincial Government] may make rules to regulate the following matters, namely:

(a) the cutting, sawing, conversion and removal of trees and timber, and the collection, manufacture and removal of forest-produce, from protected forests;

(b) the granting of licences to the inhabitants of towns and villages in the vicinity of protected forests to take trees, timber or other forest-produce for their own use, and the production and return of such licences by such persons;

(c) the granting of licences to persons felling or removing trees or timber or other forest-produce from such forests for the purposes of trade, and the production and return of such licences by such persons;

(d) the payments, if any, to be made by the persons mentioned in clauses (b) and (c) for permission to cut such trees, or to collect and remove such timber or other forest-produce;

(e) the other payments, if any, to be made by them in respect of such trees, timber and produce, and the places where such payment shall be made;

(f) the examination of forest-produce passing out of such forests;

(g) the clearing and breaking up of land for cultivation or other purposes in such forests;

(h) the protection from fire of timber lying in such forests and of trees reserved under section 30;

(i) the cutting of grass and pasturing of cattle in such forests;

(j) hunting, shooting, fishing, poisoning water and setting traps or snares in such forests, and the killing or catching of elephants in such forests [2][* * *] ;

(k) the protection and management of any portion of a forest closed under section 30; and

(l) the exercise of rights referred to in section 29.

33. Penalties for acts in contravention of notification under section 30 or of rules under section 32.—(1) Any person who commits any of the following offences, namely:–

(a) fells, girdles, lops, taps or burns any tree reserved under section 30, or strips off the bark or leaves from, or otherwise damages, any such tree;

(b) contrary to any prohibition under section 30, quarries any stone, or burns any lime or charcoal or collects, subjects to any manufacturing process, or removes any forest-produce;

[1]Subs. by A.O., 1937, for "L.G.".

[2]The words "in areas in which the Elephants Preservation Act, 1879, is not in force" omitted by the Federal Laws (Revision and Declaration) Ordinance, 1981 (XXVII of 1981), s. 5 and Sch., IV, only to the extent of Islamabad Capital Territory.

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(c) contrary to any prohibition under section 30, breaks up or clears for cultivation or any other purpose any land in any protected forest;

(d) sets fire to such forest, or kindles a fire without taking all reasonable precautions to prevent its spreading to any tree reserved under section 30, whether standing fallen or felled, or to say closed portion of such forest;

(e) leaves burning any fire kindled by him in the vicinity of any such tree or closed portion;

(f) fells any tree or drags any timber so as to damage any tree reserved as aforesaid;

(g) permits cattle to damage any such tree;

(h) infringes any rule made under section 32;

shall be punishable with imprisonment for a term which may extend to six months, or with fine which may extend to five hundred rupees, or with both.

(2) Whenever fire is caused wilfully or by gross negligence in a protected forest, the [1][Provincial Government] may, notwithstanding that any penalty has been inflicted under this section, direct that in such forest or any portion thereof the exercise of any right of pasture or to forest-produce shall be suspended for such period as it thinks fit.

34. Nothing in this Chapter to prohibit acts done in certain cases.—Nothing in this Chapter shall be deemed to prohibit any act done with the permission in writing of the Forest-officer, or in accordance with rules made under section 32, or, except as regards any portion of a forest closed under section 30, or as regards any rights the exercise of which has been suspended under section 33, in the exercise of any right recorded under section 29.

CHAPTER V

OF THE CONTROL OVER FORESTS AND LANDS NOT BEING THE PROPERTY OF GOVERNMENT

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35. Protection of forests for special purposes.—(1) The [1][Provincial Government] may, by notification the [2][official Gazette], regulate or prohibit in any forest or waste-land—

(*a*) the breaking up or clearing of land for cultivation;

(*b*) the pasturing of cattle; or

(*c*) the firing or clearing of the vegetation;

when such regulation or prohibition appears necessary for any of the following purposes:—

(i) for protection against storms, winds, rolling stones, floods and avalanches;

[1]Subs. by A.O., 1937, for "L.G.".
[2]Subs. *ibid.*, for "local official Gazette".

(ii) for the preservation of the soil on the ridges and slopes and in the valleys of hilly tracts, the prevention of land-slips or of the formation of ravines and torrents, or the protection of land against erosion, or the deposit thereon of sand, stones or gravel;

(iii) for the maintenance of a water-supply in springs, rivers and tanks;

(iv) for the protection of roads, bridges, railways and other lines of communication;

(v) for the preservation of the public health.

(2) The [1][Provincial Government] may, for any such purpose, construct at its own expense, in or upon an forest or waste-land, such work as it thinks fit.

(3) No notification shall be made under sub-section (1) nor shall any work be begun under sub-section (2), until after the issue of a notice to the owner of such forest or land calling on him to show cause, within a reasonable period to be specified in such notice, why such notification should not be made or work constructed, as the case may be, and until his objections, if any, and any evidence he may produce in support of the same, have been heard by an officer duly appointed in that behalf and have been considered by the [1][Provincial Government].

36. Power to assume management of forests.—(1) In case of neglect of, or wilful disobedience to, any regulation or prohibition under section 35, or if the purposes of any work to be constructed under that section so require, the [1][Provincial Government] may, after notice in writing to the owner of such forest or land and after considering his objections, if any, place the same under the control of a Forest-officer, and may declare that all or any of the provisions of this Act relating to reserved forests shall apply to such forest or land.

(2) The net profits, if any, arising from the management of such forest or land shall be paid to the said owner.

37. Expropriation of forests in certain cases.—(1) In any case under this Chapter in which the [1][Provincial Government] considers that, in lieu of placing the forest or land under the control of a Forest-officer, the same should be acquired for public purposes, the [1][Provincial Government] may proceed to acquire it in the manner provided by the Land Acquisition Act, 1894 (I of 1894).

(2) The owner of any forest or land comprised in any notification under section 35 may, at any time not less than three or more than twelve years from the date thereof, require that such forest or land shall be acquired for public purposes, and the [1][Provincial Government] shall require such forest or land accordingly.

38. Protection of forests at request of owners.—(1) The owner of any land or, if there more than one owner thereof, the owners of shares therein amounting in the aggregate at least two-thirds thereof may, with a view to the formation or conservation of forests thereon, represent in writing to the Collector their desire:—

[1]Subs. by A.O., 1937, for "L.G.".

(*a*) that such land be managed on their behalf by the Forest-officer as a reserved or a protected forest on such terms as may be mutually agreed upon; or

(*b*) that all or any of the provisions of this Act be applied to such land.

(2) In either case, the [1][Provincial Government] may, by notification in the [2][official Gazette], apply to such land such provisions of this Act as it thinks suitable to the circumstances thereof and as may be desired by the applicants.

CHAPTER VI

OF THE DUTY ON TIMBER AND OTHER FOREST-PRODUCE

39. Power to impose duty on timber and other forest-produce.—(1) The [1][Provincial Government] may levy a duty in such manner, at such places and at such rates as it may declare by notification in the [2][official Gazette] on all timber or other forest-produce—

(*a*) which is produced in [3][Pakistan], and in respect of which [4][the Government] has any right;

(*b*) which is brought from any place outside [3][Pakistan] [5][or is transported from or to any place within Pakistan]:

[6][* * * * * * *]

(2) In every case in which such duty is directed to be levied *ad valorem*, the [1][Provincial Government] may fix by like notification the value on which such duty shall be assessed.

[7][* * * * * * *]

40. Limit not to apply to purchase money or royalty.—Nothing in this Chapter shall be deemed to limit the amount, if any, chargeable as purchase-money or royalty on any timber or other forest-produce, although the same is levied on such timber or produce while in transit, in the same manner as duty is levied.

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CHAPTER VII

OF THE CONTROL OF TIMBER AND OTHER FOREST-PRODUCE IN TRANSIT

41. Power to make rules to regulate transit of forest produce.—(1) The control of all rivers and their banks as regards the floating of timber, as well as the control of all timber and other forest-produce in transit by land or water, is vested in the [1][Provincial Government], and it may make rules to regulate the transit of all timber and other forest-produce.

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[1]Subs. by A.O., 1937, for "L.G.".
[2]Subs. by A.O., 1937, for "local official Gazette".
[3]Subs. by the Central Laws (Statute Reform) Ordinance, 1960 (XXI of 1960), s. 3 and 2nd Sch. (*with effect from the 14th October, 1955*), for "the Provinces and the Capital of the Federation" which had been subs. by A.O., 1949, for "British India".
[4]The original words "the Govt." were first subs. by A.O., 1937, and then amended by A.O., 1961, Art. 2 (*with effect from the 23rd March, 1956*), to read as above.
[5]Added by Ordinance X of 1962, s. 2.
[6]Proviso omitted by A.O., 1937.
[7]Sub-sections (3) and (4), as amended by A.O., 1937, omitted by Ordinance X of 1962, s. 2.

(2) In particular and without prejudice to the generality of the foregoing power such rules may—

(*a*) prescribe the routes by which alone timber or other forest-produce may be imported, exported or moved into, from or within [1][the Province];

(*b*) prohibit the import or export or moving of such timber or other produce without a pass from an officer duly authorised to issue the same, or otherwise than in accordance with the conditions of such pass;

(*c*) provide for the issue, production and return of such passes and for the payment of fees therefor;

(*d*) provide for the stoppage, reporting, examination and marking of timber or other forest-produce in transit, in respect of which there is reason to believe that any money is payable to [2][the Government] on account of the price thereof, or on account of any duty, fee, royalty or charge due thereon, or, to which it is desirable for the purposes of this Act to affix a mark;

(*e*) provide for the establishment and regulation of depots to which such timber or other produce shall be taken by those in charge of it for examination, or for the payment of such money, or in order that such marks may be affixed to it; and the conditions under which such timber or other produce shall be brought to, stored at and removed from such depots;

(*f*) prohibit the closing up or obstructing of the channel or banks of any river used for the transit of timber or other forest-produce, and the throwing of grass, brushwood, branches or leaves into any such river or any act which may cause such river to be closed or obstructed;

(*g*) provide for the prevention or removal of any obstruction of the channel or banks of any such river, and for recovering the cost of such prevention or removal from the person whose acts or negligence necessitated the same;

(*h*) prohibit absolutely or subject to conditions, within specified local limits, the establishment of saw-pits, the converting, cutting, burning, concealing or making of timber, the altering or effacing of any marks on the same, or the possession or carrying of marking hammers or other implements used for marking timber;

(*i*) regulate the use of property marks for timber, and the registration of such marks; prescribe the time for which such registration shall hold good; limit the number of such marks that may be registered by any one person, and provide for the levy of fees for such registration.

(3) The [3][Provincial Government] may direct that any rule made under this section shall not apply to any specified class of timber or other forest-produce or to any specified local area.

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[1]Subs. by A.O., 1937, for "British India".
[2]The original word "Govt." was first subs. by A.O., 1937 and then amended by A.O., 1961, Art. 2 (*with effect from the 23rd March, 1956*), to read as above.
[3]Subs. by A.O., 1937, for "L.G.".

[2]**[41A. Powers of Federal Government as to movements of timber across Customs frontiers.—**Notwithstanding anything in section 41 [3][the Federal Government] may make rules to prescribe the route by which alone timber or other forest-produce may be imported, exported or moved into or from [4][Pakistan] across any customs frontier as defined by the [3][Federal Government] and any rules made under section 41 shall have effect subject to the rules made under this section].

42. Penalty for breach of rules made under section 41.—(1) The [1][Provincial Government] may by such rules prescribe as penalties for the contravention thereof imprisonment for a term which may extend to six months, or fine which may extend to five hundred rupees, or both.

(2) Such rules may provide that penalties which are double of those mentioned in sub-section (1) may be inflicted in cases where the offence is committed after sunset and before sunrise, or after preparation for resistance to lawful authority, or where the offender has been previously convicted of a like offence.

43. Government and Forest-officers not liable for damage to forest-produce at depot.—The [1][Government] shall not be responsible for any loss or damage which may occur in respect of any timber or other forest-produce while at a depot established under a rule made under section 41, or while detained elsewhere, for the purposes of this Act; and no Forest-officer shall be responsible for any such loss or damage, unless he causes such loss or damage negligently, maliciously or fraudulently.

44. All persons bound to aid in case of accidents at depot.—In case of any accident or emergency involving danger to any property at any such depot, every person employed at such depot, whether by the [5][Government] or by any private person, shall render assistance to any Forest-officer or Police-officer demanding his aid in averting such danger or securing such property from damage or loss.

CHAPTER VIII

OF THE COLLECTION OF DRIFT AND STRANDED TIMBER

45. Certain kinds of timber to be deemed property of Government until title thereto proved, and may be collected accordingly.—(1) All timber found adrift, beached, stranded or sunk; all wood or timber bearing marks which have not been registered in accordance with the rules made under section 41, or on which the marks have been obliterated, altered or defaced by fire or otherwise; and in such areas as the [1][Provincial Government] directs, all unmarked wood and timber; shall be deemed to be the property of Government, unless and until any person establishes his right and title thereto, as provided in this Chapter.

(2) Such timber may be collected by any Forest-officer or other person entitled to collect the same by virtue of any rule made under section 51, and may be brought to any depot which the Forest-officer may notify as a depot for the reception of drift timber.

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[1]Subs. by A.O., 1937, for "L.G.".
[2]Section 41A ins., *ibid.*
[3]Subs. by F.A.O., 1975, Art. 2 and Table, for "Central Government".
[4]Subs. by the Central Laws (Statute Reform) Ordinance, 1960 (XXI of 1960), s. 3 and 2nd Sch. (*with effect from the 14th October, 1955*), for "the Provinces and the Capital of the Federation" which had been subs. by A.O., 1949, for "British India".
[5]Subs. by A.O., 1961, Art. 2 (*with effect from the 23rd March, 1956*), for "Crown" which had been subs. by A.O., 1937, for "Govt."

(3) The [1][Provincial Government] may, by notification in the [2][official Gazette] exempt any class of timber from the provisions of this section.

46. Notice to claimants of drift timber.—Public notice shall from time to time be given by the Forest-officer of timber collected under section 45. Such notice shall contain a description of the timber, and shall require any person claiming the same to present to such officer, within a period not less than two months from the date of such notice, a written statement of such claim.

47. Procedure on claim preferred to such timber.—(1) When any such statement is presented as aforesaid, the Forest-officer may, after making such inquiry as he thinks fit, either reject the claim after recording his reasons for so doing, or deliver the timber to the claimant.

(2) If such timber is claimed by more than one person, the Forest-officer may either deliver the same to any of such persons whom he deems entitled thereto, or may refer the claimants to the Civil Courts, or retain the timber pending the receipt of an order from any such Court for its disposal.

(3) Any person whose claim has been rejected under this section may, within three months from the date of such rejection, institute a suit to recover possession of the timber claimed by him; but no person shall recover any compensation or costs against the [3][Government], or against any Forest-officer, on account of such rejection, or the detention or removal of any timber, or the delivery thereof to any other person under this section.

(4) No such timber shall be subject to process of any Civil, Criminal or Revenue Court until it has been delivered, or a suit has been brought, as provided in this section.

48. Disposal of unclaimed timber.—If no such statement is presented as aforesaid, or if the claimant omits to prefer his claim in the manner and within the period fixed by the notice issued under section 46, or on such claim having been so preferred by him and having been rejected, omits to institute a suit to recover possession of such timber within the further period fixed by section 47, the ownership of such timber shall vest in the Government, or, when such timber has been delivered to another person under section 47, in such other person free from all encumbrances not created by him.

49. Government and its officers not liable for damage to such timber.—The [3][Government] shall not be responsible for any loss or damage which may occur in respect any timber collected under section 45, and no Forest-officer shall be responsible for any such loss or damage, unless he causes such loss or damage negligently, maliciously or fraudulently.

50. Payments to be made by claimant before timber is delivered to him.—No person shall be entitled to recover possession of any timber collected or delivered as aforesaid until he has paid to the Forest-officer or other person entitled to receive it such sum on account thereof as may be due under any rule made under section 51.

51. Power to make rules and prescribe penalties.—(1) The [1][Provincial Government] may make rules to regulate the following matters, namely:—

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[1]Subs. by A.O., 1937, for "L.G.".
[2]Subs. *ibid.*, for "local official Gazette".
[3]Subs. by A.O., 1961, Art. 2 (*with effect from the 23rd March, 1956*), for "Crown" which had been subs. by A.O., 1937, for "Govt.".

(*a*) the salving, collection and disposal of all timber mentioned in section 45;

(*b*) the use and registration of boats used in salving and collecting timber;

(*c*) the amounts to be paid for salving, collecting, moving, storing or disposing such timber; and

(*d*) the use and registration of hammers and other instruments to be used marking such timber.

(2) The [1][Provincial Government] may prescribe, as penalties for the contravention of any rules made under this section, imprisonment for a term which may extend to six months, or fine which may extend to five hundred rupees, or both.

CHAPTER IX

PENALTIES AND PROCEDURE

[2]**52. Seizure of property liable to confiscation**.—(1) When there is reason to believe that a forest-offence has been committed in respect of any forest-produce, such produce, together with all tools, boats, carts or cattle used in committing any such offence, may be seized by any Forest-officer or Police-officer.

(2) Every officer seizing any property under this section shall place on such property a mark indicating that the same has been so seized, and shall, as soon as may be, make a report of such seizure to the Magistrate having jurisdiction to try the offence on account to which the seizure has been made:

Provided that, when the forest-produce with respect to which such offence is believed to have been committed is the property of Government, and the offender is unknown, it shall be sufficient if the officer makes, as soon as may be, a report of the circumstances to his official superior.

[2]**53. Power to release property seized under section 52**.—Any Forest-officer of a rank not inferior to that of a Ranger who, or whose subordinate, has seized any tools, boats, carts or cattle under section 52, may release the same on the execution by the owner thereof a bond for the production of the property so, released, if and when so required, before the Magistrate having jurisdiction to try the offence on account of which the seizure has been made.

54. Procedure thereupon.—Upon the receipt of any such report, the Magistrate shall, with all convenient despatch, take such measures as may be necessary for the arrest and trial of the offender and the disposal of the property according to law.

[2]**55. Forest-produce, tools, etc., when liable to confiscation.**—(1) All timber or forest-produce which is not the property of Government and in respect of which a forest-offence has been committed, and all tools, boats, carts and cattle used in committing any forest-offence, shall be liable to confiscation.

[1]Subs. by A.O., 1937, for "L.G.".
[2]This section has been amended in the Punjab by the Indian Forest (West Punjab Amdt.) Act, 1948 (IV of 1948), s. 2.

(2) Such confiscation may be in addition to any other punishment prescribed for such offence.

56. Disposal, on conclusion of trial for forest-offence, of produce in respect of which it was committed.—When the trial of any forest-offence is concluded, any forest-produce in respect of which such offence has been committed shall, if it is the property of Government or has been confiscated, be taken charge of by a Forest-officer, and, in any other case, may be disposed of in such manner as the Court may direct.

57. Procedure when offender not known, or cannot be found.—When the offender is not known or cannot be found, the Magistrate may, if he finds that an offence has been committed, order the property in respect of which the offence has been committed to be confiscated and taken charge of by the Forest-officer, or to be made over to the person whom the Magistrate deems to be entitled to the same:

Provided that no such order shall be made until the expiration of one month from the date of seizing such property, or without hearing the person, if any, claiming any rig thereto, and the evidence, if any, which he may produce in support of his claim.

58. Procedure as to perishable property seized under section 52.—The Magistrate may, notwithstanding anything hereinbefore contained, direct the sale of any property seized under section 52 and subject to speedy and natural decay, and may deal with the proceeds as he would have dealt with such property if it had not been sold.

59. Appeal from orders under section 55, section 56 or section 57.—The officer made the seizure under section 52, or any of his official superiors, or any person, claiming to be interested in the property so seized, may, within one month from the date of any order passed under section 55, section 56 or section 57, appeal therefrom to the Court to which orders made by such Magistrate are ordinarily appealable, and the order passed on such appeal shall be final.

60. Property when to vest in Government.—When an order for the confiscation of any property has been passed under section 55 or section 57, as the case may be, and the period limited by section 59 for an appeal from such order has elapsed, and no such an appeal has been preferred, or when, on such an appeal being preferred, the Appellate Court confirms such order in respect of the whole or a portion of such property, such property or such portion thereof, as the case may be, shall vest in the Government free from all incumbrances.

61. Saving of power to release property seized.—Nothing hereinbefore contained shall be deemed to prevent any officer empowered in this behalf by the [1][Provincial Government] from directing at any time the immediate release of any property seized under section 52.

62. Punishment for wrongful seizure.—Any Forest-officer or Police-officer who vexatiously and unnecessarily seizes any property on pretence of seizing property liable to confiscation under this Act shall be punishable with imprisonment for a term which may extend to six months, or with fine which may extend to five hundred rupees, or with both.

[1]Subs. by A.O., 1937, for "L.G.".

63. Penalty for counterfeiting or defacing marks on trees and timber and for altering boundary marks.—Whoever, with intent to cause damage or injury to the public or to any person or to cause wrongful gain as defined in the Pakistan Penal Code (XLV of 1860)—

(*a*) knowingly counterfeits upon any timber or standing tree a mark used by Forest-officers to indicate that such timber or tree is the property of the Government or of some person, or that it may lawfully be cut or removed by some person; or

(*b*) alters, defaces or obliterates any such mark placed on a tree or on timber by under the authority of a Forest-officer; or

(*c*) alters, moves, destroys or defaces any boundary-mark of any forest or waste-land the provisions of this Act are applied, shall be punishable with imprisonment for a term which may extend to two years, or fine, or with both.

64. Power to arrest without warrant.—(1) Any Forest-officer or Police-officer may without orders from a Magistrate and without a warrant, arrest any person against whom a reasonable suspicion exists of his having been concerned in any forest-offence punishable with imprisonment for one month or upwards.

(2) Every officer making an arrest under this section shall, without unnecessary delay and subject to the provisions of this Act as to release on bond, take or send the person arrested before the Magistrate having jurisdiction in the case, or to the officer-in-charge of the nearest police-station.

(3) Nothing in this section shall be deemed to authorise such arrest for any act which is an offence under Chapter IV unless such act has been prohibited under clause (c) of section 30.

65. Power to release on a bond a person arrested.—Any Forest-officer of a rank not inferior to that of a Ranger, who, or whose subordinate, has arrested any person under the provisions of section 64, may release such person on his executing a bond to appear, if and when so required, before the Magistrate having jurisdiction in the case, or before the officer-in-charge of the nearest police-station.

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66. Power to prevent commission of offence.—Every Forest-officer and Police- officer shall prevent, and may interfere for the purpose of preventing, the commission of any forest-offence.

67. Power to try offences summarily.—The District Magistrate or any Magistrate of the first class specially empowered in this behalf by the [1][Provincial Government] may try summarily, under the Code of Criminal Procedure, 1898 (V of 1898), any forest-offence punishable with imprisonment for a term not exceeding six months, or fine not exceeding five hundred rupees, or both.

68. Power to compound offences.—(1) The [1][Provincial Government] may, by notification in the [2][official Gazette], empower a Forest officer—

(*a*) to accept from any person against whom a reasonable suspicion exists that he has committed any forest-offence, other than an offence specified in section 62 or section 63 a sum of money by way of compensation for the offence which such person is suspected to have committed, and

[1]Subs. by A.O., 1937, for "L.G.".
[2]Subs. *ibid.*, for "local official Gazette".

(*b*) when any property has been seized as liable to confiscation, to release the same on payment of the value thereof as estimated by such officer.

(2) On the payment of such sum of money, or such value, or both, as the case may be, to such officer, the suspected person, if in custody, shall be discharged, the property, if any seized shall be released, and no further proceedings shall be taken against such person or property.

(3) A Forest-officer shall not be empowered under this section unless he is a Forest-officer of a rank not inferior to that of a Ranger and is in receipt of a monthly salary amounting to at least one hundred rupees, and the sum of money accepted as compensation under clause (a) of sub-section (1) shall in no case exceed the sum of fifty rupees.

69. Presumption that forest-produce belongs to Government.—When in any proceedings taken under this Act, or in consequence of anything done under this Act, a question arises as to whether any forest-produce is the property of the Government, such produce shall be presumed to be the property of the Government until the contrary is proved.

CHAPTER X

CATTLE-TRESPASS

70. Cattle-trespass Act, 1871, to apply.—Cattle trespassing in a reserved forest any portion of a protected forest which has been lawfully closed to grazing shall be deem to be cattle doing damages to a public plantation within the meaning of section 11 of Cattle-trespass Act, 1871 (I of 1871), and may be seized and impounded as such by Forest-officer or Police-officer.

71. Power to alter fines fixed under that Act.—The [1][Provincial Government] may, notification in the [2][official Gazette], direct that, in lieu of the fines fixed under section 12 of the Cattle-trespass Act, 1871 (I of 1871),, there shall be levied for each head of cattle impounded under section 70 of this Act such fines as it thinks fit, but not exceeding following, that is to say:—

For each elephant	ten rupees.
For each buffalo or camel	two rupees.
For each horse, mare, gelding, pony, colt, filly, mule, bull, bullock, cow, or heifer	one rupee.
For each calf, ass, pig, ram, ewe, sheep, lamb, goat or kid	eight annas.

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CHAPTER XI

OF FOREST-OFFICERS

72. Provincial Government may invest Forest-officers with certain powers.—(1) The [1][Provincial Government] may invest any Forest-officer with all or of the following powers, that is to say:—

[1]Subs. by A.O., 1937, for "L.G.".
[2]Subs. *ibid.*, for "local official Gazette".

(*a*) power to enter upon any land and to survey, demarcate and make a map of the same;

(*b*) the powers of a Civil Court to compel the attendance of witnesses and production of documents and material objects;

(*c*) power to issue a search-warrant under the Code of Criminal Procedure, 1898 (V of 1898); and

(*d*) power to hold an inquiry into forest-offences, and, in the course of such inquiry, to receive and record evidence.

(2) Any evidence recorded under clause (*d*) of sub-section (1) shall be admissible in subsequent trial before a Magistrate, provided that it has been taken in the presence of accused person.

73. Forest-officer deemed public servants.—All Forest-officers shall be deemed to be public servants within the meaning of the Pakistan Penal Code (XLV of 1860).

74. Indemnity for acts done in good faith.—No suit shall lie against any public servant for anything done by him in good faith under this Act.

75. Forest-officers not to trade.—Except with the permission in writing of the [1][Provincial Government], no Forest-officer shall, as principal or agent, trade in timber or other forest-produce, or be or become interested in any lease of any forest or in any contract for working any forest, whether in or outside [2][Pakistan].

CHAPTER XII

SUBSIDIARY RULES

76. Additional powers to make rules.—The [1][Provincial Government] may make rules—

(a) to prescribe and limit the powers and duties of any Forest-officer under this Act;

(b) to regulate the rewards to be paid to officers and informers out of the proceeds of fines and confiscation under this Act;

(c) for the preservation, reproduction and disposal of trees and timber belonging to Government, but grown on lands belonging to or in the occupation of private persons; and

(d) generally, to carry out the provisions of this Act.

77. Penalties for breach of rules. Any person contravening any rule under this Act, for the contravention of which no special penalty is provided, shall be punishable with imprisonment for a term which may extend to one month, or fine which may extend to five hundred rupees, or both.

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[1]Subs. by A.O., 1937, for "L.G.".

[2]Subs. by the Central Laws (Statute Reform) Ordinance, 1960 (XXI of 1960), s. 3 and 2nd Sch. (*with effect from the 14th October, 1955*), for "the Provinces and the Capital of the Federation" which had been subs. by A.O., 1949, for "British India".

78. Rules when to have force of law.—All rules made by the [1][Provincial Government] under this Act shall be published in the [2][official Gazette], and shall thereupon, so far as they are consistent with this Act, have effect as if enacted therein.

CHAPTER XIII

MISCELLANEOUS

79. Persons bound to assist Forest-officers and Police-officers.—(1) Every person who exercises any right in a reserved or protected forest, or who is permitted to take any forest-produce from, or to cut and remove timber or to pasture cattle in, such forest, and every person who is employed by any such person in such forest, and every person in any village contiguous to such forest who is employed by the [3][Government], or who receives emoluments from the [3][Government] for services to be performed to the community,

shall be bound to furnish without unnecessary delay to the nearest Forest-officer or Police-officer any information he may possess respecting the commission of, or intention to commit, any forest-offence, and shall forthwith take steps, whether so required by any Forest-officer or Police-officer or not,—

(*a*) to extinguish any forest fire in such forest of which he has knowledge or information;

(*b*) to prevent by any lawful means in his power any fire in the vicinity of such forest of which he has knowledge or information from spreading to such forest, and shall assist any Forest-officer or Police-officer demanding his aid

(*c*) in preventing the commission in such forest of any forest-offence; and

(*d*) when there is reason to believe that any such offence has been committed in such forest, in discovering and arresting the offender.

(2) Any person who, being bound so to do, without lawful excuse (the burden of proving which shall lie upon such person) fails—

(*a*) to furnish without unnecessary delay to the nearest Forest-officer or Police-(officer any information required by sub-section (1);

(*b*) to take steps as required by sub-section (1) to extinguish any forest fire in a reserved or protected forest;

(*c*) to prevent, as required by sub-section (1), any fire in the vicinity of such forest from spreading to such forest ; or

(*d*) to assist any Forest-officer or Police-officer demanding his aid in preventing the commission in such forest of any forest-offence, or, when there is reason to believe that any such offence has been committed in such forest, in discovering and arresting the offender;

[1]Subs. by A.O., 1937, for "L.G.".
[2]Subs. *ibid.*, for "local official Gazette".
[3]Subs. by A.O., 1961, Art. 2 (*with effect from the 23rd March, 1956*), for "Crown" which had been subs. by A.O., 1937, for "Govt."

shall be punishable with imprisonment for a term which may extend to one month, or with fine which may extend to two hundred rupees, or with both.

80. Management of forests the joint property of Government and other persons.—(1) If the Government and any person be jointly interested in any forest or waste-land, or in the whole or any part of the produce thereof, the [1][Provincial Government] may either—

(*a*) undertake the management of such forest, waste-land or produce, accounting to such person for his interest in the same; or

(*b*) issue such regulations for the management of the forest, waste-land or produce by the person so jointly interested as it deems necessary for the management thereof and the interests of all parties therein.

(2) When the [1][Provincial Government] undertakes under clause (a) of sub-section (1) the management of any forest, waste-land or produce, it may, by notification in the [2][official Gazette], declare that any of the provisions contained in Chapters II and IV shall apply to such forest, waste-land or produce, and thereupon such provisions shall apply accordingly.

81. Failure to perform service for which a share in produce of Government forest is employed.—If any person be entitled to a share in the produce of any forest which is the property of Government or over which the Government has proprietary rights or to any part of the forest-produce of which the Government is entitled, upon the condition of duly performing any service connected with such forest, such share shall be liable to confiscation in the event of the fact being established to the satisfaction of the [1][Provincial Government] that such service is no longer so performed:

Provided that no such share be confiscated until the person entitled thereto, and the evidence, if any, which he may produce in proof of the due performance of such service, have been heard by an officer duly appointed in that behalf by the [1][Provincial Government].

82. Recovery of money due to Government.—All money payable to the Government under this Act, or under any rule made under this Act, or on account of the price of any forest-produce, or of expenses incurred in the execution of this Act in respect of such produce, may, if not paid when due, be recovered under the law for the time being in force as if it were an arrear of land-revenue.

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83. Lien on forest-produce for such money.—(1) When any such money is payable for or in respect of any forest-produce, the amount thereof shall be deemed to be a first charge on such produce, and such produce may be taken possession of by a Forest-officer until such amount has been paid.

(2) If such amount is not paid when due, the Forest-officer may sell such produce by public auction, and the proceeds of the sale shall be applied first in discharging such amount.

(3) The surplus, if any, if not claimed within two months from the date of the sale by the person entitled thereto, shall be forfeited to [3][Government].

[1]Subs. by A.O., 1937, for "L.G.".
[3]Subs. by A.O., 1961, Art. 2, for "His Majesty" (*with effect from the 23rd March, 1956*).

84. Land required under this Act to be deemed to be needed for a public purpose under the Land Acquisition Act, 1894.—Whenever it appears to the [2][Provincial Government] that any land is required for any of the purposes of this Act, such land shall be deemed to be needed for a public purpose within the meaning of section 4 of the Land Acquisition Act, 1894 (I of 1894).

85. Recovery of penalties due under bond.—When any person, in accordance with any provision of this Act, or in compliance with any rule made thereunder, binds himself by any bond or instrument to perform any duty or act, or convenants by any bond or instrument that he, or that he and his servants and agents will obtain from any act, the whole sum mentioned in such bond or instrument as the amount to be paid in case of a breach of the conditions thereof may, notwithstanding anything in section 74 of the Contract Act, 1872 (IX of 1872), be recovered from him in case of such breach as if it were an arrear of land-revenue.

[3]**[85A. Saving for rights for Federal Government.—**[4][Nothing] in this Act shall authorize any Provincial Government to make any order or do any other thing in relation to any [1][Government] property not vested in [5][that Provincial Government] (26 Geo. 5, c. 2.) or otherwise to prejudice any [1][Government] rights, without the consent of the Government or authority concerned.]

86. [6][Omitted]

THE SCHEDULE .—**[7][** *Repealed.***]**

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Dated: 05.04.24

[1]Subs. by A.O., 1961, Art. 2, for "His Majesty" (*with effect from the 23rd March, 1956*).
[2]Subs. by A.O., 1937, for "L.G.".
[3]S. 85A ins. by A.O., 1937.
[4]Subs. by the Federal Laws (Revision and Declaration) Ordinance, 1981 (XXVII of 1981), s. 5 and Sch., IV, only to the extent of Islamabad Capital Territory.
[5]Subs. by A.O., 1961, Art. 2, for "Crown" (*with effect from the 23rd March, 1956.*).
[6]Omitted by the Federal Laws (Revision and Declaration) Ordinance, 1981 (XXVII of 1981), s. 5 and Sch., IV, only to the extent of Islamabad Capital Territory.
[7]Rep. by A.O., 1961, Art. 2 and Sch.

THE FRONTIER CORPS ORDINANCE, 1959

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THE FRONTIER CORPS ORDINANCE, 1959

ORDINANCE No. XXVI OF 1959

[*29th April, 1959*]

An Ordinance to consolidate and amend the law relating to the regulation of the Frontier Corps Units [1]***.

WHEREAS it is expedient to consolidate and amend the law relating to the Regulation of the Frontier Corps Units [1]*** ;

NOW, THEREFORE, in pursuance of the Proclamation of the seventh day of October, 1958, and in exercise of all powers enabling him in that behalf, the President is pleased to make and promulgate the following Ordinance, namely:—

1. Short title commencement and application.—(1) This Ordinance may be called the Frontier Corps Ordinance, 1959.

(2) It shall come into force at once.

(3) It shall apply to the members of the Frontier Corps wherever they may be.

2. Definitions.−In this Ordinance, unless there is anything repugnant in the subject or context,—

(a) "active service" means service against an external aggressor or enemy, or against hostile tribes, raiders or other hostile persons, or persons co-operating with or assisting such aggressor, enemy, tribes, raiders or hostile persons;

(b) "Commandant" means a person appointed under section 5 to be a Commandant of a Unit of the Frontier Corps;

(c) "custody" means the arrest or confinement of a person according to the usages of the service;

[2][(cc) "Deputy Inspector General" means [3][a] the Deputy Inspector General, Frontier Corps, appointed under section 5;]

(d) "Frontier Corps" means the Corps or Unit referred to in section 3 or any of the individual forces comprising it, as the context may require;

(e) "Inspector General" means [3][an] Inspector General, Frontier Corps, appointed under section 5 [4]* * *;

(f) "Junior Commissioned Officer" means a person commissioned, gazetted or in pay, as a Junior Commissioned Officer in the Frontier Corps;

[1] The words "operating in West Pakistan" omitted by the Frontier Corps (Amdt.) Act, 1965 (1 of 1965), s. 2.
[2] Cl. (cc) ins. by the Frontier Corps (Amdt.) Act, 1965 (1 of 1965), s. 3.
[3] Subs. and shall be deemed always to have been so subs. by the Frontier Corps. (Amdt.) Act, 1974 (2 of 1975), s. 3.
[4] The words "and includes the Deputy Inspector General, Frontier Corps appointed under that section" omitted, by Act 1 of 1965 s. 3.

(g) "member of the Frontier Corps" means a person other than a person appointed under section 5 by the [1][Federal Government], who at the commencement of this Ordinance, is serving in the Frontier Corps or who after the commencement of this Ordinance has been appointed to the Frontier Corps under this Ordinance and has signed a recruiting roll set out in the Second Schedule and the affirmation in the form set out in the Third Schedule, if not already signed by him:

Provided that every person who has from the date of enrolment been in the receipt of pay as a member of the Frontier Corps and has been borne on its roll shall be deemed to be a member of the Frontier Corps notwithstanding that he has not signed the said recruiting roll and affirmation;

(h) "officer" means a person, other than a Junior Commissioned Officer, who is commissioned, gazetted or in pay, as an officer of the Pakistan Army or of the Frontier Corps;

[2][(i) "Political Officer" means the Political Agent, Additional Political Agent, Deputy Commissioner, Assistant Political Agent or Magistrate under whose jurisdiction any Unit of the Frontier Corps may be stationed;].

(j) "prescribed" means prescribed by rules made under this Ordinance; and

(k) the expressions "assault", "criminal **force**", "fraudulently", "murder", "reason to believe" and "voluntarily causing hurt" have the meaning respectively assigned to them in the Pakistan Penal Code (XLV of 1860).

3. Powers to maintain Frontier Crops.—There shall continue to be maintained by the [1][Federal Government] the Frontier Corps forces or units as listed in the First Schedule, primarily for the better protection and administration of the external frontiers of Pakistan within the limits of or adjoining the [3][Tribal Areas] of [4][Pakistan]:

Provided that the [1][Federal Government] may, by notification in the official Gazette, make any addition to or omission from the list in that Schedule as and when a new force or unit is raised or an existing one disbanded.

4. Constitution of Frontier Crops.—The Frontier Corps shall be constituted in such manner, and the members of the Frontier Corps shall receive such pay, pension and other remuneration, and shall enjoy such leave and other privileges as may be prescribed by the [2][Federal Government] from time to time.

5. Appointment and powers of superior officers.—(1) The [1][Federal Government] may appoint [5][as many Inspectors General, Frontier Corps, and Deputy Inspectors General, Frontier Corps, as it considers necessary] and the Commandants or other officers of any unit of the Frontier Corps.

[1] Subs. by the Frontier Corps (Amdt) Act, 1974 (2 of 1975), s. 2 for "Central Government".
[2] Cl. (i) subs. by the Frontier Corps (Amdt.) Ordinance, 1965 (35 of 1965), s. 2, for the original clause (i) (with effect from the 15th May, 1965), have further been subs. by the Frontier Corps (Amdt.) Ordinance, 1981 (9 of 1981), s. 2, to read as above.
[3] Subs. by A.O., 1964, Art. 2 and Sch., for "Special Areas".
[4] Subs. by F.A.O., 1975, Art. 2 and Sch., for "West Pakistan".
[5] Subs. and shall be deemed always to have been so subs., by Act, 1974 (2 of 1975), s. 4.

[1][(1A) Where the Federal Government appoints more than one Inspector General or Deputy Inspector General, it shall, by notification in the official Gazette, specify the area within which each one of them shall exercise jurisdiction under this Ordinance.]

(2) Every Commandant and other officer so appointed shall possess, and may exercise, such powers and authority over the subordinate officers and members of the Frontier Corps for the time being under their command as is provided by or under this Ordinance.

6. Appointment of subordinate officers and men.—(1) The appointment of all subordinate officers and other members of the Frontier Corps shall be made by the Inspector General or the Commandants in such manner and subject to such conditions as may be prescribed.

(2) Before a person is appointed under sub-section (1) the statement contained in the recruiting roll and affirmation set out respectively in the Second and Third Schedules shall at any convenient place be read out and, if necessary, explained to him in the presence of a Commandant, or other officer appointed under section 5, and shall thereafter be signed by such person in acknowledgement of its having been so read out to him.

(3) When the affirmation set out in the Third Schedule is read out it shall be repeated by the person making affirmation before he signs it.

7. Superintendence, command control and administration of Frontier Crops.—(1) The superintendence of and command and control over the Frontier Corps shall vest in the [2][Federal Government], and the Frontier Corps shall be administered, commanded and controlled by the Inspector General and the Commandants in accordance with the provisions of this Ordinance and any rules made thereunder and such orders and instructions as may be made or issued by the [2][Federal Government] from time to time.

[3][(2) Every Frontier Corps and the Commandant of every Unit of a Frontier Corps shall, in time of peace, be subject, save in respect of administration, internal economy and training, to the directions of the Political Agent or the Deputy Commissioner of the Area within which the headquarters of the Frontier Corps are located.]

8. More heinous offences.—(1) Every member of the Frontier Corps who—

(a) begins, excites, causes or conspires to cause or joins in any mutiny, or being present at any mutiny does not use his utmost endeavours to suppress it, or knowing, or having reason to believe in, the existence of any mutiny or of any intention or conspiracy to mutiny, or of any conspiracy against the authority of the Government does not, without delay, give information thereof to his superior officer ; or

(b) uses, or attempts to use, criminal force to, or commits an assault on, his superior officer whether on or off duty and whether or not knowing or having reason to believe him to be such ; or

(c) shamefully abandons or delivers up any garrison, fortress, post or guard which is committed to his charge, or which it is his duty to defend ; or

(d) directly or indirectly holds correspondence with, or assists or relieves,

[1] Ins. by the Frontier Corps (Amdt.) 1974 (2 of 1975), s. 2.
[2] Subs. by the Frontier Corps (Amdt) Act, 1974 (2 of 1975), s.2, for "Central Government".
[3] Subs. by the Frontier Corps (Amdt.) Act, 1965 (1 of 1965), s. 4, for the original sub-section (2).

any person in arms against the authority of the Government, or omits to disclose immediately to his superior officer any such correspondence coming to his knowledge ; or

[1][(dd) deserts the Frontier Corps ; or]

(e) while on active service—

(i) disobeys the lawful command of his superior officer; or

[2]* * * * * * *

(iii) being a sentry, sleeps upon his post, or quits it without being regularly relieved or without leave ; or

(iv) leaves his superior officer or his post or party to go in search of plunder ; or

(v) quits his guard, picquet party or patrol without being regularly relieved or without leave ; or

(vi) uses criminal force to, or commits an assault on, any person bringing provisions or other necessaries to camp or quarters, or forces a safe-guard, or breaks into any house or other place for plunder, or plunders, destroys or damages any property of any kind ; or

(vii) intentionally causes or spreads a false alarm in action or in camp, garrison or quarters ; or

(viii) displays cowardice in the execution of his duty; shall be punishable, in the case of clause (a), with death or imprisonment for a term which may extend to fourteen years, and in other cases, with [3][imprisonment] for life or for a period of not less than seven years, or with imprisonment for a term which may extend to fourteen years, or with fine which may extend to three months' pay and allowances excluding warm clothing and half mounting allowances, or with fine to that extent in addition to such sentence of [4]* * * imprisonment:

Provided that if any member of the Frontier Corps while on active service with a force beyond the limits of Pakistan commits any offence described in clause (c), clause (d) or [5][clause (dd)], he may be punished with death.

(2) If any member of the Frontier Corps is charged with committing any offence described in clause (a) of sub-section (1), or an offence punishable under the proviso to that sub-section, or the offence of murder, he may, notwithstanding anything contained in this Ordinance or in any other law for the time being in force, be summarily tried for such offence by the Political Officer [6][* * *] sitting with two other officers appointed by the Political Officer in consultation with the Com-mandant for such purpose.

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[1] Cl. (dd) ins. by the Frontier Corps (Amdt.) Act 1965 (I of 1965), s. 5.
[2] Sub-Clause (ii) Omitted, *ibid*.
[3] Subs. by the Federal Laws (Revision and Declaration) Ordinance, 1981 (27 of 1981), s. 3 and Sch. II.
[4] Omitted, ibid.
[5] Subs. by the Frontier Corps (Amdt.) Act, 1965 (1 of 1965), s. 5, for "sub-clause (ii) of clause (e)".
[6] Omitted by the Frontier Corps (Amdt.) Ordinance, 1981 (9 of 1981), s. 3.

(3) Every officer appointed under sub-section (2) shall be either—

(a) a person appointed under section 5, or

(b) a person holding a commission in the Pakistan Army; or

(c) a civil officer of the Provincial or [1][Federal Government] holding Gazetted Class I post:

Provided that, if circumstances permit, not less than one such officer shall be a person appointed under section 5.

(4) Notwithstanding anything contained in any other law for the time being in force, if in a trial under sub-section (2) one or both of the officers sitting with the Political Officer concur with him in finding the accused person guilty of an offence referred to in that sub-section, and if the Political Officer considers the case one in which a sentence of death should be passed, he may, in passing such sentence, direct that the accused person shall be forthwith shot to death, and such sentence shall be carried out in accordance with such direction.

9. Less heinous offences. Every member of the Frontier Corps who—

(a) is in a state of intoxication when on, or after having been warned for, any duty, or on parade or on the line of march; or

(b) strikes or attempts to force any sentry; or

(c) being in command of a guard, picquet or patrol, refuses to receive any prisoner or person duly committed to his charge, or releases without proper authority any prisoner or person placed under his charge, or negligently suffers any such prisoner or person to escape; or

(d) being under arrest or in confinement, leaves his arrest or confinement before he is set at liberty by proper authority; or

(e) is grossly insubordinate or insolent to his superior officer in the execution of his office; or

(f) refuses to superintend or assist in the making of any fieldwork or other work of any description ordered to be made either in quarters or in the field; or

(g) strikes or otherwise ill-uses any member of the Frontier Corps subordinate to him in rank or position; or

(h) being in command at any post or on the march, and receiving a report that any one under his command has beaten or otherwise maltreated or oppressed any person or has committed any riot or trespass, fails, on proof of the truth of the report, to report the matter to the proper authority; or

(i) designedly or through neglect injures or loses or fraudulently disposes, of, his arms, clothes, tools, equipments, ammunition, accoutrement [2][, animals] or Frontier Corps necessaries, or any such articles entrusted to him or belonging to any other person, or any animals belonging to the Frontier Corps; or

[1] Subs. by the Frontier Corps (Amdt.) Act, 1974 (2 of 1975), s. 2 for "Central Government".
[2] Ins. by the Frontier Corps (Amdt.) Act, 1965 (1 of 1965), s. 6.

(j) malingers, or feigns or produces disease or infirmity in himself, or intentionally delays his cure or aggravates his disease or infirmity; or

(k) with intent to render himself or any other person unfit for service, voluntarily causes hurt to himself or any other person; or

(l) does not, when called upon by his superior officer so to do or, upon ceasing to be a member of the Frontier Corps forthwith deliver up, or duly account for, all or any arms, ammunition, stores, accoutrements or other property issued or supplied to him, or in his custody or possession, as a member of the Frontier Corps; or

(m) knowingly furnishes a false return or report of the number or state of any men under his command or charge or of any money, arms ammunition, clothing equipments, stores or other property in his charge, whether belonging to such men or to the Government or to any member of, or any person attached to, the Frontier Corps, or through design or culpable neglect omits or refuses to make or send any return or report of any of the matters aforesaid; or

(n) absents himself without leave, or without sufficient cause over-stays leave granted to him; or

(o) contravenes any provision of this Ordinance for which no punishment is expressly provided; or

(p) is guilty of any act or omission which, though not specified in this Ordinance, is prejudicial to good order and discipline; or

(q) while not on active service, commits any of the offences described in clause (e) of sub-section (1) of section 8, shall be punishable with imprisonment for a term which may extend to one year, or with fine which may extend to three months pay and allowances excluding half mounting and warm clothing allowances or with both.

10. Summary punishments.—(1) The Inspector General may, subject to any rules made under this Ordinance summarily award, in lieu of or in addition to suspension, [1][Compulsory retirement,] removal, or dismissal from service, any one or more of the following punishments to any member of the Frontier Corps whom he considers to be guilty of disobedience, neglect of duty or remissness in the discharge of any duty, or of rendering himself unfit to discharge his duty, or of other misconduct in his capacity as a member of the Frontier Corps, that is to say:—

(a) reduction in rank;

(b) fine to any amount not exceeding one month's pay and allowances;

(c) detention in quarters for a term not exceeding one month;

(d) rigorous imprisonment for a term not exceeding two years, with or without drill, extra guard, fatigue or other duty;

(e) removal from any office of distinction or special emolument in the Frontier Corps;

(f) extra guards and picquets;

[1] Ins. by the Frontier Corps (Amdt.) Ordinance, 1981 (9 of 1981), s. 4.

[1][(g) forfeiture of increment in pay;]

(h) in the case of Junior Commissioned Officers and non commissioned officers, reprimand or severe reprimand:

Provided that the punishments specified in clauses (c) and (d) shall not be awarded to Junior Commissioned Officers.

[2][(1A) The Inspector General may delegate, to such extent and in respect of such Frontier Corps as he may think fit, the powers conferred upon him by sub-section (1) to the Deputy Inspector General.]

(2) A Commandant may, in respect of members of the Frontier Corps subordinate to him exercise the powers conferred on the Inspector General by sub-section (1):

Provided that a Commandant shall not award imprisonment for a term exceeding one year, or, in the case of a Junior Commissioned Officer, the punishment of reduction in rank.

(3) A Commandant may delegate, to such extent as he may think fit, the powers conferred upon him by sub-section (2) to any person appointed under section 5 who is under his command.

11. Place of imprisonment, and liability to dismissal on imprisonment.—(1) Every person sentenced under this Ordinance to imprisonment [3]* * * may be removed or dismissed from the Frontier Corps and shall be further liable by special order of the [4][Federal Government] or the Court, to forfeiture of pay and allowances and other public money due to him as well as of any medals and decorations received by him.

(2) Every person so sentenced to imprisonment shall, if he is so removed or dismissed, be imprisoned in the nearest prison or such other prison as the [4][Central Government] may, by general or special order, direct, but if he is not so removed or dismissed, he may, if the Court or the Commandant so directs, be confined in the quarter guard or such other place as the Court or the Commandant may consider suitable.

12. Deductions from pay and allowances. The following penal deductions may be made from the pay and allowances of a member of the Frontier Corps by the Commandant under whom he is serving, that is to say,—

(a) all pay and allowances excluding half mounting and warm clothing allowances for every day of absence either on desertion or without leave and for every day of imprisonment by a Criminal Court or of rigorous imprisonment awarded under section 10;

(b) all pay and allowances excluding half mounting and warm clothing allowances for every day while he is in custody on a charge for an offence of which he is afterwards convicted;

[1] Subs. by the Frontier Corps (Amdt.) Act, 1965 (1 of 1965), s. 7, for the original clause (g).
[2] Sub-section (1A), ins. *ibid*.
[3] Omitted by the Federal Laws (Revision and Declaration), 1981 (27 of 1981), s. 3, and Sch. II.
[4] Subs. by the Frontier Corps (Amdt.) Act, 1974, (2 of 1975), s.2., for "Central Government".

(c) all pay and allowances excluding half mounting and warm clothing allowances for every day on which he is in hospital on account of sickness certified by the medical officer attending on him at the hospital to have been caused by an offence under this Ordinance committed by him;

(d) good service or good conduct pay ordered to be forfeited under section 10; and

(e) such sum as may be ordered by the Inspector General or the Commandant in order to make good any expenses caused by the member of the Frontier Corps, or any loss by him of, or damage or destruction done by him to, any arms, ammunition, equipment, clothings, instruments, decorations or necessaries belonging to the Frontier Corps or to any buildings or property,

13. Collective fines.—Whenever any weapon or part of a weapon or ammunition forming part of the equipment of a company or other similar unit of the Frontier Corps is lost or stolen, the Commandant may, after making such inquiry as he thinks fit and subject to such rules as may be prescribed, impose a collective fine upon the subordinate officers and men of such unit, or upon so many of them as in his judgment should be held responsible for such loss or theft.

14. Resignation and withdrawal from the Frontier Crops. No member of the Frontier Corps shall be at liberty to—

(a) resign his appointment during the term of engagement,

(b) withdraw himself from all or any of the duties of his appointment, without the sanction of the Commandant under whom he is serving or of some other officer authorized by the Commandant to grant such sanction.

15. General duties of members of the Frontier Crops.—(1) It shall be the duty of every member of the Frontier Corps promptly to obey and to execute all orders and warrants lawfully issued to him by any competent authority, to detect and bring offenders to justice, and to apprehend all persons whom he is legally authorized to apprehend and for whose apprehension sufficient grounds exist.

(2) Every member of the Frontier Corps shall be liable to serve anywhere without and beyond, as well as within, the land frontiers of Pakistan.

16. Protection of persons serving in the Frontier Crops.—(1) In any suit or proceeding against any person appointed under section 5 or any member of the Frontier Corps for any act done by him in pursuance of a warrant or order of a competent authority, it shall be lawful for him to plead that such act was done by him under the authority of such warrant or order.

(2) Such plea may be proved by the production of the warrant or order directing the act, and if it is so proved, the defendant shall thereupon be discharged from liability in respect of the act so done by him, notwithstanding any defect in the jurisdiction of the authority which issued the warrant or order.

(3) Notwithstanding anything contained in any other law for the time being in force, all suits and proceedings (whether civil or criminal) against any person which may lawfully be brought for anything done or intended to be done under the powers conferred by, or in pursuance of, any provision of this Ordinance or the rules made thereunder, shall be commenced within three months after the act complained of was committed, and not otherwise, and notice in writing of such suit or proceeding and of the cause thereof shall be give to the defendant or his superior officer one month at least before the commencement of the suit or proceeding.

17. Jurisdiction.—(1) Notwithstanding anything contained in the Code of Criminal Procedure, 1898 (Act V of 1898), the [1][Federal Government] may declare that any Court specified for the purpose and no other shall be deemed to be the Court of Session or the Court of a Magistrate for the disposal of cases or any class of cases arising under this Ordinance and that appeals from sentences passed under this Ordinance or from any class of such sentences shall lie to any authority specified by the [1][Federal Government] and no other.

(2) Any person invested with any powers under the Code of Criminal Procedure, 1898 (Act V of 1898), for the disposal of any case under this Ordinance within the limits of Pakistan shall, in relation to any case arising under this Ordinance beyond such limits, have the same power and be subject to the same conditions as to appeal and other matters as if such case had arisen within such limits.

18. Commencement and execution of sentence.—(1) Whenever any person is sentenced under this Ordinance to [2][imprisonment for life], rigorous imprisonment or detention, the term of sentence shall, whether it has been revised or not, be reckoned to commence on the day on which the original proceedings were signed by the Court.

(2) Whenever any sentence of [2][imprisonment for life] or rigorous imprisonment is passed under this Ordinance, or whenever any sentence of death so passed is commuted to [2][imprisonment for life] or to rigorous imprisonment, the Commandant of the corps to which the person under sentence belongs, or such other officer as may be specified by the Inspector General shall forward a warrant in the prescribed form to the officer in charge of the civil prison in which such person is to be confined and shall forward him to such prison with the warrant:

Provided that in the case of a sentence of rigorous imprisonment for a period not exceeding one month, the Court, may direct that the sentence shall be carried out in the Frontier Corps custody:

Provided further that, on active service, a sentence of rigorous imprisonment may be carried out by confinement in such place as the Commandant of the corps in the field, may, from time to time appoint.

(3) Whenever, in the opinion of the Inspector General, any sentence or portion of a sentence of imprisonment cannot, for special reasons, be conveniently carried out in accordance with the aforementioned provision, the Inspector General, may direct that such sentence or portion of sentence shall be carried out by confinement in any civil prison or other fit place.

19. Execution of sentence of detention.—Where a sentence of detention is passed under this Ordinance the person on whom that sentence has been passed shall undergo the term of his detention either in a detention barrack specified by the Inspector General for the purpose, or in the Frontier Corps custody, or partly in one and partly in the other but not in a prison.

20. [Interim Custody of offenders sentenced to transportation.]— Omitted by the Frontier Corps (Amdt.) Ordinance, 1981 (9 of 1981), s. 6.

21. Conveyance of prisoners from place to place.—A person under sentence of [3][imprisonment for life], rigorous imprisonment or detention may, during his conveyance from place to place, be subjected to such restraint as is necessary for his safe conduct and removal.

22. Communication of certain orders to civil prison officers.— Whenever an order is duly made under this Ordinance setting aside or varying any sentence, order or warrant under which any person is confined in a civil prison, a warrant in accordance with such order shall be forwarded by the court or the officer, appointed for the purpose by the Inspector General, to the officer in charge of the prison in which the person is confined.

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[1] Subs. by the Frontier Corps (Amdt.) Act, 1974 (2 of 1975), s. 2, for "Central Government".
[2] Subs. by the Frontier Corps (Amdt.) Ordinance, 1981 (9 of 1981), s. 5, for "Transportation".
[3] Subs., *ibid*, s.7.

23. Custody of offenders.— (1) Any person subject to this Ordinance who is charged with any offence may be taken into Frontier Corps custody by any Junior Commissioned Officer or non-commissioned officer senior in rank to the person charged with any offence:

Provided that in the case offences of mutiny or murder, the offender may also be arrested by any person junior to him in rank.

(2) Every Commandant shall take care that a person under his command when charged with an offence is not detained in custody for more than forty-eight hours after the committal of such person into custody is reported to him, without the charge being investigated, unless investigation within that period seems to him to be impracticable having due regard to the public service and every case of a person detained in custody beyond a period of forty-eight hours and the reason therefore shall be reported by the Commandant to the prescribed authority while making an application for the trial of the person charged:

Provided that in reckoning the period of forty-eight hours all public holidays shall be excluded.

(3) In every case where any such person as is mentioned in sub-section (1) remains in custody for a period exceeding eight days, without the orders of his trial, a special report giving reason for the delay shall be made by the Commandant concerned to the Inspector General.

24. Capture of deserters.—(1) Whenever any person subject to this Ordinance deserts, his Commandant shall give written information of the desertion to such civil authorities as in his opinion may be able to afford assistance towards the capture of the deserter and such authorities shall thereupon take steps for the apprehension of the said deserter in like manner as if he were a person for whose apprehension a warrant had been issued by a magistrate, and shall deliver the deserter, when apprehended, to Frontier Corps custody.

(2) Any police officer may arrest without warrant any person whom he reasonably believes to be subject to this Ordinance and a deserter or absentee without leave and bring him without delay before the nearest magistrate, as if he were a deserter from the Pakistan Army.

25. Saving.— No suit, prosecution or other legal proceeding shall lie for anything which is in good faith done or intended to be done under this Ordinance or any rules made thereunder.

26. Power to make rules.—The [1][Federal Government] may, by notification in the official Gazette, make rules[2]—

(a) regulating the functions and powers of persons appointed under section 5;

(b) regulating the classes and grades of, and the remuneration to be paid to, members of the Frontier Corps and their conditions of service;

(c) fixing the period of service for members of the Frontier Corps in any local areas;

(d) regulating the award of summary punishments under section 10, and providing for appeals from or the revision of, orders under that section, and for the remission of fines imposed under that section and of deductions made under section 12;

(e) regulating the several or collective liability of members of the Frontier Corps in the case of the loss or theft of weapons or ammunitions; and

[1] Subs. by the Frontier Corps (Amdt.) Act, 1974 (2 of 1975), s. 2, for "Central Government".
[2] For the Frontier Corps Rules, 1961, see Gaz. of P., 1961, Pt. I, pp. 228—232.

(f) generally, for the purpose of carrying into effect the [1][provisions] of this Ordinance.

27. [Repeal.]— Omitted by the Federal Laws (Revision and Declaration) Ordinance, 1981 (27 of 1981), s. 3 and II Sch.

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[2][FIRST SCHEDULE]

(See section 3)

Frontier Corps forces maintained by the Federal Government—

A. Frontier Corps, North-West Frontier Province—

(1) The Headquarters, Frontier Corps, North-West Frontier Province;

(2) The Chitral Scouts;

(3) The Khyber Rifles;

(4) The Khurram Militia;

(5) The Thall Scouts;

(6) The Tochi Scouts;

(7) The South Waziristan Scouts;

(8) The Dir Scouts;

(9) The Mohmand Rifles;

(10) The Mahsud Scouts ;

(11) The Bajaur Scouts;

(12) The Shawal Rifles ;

(13) Training Centre; and

(14) The Kohistan Scouts;

B. Frontier Corps, Baluchistan—

(1) The Headquarters, Frontier Corps, Baluchistan;

(2) The Zhob Militia;

(3) The Pishin Scouts;

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[1] Subs. by the Frontier Corps (Amdt.) Act, 1965 (1 of 1965), s. 8, for "purposes".

[2] Subs. by the Frontier Corps (Amdt.) Ordinance, 1981 (9 of 1981), s. 8 for the first Schedule which was previously amended by Act, 1 of 1965 and Ordinance, 35 of 1965, to read as above.

(4) The Chagai Militia;

(5) The Mekran Scouts;

(6) The Kalat Scouts;

(7) The Sibi Scouts;

(8) The Maiwand Rifles;

(9) Training Center;

(10) The Bhambore Rifles;

(11) The Ghazaband Scouts;

(12) The Kharan Rifles and

(13) The Loralai Scouts.]

SECOND SCHEDULE

[See section 6(2)]

(Recruiting roll)

After you have served in the Frontier Corps for such period as has been fixed under the Frontier Corps Ordinance, 1959, you may at any time when not on active service, apply for your discharge, through the officer to whom you may be subordinate to the Commandant, and you will be granted your discharge after three months from the date of your application, unless your discharge would cause the vacancies in that unit of the Frontier Corps to exceed one-tenth of the sanctioned strength, in which case you shall be bound to remain until this objection is waived or removed. But when on active service, you shall have no claim to a discharge, and you shall be bound to remain to do your duty until the necessity for retaining you in the Frontier Corps ceases, when you may make your application in the manner mentioned above.

Signed in acknowledgement of the above having been read out to me. I have understood the purport of what has been read out.

Person enrolled

Date……

Signed in my presence after I had ascertained that the recruit understood the purport of what he signed.

Commandant or other enrolling officer.

Date…….

THIRD SCHEDULE

FORM OF AFFIRMATION

[*See* section 6(2)]

I, ... solemnly affirm in the presence of Almighty God that I will be faithful and bear true allegiance to the Government of Pakistan and that I will, as in duty bound, honestly and faithfully serve in the Pakistan Frontier Corps and go within the terms of my enrolment wherever I may be ordered by air, land or sea, and that I will observe and obey all commands of any officer set over me even to the peril of my life.

Signed in acknowledgement of the above
having been read out to me.
I subscribed to it.

……

Signed in my presence after I had
ascertained that the person
understood the purport of
what he signed.

…….

Roman Urdu Translation of Affirmation

Main . . . . . Khuda-i-Taala ko Hazir-o-nazir jankar iman se iqrar karta hun kh main Pakistan ki Hukumat ka sache dil se wafadar rahunga aur Pakistan Frontier Corps men imandari aur wafadari se khidmat ka farz baja launga. Bharti hone ki sharait ke mutabiq hawa, khushki ya tari ke raste jahan bhi jane ka hukam melega jaounga our jise mera afsar muqarrar kia jaega, uske sab hukam ki tamil our pairwi karunga, khah us men jan ka khatra ho.

Roman Pushto Translation of Affirmation

Zeh ……Pak Khudai Taala hazir au nazir ganran, au laiman sara iqrar kawam the zo ba da Pakistan da Hukumat pa wafadari au da khpul zrah sidq zara ba da Pakistan Frontier Corps khidmat kawam, au laka the ma bande farz wi so ba da zrah sadiq sara da bhartai da shartunu pa mutdbiq, da darya khushki ya da hawa pa liyare har charta the ma to hukam wushi ba zam au harsok the pa ma bande afsar muqarrar wi da hagba tolo bukmuno ba tamil au pairwi kawam ka pa de ke da zan khatra, ham wi.

[1][Roman Baluchi Translation of Affirmation,

Man……. Khuda-i-Tala-Ha-Hazir-o-Nazir Zanta Imana Goon Quol Khna ghan ke man Pakistan ae Hukumata Goon sidiq-e-Dila wafadare beyan Pakistan Frontier Corps-e-Taha Imandari-o-Wafadari Khidmat-o-Farzha ada Kanen, Bharti Bayage sooratht Hawa, Hushki ya Daryae-o-Zirri Raha Goon Key har Handia ke Rawagae Hukum Beraseeot-Rawaan-o-Har kesey dey mani Afsar Muqarrar kanag bibeet aanhiencae har Hukama manna Tonrhein key anhienha ma saaye Kahtra bibeet.].

[1] Added by the Frontier Corps (Amdt.) Ordinance, 1981 (9 of 1981), s. 9.

THE FUNDS VESTING IN THE PRESIDENT (TRANSFER) ACT, 1973

CONTENTS

1. Short title and commencement

2. Vesting of Funds in Federal Government and their utilisation

THE SCHEDULE

THE PAKISTAN CODE

THE FUNDS VESTING IN THE PRESIDENT (TRANSFER) ACT, 1973

ACT NO. LX OF 1973

[11th *August*, 1973]

An Act to provide for the administration of certain Funds vesting in the President

WHEREAS it is expedient to provide for the administration of certain Funds vesting in the President and for matters connected therewith;

It is hereby enacted as follows:—

1. Short title and commencement.—(1) This Act may be called the Funds Vesting in the President (Transfer) Act, 1973.

(2) It shall come into force at once.

2. Vesting of Funds in Federal Government and their utilisation. —(1) Notwithstanding anything contained in any other law or instrument, the Funds specified in the Schedule, together with income and profits accruing thereon, shall vest in the Federal Government.

(2) The amounts in the aforesaid Funds shall be utilised for the purposes for which they were raised or for purposes as similar thereto as the circumstances may permit.

THE SCHEDULE

[*See* section 2 (1)]

1. President's Relief Fund instituted in 1972.

2. President's Palestine and Arab Relief Fund.

3. Tazeenul Quran Fund.

4. Presidents' Welfare Fund.

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RGN Date: 08-05-2024

THE GENEVA CONVENTION IMPLEMENTING ACT, 1936

CONTENTS

1. Short title and extent
2. Prohibition of use of emblems “Red Cross”, “Red Crescent”, etc.
3. Prohibition of use of emblem of white cross on red ground or imitations thereof
4. Penalty
5. Previous sanction for prosecution

*6.

THE PAKISTAN CODE

*Omitted

THE GENEVA CONVENTION IMPLEMENTING ACT, 1936

*ACT No. XIV OF 1936

[27th *October*, 1936]

An Act to implement Article 28 of the Geneva Convention of the 27th day of July, 1929.

WHEREAS India was a signatory to the International Convention for the Amelioration of the Conditions of the Wounded and Sick in Armies in the Field, drawn up in Geneva and dated the 27th day of July, 1929;

[1][AND WHEREAS Pakistan is a party to the Geneva Red Cross Conventions, 1949, and has ratified Article 53 of the Convention for the Amelioration of the Condition of the Wounded and Sick in Armed Forces in the Field, dated the twelfth day of August, 1949,]

AND WHEREAS it is necessary to provide for the discharge of the obligations imposed by Article 28 of [1][the aforesaid Convention dated the twenty-seventh day of July, 1929, and the aforesaid Article 53 of the Convention dated the twelfth day of August, 1949,] in so far as provision has not been made by the Geneva Convention Act, 1911 (1 & 2 Geo. 5., c. 20); It is hereby enacted as follows:—

1. Short title and extent.—(1) This Act may be called the Geneva Convention Implementing Act, 1936.

[2][(2) It extends to the whole of Pakistan.]

[3]**[2. Prohibition of use of emblems "Red Cross", "Red Crescent", etc.—** No person other than a person entitled thereto under the Geneva Convention shall use, or in any manner exhibit, whether for the purpose of trade or business or for any other purpose or object whatsoever, the emblem or the designation "Red Cross", "Red Crescent", "Red Lion and Sun" or "Sun" or any sign of designation constituting an imitation thereof, irrespective of the date of the adoption of any such emblems or designation by such person:

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Provided that the emblem "Red Cross" may, with the permission in writing of the Society, be used in time of peace to identify vehicles used as ambulances or to mark the position of aid stations set up exclusively for giving free medical treatment to the wounded or sick.

Explanation.— In this section,—

(i) "Geneva Convention" means the Geneva Convention for the Amelioration of the Condition of the Wounded and Sick in Armed Forces in the Field, dated the twelfth day of August, 1949 ; and

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*This Act has been extended to the Leased Areas of Baluchistan, *see* the Leased Areas (Laws) Order, 1950, (G. G. O. 3 of 1950); and applied in the Federated Areas of Baluchistan, *see* Gazette of India, 1937, Pt. I, p. 1499.

[1]Ins. and subs. by Act No. III of 1954, s. 2 (*with effect from the 7th Apri1,1955*).

[2]Subs. by the Central Laws (Statute Reform) Ordinance, 1960 (XXI of 1960) s. 3 and 2nd Sch., (*with effect from the 14th October, 1955*).

[3]Subs. by Act No. XXI of 1963, s. 2.

[1][(ii) "the Society" means the Pakistan Red Crescent Society constituted under the Pakistan Red Crescent Society Act.]]

3. Prohibition of use of emblem of white cross on red ground or imitations thereof. No person shall use for the purposes of his trade or business the heraldic emblem of the white cross on a red ground, being the federal colours of Switzerland, or any sign constituting a colourable imitation of that heraldic emblem.

4. Penalty. Any person contravening the provisions of section 2 or section 3 shall be punishable with fine which may extend to fifty rupees, and when such contravention is committed by a company, association or body of individuals, then, without prejudice to the liability of such company, association or body, every member thereof who is knowingly a party to the contravention shall be liable to the like penalty.

5. Previous sanction for prosecution. No criminal Court shall take cognizance of any offence punishable under this Act except with the previous sanction of the [2][Federal Government] [3][* * *].

6. [4][Omitted**]**

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Date: 08-05-2024

[1] Subs. by the Federal Laws (Revision and Declaration) Ordinance, 1981 (XXVII of 1981), s.3 and Sch. II, for clause (ii).
[2] Subs. by F.A.O., 1975 (P.O. No. 4 of 1975), Art. 2 and Table, for "Central Government".
[3] Omitted by A.O., 1937.
[4] Omitted by Act No. III of 1954, s. 4 (*with effect from the 7th April, 1955*).

THE GLANDERS AND FARCY ACT, 1899

CONTENTS

1. Short title and extent
2. Definition of "diseased"
3. Application of Act to local areas by Provincial Government
4. Provincial Government to appoint Inspectors
5. Power of entry and search
6. Power of seizure
7. Horse to be examined by Veterinary Practitioner
8. Horse to be destroyed if found diseased: otherwise restored
9. When horse diseased, place where it has been to be disinfected, etc.
10. Owner or person incharge of diseased horse to give notice
11. Prohibition against removal, without license of horse which has been with diseased horse
12. Vexatious entries, searches and seizures
13. Penalty for refusing to comply with notice under section 9, or for removing horse contrary to section 11
14. Power to make rules
15. Appointment of same person to be both Inspector and Veterinary Practitioner
16. Protection to persons acting under Act
17. [*Repealed*]

THE SCHEDULE.—[*Repealed*]

THE PAKISTAN CODE

THE GLANDERS AND FARCY ACT, 1899
ACT No. XIII OF 1899

[*20th March,* 1899]

An Act to consolidate and amend the law relating to Glanders and Farcy.

WHEREAS it is expedient to consolidate and amend the law relating to glanders and farcy; It is hereby enacted as follows:–

1. Short title and extent.— (1) This Act may be called the Glanders and Farcy Act, 1899.

[1][(2) It extends to the whole of Pakistan]; [2][*]

[2][* * * * * * *]

2. Definition of "diseased".—(1) In this Act, unless there is anything repugnant in the subject or context, "diseased" means affected with glanders or farcy or any other dangerous epidemic disease among horses which the [3][Provincial Government] may, by [4]notification in the [5][official Gazette], specify in this behalf [6]* * *.

(2) The provisions of this Act relating to horses shall apply also to [7][camels], asses and mules.

[8]**[3. Application of Act to local areas by Provincial Government.**— (1) The [9][Provincial Government] may, by notification[10] in the [11][official Gazette], apply this Act or any provision of this Act to any local area, to be specified in such notification, within the Province.

(2) In any such notification the [9][Provincial Government] may further direct that the Act or any provision so applied shall apply in respect of–

(*a*) all or any of the diseases mentioned or specified in a notification under section 2, sub-section (1),

(*b*) all animals or any class of animals mentioned in section 2, sub-section (2).]

4. Provincial Government to appoint Inspectors.— (1) When this Act has been so applied to a local area, the [9][Provincial Government] may, by notification in the [11][official Gazette], appoint[12] such persons as it thinks fit to be Inspectors under this Act and to exercise and perform, within the whole of the local area or such portions thereof as it may prescribe, the powers conferred and the duties imposed by this Act on such officers.

(2) Every person so appointed shall be deemed to be a public servant within the meaning of the Pakistan Penal Code (XLV of 1860).

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[1]Subs. by the Central Laws (Statute Reform) Ordinance, 1960 (21 of 1960), s. 3 and 2nd Sch. (*with effect from the 14th October,* 1955

[2]Rep. by the Repealing and Amending Act, 1914 (10 of 1914), s. 3 and Sch. II.

[3]Subs. by A.O., 1937, for "L. G." which were subs. by the Devolution Act, 1920 (38 of 1920), s. 2 and Sch. I, for "G. G. in C.".

[4]For notifications under this sub-section as amended by Act 11 of 1901 as regards certain local areas, *see* Gaz. of India, 1906, Pt. I, p. 205, *see* also different local Rules and Orders.

[5]Subs. by A.O., 1937, for the words "local official Gazette" which were subs. by Act 38 of 1920, s. 2 and Sch. I, for "Gaz. of India".

[6]Certain words rep. by the Repealing Act, 1927 (12 of 1927), s. 2 and Sch.

[7]Ins. by the Glanders and Farcy (Amdt.) Act, 1920 (9 of 1920), s. 2.

[8]Subs. *ibid.*, s. 3, for the original section.

[9]Subs. by A.O., 1937, for "L. G.".

[10]For such notifications, *see* different local Rules and Orders.

For notifn. applying the Act to the whole Area of the Karachi Administration, *see* Gaz. of Karachi, 1959, Pt. II, p. 209.

[11]Subs. by A.O., 1937, for "local official Gazette."

[12]For instances of notifications under this section, *see* different local Rule s and Orders.

5. Power of entry and search. Within the local limits for which he is so appointed, any such Inspector as aforesaid may, subject to such rules as the [1][Provincial Government] may make in this behalf, enter and search any field, building or other place for the purpose of ascertaining whether there is therein any horse which is diseased.

6. Power of seizure. Within such limits as aforesaid, the Inspector may seize any horse which he has reason to believe to be diseased.

7. Horse to be examined by Veterinary Practitioner.— (1) On any such seizure as aforesaid, the Inspector shall cause the horse seized to be examined as soon as possible by such Veterinary Practitioner as the [1][Provincial Government] may appoint[2] in this behalf:

Provided that, when the Inspector is also a Veterinary Practitioner so appointed, he may make the examination himself.

(2) For the purposes of the examination, the Veterinary Practitioner may submit the horse to any test or tests which the [1][Provincial Government] may prescribe.

8. Horse to be destroyed if found diseased: otherwise restored.— (1) If the Veterinary Practitioner certifies in writing that the horse is diseased, the Inspector shall cause the same to be immediately destroyed :

Provided that, in the case of any disease other than glanders or farcy, horses certified to be diseased as aforesaid may, subject to any rules[3] which the [1][Provincial Government] may make in this behalf, be either destroyed or otherwise treated or dealt with as the Veterinary Practitioner may deem necessary.

(2) If, after completing the examination, the Veterinary Practitioner does not certify that the horse is diseased, the Inspector shall at once deliver the same to the person entitled to the possession thereof.

9. When horse diseased, place where it has been to be disinfected, etc.— (1) When any diseased horse has been in any building, shed or other enclosed place, or in any open lines, the Inspector may issue a notice to the owner of the building, shed, place or lines, or to the person in charge thereof, directing him to have the same disinfected and the internal fittings thereof, or such other things found therein or near thereto as the [1][Provincial Government] may by rule prescribe, destroyed.

(2) On the failure or neglect of such owner or other person as aforesaid to comply with the notice within a reasonable time, the Inspector shall cause the building, shed, place or lines to be disinfected and the fittings or other things to be destroyed, and the expense (if any) thereby incurred may be recovered from the owner or other person as if it were a fine.

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[1]Subs. by A.O., 1937, for "L. G.".
[2]For instances of notifications under this section, *see* different local Rules and Orders.
[3]For such rules, *see* different local Rules and Orders.

10. Owner or person incharge of diseased horse to give notice. The owner or any person in charge of a diseased horse shall give immediate information of the horse being diseased to the Inspector or to such authority as the [1][Provincial Government] may appoint[2] in this behalf.

11. Prohibition against removal, without license of horse which has been with diseased horse. No person in charge of any horse which has been in the same field, building or place as, or in contact with, a diseased horse, shall remove such horse except in good faith for the purpose of preventing infection, or under a license to be granted by the Inspector and subject to the conditions of the license.

12. Vexatious entries, searches and seizures.— (1) Whoever, being an Inspector appointed under this Act, vexatiously and unnecessarily enters or searches any field, building or other place, or seizes or detains any horse on the pretence that it is diseased, shall be punishable with imprisonment for a term which may extend to six months, or with fine which may extend to five hundred rupees, or with both.

(2) No prosecution under this section shall be instituted after the expiry of three months from the date on which the offence has been committed.

13. Penalty for refusing to comply with notice under section 9, or for removing horse contrary to section 11. Whoever refuses or neglects to comply with any notice issued by the Inspector under section 9, or removes any horse in contravention of section 11, shall be punishable with imprisonment for a term which may extend to one month, or with fine which may extend to fifty rupees, or with both.

14. Power to make rules.—(1) The [1][Provincial Government] may make rules[3] to carry out the purposes and objects of this Act.

(2) In particular and without prejudice to the generality of the foregoing power, such rules as aforesaid may—

(*a*) regulate entries, searches and seizures by Inspectors under this Act;

(*b*) regulate the use of test and the isolation of horses subjected thereto, and provide for recovering the expense of detaining, isolating and testing horses from the owners or persons in charge thereof as if it were a fine;

(*c*) regulate the destruction or treatment, as the case may be, of horses certified under section 8 to be diseased, and the disposal of the carcases of diseased horses;

(*d*) regulate the disinfecting of buildings and places in which diseased horses have been, and prescribe what things found therein or near thereto shall be destroyed ; and

(*e*) regulate the grant of licenses under section 11 and the conditions on which those licenses shall be granted.

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[1]Subs. by A.O.,1937, for "L. G.".
[2]For officers so appointed, *see* different local Rules and Orders.
[3]For such rules, *see* different local Rules and Orders.

THE PAKISTAN CODE

(3) All rules under this section shall be published in the [1][official Gazette], and, on such publication, shall have effect as if enacted by this Act.

(4) In making any rule under this section, the [2][Provincial Government] may direct that a breach of it shall be punishable with imprisonment for a term which may extend to one month, or with fine which may extend to fifty rupees, or with both.

15. Appointment of same person to be both Inspector and Veterinary Practitioner. Any Veterinary Practitioner may be appointed by the [2][Provincial Government] to be both Inspector and Veterinary Practitioner for all or any of the purposes of this Act or of any rule thereunder.

16. Protection to persons acting under Act. No suit, prosecution or other legal proceeding shall lie against any person for anything which is, in good faith, done or intended to be done under this Act.

17. [*Repeal.*] *Rep. by the Repealing and Amending Act,* 1914 (*X of* 1914), *s.* 3 *and Schedule II.*

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THE SCHEDULE.—[*Enactments repealed.*] *Rep. by the Repealing and Amending Act,* 1914 (*X of* 1914), *s.* 3 *and Schedule II.*

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THE PAKISTAN CODE

Date: 11-09-2024

[1]Subs. by A.O., 1937, for "local official Gazette."

[2]Subs. *ibid.*, for "L. G."

THE GOVERNMENT BUILDINGS ACT, 1899

CONTENTS

1. Short title and extent

2. "Municipal authority" defined

3. Exemption of certain Government buildings from municipal laws to regulate the erection, etc. of buildings within municipalities

4. Objections or suggestions as to erection, etc., of certain Government buildings within municipalities how to be made and dealt with

THE PAKISTAN CODE

THE GOVERNMENT BUILDINGS ACT, 1899

[1]ACT NO. IV OF 1899

[*3rd February,* 1899]

An Act to provide for the exemption from the operation of municipal building laws of certain buildings and lands which are the property, or in the occupation, of the Government and situate within the limits of a municipality.

WHEREAS it is expedient to provide for the exemption from the operation of municipal building laws of certain buildings and lands which are the property, or in the occupation, of the Government and situate within the limits of a municipality ;

It is hereby enacted as follow :—

1. Short title and extent.—(1) This Act may be called the .

[2][(2) It extends to the whole of Pakistan]; [3]*

[3] [* * * * * * *]

2. "Municipal authority" defined. In this Act the expression "municipal authority" includes a municipal corporation or a body of municipal commissioners constituted by, or under the provisions of, any law or enactment for the time being in force.

3. Exemption of certain Government buildings from municipal laws to regulate the erection, etc. of buildings within municipalities. Nothing contained in any law or enactment for the time being in force to regulate the erection, re-erection, construction, alteration or maintenance of buildings within the limits of any municipality shall apply to any building used or required for the public service or for any public purpose, which is the property, or in the occupation, of [4][the [5][Government]], or which is to be erected on land which is the property, or in the occupation, of [4][the [5][Government]]:

THE PAKISTAN CODE

[1]For Statement of Objects and Reasons, *see* Gaz. of India. 1896, Pt. V,.256; for Report of the Select Committee, *see ibid.*, 1899, Pt. V, p.15; and for Proceedings in Council, *see ibid.*, 1899, Pt. VI, pp. 2, 15 and 20.
This Act has been declared to be in force in Baluchistan by the British, Baluchistan Laws Regulation, 1913 (2 of 1913).
It has also been extended to the Leased Areas of Baluchistan, *see* the Leased Areas (Laws) Order, 1950 (G.G.O. 3 of 1950); and applied in the Federated Areas of Baluchistan, *see* Gazette of India, 1937, Pt. 1, p. 1499.

[2] Subs. by the Central Laws (Statute Reform) Ordinance, 1960(21 of 1960), s. 3 and 2nd Sch. (*with effect from the 14th October,* 1955), for the original sub-section (2), as amended by A.O.,1949, Arts. 3(2) and 4.

[3] The word "and" and sub-section (3) rep. by the Repealing and Amending Act, 1914 (10 of 1914). s. 3 and Sch. II.

[4]Subs. by A.O., 1937, for "the Govt.".

[5] Subs. by A.O., 1961, Art. 2. for "Crown" (*with effect from the 23rd March, 1956*).

Provided that, where the erection, re-erection, construction or material structural alteration of any such building as aforesaid (not being a building connected with [1]* defence, or a building the plan or construction of which ought, in the opinion of [2][the Government concerned], to be treated as confidential or secret) is contemplated, reasonable notice of the proposed work shall be given to the municipal authority before it is commenced.

4. Objections or suggestions as to erection, etc., of certain Government buildings within municipalities how to be made and dealt with.—(1) In the case of any such building as is mentioned in the last preceding section (not being a building connected with [1]* defence or a building the plan or construction of which ought, in the opinion of [2][the Government concerned], to be treated as confidential or secret), the municipal authority, or any person authorized by it in this behalf, may, with the permission of the [3][Provincial Government] previously obtained, but not otherwise, and subject to any restrictions or conditions which may, by general or special order, be imposed by the [3][Provincial Government], inspect the land and building and all plans connected with its erection, re-erection, construction or material structural alteration, as the case may be, and may submit to the [3][Provincial Government] a statement in writing of any objections or suggestions which such municipal authority may deem fit to make with reference to such erection, re-erection, construction or material structural alteration.

(2) Every objection or suggestion submitted as aforesaid shall be considered by the [3][Provincial Government], which shall, after such investigation (if any) as it shall think advisable, pass orders thereon, and the building referred to therein shall be erected, re-erected, constructed or altered, as the case may be, in accordance with such orders:

Provided that, if the [3][Provincial Government] over-rules or disregards any such objection or-suggestion as aforesaid, it shall give its reasons for so doing in writing.

[4][* * * * * * *]

THE PAKISTAN CODE

Date: 05-09-2024

[1]The word "Imperial" omitted by A. O., 1949, Sch.
[2]Subs. by A. O., 1937, for "the Govt.".
[3]Subs. *ibid*., for "L.G.".
[4]Subs-section(3) rep., *ibid*.

THE GOVERNMENT GRANTS ACT, 1895

CONTENTS

1. Title and extent
2. Transfer of Property Act, 1882, not to apply to Government grants
3. Government grants to take effect according to their tenor

THE PAKISTAN CODE

THE GOVERNMENT GRANTS ACT, 1895

[1]ACT No. XV OF 1895

[10th October 1895]

An. Act to explain the Transfer of Property Act, 1882, so far as relates to grants from the [2][Government], and to remove certain doubts as to the powers of the [2][Government] in relation to such grants.

WHEREAS doubts have arisen as to the extent and operation of the Transfer of Property Act, 1882, and as to the power of the 1882 [2][Government] to impose limitations and restrictions upon grants and other transfers of land made by it or under its authority, and it is expedient to remove such doubts; It is hereby enacted as follows :

1. Title and extent.—(1) This Act may be called the [2][Government] Grants Act, 1895.

[3][(2) It extends to the whole of Pakistan] ; [4]*

[4][* * * * * * *]

2. Transfer of Property Act, 1882, not to apply to Government grants. Nothing in the Transfer of Property Act, 1882, contained shall apply or be deemed ever to have applied to any grant or other transfer of land or of any interest therein heretofore made or hereafter to be made [5][by or on behalf of the [2][Government]] to, or in favour of, any person whomsoever; but every such grant and transfer shall be construed and take effect as if the said Act had not been passed.

3. Government grants to take effect according to their tenor. All provisions, restrictions, conditions and limitations over contained in any such grant or transfer as aforesaid shall be valid and take effect according to their tenor, any rule of law, statute or enactment of the Legislature to the contrary notwithstanding.

THE PAKISTAN CODE

Date: 05-09-2024

[1]For Statement of Objects and Reasons, see Gazette of India, 1895, Pt. V, p. 169, and for Proceedings in Council, see ibid.. Pt. VI, pp. 328 and 355. This Act has been declared to be in force in Baluchistan by the British Baluchistan Laws Regulation, 1913 (2 of 1913), s. 3 and Sch . I.
It has also been extended to the Leased Areas of Baluchistan, see the Leased Areas (Laws) Order, 1950, (G. G. O. 3 of 1950); and applied in the Federated Areas of Baluchistan, see Gazette of India, 1937, Pt. I, p. 1499.

[2]Subs. by A. 0., 1961, Art. 2 and Sch., for "Crown" (with effect from the, 23rd March, 1956).

[3]Subs. by the Central Laws (Statute Reform) Ordinance, 1960 (21of 1960), s. 3 and, 2nd Sch. (with effect from the 14th October, 1955), for the original sub-section (2) as amended by A. 0., 1949, Arts. 3 (2) and 4.
The word "and" at the end of sub-section (2), and sub-section (3), rep. by the Repealing and Amending Act, 1914 (1 0 of 1914), s. 3 and Sch. II.

[5]Subs. by A. O., 1937, for "by or on behalf of Her Majesty the Queen Empress, Her heirs or successors, or by or on behalf of the Secretary of Sta for India in Council".

THE GOVERNMENT MANAGEMENT OF PRIVATE ESTATES ACT, 1892

CONTENTS

1. Title and extent
2. Definitions
3. Power to levy rate
4. Power to levy special charges
5. Saving as to special expenditure
6. Validation of levy of past rates
7. Powers to make rules
8. Exemption from jurisdiction of Courts
9. [Repeal.]

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THE GOVERNMENT MANAGEMENT OF PRIVATE ESTATES ACT, 1892

[1]ACT No. X OF 1892

[25th October, 1892]

An Act to provide for the levy of a rate on private estates under the management of the Government to meet the cost of supervision and management.

WHEREAS it is expedient to provide for the levy of a rate on private estates under the management of the Government to cover the cost of all Government establishments in so for as they are employed in the supervision and management of such estates, other than establishments specially entertained for any particular estate or group of estates, and to meet all contingent expenditure incurred by the Government in connection with such supervision and management; It is hereby enacted as follows :—

1. Title and extent.–(1) This Act may be called the Government Management of Private Estates Act, 1892.

[[2](2) It extends to the whole of Pakistan.] ; [3]*

[3][* * * * * * *]

2. Definitions.–In this Act, unless there is something repugnant in the subject or context,—

(l) "immoveable property" includes land, buildings, hereditary allowances, rights to ways, lights, ferries, fisheries or any other benefit to arise out of land, and things attached to the earth or permanently fastened to anything which is attached to the earth but not standing timber, growing crops or grass;

(2) "gross income" includes all receipts of every kind in produce or cash, except money borrowed, recoveries of principal and the proceeds of sale of immoveable property or of moveable property properly classed as capital; and

(3) "private estates under Government management" include–

[1]For Statement of Objects and Reasons, *see* Gazette of India, 1892, Pt. V, p. 14; for Report of the Select Committee, *see ibid*., 1892, Pt. V, p. 69 and for Proceedings in Council, *see ibid*., 1892, Pt. VI, p. 73.

This Act has been extended to the Leased Areas of Baluchistan, see the Leased Areas (Laws) Order, 1950 (G. G. O. 3 of 1950); and applied in the Federated Areas of Baluchistan, see Gazette of India, 1937, Pt. I, p. 1499.

This Act has been amended to the extent of Islamabad Capital Territory, see Ord. No. 27 of 1981, s. 5 and 4th Sch.

[2]Subs. by the Central Laws (Statute Reform) Ordinance, 1960 (21 of 1960), s. 3 and 2nd Sch. (*with effect from the 14th October, 1955*), for the original sub-section (2), as amended by the Burma Laws Act, 1898 (13 of 1898), s. 18 and Sch. V, the Federal Laws (Revision and Declaration) Act, 1951 (26 of 1951), s. 8, and A. O., 1949, Arts. 3 (2) and 4.

[3]The word "and" at the end of sub-section (2), and sub-section (3) rep. by the Repealing and Amending Act, 1914 (10 of 1914), s.3 and Sch. II.

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(a) estates under the Court of Wards;

(b) encumbered estates under Government management;

(c) estates attached for default of payment of Government revenue;

(d) minors' estates placed under the guardianship of a revenue-officer of the Government by a Civil Court;

(e) estates managed by a Collector in pursuance of any order made under the [1][Code of Civil Procedure, 1908 (Act V of 1908)] (XLV of 1882) and

(f) all other estates made over to or taken under the management of a revenue- officer of the Government as such under any law for the time being in force or in virtue of any agreement.

3. Power to levy rate. It shall be lawful for the [2][Provincial Government]–

(1) to levy on all private estates under Government management a rate not exceeding five percent on the gross income, calculated, as nearly as may be possible, to cover

(a) the cost of all Government establishments in so far as they may be employed in the supervision or management of such estates other than establishments specially entertained for the supervision or management of any particular estate or group of estates, and

(b) all contingent expenditure incurred in consequence of such supervision or management;

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(2) from time to time to vary such rate; and

(3) to reduce or remit such rate in any special case or cases as may be equitable:

Provided that, in deciding the amount of the rate to be levied under this Act on any particular estate or group of estates, the [2][Provincial Government] shall consider the expenditure incurred on special establishments for such estate or estates.

4. Power to levy special charges. In cases where an officer of the Government is employed to give legal advice or to audit accounts on behalf of any estate, the [2][Provincial Government], if it considers the services rendered to be of a special nature, may, in its discretion, direct a special charge to be made against that estate on account of such services, irrespective of the rate leviable under the last foregoing section.

[1]Sub by Ord. XXVII of 1981, s.5 & Sch. IV (only to the extent of Islamabad Capital Territory).
[2]Subs. by A. O., 1937, for "L. G.".

5. Saving as to special expenditure. Nothing in this Act shall apply to the cost of establishments specially entertained or to expenditure of any description specially incurred in respect of any particular estate or estates.

6. Validation of levy of past rates. All rates for general supervision or management levied by any [1][Provincial Government] before the commencement of this Act shall be deemed to have been levied under this Act.

7. Powers to make rules. The [1][Provincial Government] may make any rules[2] and issue any orders which may be necessary for carrying this Act into effect, and which are consistent therewith.

8. Exemption from jurisdiction of Courts. Where any Government establishment is employed in such supervision as aforesaid, the [1][Provincial Government] shall be the sole judge of the cost attributable to such employment, and its decision thereon shall not be questioned in any Court of Law or otherwise.

9. [Repeal.] Rep.by the Repealing and Amending Act, 1914 (X of 1914), s.3 and Schedule II.

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Date: 05-09-2024

[1]Subs. by A. O., 1937, for "L. G.".
[2]For rules made under this section, see different local Rules and Orders.

THE GWADUR (APPLICATION OF CENTRAL LAWS) ORDINANCE, 1960

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1. Short title

2 Application of Federal Laws

3. Savings

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THE GWADUR (APPLICATION OF CENTRAL LAWS) ORDINANCE, 1960

ORDINANCE No. XXXVII OF 1960.

[31st August, 1960]

An Ordinance for applying to Gwadur all Central laws which are or may hereafter be in force in the Mekran District in the Kalat Division of the Province of West Pakistan.

WHEREAS Gwadur, being ceded to Pakistan on the eighth day of September, 1958, became on that day one of the territories included in Pakistan ;

AND WHEREAS Article 2 of the Gwadur (Government and Administration) Order, 1958 (P. O. 8 of 1958), provides that until otherwise determined by competent authority, Gwadur shall, for purposes of government and administration, and all matters connected therewith, constitute part of the Mekran District in the Kalat Division of the Province of West Pakistan. ;

AND WHEREAS it is expedient to apply to Gwadur all Central laws which are or may hereafter be in force in the aforesaid Mekran District ;

NOW, THEREFORE, in pursuance of the Proclamation of the seventh day of October, 1958, and in exercise of all powers enabling him in that behalf, the President is pleased to make and promulgate the following Ordinance:—

1. Short title.—This Ordinance may be called the Gwadur (Application of Central Laws) Ordinance, 1960.

2. Application of [2][Federal] Laws.—(1) All [2][Federal] Acts, including all Orders and other enactments, and all notifications, rules, bye-laws or directions made or issued thereunder, which were in force in the District of Mekran in the Kalat Division of the Province of West Pakistan immediately before the eighth day of September, 1958, shall be and shall be deemed to have been in force in Gwadur with effect from the said day, and shall continue in force, subject always to such amendments as may have been or may be made therein by or under proper authority.

[1][* * * * * * *]

3. Savings.—(1) Any law or legal instrument having the force of law in Gwadur (hereinafter called Gwadur law) in force immediately before the eighth day of September, 1958, and corresponding to the provisions of any [2][Federal] law applied by the preceding section, shall stand repealed on and from the said day, and shall be deemed to have been re-enacted by such [2][Federal] law, as if the Gwadur law were a [2][Federal] Act, and the provisions of the General Clauses Act, 1897 (X of 1897), shall apply accordingly.

(2) Notwithstanding the provisions of sub-section (1), anything done, action taken, right accrued, or liability, penalty, forfeiture or punishment incurred, under any Gwadur law on or after the eighth day of September, 1958, and immediately before the commencement of this Ordinance, shall be deemed to have been validly done, taken, accrued or incurred, as the case may be, and the [2][Federal] law by which such Gwadur law is deemed to have been re-enacted shall, to that extent, be deemed not to have come into force during that period.

[1]Omitted by the Federal Laws (Revision and Declaration) Ordinance, 1981 (Ordinance No. XXVII of 1981), s.3 and second schedule.
[2]Subs. by the Federal Adaptation of Laws Order, 1975 (President's Order No. 4 of 1975), Article 2 and Table.

(3) Nothing in section 2 shall be deemed to have or ever to have had the effect of retrospectively creating any offence or of retrospectively enhancing the punishment for any offence provided for in any law for the time being in force.

(4) Without prejudice to the other provisions of this Ordinance, the repeal by this Ordinance of any Gwadur law shall not affect—

(a) the previous operation of any Gwadur law so repealed or the validity, invalidity, effect or consequences of anything already done or suffered thereunder ; or

(b) any right, title, privilege, obligation or liability acquired, accrued or incurred thereunder, or any release or discharge already granted of or from any debt, penalty, obligation, liability, claim or demand, or any indemnity, already granted, or the proof of any past act or thing ; or

(c) any penalty, forfeiture or punishment incurred in respect of any offence committed against any Gwadur law so repealed ; or

(d) any investigation, legal proceeding or remedy in respect of any such right, title, privilege, obligation, liability, penalty, forfeiture or punishment as aforesaid ;

and any such investigation, legal proceeding or remedy may be instituted, continued or enforced, and any such penalty, forfeiture or punishment may be imposed, as if this Ordinance had not been promulgated ;

nor shall this Ordinance revive or restore anything not in force or existing at the time of its commencement or affect any law in which any Gwadur law hereby repealed has been applied, incorporated or referred to, or affect any principle or rule of law, or established jurisdiction, form, or cause of pleading, practice, or procedure, or existing usage, custom, privilege, restriction, exemption, office or appointment, notwithstanding, that they respectively may have been in any manner affirmed, recognized or derived by, in or from any Gwadur law hereby repealed.

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———————

RGN Date: 13-06-2024

THE HACKNEY-CARRIAGE ACT, 1879

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1. Short title
2. Interpretation clause
3. Application of Act to municipalities
4. [Repeal]
5. Power to extend operation of rule beyond limits of municipality or cantonment
6. What rules under section 3 may provide for
7. Penalty for breach of rules
8. Disposal of fees and payment of expenses
9. Power of Magistrate to decide disputes regarding fares
10. In case of dispute, hirer may require driver to take him to Court

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THE HACKNEY-CARRIAGE ACT, 1879

[1]ACT No. XIV OF 1879

[5th September, 1879]

An Act for the regulation and control of hackney-carriages in certain Municipalities and Cantonments.

Preamble. WHEREAS it is expedient to provide for the regulation and control of hackney-carriages in certain municipalities and cantonments; It is hereby enacted as follows:-

1. Short title. This Act may be called the Hackney-carriage Act, 1879:

[2]* * * * * * *

Nothing herein contained shall affect any power conferred by any law relating to municipalities, or any rule made in exercise of any such power.

2. Interpretation clause. In this Act—

"hackney-carriage" means any wheeled vehicle drawn by animals and used for the conveyance of passengers which is kept, or offered, or plies for hire; and

"committee" means a municipal committee, or a body of municipal commissioners, constituted under the provisions of any enactment for the time being in force.

3. Application of Act to municipalities. [3][The Provincial Government concerned may, by notification in the official Gazette, apply this Act to any municipalities in the [4][[5][the Punjab] or the District of Sylhet in [6][East Pakistan]].

Power of committees to make rules. When this Act has been so applied to any municipality, the committee of such municipality may, from time to time, make rules for the regulation and control of hackney-carriages within the limits of such municipality, in the manner in which, under the law for the time being in force, it makes rules or bye-laws for the regulation and control of other matters within such limits.

Confirmation and publication of rules. Every rule made under this section shall, when confirmed by the [7][Commissioner] and published for such time and in such manner as the [7][Commissioner] may, from time to time, prescribe, have the force of law:

Power of Commissioner to rescind rules. Provided that the [7][Commissioner] may, at any time, rescind any such rule.

[1]For Statement of Objects and Reasons *see* Gazette of India, 1879, Pt. V, p.52 ; and for Proceedings in Council, *see ibid.,* Supplement, pp.49, 78 and 1141.

This Act has been applied to Phulera in the Excluded Area of Upper Tanawal to the extent the Act is applicable in the N.W.F.P., subject to certain modifications ; and extended to the Excluded Area of Upper Tanawal (N.W.F.P.) other than Phulera with effect from such date and subject to such modifications as may be notified- *see* N.W.F.P. (Upper Tanawal) (Excluded Area) Laws Regulation, 1950.

This Act has been repealed to the extent of Islamabad Capital Territory, *see* Ordinance No. XXVII of 1981, s. 4 and 3rd Sch.

[2]The words "and it shall come into force at once" rep. by the Second Repealing and Amending Act, 1914 (17 of 1914), s. 3 and Sch. ll.

[3]Subs. by A. O., 1937, for original paragraph.

[4]Subs. by A. O., 1949, Sch., for "United Provinces, the Punjab, the Central Provinces, Assam, Ajmer, Merwara, or Coorg".

[5]Subs. by the Federal Laws (Revision and Declaration) Act, 1951, (26 of 1951), section 8, for "West Punjab".

[6]Subs. by A. O., 1961, Art. 2, for "East Bengal" (with effect from the 23rd March, 1956).

[7]Subs. by the Decentralization Act, 1914 (4 of l914), for "L. G." In the N.W.F.P. all references to "Commissioner" are to be construed as referring to the Revenue Commissioner; *see* the N.W.F.P. Law and Justice Regulation, 1901 (7 of 1901), s. 6 (1) (f).

4. [*Power to make rules for cantonments.*] *Rep. by A O.,* 1937.

5. Power to extend operation of rule beyond limits of municipality or cantonment. The authority making any rules under this Act may [1][with the sanction of the Commissioner] extend their operation to any railway-station, or specified part of a road, not more than six miles from the local limits of the municipality [2]* * concerned:

[3]* * * * * * *

6. What rules under section 3 may provide for. The rules to be made under section 3 [4]* * * may, among other matters,–

(a) direct that no hackney-carriage, or no hackney-carriage of a particular description, shall be let to hire, or taken to ply, or offered for hire, except under a license granted in that behalf;

(b) direct that no person shall act as driver of a hackney-carriage except under a license granted in that behalf;

(c) provide for the issue of the licenses referred to in clauses (a) and (b), prescribe the conditions (if any) on which such licenses shall be granted, and fix the fees (if any) to be paid therefor;

(d) regulate the description of animals, harness and other things to be used with licensed carriages, and the condition in which such carriages, and the animals, harness and other things used therewith, shall be kept, and the lights (if any) to be carried after sunset and before sunrise;

(e) provide for the inspection of the premises on which any such carriages, animals, harness and other things are kept;

(f) fix the time for which such licenses shall continue in force, and the events (if any) upon which within such time they shall be subject to revocation or suspension;

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(g) provide for the numbering of such carriages;

(h) determine the times at which and the circumstances under which, any person keeping a hackney-carriage shall be bound to let or refuse to let such carriage to any person requiring the same;

(i) appoint places as stands for hackney-carriages, and prohibit such carriages waiting for hire except at such places;

(j) limit the rates or fares, as well for time as distance, which may be demanded for the hire of any hackney carriage; and prescribe the minimum speed at which such carriages when hired by time shall be driven;

[1]Ins. by A.O., 1937.
[2]The words "or cantonment" rep. *ibid.*
[3]Proviso rep. *ibid.*
[4]The words and figure "or section 4" rep. *ibid.*

(k) limit the number of persons, and the weight of property, which may be conveyed by any such carriage;

(l) require the owner or person in charge of any such carriage to keep a printed list of fares, in English and such other language as may be prescribed, affixed inside such carriage in such place as may be determined by the rules, and prohibit the destruction or defacement of such list;

(m) require drivers to wear a numbered badge or ticket, and to produce their licenses when required by a Magistrate or other person authorized by the rules in this behalf, and prohibit the transfer or lending of such licenses and badges; and

(n) provide for the deposit of property found in such carriages, and the payment of a fee by the owner of such property on the delivery thereof to him.

7. Penalty for breach of rules. Any person breaking any rule made under this Act shall be punished with fine which may extend to fifty rupees.

8. Disposal of fees and payment of expenses. The amount of any fees received and the amount of any expenses incurred in giving effect to this Act shall [1]* * * be credited and debited respectively to the municipal fund [2]* * *.

9. Power of Magistrate to decide disputes regarding fares. If any dispute arises between the hirer of any hackney-carriage and the owner or driver of such carriage as to the amount of the fare payable by such hirer under any rule made under this Act, such dispute shall, upon application made in that behalf by either of the disputing parties, be heard and determined by any Magistrate or Bench of Magistrates within the local limits of whose jurisdiction such dispute has arisen; and such Magistrate or Bench may, besides determining the amount so in dispute, direct that either party shall pay to the other such sum as compensation for loss of time as such Magistrate or Bench thinks fit.

Any sum determined to be due or directed to be paid under this section shall be recoverable as if it were a fine[3].

The decision of any Magistrate or Bench in any case under this section shall be final.

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When any such case is heard by a Bench, any difference of opinion arising between the members of such Bench shall be settled in the same manner as differences of opinion arising between such members in the trial of criminal cases.

10. In case of dispute, hirer may require driver to take him to Court. If, at the time any dispute mentioned in section 9 arises, any Magistrate or Bench of Magistrates having jurisdiction in respect of such dispute is sitting within the local limits to which the rules apply, the hirer of the carriage may require the driver thereof to take him in the same to the Court of such Magistrate or Bench for the purpose of making an application under that section.

Any driver neglecting or refusing to comply with such requisition shall be punished with imprisonment for a term which may extend to one month, or with fine not exceeding fifty rupees, or with both.

Date; 16-09-2024

[1]The words "in any municipality" rep. by A.O., 1937.
[2]The words "add in any cantonment where there is a cantonment fund to such fund" rep., *ibid.*
[3]As to recovery of fines, s*ee* the General Clauses Act, 1891 (10 of 1897*),* section 25.

THE HINDU GAINS OF LEARNING ACT, 1930

CONTENTS

1. Short title and extent
2. Definitions
3. Gains of learning not to be held not to be separate property of acquirer merely for certain reasons
4. Savings

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THE HINDU GAINS OF LEARNING ACT, 1930

ACT No. XXX of 1930

[25th July, 1930]

An Act to remove doubt as to the rights of a member of a Hindu undivided family in property acquired by him by means of his learning.

WHEREAS it is expedient to remove doubt, and to provide a uniform rule, as to the rights of a member of a Hindu undivided family in property acquired by him by means of his learning ;

It is hereby enacted as follows : —

1. Short title and extent.—(1) This Act may be called the Hindu Gains of Learning Act, 1930.

[1][(2) It extends to the whole of Pakistan].

2. Definitions. In this Act, unless there is anything repugnant in the subject or context, —

(*a*) "acquirer" means a member of a Hindu undivided family, who acquires gains of learning;

(b) "gains of learning" means all acquisitions of property made substantially by means of learning, whether such acquisitions be made before or after the commencement of this Act and whether such acquisitions be the ordinary or the extraordinary result of such learning ; and

(c) "learning" means education, whether elementary, technical, scientific, special or general, and training of every kind which is usually intended to enable a person to pursue any trade, industry, profession or a vocation in life.

3. Gains of learning not to be held not to be separate property of acquirer merely for certain reasons. Notwithstanding any custom, rule or interpretation of the Hindu Law, no gains of learning shall be held not to be the exclusive and separate property of the acquirer merely by reason of—

(*a*) his learning having been, in whole or in part, imparted to him by any member, living or deceased, of his family, or with the aid of the joint funds of his family, or with the aid of the funds of any member thereof, or

(*b*) himself or his family having, while he was acquiring his learning, been maintained or supported, wholly or in part, by the joint funds of his family, or by the funds of any member thereof.

4. Savings. This Act shall not be deemed in any way to affect—

(*a*) the terms or incidents of any transfer of property made or effected before the commencement of this Act,

[1]Subs. by the Central Laws (Statute Reform) Ordinance, 1960 (XXI of 1960), s. 3 and 2nd Sch. (*with effect from the 14th October 1955*).

(*b*) the validity, invalidity, effect or consequences of anything already suffered or done before the commencement of this Act,

(*c*) any right or liability created under a partition, or an agreement for a partition, of joint family property made before the commencement of this Act, or

(*d*) any remedy or proceeding in respect of such right or liability; or to render invalid or in any way affect anything done before the commencement of this Act in any proceeding pending in a Court at such commencement; and any such remedy and any such proceeding as is herein referred to may be enforced, instituted or continued, as the case may be, as if this Act had not been passed.

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Date: 31-07-2024

THE HYDROGENATED VEGETABLE OIL INDUSTRY (CONTROL AND DEVELOPMENT) ACT, 1973

CONTENTS

1. Short title, extent and commencement.
2. Definitions.
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4. Act to override other laws.
5. Power to take over management or acquire shares of business of an establishment.
5A. Transfer of shares and proprietary interests.
6. Appointment of Managing Directors.
6A. Constitution of Board of Directors, etc.
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30. Composite enterprises and organisations.
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THE HYDROGENATED VEGETABLE OIL INDUSTRY (CONTROL AND DEVELOPMENT) ACT, 1973.

[1]ACT NO. LXV OF 1973

[15th September 1973]

An Act to regulate the operation and future development of the hydrogenated vegetable oil industry.

WHEREAS it is expedient to make provision to regulate the operation and future development of the hydrogenated vegetable oil industry, so as to maintain at reasonable prices, supplies essential to the life of the community while safeguarding the interests of the small investors in the industry and to provide for matters connected therewith or incidental thereto;

AND WHEREAS paragraph (b) of clause (1) of Article 253 of the Constitution provides that Parliament may by law declare that any trade, business, industry or service specified in such law shall be carried on or owned, to the exclusion, complete or partial, of other persons, by the Federal Government or a Provincial Government or by a corporation controlled by any such Government;

It is hereby enacted as follows :—

1. **Short title, extent and commencement**.—(1) This Act may be called the Hydrogenated Vegetable Oil Industry (Control and Development) Act, 1973.

(2) It extends to the whole of Pakistan.

(3) It shall come into force at once and shall be deemed to have taken effect on the second day of September, 1973.

2. **Definitions.**—In this Act, unless there is anything repugnant in the subject or context,—

(a) "bank rate" means the bank rate determined and made public under the provisions of the State Bank of Pakistan Act, 1956 (XXXIII of 1956);

(c) "Board" means a Board of Management set up under section 7;

(d) "corporation" means a corporation wholly owned by Government to which an establishment is transferred under section 13;

(d) "creditor" means any person to whom a managed establishment owes any amount of money;

(e) "debtor" means a person who owes any amount of money to a managed establishment;

[1]For Statement of Objects and Reasons, see Gaz. of P., 1973., Ext., Pt. III, p. 1514.

(f) "establishment" means any company, firm, concern, institution or enterprise the whole or any Part of the undertaking of which pertains to the industry and includes any related office shop, factory, godown, yard, stocks and stores wherever that may be;

(g) "industry" means the hydrogenated vegetable oil industry;

(h) "Managing Director" in relation to an establishment means the Managing Director appointed under section 6 in respect of such establishment;

(i) "managed establishment" means an establishment in respect of which a Managing Director has been appointed;

(j) "previous management" in relation to an establishment means the person, board of directors or other body or authority in whom or in which the management of the establishment vested immediately before the appointment of a Managing Director in respect thereof;

(k) "shareholder" means a shareholder in the share capital of an establishment, and includes a stockholder;

(l) "person" includes an individual, a Hindu undivided family, a partnership firm and an association of person or a body of individuals, Government of a Province and a local authority;

(m) words and expressions used but not defined in this Act shall have the same meaning as in the Companies Act, 1913 (VII of 1913).

3. **[Declaration.]**—Omitted by the Hydrogenated Vegetable Oil Industry (Control and Development) (Amdt.) Ordinance, 1979 (IV of1979), s. 2.

4. **Act to override other laws**.—The provisions of this Act shall have effect notwithstanding anything contained in the Companies Act, 1913, or the Companies (Managing Agency and Election of Directors) Order, 1972 (P.O. No. 2 of 1972), or any other law for the time being in force or in any agreement, contract, memorandum or articles of association of a company.

5. **Power to take over management or acquire shares of business of an establishment**.—(1) The Federal Government may, by an order,—

(a) take over the management of any establishment and, as from the date of such order, the previous management shall stand divested of such management;

(b) in the case of an establishment which is a company or an establishment owned by a company—

(i) acquire the whole or a portion of the shares from all or any of the shareholders of such company and, as from the date of such order, the shares so acquired shall vest in the Federal Government, or

(ii) acquire the whole or a portion of the proprietary interests of such company in such establishment and, as from the date of such order, the interests so acquired shall vest in the Federal Government; and

(c) in the case of an establishment owned by a person acquire the whole or a portion of the proprietary interests of such person, and as from the date of the order the interests so acquired shall vest in the Federal Government:

Provided that no order shall be made under this section for the acquisition of the shares held in an establishment by an institution owned or controlled by Federal Government including the National Investment Trust and the Investment Corporation of Pakistan or the shares held by a foreign investor:

Provided further in the case of an establishment which is a company or an establishment owned by a company, the Federal Government may, by notification in the official Gazette, exempt from acquisition shareholdings of shareholders up to such maximum amount, not exceeding in the aggregate forty-nine per cent of the paid-up share capital of the company, as may be specified in the notification.

[1][***Explanation***.—In this sub-section and section 31 "foreign investor means a person, other than a citizen of Pakistan, who has made investment in Pakistan and to whom—

(a) the Federal Government has given an assurance that he will have the right to repatriate from Pakistan the amount of his investment or the income arising therefrom or both such amount and such income; or

(b) the Federal Government has not given such assurance, but whom it has assured that, in the event of compulsory acquisition of the shares held in an establishment by the shareholders, he will not be treated less favourably than an investor to whom such assurance had been given.].

(2) Where the Federal Government makes an order under sub-section (1) in respect of the shares of any company, no dealings or business relating to such shares shall be transacted on any stock exchange and no transfer of such shares shall be registered in the share register of the company for a period of ninety days from the date of such order or such shorter period as may be notified by Government.

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[2][**5A. Transfer of shares and proprietary interests, etc**.—(1) If the Federal Government considers it necessary in the public interest to transfer the shares or proprietary interests in respect of a managed establishment acquired by it under section 5, the Federal Government may, through a public advertisement, invite bids for the transfer of the shares or proprietary interests.

(2) On receipt of bids in pursuance of an invitation under sub-section (1), the Federal Government shall offer the transfer of the shares or proprietary interests to the previous management of such establishment, on the highest bid so received and on such terms and conditions as it may deem fit:

[1]Added by the Hydrogenated Vegetable Oil Industry, (Control and Development) (Amdt.) Ordinance, 1979 (4 of 1979), s. 3.
[2] Ins. by the Hydrogenated Vegetable Oil Industry (Control and Development) (Second Amdt) Act, 1992 (11 of 1992), s. 2, which was previously ins. by Act 20 of 1991, s. 3.

Provided that it shall not be necessary to make such an offer to the previous management in case the highest bid has been made by the management group of the employees of such establishment.

Explanation.—In this sub-section and in .sub-section (4), "management group of the employees" means such management group of the employees as has, in the opinion of the Federal Government, been formally constituted as such.

(3) If the said previous, management does not accept the offer made under sub-section (2) within a specified time, the Federal Government may transfer the shares or proprietary interests to such persons, and on such terms and conditions, as it may deem fit.

(4) Notwithstanding anything contained in sub-sections (1), (2) and (3), the Federal Government may, in its discretion, if it considers it necessary in the public interest so to do, transfer the shares or proprietary interests in respect of any such establishment to the management group of the employees of such establishment at a price, and on terms and conditions, settled between the Federal Government and such management group.

(5) In case of transfer of shares or proprietary interests in respect of a managed establishment under sub-section (2), (3) or (4), the provisions of this Act shall cease to apply to such establishment.]

6. Appointment of Managing Directors.—(1) Where the Federal Government has made an order under section 5 in respect of an establishment, it may appoint a Managing Director in respect of such establishment.

(2) Upon the appointment of Managing Director in respect of an establishment, the administration and management of the affairs of the establishment shall vest in the Managing Director and any company or person or authority exercising or having the right to exercise, immediately before such appointment, any power or functions in relation to the establishment shall cease to exercise or to have the right to exercise such power or function.

(3) The Managing Director shall—

(a) hold office during the pleasure of the Federal Government ;

(b) in the discharge of his functions, be subject to such orders and directions as the Federal Government or the Board may from time to time give in writing; and

(c) receive such remuneration and be subject to such other terms and conditions of appointment and service as the Federal Government may determine.

(4) The Managing Director appointed in respect of an establishment shall exercise and perform

(a) if such establishment is owned or controlled by a company, all the powers and functions of the Board of Directors; and

(b) if such establishment is owned or controlled by a person, all the powers and functions of that person.

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[1][**6A. Constitution of Board of Directors, etc**. —(1) Where the Federal Government has acquired under section 5 the whole or a majority portion of the shares of a managed establishment which is a company and is of the opinion that, in the interest of the shareholders of the managed establishment, it is necessary to do so, the Federal Government may, by order in writing, direct that a board of directors consisting of a Managing Director and such number of other directors as may be specified in the order be constituted in such managed establishment.

(2) Where the Federal Government has made an order under sub-section (1) in respect of a managed establishment, the board of directors of such establishment shall be constituted within a period of sixty days from the date of the order.

(3) Where the Federal Government has made an order under sub-section (1) in respect of a managed establishment,—

(a) the Federal Government may nominate such number of directors, including the Managing Director, on the board of directors of the managed establishment as bears to the total number of directors, as nearly as may be, the same proportion as the aggregate face value of the shares owned by the Federal Government and by an institution owned or controlled by the Federal Government, including the Corporation referred to in sub-section (3) of section 13, hereafter in this section referred to as the Corporation, bears to the total issued share capital of the managed, establishment ; and

(b) the other directors shall from time to time be elected by the members of the managed establishment, other than the Federal Government an institution referred to in paragraph and the Corporation, in general meeting in accordance with the Companies (Managing Agency and Election of Directors) Order, 1972 (P.O. No. 2 of 1972).

(4) The Managing Director nominated under sub-section (3) shall be the chief executive of the managed establishment.

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(5) The board of directors of a managed establishment constituted under this section shall enter upon office on such date as the Federal Government may, by order in writing, appoint in this behalf and, upon their entering upon office as aforesaid,—

(a) the Managing Director appointed under sub-section (1) of section 6 in respect of the establishment shall cease to hold office;

(b) the management of the establishment shall cease to vest in the Corporation, and the management and administration of affairs of the establishment shall, subject to this section, stand transferred to the board of directors; and

(c) the Managing Director nominated under sub-section (3) shall have such powers and functions as the board of directors may, from time to time, confer upon or entrust to him.]

[1]Ins. by the Hydrogenated Vegetable Oil Industry (Control and Development) (Amdt.) Ordinance, 1979 (17 of 1979), s. 2.

7. Board of Management.—(1) The Federal Government may, by notification in the official Gazette, set up a Board of Management to control, manage and direct the affairs of establishments in respect of which Managing Directors have been appointed and where it sets up more than one Board, shall specify in the notification the establishment or class of establishments in respect of which each Board shall, exercise its powers and perform its functions under this Act.

(2) A Board shall consist of a Chairman and such number of members, not exceeding nine, as the Federal Government may appoint.

(3) A Board shall be a body corporate having perpetual succession and a common seal, with power to acquire and hold property, and shall by the name assigned to it by the notification issued under sub-section (1) sue and be sued.

(4) The Chairman and members of a Board shall hold office during the pleasure of the Federal Government on such terms and conditions as it may determine.

8. Functions of Boards. —(1) The function of the Board shall be to ensure that the establishments in respect of which it is to exercise and perform its powers and functions under this Act are managed efficiently and in accordance with sound business principles and, in respect of any such establishment, the Board may, from time to time.—

(a) exercise such of the powers of the Managing Director and issue such directions to him as it may consider necessary;

(b) require the Managing Director to furnish it with such information relating to the affairs of the establishment in respect of which he is the Managing Director as the Board may require in connection with the performance of its functions; and

(c) remove from office its auditor and appoint another person to hold that office for such period and on such remuneration payable by the establishment as the Board may determine.

(2) The exercise by the Board under sub-section (1) of the powers of a Managing Director shall have effect as if it were the exercise of those powers by the Managing Director himself.

(3) It shall be the duty of a Managing Director to comply with all directions issued to him by the Board under sub-section (1) and to furnish the Board with the information required by it.

9. Funds of the Board.—(1) There shall be constituted for each Board a fund to which shall be credited all sums received by the Board under sub- section (2) and out of which shall be defrayed all expenditure incurred by the Board, including expenditure on the emoluments of the Chairman, members and officers, servants, experts and consultants of the Board.

(2) The Managing Director in respect of every managed establishment shall make to the Board concerned each year such payment to enable it to defray its expenses as the Board may, with the prior approval of the Federal Government in writing, demand of him:

Provided that the aggregate amount of payment so demanded of the Managing Directors in any year shall not exceed by more than ten per cent the amount of the estimated expenditure of the Board in that year.

10. Officers, etc., of the Board.—(1) A Board may from time to time appoint such officers, servants, experts and consultants as it may deem fit.

(2) A Board may appoint one or more committees of the Board with such composition and functions as it may determine.

11. Adoption of balance sheet.—In case of a managed establishment owned or controlled by a company, the general meeting of the company before which a balance sheet is laid shall not, if the Federal Government by order in writing so directs, have the authority to refuse to adopt the balance sheet, but nothing in this section shall be construed to prevent any shareholder from expressing his views on the financial affairs of the establishment and a record of the proceedings of such meetings shall be forwarded to the Federal Government not later than fifteen days of the meeting.

12. Regulations.—(1) A Board may, with the prior approval in writing of the Federal Government, make such regulations as appear to it to be necessary for carrying out the purpose of this Act.

(2) In particular and without prejudice to the generality of the foregoing power, such regulations may provide for the manner of payment and collection of the payments required to be made by the Managing Director under sub-section (2) of section 9.

13. Delegation of powers etc. —(1) The Federal Government may, by notification in the official Gazette, direct that all or any of its powers under this Act shall, in such circumstances and subject to such conditions, if any, as may be specified in the notification, be exercisable also by a Board.

(2) A Board may, with the previous, approval in writing of the Federal Government, direct that all or any of its powers under this Act shall, in such circumstances and subject to such conditions, if any, as may be specified by the Board, be exercisable also by a member of the Board or a committee of the Board.

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(3) Where the Federal Government has taken over the management of an establishment under section 5, it may transfer the management of the establishment to a corporation wholly owned or controlled by Government or a corporation set up for the purpose, on such terms and conditions as the Federal Government may specify.

(4) Where the Federal Government has acquired the shares or proprietary interests of an establishment under section 5, it may transfer the shares or proprietary interests to a corporation wholly owned or controlled by Government or a corporation set up for the purpose, on such terms and, conditions as the Federal Government may specify.

(5) The Federal Government may, from time to time, issue such directions to, and call for such information or report from, a Board as it may deem necessary.

14. Acquisition of shares.—Where, under section 5, the Federal Government orders acquisition of a portion, of the shares of the shareholders of any company or of the proprietary interests of a company or other person in an establishment, it shall acquire the shares or interest [1]* * * on payment of such compensation as may be determined by the Federal Government on the basis of the principles set out in the Schedule.

15. Reorganisation of establishment. —(1) Where, in respect of any managed establishment owned by a company, the Federal Government holds or has acquired the whole or a majority portion of the shares in the company carrying the controlling voting rights, or where the Federal Government has acquired the whole or a controlling portion of the proprietary interests in an establishment, the Board may draw up a plan for the reorganisation of such an establishment with a view to increasing its efficiency and rationalising its operation, hereafter in this section referred to as the reorganisation plan.

(2) The reorganisation plan may include provision for amalgamation of managed establishments and, in the case of establishment owned by companies, may provide for a scheme for the reconstruction of any such company or companies, or amalgamation of any such two or more companies and such a scheme may provide for all or any of the matters contained in section 153 or section 153B of the Companies Act l913 (VII of 1913), or for alteration of share capital or loan structure and alteration of existing, or adoption of fresh, articles of association of such companies.

(3) The reorganisation plan shall be submitted to the Federal Government for approval and shall be simultaneously published in the official Gazette accompanied by a certified statement showing the value of the holdings of the shares or proprietary interests of the Federal Government in the establishment covered by the plan, on the date of the submission of the plan, and, from the date of such submission, dealings in shares of companies covered by the plan in any of the stock exchanges shall remain suspended until the Federal Government has approved the reorganisation plan.

(4) The reorganisation plan shall be implemented and take effect in such manner and at such time and with such modification as may be approved by the Federal Government.

Explanation.—For the purposes of this section and section 26 the Federal Government shall be deemed to have a majority portion of the shares in a company carrying controlling voting rights or the controlling proprietary interest in an establishment if the aggregate face value of the shares or proprietary interests in such establishment owned by the Federal Government and by an institution owned or controlled by the Federal Government exceeds fifty per cent of the total voting rights in the issued and paid up share capital of the company or fifty per cent of the proprietary interests of that establishment.

16. Continuation in service. In the case of a managed establishment, all persons employed in, by or for the purposes of the business of the establishment, by whomsoever appointed or engaged, shall continue in their respective employments on the same remuneration and other conditions of service as were applicable to them immediately before the appointment of the Managing Director in respect of that establishment, unless the Managing Director directs otherwise in a particular case or their terms and conditions of service are altered in accordance with the law or any rules applicable to such establishment.

[1]The words "within a period of ninety days" omitted by the Hydrogenated Vegetable Oil Industry (Control and Development) (Amdt.) Act, 1975 (10 of 1975), s. 3.

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17. Prohibition to obstruct. No person shall, except under the authority of the Federal Government give any instruction to a Managing Director, nor shall any person in any manner obstruct him in the discharge of his functions.

18. Debtor.—(1) Federal Government may, by notice in writing, call upon a debtor to pay to the Federal Government, or to the managed establishment specified in such notice, the amount of money due from him to the establishment, within a period of thirty-days commencing from the date of receipt of such notice by the debtor.

(2) Where a debtor fails to pay the amount due within the time specified in the notice, the Managing Director of the managed establishment to which such amount is due shall have the same powers of effecting recovery of such amount as the Industrial Development Bank of Pakistan has under sections 39, 40 and 41 of the Industrial Development Bank of Pakistan Ordinance, 1961 (XXXI of 1961), in respect of sums due to the said Bank.

19. Creditor.—(1) A creditor of a managed establishment may apply to the Federal Government for payment to him of the amount due to him from the establishment.

(2) The Federal Government may, on receipt of an application under sub-section (1) and after such enquiry as it may deem fit, direct the managed establishment—

(a) to repay the amount due to the creditor in such instalments and within such period as may be specified in the direction; or

(b) if such managed establishment be a company, to convert the amount due to the creditor into share capital of the establishment.

(3) If a managed establishment fails to comply with a direction issued to it under sub-section (2) the Federal Government may order that the amount specified in the direction be recovered from it as an arrear of land revenue and paid to the creditor.

20. Power to revoke contract, etc.—If any contract or agreement entered into, or any obligation undertaken by any previous management of a managed establishment is declared by the Federal Government, after such inquiry as it may deem fit and giving an opportunity to the person or persons with whom such contract or agreement was entered into or to whom such obligation was undertaken to show cause why such declaration shall not be made, to be against the interests of the establishment, such contract, agreement or obligation shall stand revoked and the establishment shall not be liable for any loss or damage suffered by the previous management by reason of such revocation:

Provided that this section shall not be construed as preventing any party to a contract, agreement or obligation so revoked from initiating action in a court of law against the previous management.

21. Right of shareholders.—Any person having a share or a proprietary interest in a managed establishment shall be entitled to complain to the Board or the Federal Government in respect of any action taken by the Managing Director in relation to the affairs of the establishment.

22. Continuance in service of employees on transfer to a corporation.—(1) Where the management of a managed establishment is transferred to a corporation under section 13, every whole

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time employee of the establishment who was employed by the establishment immediately before the date of such transfer shall, on and from the date of such transfer, become an employee of the corporation and shall hold his office therein on the same terms and conditions, including remuneration, tenure of office, rights and privileges as to pension and gratuity and other matters, as were applicable to him immediately before the date of transfer, until his employment in the corporation is terminated or his terms and conditions of service are altered by the corporation.

(2) Where any employees of a managed establishment have, under the provisions of sub-section (1), become the employees of a corporation, the corporation may, for the purpose of rationalising the pay scales of such employees or for any other good and adequate reason, alter the terms and conditions of service of the employees as to their remuneration, in such manner as it thinks fit and, if the alteration is not acceptable to any employee, the corporation may terminate his employment by giving him compensation equivalent to his remuneration for three months or, if his contract of service provides for a shorter notice for termination of employment, for the period so provided. .

Explanation.—The compensation payable to an employee under this sub-section shall be in addition to, and not inderogation of, any of his rights as to pension, gratuity, provident fund money or other benefit to which he may be entitled under his contract of service.

(3) If any question arises as to whether any person was a whole time employee of an establishment immediately before its management was transferred to a corporation under section 13, the question shall be referred to the Federal Government whose decision shall be final.

(4) The transfer of the services of any employee of an establishment to a corporation shall not, except as provided in this section, entitle any such employee to any compensation and no such claim shall be entertained by any court, tribunal or other authority.

23. General effect of vesting of establishment.—(1) Where the management of a managed establishment has been transferred to a corporation under section 13, all contracts, agreements and other instruments of whatever nature subsisting or having effect immediately before the date of transfer, to which such establishment was a party or which were in favour of such establishment shall, subject to the provisions of section 20, be of as full force and effect against or in favour of the corporation, and may be enforced or acted upon as fully and effectively, as if, instead of the establishment, the corporation had been a party thereto or as if they had been entered into or issued in favour of the corporation.

(2) If, on the date of transfer of the management of a managed establishment to a corporation, any suit, appeal or other legal proceeding of whatever nature is pending by or against such establishment, it shall not abate, be discontinued or be in any way prejudicially affected by reason of such transfer or anything done under this Act, but the suit, appeal or other proceeding may be continued, prosecuted and enforced by or against the corporation.

24. Duty to deliver possession of property and documents relating thereto.—(1) Where the management of a managed establishment has been transferred to a corporation under section 13 then

(a) every person in whose possession, custody or control there is any property of such establishment shall forthwith deliver the property to the corporation; and

(b) any person who, on the date of transfer of the establishment to the corporation, has in his possession, custody or control any books, documents or other papers relating to such establishment shall be liable to account for the said books, documents and papers to the corporation, and shall deliver them to such person as the corporation may direct.

(2) Without prejudice to the provisions of sub-section (1), it shall be lawful for the corporation to take all necessary steps for acquiring possession of all properties which have been transferred to and vested in it under this Ordinance.

25. Provident, superannuation and other like funds.—(1) Where an establishment the management of which has been transferred to a corporation under section 13 has established a provident or superannuation fund or any other like fund for the benefit of its employees and has constituted a trust in respect thereof, hereafter in this section referred to as an existing trust the money's standing to the credit of any such fund on the appointed date, together with any other assets belonging to such fund, shall, subject to the provisions of sub-section (2), stand transferred to and vests in the corporation on the date the management of the establishment is transferred to it, free from any such trust.

(2) Where all the employees of any such establishment do not become employees of a corporation under section 22, the moneys and other assets belonging to any such fund as is referred to in sub-section (1) shall be apportioned between the persons responsible for the fund and the corporation in such manner as may be prescribed by rules and, in the case of any dispute regarding such apportionment, the decision of the Federal Government shall be final.

(3) A corporation shall, as soon as may be after the management of an establishment is transferred to it under section 13, constitute in respect of the moneys and other assets which are transferred to and vested in it under this section, one or more trusts having objects as similar to the objects of the existing trust as in the circumstances may be practicable.

(4) Where all the moneys and other assets belonging to an existing trust are transferred to and vested in a corporation under this section, the persons responsible for such trust shall, as from the date of such transfer, be discharged from the trust, except as respects things done or omitted to be done before the date of transfer of the management of the establishment.

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26. Minimum return.—(1) Where the Federal Government takes over the management of an establishment but does not hold majority portion of shares in a company carrying voting rights, or controlling proprietary interests therein, it shall, on behalf of such establishment, guarantee to the shareholders or proprietors of such establishment a minimum annual rate of return equivalent to two per. cent, above the bank rate.

(2) The minimum rate of return referred to in sub-section (1) shall be worked out, in the case of an establishment owned by a company, on the paid up capital of such company, and, in the case of an establishment owned by a person other than a company, on the Net Worth Value of investment as defined in the Schedule on the basis of the figure appearing in the latest annual balance sheet of such establishment.

27. Bar of Jurisdiction.—(1) No court shall call in question or permit to be called in question any provision of this Act or of any rule or order made or anything done or any action taken there under.

(2) No court shall grant any injunction or make any order, nor shall any court entertain any proceedings, in relation to anything done or intended to be done under this Act.

28. Indemnity.—No suit, prosecution or other legal proceeding shall lie against the Government, a Board, a Managing Director or any other person for anything in good faith done under this Act or any rule or order made there under.

29. Penalties.—Whoever contravenes any of the provisions of section 17 or section 24 shall be punishable with imprisonment for a term which may extend to two years, or with fine, or with both.

30. Composite enterprises and organisations.—(1) Where a managed establishment owned by a company is engaged in a business not directly related to the manufacture of hydrogenated vegetable oil, the Managing Director shall prepare, as soon as possible, a plan for separation of the business relating to manufacture of hydrogenated oil from other business. The plan shall include provision for separation of physical assets, and apportionment of assets and liabilities, including the apportionment of paid up capital on a pro rata basis between the respective business. The Managing Director in preparing the plan shall follow the provisions of the Companies Act, 1913 (VII of 1913), to the extent it is not inconsistent with provision of this Act.

(2) The Managing Director shall submit the plan for approval to the Federal Government which shall publish the plan in the official Gazette to ascertain the views of the shareholders of the company within a specified period.

(3) The Federal Government shall, after considering the views of the shareholders, decide whether the business not directly related to the manufacture of hydrogenated vegetable oil and the assets and liabilities of such business should be retained in the managed establishment or whether such business and assets and liabilities should be returned to the previous management; and the decision of the Federal Government shall be final.

(4) Where the Federal Government decides to return to the previous management the business not directly related to the manufacture of hydrogenated vegetable oil and the previous management fails, for any reason whatsoever, to accept the said business within a specified period of time, the Federal Government may, in its discretion, either retain the business within the managed establishment or dispose of the business, along with the assets and liabilities apportioned as relating thereto, in such manner as the Federal Government may deem fit.

31. Saving.—Nothing contained in this Act shall affect any agreement entered into between the Federal Government and a foreign investor or creditor or any agreement between a foreign investor or creditor and any citizen of Pakistan which has been expressly approved by the Federal Government.

32. Power to make rules.—(1) The Federal Government may make rules for carrying out the purposes of this Act.

(2) In particular and without prejudice to the generality of the foregoing power, such rules may provide for, or may empower a Board to make orders providing for, all or any of the following matters, namely :—

(i) the determination of the question whether any property pertains to the business of such establishment relating to the industry or whether any assets, rights, debts, liabilities or obligations, were acquired or incurred, or any contract, agreement or other instrument was made, in respect of or for the purposes of such business or whether any documents relate to those purposes;

(ii) the allocation of the paid up capital, or assets representing paid up capital, as the case may be, between such business and any other business;

(iii) the substitution of any agreement entered into partly for the purposes of such business and partly for other purposes by a separate agreement relating solely to such business and for any apportionment of rights, obligations and indemnities consequent thereon;

(iv) the severance of a lease comprising property of which part only is used for purposes of such business and for apportionment of right and liabilities consequent on such severance;

(v) the apportionment and the making of financial adjustments with respect to any debts, liabilities or obligations incurred by the establishment partly for the purposes of such business and partly for other purposes and for any necessary variation of mortgages and encumbrances relating to such debts, liabilities or obligations ; and

(vi) for the apportionment of the moneys and other assets belonging to any .provident or superannuation funds, or any other like fund to which the provisions of section 25 do not apply, between persons employed in connection with such business and other persons.

33. Removal of difficulties.—If any difficulty arises in giving effect to any provision of this Act, the Federal Government may make such order, not inconsistent with the provisions of this Act, as may appear to it to be necessary for the purposes of removing the difficulty:

Provided that no such power shall be exercised after the expiry of one year from the commencement of this Act.

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34. **[*Repeal*]** Omitted by the Federal Laws (Revision and Declaration) Ordinance, .1981 (XXVII of 1981), s. 3 and Sch, II.

THE SCHEDULE

(*See section* 14)

Principles and the manner for payment of compensation in respect of the shares or proprietary interests of an establishment acquired by the Federal Government.

1. Where the whole or a portion of the shares of such an establishment is acquired by the Federal Government, the value of the compensation for the shares so acquired shall be assessed—

(a) in the case of shares not quoted on any of the stock exchanges, at the Break Up Value; and

(b) in the case of shares quoted on any of the stock exchanges, at the Break-up Value or the Market Value, whichever is less.

2. Where the whole or a portion of the proprietary interests in such an establishment is acquired by the Federal Government, the value of the compensation for the interests so acquired shall be assessed—

(a) in the case of an establishment which has been in commercial production for less than 5 years, at the Net Worth Value of the proprietary interests of such establishment; and

(b) in the case of an establishment which has been in commercial production for more than 5 years, at the Net Worth Value or the Times Value of the proprietary interests, whichever is less, of such establishment.

[1][**3.** The compensation payable in accordance with the principles indicated above shall be paid by the Federal Government in cash or in the form of Government Bonds redeemable at any time at the option of the Federal Government within a period of fifteen years and carrying, with effect from the date of acquisition, a rate of interest one per cent above the bank rate as notified by the State Bank of Pakistan from time to time. The Bonds shall be negotiable and shall also be eligible as security for advances.]

4. Definitions.—In this Schedule—

(a) "Break-up Value" shall mean the value of the shares of a company as determined by the auditors of such-company on the basis of its latest audited annual Balance Sheet, in accordance with clause (c) of [2][sub-rule (2) of] rule 8 of the Wealth-Tax Rules;

(b) "Market Value" shall mean the average value of the shares of a company as quoted on the stock exchange nearest to the Head Office of the company on closing on the six working days prior to the date of order of acquisition of such shares under the Act, or, if, on the date of such order, dealings or business relating to such shares is prohibited under the Act, the six days prior to the date on which the dealings or Business is so prohibited;

[1]Subs. by the Hydrogenated Vegetable Oil Industry (Control and Development) (Amdt.) Act, 1975 (10 of 1975), s. 4, for the origional paragraph 3.
[2]Ins. ibid.

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(c) "Net Worth Value" shall mean the value of the proprietary interests of a company or other person in an establishment, which are acquired under the Act, as determined by the auditors appointed by the Federal Government on the basis of the latest annual audited balance sheet or, where no audited Balance Sheet is available, on the basis of the latest annual Balance Sheet of such establishment to be verified by the auditors appointed by the Federal Government for the purpose. The Net Worth Value shall be determined by valuing the fixed Tangible Assets appearing in the Balance Sheet at their written down values, and valuing the Current Assets e.g., stocks, inventory work in progress advances and prepayments, cash and bank balances, at their cost or market value, whichever is lower. From the sum total of the fixed and the current assets so valued as aforesaid, all the outstanding liabilities appearing in the Balance Sheet shall be deducted, thereby arriving at the Net Worth Value of the proprietary interests in such establishment;

(d) "Times Value" shall mean the value of the proprietary interest of a company or other person in an establishment, where such establishment has been in commercial production for a period of not less than 5 years and shall be determined by multiplying the average net profits of the last 3 completed years on account of such an establishment by the figure 7; and

(e) "Net Profits" shall mean the net profits as defined in sub-section (3) of section 87C of the Companies Act, 1913 (VII of 1913).

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THE IMPORTS AND EXPORTS (CONTROL) ACT, 1950

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SECTIONS:

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THE IMPORTS AND EXPORTS (CONTROL) ACT, 1950

***ACT No. XXXIX of 1950**

[19*th April*, 1950]

An Act to continue [1][* * *] powers to prohibit or control imports and exports.

WHEREAS it is expedient to continue [2][* * *] powers to prohibit, restrict or otherwise control imports into and exports from Pakistan;

It is hereby enacted as follows: —

1. Short title, extent, commencement and duration. — (1) This Act may be called the Imports and Exports (Control) Act, 1950.

[3][(2) It extends to the whole of Pakistan.]

(3) It shall come into force immediately [4][* * *].

2. Definitions. In this Act—

(a) "Chief Controller" means the officer appointed by the [5][Federal Government] to perform the duties of Chief Controller of Imports and Exports under this Act;

[6][(b) "Collector of Customs" means an officer appointed as such under section [7][(3)] of the Customs Act, 1969 (IV of 1969); and]

(c) "import" and "export" mean respectively bringing into, and taking out of, the [8][Pakistan] [9][*** * ***] by sea, land or air.

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*This Act and Rules made thereunder, has been applied by Regulation No. I of 1968, to those of the Tribal Areas to which it does not already apply.

The Act has been applied to—

(i) Baluchistan, subject to certain modifications, with effect on and from the 19th April, 1950 *see* Gaz. of P.,1953, Pt. I. p. 90;

(ii) The Federated Areas of Baluchistan, *see ibid*., p. 152; and

The Act has been extended to—

(i) the Leased Areas of Baluchistan, *see* the Leased Areas (Laws) Order, 1950 (G. G. O. 3 of 1950); and

(ii) the Baluchistan States Union, *see* the Baluchistan States Union, (Federal Laws) (Extension) Order. 1953 (G. G. O. 4 of 1953);

(iii) the Khairpur State *see* the Khairpur (Federal Laws) (Extension) Order, 1953 (G. G. . 5 of 1953); and

(iv) the State of Bahawalpur, *see* the Bahawalpur (Extension of Federal Laws) Order, 1953 (G. G. O. 11 of 1953) as amended.

The Act has been and shall be deemed to have been brought into force in Gwadur with effect from the 8th September, 1958, by the Gwadur (Application of Central Laws) Ordinance, 1960 (37 of 1960), s. 2.

[1] Omitted by the Imports and Exports Control) (Amdt.) Act, 1975 (38 of 1975), s. 2.

[2] Certain words previously amended by various laws have been omitted *ibid.,* s. 3.

[3]Subs. by the Central Laws (Statute Reform) Ordinance, 1960 (21 of 1960), s. 3 and 2nd Sch, For the original sub-section (2) (*with effect from the 14th October, 1955*).

[4] Certain words previously amended by various laws have been omitted by the Imports and Exports (Control) (Amdt.) Act, 1975 (38 of 1975), s. 3.

[5] Subs. *ibid.*, s. 5. for "Central Government".

[6] Subs. by the Imports and Exports (Control) (Amdt.) Ordinance, 1970 (8 of 1970), s. 3.

[7]Subs. by the Federal Laws (Revision and Declaration) Ordinance, 1981 (27 of 1981), s. 3 and 2nd Sch.

[8] Subs. by F.A.O. 1975, Art. 2 and Sch.

[9] The existing words "or the Federal Territory of Karachi or any Acceding State, if the Federal Legislature has power to make laws for such State", as amended by the Repealing and Amending Ordinance, 1961 (1 of 1961), has been omitted by the Imports and Exports (Control) (Amdt.) Ordinance, 1962 (29 of 1962), s. 3 (*with effect from the 18th April, 1962*).

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3. Powers to prohibit or restrict imports and exports.— (1) The [1][Federal Government] may, by order[2] published in the official Gazette and subject to such conditions and exceptions as may be made by or under the order, prohibit[3] restrict or otherwise control the import or export of goods of any specified descriptions, or regulate generally all practices (including trade practices) and procedure connected with the import or export of such goods, [4][and such order may provide for applications for licences under this Act, the evidence to be attached to such applications, the grant, use, transfer, sale or cancellation of such licences, and the form and manner in which and the periods within which appeals and applications for review or revision may be preferred and disposed of, and the charging of fees in respect of any such matter as may be provided in such order] [5][:]

[5][Provided that the Minister-in-Charge may, by notification in the official Gazette, for reasons to be recorded in writing, on case-to-case basis and in the interest of trade and commerce of Pakistan, allow one-time permission to import, re-import, export or re-export goods in relaxation of the prohibition or restrictions contained in the order made under this sub-section for the time being in force.]

(2) No goods of the specified description shall be imported or exported except in accordance with the conditions of a licence to be issued by the Chief Controller or any other officer authorised in this behalf by the [1][Federal Government].

(3) All goods to which any order under sub-section (1) applies shall be deemed to be goods of which the import or export has been prohibited or restricted under [6][section 16 of the Customs Act, 1969 (IV of 1969) and all the provisions of that Act shall have effect accordingly].

(4) Notwithstanding anything contained in the aforesaid Act the [1][Federal Government] may, by order[7] published in the official Gazette, prohibit, restrict or impose conditions on the clearance whether for home consumption [8][or ware housing or] shipment abroad of any imported goods or class of goods.

4. Continuance of existing orders. All orders made under section 3 of the Imports and Exports (Control) Act, 1947, and in force immediately before the commencement of this Act, shall so far as they are not inconsistent with the provisions of this Act, continue in force and shall be deemed to have been made under this Act.

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[9][4A. Prohibition to sell or purchase import licence. No person shall sell, purchase or otherwise deal in any import licence [9][* * *].

[10][* * * * * * *]

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[1] Subs. by the Imports and Exports (Control) (Amdt.) Act, 1975 (38 of 1975), s. 5.

[2] For the Registration (Importers and Exporters) Order, 1952, *see* Gaz. of P., 1952, Ext. pp. 1267—1271 ; for the Raw Jute Registered (Marks) Order, 1954, *see ibid*, 1954, Ext., pp. 1739-1741 for the Order made under this section, *see ibid*, 1957, Pt. I. p. 269; for the Review Appeal and Revision Order, 1957, *see ibid*, 1957, Ext., pp. 2219-2220 ; for the Licenses and Permits Fees Order, 1958, *see ibid.*, 1958, Ext. pp. 653—655 ; for notification to import such goods into Gwadur without licence in respect of which firm commitments had been made with foreign supplier before 8th September, 1958 *see ibid.*, 1958, Ext., p. 1855 ; and for the Wheat and Wheat Products, (Movements Restrictions) Order, 1961 *see ibid.*, 1961 Ext., p. 975c.

[3] For notifications prohibiting the export to and import from India of goods of all descriptions, *see* S.R.O. 126 (R)/65 and S.R.O. 128 (R) /65, dated the 9th September, 1965, Gaz. of P., 1965, Ext., p. 985.

For notification prohibiting the export by see, land or air to any destination, other than Afghanistan, of any goods of the description specified in the Sch. annexed to therewith, *see* Gaz. of P., 1965, Ext. p. 985.

[4] Subs. by the Imports and Exports (Control) (Amdt.) Act, 1957 (42 of 1957), s. 2., for certain original words.

[5] Subs. and added by the Imports and Exports (Control)(Amendment) Act, 2025 (V of 2025), s.2.

[6] Subs. by the Imports and exports (Control) Ordinance, 1970 (8 of 1970) s. 4.

[7] For such an order, *see* Gaz. of P., 1952, Ext., p. 985.

[8] Subs. by the Imports and Exports (Control) (Amdt.) Ordinance 1970, (8 of 1970) s. 4.

[9] New sections 4A and 4B ins. by the Imports and Exports (Control) (Amdt.) Ordinance, 1962 (29 of 1962), s. 4 (*with effect from the 18th April, 1962*).

[10] Omitted by Act. 38 of 1975, s. 4.

4B. Prohibition regarding sale and transfer of goods by industrial consumer. Except with the previous permission in writing of the Chief Controller or any other officer authorised in this behalf by the [1][Federal Government] no person [2][who, in his capacity as industrial consumer, imports any goods against a licence issued to him or, where no licence is required for the import of such goods by an industrial consumer, without any licence,] shall sell or otherwise transfer such goods, or use the goods for a purpose other than the purpose or purposes for which the licence was issued [3][or such goods were imported].]

5. Penalty. [4][(1)] If any person contravenes [5][any provision of this Act or] any order made or deemed to have been made under this Act or the rules made thereunder, or makes use of an import or export licence otherwise than in accordance with any condition in that behalf imposed under this Act, he shall without prejudice to any confiscation or penalty to which he may be liable under the provisions of the [6][Customs Act, 1969 (IV of 1969)], as applied by sub-section (3) of section 3 of this Act be punishable with imprisonment for a term which may extend to one year, or with fine, or with both.

[7][(2) If any person contravenes any provision of any order made or deemed to have been made under this Act or the rules, schemes or policies made thereunder or makes use of an export licence otherwise than in accordance with any condition subject to which it was granted, the Federal Government, or any officer authorized by it, may suspend, adjust, deduct or cancel the whole or, as the case may be, any part of export quotas whether granted to or acquired by such person on the basis of performance, purchase or by any other means whatsoever, and suspend or as the case may be, cancel the export registration of such person.

(3) No order under sub-section (2) shall be passed unless the concerned person has been given an opportunity of being heard.]

5A. [8][Repealed]

5B. [8][Repealed]

5C. [8][Repealed]

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6. Cognizance of offences. No court shall take cognizance of any offence punishable under section 5 except upon complaint in writing made, —

(a) in the case of an offence which is punishable both under this Act or the rules made thereunder and also, whether by confiscation or otherwise, under the [9][Customs Act, 1969 (IV of 1969)] by a [9][Collector of Customs] or by an officer of Customs authorised in writing in this behalf by a Customs-Collector, or

[1] Subs. by the Imports and Exports (Control) (Amdt.) Act, 1975 (38 of 1975), s. 5.
[2] Subs. by the Imports and Exports (Control) (Amdt.) Ordinance, 1965 (8 of 1965), s. 3, for "who imports goods against a licence issued to him in his capacity as industrial consumer".
[3] Added *ibid.*, s. 3.
[4] Re-numbered as sub-section (1) by the Imports and Exports (Control) (Amdt.) Act, 1997 (37 of 1997) s. 2.
[5] Ins. by Ordinance 29 of 1962, s. 5 (with effect from the 18th April, 1962).
[6] Subs. by the Imports and Exports (Control) (Amdt.) Ordinance, 1970 (8 of 1970), s. 5. For " Sea Customs Act, 1878".
[7] Sub-sections (2) and (3) added by the Imports and Exports (Control) (Amdt.) Act., 1997 (37 of 1997) s. 2.
[8] Sections 5A, 5B & 5C Repealed by the Trade Dispute Resolution Act, 2022 (Act No. LVI of 2023) s. 63.
[9] Subs. by the Imports and Exports (Control) (Amdt.) Ordinance, 1970 (8 of 1970), s. 6. (*w.e.f.* 18-4-1970

(b) in the case of any other offence, by the Chief Controller or by an officer authorized by him in writing in this behalf;

and no court inferior to that of a Magistrate of the first class shall try any such offence.

7. Savings. No order made or deemed to have been made under this Act shall be called in question in any court, and no suit, prosecution or other legal proceeding shall lie against any person for anything in good faith done or intended to be done under this Act or any rules made thereunder or any order made or deemed to have been made thereunder.

8. Power to make rules. The [1][Federal Government] may make rules not inconsistent with this Act for carrying out the purposes of this Act [2][and may in such rules provide for the setting up of a Revolving Fund and for matters relating thereto].

9. [3][Repealed]

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Dated: 03.03.2025

[1] Subs. by the Imports and Exports (Control) (Amdt.) Act, 1975 (38 of 1975) s. 5.
[2] Added by the Imports and Exports (Control) (Amdt.) Ordinance, 1980 (5 of 1980). s. 3.
[3] Repealed by the Repealing and Amending Ordinance, 1965 (10 of 1965), s. 2 and 1st Sch.

THE INDUSTRIAL STATISTICS ACT, 1942

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THE INDUSTRIAL STATISTICS ACT, 1942

[1]ACT No. XIX OF 1942

[*3rd April, 1942*]

An Act to facilitate the collection of statistics of certain kinds relating to industries

WHEREAS it is expedient to facilitate the collection of statistics of certain kinds relating to industries;

It is hereby enacted as follows:—

1. Short title, extent and commencement.— (1) This act may be called the Industrial Statistics Act, 1942.

[2][(2) It extends to the whole of Pakistan.

(3) It shall come into force on such date as the [3][appropriate Government] may, by notification in the official Gazette, appoint in this behalf for the territories under its administration.]

2. Definition. In this Act "prescribed" means prescribed in rules made under this Act or in any form prescribed by those rules [4][;]

[5][and the "appropriate Government" means, in relation to industries the development where of under Federal control has been declared by a Federal law to be expedient in the public interest, the Federal Government and, in relation to other industries, the Provincial Government.]

3. Collection of statistics.— (1) The [3][appropriate Government] may, by notification in the official Gazette, direct that statistics shall be collectedrelating to any of the following matters, namely :—

(a) any matter relating to factories,

(b) any of the following matters so far as they relate to welfare of labour and conditions of labour, namely:—

(i) price of commodities.

(ii) attendance,

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[1]For Statement of Objects and Reasons, *see* Gazette of India,1942, Pt V, page 41.
The Act has been applied in Baluchistan (*with effect from the 7th February, 1945*) *see* Notification No. 43-F, dated the 7th February, 1945, Gazette of India, 1945, Pt. I, p. 159 and 714- G/45 (1), dated the 12th October, 1945, Gazette of India, 1945, Pt. II- A, p. 309;
It has been extended to the Leased Areas of Baluchistan by the Leased Areas (Laws) Order, 1950 (G. G. O. 3 of 1950).
This Act has been amended in its application to the West Pakistan by West Pakistan Ordinance No. XXVIII of 1958.
This Act has been applied to the Provincially Administered Tribal Areas or to the parts of those areas to which it does not already apply, *see* Regulation No. I of 1972, section 2 and Sch.
[2]Subs by the Central Laws (Statute Reform) Ordinance, 1960 (XXI of 1960), s. 3 and 2nd Sch. (*with effect from the 14th October, 1955*) for the original sub-sections (2) and (3), as amended by A. O., 1949.
[3]Subs. by F. A. O., 1975, Art. 2 and Sch., for "Provincial Government".
[4]Subs. *ibid* for full stop.
[5]Added *ibid*.

(iii) living conditions, including housing water supply and sanitation,

(iv) indebtedness,

(v) rents of dwelling-houses,

(vi) wages and other earnings,

(vii) provident and other funds provided for labour,

(viii) benefits and amenities provided for labour,

(ix) hours of work,

(x) employment and unemployment,

(xi) industrial and labour disputes,

and thereupon the provisions of this Act shall apply to the collection of those statistics.

(2) In clause (a) of subsection (1), "factory" means a factory as defined in clause (j) of section 2 of the Factories Act, 1934 (XXV of 1934), or any premises deemed to be a factory in pursuance of a declaration made under sub-section (1) of section 5 of that Act.

4. Appointment of statistics authority. The [1][appropriate Government] may appoint an officer to be the statistics authority for the purposes of the collection of any statistics under this Act.

5. Power of statistics authority to call for returns and information.—(1) The statistics authority may serve or cause to be served on any person a notice requiring him to furnish, at such intervals and in such form and with such particulars as may be prescribed, such information or returns relating to any matter in respect of which statistics are to be collected and to such authority or person and in such manner and at such times as may be prescribed.

(2) The notice referred to in sub-section (1) may be served by post.

6. Right of access to record or document. The statistics authority or any person authorized by him in writing in this behalf shall, for the purposes of the collection of any statistics under this Act, have access to any relevant record or document in the possession of any person required to furnish any information or return under this Act, and may enter at any reasonable time any premises wherein he believes such record or document to be, and may ask any question necessary for obtaining any information required to be furnished under this Act.

7. Restriction on the publication or returns and information.— (1) No individual return, and no part of an individual return, made, and no information with respect to any particular undertaking given, for the purposes of this Act, shall, without the previous consent in writing of the owner for the time being of the undertaking in relation to which the return or information was made or given, or his authorized agent, be published in such manner as would enable any particulars to be identified as referring to a particular undertaking.

(2) Except for the purposes of a prosecution under this Act or under the Pakistan Penal Code (XLV of 1860), no person not engaged in connection with the collection of statistics under this Act shall be permitted to see any individual return or information referred to in sub-section (1).

[1]Subs. by F. A. O., 1975, Art. 2 and Sch., for "Provincial Government".

8. Penalties.— If any person required to furnish any information or any return—

(a) willfully refuses or without lawful excuse neglects to furnish such information or return as required under this Act, or

(b) willfully furnishes or causes to be furnished any information or return which he knows to be false, or

(c) refuses to answer or willfully gives a false answer to any question necessary for obtaining any information required to be furnished under this Act, or if any person impedes the right of access to relevant records and documents or the right of entry conferred by section 6, he shall for each such offence be punishable with fine which may extend to [1][[2][twenty thousand] rupees], and in the case of a continuing offence [3][with a further fine] which may extend to [2][eight hundred] rupees for each day after the first during which the offence continues; and in respect of false information, returns or answers the offence shall be deemed to continue until true information or a true return or answer has been given or made.

9. Penalty for improper disclosure of information or returns. If any person engaged in connection with collection of statistics under this Act willfully discloses any information or the contents of any return given or made under this Act otherwise than in the execution of his duties under this Act or for the purposes of the prosecution of an offence under this Act or under the Pakistan Penal Code (XLV of 1860), he shall be punishable with imprisonment for a term which may extend to six months, or with fine which may extend to [2][four thousand] rupees, or with both imprisonment and fine.

10. Cognizance of offences. No prosecution under section 8 shall be instituted except by or with the sanction of the statistics authority and no prosecution under section 9 shall be instituted except by or with the sanction of the [4][appropriate Government].

11. [*Power of the Central Government to give directions.*] *Omitted by A.O., 1964, Art, 2 and Sch.*

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12. Power of Provincial Government to make rules.— (1) The [4][appropriate Government] may, subject to the condition of previous publication by notification in the official Gazette, make rules[5] for carrying out the purposes of this Act.

(2) Without prejudice to the generality of the foregoing power, rules may be made under this section regulating the exercise of the right of access to documents and the right of entry conferred by section 6.

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[1]Subs. by the Industrial Statistics (Amdt.) Ordinance 1980 (XXXVIII of 1980), s.2, for "five hundred rupees"
[2]Subs. by ord. VI of 2000, ss. 2 and 3.
[3]Subs. by the Repealing and Amending Act, 1942 (XXV of 1942), s. 3 and Second Sch., for "to a further fine".
[4]Subs. by F. A. O., 1975, Art. 2 and Sch for "Provincial Government".
[5]For the Industrial Labour Statistics Rules 1959, framed under this section, *see* West Pakistan Gazette, 1959, Pt. I, pp. 315-333;
For the Industrial Labour Statistics Rules, 1959, framed under sub-section (1) of s. 11 of the Bahawalpur Industrial Statistics Act, 1946, *see ibid*., pp. 332-348; and
For the Industrial Labour Statistics Rules 1959, framed under sub-section (1) of s. 11 of the Khairpur State Industrial Statistics Act, 1946, see *ibid*., pp, 349-365.

THE INLAND MECHANICALLY PROPELLED VESSELS ACT, 1917

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THE INLAND MECHANICALLY PROPELLED VESSELS ACT, 1917

[1]ACT No. I OF 1917

[7th February, 1917]

An act to consolidate the enactments relating to [2][Mechanically Propelled Vessels].

WHEREAS it is expedient to consolidate the enactments relating to [2][mechanically propelled vessels] ; It is hereby enacted as follows:—

CHAPTER I
PRELIMINARY

[3][**1. Short title and extent.**— (1) This Act may be called the Inland Mechanically Propelled Vessels Act.

(2) It extends to the whole of Pakistan.]

2. Definitions. In this Act, unless there is anything repugnant in the subject or context,—

[4][(1) "mechanically propelled vessel" means every description of vessel ordinarily plying on inland waters and propelled wholly or in part by steam, electricity or other mechanical power, and includes for purposes only of registration under this Act a sailing boat, dumb barge and any other craft not mechanically propelled when towed or pushed by a mechanically propelled vessel;]

[5](2) "inland water" means any canal, river, lake or other navigable water in [6][Pakistan];

(3) "passenger" includes any person carried in a [7][mechanically propelled vessel] other than the master and crew and the owner, his family and servants;

(4) "prescribed" means prescribed by any rule under this Act;

[8][(5) "registrar" means a registrar appointed under this Act;]

(6) "survey" means the survey of a [7][mechanically propelled vessel] under this Act;

(7) "surveyor" means a surveyor appointed under this Act; and

(8) "voyage" includes the plying of a [7][mechanically propelled vessel] at or about any place.

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[1]For statement of Objects and Reason, *see* Gazette of India, 1916, Pt. V.p.71; and for Proceedings in Council, *see ibid*, 1916, Pt. VI, p. 541, and *ibid*, 1917, Pt. VI, p. 17.

The Provisions of this Act (excluding sections 19-A to 19-P) have been applied to the territory of Gwadur by W. Pakistan Ordinance No. 36 of 1959 (*with effect from the 16th June, 1959*).

Nothing in the Control of Shipping Act, 1947 (26 of 1947), shall apply to any vessel registered under this Act, *see* the Inland Steam-vessels (Amdt) Act, 1951 (25 of 1951), s.18.

The Act has been amended in its application to-

Sind, *see* the Inland Steam-vessels (Sind Amendment) Act, 1941 (Sind Act 21 of 1941).

The following portions of this Act have been applied with certain modifications to the inland mechanically propelled vessels belonging to the Central Govt. or the Provincial Govt. other than the vessels of Pakistan Navy and the Army I. W.T. namely:—

Chapter II — *(i)* Sections 3,4,5,6,7,8,9,10,11,12,13,14,15,16,17,18, and 19.

[2]Subs. by Act 25 of 1951, s. 2, for "inland steam-vessels.".

[3]Subs. *ibid*., s. 3, for the original section 1 as amended by A. O., 1937 and A. O., 1949, Sch.

[4]Subs by Act 25 of 1951, s. 4, for clause (1).

[5]For power to define how much of any tidal water shall be deemed to be an "inland water", *see* s. 70, infra.

[6]Subs. by the Central Laws (Statute Reforms) Ordinance, 1960 (21 of 1960), s. 3 2nd Sch. (*with effect from the 14th October, 1955*), for "the Provinces and the Capital of the Federation" which had been subs. by A. O., 1949, Arts. 3 (2) and 4, for "British Indian".

[7]Subs. by the Inland Steam-vessels (Amdt.) Act, 1951 (25 of 1951), s. 2, for "steam-vessel".

[8]Subs. by the Inland Steam-vessels (Amdt.) Act, 1951 (25 of 1951), s. 2 for "steam-vessel".

CHAPTER II[1]
SURVEY OF [2][MECHANICALLY PROPELLED VESSELS]

3. Mechanically propelled vessel not to proceed on voyage or to be used for service without certificate of survey.— [3][(1) A mechanically propelled vessel shall not proceed on any voyage, or ply on any inland water unless she has a certificate of survey and a certificate of registry, in force and applicable to such voyage or water, and unless she is owned—

(a) by a person who is a Pakistan national, or

(b) by a person registered as a company in Pakistan, or, if registered outside Pakistan, having in Pakistan an agent or branch together with an organisation adequate to the independent operation of the agency or branch within Pakistan.]

(2) Nothing in this section shall apply to any [4][mechanically propelled vessel] proceeding on a voyage during the interval between the time at which her certificate of survey expires and the time at which it is first practicable to have the certificate renewed.

4. Appointment of surveyors and places of survey.—(1) The [5][Provincial Government] may, by notification[6] in the [7][official Gazette],—

(a) declare such places, within the territories under its administration, as it thinks fit, to be places of survey [8][and registry], and

(b) appoint so many persons to be surveyors [8][and registrar] at the said places as it thinks fit, for the purposes of this Act.

[9][(2) Every surveyor and every registrar shall, for the purposes of any survey or any registry made by him, be deemed to be a public servant within the meaning of the Pakistan Penal Code.] (XLVof 1860).

5. Powers of surveyors.—(1) For the purposes of a survey [10][or registry], the surveyor [10][or the registrar, as the case may be] may, at any reasonable time, go on board any [11][mechanically propelled vessel], and may inspect the [4][mechanically propelled vessel] and every part thereof, including the hull, boilers, engines and other machinery, and all equipments and articles on board:

Provided that he shall not unnecessarily hinder the loading or unloading of the [4][mechanically propelled vessel], or unnecessarily detain or delay her from proceeding on any voyage.

(2) The owner, master and officers of the [4][mechanically propelled vessel] shall afford to the surveyor all reasonable facilities for a survey, and all such information respecting the [4][mechanically propelled vessel], and her machinery or any part thereof, and all equipments and articles on board, as he may require for the purposes of a survey.

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[1]For power to define how much of any tidal water shall be deemed to be an "inland water", *see* s. 70, *infra*.
[2]Subs. by Act 25 of 1951, s. 5, for INLAND STEAM-VESSELS".
[3]Subs. ibid., for sub-section (1).
[4]Subs. ibid., for "local official Gazette".
[5]Subs. by A. O., 1937, for "L. G.".
[6]For such notification in Bombay, *see* the local Rules and Orders.
[7]Subs. by A. O., 1937, for "local official Gazette".
[8]Added by Act 25 of 1951, s. 6.
[9]Subs. ibid., for sub-section (2).
[10]Ins. ibid., s. 7.
[11]Subs. ibid., s. 2, for "inland steam-vessel".
[11]Subs. by the Inland Steam-vessels (Amdt.) Act, 1951 (25 of 1951), s. 2, for "steam-vessel"

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[1][**6. Fees in respect of surveys.** Before a survey is commenced, or a registry is made, the owner or master of the vessel to be surveyed or registered, as the case may be, shall pay to such officer as the Provincial Government may, by notification in the official Gazette appoint in this behalf, a survey or registry fee, as the case may be, calculated on the tonnage of the vessel according to the rates mentioned in Schedules I and IA or according to any other prescribed rates.]

7. Declaration of surveyor. When the survey of a [2][mechanically propelled vessel] is completed, if the surveyor making it is satisfied that—

(a) the hull, boilers, engines and other machinery of the [2][mechanically propelled vessel] are sufficient for the voyage or service intended and in good condition, and

(b) the equipments of the [2][mechanically propelled vessel] and the certificates of the master and engineer are such and in such condition as are required by any law for the time being in force and applicable to the [2][mechanically propelled vessel],

the surveyor shall forthwith give to the owner or master a declaration in the prescribed form containing the particulars mentioned in clauses (a) and (b), and the following further particulars, namely:

(i) the time (if less than one year) for which the hull, boilers, engines and other machinery and equipments of the [2][mechanically propelled vessel] will be sufficient ;

(ii) the limit (if any) beyond which, as regards the hull, boilers, engines and other machinery or equipments, the [2][mechanically propelled vessel] is in the surveyors, judgment, not fit to ply;

(iii) the number of passengers (if any) which the [2][mechanically propelled vessel] is, in the judgment of the surveyor, fit to carry, specifying, if necessary, the respective numbers to be carried on the deck and in the cabins, and in different parts of the deck and cabins the number to be subject to such conditions and variations; according to the time of year, the nature of the voyage, the cargo carried or other circumstances, as the case requires; and

(iv) any other prescribed particulars.

8. Sending of declaration by owner or master to provincial Government.—(1) The owner or master of a [3][mechanically propelled vessel] to whom a declaration is given under section 7 shall, within fourteen days after the date of the receipt thereof, send the declaration to such officer as the [4][Provincial Government] may, by notification in the [5][official Gazette], appoint in this behalf.

(2) If any owner or master fails to send a declaration as required by sub-section (1), he shall forfeit a sum not exceeding five rupees for every day during which the sending of the declaration is delayed.

[1]Subs. by the Inland Steam-vessels (Amdt.) Act, 1951 (25 of 1951), s 8, for the original section 6, as amended by A. O., 1937 and A. O., 1949, Sch,
[2]Subs. by Act 25 of 1951, s. 2, for "steam-vessel"
[3]Subs. by the Inland Steam-vessels (Amdt.) Act, 1951 (25 of 1951), s. 2, for "steam-vessel".
[4]Subs. by A. O., 1937, for "L. G.".
[5]Subs. *ibid*., for "local official Gazette".

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9. Power for provincial Government to grant or authorise the grant of certificates of survey.—(1) The [1][Provincial Government] shall, if satisfied that all the provisions of this Act have been complied with in respect of a declaration sent under section 8, cause,—

(a) a certificate of survey, in duplicate, to be prepared, and

(b) notice thereof to be given by post or otherwise to the owner or master of the. [2][mechanically propelled vessel] to which the certificate relates.

(2) On application made by the owner or master to such officer at the place of survey as the [1][Provincial Government] may, by notification[3] in the [4][official Gazette], appoint in this behalf, and on payment to such officer by the owner or master of the sum (if any) forfeited by him under section 8, sub-section (2), (the actual amount of which within the limit thereby fixed shall be determined by the [1][Provincial Government]), the certificate, in duplicate, so prepared shall be granted to the owner or master by the [1][Provincial Government] and issued to him through such officer.

(3) A certificate granted under this section shall be in the prescribed form, shall contain a statement to the effect that all the provisions of this Act with respect to the survey of the [2][mechanically propelled vessel] and the declaration of survey have been complied with, and shall set forth—

(a) the particulars concerning the [2][mechanically propelled vessel] mentioned in the declaration of survey

as required by clauses (i), (ii) and (iii) of section 7, and

(b) any other prescribed particulars.

(4) The [1][Provincial Government] may, by notification[4] in the [5][official Gazette], delegate to any person all or any of the functions assigned to the [1][Provincial Government] under this section:

Provided that no delegation shall be made under sub-section (2) so as to authorise the grant of a certificate of survey by the surveyor who made the declaration of survey under section 7.

10. Certificate of survey to be affixed in conspicuous part of mechanically propelled vessel. The owner or master of every [2][mechanically propelled vessel] for which a certificate of survey has been granted, shall forthwith, on the receipt of the certificate, cause one of the duplicates thereof to be affixed and kept affixed so long as it remains in force and the [2][mechanically propelled vessel] is in use, on some conspicuous part of the [2][mechanically propelled vessel] where it may be easily read by all persons on board.

[6][**10A. Effect of certificates of survey.** A certificate of survey shall have effect throughout the Province in which it was granted:

Provided that such a certificate may be endorsed by the Provincial Government of any other Province, or with the general or special sanction of the Provincial Government of that other Province, by the authority granting it, so as to have effect in that other Province or any part thereof, and, if so endorsed shall have effect accordingly.]

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[1]Subs. by A. O., 1937, for "L. G.".
[2]Subs. by the Inland Steam-vessels (Amdt.) Act, 1951 (25 of 1951), s. 2, for "steam-vessel".
[3]For notifications appointing officers in—
(a) Bombay, see Digest of Acts and Rules, etc., relating to Bombay Survey Department.
[4]For list of officers to whom powers have been delegated in
(a) Bombay, see Digest of Acts and Rules, etc., relating to Bombay Survey Department.
[5]Subs. by A.O., 1937, for "local official Gazette".
[6]Ins. by A.O., 1937.

11. Term of certificates of survey. A certificate of survey shall not be in force [1][in any Province]—

(a) after the expiration of one year from the date thereof; or

(b) after the expiration of the period (if less than one year) for which the hull, boilers, engines or other machinery, or any of the equipments of the [2][mechanically propelled vessel] to which the certificate relates have been stated in the certificate to be sufficient; or

(c) after notice has been given [3][by the Provincial Government of the Province in which it was granted] to the owner or master of such [2][mechanically propelled vessel], that such [4][Provincial Government] has cancelled or suspended it.

[5][A certificate of survey shall not be in force in any Province by virtue of any endorsement in respect of that Province, after notice has been given by the Provincial Government of that Province, to the owner or master of a [2][mechanically propelled vessel], that that Government has cancelled or suspended the endorsement.]

12. Renewal of certificate of survey. After a certificate of survey has ceased to be in force the same shall only be renewed after a fresh survey of the [2][mechanically propelled vessel] to which the certificate relates, has been held in accordance with the provisions of this Chapter save so far as any relaxation thereof may be prescribed.

13. Power for provincial Government to suspend or cancel certificate of survey. [6][A certificate of survey or any endorsement thereon made under section 10A may be suspended or cancelled by the Government of the Province in which the certificate was granted or in respect of which the endorsement was made, as the case may be, if that Government has reason to believe—]

(a) that the declaration by the surveyor of the sufficiency and good condition of the hull, boilers, engines or other machinery or of any of the equipments of the [2][mechanically propelled vessel] has been fraudulently or erroneously made; or

(b) that the certificate has otherwise been granted upon false or erroneous information; or

(c) that since the making of the declaration the hull, boilers, engines or other machinery, or any of the equipments of the [2][mechanically propelled vessel] have sustained any material injury, or have otherwise become insufficient.

14. Power for provincial Government to require delivery of expired or cancelled certificate. The [4][Provincial Government] may require any certificate of survey, which has expired or has been suspended or cancelled, to be delivered up to such officer as the [4][Provincial Government] may, by notification[7] in the [2][official Gazette], appoint in this behalf.

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[1]Ins. By A. O., 1937.
[2]Subs. by the Inland Steam-vessels (Amdt.) Act, 1951 (25 of 1951), s. 2, for "steam-vessel"
[3]Subs. by A. O., 1937, for "by any L. G".
[4]Subs. by A. O., 1937, for "L. G.".
[5]Ins. ibid.
[6]Subs. ibid., for "A certificate of survey may be suspended or cancelled by any L.G. if it has reason to believe—".
[7]For notification appointing such officers in —
(a) Bombay, *see* Digest of Acts and Rules, etc., relating to Bombay Survey Department.
[8] Subs. by A. O., 1937, for "local official Gazette".

[1][Where an endorsement on any certificate of survey for any Province has been suspended or cancelled, the Provincial Government of that Province may require the certificate of survey to be delivered up to such officer as that Government may by notification in the official Gazette appoint in this behalf, in order that particulars of the suspension or cancellation of the endorsement may be noted on the certificate.]

15. Report of suspension or cancellation of certain certificates. [2][If a Provincial Government suspends or cancels an endorsement made under section 10A on a certificate of survey, it] shall report the fact of suspension or cancellation, together with the reasons therefor, to the [3][Provincial Government] which (or whose delegate) granted the certificate.

16. Power for provincial Government to direct survey by two surveyors. A survey shall ordinarily be made by one surveyor, but two surveyors may be employed if the [3][Provincial Government], by order in writing, so directs either generally in the case of all [4][mechanically propelled vessels] at any place of survey, or specially in the case of any particular [5][mechanically propelled vessel] or class of [4][mechanically propelled vessels] at any such place.

17. Power for provincial Government to order a second survey.—(1) If the surveyor making a survey of a [5][mechanically propelled vessel] refuses to give a declaration under section 7 with regard to the [5][mechanically propelled vessel], or gives a declaration with which the owner or master of the [5][mechanically propelled vessel] is dissatisfied, the [3][Provincial Government] may on the application of the owner or master, and the payment by him of such fee, not exceeding twice the amount of the fee payable for the previous survey, as the [3][Provincial Government] may require, direct two other surveyors to survey the [5][mechanically propelled vessel].

(2) The surveyors so directed shall forthwith survey the [5][mechanically propelled vessel], and may, after the survey, either refuse to give a declaration or give such declaration as, under the circumstances, seems to them proper.

(3) Any declaration given, or any refusal to give a declaration under sub-section (2), shall be final.

18. Division of duties when two surveyors employed. When a survey is made by two surveyors under either section 16 or section 17, each of the surveyors shall perform the prescribed portion of the duties assigned to a surveyor under this Act or the rules made thereunder.

19. Power for Provincial Government to make rules as to survey.—(1) The [6][Provincial Government] may [7]* * * make rules to regulate the making of surveys [8][and registries].

(2) In particular and without prejudice to the generality of the foregoing power, such rules may prescribe—

(a) the times and places at which, and the manner in which, surveys are to be made;

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[1]Ins. *ibid.*
[2]Subs. *ibid,* for "If the L G. which suspends or cancels a certificate of survey, is not the L. G. which (or whose delegate) granted the certificate, the L.G. suspending or cancelling the certificate".
[3]Subs. *ibid.*, for "L. G."
[4]Subs. by the Inland Steam-vessels (Amdt.) Act, 1951 (25 of 1951) s. 2, for "steam-vessels".
[5]Subs. *ibid.*, for "steam-vessel".
[6]Subs. by A. O., 1937, for "L. G.".
[7]The words "with the previous sanction of the G G. in C." were rep. by the Devolution Act, 1920 (38 of 1920), s. 2 and Sch. I
[8]Added and ins. by the Inland Steam-vessels (Amdt.) Act, 1951 (25 of 1951) s. 9.

(b) the duties of the surveyor making a survey and, where two surveyors are employed, the respective duties of each such surveyor;

(c) the form in which declarations of survey and certificates of survey [1][or of registry] are to be framed, and the nature of the particulars to be stated therein [2][under sections 7, 9, 19A and 19B];

(d) the rates other than those mentioned in Schedules I and IA according to which the fees payable in respect of surveys and registry are to be calculated in the case of all or any of the places of survey or registry within the territories under its administration; and

(e) the cases in which, and the extent to which, a survey or registry may be dispensed with.

[3][**19A.** The registrar shall register a mechanically propelled vessel on recepit of an application for registry from an owner being a person who fulfils the conditions specified in clause (a) or clause (b) of sub-section (1) of section 3.

19B. The registrar shall keep a register book in such form as the Provincial Government may prescribe.

19C. On registering a mechanically propelled vessel the registrar shall grant a certificate of registry containing the particulars respecting her entered in the register book, and shall assign a register number to her which shall be displayed on both her bows, and on her stern, followed by this device, namely, upon a square green ground a white star and crescent whose horns point to the upper left corner of the ground.

19D. The certificate of registry shall always be carried on board the vessel by the owner or master and shall be open to inspection by a person duly authorised by the Provincial Government in this behalf.

19E. In the event of the certificate of registry of the vessel being mislaid, lost or destroyed the registrar shall grant a new certificate in lieu of her original certificate on payment of such fee as may be prescribed by the Provincial Government.

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19F.—(1) In the event of a vessel registered under this Act being actually or constructively lost, taken by the enemy, or burnt or broken up, or transferred to a person who does not fulfil the conditions specified in clause (a) or clause (b) of sub-section (1) of section 3, the owner of the vessel shall immediately give notice of the event, if notice thereof has not already been given, to the registrar, and the registrar shall make an entry thereof in the register book.

(2) In any such case, except where the vessel's certificate of registry has been lost or destroyed, the owner or master of the vessel shall, if the event occurs in the place of registry, immediately, and if it occurs elsewhere, then within 10 days of her arrival at the place of registry, deliver the certificate to the registrar, or if the vessel is not likely to return to the place of registry, within 10 days of the happening of the event, to the nearest magistrate, and the magistrate shall forthwith forward the certificate delivered to him to the registrar.

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[1]Added and ins. by the Inland Steam-vessels (Amdt.) Act, 1951 (25 of 1951) s. 9.
[2]Subs. *ibid.*, for "under sections 7 and 9"
[3]Sections 19A to 19R ins. by the Inland Steam-vessels (Amdt.) Act, 1951 (25 of 1951), s. 10.

(3) If the owner or master fails, without reasonable cause to comply with the provisions of this section, he shall for each offence be liable to a fine not exceeding one hundred rupees.

19G.—(1) Whenever a change occurs in the registered ownership of a mechanically propelled vessel, the change of ownership shall be endorsed on her certificate of registry by the registrar.

(2) The owner or master shall for the purposes of such endorsement by the registrar deliver the certificate of registry to the registrar forthwith after the change, if the change occurs when the vessel is at her place of registry, or if it occurs during her absence from that place then upon her first return to that place.

(3) If the owner or master fails to deliver the certificate of registry to the registrar as required by this section he shall, for each offence, be liable to a fine not exceeding one hundred rupees.

19H.—(1) If at any place outside Pakistan a mechanically propelled vessel becomes the property of a person who fulfils the conditions specified in clause *(a)* or clause *(b)* of sub-section (1) of section 3, the fact shall be reported to the registrar giving the time of her arrival at the place of registry. The following particulars shall also be furnished:—

(a) the name of the vessel, if any,

(b) the time and place of her purchase and the name or names of the purchaser or purchasers,

(c) the name of her master, and

(d) the particulars respecting her tonnage, build and description which he is able to obtain.

19I.— (1) A registered inland mechanically propelled vessel or share therein when disposed of shall be transferred by bill of sale.

(2) Every bill of sale for the transfer within Pakistan of a mechanically propelled vessel registered under this Act, when duly executed, shall be presented to the registrar at her place of registry, with the declaration of transfer, and he shall thereupon enter the name of the transferee in the register book as owner of the vessel, and endorse on the bill of sale the fact of that entry having been made, with the day and hour thereof.

19J.— (1) No mechanically propelled vessel registered under this Act shall be transferred or sold without the previous notice to the registrar to any person unless that person is a Pakistan national residing and carrying on business in Pakistan or fulfils the conditions specified in clause *(b)* of sub-section (1) of section 3.

(2) Upon receipt of such notice the registrar shall grant him a certificate of transfer or sale authorising the transfer or sale accordingly.

19K.— (1) If a mechanically propelled vessel is sold to a person being a Pakistan national residing and carrying on business in Pakistan or fulfilling the condition specified in clause (b) of sub-section (1) of section 3, the vessel shall be registered anew.

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(2) Before so registering the vessel the registrar shall require the bill of sale by which the vessel is transferred, the certificate of transfer or sale and the certificate of registry of such vessel.

(3) The registrar shall retain the certificates of sale and registry, after having endorsed on both of those instruments an entry of the fact of a sale having taken place.

(4) When he registers a vessel anew under this section the registrar may enter in his register book the description of the vessel contained in her original certificate of registry.

19L. On proof at any time to his satisfaction that a certificate of transfer or sale is lost or destroyed, or so obliterated as to be useless, and that the transfer or sale thereby authorised has not been carried out, or if it has been carried out, then on proof of the several matters and things that have been done thereunder, the registrar may issue a new certificate, or direct such entries to be made in the register book or such other things to be done as might have been made or done if the loss, destruction or obliteration had not taken place.

19M.— (1) When a mechanically propelled vessel registered under this Act is so altered as not to correspond with the particulars relating to her tonnage or description contained in the register book, the registrar shall, on application being made to him, and on receipt of a certificate from a surveyor stating the particulars of the alteration, register the alteration, or, if he thinks fit, register the vessel anew.

(2) Until such vessel, being so altered, is registered anew or her alteration is registered, as provided in sub-section (1), she shall be deemed not to be registered under this Act.

(3) When the registrar registers a vessel anew, under this section there shall be paid in that behalf the fee then payable in respect of a vessel of that description registered under this Act for the first time.

(4) When the registrar registers an alteration under this section, the vessel's certificate of registry shall be produced before him, and he may, at his discretion, retain it and grant a new certificate of registry containing a description of her, as altered, or endorse and sign on the certificate produced before him a memorandum of the alteration.

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19N.—(1) Where a vessel is to be registered anew, the registrar shall proceed as in the case of first registry, and on the delivery up to him of the existing certificate of registry and upon fulfilment of the other requirements for registry or, in the case of a change of ownership, such of them as he thinks material, he shall register the vessel anew and grant a certificate thereof.

(2) When a vessel is registered anew, her former register shall be considered as closed, except so far as it relates to any unsatisfied and unexpired certificate of sale entered thereon, but the names of all persons appearing on the former register to be interested in her as owners shall be entered on the new register and the registry anew shall not in any way affect the rights of any of those persons.

19O. The registrar shall, not later than the 15th of January and the 15th of July in every year, transmit to the Provincial Government particulars, in such form as that Government may direct, of all registries and transfers, cancellations of registry and other dealings with vessels registered by him under this Act, which have taken place in the last six months of the preceding year or, as the case may be, the first six months of the current year, the names of the persons concerned in the same, and such other particulars as may be directed by the Provincial Government.

19P. The registry of a vessel under this Act once made shall hold good until the vessel is sold or transferred or is registered anew by reason of having been altered.

19Q. Notwithstanding anything to the contrary in this Act, the Provincial Government may, by notification in the official Gazette, declare that the provisions of this Act, in its application by reason of the terms of clause (1) of section 2 to a sailing boat, dumb barge or any other craft not mechanically propelled, when towed or pushed by a mechanically propelled vessel, shall have effect only to such extent and subject to such modifications as may be specified in the notification.

19R.— (1) Where the [1][Federal Government] is satisfied that by the law or practice of any country outside Pakistan, mechanically propelled vessels having a certificate of registration in force under this Act-

(a) obtain by reason of such registration any special exemption in that country while plying in the inland waters thereof, or

(b) are required as a condition of plying in the inland waters of that country to comply with any special requirement, whether by way of registration anew or payment of a fee or otherwise, the [1][Federal Government] may, by notification in the official Gazette direct that the same exemption or requirement, or an exemption or a requirement as similar thereto as may be, shall by way of reciprocity be granted to, or imposed upon, inland steam vessels registered in that country while plying in the inland waters of the territories to which this Act extends.

(2) The [1][Federal Government] may by notification in the official Gazette direct that the above provisions governing reciprocity in the matter of certificates of registration shall apply, so far as may be, to certificates of survey of the vessels and certificates of competency and licences issued under the provisions of sections 9, 21, 22, and 22A of the Act.]

CHAPTER III
MASTERS (INCLUDING SERANGS) AND ENGINEERS (INCLUDING ENGINE-DRIVERS) OF [2][MECHANICALLY PROPELLED VESSELS]

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20. Appointment of examiners. The [3][Provincial Government] may appoint examiners for the purpose of examining the qualifications of persons desirous of obtaining certificates (hereinafter called certificates of competency), to the effect that they are competent to act as masters or serangs, or as engineers or engine-drivers, as the case may be, on board [2][mechanically propelled vessels].

21. Grant of masters serangs, engineers, and engine drivers, certificate of competency.—(1) The [3][Provincial Government] or such officer as it may, by notification in the [4][official Gazette], appoint in this behalf, shall grant to every person who is reported by the examiners to possess the prescribed qualifications, a certificate of competency to the effect that he is competent to act as a first-class master, second-class master or serang, or as an engineer, first class engine-driver or second-class engine-driver, as the case may be, on board an [5][mechanically propelled vessel]:

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[1]Subs. by F.A.O., 1975, Art. 2 and Table, for "Central Government".
[2]Subs. by the Inland Steam-vessels (Arndt.) Act, 1951 (25 of 1951), s. 2, for ".INLAND STEAM-VESSELS".
[3]Subs. by A. O., 1937, for "L. G.":
[4]Subs. by A. O., 1937, for "local official Gazette".
[5]Subs. by Act 25 of 1951, s. 2, for "inland steam-vessel".

Provided nevertheless that, before granting a certificate of competency under this Act, the authority empowered to grant such certificate may, if it considers the report of the examiners regarding any applicant for such certificate to be defective, or has reason to believe that such report has been unduly made, require a further examination or a re-examination of the applicant.

(2) Every certificate granted under this section shall be in the prescribed form.

22. Grant of masters serangs engineers and engine drivers certificate of service.—(1) The [1][Provincial Government] may, [2][if it thinks fit], grant without examination to any person who has served as a master or as an engineer, of an [3][mechanically propelled vessel] before the first day of April, 1890, a certificate (hereinafter called a certificate of service) to the effect that he is, by reason of his having so served, competent to act as a first-class master, second- class master or serang, or as an engineer, first-class engine-driver or second-class engine-driver, as the case may be, on board an 3[mechanically propelled vessel].

(2) A certificate of service so granted shall have the same effect as a certificate of competency granted under this Act after examination.

[4][**22A. Licences.**—(1) The [1][Provincial Government] may also, [2][if it thinks fit], grant—

(a) to a person who is in possession of a second-class master's certificate granted under section 21 or section 22, and has, by virtue of such certificate, acted as master of an 3[mechanically propelled vessel] having engines of forty or more nominal horsepower for a period of not less than five years, or

(b) to a person who is in possession of a first-class engine-driver's certificate granted under section 21 or section 22, [5]* * * and has, by virtue of such certificate, served as an engine-driver of an [3][mechanically propelled vessel] having engines of not less than seventy nominal horse power for five years, for not less than two and a half years of which period he has been the engine-driver of such vessel within the meaning of section 26,

a license authorising such person to act as master or engineer, as the case may be, of any [3][mechanically propelled vessel] having engines of one hundred and seventy nominal horse-power or of such less nominal horse-power [6][as such Government] may deem fit.

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(2) Any such licence shall remain in force only for such time as the person holding the same is in possession of an entitled to a master's or an engine-driver's certificate, as the case may be, of the nature referred to in sub-section (1):

Provided that the [1][Provincial Government] may, [3][if it thinks fit], suspend, cancel or vary the conditions of any such licence.]

23. Certificate to be made in duplicate. Every certificate of competency or service [7][and every licence] granted under this Act shall be made in duplicate, and one copy shall be delivered to the person entitled to the certificate, [7][or licence] and the other shall be kept and recorded in the prescribed manner.

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[1]Subs. by A. O., 1937, for "L. G.".
[2]Subs. *ibid*., for "in its discretion".
[3]Subs by the Inland Steam-vessels (Amdt.) Act, 1951 (25 of 1951), s. 2, for "inland steam-vessel"
[4]S. 22A ins. by the Inland Steam-vessels (Amdt.) Act, 1920 (6 of 1920), s. 2.
[5]Certain words omitted by the Federal Laws (Revision and Declaration) Ordinance, 1981 (27 of 1981), s. 3 and Sch, II.
[6]Subs. by the Repealing and Amending Act, 1923 (11 of 1923), s. 2., and Sch. I, for "as to such Govt."
[7]Ins. by the Inland Steam-vessels (Amdt.) Act, 1920 (6 of 1920), s. 3.

24. Copy of certificate or licence to be granted in certain. cases. Whenever a master or serang, or an engineer or engine-driver, proves, to the satisfaction of the authority which granted his certificate [1][or licence] that he has, without fault on his part, lost or been deprived of it, a copy of the certificate [1][or licence] to which, according to the record kept under section 23, he appears to be entitled shall be granted to him, and shall have the same effect as the original.

25. Certificates to be held by master and engineer of vessel of one hundred or more horse-power. [2][A] [3][mechanically propelled vessel] having engines of [4][one hundred] or more nominal horse-power shall not proceed on any voyage unless she has—

(a) as her master a person possessing a first-class master's certificate granted under this Act, [5]* * * or granted under, or continued in force by, the Merchant Shipping Act, 1894, [6][or a master's licence granted under section 22A and applicable to such vessel and voyage], and 57 & 58 Vict., c. 60.

(b) as her engineer a person possessing an engineer's certificate granted under this Act, [5]* * * or granted under or continued in force by the [7][Merchant Shipping Act, 1923], [8][or an engine-driver's licence granted under section 22A and applicable to such vessel and voyage].

26. Certificates to be held by master and engineer of vessel of between forty and one hundred horse-power. [9][A] [10][mechanically propelled vessel] having engines of [11][forty] or more nominal horse-power, but of less than [12][one hundred] nominal horse -power, shall not proceed on any voyage unless she has-

(a) as her master a person possessing a second-class master's certificate granted under this Act, or any certificate referred to in clause (a) of section 25, and

(b) as her engineer a person possessing a first-class engine driver's certificate granted under this Act, [13]* * * or any certificate referred to in clause (b) of section 25:

Provided that a [10][mechanically propelled vessel] shall be deemed to have complied with this section if she has as her master and engineer a person possessing both a certificate referred to in clause (a), and a certificate referred to in clause (b) of this section.

27. Certificates to be held by master and engineer of vessel of less than forty horse-power [9][A] [10][mechanically propelled vessel] having engines of less than [11][forty] nominal horse-power shall not proceed on any voyage unless she has—

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[1]Ins. *ibid.*, s. 4.
[2]Subs. by the Federal Laws (Revision and Declaration) Ordinance, 1981 (27 of 1981), s. 3 and Sch., II, for "An"
[3]Subs. by the Inland Steam-vessels (Amdt.) Act, 1951 (25 of 1951), s. 2, for "inland steam-vessel"
[4]Subs. by Act, 6 of 1920, s. 5 for "eighty".
[5]Certain words omitted by Ord. 27 of 1981, s. 3 and Sch., II.
[6]Ins. by Act 6 of 1920, s. 5.
[7]Subs. by the Federal Laws (Revision and Declaration) Ordinance, 1981 (27 of 1981), s. 3 and Sch., II, for Merchants Shipping Act, 1894.".
[8]Ins. by the Inland Steam-vessels (Amdt.) Act, 1920 (6 of 1920), s. 5.)
[9]Subs. by Ord. 27 of 1981, s. 3 and Sch. II for "An"
[10]Subs. by the Inland Steam-vessels (Amdt.) Act, 1951 (25 of 1951), s. 2, for "inland steam-vessel".
[11]Subs. by Act 6 of 1920, sections 6 and 7, for "thirty".
[12]Subs. *ibid*., for "eighty
[13]Certain words omitted by Ord. 27 of 1981, s. 3 and Sch. II.
[14]Subs. by the Inland Steam-vessels (Amdt.) Act, 1920 (6 of 1920), s.5.

(a) as her master a person possessing a serang's certificate granted under this Act, or any certificate referred to in clause (a) of section 26, and

(b) as her engineer a person possessing a second-class engine-driver's certificate granted under this Act, or any certificate referred to in clause (b) of section 26:

Provided that a [1][mechanically propelled vessel] shall be deemed to have complied with this section if she has as her master and engineer a person possessing both a certificate referred to in clause (a), and a certificate referred to in clause (b) of this section.

28. Power for Provincial Government to require master or engineer to hold certificate granted under Act in addition to other certificate. Notwithstanding anything in this Chapter, the [2][Provincial Government] may, by general or special order, direct that a person possessing—

(a) a master's certificate [2]* * * granted under, or continued in force by, the [3][Merchant Shipping Act, 1923] (XXI of 1923), or

(b) [2]* * * an engineer's certificate granted under, or continued in force by, the [3][Merchant Shipping Act, 1923], (XXI of 1923), shall not act as master or engineer, as the case may be, of a [4][mechanically propelled vessel] unless he also possesses—

(i) in case (a), such a master's or serang's certificate granted under this Act as qualifies him under this Chapter to act as master of the [4][mechanically propelled vessel], or

(ii) in case (b), such an engineer's or engine-driver's certificate granted under this Act as qualifies him under this Chapter to act as engineer of the [4][mechanically propelled vessel]]:

Provided that, for the purposes of this section, the [2][Provincial Government] may, [5][if it thinks fit], grant to any person, without examination, a master's or serang's or an engineer's or engine-driver's certificate of competency under this Act, and such certificate shall have the same effect as a certificate of competency granted under this Act after examination.

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29. Power for Provincial Government to make rules as to grant of certificates of competency.—(1) The [2][Provincial Government] may [6]* * * make rules to regulate the granting of certificates of competency under this Chapter.

(2) In particular and without prejudice to the generality of the foregoing power, such rules may prescribe—

(a) the times and places of holding and the mode of conducting examination of persons desirous of obtaining certificates of competency;

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[1]Subs. by the Inland Steam-vessels (Amdt.) Act, 1951 (25 of 1951), s. 2, for "Inland Steam-vessels (Amdt.) Act, 1951 (25 of 1951), s. 2, for "inland steam-vessel".
[2]Subs. by A.O., 1937, for "L.G.".
[3]Subs. *ibid.*, for "Merchant Shipping Act, 1894".
[4]Subs. *ibid.*, for "steam-vessel".
[5]Subs. by A.O.,1937, for in its discretion".
[6]The words with the previous sanction of the G.G. in C. rep., *ibid*.

(b) the qualifications to be required of persons desirous of obtaining such certificates;

(c) the examination fees to be paid by such persons; and

(d) the forms in which such certificates are to be framed, and the authority by whom, and the manner in which, copies are to be kept and recorded under section 23.

[30. Power for Provincial Government to make rules as to grant of certificate of service. The [1][Provincial Government] may also make rules to regulate the granting of certificates of service under section 22, and may by such rules prescribe in particular—

(a) the fees to be paid for such certificates; And

(b) the forms in which such certificates are to be framed, and the authority by whom, and the manner in which, copies are to be kept and recorded under section 23.

[2][**30A. Power for Provincial Government to make rules as to grant of licences.** The [1][Provincial Government] may also make rules to regulate the granting of licences under section 22A, and may by such rules prescribe in particular—

(a) the fees (if any) to be paid for such licences, and

(b) the forms in which such licences are to be framed and the authority by whom and the manner in which copies are to be kept and recorded under section 23.]

31. Area in which certificates of competency or service and licences shall have effect. [3][A certificate of competency or service or a licence granted under this Chapter] shall have effect throughout the Province in which it was granted:

Provided that the authority granting such certificate [4][or licence] may, by endorsement thereon, restrict the effect of such certificate [4][or licence] to any part of such Province:

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Provided further that such certificate [4][or licence] may be endorsed by the [1][Provincial Government] of any other Province, or with the general or special sanction of the [1][Provincial Government] of such other Province, by the authority granting it so as to have effect in such other Province or any part thereof, and thereupon shall have effect accordingly.

CHAPTER IV
INVESTIGATIONS INTO CASUALTIES

32. Report of casualties to be nearest police station.Whenever —

(a) any [5][mechanically propelled vessel] has been wrecked, abandoned or materially damaged; or

[1]Subs. by A O., 1937, for "L. G."
[2]Section 30A ins. by the Inland Steam-vessels (Amdt.) Act, 1920 (6 of 1920), s. 8.
[3]Subs. by A. O., 1937 for" Certificates of competency or service and licences granted under this Chapter shall have effect as follows, namely:-
(i) A certificate of competency or service as engineer or engine-drive shall have effect throughout British India.
(ii) A certificate of competency or service as master or serang and a licence"
[4]Ins. by Act 6 of 1920, s. 9.
[5]Subs. by the Inland Steam-vessels (Amdt.) Act, 1951 (25 of 1951), s. 2, for "inland steam-vessel"

(b) by reason of any casualty happening to, or on board of, any [1][mechanically propelled vessel], loss of life has ensued; or

(c) any [1][mechanically propelled vessel] has caused loss or material damage to any other vessel,

the master of the [2][mechanically propelled vessel] shall forthwith give notice of the wreck, abandonment, damage, casualty, or loss to the officer in charge of the nearest police-station.

33. Power for Provincial Government to appoint Court of investigation.— (1) If a formal investigation into the facts of any case reported under section 32 appears to the [3][Provincial Government] to be expedient, the [3][Provincial Government] may—

(a) appoint a special Court and direct the Court to make the investigation at such place as the [3][Provincial Government] may fix in this behalf; or

(b) direct any principal Court of ordinary criminal jurisdiction or the Court of any District Magistrate to make the investigation.

(2) A special Court appointed under clause *(a)* of sub-section (1) shall consist of not less than two nor more than four persons, of whom one shall be a Magistrate, one shall be a person conversant with maritime affairs or with the navigation of [4][mechanically propelled vessels], and the other or others (if any) shall be conversant with either maritime or mercantile affairs, or with the navigation of [4][mechanically propelled vessels].

34. Power of Court of investigation to inquire into charges of incompetency or misconduct.— (1) Any Court making an investigation under section 33 may inquire into any charge of incompetency or misconduct arising in the course of the investigation against any master, engineer or engine-driver, or any person holding a certificate granted under Chapter III, as well as into any charge of a wrongful act or default on his part causing any wreck, abandonment, damage, casualty, or loss referred to in section 32.

(2) In every case in which any such charge arises against any master, engineer or engine-driver, or any person holding a certificate granted under Chapter III in the course of an investigation, the Court shall, before the commencement of the inquiry into the charge, cause to be furnished to him a copy of the report or of any statement of the case upon which the investigation has been directed.

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35. Power for Provincial Government to direct investigation otherwise than under section 33.— (1) If the [3][Provincial Government] has reason to believe that there are grounds for charging any master, engineer or engine-driver, or any person holding a certificate granted under Chapter III, with incompetency or misconduct, otherwise than in the course of an investigation under section 33, it may send a statement of the case to the principal Court of ordinary criminal jurisdiction, or the Court of the District Magistrate, at or nearest to the place at which it may be convenient for the parties and witnesses to attend, and may direct the Court to make an investigation into the charge.

(2) Before commencing an investigation under sub-section (1), the Court shall cause the person charged to be furnished with a copy of the statement of the case sent by the [3][Provincial Government].

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[1]Subs. by the Inland Steam-vessels (Amdt.) Act, 1951 (25 of 1951), s. 2, for "inland steam-vessel".
[2]Subs. *ibid*., for "steam-vessel".
[3]Subs. by A. O., 1937, for "L. G".
[4]Subs. by Act 25 of 1951, s. 2, for "inland steam-vessels".

36. Person charged to be heard. For the purpose of an investigation under this Chapter into any charge against a master, engineer or engine-driver, or any person holding a certificate granted under Chapter III, the Court may summon him to appear, and shall give him full opportunity of making a defence, either in person or otherwise.

37. Assessors.— (1) When, in the opinion of the Court making an As investigation under this Chapter, the investigation involves, or appears likely to involve, any question as to the cancelling or suspension of the certificate of a master, engineer or engine-driver, or any person holding a certificate granted under Chapter III, the Court shall appoint as its assessors, for the purposes of the investigation, two persons having experience in the merchant service or in the navigation of [1][mechanically propelled vessels].

(2) In every other investigation the Court may, if it thinks fit, appoint as its assessor, for the purposes of the investigation, any person conversant with maritime affairs or the navigation of [1][mechanically propelled vessels] and willing to act as assessor.

(3) Every person appointed as an assessor under this section shall attend during the investigation and deliver his opinion in writing, to be recorded on the proceedings.

38. Powers of courts as to evidence and regulation of proceedings. For the purpose of any investigation under this Chapter, the Court making the investigation shall, so far as relates to compelling the attendance and examination of witnesses, and the Production of documents and the regulation of the proceedings, have—

(a) if the Court is a special Court-the same powers as are exercisable by the principal Court of ordinary criminal jurisdiction for the place at which the investigation is made; or

(b) if the Court is a principal Court of ordinary criminal jurisdiction or the Court of the District Magistrate the same powers as are exercisable respectively by either Court in the exercise of its criminal jurisdiction.

39. Power of Court to effect arrest of witnesses by entry and detention of vessels.— (1) If any Court making an investigation under this Chapter issues a warrant of arrest to compel the attendance of any person whose evidence is in its opinion necessary, it may, for the purpose of effecting the arrest, but subject to any general or special instructions issued by the [2][Provincial Government] in this behalf, authorise any officer to enter any vessel.

(2) An officer so authorised to enter any vessel may, for the purpose of enforcing the entry, call to his aid any officers of Police or Customs, or any other persons, and may seize and detain the vessel for such time as is reasonably necessary to effect the arrest; and every such officer or other person shall be deemed to be a public servant within the meaning of the Pakistan Penal Code (XLV of 1860).

(3) No person shall be detained under this section for more than forty-eight hours.

40. Power of Court to commit for trial and to bind over witnesses. Whenever, in the course of an investigation under this Chapter, it appears to the Court making the investigation that any person has committed, within [3][Pakistan], an offence punishable under any law in force in [3][Pakistan], the Court making the investigation may (subject to such rules consistent with this Act as the High Court may, from time to time, make in this behalf)—

[1]Subs. by the Inland Steam-vessels (Amdt.). Act, 1951 (25 of 1951), s. 2. for "inland steam-vessels".
[2]Subs. by A. O., 1937, for " L.G.".
[3]Subs. by the Central Laws (Statute Reform) Ordinance, 1960 (21 of 1960), s. 3 and Ind Sch. (*s*), for "the Provinces and the Capital of the Federation which had been subs, by A. O., 1949, Arts. 3(2) and 4, for "British India".

(a) cause such person to be arrested;

(b) commit him or hold him to bail to take his trial before the proper Court;

(c) bind over any other person to give evidence at such trial; and

(d) exercise, for the purposes of this section, all the powers of a Magistrate of the first class [1]* * *.

41. Depositions of absent witnesses.— (1) Whenever, in the course of a trial refereed to in section 40, the evidence of any witness is required in relation to the subject-matter, any deposition previously made by him in relation to the same subject matter before any Court making an investigation under this Chapter shall, if authenticated by the signature of the Magistrate or presiding Judge of such Court, be admissible in evidence on proof—

(a) that the witness cannot be found within the jurisdiction of the Court before which the trial is held; and

(b) that the deposition was made in the presence of the person accused, and that he had an opportunity of cross-examining the witness.

(2) A certificate signed by such Magistrate or presiding Judge that the deposition was made in the presence of the accused, and that he had an opportunity of cross-examining the witness shall, unless the contrary be proved, be sufficient evidence that it was so made and that the accused had such opportunity.

42. Report by court to provincial Government. The Court shall, in the case of every investigation under this Chapter, transmit to the [2][Provincial Government] a full report of the conclusions at which it has arrived, together with the evidence recorded and the written opinion of any assessor.

43. Court to exercise its powers independently of the assessors. Notwithstanding the appointment under section 37 of an assessor or assessors by a Court making an investigation under this Chapter, the exercise of all powers conferred on such Court by this Act shall rest with the Court alone.

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44. Power for Provincial Government to direct investigation into causes of explosions on mechanically propelled vessels.— (1) Whenever any explosion occurs on board any [3][mechanically propelled vessel], the [2][Provincial Government] may direct that an investigation into the cause of the explosion be made by such person or persons as it may appoint in this behalf.

(2) The person or persons so appointed may, for the purpose of the investigation, enter into and upon the [4][mechanically propelled vessel], with all necessary workmen and labourers, and remove any portion of the [4][mechanically propelled vessel] or of the machinery thereof, and shall report to the [5][Provincial Government] what, in his or their opinion, was the cause of the explosion.

(3) Every person making an investigation under this section shall be deemed to be a public servant within the meaning of the Pakistan Penal Code[6] (XLV of 1860).

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[1]The words "or of a Presidency Magistrate" omitted by A. O., 1949; Sch.
[2]Subs. by A. O., 1937 for "L. G.".)
[3]Subs. by the Inland Steam-vessels (Amdt.) Act, 1951 (25 of 1951), a. 2, for "inland steam-vessel".
[4]Subs. ibid ., for "steam-vessel"
[5]Subs. by A. O., 1937 for "L. G.".)
[6]A new section 44A has been inserted after section 44 in the application of this Act to the Province of Sind, *see* Inland Steam-vessels (Sindh Amdt.) Act, 1941 (Sind Act 21 of 1941).

CHAPTER V
SUSPENSION AND CANCELLATION OF CERTIFICATES GRANTED UNDER THE ACT

45. Power for Provincial Government to suspend or cancel certificate in certain cases. [1][Any certificate granted or any endorsement made under Chapter III may be suspended or cancelled by the Government of the Province in which the certificate was granted or, as the case may be, in respect of which the endorsement was made, in the following cases, namely]:—

(a) if, on any investigation made under this Act, the Court reports that the wreck or abandonment of, or loss or damage to, any vessel, or loss of life, has been caused by the wrongful act or default of the holder of such certificate, or that the holder of such certificate is incompetent, or has been guilty of any gross act of drunkenness, tyranny or other misconduct; or

(b) if the holder of such certificate is proved to have been convicted of any non-bailable offence; or

(c) if, in the case of a person holding a certificate of competency or service as second-class master or serang, or as engine-driver, such person is or has become, in the opinion of the [2][Provincial Government], unfit to act as a second-class master or serang, or as an engine-driver, as the case may be:

Provided that a certificate [3][or endorsement] shall not be suspended or cancelled under clause *(a)*, unless the [2][Provincial Government] is satisfied that the holder of the certificate has, before the commencement of the investigation, been furnished with a copy of the report or statement of the case as required by section 34 or section 35, as the case may be.

46. Obligation to deliver up suspended or cancelled certificate. Every person whose certificate is suspended or cancelled under this Chapter shall deliver it up to such person as the [2][Provincial Government] which suspended or cancelled it may direct.

47. Report to other Provincial Government. [4][If a Provincial Government suspends or cancels an endorsement under this Chapter, it] shall report the proceedings and the fact of suspension or cancellation to the [2][Provincial Government] by which, or under authority from which [5][the certificate] was granted.

48. Power for Provincial Government to revoke suspension or cancellation and to grant new certificate.— (1) Any [2][Provincial Government] may, at any time, revoke any order of suspension or cancellation which it may have made under this Chapter, or grant, without examination, to any person whose certificate it has so cancelled, a new certificate.

(2) A certificate so granted shall have the same effect as a certificate of competency granted under this Act after examination.

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[1]Subs. by A. O., 1937, for "Any certificate granted under Chapter III, may be suspended or cancelled by the L.G. by which, or under authority from which, it was granted, or by any other L. G. in the following cases, namely".
[2]Subs. by A. O., 1937, for "L. G.".
[3]Ins., ibid.
[4]Subs. by A. O., 1937, for "if the L. G. which suspends or cancels a certificate under this Chapter is not the L. G. by which or under authority from which, such certificate was granted, the L. G. so suspending or cancelling the certificate".
[5]Subs. ibid., for "such certificate".

CHAPTER VI

PROTECTION OF, AND CARRIAGE OF PASSENGERS IN, [1][MECHANICALLY PROPELLED VESSELS].

49. Power for Provincial Government to declare dangerous goods. The [2][Provincial Government] may, by notification[3] in the [4][official Gazette], declare what shall, for the purposes of this Act, be deemed to be dangerous goods.

50. Carriage of dangerous goods.— (1) No person shall—

(a) take with him on board a [5][mechanically propelled vessel] any dangerous goods without giving notice of their nature to the owner or master of the [6][mechanically propelled vessel]; or

(b) deliver or tender for carriage on such [1][mechanically propelled vessel] any dangerous goods without giving such notice, and without distinctly marking their nature on the outside of the package containing the goods.

(2) If the owner or master of an [7][mechanically propelled vessel] suspects, or has reason to believe, that any luggage or parcel taken, delivered, or tendered for carriage on the [1][mechanically propelled vessel] contains dangerous goods, he may—

(i) refuse to carry it upon the[1][mechanically propelled vessel]; or

(ii) require it to be opened to ascertain the nature of its contents; or

(iii) if it has been received for carriage, stop its transit until he is satisfied as to the nature of its contents.

51. Power of owner or master of mechanically propelled vessel to throw overboard dangerous goods. Where any dangerous goods have been taken or delivered on board any [7][mechanically propelled vessel] in contravention of section 50, the owner or master of the [8][mechanically propelled vessel] may, if he thinks fit, cause the goods to be thrown overboard, together with any package or receptacle in which they are contained, and neither the owner nor the master shall, in respect of his having so caused the goods to be thrown overboard, be subject to any liability, civil or criminal, in any Court.

52. Power for provincial government to make rules for protection of mechanically propelled vessels from accidents.— (1) The [9][Provincial Government] may make rules for the protection of [5][mechanically propelled vessels] against explosion, fire, collision and other accidents.

(2) In particular and without prejudice to the generality of the foregoing power, such rules may—

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[1]Subs. by the Inland Steam-vessels (Arndt.) Act, 1951 (25 of 1951) s., 2 for "INLAND STEAM VESSELS".
[2]Subs. by A. O., 1937, for "G. G. in C."
[3]For notification declaring certain articles to be dangerous goods, *see* Gen. R. & O.
[4]Subs. by A. O., 1937, for "Gazette of India"
[5]Subs. by Act 25 of 1951, s. 2 for "inland steam-vessel".
[6]Subs. *ibid*., for "steam-vessel"
[7]Subs *ibid*., for "inland steam-vessel".
[8]Subs. by the Inland Steam-vessels (Amdt.) Act, 1951 (25 of 1951), s. 2, for "steam-vessel".
[9]Subs. by A. O., 1937, for "L. G.".

(a) prescribe the conditions on, and subject to, which dangerous goods may be carried on board [1][mechanically propelled vessels];

(b) prescribe precautions to be taken to prevent explosions or fires on board [1][mechanically propelled vessels];

(c) prescribed the apparatus which is to be kept on board [2][mechanically propelled vessels], for the purpose of extinguishing fires;

(d) regulate the making of sound signals;

(e) regulate the carriage and exhibition of lights by [1][mechanically propelled vessels];

(f) regulate the carriage and exhibition of lights by other vessels on specified inland waters on which [3][mechanically propelled vessels] ply;

(g) prescribe the steering rules to be observed;

(h) regulate the towing of vessels astern or alongside;

(i) prescribe the speed at which [2][mechanically propelled vessels] may be navigated in specified areas; and

(j) regulate the navigation of [2][mechanically propelled vessels] to prevent danger to other vessels, or to the banks, channels, navigation marks or any property, moveable or immoveable, in or abutting on navigable channels.

(3) Any rule made under this section may contain a provision that any person committing a breach of it shall be punishable with imprisonment for a term which may extend to six months, or with fine which may extend to five hundred rupees, or with both.

53. Power for Provincial Government to make rules as to carriage of passengers in mechanically propelled vessels.—(1) The [4][Provincial Government] may make rules to regulate the carriage of passengers in [2][mechanically propelled vessels].

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(2) In particular and without prejudice to the generality of the foregoing power, such rules may—

(a) prescribe the cases in which passengers may be refused admission to, or may be required to leave, [2][mechanically propelled vessels],

(b) provide for the payment of fares, and the exhibition of tickets or receipts (if any) showing the payment of their fares, by passengers in [2][mechanically propelled vessels]; and

(c) regulate generally the conduct of passengers in [2][mechanically propelled vessels.]

[1]Subs. by Act 25 of 1951, s. 2, for "inland steam vessels.".
[2]Subs. by the Inland Steam-vessels (Arndt.) Act, 1951 (25 of 1951) S., 2 for "Inland steam vessels".
[3]Subs ibid., for "steam-vessels".
[4]Subs. by A. O., 1937, for "L. G.".

(3) Any rule made under this section may contain a provision that any person committing a breach of it shall be punishable with fine which may extend to twenty rupees.

(4) The master or any other officer of an [1][mechanically propelled vessel], and any person called by him to his assistance, may arrest any person who has committed a breach of any rule made under this section if the name and address of such person are unknown to the master or such other officer.

(5) The procedure prescribed by section 59 of the Code of Criminal Procedure, 1898 (V of 1898), in the case of arrest by private persons shall apply to every arrest made under this section.

54. Power for Provincial Government to make rules for protection of passengers.—(1) The [2][Provincial Government] may also make rules for the protection of passengers in [1][mechanically propelled vessels], and may by such rules require—

(a) the prices of passenger tickets to be printed or otherwise denoted on such tickets; and

(b) the supply, free of charge, of a sufficient quantity of fresh water for the use of such passengers.

(2) Any rule made under this section may contain a provision that any person committing a breach of it shall be punishable with fine which may extend to fifty rupees.

[3][**54A. Power of Provincial Government to fix maximum and minimum rates for passenger fares and freight for goods.**— (1) The [4][Provincial Government] may, by notification in the [5][official Gazette], after such inquiry as [6][it] May consider necessary, in respect of any system of inland waterways, or of any stretch of inland waterway, or of the run between any two stations on an inland waterway,—

(a) fix the maximum or minimum rate per mile which may be charged for passenger fares for passengers of any class travelling on [1][mechanically propelled vessels];

(b) fix the maximum rate per mile which may be charged for freight on goods of any description carried in [7][mechanically propelled vessels];

(c) fix the minimum rate per mile which may be charged for freight on goods of any description carried in [7][mechanically propelled vessels]; and

(d) declare what shall be deemed to be the distance between any two stations on an inland waterway for the purpose of calculating passengers' fares or freight on goods where maximum or minimum rates have been fixed under this section.

[8]* * * * * * * * *

[1]Subs. by the Inland Steam-vessels (Amdt.) Act, 1951 (25 of 1951), s. 2 for "inland steam-vessels".
[2]Subs. by A. O., 1937, for "L. G.".
[3]Ins. by the Inland Steam-vessels (Amdt.) Act, 1930 (13 of 1930), s. 2.
[4]Subs. by A. O., 1937, for "G. G. in C.".
[5]Subs. *ibid.*, for "Gazette of India"
[6]Subs. *ibid.*, for "he".
[7]Subs. by the Inland Steam-vessels (Amdt.) Act, 1951 (25 of 1951), s.2, for "inland steam-vessels".
[8]Sub-section (2) omitted ibid., s. 11.

[1][**54AA. Publication of times of sailing fares and freights.** The owner of a mechanically propelled vessel shall publish as often as may be necessary (i) tables showing the times of sailing and fares, and (ii) tariffs showing freights, and shall put the same on sale to the public.]

[2][**54B. Power to make rules providing for the appointment of advisory Committees.** The [3][Provincial Government] may make rules providing for the appointment, constitution, procedure and functions of Committees to advise the owners, agents and charterers of [4][mechanically propelled vessels] on questions affecting the interests of passengers and shippers of goods.]

CHAPTER VII
PENALTIES AND LEGAL PROCEEDINGS

55. Penalty for making voyage without certificate of survey.—(1) If any [5][mechanically propelled vessel] proceeds on a voyage in contravention of section 3, the owner and the master of the [6][mechanically propelled vessel] shall each be punishable with fine, which may extend to one thousand rupees.

(2) If the master or any other officer on board on [5][mechanically propelled vessel] which proceeds on voyage in contravention of section 3 is a licensed pilot he shall be liable to have his licence as a pilot suspended or cancelled, for any period, by the [3][Provincial Government].

56. Penalty for neglect to affix certificate of survey in mechanically propelled vessel. If the certificate of survey is not kept affixed in an [4][mechanically propelled vessel] as required by section 10, the owner and the master of the [6][mechanically propelled vessel] shall each be publishable with fine which may extend to one hundred rupees.

57. Penalty for neglect or refusal to deliver up certificate of survey. If the owner or master of an [4][mechanically propelled vessel], without reasonable cause, neglects or refuses to deliver up a certificate of survey when required under section 14 so to do, he shall be punishable with fine which may extend to one hundred rupees.

58. Penalty for carrying excessive number of passengers on board. If an [4][mechanically propelled vessel] has on board or in any part thereof a number of passengers which is greater than the number set forth in the certificate of survey as the number of passengers which the vessel or the part thereof is, in the judgement of the surveyor, fit to carry, the owner and the master shall each be punishable with fine which may extend to ten rupees for every passenger over and above that number.

59. Penalty for serving or engaging a person to serve as master or engineer without certificate. If any person—

(a) proceeds on any voyage in an [4][mechanically propelled vessel] as the master or engineer of such vessel without being at the time entitled to, and possessed of, a master's or serang's or an engineer's or engine-driver's certificate [2][or a master's or engine-driver's licence] as the case may be, as required under this Act; or

[1]Ins. By the Inland Steam-vessels (Amdt.) Act, 1951 (25 of 1951), s. 2, for "inland steam-vessels".
[2]Ins. by the Inland Steam-vessels (Amdt.) Act, 1930 (6 of 1930), s. 2.
[3]Subs. by A. O 1937, for "L. G
[4]Subs. by the Inland Steam-vessels (Amdt.) Act, 1951 (25 of 1951), s.2, for "inland steam-vessels".
[5]Subs. by Act 25 of 1951, s. 2 for "inland steam-vessel".
[6]Subs. *ibid.*, for "steam-vessel

(b) employs as the master or engineer of an [1][mechanically propelled vessel] any person without ascertaining that he is at the time entitled to, and possessed of, such certificate [4][or licence],

he shall be punishable with fine which may extend to five hundred rupees.

60. Penalty for master failing to give notice of wreck or casualty. If any master wilfully fails to give notice, as required by section 32, of any wreck, abandonment damage, casualty, or loss, he shall be punishable with fine which may extend to five hundred rupees, and, in default of payment of such fine, with simple imprisonment for a term which may extend to three months.

61. Penalty for failing to deliver up suspended or cancelled certificate. If any person, whose certificate is suspended or cancelled under this Act, fails to deliver up the certificate as required by section 46, he shall be punishable with fine, which may extend to five hundred rupees.

62. Penalty for talking or delivering or tendering for carriage dangerous goods on board mechanically propelled vessel without notice. If any person, in contravention of section 50, takes with him on board any [1][mechanically propelled vessel] any dangerous goods, or delivers or tenders any such goods for carriage on any [1][mechanically propelled vessel], he shall be punishable with fine which may extend to two hundred rupees, and the goods shall be forfeited to Government.

63. Penalty for misconduct or neglect endangering mechanically propelled vessel or life or limb. If any person employed or engaged in any capacity on board an [1][mechanically propelled vessel], by wilful breach, or by neglect of duty, or by reason of drunkenness –

(a) does any act tending immediately to wreck, destroy or materially damage the vessel, or to endanger the life or limb of any person on board, or belonging to the vessel; or

(b) refuses or omits to do any lawful act proper and requisite to be done by him for preserving the vessel from immediate wreck, destruction or material damage, or for preserving any such person from immediate danger to life or limb; he shall be punishable with fine which may extend to one thousand rupees, or with imprisonment for a term which may extend to two years, or with both.

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64. Levy of fine by distress of mechanically propelled vessel. Where the owner or master of an [1][machanically propelled vessel] is convicted of an offence under this Act or any rule made thereunder committed on board, or in relation to, that [2][mechanically propelled vessel], and is sentenced to pay a fine, the Magistrate who passes the sentence may direct the amount of the fine to be levied by distress and sale of the [2][mechanically propelled vessel] and the tackle, apparel and furniture thereof, or so much thereof as is necessary.

65. Jurisdiction of Magistrate. Except in the case of an offence against any rule made under section 53, no Magistrate shall try an offence under this Act, or any rule made thereunder, unless he is a [3]* * *Magistrate whose powers are not less than those of a Magistrate of the first class.

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[1]Subs. by the Inland Steam-vessels (Amdt.) Act, 1951 (25 of 1951), s.2, for "inland steam-vessels".
[2]Subs. ibid., for "steam-vessel".
[3]The words "Presidency Magistrate or" omitted by A. O., 1949, Sch.
[4]Ins. By the Inland Steam-vessels (Amdt.) Act, 1920 (60 of 1920), s. 10.

CHAPTER VIII
SUPPLEMENTAL

66. Place of trial. If any person commits an offence against this Act or any rule made thereunder, he shall be triable for the offence in any place in which he may be found or which the [1][Provincial Government], by notification in the [2][official Gazette], appoints in this behalf, or in any other place in which he might be tried under any other enactment for the time being in force.

67. Power for Provincial Government to make general rules.— (1) The [1][Provincial Government] may make rules to carry out the purposes of this Act not otherwise specially provided for.

(2) Any rule made under this section may contain a provision that any person committing a breach of it shall be punishable with imprisonment for a term which may extend to six months, or with fine which may extend to five hundred rupees, or with both.

68. Power for Provincial Government to modify application of Act to certain mechanically propelled vessels. The [1][Provincial Government] may, [3]* * * by notification[4] in the [2][official Gazette], declare that all or any of the provisions of Chapters II and III shall not apply in the case of any specified class of [2][mechanically propelled vessels], or shall apply; to them with such modifications as may be specified in the notification.

[5]**69. Exemption of His Majesty's and Government vessels.** Save in so far as the [6][Provincial Government] may, by notification[7] in the [8][official Gazette] otherwise direct, nothing in this Act, or any rule made thereunder, shall apply to any [9][mechanically propelled vessel] belonging to, or in the service of, [10][the Federal Government or any Provincial Government]:

[11][Provided that no such vessel shall be used for any commercial purpose unless the registry fee prescribed under section 6 has been paid in respect of her.]

70. Power for Provincial Government to define tidal water. The [1][Provincial Government] may, by notification in the [12][official Gazette], define how much of any tidal water shall be deemed to be an inland water for the purposes of this Act:

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[1]Subs. by A.O., 1937, for "L.G.".
[2]Subs. by A.O., 1937, for "local official Gazette."
[3]The words "with the previous sanction of the G. G. in C." rep. *ibid.*
[4]The vessels belonging to the Karachi Port Trust and plying within the limits of the Port of Karachi have been exempted for a certain period, from the provisions of Chapter III of this Act, by the Chief Commissioner of Karachi, see Gazette of Pakistan, 1954, Pt. V, p. 138.
The steam vessels belonging to the Karachi Port Trust and plying within the limits of the Port of Karachi, shall be exempted from the provisions of Chapter III of the said Act, for a further period of 1 year w.e. f. 18th January, 1954, see Gazette of Pakistan, 1954, Pt. VI, p. 138.
The provision of section 27 (b) of this Act shall not apply to the "Motor Launches of the Karachi Port Trust having engines of 44 Brake Horse Power for the period of 2 years w.e. f. 3. 2. 54, see Gazette of Pakistan, 1955, Pt. VI, p. 3.)
[5]The following portions of this Act (1 of 1917) in so far as certificate of registry is concerned shall, in addition to the portions already appliedby notifn. No. 538-D, dated the 17th Nov., 1917, issued from the Deptt. of Commerce and Industry, Govt. of India, also apply to inland mechanically propelled vessels belonging to, or in the service of Her Majesty or the Central Govt. or Provincial Govt., namely :-
Chapter II-Sections 3, 4, 5, 6, 19, 19A, 19B, 19C, 19D, 19E, 19F, 19G, 19H, 191, 19J, 19K, 19L, 19M, 19N, 190, 19P, and 19Q.
Chapter VII-Section 55.
[6]Subs. by A. O., 1937, for "G. G. in C.".
[7]For such notification, see Gen. Rules and Orders.) (Subs. by A. O., 1937, for "Gazette of India"
[8]Subs. by A. O., 1937,, for "Gazette of India"
[9]Subs. by Act 25 of 1951, s. 2, for "inland steam-vessel".
[10]The original words "His Majesty or the Government of India" have successively been amended by A. O., 1937, A. O., 1949, Sch., A. O., 1961, Art. 2 and A. O., 1964, Art. 2 and Sch., has been subs. by F.A.O., 1975, Art. 2 and Table, for "Central Government". to read as above.
[11]Added by act 25 of 1951, s.13.
[12]Subs. *ibid.*, for "local official Gazette".

[1][Provided that no such notification shall be made after the end of March, 1937.]

71. Fees recoverable as fines. All fees payable under this Act may be recovered, as fines under this Act.

72. Certificated master of mechanically propelled vessels to be deemed pilots under section 31 of Act XV of 1908.— (1) Subject to the provisions of section 31, every master of an [2][mechanically propelled vessel] who possesses a master's certificate granted under this Act and in force shall, in posts to which section 31 of the Posts Act, 1908, has been extended, be deemed, for the purpose of that section, to be the pilot of the [2][mechanically propelled vessel] of which he is in charge.

(2) Nothing in this section shall be deemed to affect that provisions of Sindh Act I of 1863 (*An Act for the registry of vessels and Ievy of pilotage fees on the river Indus*), which require persons in charge of vessels passing through any of the channels or tidal channels at the mouths of the river Indus to pay fees for pilotage.

73. *[Application of Act to vessels propelled by electricity or other mechanical power.] Omitted by the Inland Steam-vessels (Amendment) Act, 1951 (XXV of 1951), s. 14.*

74. Publication of rules.— (1) The power to make rules conferred on a [3][Provincial Government] by this act is subject to the condition of the rules being made after previous publication.

(2) All such rules shall, when made, be published in the [4][Official Gazette], and shall thereupon have effect as if enacted in this Act.

[5][**74A. Appointment of inland waterways control Board in emergency**— [6][If the Provincial Government is of the opinion] that an emergent necessity has arisen rendering it essential to control the movement of goods and passengers and to provide for the allocation of routes, [7][it may] appoint an Inland Waterways Control Board consisting of:—

(1) A nominee of the [8][Federal Government],

(2) A nominee of the Provincial Government, and

(3) A representative of the Steamer Companies operating in the Province.

[5]**74B. Control on vessels as to routes and traffic.** The Board shall have the power to issue an order to the owner of a mechanically propelled vessel registered under this Act:—

(i) that his vessel shall ply on any route or routes specified in the order, and

(ii) that preference shall be given to any traffic or class of traffic to be carried in the vessel.

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[1]Proviso ins. *Ibid.*
[2]Subs. by Act 25 of 1951, s. 2, for "inland steam-vessel".
[3]Subs. by A.O., 1937, for "L.G.".
[4]Subs. *ibid.*, for "local official Gazette".
[5]Sections 74A to 74E ins. by Act 25 of 1951, s. 15.
[6]Subs. by F.A.O., 1975, Art. 2 and Sch. for certain words
[7]Subs. *ibid.*, for "the Provincial Government shall".
[8]Subs. by F.A.O., 1975, Art. 2 and Table, for "Central Government".

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[1]**74C. Rules of business of Board.** The rules of business of the Board shall be framed by the Provincial Government [2]* * * * * *

[1]**74D. Obligation of the owner of vessels.** The owner of a mechanically propelled vessel to which this Act applies—

(a) shall afford all reasonable facilities for the receiving, forwarding and delivering of traffic to be carried by the vessel and for interchanging traffic with other transport organisations with which interchange arrangements have been entered into, and

(b) shall not give any undue or unreasonable preference or advantage to any particular person or commercial concern or any particular description of traffic or subject any particular person or commercial concern or any particular description of traffic to any undue or unreasonable prejudice or disadvantage in any respect whatsoever.

[1]**74E. Penalties.** Any person contravening an order under section 54A or section 74B or any provision of section 74D shall be liable for each offence to a fine not exceeding one thousand rupees.]

75. [*Repeals and savings.*] *Rep. by the Repealing Act, 1927 (XII of 1927), s. 2 and Schedule.*

SCHEDULE I

[3]**[RATES OF SURVEY FEES]**

[*See* sections [4][6] and 19 (d)]

			Tons	Rs.
For [5][mechanically propelled vessels] of less than		-	100	25
" " " " " "	100	Tons and upto	200	40
" " " " " "	200	" " "	350	50
" " " " " "	350	" " "	700	60
" " " " " "	700	" " "	1000	80
" " " " " "	1000	" " "	1500	100
" " " " " "	1500	" and upwards	..	120

SCHEDULE IA

RATES OF REGISTRATION FEES

[*See* sections 6 and 19(d)]

		Tons	Rs.
For mechanically propelled vessels of less than	---	100	50

[1] Sections 74A to 74E ins. by the Inland Steam-vessels (Amdt.) Act, 1951 (25 of 1951), s. 15.
[2]Certain words omitted by F.A.O, 1975, Art. 2 and Sch.
[3]Subs. ibid., s. 16, for "RATES OF FEES".
[4]Subs. ibid., for "6(a)".
[5]Subs. ibid., s. 2, for "steam-vessels".

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[1][SCHEDULE IA

" " " " " " 100	Tons and upto	200	80
" " " " " " 200	" " "	350	100
" " " " " " 350	" " "	700	120
" " " " " " 700	" " "	1000	160
" " " " " " 1000	" " "	1500	200
" " " " " " 1500	" and upwards	..	240

SCHEDULE II.—[ENACTMENTS REPEALED.] *Rep. by the Repealing Act, 1927 (XII of 1927).*

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Date: 11-09-2024

[1]Ins by the Inland Steam-vessels (Amdt) Act, 1951, (25 of 1951), s. 16.

THE INSOLVENCY KARACHI DIVISION ACT, 1909

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THE FIRST SCHEDULE

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THE INSOLVENCY (KARACHI DIVISION [1]**) ACT, 1909

[2]ACT No. III OF 1909

[*12th March*, 1909]

*An Act to amend the law of Insolvency in [3][the Karachi Division [1]**]*

[4] * * *.

WHEREAS it is expedient to amend the law relating to insolvency in [5][the Karachi Division [1]* *] ;

It is hereby enacted as follows :—

PRELIMINARY

1. Short title and commencement.—(1) This Act may be called [6][the Insolvency (Karachi Division) [1]* * Act].

[7]* * * * * * *

2. Definitions. In this Act, unless there is anything repugnant in the subject or context,—

(a) "creditor" includes a decree-holder,

(b) "debt" includes a judgment-debt, and "debtor" includes a judgment-debtor ;

[8]* * * * * * *

[9][(bbb) "limits of the ordinary civil jurisdiction" means in respect of [10][High Court of Sind] the limits of the Karachi Division;]

(c) "official assignee" includes an acting official assignee [11][and a deputy official assignee, whether permanent or acting] ;

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[1]Thc words "and Dacca" omitted by F.A.O., 1975, Art. 2 and Sch., (w.e.f. 14-8-73).

[2]For Statement of Objects and Reasons, *see* Gazette of India, 1908 Pt. V, p. 275; for Report of Select Committee, *see ibid.*, 1909, Pt. V, p. 3; and for Proceedings in Council *see ibid.*, 1908, Pt. VI, pages 41 and 182, and *ibid.*, 1909, Pt. VI, pp 12 and 22. The Act has been amended in Bombay by Born. Act 20 of 1933 and in Sind by Sind Act 25 of 1939.

This Act has been extended and shall be deemed to have been so extended to the whole of Pakistan by the Central Laws (Statute Reforms) Ordinance, 1960 (21 of 1960), s. 3 and 2nd Sch. *(with effect from the 14th October* 1955),

[3]The original words "the Presidency-towns" have successively been amended by A.O., 1949, the Repealing and Amending Ordinance, 1961 (1 of 1961), s. 3 and 2nd Sch. and A. O., 1964, Art. 2 and Sch., to read as above.

[4]The words "and the town of Rangoon" omitted by A.O., 1937.

[5]The original words "the Presidency-towns and the town of Rangoon" have successively been amended by the Insolvency (Amdt.) Act, 1926 (9 of 1926), A.O., 1937, A.O., 1949, the Repealing and Amending Ordinance, 1961 (1 of 1961), s. 3 and 2nd Sch. and A.O., 1964, Art. 2 and Sch., to read as above.

[6]The original words "the Presidency-towns Insolvency Act, 1909" have successively been amended by A.O., 1949, Ordinance, I of 1961, s. 3 and 2nd Sch., and A.O., 1964, Art. 2 and Sch., to read as above.

[7]Sub-section (2) omitted by A.O., 1949.

[8]Clause (bb) which was ins. by Act, 9 of 1926, s. 3, omitted by A.O., 1949.

[9]Cl. (bbb) which was ins. by Act, 9 of 1926, s. 3 has successively been amended by A.O., 1937, A. O., 1949, the Central Laws (Statute Reform) Ordinance, 1960 (21 of 1960), s. 3 and 2nd Sch., Ordinance, 1 of 1961. s. 3 and 2nd Sch. and A.O., 1964, Art. 2 and Sch., to read as above.

[10]Subs. by the Federal Laws (Revision and Declaration). Ordinance, 1981 (27 of 1981), s. 3 and Second Sch. for "Sind and Baluchistan High Court" which had been subs. by F.A.O. 1975, Art. 2 and Sch., for "the Bench of the High Court of West Pakistan at Karachi"

[11]Ins. by the Insolvency Law (Amdt.) Act, 1930 (10 of 1930), s. 2.

(d) "prescribed" means prescribed by rules;

(e) "property" includes any property over which or the profits of which any person has a disposing power which he may exercise for his own benefit;

(f) "rules" means rules made under this Act;

(g) "secured creditor" includes a landlord who under any enactment for the time being in force has a charge on land for the rent of that land ;

(h) "the Court" means the Court exercising jurisdiction under this Act ; and

(i) "transfer of property" includes a transfer of any interest therein and any charge created thereon.

PART I
CONSTITUTION AND POWERS OF COURT

Jurisdiction

[1]**[3. Courts having Jurisdiction in insolvency.** The Courts having jurisdiction under this Act shall be [2][High Court of Sind].

4. Jurisdiction to be exercised by a single Judge. All matters in respect of which jurisdiction is given by this Act shall be ordinarily transacted and disposed of by or under the direction of one of the Judges of the Court, and the Chief Justice [3]* * * shall, from time to time, assign a Judge for that purpose.

5. Exercise of jurisdiction in chambers. Subject to the provisions of this Act and of rules, the Judge of a Court exercising jurisdiction in insolvency may exercise in chambers the whole or any part of his jurisdiction.

6. Delegation of powers to officers of Court.—(1) The Chief Justice [3]** * may, from time to time, direct that, in any matters in respect of which jurisdiction is given to the Court by this Act, an officer of the Court appointed by him in this behalf shall have all or any of the powers in this section mentioned; and any order made or act done by such officer in the exercise of the said powers shall be deemed the order or act of the Court.

(2) The powers referred to in sub-section (1) are the following, namely :—

(*a*) to hear insolvency petitions presented by debtors, and to make orders of adjudication thereon ;

(*b*) to hold the public examination of insolvents ;

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[1]The original section 3 has successively been amended by the Insolvency (Amdt.) Act, 1926 (9 of 196), s. 4, A.O., 1937, A.O., 1949, the Central Laws (Statute Reform) Ordinance, 1960 (21 of 1960), s. 3 and 2nd Sch. And A.O., 1961, Art. 2 *(with effect from the 23rd March,* 1956), to read as above.

[2]Subs. by the Federal Laws (Revision and Declaration) Ordinance, 1981 (27 of 1981), s. 3 and Second Sch., for "Sind and Baluchistan High Court"which had been subs. by F.A.O. 1975, Art. 2 and Sch., for "the Bench of the High Court of West Pakistan at Karachi and the High Court of East Pakistan"

[3]The original words "or Chief Judge" as amended by Act 9 of 1926, s. 5 and A.O., 1949, have been omitted by Ordinance 21 of 1960, s.3 and 2nd Sch. (*with effect from the 14th October* 1955).

(*c*) to make any order or exercise any jurisdiction which is prescribed as proper to be made or exercised in chambers ;

(*d*) to hear and determine any unopposed or *ex-parte* application ;

(*e*) to examine any person summoned by the Court under section 36.

(3) An officer appointed under this section shall not have power to commit for contempt of Court.

7. Power of Court to decide all questions arising in insolvency. Subject to the provisions of this Act, the Court shall have full power to decide all questions of priorities, and all other questions whatsoever, whether of law or fact, which may arise in any case of insolvency coming within the cognizance of the Court, or which the Court may deem it expedient or necessary to decide for the purpose of doing complete justice or making a complete distribution of property in any such case :

[1][Provided that, unless all the parties otherwise agree, the power hereby given shall, for the purpose of deciding any matter arising under section 36, be exercised only in the manner and to the extent provided in that section.]

Appeals

8. Appeals in insolvency. (1) The Court may review, rescind or vary any order made by it under its insolvency jurisdiction.

(2) Orders in insolvency matters shall at the instance of any person aggrieved, be subject to appeal as follows, namely:—

(*a*) an appeal from an order made by an officer of the Court empowered under section 6 shall lie to the Judge assigned under section 4 for the transaction and disposal of matters in insolvency and no further appeal shall lie except by leave of such Judge;

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(*b*) save as otherwise provided in clause *(a),* an appeal from an order made by a Judge in the exercise of the jurisdiction conferred by this Act shall lie in the same way and be subject to the same provisions as an appeal from an order made by a Judge in the exercise of the ordinary original civil jurisdiction of the Court.

PART II
PROCEEDINGS FROM ACT OF INSOLVENCY TO DISCHARGE

Acts of insolvency

9. Acts of insolvency. A debtor commits an act of insolvency in each of the following cases, namely:—

[1]Proviso ins. by the Presidency-towns Insolvency (Amdt.) Act. 1927 (19 of 1927), s. 3.

(a) if, in [1][Pakistan] or elsewhere, he makes a transfer of all or substantially all his property to a third person for the benefit of his creditors generally;

(b) if, in [1][Pakistan] or elsewhere, he makes a transfer of his property or of any part thereof with intent to defeat or delay his creditors;

(c) if, in [1][Pakistan] or elsewhere, he makes any transfer of his property or of any part thereof, which would, under this or any other enactment for the time being in force, be void as a fraudulent preference if he were adjudged an insolvent;

(d) if, with intent to defeat or delay his creditors,–

(*i*) he departs or remains out of [1][Pakistan],

(*ii*) he departs from his dwelling-house or usual place of business or otherwise absents himself,

(*iiii*) he secludes himself so as to deprive his creditors of the means of communicating with him;

(e) if any of his property has been sold or attached for a period of not less than twenty-one days in execution of the decree of any Court for the payment of money;

(f) if he petitions to be adjudged an insolvent;

(g) if he gives notice to any of his creditors that he has suspended, or that he is about to suspend, payment of his debts;

(h) if he is imprisoned in execution of the decree of any Court for the payment of money.

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Explanation.—For the purposes of this section, the act of an agent may be he act of the principal, even though the agent have no specific authority to commit the act.

Order of adjudication

10. Power to adjudicate. Subject to the conditions specified in this Act, if a debtor commits an act of insolvency, an insolvency petition may be presented either by a creditor or by the debtor, and the Court may on such petition make an order (hereinafter called an order of adjudication) adjudging him an insolvent.

Explanation.—The presentation of a petition by the debtor shall be deemed an act of insolvency within the meaning of this section, and on such petition the Court may make an order of adjudication.

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[1]Subs. by the Central Laws (Statute Reform) Ordinance, 1960 (21 of 1960), s. 3 and 2nd Sch., *(with effect from the 14th Octobpr,*1955*)*, for "the Provinces and the Capital of the Federation" which had been subs by A.O., 1949, for "British India".

11. Restrictions on jurisdiction. The Court shall not have jurisdiction to make an order of adjudication, unless—

(a) the debtor is, at the time of the presentation of the insolvency petition, imprisoned in execution of the decree, of a Court for the payment of money in any prison to which debtors are ordinarily committed by the Court in the exercise of its ordinary original jurisdiction; or

(b) the debtor, within a year before the date of the presentation of the insolvency petition, has ordinarily resided or had a dwelling-house or has carried on business either in person or through an agent within the limits of the ordinary original civil jurisdiction of the Court; or

(c) the debtor personally works for gain within those limits; or

(d) in the case of a petition by or against a firm of debtors the firm has carried on business within a year before the date of the presentation of the insolvency petition within those limits.

12. Conditions on which creditor may petition.—(1) A creditor shall not be entitled to present an insolvency petition against a debtor unless—

(*a*) the debt owing by the debtor to the creditor, or, if two or more creditors join in the petition, the aggregate amount of debts owing to such creditors, amounts to five hundred rupees, and

(*b*) the debt is a liquidated sum payable either immediately or at some certain future time, and

(*c*) the act of insolvency on which the petition is grounded has occurred within three months before the presentation of the petition.

(2) If the petitioning creditor is a secured creditor, he shall in his petition either state that he is willing to relinquish his security for the benefit of the creditors in the event of the debtor being adjudged insolvent or give an estimate of the value of the security. In the latter case he may be admitted as a petitioning creditor to the extent of the balance of the debt due to him after deducting the value so estimated in the same way as if he were an unsecured creditor.

13. Proceedings and order on creditor's petition.—(1) A creditor's petition shall be verified by affidavit of the creditor, or of some person on his behalf having knowledge of the facts.

(2) At the hearing the Court shall require proof of—

(*a*) the debt of the petitioning creditor, and

(*b*) the act of insolvency, or, if more than one act of insolvency is alleged in the petition, some one of the alleged acts of the insolvency.

(3) The Court may adjourn the hearing of the petition and order service thereof on the debtor.

(4) The Court shall dismiss the petition—

(*a*) if it is not satisfied with the proof of the facts referred to in sub-section(2); or

(*b*) if the debtor appears and satisfies the Court that he is able to pay his debts, or that he has not committed an act of insolvency or that for other sufficient cause no order ought to be made.

(5) The Court may make an order of adjudication if it is satisfied with the proof above referred to, or if on a hearing adjourned under sub-section (3) the debtor does not appear and service of the petition on him is proved, unless in its opinion the petition ought to have been presented before some other Court having insolvency jurisdiction.

(6) Where the debtor appears on the petition and denies that he is indebted to the petitioner, or that he is indebted to such an amount as would justify the petitioner in presenting a petition against him, the Court, on such security (if any) being given as the Court may require for payment to the petitioner of any debt which may be established against the debtor in due course of law, and of the costs of establishing the debt, may, instead of dismissing the petition, stay all proceedings on the petition for such time as may be required for trial of the question relating to the debt.

(7) Where proceedings are stayed, the Court may, if by reason of the delay caused by the stay of proceedings or for any other cause it thinks just, make an order of adjudication on the petition of some other creditor, and shall thereupon dismiss, on such terms as it thinks just, the petition on which proceedings have been stayed as aforesaid.

(8) A creditor's petition shall not, after presentation, be withdrawn without the leave of the Court.

[1]**[14. Conditions on which debtor may petition.**—(1)] A debtor shall not be entitled to present an insolvency petition unless—

(*a*) his debts amount to five hundred rupees, or

(*b*) he has been arrested and imprisoned in execution of the decree of any Court for the payment of money, or

(*c*) an order of attachment in execution of such a decree has been made and is subsisting against his property.

[2][(2) A debtor in respect of whom an order of adjudication, whether made under this Act or under the Provincial Insolvency Act, 1920 (V of 1920), has been annulled owing to his failure to apply or to prosecute an application for his discharge shall not be entitled to present an insolvency petition without the leave of the Court by which the order of adjudication was annulled. Such Court shall not grant leave unless it is satisfied either that the debtor was prevented by any reasonable cause from presenting or prosecuting his application, as the case may be, or that the petition is founded on facts substantially different from those contained in the petition on which the order of adjudication was made.]

15. Proceedings and order on debtor's petition.—(1) A debtor's petition shall allege that the debtor is unable to pay his debts, and, if the debtor proves that he is entitled to present the petition, the Court may thereupon make any order of adjudication, unless in its opinion the petition ought to have been presented before some other Court having insolvency jurisdiction.

[1]The original s. 14 was re-numbered as sub-section (1) of that section by the Insolvency (Amdt.) Act, 1927 (11 of 1927), s. 2.
[2]Sub-section (2), ins. *ibid.*

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(2) A debtor's petition shall not, after presentation, be withdrawn without the leave of the Court.

[1][(3) On the making of the order admitting his petition, a debtor shall—

(*a*) unless the Court otherwise directs, produce all his books of account, and

(*b*) file such lists of creditors and debtors and afford such assistance to the Court as may be prescribed, failing which the Court may dismiss his petition.]

16. Discretionary powers as to appointment of interim receiver. The Court may, if it is shown to be necessary for the protection of the estate, at any time after the presentation of an insolvency petition and before an order of adjudication is made, appoint the official assignee to be interim receiver of the property of the debtor, or of any part thereof, and direct him to take immediate possession thereof or any part thereof, and the official assignee shall the reupon have such of the powers conferrable on a receiver appointed under the Code of Civil Procedure, 1908 (V of 1908), as may be prescribed.

17. Effect of order of adjudication. On the making of an order of adjudication, the property of the insolvent wherever situate shall vest in the official assignee and shall become divisible among his creditors, and thereafter, except as directed by this Act, no creditor to whom the insolvent is indebted in respect of any debt provable in insolvency shall, during the pendency of the insolvency proceedings, have any remedy against the property of the insolvent in respect of the debt or shall commence any suit or other legal proceeding except with the leave of the Court and on such terms as the Court may impose:

Provided that this section shall not affect the power of any secured creditors to realize or otherwise deal with his security in the same manner as he would have been entitled to realize or deal with it if this section had not been passed.

18. Stay of proceedings.—(1) The Court may, at any time after the making of an order of adjudication, stay any suit or other proceeding pending against the insolvent before any judge or judges of the Court or in any other Court subject to the superintendence of the Court.

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(2) An order made under sub-section (1) may be served by sending a copy thereof, under the seal of the Court, by post to the address for service of the plaintiff or other party prosecuting such suit or proceeding, and notice of such order shall be sent to the Court before which the suit or proceeding is pending.

(3) Any Court in which proceedings are pending against a debtor may, on proof that an order of adjudication has been made against him under this Act, either stay the proceedings or allow them to continue on such terms as it may think just.

[2]**[18A. Control over insolvency proceedings in subordinate Court.** (1) The Court may, at any time after the presentation of an insolvency petition, stay any insolvency proceedings pending against the debtor in any Court subject to the superintendence of the Court, and may, at any time after the making of an order of adjudication, annul an adjudication against the debtor made by any such Court.

[1]Sub-section (3) ins. by the Presidency-towns Insolvency (Amdt.) Act, 1927 (19 of 1927), s. 3.
[2]Section 18A ins. by the Insolvency Law (Amdt.) Act, 1930 (10 of 1930), s. 3.

(2) Where an adjudication is annulled under sub-section (1), all sales and dispositions of property and payments duly made and all acts done by the Court whose order is annulled, or by the receiver appointed by it or other person acting under his authority, shall be valid, but the property vested in such Court or receiver shall vest in the official assignee, and the Court may make such direction in regard to the custody of such property as it thinks fit.

(3) Notice of the order annulling an adjudication under sub-section (1) shall be published in the [1][official Gazette] and in such other manner as may be prescribed.]

19. Power to appoint special manager.—(1) If in any case the Court, having regard to the nature of the debtor's estate or business or to the interests of the creditors generally, is of opinion that a special manager of the estate or business ought to be appointed to assist the official assignee, the Court may appoint a manager thereof accordingly to act for such time as the Court may authorize, and to have such powers of the official assignee as may be entrusted to him by the official assignee or as the Court may direct.

(2) The special manager shall give security and furnish accounts in such manner as the Court may direct, and shall receive such remuneration as the Court may determine.

20. Advertisement of order of adjudication. Notice of every order of adjudication, stating the name, address and description of the insolvent, the date of the adjudication, the Court by which the adjudication is made and the date of presentation of the petition, shall be published [2]* * * in the [3][official Gazette] and in such other manner as may be prescribed.

Annulment of adjudication

21. Power for Court to annul adjudication in certain cases.—(1) Where, in the opinion of the Court, a debtor ought not to have been adjudged insolvent, or where it is proved to the satisfaction of the Court that the debts of the insolvent are paid in full, the Court may, on the application of any person interested, by order annul the adjudication [4][and the Court may, of its own motion or on application made by the official assignee or any creditor, annul any adjudication made on the petition of a debtor who was, by reason of the provisions of sub-section (2) of section (14), not entitled to present such petition].

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(2) For the purposes of this section, any debt disputed by a debtor shall be considered as paid in full, if the debtor enters into a bond, in such sum and with such sureties as the Court approves, to pay the amount to be recovered in any proceeding for the recovery of or concerning the debt, with costs, and any debt due to a creditor who cannot be found or cannot be identified shall be considered as paid in full if paid into Court.

22. Concurrent proceedings in British Courts. Where it is proved to the satisfaction of the Court that insolvency proceedings are pending in any other [5][Court in] [6][Pakistan] against the same debtor and that the property of the debtor can be more conveniently distributed by such other Court, the Court may annul the adjudication or may stay all proceedings thereon.

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[1]Subs. by A.O., 1937, for "local official Gazette".
[2]The words "in the Gazette of India and" omitted, by A.O., 1937.
[3]Subs. *ibid.*, for "local official Gazette".
[4]Ins. by the Insolvency (Amdt.) Act, 1927 (11 of 1927), s. 3.
[5]Subs. by A.O.,1961, Art, 2 and Sch., for "British Court whether within or without" (*with effect from the 23rd March,* 1956).[6]Subs. by the Central Laws (Statute Refrom) Ordinance, 1960 (21of 1960), s. 3 and 2nd Sch. (*with effect from the 14th October,* 1955), for "the Provinces and the Capital of the Federation" which had been subs. by A. O., 1949, for "British India".

23. Proceedings on annulment.—(1) Where an adjudication is annulled, all sales and dispositions of property and payments duly made, and all acts theretofore done, by the official assignee or other person acting under his authority, or by the Court, shall be valid, but the property of the debtor who was adjudged insolvent shall vest in such person as the Court may appoint, or, in default of any such appointment, shall revert to the debtor to the extent of his right or interest therein on such terms and subject to such conditions (if any) as the Court may declare by order.

(2) Where a debtor has been released from custody under the provisions of this Act and the order of adjudication is annulled as aforesaid, the Court may, if it thinks fit, recommit the debtor to his former custody, and the jailor or keeper of the prison to whose custody such debtor is so recommitted shall receive such debtor into his custody according to such recommitment, and thereupon all processes which were in force against the person of such debtor at the time of such release as aforesaid shall be deemed to be still in force against him as if such order had not been made.

(3) Notice of the order annulling an adjudication shall be published [1]* * * in the [2][official Gazette] and in such other manner as may be prescribed.

Proceedings consequent on order of adjudication

24. Insolvent's schedule.—(1) Where an order of adjudication is made against a debtor, he shall prepare and submit to the Court a schedule verified by affidavit, in such form and containing such particulars of and in relation to his affairs as may be prescribed.

(2) The schedule shall be so submitted within the following times, namely :—

(*a*) if the order is made on the petition of the debtor, within thirty days from the date of the order,

(*b*) if the order is made on the petition of a creditor, within thirty days from the date of service of the order.

(3) If the insolvent fails, without reasonable excuse, to comply with the requirements of this section, the Court may, on the application of the official assignee or of any creditor, make an order for his committal to the civil prison.

(4) If the insolvent fails to prepare and submit any such schedule as aforesaid, the official assignee may, at the expense of the estate, cause such a schedule to be prepared in manner prescribed.

25. Protection order.—(1) Any insolvent who shall have submitted his schedule as aforesaid may apply to the Court for protection, and the Court may, on such application, make an order for the protection of the insolvent from arrest or detention.

(2) A protection order may apply either to all the debts mentioned in the schedule or to any of them as the Court may think proper, and may commence and take effect at and for such time as the Court may direct, and may be revoked or renewed as the Court may think fit.

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[1]The words "in the Gazette of India and" omitted by A.O., 1937.
[2]Subs. *ibid.*, for "local official Gazette".

(3) A protection order shall protect the insolvent from being arrested or detained in prison for any debt to which such order shall apply, and any insolvent arrested or detained contrary to the terms of such order shall be entitled to his release :

Provided that no such order shall operate to prejudice the right of any creditor in the event of such order being revoked or the adjudication annulled.

(4) Any creditor shall be entitled to appear and oppose the grant of a protection order, but the insolvent shall be *prima facie* entitled to such order on production of a certificate signed by the official assignee that he has so far conformed to the provisions of this Act.

(5) The Court may make a protection order before an insolvent has submitted his schedule if it thinks it necessary to do so in the interests of the creditors.

26. Meetings of creditors.—(1) At any time after the making of an order of adjudication against an insolvent, the Court, on the application of a creditor or of the official assignee, may direct that a meeting of creditors shall be held to consider the circumstances of the insolvency and the insolvent's schedule and his explanation thereof and generally as to the mode of dealing with the property of the insolvent.

(2) With respect to the summoning of and proceedings at a meeting of creditors the rules in the First Schedule shall be observed.

27. Public examination of the insolvent.—(1) Where the Court makes an order of adjudication it shall hold a public sitting on a day to be appointed by the Court, of which notice shall be given to creditors in the prescribed manner, for the examination of the insolvent, and the insolvent shall attend thereat, and shall be examined as to his conduct, dealings and property.

(2) The examination shall be held as soon as conveniently may be after the expiration of the time for the filing of the insolvent's schedule.

(3) Any creditor who has tendered a proof or a legal practitioner on his behalf may question the insolvent concerning his affairs and the causes of his failure.

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(4) The official assignee shall take part in the examination of the insolvent; and for the purpose thereof, subject to such directions as the Court may give, may be represented by a legal practitioner.

(5) The Court may put such questions to the insolvent as it may think expedient.

(6) The insolvent shall be examined upon oath, and it shall be his duty to answer all such questions as the Court may put or allow to be put to him. Such notes of the examination as the Court thinks proper shall be taken down in writing and shall be read over either to or by the insolvent and signed by him, and may thereafter be used in evidence against him and shall be open to the inspection of any creditor at all reasonable times.

(7) When the Court is of opinion that the affairs of the insolvent have been sufficiently investigated, it shall, by order, declare that his examination is concluded, but such order shall not preclude the Court from directing further examination of the insolvent whenever it may deem fit to do so.

(8) Where the insolvent is a lunatic or suffers from any such mental or physical affliction or disability as in the opinion of the Court makes him unfit to attend his public examination, or is a woman who according to the customs and manners of the country ought not to be compelled to appear in public, the Court may make an order dispensing with such examination, or directing that the insolvent be examined on such terms, in such manner and at such place as to the Court seems expedient.

Composition and schemes of arrangement

28. Submission of proposal and acceptance by creditors.—(1) An Insolvent may at any time after the making of an order of adjudication submit a proposal for a composition in satisfaction of his debts or a proposal for a scheme of arrangement of his affairs in the prescribed form, and such proposal shall be submitted by the official assignee to a meeting of creditors.

(2) The official assignee shall send to each creditor who is mentioned in the schedule, or who has tendered a proof before the meeting, a copy of the insolvent's proposals with a report thereon, and if on the consideration of such proposal the majority in number and three-fourths in value of all the creditors whose debts are proved resolve to accept the proposal, the same shall be deemed to be duly accepted by the creditors.

(3) The insolvent may at the meeting amend the terms of his proposal if the amendment is in the opinion of the official assignee calculated to benefit the general body of creditors.

(4) Any creditor who has proved his debt may assent to or dissent from the proposal by a letter, in the prescribed form addressed to the official assignee so as to be received by him not later than the day preceding the meeting, and any such assent or dissent shall have effect as if the creditor had been present and had voted at the meeting.

29. Approval of proposal by Court.—(1) The insolvent or the official assignee may after the proposal is accepted by the creditors apply to the Court to approve it, and notice of the time appointed for hearing the application shall be given to each creditor who has proved.

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(2) Except where an estate is being summarily administered or special leave of the Court has been obtained, the application shall not be heard until after the conclusion of the public examination of the insolvent. Any creditor who has proved may be heard by the Court in opposition to the application notwithstanding that he may at a meeting of creditors have voted for the acceptance of the proposal.

(3) The Court shall before approving the proposal hear a report of the official assignee as to the terms thereof and as to the conduct of the insolvent and any objections which may be made by or on behalf of any creditor.

(4) Where the Court is of opinion that the terms of the proposal are not reasonable or are not calculated to benefit the general body of creditors or in any case in which the Court is required to refuse the insolvent's discharge, the Court shall refuse to approve the proposal.

(5) Where any facts are proved on proof of which the Court would be required either to refuse, suspend or attach conditions to the debtor's discharge, the Court shall refuse to approve the proposal unless it provides reasonable security for payment of not less than four annas in the rupee on all the unsecured debts provable against the debtor's estate.

(6) No composition or scheme shall be approved by the Court which does not provide for the payment in priority to other debts of all debts directed to be so paid in the distribution of the property of an insolvent.

(7) In any other case the Court may either approve or refuse to approve the proposal.

30. Order on approval.—(1) If the Court approves the proposal, the terms shall be embodied in an order of the Court, and an order shall be made annulling the adjudication, and the provisions of section 23, sub-sections (1) and (3), shall thereupon apply, and the composition or scheme shall be binding on all the creditors so far as relates to any debt due to them from the insolvent and provable in insolvency.

(2) The provisions of the composition or scheme may be enforced by the Court on application by any person interested, and any disobedience of an order of the Court made on the application shall be deemed a contempt of Court.

31. Power to re-adjudge debtor insolvent.—(1) If default is made in the payment of any instalment due in pursuance of any composition or scheme, approved as aforesaid, or if it appears to the Court that the composition or scheme cannot proceed without injustice or undue delay or that the approval of the Court was obtained by fraud, the Court may, if it thinks fit, on application by any person interested, re-adjudge the debtor insolvent and annul the composition or scheme, and the property of the debtor shall thereupon vest in the official assignee but without prejudice to the validity of any transfer or payment duly made or of anything duly done under or in pursuance of the composition or scheme.

(2) Where a debtor is re-adjudged insolvent under sub-section (1), all debts provable in other respects which have been contracted before the date of such re-adjudication shall be provable in the insolvency.

32. Limitation of effect of composition or scheme. Notwithstanding the acceptance and approval of a composition or scheme, the composition or scheme shall not be binding on any creditor so far as regards a debt or liability from which, under the provisions of this Act, the insolvent would not be discharged by an order of discharge in insolvency, unless the creditor assents to the composition or scheme.

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Control over person and property of insolvent

33. Duties of insolvent as to discovery and realization of property.—(1) Every insolvent shall, unless prevented by sickness or other sufficient cause, attend any meeting of his creditors which the official assignee may require him to attend, and shall submit, to such examination and give such information as the meeting may require.

(2) The insolvent shall—

(*a*) give such inventory of his property, such list of his creditors and debtors, and of the debts due to and from them respectively,

(*b*) submit to such examination in respect of his property or his creditors,

(*c*) wait at such times and places on the official assignee or special manager,

(*d*) execute such powers-of-attorney, transfers and instruments, and

(*e*) generally do all such acts and things in relation to his property and the distribution of the proceeds amongst his creditors,

as may be required by the official assignee or special manager or, may be prescribed or be directed by the Court by any special order or orders made in reference to any particular case, or made on the occasion of any special application by the official assignee or special manager, or any creditor or person interested.

(3) The insolvent shall aid, to the utmost of his power, in the realization of his property and the distribution of the proceeds among his creditors.

(4) If the insolvent wilfully fails to perform the duties imposed upon him by this section, or to deliver up possession to the official assignee of any part of his property, which is divisible amongst his creditors under this Act and which is for the time being in his possession or under his control, he shall, in addition to any other punishment to which he may be subject, be guilty of a contempt of Court, and may be punished accordingly.

34. Arrest of insolvent.—(1) The Court may, either of its own motion or at the instance of the official assignee or of any creditor, by warrant addressed to any police-officer or prescribed officer of the Court, cause an insolvent to be arrested, and committed to the civil prison or if in prison to be detained until such time as the Court may order, under the following circumstances, namely:—

(*a*) if it appears to the Court that there is probable reason for believing that he has absconded or is about to abscond with a view of avoiding examination in respect of his affairs, or of otherwise avoiding, delaying or embarrassing proceedings in insolvency against him ; or

(*b*) if it appears to the Court that there is probable reason for believing that he is about to remove his property with a view of preventing or delaying possession being taken of it by the official assignee, or that there is probable reason for believing that he has concealed or is about to conceal or destroy any of his property or any books, documents or writings which might be of use to his creditors in the course of his insolvency ; or

(*c*) if he removes any property in his possession above the value of fifty rupees without the leave of the official assignee.

(2) No payment or composition made or security given after arrest made under this section shall be exempt from the provisions of this Act relating to fraudulent preferences.

35. Redirection of letters. Where the official assignee has been appointed interim receiver or an order of adjudication is made, the Court, on the application of the official assignee, may, from time to time, order that for such time, not exceeding three months, as the Court thinks fit, all post letters, whether registered or unregistered, parcels and money orders addressed to the debtor at any place or places mentioned in the order for re-direction, shall be re-directed, or delivered by the Postal authorities in [1][Pakistan] to the official assignee, or otherwise as the Court directs; and the same shall be done accordingly.

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[1]Subs. by the Central Laws (Statute Reform) Ordinance, 1960 (21 of 1960), s. 3 and 2nd Sch. (*with effect from the 14th October*, 1955), for "the Provinces and the Capital of the Federation" which had been subs. by A. O., 1949, for "British of India".

36. Discovery of insolvent's property.—(1) The Court may, on the application of the official assignee or of any creditor who has proved his debt, at any time after an order of adjudication has been made, summon before it in such manner as may be prescribed the insolvent or any person known or suspected to have in his possession any property belonging to the insolvent, or supposed to be indebted to the insolvent, or any person whom the Court may deem capable of giving information respecting the insolvent, his dealings or property; and the Court may require any such person to produce any documents in his custody or power relating to the insolvent, his dealings or property.

(2) If any person so summoned, after having been tendered a reasonable sum, refuses to come before the Court at the time appointed, or refuses to produce any such document, having no lawful impediment made known to the Court at the time of its sitting and allowed by it, the Court may, by warrant, cause him to be apprehended and brought up for examination.

(3) The Court may examine any person so brought before it concerning the insolvent, his dealings or property, and such person may be represented by a legal practitioner.

(4) [1][If on his examination any such person admits] that he is indebted to the insolvent, the Court may, on the application of the official assignee, order him to pay to the official assignee, at such time and in such manner as to the Court seems expedient, the amount in which he is indebted, or any part thereof, either in full discharge of the whole amount or not, as the Court thinks fit, with or without costs of the examination.

(5) [1][If on his examination any such person admits] that he has in his possession any property belonging to the insolvent, the Court may, on the application of the official assignee, order him to deliver to the official assignee that property, or any part thereof, at such time, in such manner and on such terms as to the Court may seem just.

(6) Orders made under sub-sections (4) and (5) shall be executed in the same manner as decrees for the payment of money or for the delivery of property under the Code of Civil Procedure, 1908 (V of 1908), respectively.

(7) Any person making any payment or delivery in pursuance of an order made under sub-section (4) or sub-section (5) shall by such payment or delivery be discharged from all liability whatsoever in respect of such debt or property.

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37. Power to issue commissions. The Court shall have the same powers to issue commissions and letters of request for the examination on commission or otherwise of any person liable to examination under section 36 as it has for the examination of witnesses under the Code of Civil Procedure, 1908 (V of 1908).

Discharge of Insolvent

38. Discharge of insolvent.—(1) An insolvent may, a any time after the order of adjudication, apply to the Court for an order of discharge, and the Court shall appoint a day for hearing the application, but, save where the public examination of the insolvent has been dispensed with under the provisions of this Act, the application shall not be heard until after such examination has been concluded. The application shall be heard in open Court.

[1]Subs. by the Presidency-towns Insolvency (Amdt.) Act, 1927 (19 of 1927), s. 4, for "If on the examination of any such person the Court is satisfied".

(2) On the hearing of the application, the Court shall take into consideration any report of the official assignee as to the insolvent's conduct and affairs, and, subject to the provisions of section 39, may—

(*a*) grant or refuse an absolute order of discharge, or

(*b*) suspend the operation of the order for a specified time or

(*c*) grant an order of discharge subject to any conditions with respect to any earnings or income which may afterwards become due to the insolvent, or with respect to his after-acquired property.

39. Cases in which the Court must refuse an absolute discharge.—(1) The Court shall refuse the discharge in all cases where the insolvent has committed any offence under this Act, or under sections 421 to 424 of the Pakistan Penal Code (XLV of 1860), and shall, on proof of any of the facts hereinafter mentioned, either—

(*a*) refuse the discharge ; or

(*b*) suspend the discharge for a specified time ; or

(*c*) suspend the discharge until a dividend of not less than four annas in the rupee has been paid to the creditors ; or

(*d*) require the insolvent as a condition of his discharge to consent to a decree being passed against him in favour of the official assignee for any balance or part of any balance of the debts provable under the insolvency which is not satisfied at the date of his discharge; such balance or part of any balance of the debts to be paid out of the future earnings or after-acquired property of the insolvent in such manner and subject to such conditions as the Court may direct; but in that case the decree shall not be executed without leave of the Court, which leave may be given on proof that the insolvent has since his discharge acquired property or income available for payment of his debts.

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(2) The facts hereinbefore referred to are—

(a) that the insolvent's assets are not of a value equal to four annas in the rupee on the amount of his unsecured liabilities, unless he satisfies the Court that the fact that the assets are not of such value has arisen from circumstances for which he cannot justly be held responsible ;

(*b*) that the insolvent has omitted to keep such books of account as are usual and proper in the business carried on by him and as sufficiently disclose his business transactions and financial position within the three years immediately preceding his insolvency ;

(*c*) that the insolvent has continued to trade after knowing himself to be insolvent;

(*d*) that the insolvent has contracted any debt provable under this Act without having at the time of contracting it any reasonable or probable ground of

expectation (the burden of proving which shall lie on him) that he, would be able to pay it ;

(*e*) that the insolvent has failed to account satisfactorily for any loss of assets or for any deficiency of assets to meet his liabilities ;

(*f*) that the insolvent has brought on or contributed to his insolvency by rash or hazardous speculations or by unjustifiable extravagance in living or by gambling, or by culpable neglect of his business affairs ;

(*g*) that the insolvent has put any of his creditors to unnecessary expense by a frivolous or vexatious defence to any suit properly brought against him ;

(*h*) that the insolvent has within three months preceding the time of presentation of the petition incurred unjustifiable expense by bringing a frivolous or vexatious suit ;

(*i*) that the insolvent has within three months preceding the date of the presentation of the petition, when unable to pay his debts as they become due, given an undue preference to any of his creditors;

(*j*) that the insolvent has concealed or removed his books or his property or any part thereof or has been guilty of any other fraud or fraudulent breach of trust.

(3) The power of suspending and of attaching conditions to an insolvent's discharge may be exercised concurrently.

(4) On any application for discharge the report of the official assignee shall be *prima facie* evidence and the Court may presume the correctness of any statement contained therein.

40. Hearing of application for discharge. Notice of the appointment by the Court of the day for hearing the application for discharge shall be published in the prescribed manner and sent one month at least before the day so appointed to each creditor who has proved, and the Court may hear the official assignee and may also hear any creditor. At the hearing, the Court may put such questions to the insolvent and receive such evidence as it may think fit.

41. Power to annual adjudication on failure to apply for discharge. If an insolvent does not appear on the day so appointed for hearing his application for discharge or if an insolvent shall not apply to the Court for an order of discharge within such time as may be prescribed, the Court, on the application of the official assignee or of a creditor or of its own motion, may annul the adjudication or make such other order as it may think fit, and the provisions of section 23 shall apply on such annulment.

42. Renewal of application and variation of terms of order.—(1) Where the Court refuses the discharge of the insolvent it may, after such time and in such circumstances as may be prescribed, permit him to renew his application.

(2) Where an order of discharge is made subject to conditions and at any time after the expiration of two years from the date of the order the insolvent shall satisfy the Court that there is no reasonable probability of his being in a position to comply with the terms of such order, the Court

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may modify the terms of the order, or of any substituted order, in such manner and upon such conditions as it may think fit.

43. Duty of discharged insolvent to assist in realization of property. A discharged insolvent shall, notwithstanding his discharge, give such assistance as the official assignee may require in the realization and distribution of such of his property as is vested in the official assignee, and, if he fails to do so, shall be guilty of a contempt of Court; and the Court may also, if it thinks fit, revoke his discharge, but without prejudice to the validity of any sale, disposition or payment duly made or thing duly done subsequent to the discharge, but before its revocation.

44. Fraudulent settlements. In either of the following cases, that is to say ;—

(1) in the case of a settlement made before and in consideration of marriage where the settlor is not at the time of making the settlement able to pay all his debts without the aid of the property comprised in the settlement; or in the case of any covenant or contract made in consideration of marriage for the future settlement on or for the settlor's wife or children of any money or property wherein he had not at the date of his marriage any estate or interest (not being money or property of or in right of his wife) ;

if the settlor is adjudged insolvent or compounds or arranges with his creditors, and it appears to the Court that the settlement, covenant or contract was made in order to defeat or delay creditors, or was unjustifiable having regard to the state of the settlor's affairs at the time when it was made, the Court may refuse or suspend an order of discharge or grant an order subject to conditions or refuse to approve a composition or arrangement.

45. Effect of order of discharge.—(1) An order of discharge shall not release the insolvent from—

(a) any debt due to the [1][Government] ;

(b) any debt or liability incurred by means of any fraud or fraudulent breach of trust to which he was a party ; or

(c) any debt or ability in respect of which he has obtained forbearance by any fraud to which he was a party ; or

[2][(d) any liability under an order for the maintenance of a wife or child.]

(2) Save as otherwise provided by sub-section (1), an order of discharge shall release the insolvent from all debts provable in insolvency.

(3) An order of discharge shall be conclusive evidence of the insolvency, and of the validity of the proceedings therein.

(4) An order of discharge shall not release any person who at the date of the presentation of the petition was a partner or co-trustee with the insolvent or was jointly bound or had made any joint contract with him, or any person who was surety or in the nature of a surety for him.

[1]Subs. by A.O., 1961, Art. 2, for "Crown" (*with effect from the 23rd March*, 1956).
[2]Subs. by the Federal Laws (Revision. and Dec1aration). Ordinance, 1981 (27 of 1981), s. 3 and Second Sch., for the original clause (d).

PART III

ADMINISTRATION OF PROPERTY

Proof of debts

46. Debts provable in insolvency.—(1) Demands in the nature of unliquidated damages arising otherwise than by reason of a contract or breach of trust shall not be provable in insolvency.

(2) A person having notice of the presentation of any insolvency petition by or against the debtor shall not prove for any debt or liability contracted by the debtor subsequently to the date of his so having notice.

(3) Save as provided by sub-sections (1) and (2), all debts and liabilities, present or future, certain or contingent, to which the debtor is subject when he is adjudged an insolvent or to which he may become subject before his discharge by reason of any obligation incurred before the date of such adjudication, shall be deemed to be debts provable in insolvency.

(4) An estimate shall be made by the official assignee of the value of any debt or liability provable as aforesaid which by reason of its being subject to any contingency or contingencies, or for any other reason, does not bear a certain value:

Provided that if in his opinion the value of the debt or liability is incapable of being fairly estimated, he shall issue a certificate to that effect, and thereupon the debt or liability shall be deemed to be a debt not provable in insolvency.

Explanation.—For the purposes of this section "liability" includes any compensation for work or labour done, any obligation or possibility of an obligation to pay money or money's worth on the breach of any express or implied covenant, contract, agreement or undertaking, whether the breach does or does not occur, or is or is not likely to occur or capable of occurring, before the discharge of the debtor, and generally it includes any express or implied engagement, agreement or undertaking to pay, or capable of resulting in the payment of, money, or money's worth, whether the payment is, as respects amount, fixed or unliquidated; as respects time, present or future, certain or dependent on any contingency or contingencies; as to mode of valuation, capable of being ascertained by fixed rules, or as matter of opinion.

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47. Mutual dealings and set-off. Where there have been mutual dealings between an insolvent and a creditor proving or claiming to prove a debt under this Act, an account shall be taken of what is due from the one party to the other in respect of such mutual dealings, and the sum due from the one party shall be set-off against any sum due from the other party, and the balance of the account, and no more, shall be claimed or paid on either side respectively:

Provided that a person shall not be entitled under this section to claim the benefits of any set-off against the property of an insolvent in any case where he had at the time of giving credit to the insolvent notice of the presentation of any insolvency petition by or against him.

48. Rules as to proof of debts. With respect to the mode of proving debts, the right of proof by secured and other creditors, the admission and rejection of proofs, and the other matters referred to in the Second Schedule, the rules in that schedule shall be observed.

49. Priority of debts.—(1) In the distribution of the property of the insolvent there shall be paid in priority to all other debts—

(*a*) all debts due to the [1][Government] or to any local authority ;

[1]Subs. by A.O., 1961, Art. 2, for "Crown" (*with effect from the 23rd March* 1956.).

(*b*) all salary or wages of any clerk, servant or labourer in respect of services rendered to the insolvent during four months before the date of the presentation of the petition, not exceeding three hundred rupees for each such clerk, and one hundred rupees for each such servant or labourer ; and

(*c*) rent due to a landlord from the insolvent: provided the amount payable under this clause shall not exceed one month's rent.

(2) The debts specified in sub-section (1) shall rank equally between themselves, and shall be paid in full, unless the property of the insolvent is insufficient to meet them, in which case they shall abate in equal proportions between themselves.

(3) Subject to the retention of such sums as may be necessary for the expenses of administration or otherwise, the debts specified in sub-section (1) shall be discharged forthwith in so far as the property of the insolvent is sufficient to meet them.

(4) In the case of partners, the partnership property shall be applicable in the first instance in payment of the partnership debts, and the separate property of each partner shall be applicable in the first instance in payment of his separate debts. Where there is a surplus of the separate property of the partners, it shall be dealt with as part of the partnership property; and where there is a surplus of the partnership property, it shall be dealt with as part of the respective separate property in proportion to the rights and interests of each partner in the partnership property.

(5) Subject to the provisions of this Act, all debts proved in insolvency shall be paid ratably according to the amounts of such debts respectively and without any preference.

(6) Where there is any surplus after payment of the foregoing debts, it shall be applied in payment of interest from the date on which the debtor is adjudged an insolvent at the rate of six per centum per annum on all debts proved in the insolvency.

50. Rent due before adjudication. After an order of adjudication has been made no distress for rent due before such order shall be made upon the goods or effects of the insolvent, unless the order be annulled, but the landlord or party to whom the rent may be due shall be entitled to prove in respect of such rent.

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Property available for payment of debts

51. Relation of assignee's title. The insolvency of a debtor, whether the same takes place on the debtor's on petition or upon that of a creditor or creditors, shall be deemed to have relation back to and to commence at—

(a) the time of the commission of the act of insolvency on which an order of adjudication is made against him, or

(b) if the insolvent is proved to have committed more acts of insolvency than one, the time of the first of the acts of insolvency proved to have been committed by the insolvent within three months next preceding the date of the presentation of the insolvency petition:

Provided that no insolvency petition or order of adjudication shall be rendered invalid by reason of any act of insolvency committed anterior to the debt of the petitioning creditor.

52. Description of insolvent property divisible amongst creditors.—(1) The property of the insolvent divisible amongst his creditors, and in this Act referred to as the property of the insolvent, shall not comprise the following particulars, namely :—

(*a*) property held by the insolvent on trust for any other person;

(*b*) the tools (if any) of his trade and the necessary wearing apparel, bedding, cooking vessels, and furniture of himself, his wife and children, to a value, inclusive of tools and apparel and other necessaries as aforesaid, not exceeding three hundred rupees in the whole.

(2) Subject as aforesaid, the property of the insolvent shall comprise the following particulars, namely:—

(a) all such property as may belong to or be vested in the insolvent at the commencement of the insolvency or may be acquired by or devolve on him before his discharge s;

(*b*) the capacity to exercise and to take proceedings for exercising all such powers in or over or in respect of property as might have been exercised by the insolvent for his own benefit at the commencement of his insolvency or before his discharge ; and

(*c*) all goods being at the commencement of the insolvency in the possession, order or disposition of the insolvent, in his trade or business by the consent and permission of the true owner under such circumstances that he is the reputed owner thereof :

Provided that things in action other than debts due or growing due to the insolvent in the course of his trade or business shall not be deemed goods within the meaning of clause (*c*) :

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Provided also that the true owner of any goods which have become divisible among the creditors of the insolvent under the provisions of clause (*c*) may prove for the value of such goods.

Effect of insolvency on antecedent transactions

53. Restriction of rights of creditor under execution.—(1) Where execution of a decree has issued against the property of a debtor, no person shall be entitled to the benefit of the execution against the official assignee, except in respect of assets realized in the course of the execution by sale or otherwise before the date of the order of adjudication and before he had notice of the presentation of any insolvency petition by or against the debtor.

(2) Nothing in this section shall affect the right of a secured creditor in respect of property against which a decree is executed.

(3) A person who in good faith purchases the property of a debtor under a sale in execution shall in all cases acquire a good title to it against the official assignee.

54. Duties of Court executing decree as to property taken in execution. Where execution of a decree has issued against any property of a debtor which is saleable in execution, and before the sale thereof notice is given to the Court executing the decree that an order of adjudication has been made against the debtor, the Court shall, on application, direct the property, if in the possession of the Court, to be delivered to the official assignee, but the costs of the execution shall be a first charge on the property so delivered, and the official assignee may sell the property or an adequate part thereof for the purpose of satisfying the charge.

55. Avoidance of voluntary transfer. Any transfer of property, not being a transfer made before and in consideration of marriage, or made in favour of a purchaser or incumbrancer in good faith and for valuable consideration, shall, if the transferor is adjudged insolvent within two years after the date of the transfer, be void against the official assignee.

56. Avoidance of preference in certain cases. (1) Every transfer of property, every payment made, every obligation incurred, and every judicial proceeding taken or suffered by any person unable to pay his debts as they become due from his own money in favour of any creditor, with a view of giving that creditor a preference over the other creditors, shall, if such person is adjudged insolvent on a petition presented within three months after the date thereof, be deemed fraudulent and void as against the official assignee.

(2) This section shall not affect the rights of any person making title in good faith and for valuable consideration through or under a creditor of the insolvent.

57. Protection of *bona fide* transactions. Subject to the foregoing provisions with respect to the effect of insolvency on an execution and with respect to the avoidance of certain transfers and preferences, nothing in this Act shall invalidate in the case of an insolvency–

(a) any payment by the insolvent to any of his creditors ;

(b) any payment or delivery to the insolvent ;

(c) any transfer by the insolvent for valuable consideration ; or

(d) any contract or dealing by or with the insolvent for valuable consideration :

Provided that any such transaction takes place before the date of the order of adjudication and that the person with whom such transaction takes place has not at the time notice of the presentation of any insolvency petition by or against the debtor.

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Realization of property

58. Possession of property by official assignee.—(1) The official assignee shall, as soon as may be, take possession of the deeds, books and documents of the insolvent and all other parts of his property capable of manual delivery.

(2) The official assignee shall, in relation to and for the purpose of acquiring or retaining possession of the property of the insolvent, be in the same position as if he were a receiver of the property appointed under the Code of Civil Procedure 1908 (V of 1908), and the Court may on his application enforce such acquisition or retention accordingly.

(3) Where any part of the property of the insolvent consists of stock, shares in ships, shares, or any other property transferable in the books of any company, office or person, the official assignee may exercise the right to transfer the property to the same extent as the insolvent might have exercised it, if he had not become insolvent.

(4) Where any part of the property of the insolvent consists of things in action, such things shall be deemed to have been duly transferred to the official assignee.

(5) Any treasurer or other officer, or any banker, attorney or agent of an insolvent, shall pay and deliver to the official assignee all money and securities in his possession or power as such officer, banker, attorney or agent, which he is not by law entitled to retain as against the insolvent or the official assignee. If he fails so to do, he shall be guilty of a contempt of Court, and shall be punishable accordingly on the application of the official assignee.

59. Seizure of property of insolvent.—(1) The Court may grant a warrant to any prescribed officer of the Court or any police-officer above the rank of a constable to seize any part of the property of an insolvent in the custody or possession of the insolvent or any other person, and with a view to such seizure to break open any house, building or room of the insolvent where the insolvent is supposed to be, or any building or receptacle of the insolvent where any of his property is supposed to be.

(2) Where the Court is satisfied that there is reason to believe that property of the insolvent is concealed in a house or place not belonging to him, the Court may, if it thinks fit, grant a search warrant to any such officer as aforesaid who may execute it according to its tenor.

60. Appropriation of portion of pay or other income to creditors.—(1) Where an insolvent is an officer of [1][the Pakistan Army or Navy], or an officer or clerk or otherwise employed or engaged in the civil service of the [2][State], the official assignee shall receive for distribution amongst the creditors so much of the insolvent's pay or salary liable to attachment in execution of a decree as the Court may direct.

(2) Where an insolvent is in the receipt of a salary or income other than as aforesaid, the Court may, at any time after adjudication and from time to time, make such order as it thinks just for the payment to the official assignee, for distribution among the creditors of so much of such salary or income as may be liable to attachment in execution of a decree, or of any portion thereof.

[3]**61. Vesting and transfer of property.** The property of the insolvent shall pass from official assignee to official assignee, and shall vest in the official assignee for the time being during his continuance in office, without any transfer whatever.

62. Disclaimer of onerous property.—(1) Where any part of the property of an insolvent consists of land of any tenure burdened with onerous covenants, of shares or stock in companies, of unprofitable contracts, or of any other property that is unsaleable, or not readily saleable, by reason of its binding the possessor thereof to the performance of any onerous act or to the payment of any sum of money, the official assignee may, notwithstanding that he may have endeavoured to sell or have taken possession of the property, or exercised any act of ownership in relation thereto, but subject always to the provisions hereinafter contained in that behalf, by writing signed by him, at any time within twelve months after the insolvent has been adjudged insolvent, disclaim the property :

[1]Subs. by A.O., 1961, Art. 2 and Sch. *(with effect from the 23rd March,* 1956), for "the Army or Navy or of [the Royal Pakistan Navy]". The word in crotchets were amended by A.O., 1937 and A.O., 1949.
[2]Subs. by A.O., 1961, Art. 2 and Sch., for "Crown" (*with effect from the 23rd March,* 1956).
[3]in the application of the Act to Karachi, this section has been repealed; *see* the Presidency-towns Insolvency (Bom. Amdt.) Act, 1933 (Bom. 20 of 1933), s. 11 and First Sch., as amended by the Karachi Insolvency Law Amdt. Act, 1935 (Born. 3 of 1935), s. 2.

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Provided that, where any such property has not come to the knowledge of the official assignee within one month after such adjudication as aforesaid, he may disclaim the property at any time within twelve months after he has first become aware thereof.

(2) The disclaimer shall operate to determine, as from the date thereof, the rights, interest and liabilities of the insolvent and his property in or in respect of the property disclaimed, and shall also discharge the official assignee from all personal liability in respect of the property disclaimed as from the date when the property vested in him, but shall not, except so far as is necessary for the purpose of releasing the insolvent and his property and the official assignee from liability, affect the rights or liabilities of any other person.

63. Disclaimer of lease-holds. Subject always to such rules as may be made in this behalf, the official assignee shall not be entitled to disclaim any leasehold interest without the leave of the Court; and the Court may, before or on granting such leave, require such notices to be given to persons interested, and impose such terms as a condition of granting leave, and make such orders with respect to fixtures, tenant's improvements and other matters arising out of the tenancy, as the Court thinks just.

64. Power to call on official assignee disclaim. The official assignee shall not be entitled to disclaim any property in pursuance of section 62 in any case where an application in writing has been made to the official assignee by any person interested in the property requiring him to decide whether he will disclaim, and the official assignee has for a period of twenty eight days after the receipt of the application, or such extended period as may be allowed by the Court, declined or neglected to give notice that he disclaims the property; and in he case of a contract, if the official assignee, after such application as aforesaid, does not within the said period or extended period disclaim the contract, he shall be deemed to have adopted it.

65. Power for Court to rescind contract. The Court may, on the application of any person who is, as against the official assignee, entitled to the benefit or subject to the burden of a contract made with the insolvent, make an order rescinding the contract on such terms as to payment by or to either party of damages for the non-performance of the contract, or otherwise, as to the Court may seem equitable, and any damages payable under the order to any such person may be proved by him as a debt under the insolvency.

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66. Power for Court to make vesting order in respect of disclaimed property.—(1) The Court may, on the application of any person either claiming any interest in any disclaimed property, or under any liability not discharged by this Act in respect of any disclaimed property, and on hearing such persons as it thinks fit, make an order for the vesting of the property in or delivery thereof to any person entitled thereto, or to whom it may seem just that the same should be delivered by way of compensation for such liability as aforesaid, or a trustee for him and on such terms as the Court thinks just; and on any such vesting order being made, the property comprised therein shall vest accordingly in the person therein named in that behalf without any transfer for the purpose:

Provided always, that, where the property disclaimed is of a leasehold nature, the Court shall not make a vesting order in favour of any person claiming under the insolvent, whether as underlessee or as mortgagee except upon the terms of making such person subject to the same liabilities and obligations as the insolvent was subject to under the lease in respect of the property at the date when the insolvency petition was filed, and any underlessee or mortgagee declining to accept a vesting order upon such terms shall be excluded from all interest in and security upon the property, and if there is no person claiming under the insolvent who is willing to accept an order upon such

terms, the Court shall have power to vest the insolvent's interest in the property in any person liable either personally or in a representative character, and either alone or jointly with the insolvent, to perform the lessee's covenants in such lease, freed and discharged from all states, incumbrances and interests created therein by the insolvent.

(2) The Court may, if it thinks fit, modify the terms prescribed by the foregoing proviso so as to make a person in whose behalf the vesting order may be made subject only to the same liabilities and obligations as if 1he lease had been assigned to him at the date when the insolvency petition was filed, and (if the case so requires) as if the lease had comprised only the property comprised in the vesting order.

67. Persons injured by disclaimer may prove. Any person injured by the operation of a disclaimer under the foregoing provisions shall be deemed to be a creditor of the insolvent to the amount of injury, and may accordingly prove the same as a debt under the insolvency.

68. Duty and powers of official assignee as to realization.—(1) Subject to the provisions of this Act, the official assignee shall, with all convenient speed, realize the property of the insolvent, and for that purpose may—

(*a*) sell all or any part of the property of the insolvent ;

(*b*) give receipts for any money received by him ;

and may, by leave of the Court, do all or any of the following things namely:—

(*c*) carry on the business of the insolvent so far as may be necessary for the beneficial winding up of the same ;

(d) institute, defend or continue any suit or other legal Proceeding relating to the property of the insolvent ;

(*e*) employ a legal practitioner or other agent to take any proceedings or do any business which may be sanctioned by the Court ;

(*f*) accept as the consideration for the sale of any property of the insolvent a sum of money payable at a future time or fully paid shares, debentures or debenture stock in any limited company subject to such stipulations as to security and otherwise as the Court thinks fit ;

(*g*) mortgage or pledge any part of the property of the insolvent for the purpose of raising money for the payment of his debts or for the purpose of carrying on the business ;

(*h*) refer any dispute to arbitration, and compromise all debts, claims and liabilities, on such terms as may be agreed upon ;

(*i*) divide in its existing form amongst the creditors, according to its estimated value, any property which, from its peculiar nature or other special circumstances, cannot readily or advantageously be sold.

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[1](2) The official assignee shall account to the Court and pay over all monies and deal with all securities in such manner as is prescribed or as the Court directs.

Distribution of property

69. Declaration and distribution of dividends.—(1) The official assignee shall, with all convenient speed, declare and distribute dividends amongst the creditors who have proved their debts.

(2) The first dividend (if any) shall be declared and be distributed within [2][one year] after the adjudication, unless the official assignee satisfies the Court that there is sufficient reason for post-poning the declaration to a later date.

(3) Subsequent dividends shall, in the absence of sufficient reason to the contrary, be declared and be payable at intervals of not more than six months.

(4) Before declaring a dividend, the official assignee shall cause notice of his intention to do so to be published in the prescribed manner, and shall also send reasonable notice thereof to each creditor mentioned in the insolvent's schedule who has not proved his debt.

(5) When the official assignee has declared a dividend, he shall send to each creditor who has proved a notice showing the amount of the dividend, and when and how it is payable, and, if required by any creditor, a statement in the prescribed form as to the particulars of the estate.

70. Joint and separate properties. Where one partner in a firm is adjudged insolvent, a creditor to whom the insolvent is indebted jointly with the other partners in the firm or any of them shall not receive any dividend out of the separate property of the insolvent until all the separate creditors have received the full amount of their respective debts.

71. Calculation of dividends.—(1) In the calculation and distribution of dividends, the official assignee shall retain in his hands sufficient assets to meet—

(*a*) debts provable in insolvency and appearing from the insolvent's statements or otherwise to be due to persons resident in places so distance that in the ordinary course of communication they have not had sufficient time to tender their proofs ;

(*b*) debts provable in insolvency the subject of claims not yet determined ;

(*c*) disputed proofs or claims ; and

(*d*) the expenses necessary for the administration of the estate or otherwise.

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[1]In the application of the Act to Karachi, this sub-section has been repealed: *see* the Presidency-towns Insolvency (Born. Amdt.) Act, 1933 (Bom. 20 of 1933), s. 11 and First Sch., as amended by the Karachi Insolvency Law Amdt. Act, 1953 (Bom. 3 of 1935), s. 2.
[2]Subs. by the Presidency-towns Insolvency (Amdt.) Act, 1929 (3 of 1929), s. 2, for "six months".

(2) Subject to the provisions of sub-section (1), all money in hands shall be distributed as dividends.

72. Right of creditor who has not proved debt before declaration of a dividend.- Any creditor who has not proved his debt before the declaration of any dividend or dividends shall be entitled to be paid out of any money for the time being in the hands of the official assignee any dividend or dividends which he may have failed to receive, before that money is applied to the payment of any future dividend or dividends, but he shall not be entitled to disturb the distribution of any dividend declared before his debt was proved by reason that he has not participated therein.

73. Final dividend.—(1) When the official assignee has realized all the property of the insolvent, or so much thereof as can, in his opinion, be realized without needlessly protracting the proceedings in insolvency, he shall, with the leave of the Court, declare a final dividend; but, before so doing, he shall give notice in manner prescribed to the persons whose claims to be creditors have been notified to him but not proved, that, if they do not prove their claims, to the satisfaction of the Court, within the time limited by the notice, he will proceed to make a final dividend without regard to their claims.

(2) After the expiration of the time so limited, or, if the Court on application by any such claimant grants him further time for establishing his claim, then on the expiration of that further time, the property of the insolvent shall be divided among the creditors who have proved their debts, without regard to the claims of any other persons.

[1]**74. No suit for a dividend.** No suit for a dividend shall lie against the official assignee, but, where the official assignee refuses to pay any dividend, the Court may, on the application of the creditor who is aggrieved by such refusal, order him to pay it, and also to pay out of his own money interest thereon at such rate as may be prescribed for the time that it is withheld, and the costs of the application.

75. Power to allow insolvent to manage property, and allowance to insolvent for maintenance or service. - (1) Subject to such conditions and limitations as may be prescribed, the official assignee may appoint the insolvent himself to superintend the management of the property of the insolvent or of any part thereof, or to carry on the trade (if any) of the insolvent, for the benefit of his creditors, and in any other respect to aid in administering the property in such manner and on such terms as the official assignee may direct.

(2) Subject as aforesaid, the Court may, from time to time, make such allowance as it thinks just to the insolvent out of his property, for the support of the insolvent and his family, or in consideration of his services, if he is engaged in winding up his estate, but any such allowance may at any time be varied or determined by the Court.

76. Right of insolvent to surplus.—The insolvent shall be entitled to any surplus remaining after payment in full of his creditors, with interest, as provided by this Act and of the expenses of the proceedings taken thereunder.

[1]S, 74 has been amended in its application to Karachi by the Presidency- towns Insolvency (Bom, Amdt.) Act, 1933 (Bom, 20 of 1933), s.2, as amended by the Karachi Insolvency Amendment Act, 1935 (Born. 3 of 1935), Section 2.

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PART IV

OFFICIAL ASSIGNEES

77. Appointment and removal of official assignees of insolvents estate.—[1][(1) (a) The Provincial Government [2]* * * shall, after-consultation with, and with the concurrence of, the Chief Justice of the High Court [3]* * *, appoint substantively or temporarily a person to the office of official assignee of insolvents' estates for the said Court and may, after the like consultation and with the like concurrence, appoint substantively or temporarily a person or persons to the office of the deputy official assignee for the said Court.

[4]* * * * * * *

[5][(1-A) Subject to rules made under section 112, the deputy official assignee shall have all the powers and shall discharge all the duties and in exercise of such powers and in the discharge of such duties shall be subject to all the liabilities of the official assignee under this Act.]

(2) Every official assignee [5][and every deputy official assignee] shall give such security and shall be subject to such rules and shall act in such manner as may be prescribed.

[6]* * * * * * *

78. Power to administer oath. An official assignee may, for the purpose of affidavits verifying proofs, petitions or other proceedings under this Act, administer oaths.

79. Duties as regards the insolvent's conduct.—(1) The duties of an official assignee shall have relation to the conduct of the insolvent as well as to the administration of his estate.

(2) In particular it shall be the duty of the official assignee—

(*a*) to investigate the conduct of the insolvent and to report to the Court upon any application for discharge, stating whether there is reason to believe that the insolvent has committed any act which constitutes an offence under this Act or under sections 421 to 424 of the Pakistan Penal Code (XLV of 1860) in connection with his insolvency or which would justify the Court in refusing, suspending or qualifying an order for his discharge;

(*b*) to make such other reports concerning the conduct of the insolvent as the Court may direct or as may be prescribed; and

(*c*) to take such part and give such assistance in relation to the prosecution of any fraudulent insolvent as the Court may direct or as may be prescribed.

80. Duty to furnish list of creditors. The official assignee shall, whenever required by any creditor so to do and on payment by the creditor of the prescribed fee, furnish and send to the creditor by post a list of the creditors showing in the list the amount of the debt due to each of the creditors.

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[1]The original sub-section (1) was subs. by A.O., 1937. Subsequently, paragraph (a) of sub-section (1) as subs. by A.O., 1937 was omitted, and paragraphs (b) and (c) of that sub-section were re-lettered to read as paragraphs (a) and (b), by A.O.,1949.

[2]The original words "of Bengal" as amended by A.O., 1949 and A.O., 1961, Art. (*with effect from the 23m March,* 1956), have been omitted by the Insolvency (Dacca and the Federal Territory of Karachi) (Amdt.) Ordinance, 1962 (46 of 1962), s. 2.

[3]The original words "at Calcutta" as amended by A.O., 1949 and A.O., 1961, Art. 2 (*with effect from the 23rd March, 1956*), have been omitted by Ordinance 46 of 1962, s. 2.

[4]The original clause (b) as amended by A.O., 1949 and the Central Laws (Statute Reform) Ordinance, 1960 (21 of 1960), s. 3. and 2nd Sch. (*with effect from the 14th October, 1955*), has been omitted by Ordinance 46 of 1962, s. 2.

[5]Ins. by the Insolvency Law (Amdt.) Act, 1930 (10 of 1930), s. 4.

[6]Sub-section (3) omitted by A.O., 1949.

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81. Remuneration.—(1) Such remuneration shall be paid to the official assignee as may be prescribed.

(2) No remuneration whatever beyond that referred to in sub-section (1) shall be received by an official assignee as such.

[1]**82. Misfeasance.** The Court shall call the official assignee to account for any misfeasance, neglect or omission which may appear in his accounts or otherwise, and may require the official assignee to make good any loss which the estate of the insolvent may have sustained by reason of the misfeasance, neglect or omission.

[1]**83. Name under which to sue or be sued**. The official assignee may sue and be sued by the name of "the official assignee of the property of, an insolvent," inserting the name of the insolvent, and by that name may hold property of every description, make contracts, enter into any engagements binding on himself and his successors in office, and do all other acts necessary or expedient to be done in the execution of his office.

[2]**84. Office vacated by insolvency.** If an order of adjudication is made against an official assignee, he shall thereby vacate the office of official assignee.

85. Discretionary powers and control thereof.—(1) Subject to the provisions of this Act and to the directions of the Court, the official assignee shall in the administration of the property of the insolvent and in the distribution thereof amongst his creditors, have regard to any resolution that may be passed by the creditors at a meeting.

(2) The official assignee may, from time to time, summon meetings of the creditors for the purpose of ascertaining their wishes, and it shall be his duty to summon meetings at such times as the creditors, by resolution at any meeting, or the Court may direct, or whenever requested in writing to do so by one-fourth in value of the creditors who have proved.

(3) The official assignee may apply to the Court for directions in relation to any particular matter arising under the insolvency.

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(4) Subject to the provisions of this Act, the official assignee shall use his own discretion in the management of the estate and its distribution among the creditors.

86. Appeal to Court. If the insolvent or any of the creditors or any other person is aggrieved by any act or decision of the official assignee, he may appeal to the Court, and the Court may confirm, reverse or modify the act or decision complained of, and make such order as it thinks just.

87. Control of Court.—(1) If any official assignee does not faithfully perform his duties and duly observe all the requirements imposed on him by any enactment, rules or otherwise, with respect to the performance of his duties, or if any complaint is made to the Court by any creditor in regard thereto, the Court shall enquire into the matter and take such action thereon as may be deemed expedient.

(2) The Court may at any time require any official assignee to answer any enquiry made by it in relation to any insolvency in which he is engaged, and may examine him or any other person on oath concerning the insolvency.

[1]Ss. 82 and 83 have been subs. in the application of the Act to Karachi, *see* the Presidency-towns Insolvency (Bom. Amdt.) Act, 1933 (Bom. 20 of, 1933), s. 4. as amended by the Karachi Insolvency Law (Amdt.) Act, 1935 (Bom. 3 of 1935), s. 2.

[2]In the application of the Act to Karachi, this section has been omitted by the Karachi Insolvency Law Amdt. Act, 1935 (Bom. 3 of 1935), s. 11.

[1](3) The Court may also direct an investigation to be made of the books and vouchers of the official assignee.

PART V
COMMITTEE OF INSPECTION

88. Committee of inspection. The Court may, if it so thinks fit, authorize the creditors who have proved to appoint from among the creditors or holders of general proxies or general powers-of-attorney from such creditors, a committee of inspection for the purpose of superintending the administration of the insolvent's property by the official assignee:

Provided that a creditor, who is appointed a member of a committee of inspection, shall not be qualified to act until he has proved.

89. Control of committee of inspection over official assignee. The committee shall have such powers of control over the proceedings of the official assignee as may be prescribed.

PART VI
PROCEDURE

90. Powers of the Court.—(1) In proceedings under this Act the Court shall have the like powers and follow the like procedure as it has and follows in the exercise of its ordinary original civil jurisdiction :

Provided that nothing in this sub-section shall in any way limit the jurisdiction conferred on the Court under this Act.

(2) Subject to the provisions of this Act and rules, the costs of and incidental to any proceeding in the Court shall be in the discretion of the Court.

(3) The Court may at any time adjourn any proceedings before it upon such terms, if any, as it thinks fit to impose.

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(4) The Court may at any time amend any written process or proceeding under this Act upon such terms, if any, as it thinks fit to impose.

(5) Where by this Act or by rules the time for doing any act or thing is limited, the Court may extend the time either before or after the expiration thereof, upon such terms, if any, as the Court thinks fit to impose.

(6) Subject to rules, the Court may in any matter take the whole or any part of the evidence either *viva voce* or by interrogatories, or upon affidavit, or by commission.

(7) For the purpose of approving a composition or scheme by joint debtors the Court may, if it thinks fit, and on the report of the official assignee that it is expedient so to do, dispense with the public examination of one of the joint debtors if he is unavoidably prevented from attending the examination by illness or absence abroad.

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[1]In the application of the Act to Karachi this sub-section has been repealed: *see* the Presidency-towns Insolvency (Bom. Amdt.) . Act, 1933 (Bom. 20 of 1933), s. 11 and First Sch. as amended by the Karachi Insolvency Law Amdt. Act, 1935 (Born. 3 of 1935), s. 2.

[1]* * * * * * *

91. Consolidation of petitions. Where two or more insolvency petitions are presented against the same debtor or against joint debtors, or where joint debtors file separate petitions, the Court may consolidate the proceedings or any of them on such terms as the Court thinks fit.

92. Power to change carriage of petition. Where the petitioner does not proceed with due diligence on his petition, the Court may substitute as petitioner any other creditor to whom the debtor is indebted in the amount required by this Act in the case of a petitioning creditor.

93. Continuance of proceedings on death of debtor. If a debtor by or against whom an insolvency petition has been presented dies, the proceedings in the matter shall, unless the Court otherwise orders, be continued as if he were alive.

94. Power to stay proceedings. The Court may, at any time, for sufficient reason, make an order staying the proceedings under an insolvency petition, either altogether or for a limited time, on such terms and subject to such conditions as the Court thinks just.

95. Power to present petition against a partner. Any creditor whose debt is sufficient to entitle him to present an insolvency petition against all the partners in a firm may present a petition against any one or more partners in the firm without including the others.

96. Power to dismiss petition against some respondents only. Where there are more respondents than one to a petition, the Court may dismiss the petition as to one or more of them without prejudice to the effect of the petition as against the other or others of them.

97. Separate insolvency petitions against partners. Where an order of adjudication has been made on an insolvency petition against or by one partner in a firm, any other insolvency petition against or by a partner in the same firm shall be presented in or transferred to the Court in which the first-mentioned petition is in course of prosecution; and such Court may give such directions for consolidating the proceedings under the petitions as it thinks just.

98. Suits by official assignee and insolvent's partner.—(1) Where a partner in a firm is adjudged insolvent, the Court may authorize the official assignee to continue or commence and carry on any suit or other proceeding in his name and that of the insolvent's partner; and any release by the partner of the debt or demand to which the proceeding relates shall be void.

(2) Where application for authority to continue or commence any suit or any other proceeding has been made under sub-section (1), notice of the application shall be given to the insolvent's partner, and he may show cause against it, and on his application the Court may, if it thinks fit, direct that he shall receive his proper share of the proceeds of the proceedings, and if he does not claim any benefit therefrom he shall be indemnified against costs in respect thereof as the Court directs.

99. Proceedings in partnership name.- (1) Any two or more persons, being partners, or any person carrying on business under a partnership name, may take proceedings or be proceeded against under this Act in the name of the firm :

[1]The original sub-section (8) as amended by the Insolvency (Amdt.) Act, 1926 (9 of 1926), s. 8 and A.O., 1949, has been omitted by the Central Laws (Statute Reform) Ordinance, 1960 (21 of 1960), s. 3 and 2nd Sch. (*with effect from the 14th October, 1955*).

Provided that in that case the Court may, on application by any person interested, order the names of the persons who are partners in the firm, or the name of the person carrying on business under a partnership name, to be disclosed in such manner and verified on oath or otherwise, as the Court may direct.

(2) In the case of a firm in which one partner is an infant, an adjudication order may be made against the firm other than the infant partner.

100. Warrants of Insolvency Courts.—(1) A warrant of arrest issued by the Court may be executed in the same manner and subject to the same conditions as a warrant of arrest issued under the Code of Criminal Procedure, 1898 (V of 1898), may be executed.

(2) A warrant to seize any part of the property of an insolvent, issued by the Court under section 59, sub-section (1), shall be in the form prescribed, and sections 77 (2), 79, 82, 83, 84 and 102 of the said Code shall, so far as may be, apply to the execution of such warrant.

(3) A search-warrant issued by the Court under section 59, sub-section, (2), may be executed in the same manner and subject to the same conditions as a search-warrant for property supposed to be stolen may be executed under the said Code.

PART VII
LIMITATION

101. Limitation of appeals. The period of limitation for an appeal from any act or decision of the official assignee, or from an order made by an officer of the Court empowered under section 6, shall be twenty days from the date of such act, decision or order, as the case may be.

PART VIII
PENALTIES

102. Undischarged insolvent obtaining credit. An undischarged insolvent obtaining credit to the extent of fifty rupees or upwards from any person without informing such person that he is an undischarged insolvent shall, on conviction by a Magistrate, be punishable with imprisonment for a term which may extend to six months, or with fine, or with both.

103. Punishment of insolvent for certain offences. Any person adjudged insolvent who—

(a) fraudulently with the intent to conceal the state of his affairs or to defeat the objects of this Act,—

(*i*) has destroyed or otherwise wilfully prevented or purposely withheld the production of any book, paper or writing relating to such of his affairs as are subject to investigation under this Act, or

(*ii*) has kept or caused to be kept false books, or

(*iii*) has made false entries in or withheld entries from, or wilfully altered or falsified, any book, paper or writing relating to such of his affairs as are subject to investigation under this Act, or

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(b) fraudulently with intent to diminish the sum to be divided amongst his creditors or of giving an undue preference to any of the said creditors,—

(*i*) has discharged or concealed any debt due to or from him, or

(*ii*) has made away with, charged, mortgaged or concealed any part of his property of what kind soever,

shall on conviction be punishable with imprisonment for a term which may extend to two years.

[1]**[l03A Disqualifications of insolvent.—(**1) Where a debtor is adjudged or readjudged insolvent under this Act, he shall, subject to the provisions of this section, be disqualified from—

(*a*) being appointed or acting as a Magistrate ;

(*b*) being elected to any office of any local authority where the appointment to such office is by election, or holding or exercising any such office to which no salary is attached ; and

(*c*) being elected or sitting or voting as a member of any local authority.

(2) The disqualifications which an insolvent is subject to under this section shall be removed, and shall cease if—

(*a*) the order of adjudication is annulled under sub-section (1) of section 21, or

(*b*) he obtains from the Court an order of discharge, whether absolute or conditional, with a certificate that his insolvency was caused by misfortune without any misconduct on his part.

(3) The Court may grant or refuse such certificate as it thinks fit.]

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[2]**[104. Procedure on charge under section 103.** (1) Where the Court is satisfied, after such preliminary inquiry, if any, as it thinks necessary, that there is ground for inquiring into any offence referred to in section 103 and appearing to have been committed by the insolvent, the Court may record a finding to that effect and make a complaint of the offence in writing to [3]* * * a Magistrate of the first class having jurisdiction, and such Magistrate shall deal with such complaint in the manner laid down in the Code of Criminal Procedure, 1898 (V of 1898).

(2) Any complaint made by the Court under sub-section (1) may be signed by such officer of the Court as the Court may appoint in this behalf.]

105. Criminal liability after discharge or composition. Where an insolvent has been guilty of any of the offences specified in section 102 or section 103, he shall not be exempt from being proceeded against therefor by reason that he has obtained his discharge or that a composition or scheme of arrangement has been accepted or approved.

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[1]S. 103A. ins. by the Presidency-towns Insolvency (Amdt.) Act, 1920 (11 of 1920), s.2.
[2]Subs. by the Insolvency (Amdt.) Act, 1926 (9 of 1926), s. 9 for the original section 104.
[3]The words "a Presidency Magistrate or" omitted by A.O., 1949.

PART IX
SMALL INSOLVENCIES

106. Summary administration in small cases.—(1) Where the Court is satisfied by affidavit or otherwise, or the official assignee reports to the Court, that the property of an insolvent is not likely to exceed in value three thousand rupees or such other less amount as may be prescribed, the Court may make an order that the insolvent's estate be administered in a summary manner, and thereupon the provisions of this Act shall be subject to the following modifications, namely:—

(*a*) no appeal shall lie from any order of the Court, except by leave of the Court ;

(*b*) no examination of the insolvent shall be held except on the application of a creditor or the official assignee ;

(*c*) the estate shall, where practicable, be distributed in a single dividend;

(*d*) such other modifications as may be prescribed with the view of saving expense and simplifying procedure :

Provided that nothing in this section shall permit the modification of the provisions of this Act relating to the discharge of the insolvent.

(2) The Court may at any time, if it thinks fit, revoke an order for the summary administration of an insolvent's estate.

PART X
SPECIAL PROVISIONS

107. Exemption of corporation, etc., from insolvency proceedings. No insolvency petition shall be presented against any corporation or against any association or company registered under any enactment for the time being in force.

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108. Administration in insolvency of estate of person dying insolvent.—(1) Any creditor of a deceased debtor whose debt would have been sufficient to support an insolvency petition against the debtor, had he been alive, may present to the Court within the limits of whose ordinary original civil jurisdiction the debtor resided or carried on business for the greater part of the six months immediately prior to his decease, a petition in the prescribed form praying for an order for the administration of the estate of the deceased debtor under this Act.

(2) Upon the prescribed notice being given to the legal representative of the deceased debtor, the Court may, upon proof of the petitioner's debt, unless the Court is satisfied that there is a reasonable probability that the estate will be sufficient for the payment of the debts owing by the deceased, make an order for the administration in insolvency of the deceased debtor's estate, or may upon cause shown dismiss the petition with or without costs.

(3) A petition for administration under this section shall not be presented to the Court after proceedings have been commenced in any Court of justice for the administration of the deceased debtor's estate; but that Court may in that case, on proof that the estate is insufficient to pay its debts, transfer the proceedings to the Court exercising jurisdiction in insolvency under this Act, and thereupon the last-mentioned Court may make an order for the administration of the estate of the

deceased debtor, and the like consequences shall ensue as under an administration order made on the petition of a creditor.

109. Vesting of estate and mode of administration.—(1) Upon an order being made for the administration of a deceased debtor's estate under section 108, the property of the debtor shall vest in the official assignee of the Court, and he shall forthwith proceed to realize and distribute the same in accordance with the provisions of this Act.

(2) With the modification hereinafter mentioned, all the provisions of Part III, relating to the administration of the property of an insolvent, shall, so far as the same are applicable, apply to the case of such administration order in like manner as to an order of adjudication under this Act.

(3) In the administration of the property of the deceased debtor under an order of administration, the official assignee shall have regard to any claims by the legal representative of the deceased debtor to payment of the proper funeral and testamentary expenses incurred by him in and about the debtor's estate; and those claims shall be deemed a preferential debt under the order, and be payable in full, out of the debtor's estate, in priority to all other debts.

(4) If, on the administration of the deceased debtor's estate, any surplus remains in the hands of the official assignee after payment in full of all the debts due from the debtor, together with the costs of the administration and interest as provided by this Act in case of insolvency, such surplus shall be paid over to the legal representative of the deceased debtor's estate, or dealt with in such other manner as may be prescribed.

110. Payments of transfer by legal representatives.—(1) After notice of the presentation of a petition under section 108 no payment or transfer of property made by the legal representative shall operate as a discharge to him as between himself and the official assignee.

(2) Save as aforesaid nothing in section 108 or section 109 or this section shall invalidate any payment made or act or thing done in good faith by the legal representative or by a District Judge acting under the powers conferred on him by section [1][54 of the Administrator-General's Act, 1913 (III of 1913)] before the date of the order for administration.

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111. Saving of jurisdiction of Administrator General. The provisions of sections 108, 109 and 110 shall not apply to any case in which probate or letters of administration to the estate of a deceased debtor have been granted to an Administrator-General.

PART IX
RULES

[2]**112. Rules.**—(1) The Courts having jurisdiction under this Act may from time to time make rules for carrying into effect the objects of this Act.

(2) In particular and without prejudice to the generality of the foregoing power, such rules may provide for and regulate—

[1]Subs. by the Federal Laws (Revision and Declaration). Ordinance, 1981 (27 of 1981), s. 3 and Second Sch., for "64 of the Administrator-General's Act, 1874".

[2]The section has been amended in its application to Karachi by the Presidency-towns insolvency (Bom. Amdt.) Act, 1933 (Bom. 20 of 1933), s. 6, as amended by the Karachi Insolvency Law Amdt. Act, 1935 (Bom.3 of 1935), s. 2.

(*a*) the fees and percentages to be charged under this Act and the manner in which the same are to be collected and accounted for and the account to which they are to be paid;

(*b*) the investment, whether separately or collectively, of unclaimed dividends, balances and other sums appertaining to the estates of insolvent debtors whether adjudicated insolvent under this or any former enactment; and the application of the proceeds of such investment;

(*c*) the proceedings of the official assignee in taking possession of and realising the estates of insolvent debtors ;

[1]* * * * * * *

(*e*) the receipts, payments and accounts of the official assignee ;

(*f*) the audit of the accounts of the official assignee ;

(*g*) the payment [2]* * * of the costs of the audit of his accounts out of the proceeds of the investments in his hands ;

(*h*) the payment of the costs incurred in the prosecution of fraudulent debtors and in legal proceedings taken by the official assignee under the direction of the Court out of the proceeds aforesaid ;

(*i*) the payment of any civil liability incurred by an official assignee acting under the order or direction of the Court ;

(*j*) the proceedings to be taken in connection with proposals for composition and schemes of arrangement with the creditors of insolvent debtors ;

(*k*) the intervention of the official assignee at the hearing of applications and matters relating to insolvent debtors and their estates ;

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[3][(*kk*) filing of lists of creditors and debtors and the affording of assistance to the Court by a petitioning debtor ;]

(*l*) the examination by the official assignee of the books and papers of account of undischarged insolvent debtors ;

(*m*) the service of notices in proceedings under this Act ;

(*n*) the appointment, meetings and procedure of committees of inspection ;

(*o*) the conduct of proceedings under this Act in the name of a firm ;

(*p*) the forms to be used in proceedings under this Act ;

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[1]Cl. (*d*) omitted by A.O., 1937.
[2]The words "of the remuneration of the official assignee, of the costs, charges and expenses of his establishment, and" omitted, *ibid.*
[3]Clause (kk) ins. by the Presidency-towns Insolvency (Amdt.) Act, 1927 (19 of 1927), s. 5

(*q*) the procedure to be followed in the case of estates to be administered in a summary manner ;

(*r*) the procedure to be followed in the case of estates of deceased persons to be administered under this Act ;

[1][(*s*) the distribution of work between the official assignee and his deputy or deputies ;]

[2]* * * * * * *

[3]**[113. Sanction to rules.** Rules made under the provisions of this Part shall be subject to the previous sanction of the Provincial Government.]

114. Publication of rules. Rules so made and sanctioned shall be published [4]* * * in the [5][official Gazette], [6]* * *, and shall thereupon have the same force and effect with regard to proceedings under this Act in the Court which made them as if they had been enacted in this Act.

PART XII
SUPPLEMENTAL

115. Exemption from duty of transfers, etc., under this Act.—(1) Every transfer, mortgage, assignment, power-of-attorney, proxy paper, certificate, affidavit, bond or other proceedings, instrument or writing whatsoever before or under any order of the Court, and any copy thereof, shall be exempt from payment of any stamp or other duty whatsoever.

(2) No stamp-duty or fee shall be chargeable for any application made by the official assignee to the Court under this Act, or for the drawing and issuing of any order made by the Court on such application.

116. The Gazette to be evidence.—(1) A copy of the official Gazette containing any notice inserted in pursuance of this Act shall be evidence of the facts stated in the notice.

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(2) A copy of the official Gazette containing any notice of an order of adjudication shall be conclusive evidence of the order having been duly made, and of its date.

117. Swearing of affidavits. Any affidavit may be used in a Court having jurisdiction under this Act if it is sworn—

(a) in [7][Pakistan], before–

(*i*) any Court or Magistrate, or

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[1]Clause (s) ins. by the Insolvency Law (Amdt.) Act, 1930 (10 of 1930), section 5.
[2]Certain words which were inserted by A.O., 1937, have been omitted by A.O., 1949.
[3]Subs. by A.O., 1937, for the original section 113.
[4]The words "in the Gazette of India or" omitted, *ibid.*
[5]Subs. *ibid.*, for "local official Gazette".
[6]The words "as the case may be" omitted, *ibid.*
[7]Subs. by the Central Laws (Statute Reform) Ordinance, 1960 (21of 1960), s. 3 and 2nd Sch. (*with effect from the 14th October, 1955*), for "the Provinces and the Capital of the Federation" which had been subs. by A. O., 1949, for "British India".

(*ii*) any officer or other person appointed to administer oaths under the Code of Civil Procedure, 1908 (V of 1908) ;

(b) in England, before any person authorized to administer oaths in His Majesty's High Court of Justice, or in the Court of Chancery of the County Palatine of Lancaster, or before any Registrar of a Bankruptcy Court or before any officer of a Bankruptcy Court authorized in writing in that behalf by the Judge of the Court or before a Justice of the Peace for the county or place where it is sworn ;

(c) in Scotland or in Ireland, before a Judge Ordinary, Magistrate or Justice of the Peace ; and

(d) in any other place, before a Magistrate or Justice of the Peace or other person qualified to administer oaths in that place (he being certified to be a Magistrate or Justice of the Peace, or qualified as aforesaid, by a [1][Minister, Consul or Political Agent accredited by [2][the President] or by a notary public).

118. Formal defect not to invalidate proceedings.—(1) No proceeding in insolvency shall be invalidated by any formal defect or by any irregularity unless the Court before which an objection is made to the proceeding is of opinion that substantial injustice has been caused by the defect or irregularity, and that the injustice cannot be remedied by any order of that Court.

(2) No defect or irregularity in the appointment of an official assignee or member of a committee of inspection shall vitiate any act done by him in good faith.

119. [*Application of Trustee Act to insolvency of trustee.*] *Omitted by the Federal Laws* (*Revision and Declaration*) *Ordinance,* 1981 (*XXVII of* 1981), s. 3 *and Second Schedule.*

120. Certain provisions to bind the Government. Save as herein provided, the provisions of this Act relating to the remedies against the property of a debtor, the priorities of debts, the effect of a composition or scheme of arrangement, and the effect of a discharge shall bind the [3][Government].

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121. [*Savings for existing rights of audience.*] *Omitted by the Federal Laws* (*Revision and Declaration*) *Ordinance,* 1981 (*XXVII of* 1981), s. 3 *and Second Schedule.*

[4]**122. Lapse and credit to Government of unclaimed dividends.** Where the official assignee has under his control any dividend which has remained unclaimed for fifteen years from the date of declaration or such less period as may be prescribed, he shall pay the same to the account and credit of [5][the Provincial Government], unless the Court otherwise directs.

123. Claims to monies credited to Government under section 122. Any person claiming to be entitled to any monies paid to the account and credit of [5][the Provincial Government] under section 122, may apply to the Court for an order for payment to him of the same; and the Court, if satisfied that the person claiming is entitled, shall make an order for payment to him of the sum due:

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[1]Subs. by A.O., 1949, for "British Minister or British Consul or British Political Agent".
[2]Subs. by A.O., 1961, Art. 2 and Sch., for "His Majesty or the Governor General" (*with effect from the 23rd March, 1956*).
[3]Subs. *ibid.*, Art. 2, for "Crown" (*with effect from the 23rd March, 1956*).
[4]This section has been amended in its application to Karachi by the Presidency-towns Insolvency (Bom. Amendment) Act, 1933 (Bom. 20 of 1933), s.8, as amended by the Karachi Insolvency Law Amendment Act, 1935 (Bom. 3 of 1935), s. 2, *see* Bom. Code.
[5]Subs. by A.O., 1937, for "the G. of I.".

Provided that, before making an order for the payment of a sum which has been carried to the account and credit of [1][the Provincial Government], the Court shall cause a notice to be served on such officer as [2][the Provincial Government] may appoint in this behalf, calling on the officer to show cause, within one month from the date of the service of the notice, why the order should not be made.[3]

124. Access to insolvent's books.—(1) No person shall, as against the official assignee, be entitled to withhold possession of the books of accounts belonging to the insolvent or to set up any lien thereon.

(2) Any creditor of the insolvent may, subject to the control of the Court, and on payment of such fee, if any, as may be prescribed, inspect at all reasonable times, personally or by agent, any such books in the possession of the official assignee.

125. Fees and percentages. Such fees and percentages shall be charged for and in respect of proceedings under this Act as may be prescribed.

126. Courts to be auxiliary to each other. All Courts having jurisdiction under this Act shall make such orders and do such things as may be necessary to give effect [4][to the provisions of the Provincial Insolvency Act, 1920 (V of 1920)].

[5]**127.** [*Saving.*] *Omitted* by *the Federal Laws* (*Revision and Declaration*) *Ordinance,* 1981 (*XXVII of* 1981), *s.* 3 *and Second Schedule.*

THE FIRST SCHEDULE
(*See* section 26)
MEETINGS OF CREDITORS

1. Meetings of creditors. The official assignee may at any time summon a meeting of creditors, and shall do so whenever so directed by the Court or by the creditors by resolution at any meeting or whenever requested in writing by one-fourth in value of the creditors who have proved.

2. Summoning of meetings. Meetings shall be summoned by sending notice of the time and place thereof to each creditor at the address given in his proof, or, if he has not proved, at the address given in the insolvent's schedule, or such other address as may be known to the official assignee.

3. Notice of meetings. The notice of any meeting shall be sent off not less than seven days before the day appointed for the meeting and may be delivered personally or sent by prepaid post letter, as may be convenient. The official assignee may, if he thinks fit, also publish the time and place of any meeting in any local newspaper or in the [6][official Gazette].

4. Duty of insolvent to attend if required. It shall be the duty of the insolvent to attend any meeting which the official assignee may, by notice, require him to attend, and any adjournment thereof. Such notice shall be either delivered to him personally or sent to him at his address by post at least three days before the date fixed for the meeting.

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[1]Subs. by A.O., 1937, for "the G. of I.".
[2]Subs. *ibid.,* for "the G. G. in C.".
[3]For ss. 123A and 123B, ins. after s. 123 in its application to Karachi by the Presidency-towns Insovlvency (Bom. Amdt.) Act, 1933 (Bom. 20 of 1933), s. 10, as amended by the Karachi Insolvency Law Amdt. Act, 1935 (Bom. 3 of 1935), s. 2, *see* Bom. Code.
[4]Subs. by the Federal Laws (Revision and Declaration), Ordinance, 1981 (27 of 1981), s. 3 and Second Sch., for "to section 118 of the Bankruptcy Act, 1883, and to section 50 of the Provincial Insolvency Act, 1907".
[5]This section was amended by the Repealing Amending and Act, 1914 (10 of 1914), s. 3 and Second Schedule.
[6]Subs. by A.O., 1937, for "local official Gazette",

5. Proceedings not to be avoided for non receipt of notice. The proceedings held and resolutions passed at any meeting shall unless the Court otherwise orders, be valid notwithstanding that any creditor has not received the notice sent to him.

6. Proof of issue of notice. A certificate of the official assignee that the notice of any meeting has been duly given shall be sufficient evidence of such notice having been duly sent to the person to whom the same was addressed.

7. Costs of meeting. Where on the request of creditors the official assignee summons a meeting, there shall be deposited with the written request the sum of five rupees for every twenty creditors for the costs of summoning the meeting, including all disbursements: Provided that the official assignee may require such further sum to be deposited as in his opinion shall be sufficient to cover the costs and expenses of the meeting.

8. Chairman. The official assignee shall be the chairman of any meeting.

9. Right to vote. A creditor shall not be entitled to vote at a meeting unless he has duly proved a debt provable in insolvency to be due to him from the insolvent and the proof has been duly lodged one clear day before the time appointed for the meeting.

10. No vote in respect of certain debts. A creditor shall not vote at any such meeting in respect of any unliquidated or contingent debt, or any debt the value of which is not ascertained.

11. Secured creditor.—For the purpose of voting, a secured creditor shall, unless he surrenders his security, state in his proof the particulars of his security, the date when it was given, and the value at which he assesses it, and shall be entitled to vote only in respect of the balance, if any, due to him after deducting the value of his security. If he votes in respect of his whole debt, he shall be deemed to have surrendered his security, unless the Court on application is satisfied that the omission to value the security has arisen from inadvertence.

12. Proof in respect of negotiable instruments. Where a creditor seeks to prove in respect of a bill of exchange, promissory note, or other negotiable instrument or security on which the insolvent is liable, such bill of exchange, note, instrument or security must, subject to any special order of the Court made to the contrary, be produced to the official assignee before the proof can be admitted for voting.

13. Power to require creditor to give up security. It shall be competent to the official assignee, within twenty-eight days after a proof estimating the value of a security has been made use of in voting at any meeting, to require the creditor to give up the security for the benefit of the creditors generally, on payment of the value so estimated.

14. Proof by partner. If one partner in a firm is adjudged insolvent, any creditor to whom that partner is indebted jointly with the other partners in the firm, or any of them, may prove his debt for the purpose of voting at any meeting of creditors and shall be entitled to vote thereat.

15. Power of official assignee to admit or reject proof. The official assignee shall have power to admit or reject a proof for the purpose of voting, but his decision shall be subject to appeal to the Court. If he is in doubt whether the proof of a creditor should be admitted or rejected, he shall mark the proof as objected to, and shall allow the creditor to vote, subject to the vote being declared invalid in the event of the objection being sustained.

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16. Proxy. A creditor may vote either in person or by proxy.

17. Instrument of proxy. Every instrument of proxy shall be in the prescribed form and shall be issued by the official assignee.

18. General proxy. A creditor may give a general proxy to his attorney or to his manager or clerk, or any other person in his regular employment. In such case the instrument of proxy shall state the relation in which the person to act thereunder stands to the creditor.

19. Proxy to be deposited one day before date of meeting. A proxy shall not be used unless it is deposited with the official assignee one clear day before the time appointed for the meeting at which it is to be used.

20. Official assignee as proxy. A creditor may appoint the official assignee to act as his proxy.

21. Adjournment of meeting. The official assignee may adjourn the meeting from time to time and from place to place, and no notice of the adjournment shall be necessary.

22. Minute of proceedings. The official assignee shall draw up a minute of the proceedings at the meeting and shall sign the same.

THE SECOND SCHEDULE

(*See* section 48)

PROOF OF DEBTS

Proofs in ordinary cases

1. Time for lodging proof. Every creditor shall lodge the proof of his debt as soon as may be after the making of an order of adjudication.

2. Mode of lodging proof. A proof may be lodged by delivering or sending by post in a registered letter to the official assignee an affidavit verifying the debt.

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3. Authority to make affidavit. The affidavit may be made by the creditor himself or by some person authorized by or on behalf of the creditor. If made by a person so authorized, it shall state his authority and means of knowledge.

4. Contents for affidavit. The affidavit shall contain or refer to a statement of account showing the particulars of the debt, and shall specify the vouchers, if any, by which the same can be substantiated. The official assignee may at any time call for the production of the vouchers.

5. Affidavit to state if creditor holds security. The affidavit shall state whether the creditor is or is not a secured creditor.

6. Cost of proving debts. A creditor shall bear the cost of proving his debt unless the Court otherwise specially orders.

7. Right to see and examine proof. Every creditor who has lodged a proof shall be entitled to see and examine the proofs of other creditors at all reasonable a times.

8. Deduction to be made from proof. A creditor in lodging his proofs shall deduct from his debt all trade discounts, but he shall not be compelled to deduct any discount, not exceeding five per centum on the net amount of his claim, which he may have agreed to allow for payment in cash.

Proof by secured creditors

9. Proof where security realized. If a secured creditor realizes his security, he may prove for the balance due to him, after deducting the net amount realised.

10. Proof where security is surrendered. If a secured creditor surrenders his security to the official assignee for the general benefit of the creditors, he may prove for his whole debt.

11. Proof in other cases. If a secured creditor does not either realize or surrender his security, he shall, before ranking for dividend, state in his proof the particulars of his security, the date when it was given and the value at which he asseses it, and shall be entitled to receive a dividend only in respect of the balance due to him after deducting the value so assessed.

12. Valuation of security.—(1) Where a security is so valued the official assignee may at any time redeem it on payment to the creditor of the assessed value.

(2) If the official assignee is dissatisfied with the value at which a security is assessed, he may require that the property comprised in any security so valued be offered for sale at such times and on such terms and conditions as may be agreed on between the creditor and the official, assignee or as in default of agreement the Court may direct. If the sale is by public auction, the creditor, or the official assignee on behalf of the estate, may bid or purchase :

Provided that the creditor may at any time, by notice in writing, require the official assignee to elect whether he will or will not exercise his power of redeeming the security or requiring it to be realized, and if the official assignee does not, within six months after receiving the notice, signify in writing to the creditor his election to exercise the power, he shall not be entitled to exercise it ; and the equity of redemption, or any other interest in the property comprised in the security which is vested in the official assignee, shall vest in the creditor, and the amount of his debt shall be reduced by the amount at which the security has been valued.

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13. Amendment of valuation. Where a creditor has so valued his security, he may at any time amend the valuation and proof on showing to the satisfaction of the official assignee, or the Court, that the valuation and proof were made *bona fide* on a mistaken estimate, or that the security has diminished or increased in value since its previous valuation; but every such amendment shall be made at the cost of the creditor, and upon such terms as the Court shall order, unless the official assignee shall allow the amendment without application to the Court.

14. Refund of excess received. Where a valuation has been amended in accordance with the foregoing rule, the creditor shall forthwith repay any surplus dividend which he has received in excess of that to which he would have been entitled on the amended valuation, or, as the case may be, shall be entitled to be paid out of any money for the time being available for dividend, any dividend or share of dividend which he has failed to receive by reason of the inaccuracy of the original valuation, before that money is made applicable to the payment of any future dividend, but he shall not be entitled to disturb the distribution of any dividend dec1ared before the date of the amendment.

15. Amendment where security subsequently realized. If a creditor after having valued his security subsequently realizes it, or if it is realized under the provisions of rule 12, the net amount realized shall be substituted for the amount of any valuation previously made by the creditor and shall be treated in all respects as an amended valuation made by the creditor.

16. Exclusion from sharing in dividend. If a secured creditor does not comply with the foregoing rules, he shall be excluded from all share in any dividend.

17. Limit of receipt. Subject to the provisions of rule 12, a creditor shall in no case receive more than sixteen annas in the rupee and interest as provided by this Act.

Taking accounts of property mortgaged, and of the sale thereof

18. Inquiry into mortgage, etc. Upon application by any person claiming to be a mortgagee of any part of the insolvent's real or leasehold estate and whether such mortgage is by deed or otherwise, and whether the same is of a legal or equitable nature, or upon application by the official assignee with the consent of such person claiming to be a mortgagee as aforesaid, the Court shall proceed to inquire whether such person is such mortgagee, and for what consideration and under what circumstances' and if it is found that such person is such mortgagee, and if no sufficient objection appears to the title of such person to the sum claimed by him under such mortgage, the Court shall direct such accounts and inquiries to be taken as may be necessary for ascertaining the principal, interest and costs due upon such mortgage, and of the rents and profits, or dividends, interest or other proceeds received by such person, or by any other person by his order or for his use in case he has been in possession of the property over which the mortgage extends, or any part thereof, and the Court, if satisfied that there ought to be a sale, shall direct notice to be given in such newspapers as the Court thinks fit, when and where, and by whom and in what way, the said premises or property, or the interest therein so mortgaged, are to be sold, and that such sale be made accordingly, and that the Official assignee (unless it is otherwise ordered) shall have the conduct of such sale; but it shall not be imperative on any such mortgagee to make such application. At any such sale the mortgagee may bid and purchase.

19. Conveyance. All proper parties shall join in the conveyance to the purchaser, as the Court directs.

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20. Proceeds of sale. The monies to arise from such sale shall be applied, in the first place, in payment of the costs, charges and expenses of and occasioned by the application to the Court, and of such sale and the commission (if any) of the official assignee, and in the next place in payment and satisfaction, so far as the same extend, of what shall be found due to such mortgagee, for principal, interest and costs, and the surplus of the sale monies (if any) shall then be paid to the official assignee. But if the monies to arise from such sale are insufficient to pay and satisfy what is so found due to such mortgagee, then he shall be entitled to prove as a creditor for such deficiency, and receive dividends thereon rateably with the other creditors but so as not to disturb any dividend then already declared.

21. Proceedings on inquiry. For the better taking of such inquiries and accounts, and making a title to the purchaser, all parties may be examined by the Court upon interrogatories or otherwise as the Court thinks fit, and shall produce before the Court upon oath all deeds, papers, books and writings in their respective custody or power relating to the estate or effects of the insolvent as the Court directs.

Periodical payments

22. Periodical payments. When any rent or other payment falls due at stated periods, and the order of adjudication is made at any time other than one of those periods, the person entitled to the rent or payment may prove for a proportionate part thereof up to the date of the order as if the rent or payment grew due from day to day.

Interest

23. Interest.— (1) On any debt or sum certain whereon interest is not reserved or agreed for, and which is overdue when the debtor is adjudged an insolvent, and which is provable under this Act, the creditor may prove for interest at a rate not exceeding six per centum per annum–

(*a*) if the debt or sum is payable by virtue of a written instrument at a certain time, from the time when such debt or sum was payable to the date of such adjudication ; or

(*b*) if the debt or sum is payable otherwise, from the time when a demand in writing has been made giving the debtor notice that interest will be claimed from the date of the demand until the time of payment to the date of such adjudication.

(2) Where a debt which has been proved in insolvency includes interest or any pecuniary consideration in lieu of interest, the interest or consideration shall, for the purposes of dividend, be calculated at a rate not exceeding six per centum per annum, without prejudice to the right of a creditor to receive out of the debtor's estate any higher rate of interest to which he may be entitled after all the debts proved have been paid in full.

Debt payable at a future times

24. Debt payable in future. A creditor may prove for a debt not payable when the debtor is adjudged an insolvent as if it were payable presently, and may receive dividends equally with the other creditors, deducting therefrom only a rebate of interest at the rate of six per centum per annum, computed from the declaration of a dividend to the time when the debt would have become payable, according to the terms on which it was contracted.

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Admission or rejection of proofs

25. Admission or rejection of proof. The official assignee shall examine every proof and the grounds of the debt, and in writing admit or reject it in whole or in part, or require further evidence in support of it. If he rejects a proof, he shall state in writing to the creditor the grounds of the rejection.

26. Court may expunge proof improperly received. If the official assignee thinks that a proof has been improperly admitted the Court may, on the application of the official assignee, after notice to the creditor who made the proof, expunge the proof or reduce its amount.

27. Power for Court to expunge or reduce proof. The Court may also expunge or reduce a proof upon the application of a creditor if the official assignee declines to interfere in the matter, or in the case of a composition or scheme upon the application of the insolvent.

THE THIRD SCHEDULE.*—[Enactments Repealed.] Rep. by the Repealing and Amending Act, 1914 (X of 1914), s. 3 and Second Schedule.*

Date: 11-09-2024

THE INSPECTION AGENCIES (REGISTRATION AND REGULATION) ORDINANCE, 1981

CONTENTS

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6. Registration of companies, etc.
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THE INSPECTION AGENCIES (REGISTRATION AND REGULATION) ORDINANCE, 1981

ORDINANCE No. XXXVII OF 1981

[25th November, 1981]

An Ordinance to control and regulate the business in relation to pre-shipment inspection of goods exported out of or imported into, Pakistan.

WHEREAS it is expedient to control and regulate the business in relation to pre-shipment inspection of goods exported out of, or imported into, Pakistan and for matters connected therewith or ancillary thereto;

AND WHEREAS the President is satisfied that circumstances exist which render it necessary to take immediate action;

NOW, THEREFORE, in pursuance of the Proclamation of the fifth day of July, 1977, read with the Provisional Constitution Order, 1981 (C. M. L. A. Order No. 1 of 1981), the President is pleased to make and promulgate the following Ordinance:—

1. Short title, extent and commencement.—(1) This Ordinance may be called the , 1981.

(2) It extends to the whole of Pakistan.

(3) It shall come into force on such [1]date as the Federal Government may, by notification in the official Gazette, appoint.

2. Definitions. In this Ordinance, unless there is anything repugnant in the subject or context,—

(a) "Authority" means the Authority appointed under section 3 ;

(b) "buyer", in relation to goods exported out of Pakistan, means a person, company or organisation outside Pakistan who or which has agreed to purchase and import any goods from Pakistan, and, in relation to goods imported into Pakistan, a person, company or organisation in Pakistan registered under the Order ;

(c) "certificate of inspection" means a certificate issued after inspection in the prescribed manner ;

(d) "Council" means the Pakistan Pre-shipment Inspection Council constituted under section 4 ;

[1] i.e., on the 5th January, 1982, by S.R.O. 5(I)/82, dated the 5-1-1982, see Gaz., of P., 1982, Ext., Part II, p. 5.

(e) "inspection", in relation to any goods, means the process of determining by scientific methods of sampling, analysis and testing whether a batch or lot of goods conforms to—

(a) a standard specification applicable to that class of goods laid down by or under any law, or

(b) specifications stipulated in the contract of sale provided it does not come in conflict with the specification laid down by or under any law, or

(c) a sample or samples of that class of goods agreed upon between the seller and the buyer and bearing their signature, initials or any other distinguishing marks ;

(f) "Order" means the Registration (Importers and Exporters) Order, 1952, made under section 3 of the Imports and Exports (Control) Act, 1950 (XXXIX of 1950) ;

(g) "prescribed" means prescribed by rules ;

(h) "registration" means registration under this Ordinance and "registered" shall be construed accordingly ;

(i) "rules" means rules made under this Ordinance ; and

(j) "seller", in relation to goods exported out of Pakistan, means an exporter registered under the Order, and, in relation to goods imported into Pakistan, a person, company or organization supplying goods from outside Pakistan.

3. Appointment of Authority. The Federal Government may, by notification in the official Gazette, appoint an Authority for the purpose of registering companies.

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4. Constitution of the Council, etc.—(1) The Federal Government may, by notification in the official Gazette, constitute a Council to be known as the Pakistan Pre-shipment Inspection Council consisting of such number of members as the Federal Government may determine.

(2) The Council shall render to the Authority such technical assistance in relation to the execution of the provisions of this Ordinance as may be required of it.

5. Prohibition of inspection by an unregistered firm.—No company, organisation or institution, including a foreign company, hereinafter referred to as company, which has not been registered with the authority, shall carry on the business of inspection or issue a certificate of inspection.

6. Registration of companies, etc.—(1) Every company carrying on the business of inspection at the commencement of this Ordinance shall, within three months of such commencement, and every company desiring to commence such business after such commencement [1][or within such further time as the Authority may allow] shall, before commencing business, apply to the Authority for registration on payment of such fee as may be prescribed.

(2) No company shall be registered unless it conforms to the prescribed conditions of registration.

7. Penalties.—Whoever contravenes the provisions of section 5 shall be punishable with imprisonment for a term which may extend to three years, or with fine, or with both.

8. Provisions of the Ordinance and the rules to override other enactments.—(1) The provisions of this Ordinance and the rules shall have effect in relation to goods exported out of, or imported into, Pakistan notwithstanding any provisions relating to quality control or buyer's acceptance inspection prior to the export of such goods contained in any other law for the time being in force or in any instrument having effect by virtue of any such law.

(2) All contracts embodying specification of goods signed before the commencement of this Ordinance shall remain valid and shall be fulfilled as such.

(3) If the rules are amended so as to make any changes in the standard specification of any goods, the changes so made shall not affect the contracts made in accordance with the standard specifications existing prior to the changes.

9. Delegation of powers.—The Federal Government may, by notification in the official Gazette, direct that any power exercisable by it under this Ordinance or the rules shall, in relation to such matters and subject to such conditions, if any, as may be specified in the notification, be exercisable also by the Council or such officer or organisation subordinate to it as may be specified in the notification.

10. Power to make rules.—(1) The Federal Government may, by notification in the official Gazette, make rules for carrying out the purposes of this Ordinance.

(2) In particular and without prejudice to the generality of the foregoing power, such rules may provide for—

(a) the procedure of applying for registration;

(b) the conditions of registration ;

(c) the fee to be charged for registration ;

(d) an appellate authority to hear appeal against refusal to register a company ;

(e) the procedure of meetings of the Council ;

(f) the method of consultation with the Council ;

(g) any other matter which is to be or may be prescribed.

(3) The power to make rules conferred by this section shall, except on the first occasion of the exercise thereof, be subject to the condition of consultation with the Council.

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[1] Ins. by the Inspection Agencies (Registration and Regulation) (Amdt.) Ordinance, 1982 (29 of 1982), s. 2.

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THE ISLAMABAD (PRESERVATION OF LANDSCAPE) ORDINANCE, 1966

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THE ISLAMABAD (PRESERVATION OF LANDSCAPE) ORDINANCE, 1966

ORDINANCE NO. III of 1966

[25th *January,* 1966]

AN

ORDINANCE

to provide for the preservation of landscape in Islamabad

WHEREAS it is expedient to provide for the preservation of landscape in Islamabad;

AND WHEREAS clause (4) of Article 131 of the Constitution provides that the Central Legislature shall have power to make laws for the Islamabad Capital Territory with respect to any matter not enumerated in the Third Schedule to the Constitution;

AND WHEREAS the National Assembly is not in session and the President is satisfied that circumstances exist which render immediate legislation necessary;

NOW, THEREFORE, in exercise of the powers conferred by clause (1) of Article 29 of the Constitution read with clause (4) of Article 131 thereof and of all other powers enabling him in that behalf, the President is pleased to make and promulgate the following Ordinance :—

1. Short title, extent and commencement.—(1) This Ordinance may be called the Islamabad (Preservation of Landscape) Ordinance, 1966.

(2) It extends to the Islamabad Capital Territory.

(3) It shall come into force at once.

2. Definitions.—In this Ordinance, unless there is anything repugnant in the subject or context,—

(a) "landscape" includes earth, land, clay, rock, boulders, shingles, pebbles and any other substance over the surface of land, and grass, weeds, bushes, hedges, plants, standing trees, undergrowth and all objects of natural beauty visible to the eye; and

(b) all other words and expressions have the meaning assigned to them in the Capital Development Authority Ordinance, 1960 (XXIII of 1960).

3. Operation of other laws.—The provisions of this Ordinance and the rules made thereunder shall be in addition to and not in derogation of the provisions of the Capital Development Authority Ordinance, 1960 (XXIII of 1960), and the Pakistan Capital Regulation (M.L. Regulation No. 82), and the rules made thereunder, and shall have effect notwithstanding anything inconsistent therewith contained in any other law for the time being in force.

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4. Preservation of landscape.—(1) No person shall remove, destroy, damage or alter anything, or commit any other act if such removal, destruction, damage, alteration or act affects or is likely to affect a landscape injuriously.

(2) This section shall not apply to anything done by, or at the instance or with the permission of, the Authority.

5. Penalty.—Whoever contravenes any provision of this Ordinance or any rules made thereunder, or abets such contravention, shall be punishable with imprisonment for a term which may extend to six months, or with fine which may extend to five thousand rupees, or with both.

6. Power to arrest without warrant.—(1) Any police officer, or any officer appointed in this behalf by the Authority, may, without orders from a Magistrate and without a warrant, arrest any person who has contravened or is found contravening any provision of this Ordinance, or against whom reasonable suspicion exists of having been concerned in the commission of any offence punishable under this Ordinance.

(2) Every officer making an arrest under this section shall, without unnecessary delay, take or send the person arrested before the Magistrate having jurisdiction in the case, or to the officer in charge of the nearest police-station.

7. Cognizance and compounding of offences.— (1) No Court shall take cognizance of any offence punishable under this Ordinance except on a report in writing by the Authority or a person authorised in this behalf by the Authority of the facts constituting such offence.

(2) The Authority or the person authorised may, instead of making a report of an offence under sub-section (1), compound such offence for such sum of money as may be determined by the Authority or the person authorised.

8. Offences to be tried summarily.— An offence punishable under this Ordinance shall be tried in a summary way in accordance with the provisions of the Code of Criminal Procedure, 1898 (Act V of 1898), relating to summary trials.

9. Certains powers for officers of the Authority.—For carrying out the purposes of this Ordinance, the officers of the Authority who may be specified by it in this behalf may—

(a) hold enquiry into offences punishable under this Ordinance, and, in the course of such enquiry, receive and record evidence ;

(b) enter upon any land or in any building for the purpose of any such enquiry ; and

(c) exercise the powers of a Civil Court to compel the attendance of witnesses and the production of documents and material objects.

10. Requisition of police assistance.—Any officer authorised to take any action under this Ordinance may, if he requires police assistance for taking such action, send a requisition to the officer in charge of a police-station who shall, on such requisition, render the assistance required.

11. Certain persons deemed public servants.—Any officer of the Authority or other person, while acting or purporting to act under the provisions of this Ordinance, shall be deemed to be a public servant within the meaning of section 21 of the Pakistan Penal Code.

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12. Indemnity.—No suit or other legal proceeding shall lie against the Authority or any person in respect of anything which is in good faith done or intended to be done under this Ordinance.

13. Bar of Jurisdiction.—No Court or other Authority shall call in question anything done or intended to be done under this Ordinance by or at the instance of the Authority.

14. Power to exempt.—The [1][Federal Government] may, by notification in the official Gazette, exempt any part of the Islamabad Capital Territory or any class of land from the operation of all or any of the provisions of this Ordinance.

15. Power to make rules.—The [1][Federal Government] may, by notification in the official Gazette, make rules for carrying out the purposes of this Ordinance.

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RGN Uploaded Date: 27.03.2024

[1]Subs. by F.A.O., 1975 (P.O. No. 4 of 1975), Art. 2 and Table.

THE ISLAMABAD CAPITAL TERRITORY SHOPS, BUSINESS AND INDUSTRIAL ESTABLISHMENTS (SECURITY) ORDINANCE, 2000

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3. Security of Establishment
4. Penalties
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THE ISLAMABAD CAPITAL TERRITORY SHOPS, BUSINESS AND INDUSTRIAL ESTABLISHMENTS (SECURITY) ORDINANCE, 2000

ORDINANCE No. XXX of 2000

[27th July, 2000]

An Ordinance to provide for the security of shops, business and industrial establishments in the Islamabad Capital Territory

WHEREAS, it is expedient to provide for security of shops, business and industrial establishments in the Islamabad Capital Territory and for matters ancillary thereto;

AND WHEREAS the National Assembly and the Senate stand suspended in pursuance of the Proclamation of Emergency of the fourteenth day of October, 1999, and the Provisional Constitution Order No. 1 of 1999;

AND WHEREAS the President is satisfied that circumstances exist which render it necessary to take immediate action;

NOW, THEREFORE, in pursuance of the Proclamation of Emergency of the fourteenth day of October, 1999, and Provisional Constitution Order No. 1 of 1999, as well as Order No. 9 of 1999, and in exercise of all powers enabling him in that behalf, the President of the Islamic Republic of Pakistan is pleased to make and promulgate the following Ordinance:—

1. Short title, extent and commencement:— (1) This Ordinance may be called the Islamabad Capital Territory Shops, Business and Industrial Establishments (Security) Ordinance, 2000.

(2) It extends to the whole of Islamabad Capital Territory.

(3) It shall come into force at once.

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2. Definitions:— In this Ordinance,—

(a) "establishment" includes—

(i) any bank, money changer or financial institution; and

(ii) any office, firm, company, institution, industrial unit, undertaking, shop or premises used for undertaking any business, trade, manufacture, calling, service, employment or occupation; and

(b) "Government" means the Federal Government.

3. Security of Establishment:— The Government may by order, published in the official Gazette, provide for the regulation and enforcement of measures for the security of the property and persons connected with any establishment.

4. Penalties:— If any person contravenes any order made under this Ordinance he shall be punished with imprisonment for a term which may extend to one month or with fine which may extend to fifteen thousand rupees, or with both.

5. Power to make rules:— The Government may, by notification in the official Gazette, make rules for carrying out the purposes of this Ordinance.

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THE ISLAMABAD CLUB (ADMINISTRATION) ORDINANCE, 1978

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11. Removal of difficulties.

THE ISLAMABAD CLUB (ADMINISTRATION) ORDINANCE, 1978

ORDINANCE No. XXXIII OF 1978

[17th July, 1978]

An Ordinance to provide for the proper administration of the affairs of the Islamabad Club.

[1][WHEREAS the Islamabad Club was established as a social and residential Club for the use, relaxation, convenience and entertainment of the officers of the Federal Government and the members of the diplomatic corps stationed at Islamabad.

AND WHEREAS it is expedient to provide for the proper administration of the affairs of the Islamabad Club;]

AND WHEREAS the President is satisfied that circumstances exist which render it necessary to take immediate action;

Now, THEREFORE, in pursuance of the Proclamation of the fifth day of July, 1977, read with the Laws (Continuance in Force) Order, 1977, *(C.M.L.A. Order No. 1 of 1977)*, and in exercise of all powers enabling him in that behalf, the President is pleased to make and promulgate the following Ordinance:—

1. Short title and commencement.—(1) This Ordinance may be called the Islamabad Club (Administration) Ordinance, 1978.

(2) It shall come into force on such [2]day as the Federal Government may, by notification in the official Gazette, appoint.

2. Definitions. In this Ordinance, unless there is anything repugnant in the subject or context,—

(a) "Administrator" means the Administrator appointed under section 5;

(b) "Company" means the company registered under the Companies Act, 1913 (VII of 1913), under the name of the Islamabad Club;

(c) "Islamabad Club" means the club set up by the company and generally known by that name; and

(d) "Managing Committee" means the Managing Committee set up under section 5.

3. Ordinance to override other laws. This Ordinance shall have effect notwithstanding anything contained in the Companies Act, 1913 (VII of 1913), or any other law for the time being in force.

[1]Subs. by the Islamabad (Club (Administration) (Amdt.) Ordinance, 1980 (16 of 1980), s. 2, for the original paragraph.
[2]*I.e.* the 23rd July, 1978, *see* Notification No. F. 1-2/78 Admn., dated 23rd July, 1978, Gaz. of P., 1978, Ext., (Islamabad), Pt. Ill, p. 249.

4. Dissolution of Company etc., On the commencement of this Ordinance,—

(a) the Company shall stand dissolved;

(b) any person exercising or having the right to exercise immediately before such commencement any power or function in relation to the Islamabad Club shall cease to exercise or to have the right to exercise such power or function;

(c) the administration of the affairs of the Islamabad Club shall vest in the Administrator;

(d) all assets, rights, powers, authorities and privileges, all property, movable and immovable, cash and bank balances, reserve funds, investments and all other interests and rights in, or arising out of, such property, of the Company shall stand transferred to, and vest in, the Administrator;

(e) all debts and liabilities incurred, all obligations undertaken, all contracts entered into, and all agreements made by or with the Company, shall stand transferred to, and be deemed to have been incurred, undertaken, entered into or made, by or with, the Administrator;

(f) any sum payable to, or recoverable by, the Company shall be deemed to be payable to, or recoverable by, the Administrator; and

(g) all suits and other legal proceedings instituted by or against the Company before such commencement shall be deemed to have been instituted by or against the Administrator and may be continued or proceeded with accordingly.

[1][**5. Patron.** The President of Pakistan shall be the Patron of the Islamabad Club.

6. Administrator.—(1) The Federal Government shall appointment an officer of Government drawing pay in a grade not lower than grade 21 in the National Pay Scales to be the Administrator of the Islamabad Club in addition to his duties as such officer.

(2) Unless the Federal Government otherwise directs, the Administrator shall hold office for a period of two years and shall be eligible for reappointment.

(3) The Administrator may, by writing under his hand addressed to the Federal Government, resign his office.

(4) The Administrator shall, subject to any direction issued by the Federal Government, be competent to exercise and perform all such powers and functions as may be necessary for the efficient administration of the affairs of the Islamabad Club.

[1] Subs, by the Islamabad Club (Administration) (Amdt.) Ordinance, 1980 (16 of 1980), s. 3, for the original sections 5 and 6, Section 6 was previously amended by the Islamabad Club (Administration) (Amdt.) Ordinance, 1979 (15 of 1979), s. 2.

6A. Managing Committee.—(1) To aid and advise the Administrator in the performance of his functions, the Federal Government shall constitute a Managing Committee consisting of—

(a) five members, being Service Members of the Islamabad Club, to be nominated by the Federal Government;

(b) three members, being members of the Islamabad Club other than Service Members, to be nominated by the Federal Government; and

(c) one member, being a member of the diplomatic corps in Islamabad, to be nominated by the doyen of that corps.

(2) Unless the Federal Government otherwise directs in the case of a member referred to in clause (a) or clause (b) of sub-section (1), a member of the Managing Committee shall hold office for a period of two years and shall be eligible for re-nomination.

(3) A member of the Managing Committee may, by writing under his hand addressed to the Federal Government, resign his office].

7. Continuance in service employees. Unless the Administrator otherwise directs in any particular case, all the employees of the Company in employment immediately before the commencement of the Ordinance shall continue in their respective employments on the same terms and conditions as were applicable to them immediately before such commencement.

8. Bar of jurisdiction. No court shall grant any injunction or make any order or entertain any proceedings in relation to anything in good faith done or intended to be done under this Ordinance.

9. Indemnity. No suit or other legal proceeding shall lie against the Federal Government or the Administrator or any other person in respect of anything in good faith done or intended to be done under this Ordinance.

10. Power to make rules. The Federal Government may make rules for carrying out the purposes of this Ordinance.

11. Removal of difficulties. If any difficulty arises in giving effect to any provision of this Ordinance, the Federal Government may make such order, not inconsistent with the provisions of this Ordinance, as may appear to it to be necessary for the purpose of removing the difficulty.

THE ISLAMABAD REAL ESTATE AGENTS AND MOTOR VEHICLES DEALERS (REGULATION OF BUSINESS) ORDINANCE, 1984

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1. Short title, extent and commencement.
2. Definitions.
3. Prohibition of business without registration.
4. Certain persons not to be registered.
5. Procedure for registration.
6. Renewal of registration.
7 Fixation of Commission.
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THE ISLAMABAD REAL ESTATE AGENTS AND MOTOR VEHICLES DEALERS (REGULATION OF BUSINESS) ORDINANCE, 1984

ORDINANCE No. XIII OF 1984

[10th April, 1984]

An Ordinance to regulate the business of real estate agents and motor vehicles dealers in the Islamabad Capital Territory.

WHEREAS it is expedient to regulate the business of real estate agents and motor vehicles dealers in the Islamabad Capital Territory ;

AND WHEREAS the President is satisfied that circumstances exist which render it necessary totake immediate action;

NOW THEREFORE, in pursuance of the Proclamation of the fifth day of July, 1977, and in exercise of all powers enabling him in that behalf, the president is pleased to make and progulgate the following Ordinance:

1. Short title, extent and commencement. (1) This Ordinance may be called the Islamabad Real Estate Agents and Motor Vehicles Dealers (Regulation of Business) Ordinance, 1984.

(2) It extends to the Islamabad Capital Territory.

(3) It shall come into force at once.

2.Definitions.In thisOrdinance, unless there is anything repugnant in the subject or context,—

(a) "motor vehicle" mean any mechanically propelled vehicle adapted for use upon roads whether the power of propulsion is transmitted thereto from an external or internal source and includes a tractor, a trailer and a chassis to which a body has not been attached ;

(b) "motor vehicles dealer" means a person who arranges or negotiates any transaction of sale, exchange transfer or pledge of a motor vehicle in consideration of some commission or other remuneration in cash or otherwise or who deals in sale or purchase of motor vehicles ;

(c) "prescribed" means prescribed by rules ;

(d) "real estate" means immovable property ;

(e) "real estate agent" means a person who arranges or negotiates any transaction of sale, exchange, lease or tenancy of real estate in consideration of some commission or other remuneration in cash or otherwise ;

(f) "registering authority" means the District Excise and Taxation Officer, Islamabad or any other officer authorised by the Federal Government to exercise the powers of registering authority under this Ordinance ; and

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(g) "rules" means rules made under this Ordinance.

3. Prohibition of business without registration.(1) No person shall engage in or carry on the business of a real estate agent or a motor vehicles dealer unless he is registered with the registering authority and holds a valid certificate of registration issued by such authority:

Provided that this sub-section shall not apply to any person who was carrying on the business of a real estate agent or a motor vehicles dealer immediately before the date of commencement of this Ordinance until the expiration of a period of thirty days from the date on which the rules come into force.

(2) A person referred to in the proviso to sub-section (1) who desires to carry on the business of a real estate agent or, as the case may be, motor vehicles dealer after the commencement of this Ordinance shall apply for a certificate of registration within a period of thirty days from the date on which the rules come into force.

(3) If any person referred to in the proviso to sub-section (1) continues to carry on his business after the expiration of the period specified in sub-section (2) and fails to apply for a certificate of registration as required by that sub-section, the registering authority may, instead of taking action against him under the penal provisions of this Ordinance, entertain his application for grant of a certificate of registration on payment by him of a penalty not exceeding five hundred rupees if the application is made within a period of three months from the date on which the rules come into force and a penalty not exceeding one thousand rupees if the application is made within a period exceeding three months but not exceeding six months from the said date.

4. Certain persons not to be registered. No person shall be registered as a real estate agent or a motor vehicles dealer if he—

(a) is a minor ; or

(b) is found to be of unsound mind by a Court of competent jurisdiction; or

(c) is a declared insolvent; or

(d) has been, on conviction for an offence of criminal mis-appropriation or criminal breach of trust or cheating or any other offence involving moral turpitude, or an abetment of or attempt to commit any such offence, sentenced to imprisonment, unless a period of three years has elapsed since his release.

5. Procedure for registration. (1) A person who wishes to obtain a certificate of registration to engage in or carry on the business of a real estate agent or a motor vehicles dealer shall make an application to the registering authority concerned in such form and manner and on payment of such fee, not exceeding two thousand rupees, and furnishing of such security as may be prescribed.

(2) The registering authority, on being satisfied that the applicant has fulfilled all the requirements and does not suffer from any of the disqualifications laid down in section 4, shall register him as a real estate agent or a motor vehicles dealer, as the case may be, and grant him a certificate in the prescribed form.

6. Renewal of registration. (1) A certificate of registration issued under section 5 shall be valid for a period of one year and shall be renewable from year to year.

(2) A real estate agent or a motor vehicles dealer who wishes to get his certificate of registration renewed shall, not less than thirty days preceding the date on which the validity of the certificate is due to expire, apply to the registering authority in such form and manner and on payment of such fee, not exceeding one thousand rupees, as may be prescribed.

(3)The registering authority, on being satisfied that the applicant has fulfilled all the requirements and does not suffer from any of the disqualifications laid down in section 4, shall grant a certificate of renewal of registration in the prescribed form.

(4) If a real estate agent or a motor vehicles dealer fails to apply for the renewal of his certificate of registration in accordance with sub-section (2) and continues to carry on his business after the date on which the validity of his certificate of registration expires, the registering authority may, instead of taking action against him under the penal provisions of this Ordinance, entertain his application for renewal of the certificate on payment by him of a penalty not exceeding two hundred and fifty rupees if the application is made within one month of the date on which the validity of the certificate expires and a penalty not exceeding five hundred rupees if the application is made within a period exceeding one month but not exceeding three months from the said date.

7. Fixation of commission. The Federal Government may prescribe the maximum rate of commission or remuneration which a real estate agent or a motor vehicles dealer may charge on any transaction arranged or negotiated by him.

8. Maintenance of record and accounts, etc. (1) A real estate agent and a motor vehicle dealer shall maintain such accounts and other record of the transactions arranged, negotiated or made by him and in such manner as may be prescribed

(2) A real estate agent and a motor vehicles dealer shall, as and when required to do so, produce the accounts and other record maintained by him under sub-section (1) before such officer or authority as may be prescribed and shall also supply such information and in such form and within such time as may be required by the said officer or authority.

9. Power to enter and examine books, etc. (1) The registering authority or an officer, not below the rank of an Inspector, Excise and Taxation, authorised by him may enter any place of business or office of a real estate agent or motor vehicles dealer at any reasonable time in order to satisfy himself that the provisions of this Ordinance and the rules are being complied with, and may call for and inspect any books of accounts or documents kept in such place.

(2) If any person prevents the registering authority or an officer authorised under sub-section (1) from entering the place of business or office or from examining the books or documents, or obstructs him in the exercise of those powers, he shall be punishable with fine which may extend to two thousand rupees.

10. Cancellation and suspension of registration. (1) If the registering authority is satisfied that a real estate agent or motor vehicles dealer has committed any breach of the conditions of the certificate of registration granted to him or—

(a) maintained or produced before the prescribed officer or authority an incorrect

account of any transaction negotiated or arranged by him ;

(b) negotiated or arranged a transaction in respect of a real estate or motor vehicle knowing that there was a defect in the title of the real estate or motor vehicle ; or

(c) charged commission or remuneration in excess of the maximum rates prescribed,

The registering authority may, by order in writing cancel or suspend the certificate of registration for such period, not exceeding three months, as may be specified in the order:

Provided that, if such agent or dealer subsequently commits any breach of the conditions of the certificate of registration or does any act as aforesaid, the period for which the certificate is suspended may extend to six months:

Provided further that no such order shall be passed unless such agent or dealer has been given not less than seven days notice to show cause against it.

(2) Any person aggrieved by an order passed under sub-section (1) may, within thirty days of the passing of the order, prefer an appeal to the Administrator, Islamabad Capital Territory, whose decision shall be final, [1][:]

[1][Provided that no orders on such appeal shall be passed unless the appellant has been given an opportunity of being heard.]

11. Penalties, etc.(1) Whoever contravenes any of the provisions of this Ordinance shall without prejudice to any other action that may be taken against him under this Ordinance, be punishable with simple imprisonment for a term which may extend to six months, or with fine which may extend to five thousand rupees, or with both.

(2) No Court shall take cognizance of an offence punishable under this Ordinance except on a complaint in writing made by the registering authority

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12. Powers to make rules. (1) The Federal Government may, by notification in the official Gazette, make rules for carrying out the purposes of this Ordinance

(2) The rules may provide that any contravention of, or failure to comply with, any of the provisions thereof shall be punishable with fine which may extend to two thousand rupees.

[1]Subs. and added by Act II of 1989, s. 2.

THE ISLAMABAD WILDLIFE (PROTECTION, PRESERVATION, CONSERVATION AND MANAGEMENT) ORDINANCE, 1979

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THE ISLAMABAD WILDLIFE (PROTECTION, PRESERVATION, CONSERVATION AND MANAGEMENT) ORDINANCE, 1979

ORDINANCE No. LXX of 1979

[19th December, 1979]

An Ordinance to provide for the protection, preservation, conservation and management of wildlife and setting up of a National Park in the Islamabad Capital Territory.

WHEREAS it is expedient to provide for the protection, preservation, conservation and management of wildlife and setting up of a National Park in the Islamabad Capital Territory;

AND WHEREAS the President is satisfied that circumstances exist which render it necessary to take immediate action;

NOW, THEREFORE, in pursuance of the Proclamation of the fifty day of July, 1977, read with the Laws (Continuance in Force) Order, 1977 (*CM.LA. Order No. 1 of 1977*), and in exercise of all powers enabling him in that behalf, the President is pleased to make and promulgate the following Ordinance:—

1. Short title, extent and commencement.— (1) This Ordinance may be called the Islamabad Wildlife (Protection, Preservation, Conservation and Management) Ordinance, 1979.

(2) It extends to the Islamabad Capital Territory.

(3) It shall come into force at once.

2. Definitions. —In this Ordinance, unless there is anything repugnant in the subject or context:—

(a) "authorised officer" means any person whom the Federal Government or any officer empowered by the Federal Government in this behalf may appoint to carry out all or any of the purposes of this Ordinance or to do anything required by this Ordnance or the rules, to be done by an authorised officer;

(b) "Board" means the Wildlife Management Board constituted under section 4;

(c) "capture" means the taking alive of any wild animal;

(d) "certificate of lawful possession" means a certificate of lawful possession issued under section 9 ;

(e) "dealer's permit" means a dealer's permit issued under section 14;

(f) "game animal" means a wild animal specified in the First Schedule;

(g) "game reserve" means an area declared as such under section 22;

(h) "hunting" means any act immediately directed to the killing or capturing of wild animal, and includes the taking of nests or eggs of such animals;

(i) "hunting permit" means a hunting permit .issued under sub-section (2) of section 22;

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(j) "Licence" means a licence issued under section 7;

(k) "meat" means the fat, blood, flesh or any edible part of a wild animal, whether fresh or preserved;

(1) "national park" means an area declared as such under section 21;

(m) "prescribed" means prescribed by rules; .

(n) "Private game reserve" means an area declared as such under section 23;

(o) "protected animal" means an animal or bird specified in the Third Schedule;

(p) "rules" means rules made under this Ordinance;

(q) "trophy" means the dead body of a wild animal or any ; horn, antler, tooth, tusk, bone, claw, hoof, skin, hair, feather, egg, shell or other durable part of any wild animal, whether or not included in a manufactured or processed article;

(r) "wild animal" means an animal or bird specified in the First Schedule or the Third Schedule;

(s) "wildlife" means all natural resources, including organic resources, animals, birds, reptiles, vegetation, soil and water; and

(t) "wildlife sanctuary" means an area declared as such under section 20.

3. Appointment of officers and staff. —The Federal Government may, for the purposes of this Ordinance, appoint such officers and staff as it thinks fit and on such terms and conditions as may be prescribed.

4. Constitution of the Board.—(1) The Federal Government may constitute a Board of Wildlife Management consisting of such members, including a Chairman, as it may appoint.

(2) The Chairman and members of the Board shall hold office during the pleasure of the Federal Government and on such terms and conditions as it may determine.

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(3)The Board shall exercise such powers and perform such functions as may be prescribed.

5. Killing and capturing of wild animals prohibited. —Save as otherwise provided in this Ordinance and the rules, no person shall hunt, kill or capture wild animals.

6. Restrictions of hunting. —No person shall—

(i) hunt any wild animal by means of a set-gun, dropspear, deadfall, gun-trap, explosive projectile, bomb, grenade, baited book or any other trap whatsoever;

(ii) hunt any game animal by means of an automatic weapon or a weapon of a calibre used by the Pakistan Army or Police Force, a projectile containing any drug or chemical substance having the property of anaesthetising, paralyzing, stuplifying or rendering an animal incapacitated, whether partly or totally ;

(iii) hunt any game animal, other than a bird or hare, with a shot-gun or a non-magnum rifle of 22 caliber of less ;

(iv) use, or have in his possession, any poison or like injurious substance for the purpose of hunting a game animal ;

(v) use any motor vehicle motor-driven vessel, water-craft, of any type, aircraft or any other manually or mechanically propelled vehicle of any type to pursue, drive or stampede game animal for any purpose whatsoever;

(vi) shoot any game animal from any aircraft motor vehicle, rail-trolley, cart, board or any kind of watercraft or any other conveyance or form within two hundred metres of such conveyance ;

(vii) hunt any wild animal with the help of live decoys or call-birds ; or

(viii) construct, use or have in his possession for the purpose of hunting any game animal any pitfall, gamepit, trench or similar excavation, fence or enclosure, or use bhagwa or any other contrivance :

Provided that an authorised officer may, in his discretion, exempt any person from one or more of the provisions of this Section:

Provided further that any wild animal may be driven away from an aerodrome or airstrip by using a motor vehicle or an aircraft if it is necessary to ensure safety of the aircraft using that aerodrome or airstrip.

7. Prohibition to employ hawks and dogs without licence. —No person shall use hawks for hawking or dogs for coursing game animals, except under a licence issued by an authorised officer in such manner, on such terms and conditions and on payment of such fees as may be prescribed.

8. Animals found dead, etc. to be property of the Government. —Any wild animal found dead or dying or which has been killed or caught otherwise than in accordance with the provisions of the Ordinance or the rules, and any trophy or meat thereof, shall be the property of die Federal Government.

9. Certificate of lawful possession.— (1) No person shall be in possession of any wild animal, trophy or meat specified in the Second Schedule except under a certificate of lawful possession in respect thereof issued by an authorised officer in such manner, on such terms and conditions on payment of such fees as may be prescribed.

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(2) Provided that a person who, on the coming into force of this Ordinance, is in possession of, or at any time thereafter, imports or acquires any such animal, trophy or meat shall, within such time as may be prescribed, apply to the authorised officer for a certificate of lawful possession.

(3) The authorised officer shall mark the wild animal, trophy or meat in respect of which a certificate of lawful possession is issued and make entries in respect thereof in the prescribed register.

(4) The holder of a certificate of lawful possession shall produce the certificate to the authorised officer when asked by him to do so.

(5) No person shall—

(a) be in possession of a wild animal trophy or meat specified in the Second Schedule without a certificate of lawful possession or without having applied for such certificate as required by sub-section (2); or

(b) counterfeit, change, or in any way interfere with, any mark put on a wild animal, trophy or meat under subsection (3) or alter or in any way change a certificate of lawful possession.

10. Restriction J on transfer'of wild animals, etc.— (1) No person who is not possession of a certificate of lawful possession in respect of a wild animal trophy or meat specified in the Second Schedule shall transfer such wild animal, trophy or meat to any other person by way of gift, sale or otherwise.

(2) No person shall receive by gift, purchase or otherwise any wild, animal, trophy or meat specified in the Second Schedule unless he is at the same time given the certificate of lawful possession clearly mentioning thereon the nature of the transfer and the name of the person to whom the wild animal, trophy or meat is transferred.

(3) The person to whom a wild animal, trophy or meat is transferred shall submit the certificate of lawful possession given to him by the transferor to the authorised officer who shall endorse it in favour of the transferee and make necessary amendment in the prescribed register.

11. Restriction on import of wild animals, trophies etc.— (1) No person shall import, or attempt to import, into Pakistan any live wild animal "or any endemic or exotic species thereof, or any trophy or meat, except through a customs-port of entry, and any person, importing such animal, or endemic or exotic species, trophy or meat shall, in respect thereof, produce to the officer of customs—

(i) proof to his satisfaction that it has been lawfully exported from the country of export;

(ii) an import permit.

(2) The officer of customs may detain any live wild animal,endemic or exotic species, trophy or meat, which has been imported until such time as the proof of its lawful export from the country of export is given and the import permit is surrendered to him, and if the proof is not given or the import permit is not surrendered within a reasonable time, the wild animal, endemic or exotic species, trophy or meat shall be forfeited to the Federal Government and disposed of in the prescribed manner.

12. Restriction on export of wild animals, trophies, etc. —No person shall export, or attempt to export, any wild animal, trophy or meat except through a customs-port of exit, and a person exporting such animal, trophy or meat shall produce to the officer of customs an export permit in respect thereof.

13. Animals, trophies, etc., in transit. —Nothing in sections 11 and 12 shall apply to any live wild animal, any endemic or exotic species, thereof or any trophy or meat in transit through Pakistan, if the animal, endemic or exotic species or trophy or meat—

(i) is accompanied by transit documents ;

(ii) enters through a customs-port of entry ; and

(iii) is not unloaded from the ship or motor vehicle on which it is being carried, or, in case of rail or air transport, does not leave the precinct of the railway station or the airport at which it is landed or transshipped or does not remain at such precincts, except in a customs-warehouse, for more than forty-eight hours.

14. Restriction on dealing in wild animals, trophies, etc.—(1) No person shall engage himself in any trade or business, or otherwise deal in, any wild animal, trophy or meat, or, in the course of such trade or business carried on by him on his own behalf or on behalf of any other person, shall sell, purchase* barter, cut, carve, polish, preserve, cleanior mount any wild animal, trophy or meat, or manufacture any article therefrom unless he has obtained a dealer's permit issued by an authorised officer in such manner, on such terms and conditions and on payment of such fees as may be prescribed.

(2) The holder of a dealer's permit shall maintain such record of transactions as the authorised officer may require, and shall produce it for inspection at any reasonable time when called upon to do so.

(3) Nothing in this section shall be construed to absolve the holder of a dealer's permit from complying with the other provisions of this Ordinance.

15. Power to search without warrant. —Any authorised officer, if he has reason to believe that any person has in his possession or control any wild animal, endemic or exotic species or trophy or meat in an. unauthorised manner or has committed an offence under this Ordinance, may search any person place-, vessel, vehicle, animal, package, receptacle or covering without warrant.

16. Power of seizure.—(1) Any authorised officer may seize any wild animal which is in the possession of a person who is not authorised to possess it under this Ordinance or the rule, together with any firearm, net, trap, snare, bow, arrow, vehicle, vessel or anything whatsoever used or suspected to have been used in the commission of an offence under this Ordinance.

(2) The property seized under sub-section (1) shall be dealt with in accordance with the orders of the court or the authorised officer compounding the offence under section 33 as the case may be :

Provided that, if the property is subject to natural decay, it may at any time be sold with the permission of the court and the proceeds shall be dealt with in accordance with the orders of the court.

17. Onus of proof respecting property. —When in any proceeding under this Ordinance a question arises as to whether a wild animal, trophy or meat is the property of the Federal Government, such wild animal, trophy or meat shall be presumed to be the property of the Federal Government until the contrary is proved.

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18. Duty ofchaukidars, dafadars, village watchmen, etc.—Every purchaser of forest produce, lambardar, canal patwari, public works department daroga, chaukidar, village watchman, abdar, zilladar, revenue patwari, chairman or member of a local authority qanungo and tehsildar shall be bound, in the absence of reasonable excuse, to give to the authorised officer information in respect of any snaring, trapping, netting, unauthorised killing or any other offence under this Ordinance committed within the limits of his jurisdiction as soon as the commission of such offence comes to his knowledge.

19. Killing or capturing in self-defense.—(1) Notwithstanding anything contained in this Ordinance, it shall not be an offence—

(a) for any person to kill or capture any wild animal by any means in the defence of his own life or the life of any other person ;

(b) for the owner of standing crops or his employee to kill or capture by any means within the bounds of those crops, any wild animal which is causing material damage to those crops;

(c) for the owner of livestock or his employee to kill or capture, by any means within a reasonable distance from where the livestock is grazing or where it is enclosed for the night, any wild animal which is causing damage to the livestock:

Provided that clauses (b) and (c) shall not apply to any unlawful cultivation in a national park, wildlife sanctuary, or game reserve or any livestock illegally grazing or herded therein.

(2) The killing or capturing of any wild animal under subsection (1) shall, as soon as may be, be reported to the authorised officer or the nearest police-station.

(3) The trophy or meat of any wild animal killed under subsection (1) shall be the property of the Federal Government and shall be disposed of in such manner as the authorised officer may direct.

20. Wild life sanctuary. —(1) With a view to securing undisturbed breeding of wildlife, the Federal Government may, by notification in the official Gazette, declare any area to be a wildlife sanctuary.

(2) Subject to rules, the wildlife sanctuary shall be closed to public, and no exploitation of forest therein shall be allowed except for reducing fire hazards, epidemic or insect attacks or other natural calamities.

(3) No person shall enter or reside, cultivate any land, damage or destroy any vegetation introduce any endemic or exotic species of any animal or plant, introduce any domestic animal or allow it to stray, cause any fire, or pollute water, in a wildlife sanctuary, or hunt, kill or capture any wild animal or fire any gun or other fire-arm within one and half kilometre of the boundaries thereof:

Provided that the authorised officer may, for specific purposes authorise the doing of any of the aforementioned acts.

21. National Park.—(1) With a view to protecting and preserving scenery, flora and fauna in natural state, the Federal Government may, by notification in the official Gazette, declare any area to be a national park.

(2) The national park shall be accessible to public for recreation, education and research, subject to such restrictions as the Federal Government may impose.

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(3) Provision for access roads to, and construction of rest houses, hotels and other buildings in the national park along with amenities for public may be so made, the forest therein shall be so managed and forest produce so obtained as not impair the object for which it is declared a national park.

(4) Except as otherwise provided by this Ordinance and the rules, the following acts shall be prohibited in a national park, namely:—

(i) hunting, shooting, trapping, killing, or capturing of any wild animal within a radius of two kilometers of its boundaries;

(ii) firing any fire-arm or doing of any other act which may disturb any wild animal or interfere with its breeding place;

(iii) felling, tapping, burning, damaging or destroying of, or taking, collecting or removing therefrom, any plant or tree;

(iv) clearing or breaking up of any land for cultivation, minig or for any other purpose; and

(v) polluting water flowing in or though it:

Provided that the authorised officer may, for specific purposes, authorize the doing of any of the aforementioned acts.

22. Game reserve.—(1) With a view to providing facilities for hunting the Federal Government may, by a notification I the official Gazette, declare any area to be a game reserve, but no person shall hunt, shoot or capture any wild animal in a game reserve, except in the case of game animal specified in the First Schedule, under a hunting permit.

(2) A hunting permit may be issued by an authorsed officer in such manner, on such terms and condition and on payment of such fees as may be prescribed.

(3) The holder of a hunting permit may hunt such number of game animal specified in the First Schedule and during such period as may be specified by the authorised officer.

23. Private game reserve.—(1) Where the Federal Government is satisfied that private land has been dedicated by its owner for the purposes similar to that of a game reserve, it may on the application of the owner of that land, by notification declare such land to be a private game reserve.

(2) Hunting of wild animals by any person other than the owner of the land shall not be allowed in a private game reserve except with the permission of the owner thereof.

(3) The Federal Government may, by notification in the official Gazette, at any time declare that any private game reserve shall cease to be a private game reserve.

24. Alteration of boundaries of wildlife sanctuary, nadonal park, game reserve and private game reserve. —The Federal Government may by notification in the official Gazette, declare any alteration in the boundaries of a wildlife sanctuary, national park, game reserve or private game reserve.

25. Interference in duty. —Any interference in the discharge of the duties of any person appointed for the purposes of this Ordinance or the rules shall be unlawful.

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26. Penalties.—(1) Whoever kills or abets in the killing of a protected animal. Otherwise than in accordance with the provisions of this Ordinance or the rules shall be punishable with imprisonment for a term which may extend to one year, or with fine which may extend to two thousand rupees, or with both.

(2) Subject to sub-section (1), whoever contravenes, attempts to contravene, or abets in the contravention of, any provision—

(i) section 6, 9, 10, 11, 12 or 14 shall be punishable with imprisonment for a term which may extend to one year, or with fine which may extend to one thousand rupees, or with both ;

(ii) section 7 or 8 shall be punishable with imprisonment for a term which may extend to six months, or with fine which may extend to five hundred rupees, or with both ; and

(iii) this Ordinance or any rule for the contravention of which no specific penalty is provided shall be punishable with fine which may extend to one thousand rupees.

(3) The licence, hunting permit, dealer's permit or certificate of lawful possession, as the case may be, of a person who is convicted under sub-section (1) shall be liable to cancellation and such person shall not be eligible to the grant of such licence, permit or certificate for such period as may be determined by the authorised officer.

27. Prosecution for offence under any other law. —Nothing contained in this Ordinance shall be deemed to prevent any person from being prosecuted under any other law for any act or omission which constitutes an offence under this Ordinance or from being liable under any other law to any higher punishment or penalty than that provided by this Ordinance.

28. Procedure when offender not known or cannot be found. —Where the authorised officer finds, or it is brought to his notice, that an offence under this Ordinance has been committed, and the offender is not known, or cannot be found within a reasonable time he may confiscate any article used in the commission of the offence.

29. Power to arrest.—(1) An authorised officer may, without warrant, arrest any person against whom reasonable suspicion exists of his having been concerned in any offence under this Ordinance.

(2) The officer making arrest under sub-section (1) shall, without unnecessary delay and subject to the other provisions of this Ordinance, take or send the person arrested to the officer-in-charge of the nearest police-station.

30. Power to release arrested persons on bond. —An authorised officer of grade 17 or above may release a person arrested under section 29 on his executing a bond to appear, if and when so required, before the officer-in-charge of the nearest police-station.

31. Power to prevent commission of offence. —Every authorised officer and any other person authorised by the Federal Government in this behalf shall be competent to take all lawful means to prevent the commission of any offence under this Ordinance.

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32. Appointment of Magistrates etc.—(1) Notwithstanding anything contained in the Code of Criminal Procedure, 1898, the Federal Government may appoint any person to be a Magistrate of the first class within the meaning of the said Code for the trial of offences under this Ordinance or authorize any Magistrate of the first class to try such offences.

(2) No Court other than a Magistrate appointed or authorised under sub-section (1) shall try any offence under this Ordinance.

(3) A Magistrate of the first class competent to try offences under this Ordinance, may, if he thinks fit, try in a summary way all or any of die offences.

(4) Any person convicted under section 28 may, within thirty days from the date of his conviction, appeal to the Court of Session, whose decision thereon shall be final.

33. Power to compound offence.—(1) The Federal Government, may by notification in the official Gazette, empower an officer not inferior in rank to an officer in grade 17 of the National Pay Scales:—

(a) to accept from any person against whom reasonable suspicion exists that he has committed any offence under this Ordinance, a sum of money by way of compensation for such offence.

(b) when any property has been seized as liable to confiscation, to release the same on payment of the value thereof, as estimated by such officer.

(2) On the payment of compensation, such sum of money, or such value of property under sub-section (1) or both, as the case may be, the suspected person, if in custody, shall be discharged and the property, if any, seized shall be released and no further proceedings shall be taken against such person or property.

(3) The sum of money accepted as compensation under clause (a) of sub-section (I), shall in no case, exceed the sum of five hundred rupees.

(4)No officer shall have power to compound a second or subsequent offence under this Ordinance.

34. Investment of certain powers. —The Federal Government may, by order in writing, invest any officer of grade 17 or above with all or any of the following powers, namely:—

(a) power of a civil court to compel the attendance of witnesses and the production of documents and material objects ;

(b) power to hold inquiry into offences under this Ordinance, and, in the course of such inquiry, to receive and record evidence ; and

(c) power to prosecute a case before a Magistrate.

35. Persons appointed under this Ordinance to be public servants. —All persons appointed under this Ordinance shall be deemed to be public servants within the meaning of section 21 of the Pakistan Penal Code (Act XLV of 1860).

36. Indemnity and bar of Jurisdiction.—(1) No suit, prosecution or other legal proceeding shall lie against the Federal Government or any other person for anything done or intended to be done in good faith under this Ordinance or the rules.

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(2) No court shall call in question, or permit to be called in question, anything done or any action taken under this Ordinance.

37. Duty of Police Officers. —All police officers shall, upon request made by any person performing duties under this Ordinance or the rules, assist him in the discharge of such duties.

38. Delegation of powers. —The Federal Government may, by notification in the official Gazette, direct that all or any of its powers under this Ordinance shall be exercised by such officer and subject to such conditions as may be specified.

39. Power to grant exemption. —Notwithstanding anything contained in this Ordinance, the Federal Government may, for public or scientific purposes, by notification in the official Gazette, allow the killing and capturing of any wild animal by such person, at such place, and by such means as may be specified in the notification.

40. Power to amend Schedules. —The Federal Government may, by notification in the official Gazette, make such amendment in the Schedules as it thinks fit.

41. Power to make rules.—(1) The Federal Government may, by notification in the official Gazette, make rules for carrying out the purposes of this Ordinance.

(2) In particular and without prejudice to the generality of the foregoing power, such rules may provide for all or any of the following matters, namely:—

(i) powers and functions of the Board ;

(ii) recruitment and terms and conditions of appointment of the officers and staff under this Ordinance;

(iii) the form and manner in which, the terms and conditions on which and the duration for which, a licence, hunting permit, special hunting permit, certificate of lawful possession and dealer's permit shall be issued ;

(iv) fees to be charged for a licence, hunting permit, special hunting permit, certificate of lawful possession and dealer's permit;

(v) in the case of any species of wild animals, the number and the sex of, and the local area in which, such species may be hunted by an authorised person ;,

(vi) giving of rewards to persons who render assistance in the detection of offences under this Ordinance ;

(vii) the management of wildlife sanctuaries, national parks and game reserves ;

(viii) tenure of office, resignation and terms and conditions of members of the Board ; and

(vii) demarcation of the area of a wildlife sanctuary, a national park or a game reserve.

FIRST SCHEDULE

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Wild Animals

Game Animals which can be hunted or captured under a Game Shooting licence or Game Capture licence.

Name of animal	Age limit or number allowed	Time and sesson when hunting permitted
1	2	3
ANATIDAE, DUCKS, WATERFOWL		
Dendrocygna Javancia___Lasser teal, Silahji.	Not more than 5 ducks of all species combi-ned per day.	1st October to 1st March.
Tadorna todorna___common shel-duck, Safro Chekwa safed Surkhah.	Not more than 5 duchs of all species combi-ned per day.	1st October to 1st March.

1	2	3
AaaAAAna sacuta___Pintail. Sanh, Sikhpar, Digosh.	Not more than 5 ducks of all species combined per day.	1st October to 1st March.
Anas ereeca—Common Teal, Kerraputari Suchuruka Huraro.	Do.	Do.
Anas formosa—Baikal Teal. Keraputari, Suchuruka, Barkani.	Do.	Do.
Anas Platyrhynchos—Mallard, Chaka Nilsir, Nilrugi.	Do.	Do.
Anas strepera-Gadwall, Milla. Bhur. Beykur.	Do.	Do.
Anas falcata—Falcated Teal, Chotiya, Wano Hurwa.	Do.	Do.
Anas penclope—Wigeon, Pcasan, Partarui Lai Sir.	Do.	Do.
Anas querquedula—Gargancy, Choi, Putari,	Do.	Do.
Anas clypeata-—Shoveler, Tidari, Punana Tarakwala. Ghira	Do.	Do.
Netta rufina—Red crested pochard, Lalsir	Not more than 2 ducks of all species combined per day.	Do.
Aythya forina common Pochard, Burarna, Thurandao.	Not more than 5 ducks of all species combined per day.	Do.
Aythya nyrocrd—Whiteeyed Pochard, Kara-chiya, Mada lalbigri, Budha	Do.	Do.
Aytha baeri—Bear's Pochard.	Not more than 5 ducks of all species combined per day.	Do.
Aytha fuligula—Tufted duck. Durbaru, Ablak Bohwara.	Do.	Do.
Aytllyamarila—Scaup.	Do.	Do.
Clangula hyemalis—Old squaw, longtail Duck.	Do.	Do.
Bucephalus clangula—Goldeneye Duck, Kumbaro.	Do.	Do.
Mcrgus al bellus—Smew, Dayali, Jhalli.	Do.	Do.

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1	2	3
Mergus merganser____Goosander.	Not more than 5 ducks of all species combined per day.	1st October to 1st March.
Morgus serrator___Red Breasted Merganser.	Do.	Do.

PHSIANIDAE, PHEASANTS, PARTRIDGES, QUAILS, SPURFOWLS, PEFOWLS AND JUNGLE FOLWS

Ammoperdix griseogularis—Sense Partridge, Kucki, Chauklau. Siai.	Not more than 2 per day.	1st November to 1st March, Wednesday and Friday.

AJect-oris graeca—Chukor, i Charu; Zarkar./ Chukoni Khonk,	Not more than 3 per day.	Wednesday and Friday and Gazetted Holiday from 1st November to 1st March.
Francolinus francolinuse asiac—Black . Partridge, Kala Titer, Tetra, Karo Titra, Kais Titar.	Do.	Do.
Francolinus pondicerianus—Grey Partridge, Titar Kyan, Khyr. Kaijan, Bhura Titar.	Not more than 4 per day.	Do.
Francolinus gularis—Swamp partridge Guititar. Bheel Titar.	Do.	Do.
Coturnix colurnix—Common Quai, Bater Kurrak, Bhatri.	Not more than 10 per day.	1st November to 1st March.
Conturnix coromandelica—Rain Quail, Bnster,	Not more than 5 per day^	Do.
Arborohiaphila atrogularis—White checked Hill Partridge Peura, San, Batai	Not more than 2 per day.	Wednesday. Friday and. Gazetted Holiday from 1st November io 1st March.
Chalmydotis undulate—Houbara Bustard, Tiloor, Khermor. Karwanak.	Not more than 3 per day.	Do.

CHARADRIIDAE: PLOVERS, SANDPIPERS. SNIPES AND OTHER WADERS

1	2	3
Vanellus leucurus—White tailed lapwing.	Two only per day.	1st November to 1st March.
Vanellus vanellus—Lapwing, Rodhur, Sabaz Titi.	Do.	Do.
Vanellus indicus—Radwaltled Lapwing, Tita, Titari, Tetechar.	Do.	Do.

1	2	3
Vanellus spinosus—Superwinged Lapwing.	Two only per day.	1st November to 1st March.
Vanellus malabaricus—Yellow-wattled Lap-wing, Zirdi, Jithiri.	Do.	Do.
Pluvialis apricaria—Golden Plover, Chota Button.	Do.	Do.

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Numenius -Phaeopus—Whimbrel, Chota, Goungh, Chota Golinda.	Do.	Do.
Numenius arquata—Curlow, Goar, Goungh, Choppa, Sada, Kastachura.	Do.	Do.
Capella momoricola—Wood snipe Chaha, Sumkikri Julkikri	Do.	Do.
Cnpella gallinago—Fantail Snipe, Pakhi, Jalakari.	5 only per day.	Do.
Capella Stenura—Pimail Spine, Pakhi Jalakri, Kadakhocha.	Do.	Do.
Capella minima—Jack Snipe, Chota Chaha, Asraf Pak.	Do.	Do.
Rostratula benghalensis—Painted Snipe, Rajchaha. Baggargi.	Do.	Do.
Burhinidae : Stone Curlew or Stone Plavers.	Do.	Do.
Burhinus, Oedicnemus___Shore Curlew Lambi, Kerakwanak, Basirl.	Do.	Do.
Esacus magnirostris____Great Stone Plaver.	Do.	Do.
Ptericlididae, Sandgrous Syrrhaptees tibetaus —Tiebtan Sandgrouse, Nok, Kaling.Kung.	Do.	Do.
Sandgrous, Nok, Kaling Kung.	Do.	Do.
Pterocles cxustus—Indian Sandgrouse, Bhattitar.	Do.	Do.
Pterocles senegllus—Spotted Sandgrouse.	Do.	Do.
Pterocles orientalis—Imperial Sandgrouse, Bhattitar Gero Bakht, Bakh.	Do.	Do.
Pteroceles coronatus—Coronetted Sandgrouse Bhatta Bal.	Do.	Do.
Pterocles indicus—close—Barred or painted Sandgrouse, Harisia Sina, Dukru.	Do.	Do.

COLUMBIDAE, PIGEONS; GREEN PIGEONS AND DOVES

All species of pigeons, Green Pigeons and Doves other than members of the ginus Ducula (Imperial Pigeons) which are protected.	4 only per day.	1st November to 1st March.

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RALLIDAE, COOTS AND MOORHENS

Amauronis Phoenicurus—White-breasted Moorhen Dawk, Pampaira, Kuaki.	5 only per day.	1st November to 1st March.
Gallinula chloropus——Moorhen, Jal Murghi.	Do.	Do.
Porphyrio Porphvrio____Purple Moorhen, Kaim, Kulang, Cairo.	2 only per day.	Do.
Fulica atra—Coot Khushkal, Dasari Kanramdab.	4 only per day.	Do.

LEPUS: HARES

LEPUS Capensis___Cape Hare, Khargosh.	4 only per day.	1st November to 1st March.
Lepus nigricollis___Indian hare, Khargosh.	Do.	Do.
Lepus arabicus___Arabian Hare, Khargosh.	Do.	All year round.

SECOND SCHEDULE

Animals, Trophies, Skins, Horns or Meat for the Possession, Transfer or Export of which a Certificate of lawful possession is required.

1. All live game animals or protected animals.

2. Trophies, Skins and meat derived from protected animals.

3. Horns of goral, ibex, Sind wild goat markhor and urial.

4. Skins of beech or stone marten, jungle cat, desert Cat, Leopard and Snow leopard.

5. Trophy, Skin or horns or any other derivative of any animal protected by any other province of Pakistan including A.K. & N.A.

THIRD SCHEDULE

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Protected Animals: i.e. Animals which shall not be hunted, killed or captured.

1. All game animals when immature or not fully grown.

2. All female game animals when:—

(a) Pregnant;

(b) In a condition that indicates they are suckling or feeding young;

(c) Accompanied by their immature ofi' spring.

3. All males and females of the following species:—

Nemorahaedus goral, Goral or Piji, Ban-Bakri, Gurrur, Gudh, Sar-Pijur, Rai Rom.

Capra faleconeri (all races) Markhor or Rawachi, Capra ibex, Ibex or Trangol, Khail, Dadma, Danmo, Ovis orientails (all races), Urial or Shapu, Hurian, Shah Kohi, Koch, Gad, Garand.

4. All individuals of the following species, genera, families or groups of birds.

All members of the family ARDEIDAE; i.e. all herons, Night Herons, Paddy Birds, Egrets or Bittorns.

All members of the family PELECANTDAE; i.e. all pelicans.

All members of the family CICONIDAE; i.e. all Storks.

All members of the family THRESKIORNIDAE; i.e. all ibis's and Spoonbills.

All members of the family PHOENICOPTERIDAE; i.e. all Flamingos.

All members of the genera Anser and Branta; i.e. all a geese, including the Bher-headed goose.

All members of the genus Cygunus; i.e. all Swans.

The following species of Ducks:—

Anas; angustirostris, Marbled, Teal or Choi, Lanjho, Dudjalri.

Anas poecilorphyncha Spot-bill Duck, or Garmpai, Gugral, Hampur, Hangro Nettapus coromandolicus, Cotton Teal or Giri, Girria.

Oxyura leucocephala. White headed Duck or Stifftailed Duck-UD-Balau.

Cairine scutulata. White-winged Wood Duck.

Sarki-diornis melanotus. Comb Duck or Nukhta.

Rhodonossa caryphyllacea. Pink headed Duck.

All members of the family Acciptridae; i.e. all Hawks, Vultures, Kites.

Buzzards, Hawks-Eagles, Harriers and Ospreys.

All members of the family FALCONIDAE; i.e. all Falcons, Kestresls, Hobbies.

All members of the family PHASIANIDAE; i.e. all Pheasants Partridges, Quails Spurfowls Jungle Fowls, and Peafowls other than those species specified in the First Schedule.

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All members of the family GRDUTDAE; i.e. all Granes.

All members of the gnus Heliopais; i.e. all Finfoots.

All members of the family OTIDIDAE; i.e. all Bustards other than the one species in the First Schedule.

Scolopax rusticola. Woodcock or simkukri, Jalakari, Julkari, Wilaiti, Chaha, Bumpal, Dhabba.

Pterocles alohat. Large Pin-tailed Sandgrous.

All members of the genus Ducula ; i.e. all Imperial Pigeons.

5. All individuals of the following races, species, genera or groups of madmals:—

Macaca mulatta villosa. Himalagan Rhesus Monkey (i.e. all Rhesus Monkeys found in West Pakistan) bandar, Punj, Markat.

Presbytis entellus Common Langur or Hanuman Dendoa

Mains crassicaudates Pangolin or Bajra Kit, Bajra, kapta, Suraj Mukhi, Silu Kishaur, Sibi, Mirun, Challa, Kat Pohu, Vulpes cana. Blanford's Fox.

Salenarctos thibetanus gedrosianus-Baluchistan Black Bear (i.e. all black bears found in south and west of the I Kabul River) Kala Reech, Bhalu, Haput, man.

Ursus arctos, Brown Bear or Red Bear, Barf Ka Rindh, Safed Bhalu, Siala Reech, Drengmo, Drin Mor.Vormela peregusna Marbled Polecat.

Mellivora capensis. Ratel or Honey Badger, Beju, Corpat, Ghurna, Lutra Lutra, Common Otter or Ludher, Ud-bilaw, Pani Kutta, Sagi Ab. Martes foina, Beech or Stone Marten.

Lutra perspicillata. Smooth Indian Ottar, or Ludher,
Ludra, Udni. .

Viverra .zibetha; Large Indian Civet, Ketts, Mach Bhondar, Badges, Pudu, Gaulai

Viverricula Indica. Small Indian Civet or Naundero, Gandogaula, Kasturi.

Paguma Laryata, Himalayan; Civet of Masked Palm

Felis caracal. Carracal or Siya—gush, Echl.

Felis Chaus.

Felis Lyns. Lynes or patsalan, Phiauku.

Felis margarita. Sand Cat.

Felis Bengalensis. Leopard Cat or Chite Billi, Ban Bilar.

Felis viverrina. Fishing Cat or Mash Billi, Mach Bagral.

Felis marmorata. Marbled Cat.

Panthera uncia, Snow Leopard or Ounce, Barhel He, Lkar

Panthera pardus. Leopard or Panther, Tndwa, Chita, Chita bagh Suh.

Equushemionus, wild Ass or Ghor Khar, Ghuran, Kiang.

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Muntiacus muntjak. Barking Deer or Muntjak, Kakar, Maya.

Axix porcinus. Hog Deer or Para.

Cervus elephus Kashmir. Stag or Barasingha, Hangal, Honglu. Martes boina-Stone Marten.

Gazella gazella. Indian Gazella or Chinkara, KaI7Punch, Gora Hiran.

Gazella subgutterosa. Goitred of Parsian Gazella, Pharal Ghazal. .1

Boselaphus tragocamelus. Bluebull of Nilgai, Gond Bain, Ranjb Roz, Rqjra.

Capra falcbneri Jerdeni, and C.F. chialtanensis. Straight

Horned Races of Markhor (i.e. all Markhor found to the south and west of the North Waziristan Agency) Sarah, pachin, Bazkuhi.

Pseudois nayaur. Blue Sheep or Bharal, Na, Sna, Maitu, Ghard Warn

Ovis Orientalis Punjabensis. Punjab Urial.

Planista gangetica river Dolphin or sus, Susu, Susuk, Sishuk, Bhulan, Sunsar.

6. All individuals of the following species, genera of families of reptiles:—

Crocodilus palustris. Marsh Crocodile or Muggar, Magar Mach.

Gavialis gangeticus. Gharial, or Soondy Mugger, Sansar.

AH snakes of the genus python, i.e. all pythons, Azdha or Arar.

All Lizards of the genus capooranus, i.e. All Monitor

Lizards, Goah, Ban Chapkali, Ram Gaddi, Suna Gaddi or Kala Gaddi.

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THE JAMMU AND KASHMIR (ADMINISTRATION OF PROPERTY) ORDINANCE, 1961

CONTENTS

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THE JAMMU AND KASHMIR (ADMINISTRATION OF PROPERTY) ORDINANCE, 1961

ORDINANCE No. III OF 1961

[13th February, 1961]

An Ordinance to vest in the Central Government certain immovable properties which vested in the State of Jammu and Kashmir on the fifteenth day of August, 1947, and to provide for matters connected therewith.

WHEREAS there are several immovable properties, situated in the territory of Pakistan, the title to which vested in the State of Jammu and Kashmir [1][, or the Maharaja of Jammu and Kashmir or the Maharaja of Poonch,] on the fifteenth day of August, 1947 ;

AND WHEREAS the constitutional position in the State of Jammu and Kashmir has altered since that date giving rise to an international dispute as to its legality;

AND WHEREAS the said properties are suffering for want of care;

Now THEREFORE, in pursuance of the Proclamation of the seventh day of October, 1958, and in exercise of all powers enabling him in that behalf, the President is pleased to make and promulgate the following Ordinance:—

1. Short title, extent and commencement.—(1) This Ordinance may be called the Jammu and Kashmir (Administration of Property) Ordinance, 1961.

(2) It extends to the whole of Pakistan.

(3) It shall come into force at once.

[1]**[2. Vesting of properties in the [2][Federal Government].**—All immovable properties, situated in the territory of Pakistan the title to which vested in the State of Jammu and Kashmir, or the Maharaja of Jammu and Kashmir or the Maharaja of Poonch, on the fifteenth day of August, 1947, shall vest, free from all encumbrances, in the [2][Federal Government], and shall be deemed to have so vested on that date.].

[1]**[3. Management, sale or lease of properties, etc.**—(1) The [2][Federal Government] may make arrangements for the management, sale, lease or disposal otherwise of the properties vested in it under section 2.

[3][(1A) For the purpose of advising the Federal Government in the exercise of its powers under this Ordinance, the Federal Government may constitute a Management Committee consisting of such persons as the Federal Government may deem fit.] ;

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[1]Subs. by Ordinance No. XLIII of 1961 s. 3 and 4.
[2]Subs. by F.A.O., 1975 Art. 2 and Table.
[3]Ins. by Act No. XVIII of 1977, ss.2 and 3.

(2) [1][The] [2][Federal Government] may appoint a person, to be called the [1][Administrator of State Properties of Jammu and Kashmir (hereinafter referred to as the [1][Administrator], who shall take possession of and hold, and, subject to the previous approval in writing of the [2][Federal Government], have the power to deal with and dispose of, all or any of the aforesaid properties, and shall exercise such other powers in relation thereto as may be prescribed by rules made under section 6.

(3) Without prejudice to the generality of the provisions of sub-section (2), and notwithstanding anything contained in any other law for the time being in force, the [1][Administrator] after giving to the person or persons affected not less than fifteen days notice, may, in such manner as may be provided by rules, and with the use of such force as may be necessary,—

(a) take possession and assume control of any property referred to in this section ;

[3][(aa) raise the rent of any property, if considered necessary;]

(b) evict summarily any person [3][who is in default in the payment of rent of any such property for not less than three months or is] in unauthorized occupation or wrongful possession of any such property ; and

(c) demolish or dismantle any unauthorized construction on any such property, and recover from the person responsible for such construction any expenses incurred in connection with such demolition or dismantling].

[1]**[3A. Adjudication of disputes.**—If any person to whom a notice has been given under sub-section (3) of section 3 files with the Administrator, within the time specified in the notice, his objection to the action proposed being taken, stating the grounds of the objection, the Administrator may, after affording such person an opportunity of being heard personally or through counsel or a duly authorised agent, pass such orders as he may deem fit.

3B. Appeal.—(1) Any person aggrieved by an order of the Administrator under section 3A may, within three months of the date of such order, prefer an appeal to such authority as the Federal Government may, by notification in the official Gazette, specify in this behalf.

(2) The authority specified under sub-section (1) may make such further inquiry as it may consider necessary and, after giving the appellant an opportunity of being heard if he so desires, pass such orders as it thinks fit confirming, altering or annulling the order appealed against.

(3) The authority specified under sub-section (1) shall, for the purpose of deciding an appeal, be deemed to be a civil court and shall have the same powers as are vested in such court under the Code of Civil Procedure, 1908 (Act V of 1908), including the powers of—

(a) summoning and enforcing the attendance of any persons and examining him on oath ;

[1]Subs. & Ins. by Act No. XVIII of 1977, ss.2 and 3.
[2]Subs. by F.A.O., 1975 Art. 2 and Table.
[3]Ins. by Ordinance No. XLI of 1979, s. 2.

(b) compelling the discovery and production of any document ; and

(c) issuing commissions for the examination of witnesses and documents.

3C. Revision.—The Federal Government may, on the application of any person aggrieved by an order passed by the authority under section 3B, if the application is made within thirty days of the communication of such order to him, pass such order in relation thereto as it thinks fit :

Provided that no order under this section shall be passed unless the person likely to be affected thereby has been given an opportunity of showing cause against it or of being heard personally or through counsel or a duly authorised agent.]

4. Deposit of sale proceeds etc.—(1) The proceeds of any sale effected under section 3 shall be deposited in a special account to be called "The Sale Proceeds Account of Immovable Property of Jammu and Kashmir State".

[1][(2) The amount deposited in the account mentioned in sub-section (1) and the income from that amount, shall be utilized for such purposes including the rehabilitation of refugees from the State of Jammu and Kashmir, as may be prescribed by rules made under section 6 or as may be determined by the Federal Government.].

5. Certification of sale.—(1) The sale to the purchaser shall be certified by the [2][Federal Government] in the manner prescribed by rules made under section 6.

(2) A certificate granted under sub-section (1) shall be conclusive proof of full title acquired by the purchaser.

[3]**[5A. [1][Administrator] and certain other persons to be public servants.**—The [1][Administrator], and every other person duly appointed or authorised to perform any function under this Ordinance, shall be deemed to be a public servant within the meaning of section 21 of the Pakistan Penal Code (Act XLV of 1860).

5B. Bar of legal proceedings, etc.—(1) No suit, prosecution or other legal proceeding shall lie against Government, the [1][Administrator] or any other person for anything which is in good faith done or intended to be done under this Ordinance.

(2) Properties vested in the [2][Federal Government] under section 2 shall be exempt from all legal processes, including seizure, distress, ejectment, attachment or sale by any officer of a Court or any other authority, and [1][no Court shall have jurisdiction, or entertain any proceedings, in respect of any such property or of any matter within the competence of the Federal Government, the Administrator or other authority and no injunction or other order of whatever kind shall be passed or made by any Court or other authority in respect of any such property or of any action taken or to be taken in exercise of any power conferred by or under this Ordinance].

5C. Recovery of arrears.—Any sum due, whether as rent or otherwise, in respect of any of the aforesaid properties, if not paid within the time specified by the [1][Administrator] shall be recoverable as arrears of land revenue.].

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[1]Subs. by Act No. XVIII of 1977, Ss. 4, 5, 6 and 7.
[2]Subs. by F.A.O., 1975, Art. 2 and Table.
[3]Sections 5A, 5B and 5C ins. by Ordinance No. XLIII of 1961, s.5.

6. Power to make rules.—(1) The [1][Federal Government] may make rules, not inconsistent with the provisions of this Ordinance, to carry into effect any of its purposes.

[2][(2) Without prejudice to the provisions of sub-section (1), such rules may provide—

(a) the manner in which any notice under this Ordinance may be served ;

[3][(aa) the functions, powers and procedure of the Management Committee constituted under sub-section (1A) of section 3 ;]

(b) the manner in which the [3][Administrator] or any person authorized by him in this behalf, may take possession of any property ;

(c) the manner in which any person in unauthorized occupation or wrongful possession of any property may be summarily evicted ;

(d) the manner in which any unauthorized construction or any property may be demolished or dismantled ;

(e) the manner in which the amount in the account mentioned in sub-section (1) of section 4 may be invested ;

(f) the purposes for which the income from the amount invested under clause (e) may be utilized;

(g) the purposes for which any portion of the amounts deposited in the said account may be utilized; and

(h) the purposes for which the rents received from the lease of any property may be utilized.]

7. Final adjustment of the account.—The account mentioned in sub-section (1) of section 4 shall be adjusted after the status of Jammu and Kashmir has been finally determined.

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RGN Date: 16-05-2024

[1]Subs. by F.A.O., 1975, Art. 2 and Table.
[2]Subs. by Ordinance No. XLIII of 1961, s. 6.
[3]Ins. by Act No. XVIII of 1977, s. 8.

THE KARACHI ESSENTIAL ARTICLES (PRICE CONTROL AND ANTL-HOARDING) ACT, 1953

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THE KARACHI ESSENTIAL ARTICLES (PRICE CONTROL AND ANTI-HOARDING) ACT, 1953.

[1]ACT NO. XXVII OF 1953

[3rd *November*, 1953]

An Act to provide for regulating the possession, distribution, sale and prices of certain essential articles in the [2][Karachi Division].

WHEREAS it is expedient to make certain provisions for regulating the possession, distribution, sale and prices of certain essential articles in the [2][Karachi Division] ;

It is hereby enacted as follows:—

1. Short title extent and commencement.—(1) This Act may be called the Karachi Essential Articles (Price Control and Anti-Hoarding) Act, 1953.

(2) It extends to the [2][Karachi Division].

(3) It shall come into force at once.

2. Definitions. In this Act, unless there is anything repugnant in the subject or context,—

[3][(a) "Commissioner" means the Commissioner of the Karachi Division ;]

(b) "essential article" means any article, other than an "essential commodity" within the meaning of section 2 of the Essential Supplies (Temporary Powers) Act, 1946 (XXIV of 1946), which the [4][Commissioner] may, from time

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[1] *For Statement of Objects and Reasons, see Gaz. of P., 1953, Pt. IX, p. 131.*

[2] *Subs. by A.O., 1964, Art. 2 and Sch., for "Federal Territory of Karachi" which had been subs. by the Repealing and Amending Ordinance, 1961 (1 of 1961), s. 3, and 2nd Sch, for "Capital of the Federation".*

[3] *Subs. ibid., for clause (a) which had been subs. by the Repealing and Amending Ordinance, 1961 (1 of 1961), s. 3 and 2nd Sch., for the original clause (a) .*

[4] *Subs. ibid., for "Agent" which had been subs. by Ordinance 1 of 1961. s. 3 and 2nd Sch., for "Chief Commissioner".*

to time, declare by notification, to be an article to which the provisions of this Act shall apply ;

(c) "notification" means a notification published in the official Gazette ;

(d) "prescribed" means prescribed by rules made under this Act ;

(e) "retailer" means a trader who sells any essential article directly to a consumer ;

(f) "trader" means any person engaged in the purchases, sale, or storage for sale of any essential article ;

(g) "wholesaler" means a trader other than a retailer

3. Power to fix prices and to require marking of prices.—(1) The [1][Commissioner] may, by notification, fix the maximum prices above which no essential article shall be sold by any wholesaler, retailer, trader or any other person, and the prices so fixed may be different in different localities.

(2) The [1][Commissioner] may, by notification, require any trader to mark essential articles with the sale prices fixed under sub-section (1), in such manner as may be prescribed.

(3) The [1][Commissioner] may, by order in writing, require any trader to exhibit a list of essential articles with prices fixed under sub-section (1) at convenient place of his shop premises as prescribed.

4. Prohibition against purchase, sale, etc., at prices exceeding the maximum price.—(1) Notwithstanding anything contained in any contract, no wholesaler, retailer, trader or other person shall sell or purchase, or deliver or accept delivery of, any essential article at a price exceeding the maximum price fixed under sub-section (1) of section 3.

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[1] Subs. by A.O., 1964, Art. 2 and Sch., for "Agent" which had been subs. by Ordinance 1 of 1961, s. 3 and 2nd Sch., for "Chief Commissioner".

(2) No trader shall sell or offer or exhibit for sale any essential articles in respect of which marking of sale prices has been required under sub-section (2) of section 3 unless such article has been so marked.

5. Power to control possession of essential article.— (1) The [1][Commissioner] may, by notification, direct that no wholesaler, retailer, trader or other person shall keep in his possession or under his control any essential article in excess of the quantity specified in such notification.

(2) If, on the date of issue of a notification under subsection (1) in respect of any essential article, any wholesaler, retailer, trader or other person has in his possession any quantity of such essential article in excess of the quantity specified in such notification, he shall forthwith report the fact to the [1][Commissioner] or to such other officer as may be empowered in this behalf by the [1][Commissioner], and shall take such action as to storage, distribution, or disposal of the excess quantity as the [1][Commissioner] or such other officer may direct.

6. Power to require licence for trading. The [1][Commissioner] may, by notification, direct that no trader or class of traders shall deal in any essential article except under, and in accordance with the conditions of, a licence issued in this behalf by the [1][Commissioner], on payment of such fees and in such manner and form as may be prescribed.

7. Direction to sell to specified persons. The [1][Commissioner] may, by general or special order in writing, direct any wholesaler, retailer, or trader holding stocks of any essential article to sell the whole or a specified part thereof at prices not exceeding the maximum fixed under subsection (1) of section 3, to such persons or class of persons and in such circumstances or against such permits as may be specified in the order.

8. Prohibition against withholding of sales. No wholesaler, retailer or trader shall, unless previously authorised in writing to do so by the [1][Commissioner], withhold from sale or refuse to

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[1] Subs. by A.O., 1964, Art. 2 and Sch., for "Agent" which had been subs. by the Repealing and Amending Ordinance, 1961 (1 of 1961), s. 3 and 2nd Sch., for "Chief Commissioner".

sell to any person any essential article within the limits as to quantity imposed by or under this Act.

9. Power to require maintenance of account etc., and registration of godowns.—(1) Any officer authorised in this behalf by the [1][Commissioner] may, by general or special order in writing, direct any wholesaler, retailer or trader :—

(a) to maintain accounts relating to any transaction in such manner and form as may be prescribed ;

(b) to submit such accounts, returns, reports or statements relating to any transaction in such manner and form as may be prescribed ;

(c) to cause his storage godown to be registered in such manner and within such period as may be prescribed.

(2) No person whose godown has been registered under clause (c) of sub-section (1) shall store any essential article in any place other than the godown so registered.

10. Power to enter, inspect, search, etc. Any officer authorised in this behalf by the [1][Commissioner] may—

(a) enter and inspect any premises, vessels, vehicles, or aircraft, used or believed to be used for the purchase, sale, transport, or storage for sale of any essential article ;

(b) enter and search any premises, vessels, vehicles, or aircraft, and seize any essential article, together with the containers thereof, in respect of which he has reasons to believe that a contravention of the provisions of this Act has been or is about to be committed ;

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[1] Subs. by A.O., 1964, Art. 2 and Sch., for "Agent" which had been subs. by the Repealing and Amending Ordinance, 1961 (1 of 1961), s. 3 and 2nd Sch., for "Chief Commissioner".

(c) direct the owner, occupier or other person in charge of such premises, vehicles, vessels or aircraft or any trader to produce any books, accounts, vouchers or other documents relating to the purchase, sale or storage for sale or transport of any essential article or to furnish such information relating to such transaction as the officer so authorised may require ;

(d) inspect or cause to be inspected any books, accounts, vouchers or other documents relating to any such transaction as aforesaid ; and

(e) take or cause to be taken extracts from or copies of any document relating to such transaction.

11. Provisions of the Act not to apply in case of Government purchase, etc. The provisions of this Act shall not apply to the purchase, storage or distribution of any essential article by or on behalf of the [1][Federal Government] or any Provincial Government.

12. Power to exempt. The [2][Commissioner] may, by notification, exempt any person or class of persons from all or any of the provisions of this Act, subject to such conditions, if any, as may be specified in the notification.

13. Penalty and procedure, etc. If any person contravenes any of the provisions of this Act or any rule made thereunder, direction or order issued under any such provision he shall be deemed to have committed the offence of hoarding or, as the case may be, of dealing in the black market, under section 3 of the Hoarding and Black Market Act, 1948, (XXIX of 1948), and all the provisions of that Act, shall apply to such contravention as if such contravention were an offence under that Act.

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[1] *Subs. by F.A.O., 1975, Art. 2 and Table, for "Central Government".*

[2] *Subs. by A.O., 1964, Art. 2 and Sch., for "Agent", which had been subs. by the Repealing and Amending Ordinance, 1961 (1 of 1961), s. 3 and 2nd Sch., for "Chief Commissioner".*

14. Delegation of power etc. The [1][Commissioner] may, by notification, direct that any power or duty which is conferred or imposed by this Act on him shall, subject to such conditions, if any, as may be specified in the notification, be exercised or discharged also by any officer or authority subordinate to him.

15. Public servant. Any person empowered or authorised to do anything under this Act shall be deemed to be a public servant within the meaning of section 21 of the Pakistan Penal Code (XLV of 1860).

16. Power to make rules. The [1][Commissioner] may make rules for carrying out the provisions of this Act.

17. Indemnity.—(1) No suit, prosecution or other legal proceeding shall lie against any person for anything which is in good faith done or intended to be done in pursuance of any provision of this Act and the rules made thereunder.

(2) No suit or other legal proceeding shall lie against the [1][Commissioner] for any damage caused or likely to be caused by anything which is in good faith done or intended to be done in pursuance of any provision of this Act or the rules made thereunder.

18. Repeal and saving.—(1) The Karachi Essential Articles (Price Control and Anti-Hoarding) Ordinance, 1953 (Ord. III of 1953), is hereby repealed.

(2) Any order, direction or rule made under the said Ordinance and in force immediately before the commencement of this Act shall be deemed to have been made under the provisions of this Act and shall have effect accordingly.

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[1] Subs. by A.O., 1964, Art. 2 and Sch., for "Agent" which had been subs. by the Repealing and Amending Ordinance, 1961 (1 of 1961), s. 3 and 2nd Sch., for "Chief Commissioner".

THE KARACHI HOTELS AND LODGING HOUSES (CONTROL) ACT, 1950

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7. Controller to fix limit of persons to be accommodated in any room
8. Fair rates and limits of persons for rooms to be displayed
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THE KARACHI HOTELS AND LODGING HOUSES (CONTROL) ACT, 1950

[1]ACT NO. LXV OF 1950

[23rd October, 1950]

An Act to provide for special measures for control of rates chargeable in hotels and lodging-houses in Karachi, for the reservation of accommodation therein and for ancillary matters.

WHEREAS it is expedient to provide for special measures for control of rates chargeable in hotels and lodging-houses in Karachi, for the reservation of accommodation therein and for ancillary matters;

It is hereby enacted as follows:—

1. Short title, commencement and extent.—(1) This Act may be called the Karachi Hotels and Lodging-houses (Control) Act, 1950.

(2) It shall come into force at once.

(3) It extends to the [2][Karachi Division].

2. Definitions. In this Act, unless there is anything repugnant in the subject or context—

(1) the expression "accommodation" has reference to lodging, board and service, or any one or more than one of these facilities, as may be required by, or agreed to be provided to, a guest;

(2) "fair rate" means the rate fixed under section 6, and includes a revised rate;

(3) "guest" means a person who is in possession or enjoyment of accommodation engaged for him;

(4) "Hotel or Lodging-house" means a building which is exclusively or mainly used, for providing accommodation for guests for a monetary consideration but shall not include a home or hostel which is maintained exclusively for aged or incurable persons, or, as the case may be, for students, by or under the control of a charitable or educational institution;

(5) "manager of a hotel" means any person in charge of a hotel;

(6) "owner of a lodging-house" means the person who receives or is entitled to receive payment from a guest on account of accommodation provided, and includes a person managing a lodging-house, as an agent or trustee or otherwise;

(7) "prescribed" means prescribed by rules made under this Act;

(8) "public rooms" means and includes all rooms in a hotel or lodging-house which are reserved and left open for the common use of all guests;

[1]The Chief Commissioner of Karachi has been authorised to exercise in respect of the Capital of the Federation, all the powers and duties conferred or imposed on the Central Government under sub-sections (1) and (2) of s. 3, sub-section (2) of s. 9. sub-section (4) of s.14 and s. 23, of this Act, see Gaz. of P., 1953, Pt. 1, pp. 171-172.

[2]Subs. by A. O., 1964, Art. 2 and Sch.

(9) "service" means any service ordinarily provided in a hotel or lodging-house.

3. Appointment of Controller and Additional Controllers.—(1) The [1][Provincial Government] may, by notification in the official Gazette, appoint a person to be Controller for the purposes of this Act and may, also appoint such number of Additional Controllers as may be necessary for carrying out the said purposes.

(2) Appointment of Advisory Committee. The [1][Provincial Government] may also constitute an Advisory Committee, consisting of not less than three and not more than five persons, to aid and advise the Controller in relation to such of his functions as may be prescribed.

4. Registration of hotels and lodging-houses. Within a period of two months from the commencement of this Act, or from the opening of any hotel or lodging-house, whichever is later, the owner of every hotel and lodging-house shall apply to the Controller for registration of his hotel or lodging-house, and for determination of fair rates in relation thereto.

5. Classification of hotels and lodging-houses.—(1) The Controller may, by order in writing, classify all hotels and lodging houses into categories according to the standard of board, lodging and service provided by them, for the purpose of determination of fair rates.

(2) Nothing in sub-section (1) shall be deemed to prevent the determination of fair rates by the Controller in relation to any hotel or lodging-house, irrespective of any category in which it may have been placed, or whether it has been so classified.

6. Controller to fix fair rates for accommodation.—(1) The Controller may fix a fair rate to be charged for board, lodging and other service provided in a hotel or boarding-house, at such amount as, having regard to all the circumstances, he deems just.

(2) A fair rate may be fixed separately for—

(a) lodging with reference to the nature of the accommodation and the number of guests to be accommodated;

(b) board, partial or full; or

(c) other service, or the Controller may fix a consolidated rate for lodging, board and service, or for lodging and service only, as above.

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(3) A fair rate may be fixed separately for daily and monthly guests.

Explanation.— A guest who agrees to reserve accommodation, or for whom accommodations reserved for a period of one month or more shall be deemed to be a monthly guest, provided he actually stays for one month or more or has actually paid in advance for one month: where the reservation is not for any specified period, or is for a period less than a month, the guest shall be deemed to be a daily guest.

(4) The Controller may from time to time revise the fair rates determined by him under this section.

[1]Subs. by A. O., 1964, Art. 2 and Sch.

(5) In making an order fixing or revising a fair rate, the Controller shall fix the date, being the first day of a month not earlier than the month in which the order is made, from which the order is to take effect.

(6) Until such time as fair rates are fixed in relation to any hotel or lodging-house under this section, the rate, if any, charged by such hotel or lodging-house on the first day of July, 1947, for equivalent lodging, board or service to that provided, shall be deemed to be the fair rate chargeable.

7. Controller to fix limit of persons to be accommodated in any room.—(1) The Controller may fix the maximum number of guests to be accommodated in each room or other unit of accommodation in a hotel or lodging-house.

(2) Save as hereafter provided, no room for which an order has been made under sub-section (1) shall be used to accommodate any number of guests in, excess of the number specified in the order except with the previous permission of the Controller in writing.

(3) The Controller may from time to time revise any order made by him under sub-section (1) so as to increase or reduce the number of guests specified in such order.

(4) The [1][Provincial Government] may by rule prescribe the conditions under and the circumstances in which the permission of the Controller under sub-section (2) shall not be necessary.

8. Fair rates and limits of persons for rooms to be displayed. The fair rate fixed by the Controller and the maximum number of guests who may be accommodated in relation to each room or unit of accommodation in a hotel or lodging-house shall be displayed in such room or place, and a consolidated chart showing such information in respect of all the rooms and other accommodation, in a hotel or lodging-house shall be displayed in a conspicuous manner in the office and in the public rooms, if any, of such hotel or lodging-house.

9. Reservation of accommodation at the instance of Controller.—(1) Subject to such rules as may be made in this behalf by [1][Provincial Government] the Controller may by order direct the manager of a hotel or the owner of a lodging-house to reserve in the hotel or lodging-house such accommodation as may be specified in the order.

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(2) Subject to any direction by the [1][Provincial Government] in this behalf, the Controller may allot the accommodation reserved under sub-section (1) to any person and such person shall thereupon be deemed to be a guest at the hotel or lodging-house, in relation to the accommodation allotted to him.

(3) Where any accommodation is reserved under sub-section (1), the manager of the hotel or the owner of the lodging-house shall make the accommodation so reserved, or such portion of it as the Controller -may direct, available to the Controller, for occupation by the person to whom it has been allotted, at the expiry of twenty-four hours from the service upon him of a notice in writing in this behalf by the Controller.

(4) Nothing in this section shall prevent the manager of a hotel or the owner of a lodging-house from letting any accommodation reserved under sub-section (1) to a guest other than the person to whom such accommodation is allotted by the Controller, upon the condition that if and when a notice is received from the Controller under sub-section (3), such guest will vacate the accommodation within twenty-four hours of the receipt of such notice.

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[1]Subs. By A.O., 1964, Art. 2 and Sch.

10. Charge in excess of fair rate prohibited.—(1) Notwithstanding any agreement to the contrary, no manager of a hotel or an owner of a lodging-house shall charge a guest any amount in excess of the fair rate.

(2) Any agreement for the payment of any charges in excess of the fair rate shall be void in respect of such excess, and shall be construed as if it were an agreement for payment of the said fair rate.

(3) Any sum paid by a guest in excess of the fair rate shall be recoverable at any time within a period of six months from the date of payment from the manager of the hotel or the owner of the lodging-house to whom it was paid, or from the legal representative of either of these persons, and without prejudice to any other mode of recovery which may be open to him, the guest may deduct such amount from any sum payable by him for his accommodation.

11. Conditions applicable to eviction of guests.—(1) Except as provided hereinafter, no guest in a hotel or lodging-house shall be evicted or refused board or other service so long as he pays, or is ready and willing to pay the fair rate, and observes and performs the conditions of his agreement in so far as they are consistent with the provisions of this Act.

(2) If the Controller is satisfied that—

(a) a guest in a hotel or lodging-house has been guilty of conduct which is a nuisance or source of annoyance to other guests or to persons living in the neighborhood; or

(b) the accommodation he occupies is reasonably and bona fide required by the manager of the hotel or the owner of the lodging-house as the case may be, for his own occupation, or for occupation by any person for whose benefit the accommodation has been reserved to the knowledge of such guest, or for any other cause which may be deemed satisfactory by the Controller; or

(c) the guest has failed to vacate the accommodation on the termination of the period of his agreement in respect thereof; the Controller may make an order to that effect and authorise the manager or owner, as the case may be, to recover possession of the accommodation provided to such guest, after giving him such notice, not exceeding seven days, as may be specified in the order.

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(3) An order under sub-section (2) shall not be made unless the guest has been given an opportunity to show cause against it.

12. Procedure and powers of the Controller.—(1) No order under section 5, 6, 7 or 11 of this Act shall be made by the Controller, except after holding an enquiry.

(2) Every such enquiry shall be made summarily in the prescribed manner.

(3) For the purpose of holding such enquiries and any other enquiries which he may deem necessary for the discharge of his functions under the Act, the Controller shall have the same powers as are vested in civil courts in respect of—

(a) proof of facts by affidavit;

(b) summoning and enforcing the attendance of any person and examining him on oath;

(c) compelling the production of documents and other material evidence; and

(d) issuing commissions for the examination of witnesses.

(4) The proceedings of every enquiry under sub-section (1) shall be deemed to be judicial proceedings for the purposes of sections 193 and 228 of the Pakistan Penal Code (XLV of 1860).

13. Further powers of Controller.—(1) For the purposes of this Act, the Controller may—

(a) require the manager of a hotel or the owner of a lodging-house to produce any book of account, document or other papers in his possession or power which contain or are believed to contain information relating to the hotel or lodging-house; and

(b) enter, and by written order, authorise an officer subordinate to him to enter, any hotel or lodging-house.

(2) Controller's power of summary eviction. The Controller may, on application by the manager of a hotel or the owner of a lodging-house evict any guest who fails to obey an order for delivery of possession under sub-section (2) of section 11.

(3) If the manager of a hotel or the owner of a lodging-house fails to make available to the Controller, any accommodation reserved under sub-section (1) of section 9 and in respect of which a notice has been duly served under sub-section (3) of section 9, within the period allowed by the latter sub-section, the Controller may forthwith take possession of such accommodation, and may for that purpose summarily evict any person in occupation thereof after giving such notice to the latter, not exceeding twenty-four hours as he may think fit.

(4) In exercising the powers of seizure and eviction under this section, the Controller may enter upon the premises, and may use such force as, in his opinion, is reasonably necessary.

14. Appeals.—(1) Any person aggrieved by an order of the Controller under section 5, 6, 7 or 9 may appeal there-from, in writing, to the appellate authority under this Act, within fifteen days from the date on which the order is communicated to him.

(2) The appellate authority shall call for the record and shall direct issue of notice to the Controller and to all other persons who, in his opinion, may be directly affected by the result of the appeal, and after hearing all such parties and examining the record, and after such further enquiry, either by himself or by the Controller, as he may deem fit, shall decide the appeal.

(3) The decision of the appellate authority, and subject only to such decision, the order of the Controller to which this section relates, shall be final and shall not be called in question in any court.

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(4) The expression "appellate authority" shall mean the [1][Commissioner of the Karachi Division] and shall include any other officer appointed by the [1][Provincial Government] to exercise the powers of an appellate authority under this section.

15. Penalty for failure to register hotel or lodging-house. Any owner of a hotel or a lodging-house who fails to register his hotel or lodging-house in compliance with section 4 shall be punishable with imprisonment of either description which may extend to one month, or with fine, or with both.

16. Penalty for failing to display fair rates and accommodation, etc. Any manager of a hotel or owner of a lodging-house who fails to display the fair rates and the limit of guests for each room or other unit of accommodation fixed by the Controller, as required by section 8, shall be punishable with fine.

17. Penalty for disobeying reservation order. Any manager of a hotel or owner of a lodging-house who fails when required by notice under sub-section (3) of section 9, to make reserved accommodation available to the Controller in compliance with the said sub-section, shall, unless he proves that the failure was due to circumstances beyond his control, be punishable with fine.

18. Penalty for charging in excess of fair rates and exceeding limit of accommodation. Any manager of a hotel or owner of a lodging-house who—

(a) charges any amount in excess of the fair rate fixed by the Controller under section 6, or

(b) accommodates guests, or permits guests to be accommodated, in any room or other unit of accommodation in his hotel or lodging-house, in excess of the number fixed therefore by the Controller under section 7, shall be punishable with imprisonment of either description which may extend to six months or with fine, or with both.

19. Constructive liability of owners of hotels, etc.—(1) Every owner of a hotel which is in charge of a manager, and in relation to a hotel owned by a company or firm, every director, Secretary, partner or officer of such company or firm shall be liable to prosecution, equally with the manager of the hotel for any offence punishable under section 16, or section 17 or section 18.

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(2) If any person who is prosecuted under the provisions of sub-section (1) proves that the offence was committed without his knowledge or that he exercised all due diligence to prevent its commission, he shall be entitled to acquittal.

20. Cognizance of offences.—(1) No Court shall take cognizance of an offence under this Act except on a complaint made by the Controller in writing.

(2) No court exercising powers inferior to those of a magistrate of the first class shall try any offence under this Act.

21. Bar of suits. No suit or other legal proceeding shall lie against the Controller or any person acting under his orders, in respect of anything which is in good faith done or intended to be done under this Act.

[1]Subs. by A.O., 1964, Art.2 and Sch.

22. Rules.—(1) The [1][Provincial Government] may make rules[2] for carrying out the purposes of this Act.

(2) Without prejudice to the generality of the power conferred by the foregoing sub-section, such rules may provide for-

(a) the nature, scope and extent of the powers of a Controller which may be exercised by an Additional Controller under this Act;

(b) The functions of the Controller in respect of which he is to receive the aid and advice of the Advisory Committee; and the mode in which such aid or advice is to be sought and tendered;

(c) the conduct of its proceedings and business by the Advisory Committee;

(d) the form and manner in which registration of hotels and lodging-houses is to be effected and the fees to be charged for registration;

(e) the forms of notices displaying fair rates and maximum limits of persons to be accommodated, as required by section 8;

(f) the procedure in regard to the reservation of accommodation under sub-section (1) of section 9;

(g) the conditions ; under and the circumstances in which the permission of the Controller under subsection (2) of section 7 shall not be necessary;

(h) the form and manner of service of notice to be issued under sub-section (3) of section 9;

(i) the manner in which enquiries shall be held by the Controller;

(j) the levy of court fees on applications and proceedings before the Controller.

23. Exemption. This Act shall not apply to any hostel or other premises belonging to or in the possession of the [3][Federal] or any Provincial Government where lodging, board or other service is provided mainly for Government officials, but it shall apply in respect of lodging, board or other service in any hotel or lodging-house which the manager or keeper has agreed or is required to provide to, or under the instructions of, the [1][Provincial Government].

RI - Date: 13-05-2024

[1]Subs. by A.O., 1964, Art. 2 and Sch.
[2]For the Karachi Hotels and Lodging-houses (Control) Rules, 1955. see Gaz. of P., 1955 Part. I, pp. 63___ 64.
[3]Subs. By F.A.O. 1975 Art. 2 and Table.

THE KAZIS ACT, 1880

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1. Short title

   Local extent

2. Power to appoint Kazis for any local area

3. Naib Kazis

4. Nothing in act to confer judicial or administrative powers; or to render the presence of Kazi necessary; or to prevent any one acting as Kazi

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THE KAZIS ACT, 1880

[1]ACT No. XII OF 1880

[*9th July, 1880*]

An Act for the appointment of persons to the office of Kazi

WHEREAS by the preamble to Act No. XI of 1864 [2]*(An Act to repeal the law relating to the offices of Hindu and Muhammadan Law Officers and to the offices of Kazi-ul-Kuzaat and of Kazi, and to abolish the former offices)* it was (among other things) declared that it was inexpedient that the appointment of the Kazi-ul-Kuzaat, or of City, Town of Pargana Kazis, should be made by the Government, and by the same Act the enactments relating to the appointment by the Government of the said officers were repealed; and

whereas by the usage of the Muhammadan community in some parts of [3][Pakistan] the presence of Kazis appointed by the Government is required at the celebration of marriages and the performance of certain other rites and ceremonies, and it is therefore expedient that the Government should again be empowered to appoint persons to the office of Kazi; It is hereby enacted as follows:—

1. Short title. This Act may be called the Kazis Act, 1880;

[4]* * * * * * *

Local Extent. [5]* * * [6][The] [7][Provincial Government] may from time to time, by notification in the official Gazette, extend it to the whole or any part of the territories under its adniinistration[8].

2. Power to appoint Kazis for any local area. Wherever it appears to the [7][Provincial Government] that any considerable number of the [9][Muslims] resident in any local area desire that one or more Kazis should be appointed for such local area, the [5][Provincial Government] may, if it thinks fit, after consulting the principal [10][Muslim] residents of such local area, select one or more fit persons and appoint him or them to be Kazis for such local area.

If any question arises whether any person has been rightly appointed Kazi under this section, the decision thereof by the [7][Provincial Government] shall be conclusive.

The [7][Provincial Government] may, if it thinks fit, suspend or remove any Kazi appointed under this section who is guilty of any misconduct in the execution of his office, or who is for a continuous period of six months absent from the local area for which he is appointed, or leaves such local area for the purpose of residing elsewhere, or is declared an insolvent, or desires to be discharged from the office, or who refuses or becomes in the opinion of the [7][Provincial Government] unfit, or personally incapable, to discharge the duties of the office.

[1]For Statement of Objects and Reasons, *see* Gazette of India, 1880 Pt. V., p.21 ; for the Report of the Select Committee, *see ibid.* Pt. V., p. 203 ; for discussions in Council, *see ibid.,* Supplement, pp. 345, 356 and 1203.
This Act has been repealed to the extent of Islamabad Capital Territory *see* Ordinance No. 27 of 1981, s. 4 and 3rd Sch.
[2]Rep. by the Repealing Act, 1868 (8 of 1868).
[3]Subs. by the Central Laws (Statute Reform) Ordinance, 1960 (21 of 1960), s. 3 and 2nd Sch (with effect from the 14th October, 1955), for "the Provinces and the Capital of the Federation" which had been subs. by A.O., 1949, Arts. 3 (2) and 4, for "British India".
[4]The words "and it shall come into force at once" rep. by the Repealing and Amending Act, 1914 (10 of 1914).
[5]The words "It extends, in the first instance, only to the territories administered by the Governor of Fort Saint George in Council. But' omitted by A. O., 1949, Sch.
[6]Subs. *ibid.,* for "any other".
[7]Subs. by A.O., 1937, for "L. G".
[8]The Act has been extended to certain places in the Punjab, *see* local Rules and orders.
[9]Subs. by F.A.O., 1975, Art. 2 and Table, for "Muhammadans".
[10]Subs. *ibid.,* for "Muhammadan".

3. Naib Kazis. Any Kazi appointed under this Act may appoint one or more persons as his naib or naibs to act in his place in all or any of the matters appertaining to his office throughout the whole or in any portion of the local area for which he is appointed, and may suspend or remove any naib so appointed.

When any Kazi is suspended or removed under section 2, his naib or naibs (if any) shall be deemed to be suspended or removed, as the case may be.

4. Nothing in act to confer judicial or administrative powers; or to render the presence of Kazi necessary; or to prevent any one acting as Kazi. Nothing herein contained, and no appointment made hereunder, shall be deemed—

(a) to confer any judicial or administrative powers on any Kazi or Naib Kazi appointed hereunder; or

(b) to render the presence of a Kazi or Naib Kazi necessary at the celebration of any marriage or the performance of any rite or ceremony; or

(*c)* to prevent any person discharging any of the functions of a Kazi.

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THE KORANGI FISHERIES HARBOUR AUTHORITY ORDINANCE, 1982

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THE KORANGI FISHERIES HOURBOUR AUTHORITY ORDINANCE, 1982.

ORDINANCE No. XVI OF 1982

[*12th July, 1982*]

An Ordinance to provide for the establishment of Korangi Fisheries Hourbour Authority.

WHEREAS it is expedient to provide for the establishment of an Authority within the limits of Port Qasim for making all arrangements for the planning, construction, operation, management and maintenance of Korangi Fisheries Harbour for exploiting fisheries resources beyond territorial waters ;

AND WHEREAS the President is satisfied that circumstances exist which render it necessary to take immediate action ;

NOW, THEREFORE, in pursuance of the Proclamation of the fifth day of July, 1977, and in exercise of all powers enabling him in that behalf, the President is pleased to make and promulgate the following Ordinance:—

CHAPTER I

PRELIMINARY

1. Short title, extent and commencement. This Ordinance may be called the Korangi Fisheries Harbour Authority Ordinance, 1982.

(2) It extends to the whole of the Korangi Fisheries Harbour.

(3) It shall come into force at once.

2. Definitions. In this Ordinance, unless there is anything repugnant in the subject or context,—

(a) "agency" means any department or organisation of the Federal Government or a Provincial Government and includes a corporation or other body set up or controlled by such Government ;

(b) "Authority" means the Korangi Fisheries Harbour Authority established under section 4 ;

(c) "Board" means the Board of Directors constituted under section 6 ;

(d) "building" includes any factory, industrial or business establishment, shop, godown, warehouse, house, outhouse, hut, hutment, shed, garage, stable, well or platform and any other structure, whether meant for residential or business purposes or not, made of masonry, bricks, wood, mud, thatch, metal or any other material, but does not include a temporary structure made for purposes connected with agriculture ;

(e) "Chairman" means the Chairman of the Board ;

(f) "fish" means any species of fish or aquatic animal including whales, seals, porpoises, turtles, shell-fish, oyster, crustaceans, ascidians and spawn and eggs of such animals ;

(g) "Harbour area" means the area falling within the limits of Korangi Fisheries Harbour as may be defined for the purposes of this Ordinance ;

(h) "land" includes buildings and benefits arising out of land and things attached to the earth or permanently fastened to anything attached to the earth and the foreshore and the bed of sea ;

(i) "local body" means a local council or council constituted under a law relating to local government ;

(j) "member" means a member of the Board ;

(k) "regulations" means regulations made under this Ordinance ;

(1) "rules" means rules made under this Ordinance ; and

(m) "vessel" includes any fishing boat and fishing craft of whatever size and in whatever way propelled which is for the time being employed in fishing.

3. Declaration of Harbour areas.—(1) The Federal Government may, by notification in the official Gazette, within the limits of Port Qasim, define the limits of Korangi Fisheries Harbour for the purposes of this Ordinance ; and may, from time to time, by a like notification, alter such limits.

(2) The limits defined under clause (1) may include any wharves, buildings and other works made on behalf of the public for convenience of traffic, for safety of vessels, or for the improvement, maintenance and good government of the Harbour.

CHAPTER II

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ESTABLISHMENT OF THE AUTHORITY

4. Establishment of the Authority.—(1) There shall be established an Authority to be known as the Korangi Fisheries Harbour Authority for carrying out the purposes of this Ordinance.

(2) The Authority shall be a body corporate, having perpetual succession and a common seal, with power, subject to the provisions of this Ordinance, to acquire and hold property, both movable and immovable, and shall by its name sue and be sued.

5. Management.—(1) The general direction and administration of the Authority and its affairs shall vest in the Board, which may exercise all powers and do all acts and things which may be exercised or done by the Authority.

(2) The Board in discharging its functions shall act on sound principles of fisheries harbour planning, construction, operation, management and maintenance and shall be guided on questions of policy by such directions as the Federal Government may, from time to time, give.

(3) If any question arises as to whether any matter is a matter of policy or not, the decision of the Federal Government shall be final.

6. Constitution of the Board.—(1) The Board shall consist of not less than seven and not more than eleven members, including the Chairman, consisting of—

(a) the Chairman, to be appointed by the Federal Government ;

(b) the Managing Director of the Authority ;

(c) a Representative of the Government of Sind ;

(d) the Director, Marine Fisheries Department ;

(e) the Director, Fisheries Department, Government of Sind ;

(f) a nominee of the Fish Processors' Association ;

(g) a nominee of local fishermen's association ; and

(h) such other members as the Federal, Government may appoint.

(2) The Chairman and members, other than *ex-officio* members, shall, unless the Federal Government otherwise directs hold office for a period of three years.

(3) Any person ceasing to be Chairman or a member of the Board by reason of the expiry of the term of his office shall be eligible for re-appointment for another term of three years or for such shorter term as the Federal Government may decide.

(4) No act or proceeding of the Board shall be invalid merely on the ground of the existence of any vacancy in, or any defect in the constitution of the Board.

(5) The Chairman and any member may, by writing under his hand addressed to the Federal Government, resign his office:

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Provided that his resignation shall1not take effect until accepted by the Federal Government.

7. Duties and Functions of Chairman and members.—(1) The Chairman and members shall discharge such duties and perform such functions as are assigned to them by or under this Ordinance.

(2) Until the Board is duly constituted, the Chairman shall, subject to such directions as the Federal Government may, from time to time give, exercise the powers, discharge the duties and perform the functions of the Board.

8. Headquarters of the Authority and meetings of the Board.—(1) Until the Authority establishes its headquarters elsewhere within the Harbour area, its headquarters shall be situated at Karachi.

(2) The meetings of the Board shall be held at such times and places and in such manner as the regulations may provide:

Provided that, until regulations are made in this behalf, the meetings of the Board shall be held as and when convened by the Chairman.

———

CHAPTER III

POWERS AND DUTIES OF THE AUTHORITY

9. Powers of the Authority.—(1) Subject to the other provisions of this Ordinance, the Authority may take such measures and exercise such powers as may be necessary for the carrying out of the purposes of this Ordinance.

(2) Without prejudice to the generality of the powers conferred by sub-section (1), the Authority may—

(a) incur any expenditure approved in the budget necessary for carrying out the purposes of this Ordinance ;

(b) acquire any land in the Harbour area ;

(c) hold, control and administer the property and the funds of the Authority including funds for specific purposes ;

(d) enter into and perform all such contracts as it may consider necessary ;

(e) cause removal of any works obstructing the execution of any of its schemes;

(f) seek and obtain advice and assistance for the preparation of any planning scheme or for the execution of any schemes from any local body or agency and such local body or agency shall give the advice and assistance sought by the Authority to the best of its liability, knowledge and judgement, and additional expenditure, if any, involved in giving such advice or assistance shall be borne by the Authority ;

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(g) undertake the planning, detailed designing and supervision of the construction work required for the Harbour area ;

(h) select and engage consultants to assist in the planning, detailed designing and supervision of the construction work required for the Harbour area ;

(i) procure all goods and services necessary for construction of the Harbour area, and execute such construction work;

(j) undertake the efficient operation of Harbour facilities and carry out maintenance and repairs or Harbour structures, buildings, installations, internal roads and equipment and undertake periodic inspection of all facilities to ensure that they meet statutory standards of safety and hygiene ;

(k) ensure that essential utilities are provided and are maintained to a high standard ;

(l) regulate traffic within the Harbour area and make necessary security arrangements ;

(m) acquire, hold and dispose of property, both movable and immovable, provided that the Board shall not be competent to acquire or dispose of any immovable property without the previous approval of the Federal Government;

(n) regulate, determine and administer all matters concerning the Authority and do all such acts and things as are necessary for the purpose ;

(o) submit the budget of the Authority to the Federal Government for approval;

(p) arrange for the Audit of the accounts of the Authority ;

(q) with the previous approval in writing of the Federal Government, raise funds and borrow money on such terms as may be approved by the Federal Government; and

(r) carry out any other important work not specified in this section, if necessary and appropriate for carrying out the purposes of the Authority.

(3) The Authority shall frame—

(a) a scale of charges to be levied for the use of utility services, for registration of fishermen, producers, buyers, retailers, wholesalers, processors, ship-chandlers, exporters of fish and fish products, users of all types of vehicles and transport and hotel management, hawkers, shopkeepers, who may use the premises of the Harbour area, and also such other charges which the Board may deem fit and necessary to generate funds for the operation, repairs, maintenance, up-keep and effective management and control of the Harbour area ;

(b) rules for appropriate arrangements for a wholesale auction of fish on the premises of the Harbour area, and cause the auction fees to be received therefrom to be credited to the account of the Authority for the purpose of funding of the operation, maintenance, repair and up-keep of the Harbour area ; and

(c) regulations for the recovery of charges, fees or levies which may be due to the Authority for the use of its facilities and services.

10. Managing Director.—(1) The Federal Government shall select and appoint a whole-time Managing Director, to serve as a member of the Board, and to exercise effective control over, and make all decisions necessary for, the smooth functioning of the day to day affairs of the Authority, under the general supervision of the Board.

(2) In particular and without prejudice to the generality of the foregoing power, the Managing Director shall—

(a) be responsible for, and have the authority necessary for overseeing and implementing in an expeditious and efficient manner, the construction of the Harbour area ;

(b) have effective control of the Harbour area as a wholesale fish market and all other water front installations and establishments to be built by the Authority ;

(c) subject to the concurrence of the Federal Government and the Board, have the power to frame rules and regulations for the effective planning, construction, operation, management and maintenance of the Harbour area ;

(d) subject to the rules, allot or lease suitable plots of land to private individuals or firms for the establishment of boat building yards, fish processing industries, ice plants, cold storage facilities and related ancillary activities ;

(e) have the power and responsibility to—

(i) exercise administrative control over the personnel of the Authority ;

(ii) exercise, in respect of the Authority, such other management, administrative and financial powers as deemed appropriate by the Authority ;

(iii) submit the annual budget proposals of the Authority to the Board ;

(iv) maintain the accounts of the Authority ;

(v) prepare the annual report of the Authority for the Board and the Federal Government ;

(vi) exercise such powers as the Board may delegate to him ; and

(vii) act on behalf of the Authority, in any emergency, subject to the obligation to report such action to the Board at its next meeting and to seek the Board's ratification of any action so taken.

CHAPTER IV

ESTABLISHMENT

11. Appointment and functions of Directors, etc.—(1) The Board shall appoint a Director of Administration, a Director of Operations, a Harbour Master and an Engineer having such qualifications and on such terms and conditions as may be prescribed by regulations.

(2) The Director of Administration shall supervise the personnel, accounts, public relations and general administration and shall also keep records and statistics.

(3) The Director of Operations shall supervise management of market, control maintenance of on-shore transport within the Harbour area and be responsible for general harbour management, including docking and quaywall activities, maintenance of navigational aids, operation of stores within the Harbour and supervision of the Harbour.

(4) The Harbour Master shall supervise the security services for on-shore facilities and shall assist the Director of Operations in the supervision of the Harbour.

(5) The Engineer shall assist the Managing Director during the period of construction work in the Harbour area in over seeing and monitoring the planning, designing and construction of the Harbour facilities.

12. Recruitment, conditions of service for officers, servants etc.—The Authority shall, by regulations made with the prior approval of the Federal Government, lay down the procedure for the appointment of its officers and servants, and the terms and conditions of their service, including the constitution and management of a provident fund for them, and shall be competent to take disciplinary action against them.

13. Members and officers to be public servants. The Chairman, members, officers and servants of Act the Authority shall, when acting or purporting to act in pursuance of any of the provisions of this Ordinance, be deemed to be public servants within the meaning of section 21 of the Pakistan Penal Code (Act XLV of 1860).

14. Indemnity. No suit, prosecution or other legal proceedings shall lie against the Authority, the Board, the Chairman, or any member, officer or servant of the Authority in respect of anything in good faith done or intended to be done under this Ordinance.

15. Delegation of powers to Chairman, etc. The Authority may by general or special order, delegate to the Chairman or a member or an officer of the Authority any of its powers, duties or functions under this Ordinance, subject to such conditions or limitations as may be specified in the order.

CHAPTER V

FINANCE

16. Korangi Fisheries Harbour Authority Fund.—(1) There shall be formed a fund to be known as the "Korangi Fisheries Harbour Authority Fund" which shall vest in the Authority and shall be utilized by the Authority to meet the charges in connection with its functions under this Ordinance.

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(2) To the credit of the Korangi Fisheries Harbour Authority Fund shall be placed—

(a) grants made by the Federal Government ;

(b) loans obtained from the Federal Government ;

(c) grants made by local bodies ;

(d) sale proceeds of movable and immovable property and receipts for services rendered ;

(e) loans obtained by the Authority with the special or general sanction of the Federal Government ;

(f) foreign aid and loans obtained from any source outside Pakistan with the sanction of, and on such terms as may be approved by, the Federal Government ;

(g) proceeds of all charges and recoveries made under this Ordinance ; and

(h) all other sums receivable by the Authority.

17. Budget.—(1) In the month of November each year, the Authority shall submit to the Federal Government for approval a statement of the estimated receipts and expenditure in rupees in respect of the next financial year.

(2) In the manner prescribed by the Federal Government, the Authority shall also submit to the Federal Government for approval a statement of the estimated receipts and expenditure in foreign exchange in respect of the next financial year.

(3) The Authority shall obtain specific sanction of the Federal Government in respect of each individual scheme costing two million and five hundred thousand rupees non-recurring or five hundred thousand rupees recurring or more to be financed out of the Korangi Fisheries Harbour Authority Fund.

18. Audit and Accounts.—(1) The accounts of the Authority shall be maintained by the Authority in such forms as may be prescribed by the Auditor-General of Pakistan consistent with the requirements of this Ordinance.

(2) The accounts of the Authority shall be audited by not less than two auditors who are chartered accountants within the meaning of the Chartered Accountants Ordinance, 1961, appointed by the Federal Government in consultation with the Auditor-General of Pakistan, on such remuneration, to be paid by the Authority, as the Federal Government may fix.

(3) Notwithstanding the provisions of sub-section (2), the Auditor-General of Pakistan may, either of his own motion or upon request received in this behalf from the Federal Government, undertake such audit of the accounts of the Authority at such time as may be considered necessary, and the Authority shall, at the time of such audit, produce the account books and connected documents at such place or places as the Auditor General may fix, and furnish such explanations and information as the Auditor-General or an officer authorized by him in this behalf may ask for.

(4) Every auditor appointed under sub-section (2) shall be given a copy of the annual balance sheet of the Authority, and shall examine it together with the accounts and vouchers relating thereto and shall have a list delivered to him of all books kept by the Authority; and shall at all reasonable times have access to the books, accounts and other documents of the Authority, and may in relation to such accounts examine any officer of the Authority.

(5) The auditors shall report to the Federal Government upon then annual balance sheet and accounts and in their report state whether in their opinion the balance sheet is a full and fair balance sheet containing all necessary particulars and properly drawn up so as to exhibit a true and correct view of the state of the Authority's affairs, and, in case they have called for any explanation or information from the Board, whether it has been given and whether it is satisfactory.

(6) The Federal Government may at any time issue directions to the auditors requiring them to report to it upon the adequacy of measures taken by the Authority for the protection of the

interests of the Federal Government and of the creditors of the Authority or upon the sufficiency of their procedure in auditing the accounts of the Authority, and may at any time enlarge or extend the scope of the audit or direct that a different procedure in audit be adopted or that any other examination be made by the auditors if in its opinion the public interest so requires.

(7) The Authority shall comply with every direction issued by the Federal Government for the rectification of matters objected to in audit.

19. Account. The Authority shall, with the prior approval of the Federal Government, open an account in any scheduled Bank in Pakistan.

CHAPTER VI

PENALTY AND PROCEDURE

20. Penalty. Whoever contravenes any provision of this Ordinance or any rule or regulation made or scheme sanctioned thereunder shall, if no other penalty is provided for such contravention, be punishable with imprisonment for a term which may extend to six months, or with fine, or with both.

21. Penalty for evading rates, etc. Any person who removes or attempts to remove, or abets within the meaning of the Pakistan Penal Code (Act XLV of 1860), the removal of goods, vessel, animal or vehicle with the intention of evading r payment of tolls, dues, rates or charges lawfully payable in respect thereof shall be punishable with fine which may extend to two thousand rupees.

22. Compensation for damage to property of Board.—(1) In case damage or mischief is done to any wharf, dock, quay, jetty, pier or work constructed or acquired by the Authority under this Ordinance by any vessel through the negligence of the master thereof or of any of the mariners or persons employed therein, not being in the service of the Authority, any Magistrate of the first class having jurisdiction in the Harbour area may, on the application of the Board and on declaration by it that payment for such damage or mischief has been refused or has not been made on demand, issue a summons to the master or owners of such vessel, requiring him to attend on a day and at an hour named in the summons to answer questions touching such damage or mischief.

(2) If, at the time appointed in the summons, and whether the persons summoned appear or not, it is proved that the alleged damage was done through such negligence as aforesaid, and that the pecuniary amount of the same does not exceed two thousand rupees, the Magistrates may issue warrant of distress, under which a sufficient portion of the boats, masts, ropes, cables, anchors or stores of the vessel may be seized and sold to cover the expenses of and attending the execution of the distress, and the pecuniary amount of damage as aforesaid, and such amount shall be paid to the Authority out of the proceeds of the distress.

23. Cognizance of offences. No court shall take cognizance of any offence punishable under this Ordinance except on a complaint in writing made by the Authority or an officer authorized for the purpose by the Authority.

24. Recovery of dues as arrears of land revenue. All fees and sums due on account of property for the time being vested in the Authority and all arrears of tolls, charges, rates and dues

imposed under this Ordinance or any rules or regulations may be recovered as arrears of land revenue, in addition to the other modes provided by this Ordinance.

CHAPTER VII
MISCELLANEOUS

25. Submission of yearly reports and returns.—(1) The Authority shall submit to the Federal Government, as soon as possible after the end of every financial year but before the last day of December next following, a report on the conduct of its affairs for that year.

(2) The Federal Government may, after giving sufficient notice to the Authority, require it to furnish the Government with—

(i) any return, statement, estimates, statistics, or other information regarding any matter under the control of the Authority ; or

(ii) a report on any subject with which the Authority is concerned ; or

(iii) a copy of any document in the charge of the Authority ; and the Authority shall comply with every such requisition.

26. Members not personally liable. No member shall be liable for any contract made or expense incurred by or on behalf of the Board; but the funds from time to time in the hands of the Board shall be liable for and chargeable with all contracts made in the manner provided in this Ordinance.

27. Limitation of suits, etc.—(1) No suit shall be commenced against any member, officer or servant of the Authority for anything done or purporting to have been done in pursuance of this Ordinance without giving to such person one month's previous notice in writing of the intended suit and of the cause thereof, nor after six months from the accrual of the cause of such suit [1][:]

[2][Provided that a suit instituted without such notice shall not be dismissed only on that ground, but the plaintiff shall not be entitled to any costs.]

(2) In the case of a suit for damages, if tender of sufficient amends shall have been made before the suit was brought, the plaintiff shall not recover more than the amount so tendered and shall pay all costs incurred by the defendant after such tender.

28. Board not responsible for certain acts of its officers and servants. The Board shall not be responsible for any dis-feasance, malfeasance or non-feasance of any officer or servant appointed under this Ordinance or of any assistant or deputy of any such officer or of any person acting under the authority or direction of or in subordination to any such officer, assistant or deputy, nor for any damage sustained by any vessel in consequence of any defect in any of the moorings, hawsers or other things belonging to the Authority which may be used by such vessel:

Provided that nothing in this section shall protect the Board from a suit in respect of damages to or loss of goods landed or shipped by them or retained in their custody.

29. Power to dispose of land. The Authority may retain, or may lease, sell, exchange, rent or otherwise dispose of any land vested in it.

[1]Subs. by the Korangi Fisheries Harbour (Amdt.) Act, 1985 (7 of 1985), s. 2, for full-stop.
[2]Proviso Added *ibid.*

30. Power of Authority to make rules and regulations. The Authority may, with the prior sanction of the Federal Government, make rules and regulations for carrying out the purposes of this Ordinance.

31. Control of Federal Government over acts and proceedings of Board. All acts and proceedings of the Board shall be subject to the control of the Federal Government, and the Federal Government may suspend or modify any such acts or proceedings.

32. Dissolution of Authority and transfer of its assets and liabilities.—(1) The Federal Government may, by notification in the official Gazette, declare that the Authority shall be dissolved on such date as may be specified in such notification, and the Authority shall stand dissolved accordingly.

(2) On and from the said date—

(a) (i) all properties, funds and dues placed at the disposal of the Authority by the Federal Government ; and

(ii) all properties, funds and dues exchanged for, derived from, or otherwise attributable to, the properties, funds and dues referred to in sub-clause (i), which immediately before the said date, were held by or were realisable by the Authority.

shall vest in, and be realisable by the Federal Government.

(b) all properties, funds and dues, other than those referred to in clause (a), which, immediately before the said date, were vested in or were realisable by the Authority shall vest in and be realisable by the Federal Government or such agency as the Federal Government may determine and its decision thereon shall be final ;

(c) all liabilities which immediately before the said date, were enforceable against the Authority shall be assumed by and be enforceable against the Federal Government or such agency as the Federal Government determines under clause (b), as the case may be ;

(d) for the purpose of completing the execution of any scheme which has not been fully executed by the Authority and of realising properties, funds and dues referred to in clauses (a) and (b), the functions of the Authority under this Ordinance shall be discharged by the Federal Government or by the agency determined by the Federal Government under clause (b), as the case may be;

(e) the agency referred to in clauses (b), (c) and (d) shall keep such accounts of all moneys respectively received and expended by it under this Ordinance as the Federal Government may prescribe.

33. Removal of difficulties. If any difficulty arises in giving effect to any of the provisions of this Ordinance, especially in respect of the adjustment of the powers, functions and jurisdiction of the Authority under this Ordinance and those of the Port Qasim Authority under the port Qasim Authority Act, 1973 the Federal Government may make such order as may appear to it to be necessary or expedient for the purpose of removing the difficulty.

THE LAC CESS ACT, 1930

CONTENTS

1. Short title, extent and commencement
2. Definitions
3. Imposition of lac cess
4. *[Omitted]
5. *[Omitted]
5A. *[Omitted]
6. *[Omitted]
7. *[Omitted]
8. Power of Federal Government to make rules
9. *[Omitted]
10. Publication of rules
11. *[Repeal]
12. *[Omitted]

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*Omitted by the lac cess (Amendment) Act, 1950 (XX of 1950), s. 6.

*Rep. by the Repealing Act 1938 (I of 1938), s. 2 and Schedule.

THE LAC CESS ACT, 1930

ACT No. XXIV OF 1930

[25th July, 1930]

[1][An Act to provide for the levy and collection of a cess on lac and refuse lac exproted from Pakistan.]

[1][Whereas it is expedient to provide for the levy and collection of a cess on lac and refuse lac exported from Pakistan;]

It is hereby enacted as follows:—

1. Short title, extent and commencement.—(1) This Act may be called the [2][*] Lac Cess Act, 1930.

[3][(2) It extends to the whole of Pakistan.]

(3) It shall come into force on such date as the [4][Federal Government] may, by notification in the [5][official Gazette,] appoint.

2. Definitions. In this Act—

[1][* * * * * * *]

[1][* * * * * * *]

(*c*) "lac" includes any form of manufactured or unmanufactured lac other than refuse lac;

(*d*) "lac cess" means the customs duty imposed by section 3.

3. Imposition of lac cess. There shall be levied and collected on all lac and refuse lac [2][exported from Pakistan] [5][* * *] a cess at the rate of [6][seven annas] per maund in the case of lac, and [6][five annas] per maund in the case of refuse lac, or at such [2][other] rate as the [4][Federal Government] may, [2][* * *], by notification in the [5][official Gazette], prescribe.

4. [2][Omitted]

5. [2][Omitted]

5A. [2][Omitted]

[1]Subs. and omitted by the Acts relating to Cesses on Agricultural Products (Amdt.) Ordinance, 1982 (X of 1982), s.2 and Sch.
[2]Omitted, subs. and ins. by the Act No. XX of 1950, ss. 4, 6, and 7.
[3]Subs. by the Central Laws (Statute Reform) Ordinance, 1960 (XXI of 1960), s. 3 and 2nd Sch. (with effect from the 14th October, 1955).
[4]Subs. by the Federal Adaptation of Laws Order, 1975 (P. O. 4 of 1975), Art. 2 and Table.
[5]Subs. and omitted by A.O., 1937.
[6]Subs. by the Indian Lac Cess (amendment) Act, 1936 (IX of 1936), s. 2.

6. [1][Omitted]

7. [2][Omitted]

8. Power of Federal Government to make rules.—(1) The [3][Federal Government] may, [2][* * *] after previous publication, make rules to carry out the purposes of this Act.

[2][* * * * * * *]

9. [2][Omitted]

10. Publication of rules. All rules made under section 8 [2][* * *] shall be published in the [4][official Gazette].

11. [5][Repealed]

12. [6][Omitted]

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[1] Omitted by the Acts relating to Cesses on Agricultural Products (amendment) Ordinance, 1982 (X of 1982), s. 2 and Sch.
[2] Omitted by Act, 1950 (XX of 1950), s. 6.
[3] Subs. by Federal Adaptation of Laws Order, 1975 (P. O. 4 of 1975), Art. 2 and Table.
[4] Subs. by A. O. 1937.
[5] Rep. by the Repealing Act 1938 (I of 1938), s. 2 and Schedule.
[6]Omitted by the Federal Laws (Revision and Declaration) Ordinance, 1981 (XXVII of 198, s. 2 and Sch.

THE LANSDOWNE BRIDGE ACT, 1892

CONTENTS

l. Title and extent

2. Levy of tolls

3. Validation of past levy of tolls

4. Application of Act to public road and bridges

THE PAKISTAN CODE

THE LANSDOWNE BRIDGE ACT, 1892

[1]ACT No. VIII OF 1892

[22nd October, 1892]

An Act to remove doubts as to the levy and collection of tolls upon the Lansdowne Bridge over the Indus at Sukkur in [2]* [3][Sind], and for other purposes.

WHEREAS by an Act passed by the Governor of Bombay in Council, instituted "an Act for enabling Government to levy tolls on public roads and bridges in the Presidency of Bombay", the [4]Act of the Governor General in Council "for enabling Government to levy tolls on public roads and bridges" was repealed as for as it affected the Presidency of Bombay;

And whereas the bridge on the line of the North-Western Railway over the Indus at Sukkur [5][formerly] in the said Presidency of Bombay, commonly known as "The Lansdowne Bridge", was made and is repaired at the expense of the [6][Federal Government] ;

And whereas, in consequence of such repeal as aforesaid, doubts have arisen whether or not there is any subsisting authority competent to impose and levy tolls for the use of the said bridge, and it is expedient to remove such doubts;

It is enacted as follows:–

l. Title and extent.–(1) This Act may be called the Lansdowne Bridge Act, 1892 ;

[7][(2) It extends to the whole of Pakistan]: [8]*

[9][* * * * * * *]

2. Levy of tolls. Notwithstanding the repeal of the lastly hereinbefore mentioned Act [10][the Provincial Government] may cause such rates of toll, not exceeding the rates mentioned in the schedule annexed to that Act, as [11][it] may think fit to be levied in respect of the said Lansdowne Bridge, and may place the collection of such tolls under the management of such persons as may appear to [12][it] proper, and all the provisions of the said last mentioned Act shall apply to such tolls and the collection and recovery thereof in the same manner as if such provisions were herein re - enacted verbatim.

[1]For Statement of Objects and Reasons, *see* Gazette of India, 1892, Pt. V, p. 67 and for Proceedings in Council, *see ibid*., 1892, Pt. VI, pp. 70 and 75.
[2]The word "the" rep. by the Federal Laws (Revision and Declaration) Act, 1951 (26 of 1951), s. 3 and 2nd Sch.
[3]Subs. by A. O., 1949, Sch., for "Presidency of Bombay".
[4]The Tolls Act, 1851 (8 of 1851).
[5]Ins. by A. O., 1949, Sch.
[6]Subs. by F.A.O., 1975, Art. 2 and Table, for "Central Government" Which had been subs. by A.O., 1949, Sch., for "Government of India".
[7]Subs. by the Central Laws (Statute Reform) Ordinance, 1960 (21 of 1960), s. 3 and 2nd Sch., for the original sub-section (2) as ended by A. O., 1949, Arts. 3(2) and 4.
[8]The word "and" rep. by the Repealing and Amending Act, 1914 (10 of 1914), s. 3 and Sch. II.
[9]Sub-section (3) was rep. *ibid*.
[10]Subs. by A. O., 1937, for" the G.G. in C."
[11]Subs. by A.O., 1937, for "he".
[12]Subs. *ibid*., for "him".

3. Validation of past levy of tolls. All tolls heretofore levied or collected upon the said Lansdowne Bridge under the authority of the [1][Federal Government] or of the [2][Provincial Government of Bombay] shall be deemed to have been duly levied and collected under the authority of the said Act as if the same had not been repealed.

4. Application of Act to public road and bridges. Where any public road or bridge has or shall have been made and repaired at the expense of [3][the Federal Government or any Provincial Government] and no other adequate provision shall have been made for the levy and collection of tolls thereon, [4][the Provincial Government] may, by notification in the [5][official Gazette], apply this Act to such road or bridge, and thereupon all the provisions of this Act shall apply to such road or bridge as if the same had been herein named in addition to the said Lansdowne Bridge.

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Date: 05-09-2024

[1]Subs. by F.A.O., 1975, Art. 2 and Table, for "Central Government" which was subs. by A.O., 1937, for "G. G. in C." .
[2]Subs. by A. O., 1937, for "Governor of Bombay in Council".
[3]Subs. by F.A.O., 1975, Art. 2 and Table, for "Central Government" which was subs. by A.O.,1937 ,for "the G. of I.".
[4]Subs. by A. O., 1937, for "the G. G. in. C.".
[5]Subs. ibid., for "Gazette of India".

THE LAW COMMISSION ORDINANCE, 1979

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1. Short title, extent and commencement
2. Definitions
3. Composition of commission
4. Head Office
5. Secretariat
6. Functions of the commission
6A. Fund
6B. Expenditure to be charged on the fund
6C. Constitution of Committees
6D. Reports
7. Application of Act VI of 1956
8. Aspsistance to commission
9. Power to make rules

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THE LAW COMMISSION ORDINANCE, 1979

ORDINANCE No. XIV OF 1979

[24th February, 1979]

An Ordinance to establish a [1][Law and Justice Commission of Pakistan]

WHEREAS it is expedient to establish a [1][Law and Justice Commission of Pakistan] for a systematic development and reform of the laws and to provide for matters connected therewith or incidental thereto;

AND WHEREAS the President is satisfied that circumstances exist which render it necessary to take immediate action;

NOW, THEREFORE, in pursuance of the Proclamation of the fifth day of July 1977, read with the Laws (Continuance in Force) Order, 1977 *(C. M. L. A. Order No. 1 of 1977)*, and in exercise of all powers enabling him in that behalf, the President is pleased to make and promulgate the following Ordinance :—

1. Short title, extent and commencement.—(1) This Ordinance may be called the [1][Law and Justice Commission of Pakistan] Ordinance, 1979.

(2) It extends to the whole of Pakistan.

(3) It shall come into force at once.

2. Definitions. In this Ordinance, unless there is anything repugnant in the subject or context,—

(a) "Chairman" means Chairman of the Commission;

(b) "Commission" means the Commission established under section 3; [:][2]

[2]**["(c)** "Fund" means Access to Justice Development Fund established under section 6-A; and".]

[2]**(d)** "member" means member of the Commission.

3. Composition of Commission.—[2][(1) There shall be a Law and Justice Commission of Pakistan consisting of-

(a) the Chief Justice of Pakistan who shall be the Chairman, ex-officio;

(b) the Chief Justice of the Federal Shariat Court, Member, ex-officio;

[3][(c)] the Chief Justices of the High Courts, Members, ex-officio;

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[1]Subs. by Ord. 70 of 02, s. 2.

[2]Omitted, re-numbered, ins. & subs. by Ord. 70 of 02, ss. 3& 4.

[3]Subs Omitted by Act VIII of 2014, s. 2.

(d) Attorney General for Pakistan, Member, ex-officio;

(e) the Secretary, Ministry of Law, Justice and Human Rights, Member, ex-officio;

(f) Chairperson for Commission on Women Status, Member, ex-officio;

[1] [(g)] four members, one from each Province, to be appointed by the Federal Government on the recommendation of the Chairman in consultation with the Chief Justice of concerned High Court from amongst the persons who are or have been holders of a judicial or administrative office, eminent lawyers or jurists, persons of repute and integrity from civil society, members of the Council of Islamic Ideology or teachers of law in a university or college;".

(1A) In addition to the members referred to in subsection (1), the Chairman may, in his discretion, appoint a suitable person or persons as member or members for a specified period to perform specified functions."]

(3) A member, other than an *ex-officio* member, shall hold office for a term of three years but shall be eligible for re-appointment for another term.

(4) A member, other than an *ex-officio* member, may resign his office by writing under his hand addressed to the President.

4. Head Office. The head office of the Commission shall be situated in Islamabad or at such other place as the Federal Government may specify.

5. Secretariat.—(1) The Commission shall have a separate Secretariat to be headed by a Secretary, who shall be an officer of the Federal Government not inferior in rank to a Joint Secretary to the Federal Government.

(2) The Secretary and other officers and employees of the Commission shall be appointed by the Chairman on such terms and conditions as the Commission may determine.

(3) The Commission may, for the purpose of research, engage, for a specified period, as many persons as it considers necessary.

6. Functions of the Commission.—(1) The Commission shall study and keep under review on a continuing systematic basis the statutes and other laws with a view to making recommendations to the Federal Government and the Provincial Governments for the improvement, modernization and reform thereof and, in particular, for-

(i) making or bringing the laws into accord with the changing needs of the society, consistent with the ideology of Pakistan and the concept of Islamic social justice;

[1]Subs & Omitted by Act VIII of 2014, s. 2.

(ii) adopting of simple and effective procedure for the administration of laws to ensure substantial, in-expensive and speedy justice;

(iii) arranging the codification and unification of laws in order to eliminate multiplicity of laws on the same subject;

(iv) removing anomalies in the laws;

(v) repealing obsolete or unnecessary provisions in the laws;

(vi) simplifying laws for easy comprehension and devising steps to make the society laws-conscious;

(vii) introduction of reforms in the administration of Justice; and

(viii) removing inconsistencies between the laws within the legislative competence of Parliament and those within the legislative competence of a Provincial Assembly.

[1]["(2) The Commission shall take appropriate measures for—

(a) developing and augmenting human resources for efficient court administration and case management;

(b) coordination of judiciary and executive; and

(c) preparing schemes for access to justice, legal aid and protection of human rights.

(3) The Commission shall administer and manage the Access to Justice Development Fund."]

[1][(4)] The Commission shall study the present system of legal education and make recommendations to the Federal Government for improving the standard of legal education.

[1][(5)] The Federal Government, or a Provincial Government may refer to the Commission any matter relevant to its functions for opinion and advice.

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[2][(6) The Commission may, with the approval of the Federal Government, enter into a Memorandum of Understanding with the Law Commission of any country or, as the case may be, with any legal or human rights body or organization of any country to—

(i) collaborate, cooperate and participate through consultation in carrying out legal research in connection with their respective functions;

(ii) facilitate one another in the collection of data and materials in conducting legal research;

(iii) have bilateral and reciprocal exchange of reports, research material and other publications;

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[1]Re-numbered & ins. by Ord. 70 of 02, ss. 5& 6.

[2]Added by Act VIII of 2014, s. 3.

(iv) facilitate visits, training and exchange of delegates, members and officers of the respective Commissions or, as the case may be, the respective law or human rights body or organization; and

(v) mutually agree, on case by case basis, on financial arrangements for holding meetings undertaking exchange visits and other activities as envisaged in the Memorandum of Understanding;

Provided that the notification of any such Memorandum of Understanding shall be carried out with the approval of concerned Ministry of Federal Government".

[1]["**6-A. Fund.—** (1) There shall be established for the purposes of this Ordinance a fund to be called the Access to Justice Development Fund.

(2) The Fund shall consist of—

(a) an endowment grant of initial amount equivalent to US $24 million by the Federal Government in Installments;

(b) other grants and donations made by the Federal Government Provincial Governments or a Local Government;

(c) donations and contributions made by the individuals or institutions; and

(d) sums raised by the Commission.

6-B. Expenditure to be charged on the Fund. The annual 6-A income generated by investment of endowment grant under clause (a) of sub-section (2) of section 6-A shall be utilized for the purposes and to the extent provides as hereunder:

(a) 60.3% shall be allocated to the provinces and Islamabad Capital Territory on population basis to be called Judicial Development Fund for improving the capacity and performance of the subordinate courts and providing amenities and facilities to courts and litigants, as may be determined by the respective High [2][Courts];

(b) 10% shall be set aside for special projects in the under-developed Provinces and regions;

(c) not more than 4.5% on Legal and Judicial Research;

(d) not more than 4.5% on the activities of the Federal [2][and Provincial] Judicial Academy not covered by its budgetary allocation;

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[1]Re-numbered & ins. by Ord. 70 of 02, ss. 5& 6.

[2]Ins. by Act VIII of 2014, s. 4.

(e) not more than minimum of 13.5% with a cap of 20% for the legal empowerment of the poor and underprivileged persons for provision of legal aid or assistance to have access to Justice, in accordance with the criteria to be laid by the Commission;

(f) not more than minimum 4.5% with a cap of 10% to be spent on innovations in or promotion of legal education;

(g) 2.7% shall be charged by the Commission for management of the Fund:

Provided that an amount allocated under clauses (a) to (g) if not spent for any category shall be carried forward for the same purposes for the next two years;

(h) all other fund other than provided in clause (a) of sub-section (2) of section 6-A and the proceeds thereof, shall be utilized by the Commission for discharging its duties and functions under this Ordinance.

6-C. Constitution of Committees. The Commission may constitute committees consisting of one or more of its members, as it thinks fit, and may refer to them any matter relevant to the functions of the Commission for consideration and report.

6-D. Reports. The Commission shall publish an annual report of its activities and such other periodic or special reports requiring legislative or implementation effect as it may consider necessary. The Commission shall submit the reports to the President of Pakistan.]

7. Application of Act VI of 1956. The provisions of the Pakistan Commissions of Inquiry Act, 1956 (VI of 1956), shall apply to the Commission as if the Commission were a Commission appointed under that Act to which all the provisions of section 5 thereof applied.

8. Assistance to Commission. All executive authorities in Pakistan shall assist the Commission in the performance of its functions.

9. Power to make rules.—(1) The Commission may make rules[1] for carrying out the purposes of this Ordinance.

(2) In particular, and without prejudice to the generality of the foregoing provision, such rules may provide for payment to the members of a travelling allowance and daily allowance in respect of journeys performed in connection with the functions of the Commission.

[1]For such rules, see. S.R.O. No. 977 (I)/80 and 978 (I)/80, dated 4th September, 1980, Gaz. of P., 1980, Ext. Pt. II, pp. 1734-37.

THE LAW REPORTS ACT, 1875

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2. Repealed.
3. Authority given only to authorized reports.
4. Authority of judicial decisions.
5. Certification by the courts, etc.
6. Restriction on the publication of judgements and orders.
7. Penalty.
8. Jurisdiction to try offences.

SCHEDULE.

THE PAKISTAN CODE

THE LAW REPORTS ACT, 1875

[1]Act No, XVIII OF 1875

[13th October, 1875]

An Act for the improvement of Law Reports.

[2][* * * * * * *]

1. Short title. — This Act may be called the [3][*] Law Reports Act, 1875.

Local extent.—[4][It extends to the whole of Pakistan:]

Commencement. And it shall come into force on such day as the [5][Federal Government] notifies in this behalf in the [6][official Gazette].

2. [*Repeal of Act II of* 1875.] *Rep. by the Repealing Act,* 1876 *(XII of* 1876).

3. Authority given only to authorized reports. No Court shall be bound to hear cited, or shall receive or treat as an authority binding on it, the report of any case [7][decided] on or after the said day by any [8][High Court], other than a report published under the authority of [9][a Provincial Government].

4. **Authority of judicial decisions.** Nothing herein contained shall be construed to give to any judicial decision any further or other authority than it would have had if this Act had not been passed.

[10]**[5. Certification by the courts, etc.**—A court or tribunal deciding a matter shall at the end of the judgment or order, as the case may be, certify in the form specified in the Schedule that it is based upon or enunciates a principle of law or decides a question of law which is of first impression or distinguishes, over-rules, reverses or explains a previous decision.

Explanation.— For the purpose of this Act, the expression "court or tribunal" includes the Federal Shariat Court, a Service Tribunal, the Income Tax Appellate Tribunal and the National Industrial Relations Commission.]

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[1]For the Statement of Objects and Reasons, see Gazette of India, 1875 Pt. V, p. 139; for Proceedings, in Council, *see ibid.*, Extra Supplement, dated 31st July, 1875, p. 5, and *ibid.*, Extraordinary, dated 25th October, 1875. p.1.
This Act came into force on 1-1-1876, *see* Notifn. No, 22-D/23-/11 *75,* Gaz. of India, *1875,* Pt, I, p. 589.
[2]preamble rep. by A.O., 1937.
[3]The word "Indian" omitted by A.O., 1949, Sch.
[4]Subs. by the Central Laws (Statute Reform) Ordinance, 1960 (21 of 1960), s. 3 and 2nd Sch, (with effect from the 14th October, 1955), for the original para. as amended by A.O., 1949, Arts. 3(2) and 4.
[5]Subs. by F.A.O., 1975, Art. 2 and Table, for "Central Government" which was subs. by A.O., 1937, for "G.G. in C.".
[6]Subs. *ibid.*, for "Gazette of India".
[7]Subs. *ibid.*, for "decided by any of the said High Courts or by the Chief Court of Oudh on or after the said day." For list of courts which are High Courts for the purposes of the Government of India Act, 1935, *see* s. 219 of that Act.
[8]The original words "Court in British India which is a High Court for the purposes of the Government of India Act, 1935 " have successively been amended by A.O., 1949, arts. 3(2) and 4, and the Central Laws (Statute Reform) Ordinance, 1960 (21 of 1960), s. 3 and 2nd Sch. (with effect from the 14th October, 1955), to read as above.
[9]The original words" the G. G. in C. "have successively been subs. by the Devolution Act, 1920 (38 of 1920), s. 2 and Sch. I, A.O., 1937, and Ord. 21 of 1960, s. 3 and 2nd Sch. (with effect from the 14th October, 1955), to read as above.
[10]Added by The Law Reports (Amendment) Act, 1989 (Act No. II of 1990), s.2.

[1]**[6.** ***Restriction on the publication of judgements and orders***.—No judgement or order of a court tribunal shall be published or printed [2][in a Law Report] by any publisher, printer or any other person, unless it is approved for reporting by a court or tribunal or is certified under section 5.

7. ***Penalty.***— (1) Whoever contravenes the provisions of section 6 shall be punished with fine which may extend to one lac rupees or in default of payment of fine with simple imprisonment for a term which may extend to six months.

(2) All copies of a publication in respect of which a person is convicted under sub-section (1) shall stand forfeited to the Provincial Government.

8. ***Jurisdiction to try offences.***— No court shall take cognizance of an offence punishable under this Act except upon a complaint in writing made by the Presiding Officer of the court or tribunal by which the judgement or order in respect of which the offence was committed was given or made, or by an officer generally or specially empowered by him in this behalf [2][or by any office holder of a registered Bar Association or a Bar council] and no court other than a court of session shall try any such offence.].

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[1]**[SCHEDULE**

(See Section 5)

CERTIFICATE

In the Court */Tribunal……

(Title of the case)

Case No……

Decided on……

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Certified that the judgement */order is based upon or enunciates a principal of Law */ decides a question of law which is of first impression/ distinguishes/ over-rules/ reverses/ explains a previous decision.

Judge(s)/*Presiding Officer.

*Strike out whichever is not applicable.]

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[1]Added by The Law Reports (Amendment) Act, 1989 (Act No. II of 1990), s.2 and 3.
[2]Ins. By The Law Reports (Amendment) Ord. 2002 (LXVII of 2002), ss. 2 and 3.

THE LAWS LOCAL EXTENT ACT, 1874

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PART I

PART II

PART III

SEVENTH SCHEDULE

THE PAKISTAN CODE

THE LAWS LOCAL EXTENT ACT, 1874

[1]Act No. XV OF 1874

[8th *December,* 1874]

An Act for declaring the local extent of certain Enactments, and for other purposes

Preamble. WHEREAS it is expedient to declare the local extent of certain Acts passed by the Governor General of India in Council, the Legislative Council of India, and the Council of the Governor General of India assembled for the purpose of making Laws and Regulations;

AND WHEREAS it is also expedient to consolidate the laws relating to the local extent of certain Acts and Regulations [2]* * *;

It is hereby declared and enacted as follows:—

1. Short title. This Act may be called the Laws Local Extent Act, 1874.

2. Interpretation-clause. In this Act the expression "Scheduled Districts" means the territories mentioned in the sixth schedule hereto annexed.

3. Local extent of Acts in first schedule. The Acts mentioned in the first schedule hereto annexed are now in force throughout [3][Pakistan], except the Scheduled Districts.

4. [*Local extent of enactments in second schedule*.] *Omitted by A.O.,* 1949, *Sch.*

5. [*Local extent of enactments in third schedule.*] *Omitted by A. O.,* 1949, *Sch.*

[4]**6.** [*Local extent of enactments in fourth schedule.*] *Omitted by the Federal Laws (Revision and Declaration) Ordinance,* 1981 *(XXVII of* 1981), *s.* 3 *and IInd Sch.*

7. [*Local extent of enactments in fifth schedule.*] *Omitted by* A. O., 1949, *Sch*

8. Savings. Nothing herein contained shall—

(a) bar the power of the [5][Federal Government] or the [6][Provincial Government], under any law for the time being in force, to extend to any place any Act mentioned in the said first schedule;

(b) extend any Act empowering the [6][Provincial Government] to extend the same or any part thereof, or affect in any manner the exercise of such power;

(c) affect the operation of any Act or Regulation heretofore extended to or declared to be in force in any of the Scheduled Districts;

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[1]For the Statement of Objects and Reasons, *see* Gazette of India, 1870 Pt. V., p. 153; and for Proceedings in Council, *see ibid.,* 1871, Supplement pp. 1074 and 1218; and *ibid.,* 1874 Supplement, pp. 1885 and 1976.
This Act has been extended and shall be deemed to have been so extended to the whole of Pakistan by the Central Laws (Statute Reform) Ordinance 1960 (21 of 1960), s. 3 and 2nd Sch. *(with effect from the 14th October, 1955*)

[2]The words "in the Presidencies of Fort St. George and Bombay, and in the Lower and the North-Western Provinces of the Presidency of Fort William in Bengal" omitted by A. O., 1949, Sch.

[3]Subs. by the Central Laws (Statute Reform) Ordinance, 1960 (21 of 1960), s. 3 and 2nd Sch. *(with effect from the 14th October, 1955*) for "all the Provinces and the Capital of the Federation" which had been subs. by A. O., 1949, Arts 3 (2) and 4, for the whole of British India".

[4]This section was previously amended by Ord. 21 of 1960. s. 3 and 2nd Sch. and A.O., 1961, Art. 2 (w.e.f. 23-3-1956).

[5]Subs. by F.A.O., 1975, Art. 2 and Table, for "Central Government" which was subs. by A.O., 1937, for "G, G. in C.",

[6]Subs. *ibid.,* for "L. G."

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(d) revive any enactment which has been repealed either generally or with reference to some special subject;

[1]* * * * * *

(k) affect the operation of any enactment not mentioned in any of the schedules hereto annexed.

9. [*Enactments repealed.*] *Rep. by the Repealing Act,*1876 (*XII of* 1876).

[2][FIRST SCHEDULE

[*See* section 3]

ACTS OF THE SUPREME COUNCIL

Year and Number	Subject
1839, XXXII ..	Interest.
1841, X ..	Registration of Ships.
1850, XI ..	Navigation laws.
1850, XII ..	Default of Public accountants.
1850, XVIII ..	Protection of Judicial Officers.
1850, XXI ..	Non-forfeiture of rights by loss of caste.
1855,XI ..	Mesne profits and improvements.
1855, XII ..	Executors and Administrators.
1855, XIII ..	Compensation for loss occasioned by death. caused by actionable wrong.
1856, IX ..	Bills of lading.
1856, XV ..	Marriage of Hindu Widows.
1860, XXI ..	Registration of Societies.
1863, XVI ..	Excise Duty payable on Spirits used in Arts and Manufactures.
1865, III ..	Common Carries.]

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SECOND SCHEDULE.—[*(a)— Madras Regulations and (b)— Acts of the Supreme Council relating to the Madras Presidency.*] *Omitted by A.O.,* 1949, *Schedule.*

THIRD SCHEDULE.—[(a)— *Bombay Regulations and* (b)—*Acts of the Supreme Council relating to the Bombay Presidency.*] *Omitted by A.O.,* 1949, *Schedule.*

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FOURTH SCHEDULE.—[(a)—*Bengal Regulations Lower Provinces and (b).-Acts* of *the SupremeCouncil relating to the Lower Provinces.*] *Omitted by the Federal Laws (Revision and Declaration) Ordinance.* 1981 *(XXVII* of 1981), s. 3 *and IInd Sch.*

FIFTH SCHEDULE.—[(a)—.*Bengal Regulations* (*North-Western Provinces) and* (b)—*Acts of theSupreme Council relating to the North-Western Provinces.*] *Omitted by A.O.,* 1949., *Schedule.*

[1]Cls. (e) and (h) were. rep. by Act 8 of 1887, cl. (f) by the Amending Act, 1891 (12 of 1891), cl. (g) by the Guardians and Wards Act, 1890 (8 of 1890), and cl. (i) by the Repealing and Amending Act, 1894 (4 of 1894) and cIs. (j) and (jj) by A. O. 1949, Sch. Cl. (jj) had been ins. by the Benares Family Domains Act, 1881 (14 of 1881), s. 15.

[2]First Schedule previously amended by various laws from time to time has been subs. by the Federal Laws (Revision and Declaration) Ordinance, 1981 (27 of 1981), s. 3 and 2nd Sch., to read as above.

[1][SIXTH SCHEDULE
(*See* sections 2 and 3)

PART I
SCHEDULED DISTRICTS The Punjab
The District of Dera Ghazi Khan

PART II
SCHEDULED DISTRICTS, The North West Frontier Province,
The Districts of Hazara, Peshawar, Kohat, Bannu and Dera Ismail Khan.

PART III
SCHEDULED DISTRICTS SINDH.
The Whole of Sindh.]

SEVENTH SCHEDULE.—[*Enactments repealed.*] *Rep. by the Repealing Act.* 1876 (*XII* 1876).

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Date: 16-09-2024

[1]This Schedule previously amended from time to time by various Laws has been subs. by the Federal Laws (Revision and Declaration) Ordinance, 1981 (27 of 1981), s. 3 and IInd Sch. to read as above.

THE LEGAL PRACTITIONERS (FEES) ACT, 1926

CONTENTS

1. Short title, extent and commencement
2. Interpretation
3. Agreement for engagement of legal practitioner
4. Right of legal practitioner to sue for fees
5. Liability of legal practitioner to be sued
6. [Repeals]

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THE LEGAL PRACTITIONERS (FEES) ACT, 1926

ACT No. XXI OF 1926

[25*th* *March*, 1926]

An Act to define in certain cases the rights of legal practitioners to sue for their fees and their liabilities to be sued in respect of negligence in the discharge of their professional duties.

WHEREAS it is expedient to define in certain cases the rights of legal practitioners to sue for their fees and their liabilities to be sued in respect of negligence in the discharge of their professional duties; It is hereby enacted as follows:—

1. Short title, extent and commencement.—(1) This Act may be called the Legal Practitioners (Fees) Act, 1926.

[1][(2) It extends to the whole of Pakistan.]

(3) It shall come into force on such date[2] as the [3][Federal Government] may, by notification in the [4][official Gazette], appoint.

2. Interpretation.—For the purposes of this Act, unless there is anything repugnant in the subject or context,—

[5][(a) "Legal practitioner" means a legal practitioner as defined in section 2 of the Legal Practitioners and Bar Councils Act, 1973 (XXXV of 1973).]

(b) a legal practitioner shall not be deemed to "act" if he only pleads, or to "agree to act" if he agrees only to plead.

3. Agreement for engagement of legal practitioner.—Any legal practitioner who acts or agrees to act for any person may by private agreement settle with such person the terms of his engagement and the fee to be paid for his professional services.

4. Right of legal practitioner to sue for fees.—Any such legal practitioner shall be entitled to institute and maintain legal proceedings for the recovery of any fee due to him under the agreement, or, if no such fee has been settled, a fee computed in accordance with the law for the time being in force in regard to the computation of the costs to be awarded to a party in respect of the fee of his legal practitioner.

5. Liability of legal practitioner to be sued.—No legal practitioner who has acted or agreed to act shall, by reason only of being a legal practitioner, be exempt from liability to be sued in respect of any loss or injury due to any negligence in the conduct of his professional duties.

6. [6][*Repeals.*]

Date: 15-08-2024

[1]Subs. by the Central Laws (Statute Reform) Ordinance, 1960 (XXI of 1960), s. 3 and 2nd Sch. (*with effect from the 14th October, 1955*). [2]The 1st June, 1926 ; *see* Gazette of India, 1926, Pt. I, p. 514.
[3]Subs. by the Federal Adaptation of Laws Order (P.O. No.4 of 1975), 1975, Art. 2 and Table.
[4]Subs. by A.O. 1937.
[5]Subs. by the Federal Laws (Revision and Declaration) Ordinance, 1981 (XXVII of 1981), s. 3 and Sch., II.
[6]Rep. by the Repealing Act, 1927 (XII of 1927), s. 2 and Schedule.

THE LEPERS ACT, 1898

CONTENTS

1. Title, extent and commencement.
2. Definitions.
3. Appointment of leper asylums by Provincial Government
4. Appointment of Inspectors of Lepers and Superintendents of Asylums.
5. Constitution of Board.
6. Arrest of pauper lepers.
7. Person arrested how to be dealt with.
8. Procedure with regard to pauper lepers.
9. Power to prohibit lepers from following certain trades and doing certain acts.
10. Conviction after previous conviction.
11. Penalty on person employing lepers in prohibited trade.
12. Re-arrest of escaped lepers.
13. Inspection by Board.
14. Order of discharge by Board.
15. Appeals.
16. Power of the Provincial Government to make rules.
17. Power to local authorities to expend funds and appropriate property to asylums.
18. Protection to persons acting *bona-fide* under Act.
19. Lepers from Acceding States.

SCHEDULE

A. CERTIFICATE

B. CERTIFICATE

C. WARRANT OF DETENTION

D. WARRANT OF DETENTION

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THE LEPERS ACT, 1898

[1]ACT NO. III OF 1898

[4th February, 1898]

An Act to provide for the segregation and medical treatment of pauper lepers and the control of lepers following certain callings.

WHEREAS it is expedient to provide for the segregation and medical treatment of pauper lepers and the control of lepers following certain callings; It is hereby enacted as follows:—

1. Title, extent and commencement.— (1) This Act may be called the Lepers Act, 1898.

[2][(2) It extends to the whole of Pakistan.]

(3) It shall not come into force in any part thereof until the [3][Provincial Government], as hereinafter provided, has declared it applicable thereto.

(4) The [3][Provincial Government] may, by notification[4] in the official Gazette, apply this Act or any part thereof to the whole or any portion of the territories for the time being under its administration [5]* * *.

2. Definitions.— In this Act, unless there is anything repugnant in the subject or context,—

(1) "leper" means any person suffering from any variety of leprosy [6]* * *;

(2) "pauper leper" means a leper—

(a) who publicly solicits alms or exposes or exhibits any sores, wounds, bodily ailment or deformity with the object of exciting charity or of obtaining alms, or

(b) who is at large without any ostensible means of subsistence;

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[1]For Statement of Objects and Reasons, see Gazette of India, 1896, Pt. V, p. 231; for Report of the Select Committee, see ibid., 1898, Pt. V. p., 7; and for Proceedings in Council, see ibid, 1896, Pt. VI, p. 227; ibid., 1897, Pt. VI, p. 248 ; and ibid., 1898, Pt. VI., pp. 10 and 18.
This Act has been applied to Phulera in the Excluded Area of Upper Tanawal to the extent the Act is applicable in the N.W.F.P., subject to certain modifications--see N.W.F.P., (Upper Tanawal) (Excluded Area) Laws Regulation, 1950.
It has been extended to the Excluded Area of Upper Tanawal (N.W.F.P.) other than Phulera with effect from such date and subject to such modifications as may be notified, see N.W.F.P. (Upper Tanawal) (Excluded Area) Laws Regulation, 1950.
It has also been extended to the Leased Areas of Baluchistan, see the Leased Areas (Laws) Order, 1950 (G.G.O. 3 of 1950); and also applied in the Federated Areas of Baluchistan, see Gazette of India, 1937, Pt. I, p. 1499.
It has been applied to city and cantonment limits of Karachi from 10th November, 1936, see the Lepers (Retrospective Commencement Provision) Act, 1939 (Sind Act 18 of 1939), s. 2.
It has been amended in its application to the Province of Sind, see Sind Act No. 18 of 1939
This Act has been amended to the extent of Islamabad Capital Territory, see, Ordinance No. XXVII of 1981, s. 5 and 4th Sch.
[2]Subs. by the Central Laws (Statute Reform) Ordinance, 1960 (21 of 1960), s. 3 and 2nd Sch. (with effect from the 14th October, 1955), for sub-section (2) as amended by the Burma Laws Act, 1898 (13 of 1898), A.O., 1949, Sch., and the Federal Laws (Revision and Declaration) Act, 1951 (26 of 1951).
[3]Subs. by A.O., 1937, for "L. G.".
[4]For notifications under this sub-section, see different local Rules and Orders.
[5]The words "and may in like manner amend or cancel any such notification" rep. by the Lepers (Amendment) Act, 1920 (22 of 1920), s. 2.
[6]The words "in whom the process of ulceration has commenced" rep. ibid., s.3.

(3) "leper asylum" means a leper asylum appointed under section 3;

(4) "Board" means a Board constituted under section 5; and

[1][* * * * * * *]

[2][3. Appointment of leper asylums by Provincial Government. The [3][Provincial Government] may, by notification[4] in the official Gazette, appoint any place to be a leper asylum if it is satisfied that adequate arrangements have been made or will be made for the accommodation and medical treatment of lepers therein, and may, by a like notification, specify the local areas from which lepers may be sent to such asylum.]

4. Appointment of Inspectors of Lepers and Superintendents of Asylums. Subject to any rules which may be made under section 16, the [3][Provincial Government] may appoint any Medical Officer of the Government or other qualified medical man to be an Inspector[5] of Lepers and any person to be a Superintendent[5] of a Leper Asylum, with such establishment as may, in its opinion, be necessary, and every Inspector or Superintendent so appointed shall be deemed to be a public servant.

5. Constitution of Board. The [3][Provincial Government] shall constitute for every leper asylum appointed under section 3 a Board[6] consisting of not less than three members, one of whom at least shall be a Medical Officer of the Government.

6. Arrest of pauper lepers.—(1) Within any local area which has been specified under section 3 any police-officer [7][or any other person specially empowered by the [3][Provincial Government] by order in writing in this behalf] may arrest without a warrant any person who appears to him to be a pauper leper.

(2) Such police-officer [7][or other person] shall forthwith take or send the person so arrested to the nearest convenient police station.

7. Person arrested how to be dealt with. Every person brought to a police-station under the last foregoing section shall, without unnecessary delay, be taken before an Inspector of Lepers, who,—

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(a) if he finds that such person is not a leper within the meaning of section 2, shall give him a certificate in Form A set forth in the schedule, whereupon such person shall be forthwith released from arrest ;

(b) if he finds that such person is a leper within the meaning of section 2, shall give to the police-officer, in whose custody the leper is, a certificate in Form B set forth in the schedule, whereupon the leper shall, without unnecessary delay, be taken before a Magistrate having jurisdiction under this Act.

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[1]Clause (5) omitted by A.O., 1949, Sch.
[2]Subs. by the Lepers (Amendment) Act, 1920 (22 of 1920), s. 4, for the original section.
[3]Subs. by A.O., 1937, for "L. G.".
[4]For notifications under this section, see different local Rules and Orders,
[5]For appointment of such Inspectors and Superintendents, see different local Rules and Orders.
[6]For notifications constituting such Boards, see different local Rules and Orders.
[7]Ins. by Act 22 of 1920, s.5.

8. Procedure with regard to pauper lepers.—(1) If it appears to any [1]* * * Magistrate of the first class or to any other Magistrate authorised in this behalf by the [2][Provincial Government], upon the certificate in Form B set forth in the schedule, that any person is a leper, and if it further appears to the Magistrate that the person is a pauper leper, he may, after recording the evidence on the above- mentioned points, and his order thereon, send the pauper leper in charge of a police-officer, together with an order in Form C set forth in the schedule, to a leper asylum, where such leper shall be detained until discharged by order of the Board or the District Magistrate:

Provided that, if the person denies the allegation of leprosy, the Magistrate shall call and examine the Inspector of lepers, and shall take such further evidence as may be necessary to support or to rebut the allegation that the person is a leper, and may for this purpose adjourn the enquiry from time to time, remanding the person for observation or for other reason to such place as may be convenient, or admitting him to bail:

Provided also that if any friend or relative of any person found to be a pauper leper shall undertake in writing to the satisfaction of the Magistrate that such pauper leper shall be properly taken care of and shall be prevented from publicly begging in any area specified under section 3, the Magistrate, instead of sending the leper to an asylum, may make the leper over to the care of such friend or relative, requiring him, if he thinks fit, to enter into a bond with one or more sureties, to which the provisions of section 514 of the Code of Criminal Procedure[3] (X of 1898) shall be applicable.

(2) If the Magistrate finds that such person is not a leper, or that, if a leper, he is not a pauper leper, he shall forthwith discharge him.

9. Power to prohibit lepers from following certain trades and doing certain acts.—(1) The [2][Provincial Government] may, by notification[4] in the official Gazette, order that no leper shall, within any area specified under section 3,—

(a) personally prepare for sale or sell any article of food or drink or any drugs or clothing intended for human use ; or

(b) bathe, wash clothes or take water from any public well or tank debarred by any municipal or local bye-law from use by lepers ; or

(c) drive, conduct or ride in any public carriage plying for hire other than a railway carriage; or

(d) exercise any trade or calling which may by such notification be prohibited to lepers.

(2) Any such notification may comprise all or any of the above prohibitions.

(3) Whoever disobeys any order made pursuant to the powers conferred by this section shall be punishable with fine which may extend to twenty rupees:

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[1]The words "Presidency Magistrate or" omitted by A.O., 1949, Sch.
[2]Subs. by A.O., 1937, for "L. G.".
[3]See now the Code of Criminal Procedure, 1898 (5 of 1898).
[4]For such notifications, see different local Rules and Orders.

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Provided that, when any person is accused of an offence under this section, the Magistrate before whom he is accused shall cause him to be examined by an Inspector of Lepers, and shall not proceed with the case unless such Inspector furnishes a certificate, in Form B set forth in the schedule, in respect of such person.

10. Conviction after previous conviction.—(1) Whenever any leper who has been convicted of an offence punishable under the last foregoing section is again convicted of any offence punishable under that section, the Magistrate may, in addition to, or in lieu of, any punishment to which such leper may be liable, require him to enter into a bond, with one or more sureties, binding him to depart forthwith from the local area specified under section 3 in which he is, and not to enter that or any other local area so specified until an Inspector of Lepers shall have given him a certificate in Form A set forth in the schedule.

(2) If any such leper fails to furnish any security required under sub-section (1), the Magistrate may send him in charge of a police-officer, with an order in Form D set forth in the schedule, to a leper asylum, where such leper shall be detained until discharged by order of the Board or the District Magistrate.

(3) The powers conferred by this section shall only be exercised by a [1]* * * Magistrate of the first class.

11. Penalty on person employing lepers in prohibited trade. Any person who, within any area specified under section 3, knowingly employs a leper in any trade or calling prohibited by order under section 9 shall be punishable with fine which may extend to fifty rupees:

Provided that the alleged leper shall be produced before the Magistrate and the Magistrate shall cause him to be examined by an Inspector of Lepers, and shall not proceed with the case unless such Inspector furnishes a certificate in Form B set forth in the schedule in respect of such alleged leper.

12. Re-arrest of escaped lepers. Whoever, having been sent to a leper asylum under an order of a Magistrate in Form C or Form D set forth in the schedule, escapes from, or leaves, the asylum without the permission in writing of the Superintendent thereof, may be arrested [2][without a warrant by any police-officer or by any other person especially empowered by the [3][Provincial Government] by order in writing in this behalf,] and upon arrest shall be forthwith taken back to the leper asylum.

13.Inspection by Board. Two or more members of the Board, one of whom shall be the Medical Officer, shall, once at least in every three months, together inspect the leper asylum for which they are constituted, and see and examine (*a*) every leper therein admitted since the last inspection, together with the order for his admission, and (*b*), as far as circumstances will permit, every other leper therein, and shall enter in a book to be kept for the purpose any remarks which they may deem proper in regard to the management and condition of the asylum and the lepers therein.

14. Order of discharge by Board. Any two members of the Board, one of whom shall be the Medical Officer, may at any time, by an order in writing in Form E set forth in the schedule and signed by them, direct the discharge from the leper asylum of any leper detained therein under the provisions of this Act.

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[1]The words "Presidency Magistrate or "omitted by A.O., 1949, Sch

[2]Subs. by the Lepers (Amendment) Act, 1920 (22 of 1920), s. 6, for "by any police-officer without a warrant".

[3]Subs. by A.O., 1937, for "L. G".

15. Appeals. Any person, other than a pauper leper, in respect of whom an Inspector of Lepers has issued a certificate, in Form B set forth in the schedule, declaring him to be a leper, or has refused to issue a certificate in Form A set forth in the schedule, may appeal against the issue or refusal of any such certificate to such officer as may be appointed by the [1][Provincial Government] in this behalf, and the decision of such officer shall be final.

16. Power of the Provincial Government to make rules. The [1][Provincial Government] may, by notification in the official Gazette, make rules[2] generally for carrying out the purposes of this Act, and in particular—

(a) for the guidance of all or any of the officers discharging any duty under this Act ; and

(b) for the management of, and the maintenance of discipline in, a leper asylum.

17. Power to local authorities to expend funds and appropriate property to asylums. Notwithstanding anything in any enactment with respect to the purposes to which the funds or other property of a local authority may be applied, any local authority may—

(a) establish or maintain, or establish and maintain, or contribute towards the cost of the establishment or maintenance or the establishment and maintenance of, a leper asylum either within or without the local limits of such local authority ;

(b) with the previous sanction of the [1][Provincial Government] and subject to such conditions as that Government may prescribe, appropriate any immoveable property vested in, or under the control of, such body, as a site for, or for use as, a leper asylum.

18. Protection to persons acting *bona* fide under Act. No suit, prosecution or other legal proceeding shall lie against any officer or person in respect of anything in good faith[3] done or intended to be done under, or in pursuance of, the provisions of this Act.

[5]**[**[4]**[19. Lepers from Acceding States.** The [1][Provincial Government] may, by notification[6] in the [7][official Gazette], direct that any leper or class of lepers, with respect to whom an order for segregation and medical treatment has been made by a Magistrate having jurisdiction within [8][any Acceding State], may be sent to any leper asylum [9][in the Province] specified in such order ; and thereupon the provisions of this Act and of any rules made thereunder shall, with such modifications not affecting the substance as may be reasonable and necessary to adapt them to the subject-matter, apply to any leper sent to a leper asylum in pursuance of such notification as though he had been sent by the order of a Magistrate having jurisdiction under this Act.]]

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[1]Subs. by A.O., 1937, for "L. G".
[2]For such rules, see different local Rules and Orders.
[3]As to definition of good faith, see s. 3 (20) of the General Clauses Act, 1897 (10 of 1897).
[4]Omitted by Ord. no. 27 of 1985, s. 5. Only to the extent of ICT.
[5]Ins. by the Lepers (amendment) Act, 1903 (X of 1903), s. 7, The original s. 19 had been rep. by the Amending Act, 1903 (X of 1903).
[6]For a notification under this section, see Gazette of India, 1919, Pt. I, p. 1931, and Gen. R. & O.
[7]Subs. by A. O., 1937.
[8]The original words "the territories of any Native Prince or State in India" were first subs. by A. O., 1937, and then amended by A. O. 1949, Sch., to read as above.
[9]Ins. by A. O., 1937.

SCHEDULE

A. CERTIFICATE
(*Section* 7)

I, THE undersigned (*here enter name and official designation*), hereby certify that I on the day of at personally examined *(here enter name of person examined),* and that the said is not a leper as defined by the Lepers Act, 1898.

Given under my hand this day of 189.

(*Signature*)
Inspector of Lepers.

B. CERTIFICATE
(*Section* 7)

I, THE undersigned (*here enter name and official designation*), hereby certify that I on the day of at personally examined (*here enter name of leper*), and that the said is a leper as defined by the Lepers Act, 1898, and that 1 have formed this opinion on the following grounds namely,—

(*Here state the grounds.*)

Given under my hand this day of 189.

(*Signature)*
Inspector of Lepers.

C. WARRANT 0F DETENTION
(*Section* 8)

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To

THE SUPERINTENDENT OF THE LEPER ASYLUM AT

WHEREAS it has been made to appear to me that (*name and description)* is a pauper leper as defined in Lepers Act, 1898.

This is to authorise you, the said Superintendent, to receive the said into your custody together with this order and him/her safely to keep in the said asylum until he/she shall be discharged by order of the Board or the District Magistrate.

Given under my hand and the seal of the Court this day of 189.

(*Signature*)
Magistrate.

Seal

D. WARRANT OF DETENTION
(*Section* 10)

To

THE SUPERINTENDENT OF THE LEPER ASYLUM AT

WHEREAS (*name and description)* has this day been convicted by me of an offence punishable under section 9 of the Lepers Act, 1898, and whereas it has been proved before me that the said (*name and description*) was previously convicted of an offence punishable under the same section :

This is to authorise you, the said Superintendent, to receive the said into your custody together with this order and him/her safely to keep in the said asylum until he/she shall be discharged by order of the Board or the District Magistrate.

Given under my hand and the seal of the Court this day of 189.

(*Signature*)
Magistrate.

Seal.

E. ORDER OF DISCHARGE BY BOARD[1]
(*Section* 14)

To,

THE SUPERINTENDENT OF THE LEPER ASYLUM AT

WHEREAS (*name and description*) was committed to your custody under an order dated the day of 189 and there have appeared to us sufficient grounds for the opinion that he/she can be released without hazard or inconvenience to the community:

This is to authorise and require you forthwith to discharge the said *(name)* from your custody.

Given under our hands this day of 189.

(*Signatures*)
Members of the Asylum Board.

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Date: 05-09-2024

[1]A corresponding form may be used by the District Magistrate for order of discharge issued under s. 10 (2).

THE LIGHT HOUSE ACT, 1927

CONTENTS

PRELIMINARY

1. Short title, extent and commencement
2. Definitions
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16. Light-dues payable at one port recoverable at another

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[Repealed.]

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THE LIGHT HOUSE ACT, 1927

[1]Act No. XVII OF 1927

[21st September, 1927]

An Act to consolidate and amend the law relating to the provision, maintenance and control of lighthouses by the Government in [2][Pakistan].

WHEREAS it is expedient to consolidate and amend the law relating to the provision, maintenance and control of lighthouses by the Government in [2][Pakistan] ;

it is hereby enacted as follows :_

PRELIMINARY

1. Short title, extent and commencement.— (1)This Act may be called the [3]*Lighthouse Act, 1927.

[4][(2) It extends to the whole of Pakistan.]

(3) It shall come into force on such date[5] as the [6][Federal Government] may, by notification in the [7][official Gazette] appoint.

2. Definitions. In this Act unless there is anything repugnant in the subject or context :-

[8](a) [9][Collector of Customs] means an officer of customs exercising the powers of a Customs-collector under the [10][Customs Act 1969 (IV of 1969)], and includes any person appointed by the [6][Federal Government] to discharge the functions of a Customs-collector under this Act;

(b) "district" means an area defined as a district for the purposes of this Act under section 3;

(c) "general lighthouse" means any lighthouse which the [6][Federal Government] may, by notification in the [7][official Gazette], declare to be a general lighthouse for the purposes of this Act;

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[1]For statement of Objects and Reasons, see Gazette of India, 1927, pt. V, p.53, and for Report of Select committee, see ibid,, p.215.

[2]Subs. by the Central Laws (Statute Reform) ordinance, 1960 (21 of 1960), s.3 and 2nd Sch. (*with effect from 14th October, 1955*), for "the Provinces and the Capital of the Federation" which had been subs. by A.O. 1949, for "British India".

[3]The word "Indian" omitted by A.O., 1949.

[4]Subs.by Ordinance 21 of 1960, s.3 and 2nd Sch (*with effect from the 14th October, 1955*), for sub-section (2) as amended by A.O. 1949.

[5]The Ist April, 1929; see Gazette of India, 1929, Part I, p.96.

[6]Subs. by F.A.O., 1975 Art.2 and Table, for "Central Government" which was previously amended by A.O., 1937, for "G.G.in C".

[7]Subs by A.O., 1937, for "Gazette of India".

[8]For Notifn. under this caluse, see Gaz. of P., 1960, Pt, I, p.25.

[9]Subs. by the Federal Laws (Revision and Declaration) Ordinance, 1981 (279, 1981), S.3 and Sch., II, for "Customs-Collector".

[10]Subs. ibid, for "Sea Customs Act, 1878".

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(d) "lighthouse" includes any light-vessel, fog-signal, buoy, beacon, or any mark, sign or apparatus exhibited or used for the guidance of ships;

(e) "local lighthouse" means any lighthouse which is not a general lighthouse;

(f) "local lighthouse authority" means a [1][Provincial Government], local authority or other person having the superintendence and management of a local lighthouse;

(g) "owner" includes any part-owner, charter, or mortgagee in possession and any agent to whom a ship is consigned;

(h) "port" means any port, as defined in the Ports Act, 1908 (XV of 1908), to which that Act extends; and

(i) words and expressions used in this Act and not otherwise defined have the same meanings respectively as in the Merchant Shipping Act, 1923 (XXI of 1923).

3. Appointment of officers. The [2][Federal Government] may, by notification in the [3][official Gazette],—

[4](a) define areas to be districts for the purposes of this Act;

(b) appoint a person to be the Superintendent of Lighthouses in each district;

(c) appoint a person to be the Chief Inspector of Lighthouses in [5][Pakistan]; and

(d) appoint persons to be Inspectors of Lighthouses.

4. Advisory Committees.— (1) The [2][Federal Government] shall appoint a Central Advisory Committee and shall consult it in regard to—

(a) the erection or position of lighthouses or of any works appertaining thereto;

(b) additions to, or the alteration or removal of, lighthouses;

(c) the variation of the character of any lighthouse or of the mode of use thereof;

(d) the cost of any proposals relating to lighthouses; or

(e) the making or alteration of any rules or rates of dues under this Act.

(2) The [2][Federal Government] may, if [6][it] thinks fit, appoint an Advisory Committee for any district for the purpose of advising in regard to any of the matters specified in sub-section (1) in so far as the interests of the district are affected thereby.

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[1]Subs. by A.O., 1937, for "L.G.".
[2]Subs. by F.A.O., 1975, Art.2 and Table, for "Central Government" which was previously amended by A.O., 1937, for "G.G. in C.".
[3]Subs. by A.O.,1937, for "Gazette of India."
[4]For notifn. issued under this clause, see Gaz. of P., 1956, Pt.I, pp.436-437.
[5]Subs. by the Central Laws (Statute Reform) Ordinance, 1960 (21 of 1960), s. 3 and 2nd Sch. (with efect from the 14th October, 1955), for "the Provinces and the Capital of the Federation" which had been subs. by A.O., 1949, for "British India".
[6]Subs. by A.O., 1937, for "he".

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(3) Advisory Committees shall consist of persons representing interests affected by this Act or having special knowledge of the subject-matter thereof.

GENERAL LIGHTHOUSES

5. Management of general lighthouses by the Federal Government and delegation of management.— (1) The superintendence and management of all general lighthouses are vested in the [1][Federal Government].

(2) The [1][Federal Government] may require any local light-house authority to undertake the superintendence and management of any general lighthouse situated in or adjacent to the local limits within which the authority exercises its powers, and shall pay to the authority such sums to defray the cost of superintendence and management as [2][the [3][Federal Government]] may determine.

LOCAL LIGHTHOUSES

6. Powers to Inspect local lighthouses.— (1) The Chief Inspector of Lighthouses may, at any time, and any Superintendent or Inspector of Lighthouses may, if authorised in this behalf by a general or special order in writing of the [1][Federal Government], enter upon and inspect any local lighthouse and make such inquiries in respect thereof or of the management thereof as he thinks fit.

(2) Every person having the charge of, or concerned in the management of, any lighthouse shall be bound to furnish to any officer authorised by or under sub-section (1) to inspect the light-house all such information regarding the same as the officer may require.

(3) Every local lighthouse authority shall furnish to the [1][Federal Government] all such returns and other information in respect of the lighthouses under its supervision and management, or of any of them, as [2][the [3][Federal Government]] may require.

7. Control of local light-houses by the Federal Government. If, after an inspection under section 6 or such other inquiry as [2][it] thinks fit, the [1][Federal Government] is satisfied a direction under this sub-section is necessary or expedient for the safety, or otherwise in the interests, of shipping, [2][it] may direct any local lighthouse authority—

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(a) to remove or discontinue or to refrain from moving or discontinuing any lighthouse under its superintendence and management or to make or refrain from making any variation in the character or mode of use of any such lighthouse, or

(b) to erect, place or maintain, or to refrain from erecting, placing or maintaining, any lighthouse within the local limits within which the local lighthouse authority exercises its powers.

(2) A local lighthouse authority shall not erect, place, remove or discontinue any lighthouse or vary the character or mode of use of any lighthouse, unless it has given to the [1][Federal Government] at least one month's notice in writing of its intention so to do:

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[1]Subs. by F.A.O., 1975, Art. 2 and Table, for "Central Government" which was previously amended by A.O., 1937, for "G.G. in C.".
[2]Subs. by F.A.O., 1937, for "he".
[3]Subs.by F.A.O., 1975, Art.2 and Table, for "Central Government".

Provided that, in cases of emergency, a local lighthouse authority may take such action as it deems necessary and shall give immediate notice of the same to the [1][Federal Government] and, so far as is possible, to all shipping approaching or in the vicinity of the lighthouse.

(3) If a local lighthouse authority-

(a) fails to comply with any direction made under sub-section (1), or

(b) fails to exercise or perform, or exercises or performs in an improper, inefficient or unsuitable manner, any power or duty relating to the superintendence or management of lighthouses conferred or imposed upon it by or under any law for the time being in force, or

(c) fails to make adequate financial provision for the performance of any such duty,

the [1][Federal Government], may, by order in writing, require the local lighthouse authority to comply with the direction, or to make arrangement to [2][the satisfaction of the [3][Federal Government]] for the proper exercise of the power or performance of the duty, or to make financial provision to [2][the satisfaction of the [3][Federal Government]] for the performance of the duty, as the case may be within such period as [4][the [3][Federal Government]] may specify.

(4) If the local lighthouse authority fails to comply with an order made under sub-section (3) within the specified period or within such further time as the [1][Federal Government] may allow, the [1][Federal Government] may exercise the power or perform the duty or make the requisite financial provision, as the case may be, and the local lighthouse authority shall be liable to repay to the [1][Federal Government] any expenditure incurred by [5][it] in so doing.

8. Management of local lighthouses by the Federal Government. The [1][Federal Government] may, at the request of a local lighthouse authority, undertake the superintendence and management of any local lighthouse on its behalf, and the local lighthouse authority shall pay to the [1][Federal Government] such sums to defray the cost of superintendence and management as may be agreed.

LIGHT-DUES

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9. Levy and collection of light-dues. For the purpose of providing or maintaining or of providing and maintaining lighthouses for the benefit of ships voyaging to or from [6][Pakistan] or between ports in [6][Pakistan], the [1][Federal Government] shall, subject to the provisions of this Act, cause light-dues to be levied and collected in respect of every ship arriving at or departing from any port in [6][Pakistan].

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[1]Subs. by F.A.O., 1975, Art.2 and Table, for "Central Government" which was previously amended by A.O., 1937, for "G.G. in C.".

[2]Subs. by A.O., 1937, for "his satisfaction".

[3]Subs. by F.A.O., 1975, Art 2 and Table, for "Central Government."

[4]Subs by A.O., 1937, for "he".

[5]Subs. *ibid.* for "him".

[6]Subs. by the Central Laws (Statute Reform) Ordinance, 1960 (21 of 1960), s.3 and 2nd Sch. (*with effect from the 14th October, 1955*) for "the Provinces and the Capital of the Federation "which had been subs. by A.O., 1949, for "British India".

10. Rates of light-dues leviable. (1) The [1][Federal Government] may, [2][from time to time] by notification in the [3][official Gazette], prescribe rates, [2]* * * *at which light-dues shall be payable, and may prescribe different rates for different classes of ships, or for ships of the same class when in use for different purposes or in different circumstances.

(2) Light-dues payable in respect of a ship shall be paid by the owner or master of the ship on its arrival at, and on its departure from, any port in [4][Pakistan] :

Provided that, if light-dues have been paid in accordance with the provisions of this Act in respect of any ship, no further dues shall become payable in respect of that ship for a period of thirty days from the date on which the dues so paid became payable.

(3) An order under sub-section (1) imposing, abolishing or varying light-dues shall not take effect till the expiration of thirty days from the day on which the order was notified in the [3][official Gazette].

11. Receipts for light-dues. Light-dues shall be paid to the [5][Collector of Customs] who shall grant to the person paying the same a receipt in writing specifying—

(a) the port at which the dues have been paid;

(b) the amount of the payment;

(c) the date on which the dues became payable; and

(d) the name, tonnage and other proper description of the ship in respect of which the payment is made.

12. Ascertainment of tonnage.– (1) For the purpose of the levy of light-dues, a ship's tonnage shall be reckoned as under the Merchant Shipping Acts for dues payable on a ship's tonnage, with the addition required under section 85 of the Merchant Shipping Act, 1894 (57 & 58 Vict., c.60), with respect to deck cargo.

(2) In order to ascertain the tonnage of any ship for the purpose of levying light-dues, the [5][Collector of Customs] may--

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(a) if the ship is registered under any law for the time being in force in [4][Pakistan] or under the law of any foreign country in respect of which an Order in Council has been made under section 84 of the Merchant Shipping Act, 1894 (57 & 58 Vict., c.60.,) that ships of that country shall be deemed to be of the tonnage denoted in their certificates of registry or other national papers (any such ship being hereafter in this section referred to as a registered ship), require the owner or master or other person having possession of the ship's register or other papers denoting her tonnage to produce the same for inspection and,

[1]Subs. by F.A.O., 1975, Art. 2 and Table, for "Central Government" which was previously amended by A.O., 1937, for "G.G in C.".
[2] Ins. omitted by Act XVII of 1994, s.2.
[3]Subs. by A.O., 1937, for "Gazette of India".
[4]Subs. by the Central Laws (Statute Reform) Ordinance, 1960 (21 of 1960), s.3 and 2nd Sch. (with effect from the 14th October, 1955) for "the Provices and the Capital of the Federation" which had been subs. A.O., 1949, for British India".
[5]Subs. by the Federal Laws (Revision and Declaration) Ordinance, 1981 (27 of 1981), s.3 and Sch., II, for "Customs-Collector".

if such owner, master or other person refuses or neglects to produce the register or papers, as the case may be, or otherwise to satisfy the [1][Collector of Customs] as to the tonnage of the ship, cause the ship to be measured and the tonnage to be ascertained ; or

(b) if the ship is not a registered ship and the owner or master fails to satisfy the [1][Collector of Customs] as to the true tonnage thereof according to the mode of measurement prescribed by the law for the time being in force for regulating the measurement of registered ships, cause the ship to be measured and the tonnage thereof to be ascertained according to such mode.

(3) If any person refuses or neglects to produce any register or other papers or otherwise to satisfy the [1][Collector of Customs] as to the true tonnage of any ship when required to do so under this section, such person shall be liable to pay the expenses of the measurement of the ship and of the ascertainment of the tonnage and if the ship is a registered ship, shall further, on conviction by a [2]* * * Magistrate of the first class having jurisdiction in the port where the ship lies or in any port to which she may proceed, be punishable with fine which may extend to one thousand rupees.

13. Recovery of light-dues, expenses and costs.—(1) If the owner or master of any ship refuses or neglects to pay to the [1][Collector of Customs] on demand the amount of any light-dues or expenses payable under this Act in respect of the ship, the [1][Collector of Customs] may seize the ship and the tackle, apparel and furniture belonging thereto, or any part thereof, and detain the same until the amount of the dues or expenses together with the costs of the seizure and detention, is paid.

(2) If any part of such dues, expenses or costs remains unpaid after the expiry of five days following the date of the seizure, the [1][Collector of Customs] may cause the ship or other thing seized to be sold, and with the proceeds of the sale may satisfy the dues, expenses or costs remaining unpaid, together with the costs of the sale, and shall repay the surplus, if any, to the person by whom the same were payable.

14. Refusal of port-clearance. The officer whose duty it is to grant a port-clearance for any ship shall not grant the port-clearance until the amount of all light-dues, expenses and costs payable in respect of the ship under this Act and of any fines imposed thereunder has been paid, or until security for the payment thereof has been given to his satisfaction.

15. Determination of disputes as to liability for payment. If any dispute arises as to whether light-dues, expenses or costs are payable in respect of any ship under this Act or as to the amount of such dues, expenses or costs, the dispute shall, on application made in this behalf by either of the disputing parties, be heard and determined by a [2]* * * Magistrate of the first class having jurisdiction at the place where the dispute arises, and the decision of such Magistrate shall be final.

16. Light-dues payable at one port recoverable at another.—(1) If the master of any ship in respect of which any light-dues are payable at any port causes the ship to leave such port without having paid the same, the [1][Collector of Customs] at that port may by writing require the [1][Collector of Customs] at any other port in [3][Pakistan] to which the ship may proceed or in which she may be to recover the dues remaining unpaid.

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[1]Subs. by the Federal Laws (Revision and Declaration) Ordinance, 1981 (27 of 1981), s.3 and Sch.II, for "Customs-Collector".

[2]The words "Presidency Magistrate or" omitted by A.O., 1949.

[3]Subs. by the Central Laws (Statute Reform) ordinance, 1960 (21 of 1960), s.3 and 2nd Sch. (*with effect from the 14th October, 1955*), for "the Provinces and the Capital of the Federation" which had been subs. by A.O., 1949, for "British India".

(2) Any [1][Collector of Customs] to whom such a requisition is directed shall proceed to levy such sum as if it were payable under this Act at the port at which he is the [1][Collector of Customs] and a certificate by the [1][Collector of Customs] at the port at which the light-dues first became payable, stating the amount payable, shall be sufficient proof in any proceeding under section 13 or section 15 that such amount is payable.

17. Penalty for evading payment of light-dues.— (1) If the owner or master of a ship evades or attempts to evade the payment of any light-dues, expenses or costs payable in respect of the ship under this Act, he shall, on conviction by a [2]* * * Magistrate of the first class having jurisdiction in any port to which the vessel may proceed or in which she may be found, be punishable with fine which may extend to five times the amount of the sum payable.

(2) In any proceeding before a Magistrate in a prosecution under sub-section (1), any such certificate as is mentioned in sub-section (2) of section 16, stating that the owner or master has evaded such payment, shall be sufficient proof of the evasion, unless the owner or master shows to the satisfaction of the Magistrate that the departure of the vessel without payment of the sum was caused by stress of weather, or that there was lawful or reasonable grounds for such departure.

18. Exemption from payment of light-dues. The following ships shall be exempted from the payment of light-dues under this Act, namely :-

(a) any ship belonging to [3][Government] [6]* * * or to a foreign Prince or State and not carrying cargo or passengers for freight or fares; and

(b) any ship of a tonnage of less than fifty tons;

and the [4][Federal Government] may, by notification in the [5][official Gazette], exempt any other ships, or classes of ships or ships performing specified voyages from such payment either wholly or to such extent only as may be specified in the notification.

19. Refund of excess payments. Where light-dues have been paid in respect of any ship in excess of the amount payable under this Act, no claim to refund of such excess payment shall be admissible, unless it is made within six months from the date of each payment.

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ACCOUNTS

20. Accounts, etc.— (1) The [4][Federal Government] shall cause to be maintained a separate account of all amounts received by way of light-dues, expenses, costs and fines under this Act and of all expenditure incurred for the purposes of this Act, and shall cause such account to be laid before the Central Advisory Committee as soon as possible after the close of each financial year.

(2) The [4][Federal Government] shall cause to be laid before the Central Advisory Committee before the close of each financial year a statement of the estimated receipts under, and expenditure for the purposes of, this Act during the forthcoming year.

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[1]Subs. by the Federal Laws (Revision and Declaration) Ordinance,1981 (27 of 1981), s. 3 and Sch. II., for "Customs-Collector".
[2]The words "Presidency Magistrate or" omitted by A.O., 1949.
[3]Subs. by A.O., 1961, Art.2, for "His Majesty" (*with effect from the 23rd March, 1956*).
[4]Subs. by F.A.O., 1975, Art.2 and Table, for "Central Government" which was previously amended by A.O., 1937., for "G.G. in C".
[5]Subs. by A.O., 1937 for "Gazette of India".
[6]*The words "a the Govt." omitted by A.O., 1937*

RULES

21. Power to make rules.— The [1][Federal Government] may make rules[2] consistent with this Act to carry into effect the purposes thereof.

(2) In particular and without prejudice to the generality of the foregoing power, such rules may provide for all or any of the following matters, namely :-

(a) the powers and duties of the Chief Inspector of Lighthouses and of Superintendents and Inspectors of Lighthouses;

(b) the procedure and conduct of business of Advisory Committees constituted under this Act;

(c) the rate of travelling and subsistence allowance payable to members of Advisory Committees; and

(d) the period in respect of which and the form in which the separate account referred to in sub-section (1) of section 20 shall be kept and the forms in which that account and the statement referred to in sub-section (2) of that section shall respectively be presented to the Central Advisory Committee.

REPEALS

22. [***Repeals***.] *Rep. by the Repealing Act, 1938 (I of 1938), s. 2 and Sch.*

THE SCHEDULE.-[ENACTMENTS REPEALED]. Rep. by the Repealing Act, 1938 (I of 1938), s. 2 and Sch.

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[1]*Subs. by F.A.O., 1975, Art.2 and Table, for "Central Government" which was previously amended by A.O., 1937., for "G.G. in C".*

[2]*For the Lighthouse Advisory Committees Rules, 1962, see Gaz. of P, 1962, Pt.I, pp.137-138.*

THE LITERACY ORDINANCE, 1985

CONTENTS

1. Short title, extent, application and commencement
2. Definitions
3. Issue of passports, etc., to and employment of, literate persons only
4. Savings

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THE LITERACY ORDINANCE, 1985

ORDINANCE No. XXVII OF 1985

[31st March, 1985]

An Ordinance to encourage Literacy

WHEREAS Islam assigns great importance to the acquisition of knowledge and makes its pursuit incumbent upon every Muslim ;

AND WHEREAS the literacy ratio in Pakistan is very low which is a matter of great concern for the Government ;

AND WHEREAS the President is satisfied that circumstances exist which render it necessary to take immediate action ;

NOW, THEREFORE, in pursuance of the Proclamation of the fifth day of July, 1977, and in exercise of all powers enabling him in that behalf, the President is pleased to make and promulgate the following Ordinance:—

1. Short title, extent, application and commencement.—(1) This Ordinance may be called the Literacy Ordinance, 1985.

(2) It extends to the Islamabad Capital territory and also applies to the establishments and institutions under the control of the Federal Government throughout Pakistan.

[1][(3) It shall come into force on such [2]date as the Federal Government may, by notification in the official Gazette, appoint.]

2. Definitions.—In this Ordinance, unless there is anything repugnant in the subject or context,—

(a) "literate person" means a person who is certified by an authority to be able to read a newspaper and write a simple letter in any language;

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(b) "passport" has the same meaning as in the Passports Act, 1974 (XX of 1974) ;

(c) "driving licence" means a licence issued under the Motor Vehicles Ordinance, 1965 (W. P. Ordinance XIX of 1965), which authorizes the holder thereof to drive a motor vehicle;

(d) "arms licence" means a licence issued under the Pakistan Arms Ordinance, 1985 (W. P. Ordinance XX of 1965) ;

[1]Subs. and shall be deemed always to have been so subs. by Act VII of 1987, s.2.
[2]i.e. 1-1-93, vide Ministry of Education's Notification No. F.5-4/91-NFE-II, dt. 15-8-1991,see Gaz. of Pak. Ext. Pt. III, K-1991, p. 419.

(e) "authority" means the Headmaster of the Middle or High School of the District in which the applicant is residing; or an officer of the Literacy and Mass Education Commission or the Federal Ministry of Education or Federal Directorate of Education; or a person authorised to issue a passport or a driving license or an arms license; or the appointing authorities in the establishments or establishments under the control of the Federal Government.

3. Issue of passports, etc., to and employment of, literate persons only. Notwithstanding anything contained in any other law for the time being in force,—

(a) a passport other than a Hajj passport a driving licence or an arms licence shall be issued only to a literate person; and

(b) only a literate person shall be eligible for employment under a local body or an establishment or institution under the control of the Federal Government:

Provided that this section not be deemed to apply to the renewal of licences or passports issued, or to appointments made, before the date on which this Ordinance comes into force.

4. Savings. The provisions of section 3, so far as may be, shall not apply to a person who is physically or mentally handicapped.

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THE LOCAL AUTHORITIES LOANS ACT, 1914

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1. Short title and extent
2. Definitions
3. Borrowing powers of local authorities
4. Power to Government to make rules
5. Remedy by attachment if loan not repaid
6. Issue of short term bills
7. Loans not to be effected except under this act
8. [*Omitted.*]
9. [*Repeals.*]

SCHEDULE I

SCHRDULE II

THE PAKISTAN CODE

THE LOCAL AUTHORITIES LOANS ACT, 1914

[1]ACT No. IX OF 1914

[28th February, 1914]

An Act to consolidate and amend the law relating to the grant of loans to Local Authorities

Preamble. WHEREAS it is expedient to consolidate and amend the law relating to the borrowing powers of local authorities ; It is hereby enacted as follows :-

1. Short title and extent.— (1) This Act may be called the Local Authorities Loans Act, 1914.

[2][(2) It extends to the whole of Pakistan.]

2. Definitions. In this Act, "local authority" means any person legally entitled to the control or management of any local or municipal fund, or legally entitled to impose any cess, rate, duty or tax within any local area ;

"funds", used with reference to any local authority, includes any local or municipal fund to the control or management of which such authority is legally entitled, and any cess, rate, duty or tax which such authority is legally entitled to impose, and any property vested in such authority ;

"prescribed" means prescribed by rules made under this Act ; and

"work" includes a survey, whether incidental to any other work or not ;

[3]["the Government" or "the appropriate Government" means, in relation to cantonment authorities and in relation to port authorities in major ports, the [4][Federal Government], and in relation to other local authorities, the Provincial Government.]

3. Borrowing powers of local authorities.— (1) A local authority may, subject to the prescribed conditions, borrow on the security of its funds or any portion thereof for any of the following purposes, namely:-

(i) the carrying out of any works which it is legally authorized to carry out,

(ii) the giving of relief and the establishment and maintenance of relief works in times of famine or scarcity,

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[1]For Statement of Objects and Reasons, *see* Gazette of India, 1914, Pt. V, p. 5 ; for Report of Select Committee, *see ibid*., 1914, Pt. V, p. 17 ; and for Proceedings in Council, *see ibid*., 1914, Pt. VI, pp. 64, 159, 189 and 496.
The Act was extended to Baluchistan under s. 5 of the Scheduled Districts Act, 1874 (14 of 1874), *see* Gazette of India, 1915, Pt. II., p. 424.
This Act has been extended to the Leased Areas of Baluchistan, *see* the Leased Areas (Laws) Order, 1950 (G. G. O. 3 of 1950) ; and applied in the Federated Areas of Baluchistan, *see* Gazette of India, 1937, Pt. 1., p. 1499.
The Act has been extended and shall be deemed to have been so extended on the 14-10-1955 to the whole of Pakistan by the Central Laws (Statute Reform) Ordinance, 1960 (21 of 1960), s. 3 and Sch.
The provision of this Act shall apply to all loans borrowed under the Karachi Joint Water Board Ordinance, 1949 (13 of 1949), so far as the said provisions are not inconsistent with the provisions of the Ordinance, *see* s. 14 of Ordinance 13 of 1949.
[2]Subs. by Ordinance 21 of 1960, s. 3 and 2nd Sch. (*with effect from the 14th October, 1955*), for the original sub-section (2) as amended by A. O., 1949, Sch.
[3]Ins. by A. O., 1937.
[4]Subs. by F.A.O., 1975, Art. 2 and Table, for "Central Government".

(iii) the prevention of the outbreak or spread of any dangerous epidemic disease,

(iv) any measures which may be connected with or ancillary to any purposes specified in clauses *(ii)* and *(iii)*,

(v) the repayment of money previously borrowed in accordance with law:

Provided that nothing in clause *(v)* shall be deemed to empower a local authority to fix a period for the repayment of any money borrowed thereunder which, when the period fixed for the repayment of the money previously borrowed is taken into account, will exceed maximum period fixed for the repayment of a loan by or under any enactment for the time being in force :

[1][Provided further that, in the case of loans other than loans made by the [2][appropriate Government], no amount exceeding twenty-five lakhs of rupees shall be borrowed unless the terms, including the date of floatation, of such loan have been approved by the [3][appropriate Government].]

(2) Nothing in this section shall be deemed to authorize any local authority—

(a) to borrow or spend money for any purpose for which, under the law for the time being in force, it is not authorized to apply its funds, or

(b) to borrow money by means of the issue of bills or promissory notes payable within any period not exceeding twelve months.

4. Power to Government to make rules.— (1) The [2][appropriate Government] may make [5]rules consistent with this Act as to—

(i) the nature of the funds on the security of which money may be borrowed ;

(ii) the works for which money may be borrowed ;

(iii) the manner of making applications for permission to borrow money ;

(iv) the inquiries to be made in relation to such loans, and the manner of conducting such inquiries ;

(v) the cases and the forms in which particulars of applications and proceedings, and orders thereon, shall be published ;

(vi) the cases in which the [2][appropriate Government] may make loans [6]* * * ;

[7][*(vii)* the cases in which local authorities may take loans from persons other than the [appropriate Government] ;]

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[1]This proviso was ins. by the Devolution Act, 1920 (38 of 1920), s.2 and Sch. I.
[2]Subs. by A. O., 1937, for "L. G.".
[3]Subs. *ibid.*, for "G. G. in C.".
[4]Subs. *ibid.*, for the words "L. G." which were subs. by Act 38 of 1920, s. 2 and Sch. I, for "G. G. in C.".
[5]For rules applying to all local authorities in Chief Commissioners' Provinces and to Cantonment authorities and port authorities of major ports in Governors' Provinces, *see* the Local Authorities Loans (Central) Rules, 1937 (published in the Gazette of India, 1937, Pt. I, p. 1902); and for rules applying to other local authorities in Governors' Provinces, *see* the Local Authorities Loans Rules 1915 (Gen. R & O.).
[6]Certain words Rep. by Devolution Act, 1920 (38 of 1920), s. 2, and Sch. I.
[7] Subs. *ibid.*, for the original clause.

(viii) the manner of recording and enforcing the conditions on which money is to be borrowed ;

(ix) the manner and time of making or raising loans ;

(x) the inspection of any works carried out by means of loans ;

(xi) the installments, if any, by which loans shall be repaid, the interest to be charged on loans, and the manner and time of repaying loans and of paying the interest thereon ;

(xii) the sum to be charged against the funds which are to form the security for the loan, as costs in effecting the loan ;

(xiii) the attachment of such funds, and the manner of disposing of or collecting them ;

(xiv) the accounts to be kept in respect of loans ;

(xv) the utilization of unexpended balances of loans either in the reduction in any way of the debt of the local authority, or in carrying out any works which that authority is legally authorized to carry out ; and the sanction necessary to such utilization ;

and as to all other matters incidental to carrying this Act into effect.

[1][* * * * * *]

(3) All rules made under this Act shall be published [2]* * * in the [3][official Gazette], and on such publication, shall have effect as if enacted in this Act.

5. Remedy by attachment if loan not repaid. If any money borrowed in accordance with the provisions of this Act or any interest or costs due in respect thereof, is or are not repaid according to the conditions of the loan, the [4][appropriate Government], if itself the lender, may, and, if the [4][appropriate Government] is not the lender, shall, on the application of the lender, attach the funds on the security of which the loan was made. After such attachment, no person, except an officer appointed in his behalf by the [4][appropriate Government], shall in any way deal with the attached funds; but such officer may do all acts in respect thereof which the borrowers might have done if such attachment had not taken place, and may apply the proceeds in satisfaction of the loan and of all interests and costs due in respect thereof and of all expenses caused by the attachment and subsequent proceedings:

[1]Sub-section (2) was rep. by the Devolution Act, 1920 (38 of 1920), s. 2 and Sch. I.
[2]Certain words were rep., *ibid.*
[3]Subs. by A. O., 1937, for "local official Gazette".
[4]Subs. by A. O., 1937, for "L. G.".

Attachment not to defeat prior charges legally made. Provided that no such attachment shall defeat or prejudice any debt for which the funds attached were previously pledged in accordance with law ; but all such prior charges shall be paid out of the proceeds of the funds before any part of the proceeds is applied to the satisfaction of the liability in respect of which such attachment is made.

6. Issue of short term bills.—(1) Subject to the provisions of section [1][17 of the State Bank of Pakistan Act, 1956 (XXXIII of 1956)], the local authorities mentioned in Schedule I and any other local authority to which the [2][appropriate Government] may, by notification in the [3][official Gazette], extend the provisions of this section, may, with the previous sanction of the [2][appropriate Government], borrow money by means of the issue of bills or promissory notes payable within any period, not exceeding twelve months, for any purpose for which such local authority may lawfully borrow money under any law for the time being in force:

Provided that the amount of the bills or promissory notes which may be so issued, shall not exceed, when the amount of the other moneys for the time being borrowed by such local authority is taken into account, the total amount which such local authority is empowered by law to borrow.

(2) The [2][appropriate Government] may, by general or special order, regulate the conditions on which money may be borrowed or repaid under this section.

7. Loans not to be effected. except under this Act. Except as provided by or under this Act, no local authority shall, for any purpose, borrow money upon, or otherwise charge its funds ; and any contract otherwise made for that purpose after the passing of this Act shall be void:

Provided that nothing herein contained shall be deemed—

(a) to preclude any local authority from exercising the borrowing powers conferred on it by any special enactment now or hereafter in force ; or

(b) to affect the power conferred on any local authority by any such enactment to charge its funds, by guaranteeing the payment of interest on money to be applied to any purpose to which the funds of the local authority can legally be applied.

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8. [4]*[Application of Act to loan existing previous to the fifth September, 1871.] Omitted by the Federal Laws (Revision and Declaration) Ordinance, 1981 (XXVII of 1981), s. 3 and Second Schedule.*

9. [*Repeals.*] *Rep. by the Repealing Act, 1927 (XII of 1927), s. 2 and Schedule.*

[1]Subs. by the Federal Laws (Revision and Declaration) Ordinance, 1981 (27 of 1981), s. 3 and Sch., II. for "26 of the Indian Paper Currency Act, 1910", which has previously been amended by various enactments from time to time.
[2]Subs. by A. O., 1937, for "G. G. in C. ".
[3]Subs. ibid., for "Gazette of India".
[4]This section was amended by A. O., 1937.

SCHEDULE I

(*See* section 6)

[1]* * * * * * * * *

[2]* * * * * * * * *

[3]* * * * * * * * *

[4]* * * * * * * * *

[5][The Karachi Municipal Corporation.]

The Trustees of the Port of Karachi.

[6]* * * * * * * * *

SCHEDULE II.— [ENACTMENTS REPEALED.] *Rep. by the Repealing Act, 1927 (XII of 1927), s. 2 and Schedule.*

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Date: 11-09-2024

[1]The entries relating to the local authorities of Corporation and Port of Calcutta, omitted by A. O., 1949, Sch.

[2]The words "The [Trustees of] the Port of Chittagong", omitted by F.A.O., 1975, Art. 2 and Sch., which was previously amended by Ord. 1 of 1961, s. 3 and Sch., for "Commissioners for".

[3]The entries relating to the local authorities of Corporations and Ports of Bombay and Madras, omitted by A. O., 1949, Sch.

[4]The entries relating to the Municipal Committee of Rangoon and the Commissioners for the Port of Rangoon, rep. by A. O., 1937.

[5]Subs. by the Repealing and Amending Ordinance, 1965 (10 of 1965), s. 3 and 2nd Sch., for "the Municipal Committee of Karachi" as amended by Ordinance 1 of 1961, s. 3 and 2nd Sch.

[6]The entries relating to the Trustees for the Improvement of the cities of Bombay and Calcutta, omitted by A. O., 1949, Sch.

THE MAINTENANCE ORDERS ENFORCEMENT ACT, 1921

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THE MAINTENANCE ORDERS ENFORCEMENT ACT, 1921

[1]ACT No. XVIII OF 1921

[*5th October, 1921*]

An Act to facilitate the enforcement [2][Pakistan] of Maintenance Orders made in other [3][Countries] and vice versa.

WHEREAS it is expedient to facilitate the enforcement in [2][Pakistan] of Maintenance Orders made in other [3][Countries] and *vice versa*; It is hereby enacted as follows:—

1. Short title and extent.—**(1)** This Act may be called the Maintenance Orders Enforcement Act, 1921.

[4][(2) It extends to the whole of Pakistan.]

2. Definitions. In this Act, unless there is anything repugnant in the subject or context,-

"Court of summary jurisdiction" means the Court [5][* * *] of a District Magistrate;

"dependants" means such persons as a person against whom a maintenance order is made is liable to maintain according to the law in force in the [6][country] in which the maintenance order is made;

"maintenance order" means a decree or order, other than an order of affiliation, made by a Court in the exercise of civil or criminal jurisdiction for the periodical payment of sums of money towards the maintenance of the wife or other dependants of the person against whom the order is made;

"prescribed" means prescribed by rules made under this Act;

"Proper authority" means the authority appointed by, or under the law of, a reciprocating territory to receive and transmit documents to which this Act applies; and "reciprocating territory" means any [6][country] [7]* *in respect of which this Act for the time being applies.

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[1] For Statement of Objects and Reasons, see Gazette of India, 1921, Pt. V, p. 5; and for Report of Select Committee, see *ibid*., 1921, Pt. V, p. 127.
It has been extended to the Leased Areas of Baluchistan by the Leased Areas (Laws) Order, 1950 (G.G.O. 3 of 1950); and applied in the Federated Areas of Baluchistan, see Gazette of India, 1937, Pt. I, p. 1499.
[2]See foot-note 1 on page 8, supra.
[3]Subs. by the Maintenance Orders Enforcement (Amdt.) Ordinance, 1962 (LXIX of 1962), s. 2, for "parts of His Majesty's Dominions and Protectorates [Acceding States and non-Acceding States]". The words in crotchets were ins. by A.O., 1949.)
[4]The original sub-section (2) as amended by A.O., 1949 and the Federal Laws (Revision and Declaration) Act, 1951 (XXVI of 1951), s. 8, has been subs. by the Central Laws (Statue Reform) Ordinance, 1960 (XXI of 1960), s. 3 and 2nd Sch. (with effect from the 14th October, 1955).
[5]The words "of a Chief Presidency Magistrate or" omitted by A.O., 1949.
[6]Subs. by the Maintenance Orders Enforcement (Amdt.) Ordinance, 1962 (LXIX of 1962), s. 3, for "Part of His Majesty's Dominions".
[7]The words "outside [Pakistan]" have been omitted by A.O., 1961, Art. 2 and Sch. (with effect from the 23rd March, 1956). The words in crotchets were subs. by A.O., 1949, for "British India".

[1][3. **Reciprocal arrangments.** If the [2][Federal Government is statisfied that provisions have been made by the legislature of any country for the enforcement within that coutry of maintenance orders made by Courts in Pakistan, the [2][Federal Government] may, by notification in the official Gazette, [3][declare that this Act applies in respect of that country and thereupon it shall apply accordingly.]

[4][4. **Registration of maintenance orders].___(1)** Where a maintenance order has, whether before or after the passing of this Act, been made against any person by any Court in any reciprocating territory, and a certified copy of the order has been transmitted by the proper authority of that territory to the [5][Federal Government], the [6][Federal Government] shall send a copy of the order to the prescribed officer of a Court in [7][Pakistan] for registration, and, on receipt thereof, the order shall be registered in the prescribed manner.

(2) The Court in which an order is to be so registered as aforesaid shall, if the Court by which the order was made was, in the opinion of the [6][Federal Government], a Court of superior jurisdiction, be a High Court, and, if the Court was not, to [8][its] opinion, a Court of superior jurisdiction, be a Court of summary jurisdiction.

5. Transmission of maintenance orders made in Pakistan. Where a Court in [7][Pakistan] has, whether before or after the commencement of this Act, made a maintenance order against any person, and it is proved to that Court that the person against whom the order was made is resident in a reciprocating territory, the Court shall send to the [6][Federal Government], for transmission to the proper authority of that territory, a certified copy of the order.

6. Power of summary Courts to make Provincial maintenance orders [9][* *].—**(1)** Where application is made to a Court of summary jurisdiction in [7][Pakistan] for a maintenance order against any person, and it is proved that that person is resident in a reciprocating territory, the Court may, in the absence of that person, if after hearing the evidence it is satisfied of the justice of the application, make any such order as it might have made if that person had wilfully neglected to attend the Court; but in such case the order shall be provisional only and shall have no effect unless and until confirmed by a competent Court in such territory.

(2) The evidence of every witness who is examined on any such application shall be reduced to writing, and such deposition shall be read over to, and signed by, him.

(3) Where such an order is made, the Court shall send to the [6][Federal Government], for transmission to the proper authority of the reciprocating territory in which the person against whom the order is made is alleged to reside, the depositions so taken and a certified copy of the order together with a statement of the grounds on which the making of the order might have been opposed if the person against whom the order is made had been duly served with a summons and had appeared at the hearing and such information as the Court possesses for facilitating the identification of that person and ascertaining his whereabouts.

[1]Subs. by Ord. No. LXIX of 1962, s.4, for the original sectionn 3 as amended by A.O., 1937, A.O., 1949 Ordinance No. XXI of 1960,s.3 and 2nd Sch. and the Foreign Awards and Maintenance Orders (Enforcement) (Amdt.) Ordinance, 1962 (LIII of 1962).
[2]Subs. by F.A.O,. 1975, Art.2 and Table "for Central Government".
[3]For such declaration in respect of any country outside Pakistan, see G.S.R.O. and Gaz. of P., 1961 Pt.I, p.138; and in respect of the Federation of Malaya, see Gaz. of P., 1956, Pt.I, p.546.
[4]Subs. by the Maintenance Orders Enforcement (Arndt.) Ordinance, 1962 (LXIX of 1962), s. 5, for the original marginal note
[5]Subs. by F. A. O., 1975 Art 2 and Table, "for Central Government", which was previously amended by A. O., 1937, for "Governor-General".
[6]Subs. by A. O. 1937 for "G. G. in C.".
[7]See foot note 1. on page 8, supra.
[8]Subs. by A. O., 1937, for "his".
[9]The words "against persons resident in His Majesty's Dominions outside the Provinces, etc.," omitted by the Maintenance Orders Enforce-ment (Arndt.) Ordinance, 1962 (LXIX of 1962), s. 6.

(4) Where any such provisional order has come before a Court in a reciprocating territory for confirmation, and the order has by that Court been remitted to the Court of summary jurisdiction which made the order for the purpose of taking further evidence, that Court shall, after giving the prescribed notice, proceed to take the evidence in like manner and subject to the like conditions as the evidence in support of the original application.

(5) If it appears to the Court hearing such evidence that the order ought not to have been made, the Court may rescind the order, but in any other case the depositions shall be sent to the [1][Federal Government] and dealt with in like manner as the original depositions.

(6) The confirmation of an order made under this section shall not affect any power of a Court of summary jurisdiction to vary or rescind that order:

Provided that, on the making of a varying or rescinding order, the Court shall send a certified copy thereof to the [1][Federal Government] for transmission to the proper authority of the reciprocating territory in which the original order was confirmed, or to which it was sent for confirmation and that, in the case of an order varying the original order, the order shall not have any effect unless and until confirmed in like manner as the original order.

7. Power of Court of summary jurisdiction to confirm maintenance order made out of Pakistan.—(1) Where a maintenance order has been made by a Court in a reciprocating territory and the order is provisional only, and has no effect unless and until confirmed by a Court of summary jurisdiction in [2][Pakistan], and a certified copy of the order, together with the depositions of the witnesses and a statement of the grounds, on which the order might have been opposed, has been transmitted to the [3][Federal Government], and it appears to the [4][Federal Government], that the person against whom the order has been made is resident in [2][Pakistan] the [4][Federal Government] may send the said documents to the prescribed officer of a Court of summary jurisdiction, with a requisition that a summons be issued calling upon the person to show cause why that order should not be confirmed, and, upon receipt of such documents and requisition, the Court shall issue such a summons and cause it to be served upon such person.

(2) A summons issued under sub-section (1) shall for all purposes be deemed to be a summons issued by the Court in the exercise of its original criminal jurisdiction.

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(3) At the hearing it shall be open to the person to whom the summons was issued to raise any defence which he might have raised in the original proceedings had he been a party thereto, but no other defence, and the certificate from the Court which made the provisional order stating the grounds on which the making of the order might have been opposed if the person against whom the order was made had been a party to the proceedings shall be conclusive evidence that those grounds are grounds on which objection may be taken.

(4) If at the hearing the person served with the summons does not appear or, on appearing, fails to satisfy the Court that the order ought not to be confirmed, the Court may, notwithstanding any pecuniary limit imposed on its power by any law for the time being in force in [2][Pakistan], confirmed the order either without modification or with such modifications as to the Court after hearing the evidence may seem just:

[1]Subs. by F.A.O., 1975. Art. 2 and Table, for "Central Government" which was previously amended by A. O.,1937, for "G.G. in C.".
[2]Subs by the Central Laws (Statute Reform) Ordinance, 1960 (XXI of 1960), s.3 and 2nd Sch. (with effect from the 14th October, 1955), for "the Provinces and the Capital of the Federation" which had been subs. by A.O. 1949, for "British India".
[3]Subs. by F.A.O.,1975, Art 2 and Table for "Central Government", which was previously amended by A. O.,1937, for "Governor-General".
[4]Subs. by A. O.,1937 for "G. G. in C.".

Provided that no sum shall be awarded as maintenance under this section, or shall be recoverable as such, at a rate exceeding that proposed in the provisional order.

(5) If the person to whom the summons was issued appears at the hearing and satisfies the Court that for the purpose of any defence it is necessary to remit the case to the Court which made the provisional order for the taking of any further evidence, the Court may for that purpose send a certified copy of the record to the [1][Federal Government] for transmission to that Court through the proper authority of the reciprocating territory, and may adjourn the proceedings.

(6) Where a provisional order has been confirmed under this section it may be varied or rescinded in like manner as if it had originally been made by the confirming Court, and where on an application for rescission or variation the Court is satisfied that it is necessary to remit the case to the Court which made the provisional order for the purpose of taking any further, evidence, the Court may for that purpose send a certified copy of the record to the [1][Federal Government] for transmission to that Court through the proper authority of the reciprocating territory, and may adjourn the proceedings.

8. Enforcement of maintenance orders.—(1) Subject to the provisions of this Act, where an order has been registered under this Act in a High Court, the order shall, from the date of such registration, be of the same force and effect, and all proceedings may be taken thereon as if it had been an order originally obtained in the High Court in the exercise of its civil jurisdiction, or in such Civil Court subordinate to that High Court as may be named by the High Court in this behalf, and that Court shall have power to enforce the order accordingly.

(2) A Court of summary jurisdiction in which an order has been registered under this Act or by which an order has been confirmed under this Act, and the officers of such Court, shall have such powers and perform such duties, for the, purpose of enforcing the order, as may be prescribed.

9. Payment of charges for transmission of sums awarded as maintenance and other costs and charges. A Court in registering or confirming an order for maintenance in accordance with the provisions of this Act shall direct that the charges for the transmission to the Court, from which the order has been received or in which the provisional order has been made, as the case may be, of the sum awarded as maintenance shall be borne by the person against whom the order has been so made or confirmed, and shall be recovered from him in addition to the sum awarded as maintenance and in addition to, and in the same manner as, such other costs and charges as may be awarded or levied by the Court.

10. Proof of documents signed by officers of Court. For the purposes of this Act, any document purporting to be signed by a judge or officer of a Court outside [2][Pakistan] shall, until the contrary is proved, be deemed to have been so signed without proof of the signature of judicial or official character of the person appearing to have signed it, and the officer of a Court by whom a document is signed shall, until the contrary is proved, be deemed to have been the proper officer of the Court to sign the document.

11. Depositions to be evidence. Depositions taken in a Court in any reciprocating territory may, for the purposes of this Act, be received in evidence in proceedings before Courts of summary jurisdiction under this Act.

[1]Subs. by F. A. O., 1975, Art. 2. and Table, for "Central Government" which was previously amended by A. O., 1937; for "G. G. in C.".
[2]Subs by the Central Laws (Statute Reform) Ordinance, 1960 (XXI of 1960), s.3 and 2nd Sch. (with effect from the 14th October, 1955), for "the Provinces and the Capital of the Federation" which had been subs. by A.O. 1949, for "British India".

12. Rule-making power. The [1][Federal Government] may make rules for the purpose of carrying into effect the purposes of this Act, and in particular may make rules for the levy of the costs or charges for anything done under this Act and for all matters which are directed or permitted to be prescribed.

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Dated:05.04.24

[1]Subs. by F. A. O., 1975, Art. 2 and Table, for "Central Government", which was previously amended by A.O., 1937, for "G. G. in C

THE MANAGED CEMENT ESTABLISHMENTS (PAYMENT TO CORPORATION) ORDINANCE, 1979

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PREAMBLE

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2 Definitions.

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4 Allowance to be made for amounts paid by a unit for purpose of income-tax

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THE MANAGED CEMENT ESTABLISHMENTS (PAYMENT TO CORPORATION) ORDINANCE,1979.

ORDINANCE NO. II OF 1979

[15th January, 1979]

An Ordinance to provide for the payment of certain amount by managed cement establishments to the State Cement Corporation of Pakistan.

WHEREAS it is expedient to provide for the payment of certain amount by managed cement establishments to the State Cement Corporation of Pakistan and for matters connected therewith;

AND WHEREAS the President is satisfied that circumstances exist which render it necessary to take immediate action;

NOW, THEREFORE, in pursuance of the Proclamation of the fifth day of July, 1977, read with the Laws (Continuance in Force) Order, 1977, *(C.M.L.A. Order No. 1 of 1977)*, and in exercise of all powers enabling him in that behalf, the President is pleased to make and promulgate the following Ordinance:—

1. Short title, extent and commencement.—(1) This Ordinance may be called the Managed CementEstablishments (Payment to Corporation) Ordinance, 1979.

(2) It extends to the whole of Pakistan.

(3) It shall come into force at once.

2. Definitions. In this Ordinance, unless there is anything repugnant in the subject or context,—

(*a*) "Corporation" means the State Cement Corporation of Pakistan, registered under the Companies Act, 1913 (VII of 1913); and

(*b*) "unit" means a company the management of which has been transferred or may be transferred to the Corporation under Article 7E of the Economic Reforms Order, 1972 (P.O. No. 1 of 1972), a project and a managed company vested in the Corporation under section 4 of the West Pakistan Industrial Development Corporation (Transfer of Projects and Companies) Act, 1974 (XXVIII of 1974), and the Associated Cement vested in the Corporation under section 3 of the Associated Cement (Vesting) Act, 1974 (VII of 1975) or any other unit set up or controlled by the State Cement Corporation of Pakistan.

3. Payment by units to Corporation. Every unit shall pay to the Corporation in respect of each metric ton of cement produced and sold by it after the twenty-fourth day of March, 1976, such amount as the Federal Government may, by notification[1] in the official Gazette, fix; and different amounts may be fixed for different periods.

4. Allowance to be made for amounts paid by a unit for purpose of income-tax. Notwithstanding anything contained in the [2][Income-tax Ordinance, 1979 (XXXI of 1979)] the amount paid by a unit to the Corporation in pursuance of section 3 shall be an expenditure for which allowance is to be made in computing profits or gains of that unit under [2][section 23 of that Ordinance].

[1] For such notification, see S.R.O. 55(J)/80, dated 8-1-81, Gaz. of P., 1981, Ext.,Pt. II, pp. 3—12.

[2] Subs. by the Federal Laws (Revision and Declaration) Ordinance, 1981 (27. of 1981), s. 3 and Sch II.

5. Cement Development Fund. The proceeds of the amounts paid by the units shall be credited to a fund to be known as the Cement Development Fund which shall be administered in such manner, and used by the Corporation in such development scheme 1[or other purposes, including payment of a subsidy to a unit, that may be in the interest of the cement industry owned by the state], as may be prescribed.

6. Power to make rules.—(1) The Federal Government may, by notification in the official Gazette, make rules for carrying out the purposes of this Ordinance.

(2) In particular and without prejudice to the generality of the foregoing power, such rules may provide for—

(*a*) the manner and time of payment by the units; and

(b) the maintenance of the accounts of the Cement Development Fund, investment of the Fund and its use in development schemes.

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[1] Ins. by the Managed Cement Establishments (Payment to Corporation) (Amdt.) Ordinance, 1982 (22 of 1982). s. 2.

THE MEASURES OF LENGTH ACT, 1889

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1. Title, extent and commencement.
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THE MEASURES OF LENGTH ACT, 1889

[1]ACT NO. II OF 1889

[*15th February*, 1889]

An Act to declare the imperial standard yard for the United Kingdom to be the legal standard measure of length in [2][Pakistan].

WHEREAS it is expedient to declare the imperial standard yard for the United Kingdom to be the legal standard measure of length in [2][Pakistan]; It is hereby enacted as follows:—

1. Title, extent and commencement.—(1) This Act may be called the Measures of Length Act, 1889.

[3][(2) It extends to the whole of Pakistan]; and

(3) It shall come into force on such [4]day as the [5][Federal Government] may appoint in this behalf.

2. Standard yard. The imperial standard yard for the United Kingdom shall be the legal standard measure of length in [2][Pakistan] and be called the standard yard.

3. Measure for determining length of standard yard. A copy, approved by the [6][Provincial Government], of the imperial standard for determining the length of the imperial standard yard for the United Kingdom shall be kept in such place within the limits of the[7][Province] as the [6][Provincial Government] may prescribe, and shall be the standard for determining the length of the standard yard:

[8][* * * * * * *]

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4. Standard foot and inch. One-third part of the standard yard shall be called a standard foot, and one-thirty-sixth part of such a yard shall be called a standard inch.

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[1]For Statement of Objects and Reasons, *see* Gazette of India, 1888, Pt. V, p. 41; for Report of the Select Committee, *see ibid*., 1 889, Pt. IV, p. 6: and for Proceedings in Council, *see ibid*., 1888, Pt. Vl, pp. 66 and 82, and *ibid*., 1889, Pt. VI, p. 20.
This Act has been applied to Phulera in the Excluded Area of Upper Tanawal to the extent the Act is applicable in the- N.W.F.P., subject to certain modifications and also extended to the excluded Area of Upper Tanawal (N.W.F.P.) other than Phulera with effect from such date and subject to such modifications as may be notified, see N.W.F.P. (Upper Tanawal) (Excluded Area) Laws Regulation, 1950.
It shall be deemed to have been repealed in the N.W.F.P. when part V of the N.W.F.P. Act 23 of 1947 comes into force in that Province, *see* s. 42 of the N.W.F.P. Weights and Measures Act, 1947 (23 of 1947), and shall also be deemed to have been repealed in any area in the Punjab when Part VI of Punjab Act 12 of 1941 comes into force in that Area.
[2]Subs. by the Central Laws (Statute Reform) Ordinance, 1960 (21 of 1960), s. 3 and 2nd Sch. (*with effect from the 14th October, 1955*) for "the Provinces and the Capital of the Federation" which had been subs. by A.O., 1949, Arts. 3(2) and 4, for "British India".
[3]Sub-section (2) as amended by A. O., 1949, Arts. 3(2) 4, has been subs. by Ord. 21 of 1960, s. 3 and 2nd Sch. (*with effect from the 14th October, 1955).*
[4]The Act was brought into force on the 15th June, 1889, *see* Gazette of India, 1889, Pt. I, p. 305.
[5]Subs. by F.A.O., 1975, Art. 2 and Table, for "Central Government", which had been subs, A.O., 1937. for "G. G. in C",
[6]Subs. by A. O., 1937, for "G.G. in C.".
[7]Subs. *ibid*., for "Town of Calcutta".
[8]Proviso which was ins. by A. O., 1937, omitted by Ord. 21 of 1960, s. 3 and 2nd Sch. (*with effect from the 14th October, 1955*).

5. Presumption in favour of accuracy of certified measures. Any measure having stamped thereon or affixed thereto a certificate purporting to be made [1][before the first day of April, 1937, under the authority of any Government in [2][Pakistan] or on or after that date under the authority of the Provincial Government] and stating that the measure is of the length of the standard yard or that a measure marked thereon as a foot or inch is of the length of the standard foot or standard inch, as the case may be, shall, when produced before any Court by any public servant having charge of the measure in pursuance of any direction published in an official Gazette [3][by order of the Provincial Government], or by any person acting under the general or special authority of such a public servant, be deemed to be correct until its inaccuracy is proved.

6. Inspection of certified measures by the public. A public servant having in pursuance of such a direction charge of such a measure as is mentioned in the last foregoing section shall allow any person to inspect it free of charge at all reasonable times and to compare therewith or with any measure marked thereon any measure which such person may have in his possession.

7. **Certified measures to be kept by authorities required by existing enactments to keep measures of length**. There shall be kept [4][* * *] by the District Magistrate under section 20 of Regulation XII of 1827 of the Bombay Code, such certified measures of the standard yard, standard foot and standard inch as are mentioned in section 5.

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Date: 05-09-2024

[1]Subs. by A. O., 1937, for "under the authority of the G. G. in C. or of a L. G.".

[2]Subs. by the Central Laws (Statute Reform) Ordinance, 1960 (21 of 1960), s. 3 and 2nd Sch. (*with effect from the 14th October. 1955*), for "the Provinces and the Capital of the Federation" which had been subs. by A.O., 1949, Arts. 3 (2) and 4, for "British India".

[3]Subs. by A. O., 1937, for "by order of the G. G. in C. or the L. G.".

[4]The words and figures "by the Commissioner of Police in the Town of Calcutta under section 55, of the Calcutta Police Act, 1866, * * * by the Commissioner of Police in the City of Madras under section 32 of the Madras City Police Act, 1888, by the Municipal Commissioner in the City of Bombay under section 418 of the City of Bombay Municipal Act, 1888, and" omitted by A. O., 1949, Sch. The asterisks in this footnote indicate the omission of the words and figures "by the Commissioners in Calcutta under section 370 of the Calcutta Municipal Consolidation Act, 1888 which were rep. by Act 24 of 1934, s. 2 and Sch.

THE METAL TOKENS ACT, 1889

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3. Prohibition of making by private persons of pieces of metal to be used as money.
4. Penalty for unlawful making, issue or possession of such pieces.
5. Cognizance of offences under the last foregoing section.
6. Application of certain of the foregoing provisions of this Act to importation of pieces of metal for use as money.
7. Addition to section 98, Act X of 1882.
8. Prohibition of receipt by local authorities and railways as money of metal which is not coin.
9. Amendment of section 28 of the Indian Penal Code.

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THE METAL TOKENS ACT, 1889

[1] ACT NO. I OF 1889

[*1st February,* 1889]

An Act for the Protection of Coinage and other purposes

WHEREAS it is expedient to prohibit the making, or the Possession for issue or the issue, by private persons, of pieces of metal for use as money;

And whereas it is also expedient to amend section 28 of the Pakistan Penal Code (XLV of 1860);

It is hereby enacted as follows:—

1. Title and extent.—(1) This Act may be called the Metal Tokens Act, 1889.

[2][(2) It extends to the whole of Pakistan]; [3]*

[3][* * * * * * *]

2. Definition. In this Act "issue" means to put a piece of metal into circulation for the first time for use as money in [4][Pakistan] such piece having been made in contravention of this Act or brought into [4][Pakistan] by [5][air, sea or land] in contravention of any notification for the time being in force under section [6][16 of the customs Act, 1969 (IV of 1969)].

3. **Prohibition of making by private persons of pieces of metal to be used as money**. No piece of copper or bronze or of any other metal or mixed metal, which, whether stamped or unstamped, is intended to be used as money, shall be made except by the authority of the [7][Federal Government].

4. Penalty for unlawful making, issue or possession of such pieces.—(1) In either of the following cases, namely:—

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(a) if any person makes in contravention of the last foregoing section, or issues or attempts to issue, any such piece as is mentioned in that section,

(b) if, after the expiration of three months from the commencement of this Act, any person has in his possession, custody or control any such piece as is mentioned in the last foregoing section, with intent to issue the piece,

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[1]For Statement of Objects and Reasons, *see* Gazette of India, 1888, Pt. V; p 19; for Report of the Select Committee. *see ibid*., 1889, Pt. IV. p. 3; and for Debates in Council, see ibid., 1888, Pt. VI, pp 40 and 81, and *ibid*., 1889, Pt. VI, pp. 3 and 9.

[2]Sub-section (2) as amended by A. O., 1949, Arts. 3(2) and 4, has been subs. by the Central Laws (Statute Reform) Ordinance, 1960 (21 of 1960), s. 3 and 2nd Sch. (*with effect from the 14th October, 1955*).

[3]The word "and" at the end of sub-section (2), and sub-section (3), were rep. by the Repealing and Amending Act, 1914 (10 of 1914), s. 3 and Sch. II.

[4]Subs. by Ord. 21 of 1960, s. 3 and 2nd Sch. (*with effect from the 14th October, 1955*), of "the Provinces and the Capital of the Federation" which had been subs. by A. O., 1949, Arts. 3(2) and 4, for "British India".

[5]Subs. by the Federal Laws (Revision and Declaration) Ordinance, 1981 (27 of 1981), s. 3 and 2nd Sch., for "sea or by land".

[6]Subs. *ibid*., for "19 of the Sea Customs Act, 1878".

[7]Subs. by F.A.O., 1975, Art. 2 and Table, for "Central Government", which was previously subs. by A. O., 1937, for "G. G. in C.", to read as above.

the person shall be punished,

(i) if he has not been previously convicted under this section, with imprisonment which may extend to one year, or with fine, or with both; or,

(ii) if he has been previously convicted under this section, with imprisonment which may extend to three years, or with fine, or with both.

(2) If any person is convicted of an offence under sub-section (1), he shall, in addition to any other punishment to which he may be sentenced, forfeit all such pieces as aforesaid, and all instruments and materials for the making of such pieces, which may have been found in his possession, custody or control.

(3) If in the trial of any such offence the question arises whether any piece of metal or mixed metal was intended to be used or to be issued for use as money, the burden of proving that the piece was not intended to be so used or issued shall lie on the accused person.

5. Cognizance of offences under the last foregoing section.—(1) The offence of making, in contravention of section 3, any such piece as is mentioned in that section shall be a cognizable offence.

(2) Notwithstanding anything in the [1][Code of Criminal Procedure, 1898], (V of 1898) no other offence punishable under section 4 shall be a cognizable offence, or [2]* * * be taken cognizance of by any Magistrate, except a District Magistrate or Sub-Divisional Magistrate, without the previous sanction of the District Magistrate or Sub-Divisional Magistrate.

6. **Application of certain of the foregoing provisions of this Act to importation of pieces of metal for use as money**. [3][If at any time the Federal Government sees fit, by notification under section 16 of the Customs Act, 1969, (IV of 1969) to prohibit to restrict the bringing by air, sea or land into Pakistan of any such pieces of metal as are mentioned in section 3, it may by notification direct that any person contravening the prohibition or restriction shall be liable to the punishment to which he would be liable if he were convicted under this Act of making such pieces in Pakistan, instead of to the penalty mentioned in section 156 of the Customs Act, 1969 (IV of 1969), and that the provisions of sub-section (3) of section 4 and sub-section (1) of section 5, or of either sub-section, in relation to the offence of making such pieces shall, notwithstanding anything in the Customs Act, 1969, apply, so far as they can be made applicable, to the offence of contravening the prohibition or restriction notified under section 16 of that Act.]

7. [*Addition to section* 98, *Act X of* 1882.] Rep. by the *Code of Criminal Procedure*, 1898 (*V of* 1898).

[1]Subs. by the Federal Laws (Revision and Declaration) Ordinance, 1981 (27 of 1981), s. 3 and 2nd Sch., for "Code of Criminal Procedure, 1882".
[2]The words "beyond the limits of a presidency town" omitted by A. O., 1949, Sch.
[3]Section 6 subs. by Ord. 27 of 1981, s. 3 and 2nd Sch.

8. Prohibition of receipt by local authorities and railways as money of metal which is not coin.—(1) No piece of metal which is not coin as defined in the Pakistan Penal Code (XLV of 1860) shall be received as money by or on behalf of any railway-administration or local authority.

(2) If any person on behalf of a railway-administration, or on behalf of a local authority, or on behalf of the lessee of the collection of any toll or other impost leviable by a railway is administration or local authority, receives as money any piece of metal which is not such coin as aforesaid, he shall be punished with fine which may extend to ten rupees.

9. [*Amendment of section* 28 *of the Indian Penal Code.*] *Rep. by the Repealing Act*, 1938 (*I of* 1938), s. 2 *and Sch.*

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THE MOTOR VEHICLES ACT, 1939

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THE MOTOR VEHICLES ACT, 1939

[1]ACT NO. IV OF 1939

[*16th February, 1939*]

An Act to consolidate and amend the law relating to motor vehicles.

WHEREAS it is expedient to consolidate and amend the law, relating to motor vehicles in [2][Pakistan]; it is hereby enacted as follows: —

[*Chapters I to VI have been repealed in its application to the Province of West Pakistan by the Provincial Motor Vehicles Ordinance, 1965 (XIX of 1965) section 122 and 14th Schedule.*]

CHAPTER VII

MOTOR VEHICLES TEMPORARILY LEAVING OR VISITING [2][PAKISTAN]

92. Power of Federal Government to make rules.—(1) The [3][Federal Government] may, by notification in the official Gazette, make rules for all or any of the following purposes, namely:—

(a) the grant and authentication of traveling passes, certificates or authorisations to persons temporarily taking motor vehicles out of [2][Pakistan] to any place [4][outside Pakistan] or to persons temporarily proceeding out of [2][Pakistan] to any place [4][outside Pakistan] and desiring to drive a motor vehicle during their absence from [2][Pakistan];

(b) prescribing the conditions subject to which motor vehicles brought temporarily into [2][Pakistan] from [4][outside Pakistan] by persons intending to make a temporary stay in [1][Pakistan] may be possessed and used in [2][Pakistan]; and

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[1]For Statement of Objects and Reasons, *see* Gazette of India , 1938, Pt. V, p. 114 ; for Report of the Select Committee, *see ibid*., p. 187. *See* also the India Independence (Miscellaneous Transitional Provisions) Order, 1947 (G.G.O. 13 of 1947), Art. 3.

This Act has been applied to—

Baluchistan, *see* Notification No. 41-F., dated the 14th March, 1939, Gazette of India, 1939, Pt. I, p. 446, and Notification No. 126-F., dated the 3rd July, 1939, Gazette of India, 1939, Pt. I, p. 1180;

Phulera in the Excluded Area of Upper Tanawal to the extent the Act is applicable in the N.W.F.P., subject to certain modifications, *see* N.W.F.P. (Upper Tanawal) (Excluded Area) Laws Regulation, 1950; and extended to the Excluded Area of Upper Tanawal othe4r than Phuera by the N.W.F.P. (Upper Tanawal) (Excluded Area) Laws Regulation, 1950 and declared to be in force in that area with effect from the 1st June, 1951, *see* N.W.F.P. Gazette, Extraordinary, dated the 1st June, 1951;

Such of the Baluch Tribal Areas beyond the western border of Dera Ghazi Khan District of the Punjab, as are not included in the Balochistan Tribal Areas, *see* Gazette of India, 1939, Pt. I, p. 1562; and

Province of West Pakistan by West Pakistan Ordinance 11 of 1963 (*With effect from the 16th May, 1963*)

The Act has been amended in its application to—

(i) Sind and Karachi, by the Motor Vehicles (Sind Amdt.) Act, 1948 (Sind Act 14 of 1948),

(ii) North-West Frontier Province by N.W.F.P. Act 8 of 1953, and

(iii) The Province of West Pakistan by West Pakistan Acts 19 of 1958, 31 and 36 of 1964 and West Pakistan Ordinance 35 of 1960, s.2 (*with effect from the 31st December, 1960*).

The Act has been extended to—

(i) the Leased Areas of Baluchistan, *see* the Leased Areas (Laws) Order, 1950 (G.G.O.3 of 1950), and also applied in the Federated Areas of Baluchistan, *see* Gazette of India, 1937, Pt.I, p.1499;

(ii) the Baluchistan States Union by the Baluchistan States Union (Federal Laws) (Extension) Order, 1953 (G.G.O.4 of 1953), as amended ;

(iii) the Khairpur States, excluding sections 43 (4), 43A, 43B, 43C and 54 (2), by the Khairpur (Federal Laws) (Extension) Order, 1953 (G.G.O.5 of 1953), as amended; and

(iv) the State of Bahawalpur, *see* the Bahawalpur (Extension of Federal Laws) Order, 1953 (G.G.O. 11 of 1953), as amended.

The Act has been and shall be deemed to have been brought into force in Gwadur with effect form the 8th September, 1958, by the Gwadur (Application of Central Laws) Ordinance, 1960 (37 of 1960), s.2.

This Act has been repealed in its application to the Province of West Pakistan except Chapters VII, VIII and section 125 by the Provincial Motor Vehicles Ordinance, 1965 (*XIX of 1965*), s.122 and 14th Schedule.

[2]Subs. by the Central Las (Statute Reform) Ordinance, 1960 (21 of 1960), s.3 and 2nd Sch. (with effect from the 14th October, 1955).

[3]Subs. by the Federal Adaptation of Laws Order, 1975 (F.A.O. No. 4 of 1975) , Art. 2 and Table.

[4]Subs. by A.O., 1949.

(c) prescribing the conditions subject to which persons entering [1][Pakistan] from any place [2][outside Pakistan] for a temporary stay in [1][Pakistan] may drive motor vehicles in [1][Pakistan].

(2) No rule made under this section shall operate to confer on any person any immunity in any Province from the payment of any tax levied in that Province on motor vehicles or their users.

[3]* * * * * * * *

(4) Nothing in this Act or in any rule made thereunder by a Provincial Government relating to—

(*a*) the registration and identification of motor vehicles, or

(*b*) the requirements as to constructions, maintenance and equipment of motor vehicles, or

(*c*) the licensing and the qualifications of drivers of motor vehicles;

shall apply to any motor vehicle to which or to any driver of a motor vehicle to whom any rules made under clause (*b*) or clause (*c*) of sub-section (1) apply.

CHAPTER VIII

INSURANCE OF MOTOR VEHICLES AGAINST THIRD PARTY RISKS

93. Definitions. In this Chapter—

[4][(a) "authorised insurer" means an insurer in whose case the requirements of the Insurance Act, 1938 (VI of 1938). [5]* * * with respect to the registration of insurers are complied with and includes, where the business of insuring motor vehicles against third party risks is carried on by the [5][Federal Government] or a Provincial Government [5]* * * such Government;]

(b) "certificate of insurance" means a certificate issued by an authorised insurer in pursuance of sub-section (4) of section 95; and includes [6][a cover note complying with such requirements as may be prescribed, and] where more than one certificate has been issued in connection with a policy, or where a copy of certificate has been issued, all those certificates or that copy, as the case may be;

[7]* * * * * * *

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[1]Subs. by the Central Law (Statute Reform) Ordinance, 1960 (21 of 1960), s.3 and 2nd Sch. (with effect from the 14th October, 1955).
[2]Subs. by A.O., 1949.
[3]Omitted by the Federal Laws (Revision and Declaration) Ordinance, 1981 (XXVII of 1981)., s.3 and Sch., II.)
[4]Subs. by the Motor Vehicles (Amdt.) Act, 1947 (XXVII of 1947), s.2. (*with effect from the 1st March, 1949*).
[5]Subs. Ordinance No. XXVIII of 1981.
[6]Ins. by the Motor Vehicles (Amdt.) Act, 1947 (XXVII of 1947), s.2 (*with effect from the 1st March, 1949*).
[7]Omitted by the Federal Laws (Revision and Declaration) Ordinance, 1981 (27 of 1981), s.3 and Sch.II., which was previously amended by various enactments.

94. Necessity for insurance against third party risk.—(1) No person shall use except as a passenger or cause or allow any other person to use a motor vehicle in a public place, unless there is in force in relation to use of the vehicle by that person or that other person, as the case may be, a policy of insurance complying with the requirements of this Chapter.

Explanation.—A person driving a motor vehicle merely as a paid employee, while there is in force in relation to the use of the vehicle no such policy as is required by this sub-section, shall not be deemed to act in contravention of the sub-section unless he know or has reason to believe that there is no such policy in force.

[1][(2) Subject to any prescribed conditions, sub-section (1) shall not apply to any vehicle owned by any of the following authorities, namely:—

(*i*) the [2][Federal Government];

[3]* * * * * * *

(*iii*) any Provincial Government;

[4]* * * * * * *

(*vi*) any local authority in [5][Pakistan] exempted from the operation of sub-section (1) by order of the [2][Federal Government] or of a Provincial Government;

[6]* * * * * *

95. Requirements of policies and limits of liability.—(1) In order to comply with the requirements of this Chapter, a policy of insurance must be a policy which—

(a) is issued by a person who is an authorised insurer [7][or by a co-operative society allowed under section 108 to transact the business of an insurer], and

(b) insurers the person or classes of person specified in the policy to the extent specified in sub-section (2) against any liability which may be incurred by him or them in respect of the death of or bodily injury to any person caused by or arising out of the use of the vehicle in a public place [7][in [5][Pakistan] [6]* * *:

Provided that a policy shall not, [8]* * *, be required—

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[1]Subs. by Act. XXVII of 1947, s.3. (*with effect from the 1st March, 1949*).
[2]Subs. by the Federal Adaptation of Laws Order, 1975 (F.A.O. No. 4 of 1975) , Art. 2 and Table.
[3]Omitted by A.O., 1949.
[4]Omitted by Ordinance, 27 of 1981, s,.3 and Sch. II.
[5]Subs. by the Central Laws (Statute Reform) Ordinance, 1960 (XXI of 1960),s. 3 and 2nd Sch. (*with effect from the 14th October, 1955*).
[6]Omitted by the Federal Laws (Revision and Declaration) Ordinance 1981 (XXVII of 1981), s.3 and Sch.II.
[7]Ins. by the Motor Vehicles (Amdt.) Act, 1947 (XXVII of 1947), s.4 (*with effect from the 1st March, 1949*).
[8]Omitted by Act 27 of 1947, s.4 (*with effect from the 1st March, 1949*).

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(i) to cover liability in respect of the death, arising out of and in the course of his employment, of the employee of a person insured by the policy or in respect of bodily injury sustained by such an employee arising out of and in the course of his employment, [1][other than a liability arising under the Workmen's Compensation Act, 1923 (VIII of 1923), in respect of the death of, or bodily injury to, any such employee—

(a) engaged in driving the vehicle, or

(b) if it be a public service vehicle, engaged as a conductor of the vehicle or in examining tickets on the vehicle, or

(c) if it be a goods vehicle, being carried in the vehicle,] or

(ii) except where the vehicle is a vehicle in which passengers are carried for hire or reward or by reason of or in pursuance of contract of employment, to cover liability in respect of the death of or bodily injury to persons being carried in or upon or entering or mounting or alighting from the vehicle at the time of the occurrence of the event out of which a claim arises, or

(iii) to cover any contractual liability.

(2) Subject to the proviso to sub-section (1), a policy of insurance shall cover any liability incurred in respect of any one accident up to the following limits, namely.—

[2][(a) where the vehicle is a goods vehicle, a limit of twenty thousand rupees in all, the liabilities, if any, arising under the Workmen's Compensation Act, 1923 (VIII of 1923), in respect of the death of, or bodily injury to, employees other than the driver being carried in the vehicle being limited to six such employees;]

(b) where the vehicle is a vehicle in which passengers are carried for hire or reward or by reason of or in pursuance of a contract of employment, in respect of persons other than passengers carried for hire or reward, a limit of twenty thousand rupees; and in respect of passengers a limit of twenty thousand rupees in all, and four thousand rupees in respect of an individual passenger, if the vehicle is registered to carry not more than six passengers excluding the driver or two thousand rupees in respect of an individual passenger, if the vehicle is registered to carry more than six passengers excluding the driver;

(c) where the vehicle is a vehicle of any other class the amount of the liability incurred.

[3]* * * * * *

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[1]Ins. by the Motor Vehicles (Amdt.) Act, 1947 (XXVII of 1947), s.4 (*with effect from the 1st March, 1949*).
[2]Subs. by the Motor Vehicles (Amdt.) Act, 1947 (XXVII of 1947), s.4. (*with effect from the 1st March, 1949*).
[3]Omitted, *ibid*.

(4) A policy shall be of no effect for the purposes of this Chapter unless and until there is issued by the insurer in favour of the person by whom the policy is effected a certificate of insurance [1]* * * in the prescribed form and containing the prescribed particulars of any conditions subject to which the policy is issued and of any other prescribed matters; and different forms, particulars and matters may be prescribed in different cases.

(5) Notwithstanding anything elsewhere contained in any law, a person issuing a policy of insurance under this section shall be liable to indemnify the person or classes of person specified in the policy in respect of any liability which the policy purports to cover in the case of that person or those classes of person.

96. Duty of insurers to satisfy judgments against persons insured in respect of third party risks.—(1) If, after a certificate of insurance [1]* * * has been issued under sub-section (4) of section 95 in favour of the person by whom a policy has been effected, judgment in respect of any such liability as is required to be covered by a policy under clause (*b*) of sub-section (1) of section 95 (being a liability covered by the terms of the policy) is obtained against any person insured by the policy, then, notwithstanding that the insurer may be entitled to avoid or cancel or may have avoided or cancelled the policy, the insurer shall, subject to the provisions of this section, pay to the person entitled to the benefit of the decree any sum not exceeding the sum assured payable thereunder, as if he were the judgment-debtor, in respect of the liability, together with any amount payable in respect of costs and any sum payable in respect on interest of that sum by virtue of any enactment relating to interest on judgments.

(2) No sum shall be payable by an insurer under sub-section (1) in respect of any judgment unless before or after the commencement of the proceedings in which the judgment is given the insurer had notice through the Court of the bringing of the proceedings, or in respect of any judgment so long as execution is stayed thereon pending an appeal; and an insurer to whom notice of the bringing of any such proceedings is so given shall be entitled to be made a party thereto and to defend the action on any of the following grounds, namely:—

(*a*) that the policy was cancelled by mutual consent or by virtue of any provision contained therein before the accident giving rise to the liability, and that either the certificate of insurance was surrounded to the insurer or that the person to whom the certificate was issued has made an affidavit stating that the certificate has been lost or destroyed, or that either before or not later than fourteen days after the happening of the accident the insurer has commenced proceedings for cancellation of the certificate after compliance with the provisions of section 105; or

(*b*) that there has been a breach of a specified condition of the policy, being one of the following conditions, namely:—

(*i*) a condition excluding the use of the vehicle—

(*a*) for hire or reward, where the vehicle is on the date of the contract of insurance a vehicle not covered by a permit to ply for hire or reward, or

(*b*) for organised racing and speed testing, or

[1]Omitted by Act, 1947 (XXVII of 1947), ss.4 and 5. (*with effect from the 1st March, 1949*).

(*c*) for a purpose not allowed by the permit under which the vehicle is used, where the vehicle is a public service vehicle or a goods vehicle, or

(*d*) without side-car being attached, where the vehicle is a motor cycle; or

(*ii*) a condition excluding driving by a named person or persons or by any person who is not duly licensed, or by any person who has been disqualified for holding or obtaining a driving licence during the period of disqualification; or

(*iii*) a condition excluding liability for injury caused or contributed to by conditions of war, civil war, riot or civil commotion; or

(*c*) that the policy is void on the ground that it was obtained by the non-disclosure of a material fact or by a representation of fact which was false in some material particular.

[1][(2A) Where any such judgment as is referred to in sub-section (1) is a foreign judgment and is, by virtue of the provisions of section 13 of the Code of Civil Procedure, 1908 (V of 1908), conclusive as to any matter adjudicated upon by it, the insurer (being an insurer) registered under the Insurance Act, 1938 (IV of 1938), shall be liable to the person entitled to the benefit of the decree in the manner and to the extent specified in sub-section (1) as if the judgment were given by a Court in Pakistan:]

Provided that no sum shall be payable by the insurance in respect of any such judgment unless, before or after the commencement of the proceedings in which the judgment is given, the insurer had notice through the Court in the reciprocating territory of the bringing of the proceedings and the insurer to whom notice is so given is entitled under the corresponding law of the reciprocating territory, to be made a party to the proceedings and to defend the action on grounds similar to those specified in sub-section (2).]

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(3) Where a certificate of insurance [2]* * * has been issued under sub-section (4) of section 95 to the person by whom a policy has been effected, so much of the policy as purports to restrict the insurance of the persons insured thereby by reference to any conditions other than those in clause (*b*) of sub-section (2) shall, as respects such liabilities as are required to be covered by a policy under clause (*b*) of sub-section (1) of section 95, be of no effect:

Provided that any sum paid by the insurer in or towards the discharge of any liability of any person which is covered by the policy by virtue only of this sub-section shall be recoverable by the insurer from that person.

(4) If the amount which an insurer becomes liable under this section to pay in respect of a liability incurred by a person insured by a policy exceeds the amount for which the insurer would apart from the provisions of this section be liable under the policy in respect of that liability, the insurer shall be entitled to recover the excess from that person.

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[1]Subs. by the Federal Laws (Revision and Declaration) Ordinance, 1981 (XXVII of 1981), s.3 and Sch.II.
[2]Omitted by the Motor Vehicle (Amdt.) Act, 1947 (XXVII of 1947), s.5 (*with effect from the 1st March, 1949*).

(5) In this section the expressions "material fact" and "material particular" mean, respectively, a fact or particular of such a nature as to influence the judgment of prudent insurer in determining whether he will take the risk and, if so, at what premium and on what conditions, and the expression "liability covered by the terms of the policy" means a liability which is covered by the policy or which would be so covered but for the fact that the insurer is entitle to avoid or cancel or has avoided or cancelled the policy.

(6) No insurer to whom the notice referred to in sub-section (2) [1][or sub-section (2A)] has been given shall be entitled to avoid his liability to any person entitled to the benefit of any such judgment as is referred to in sub-section (1) [1][or sub-section (2A)] otherwise than in the manner provided for in sub-section (2) [2]* * *.

97. Rights of third parties against insurers on insolvency of the insured.—(1) Where under any contract of insurance effected in accordance with the provisions of this Chapter a person is insured against liabilities which he may incur to third parties then—

(*a*) in the event of the person becoming insolvent or making a composition or arrangement with his creditors, or

(*b*) where the insured person is a company, in the event of a winding up order being made or a resolution for a voluntary winding up being passed with respect to the company or of a receiver or manager of the company's business or undertaking being duly appointed, or of possession being taken by or on behalf of the holders of any debentures secured by a floating charge of any property comprised in or subject to the charge.

if, either before or after that event, any such liability is incurred by the insured person, his rights against the insurer under the contract in respect of the liability shall, notwithstanding anything to the contrary in any provision of law, be transferred to and vest in the third party to whom the liability was so incurred.

(2) Where an order for the administration of the estate of a deceased debtor is made according to the law of insolvency, then, if any debt provable in insolvency is owing by the deceased in respect of a liability to a third party against which he was insured under a contract of insurance in accordance with the provisions of this Chapter, the deceased debtor's rights against the insurer in respect of that liability shall, notwithstanding anything to the contrary in any provision of law, be transferred to and vest in the person to whom the debt is owing.

(3) Any condition in a policy issued for the purposes of this Chapter purporting either directly or indirectly to avoid the policy or to alter the rights of the parties thereunder upon the happening to the insured person of any of the events specified in clause (*a*) or in clause (*b*) of sub-section (1) or upon the making of an order for the administration of the estate of a deceased debtor according to the law of insolvency shall be of no effect.

(4) Upon a transfer under sub-section (1) or sub-section (2) the insurer shall be under the same liability to the third party as he would have been to the insured person, but—

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[1]Ins. by the Motor Vehicles (Amdt.) Act, 1947 (XXVII of 1947), s.5 (*with effect from the 1st March, 1949*).
[2]Omitted by the Federal Laws (Revision and Declaration) Ordinance, 1981 (XXVII of 1981),s. 3 and Sch.II.

(*a*) if the liability of the insurer to the insured person exceeds the liability of the insured person to the third party, nothing in this Chapter shall affect the rights of the insured person against the insurer in respect of the excess, and

(*b*) if the liability of the insurer to the insured person is less than the liability of the insured person to the third party, nothing in this Chapter shall affect the rights of the third party against the insured person in respect of the balance.

98. Duty to give information as to insurance.—(1) No person against whom a claim is made in respect of any liability referred to in clause (*b*) of sub-section (1) of section 95 shall on demand by or on behalf of the person making the claim refuse to state whether or not he was insured in respect of that liability by any policy issued under provisions of this Chapter, or would have been so insured if the insurer had not avoided or cancelled the policy, nor shall he refuse, if he was or would have been so insured, to give such particulars with respect to that policy as were specified in the certificate of insurance issued in respect thereof.

(2) In the event of any person becoming insolvent or making a composition or arrangement with his creditors or in the event of an order being made for the administration of the estate of a deceased person according to the law of insolvency, or in the event of a winding up order being made or a resolution for a voluntary winding up being passed with respect to any company or of a receiver or manager of the company's business or undertaking being duly appointed or of possession being taken by or on behalf of the holders of any debentures secured by a floating charge on any property comprised in or subject to the charge, it shall be the duty of the insolvent debtor, personal representative of the deceased debtors or company, as the case may be, or the official assignee or receiver in insolvency, trustee, liquidator, receiver or manager or person in possession of the property to give at the request of any person claiming that the insolvent debtor, deceased debtor or company is under such liability to him as is covered by the provisions of this Chapter, such information as may reasonably be required by him for the purpose of ascertaining whether any rights have been transferred to and vested in him by section 97, and for the purpose of enforcing such rights, if any; and any such contract of insurance as purports whether directly or indirectly to avoid the contract or to alter the rights of the parties thereunder upon the giving of such information in the events aforesaid, or otherwise to prohibit or prevent the giving thereof in the said events, shall be of no effect.

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(3) If, from the information given to any person in pursuance of sub-section (2) or otherwise, he has reasonable ground for supposing that there have or may have been transferred to him under this Chapter rights against any particular insurer, that insurer shall be subject to the same duty as is imposed by the said sub-section on the persons therein mentioned.

(4) The duty to give the information imposed by this section shall include a duty to allow all contracts of insurance, receipts for premiums, and other relevant documents in the possession or power of the person on whom the duty is so imposed to be inspected and copies thereof to be taken.

99. Settlement between insurers and insured persons.—(1) No settlement made by an insurer in respect of any claim which might be made by a third party in respect of any liability of the nature referred to in clause (*b*) of sub-section (1) of section 95 shall be valid unless such third party is a party to the settlement.

(2) Where a person who is insured under a policy issued for the purposes of this Chapter has become insolvent, or where, if such insured person is a company, a winding up order has been made or a resolution for a voluntary winding up has been passed with respect to the company no agreement made between the insurer and the insured person after liability has been incurred to a third party and after the commencement of the insolvency or winding up, as the case may be, nor any waiver, assignment or other disposition made by or payment made to the insured person after the commencement aforesaid shall be effective to defeat the rights transferred to the third party under this Chapter, but those rights shall be the same as if no such agreement, wavier, assignment or disposition or payment has been made.

100. Saving in respect of sections 97, 98 and 99.— (1) For the purposes of sections 97, 98 and 99 a reference to "liabilities to third parties" in relation to a person insured under any policy of insurance shall not include a reference to any liability of that person in the capacity of insurer under some other policy of insurance.

(2) The provisions of sections 97, 98 and 99 shall not apply where a company is wound up voluntarily merely for the purposes of reconstruction or of an amalgamation with another company.

101. Insolvency of insured persons not to affect liability of insured or claims by third parties.—Where a certificate of insurance has been issued to the person by whom a policy has been effected, the happening in relation to any person insured by the policy of any such event as is mentioned in sub-section (1) or sub-section (2) of section 97 shall, notwithstanding anything in the Chapter, not effect any liability of that person of the nature referred to in clause (*b*) of sub-section (1) of section 95; but nothing in this section shall affect any rights against the insurer conferred under the provisions of section 97, 98 and 99 on the person to whom the liability was incurred.

102. Effect of death on certain causes of action. Notwithstanding anything contained in section 306 of the Succession Act, 1925 (XXXIX of 1925), the death of a person in whose favour a certificate of insurance [1]* * * had been issued, if it occurs after the happening of an event which has given rise to a claim under the provisions of this Chapter, shall not be a bar to the survival of any cause of action arising out of the said event against his estate or against the insurer.

103. Effect of certificate of insurance. When an insurer has issued a certificate of insurance in respect of a contract of insurance between the insurer and the insured person, then –

(*a*) if and so long as the policy described in the certificate has not been issued by the insurer to the insured, the insurer shall, as between himself and any other person except the insured, be deemed to have issued to the insured person a policy of insurance conforming in all respects with the description and particulars stated in such certificate; and

(*b*) If the insurer has issued to the insured the policy described in the certificate, but the actual terms of the policy are less favorable to persons claiming under or by virtue of the policy against the insurer either directly or through the insured than the particulars of the policy as stated in the certificate, the policy shall, as between the insurer and any other person except the insured, be deemed to be in terms conforming in all respects with the particulars stated in the said certificate.

[1]Omitted by the Motor Vehicles (Amdt.) Act, 1947 (XXVII of 1947), s.6 (*with effect from the 1st March, 1949*).

104. Duty to surrender certificate on cancellation of policy.— (1) Whenever the period of cover under a policy of insurance issued under the provisions of this Chapter is terminated or suspended by any means before its expiration by effluxion of time, the insured person shall within seven days after such termination or suspension deliver to the insurer by whom the policy was issued the latest certificate of insurance given by the insurer in respect of the said policy, or, if the said certificate has been lost or destroyed, made an affidavit to that effect.

(2) Whoever fails to surrender a certificate of insurance or to make an affidavit, as the case may be, in accordance with the provisions of this section shall be punishable with fine which may extend to fifteen rupees for every day that the offence continues subject to a maximum of five hundred rupees.

105. Duty of insurer to notify registering authority cancellation or suspension of the policy. Whenever a policy of insurance issued under the provisions of this Chapter is cancelled or suspended by the insurer who has issued the policy, the insurer shall within seven days notify such cancellation or suspension to the registering authority in whose records the registration of the vehicle covered by the policy of insurance is recorded or to such other authority as the Provincial Government may prescribe.

106. Production of certificate of insurance.—(1) Any person driving a motor vehicle in any public place shall on being so required by a police officer in uniform [1][authorised in this behalf by the Provincial Government] produce the certificate of insurance relating to the use of the vehicle ;

[2]* * * * * * *

(2) If, where owing to the presence of a motor vehicle in a public place an accident occurs involving bodily injury to another persons, the driver of the vehicle does not at the time produce the certificate of insurance to a police officer, he shall produce the certificate of insurance at the police station at which he makes the report required by section 89:

[2]* * * * * * *

[3][(2A) No person shall be liable to conviction under sub-section (1) or sub-section (2) by reason only of the failure to produce the certificate of insurance if, within seven days from the date on which its production was required under sub-section (1) or, as the case may be, from the date of occurrence of the accident, he produces the certificate at such police station as may have been specified by him to the police officer who required its production or, as the case may be, to the police officer at the site of accident or to the officer in charge of the police station at which he reported the accident:

Provided that, except to such extent and with such modifications as may be prescribed the provisions of this sub-section shall not apply to the driver of a transport vehicle.]

(3) The owner of a motor vehicle shall give such information as he may be required by or on behalf of a police officer empowered in this behalf by the provincial Government to give for the purpose of determining whether the vehicle was or was not being driven in contravention of section 94 and on any occasion when the driver was required under this section to produce his certificate of insurance.

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[1]Ins. by the Motor Vehicles (Amdt.) Act, 1947 (XXVII of 1947), s.7 (*with effect from the 1st March, 1949*).
[2]Omitted, *ibid*. (*with effect from the 1st March, 1949*).
[3]Ins. *ibid*. (*with effect from the 1st March, 1949*).

(4) In this section the expression "produce his certificate of insurance" means produce for examination the relevant certificate of insurance or such other evidence as may be prescribed that the vehicle was not being driven in contravention of section 94.

107. Production of certificates of Insurance on application for authority to use vehicle. A Provincial Government may make rules requiring the owner of any motor vehicle when applying whether by payment of a tax or otherwise for authority to use the vehicle in a public place to produce such evidence as may be prescribed by those rules to the effect that either—

(a) on the date when the authority to use the vehicle comes into operation there will be in force the necessary policy of insurance in relation to the use of the vehicle by the applicant or by other persons on his order or with his permission, or

(b) the vehicle is a vehicle to which section 94 does not apply.

108. Co-operative Insurance.— (1) A Provincial Government may, on the application of a co-operative society of [1][transport vehicle] owners registered or deemed to have been registered under the Co-operative Societies Act, 1912 (II of 1912), or under an Act of a Provincial Legislature governing the registration of Co-operative Societies and subject to the control of the Registrar of Co-operative Societies of the Province, allow the society to transact the business of an insurer for the purposes of this Chapter [2]* * *, subject to the following conditions, namely:—

(*a*) the society shall establish and maintain a fund of not less than twenty-five thousand rupees for the first fifty vehicles or fractional part thereof and *pro rata* for every additional vehicle in the possession of members of [3][and insured with,] the society and the said fund shall be lodged in such custody as the Provincial Government may prescribe and shall not be available for meeting claims or other expenses except in the event of the winding up of the society;

[4] [(*b*) the insurance business of the society shall except to the extent permitted under clause (*cc*) be limited to transport vehicles owned by its members, and its liability shall be limited as specified in sub-section (2) of section 95;]

(*c*) the society shall, if required by the Provincial Government, re-insure against claims above [5][such amount as may be specified by the Provincial Government];

[6][(*cc*) the society may, if permitted by the Provincial Government and subject to such conditions and limitations as may be imposed by it, accept reinsurances from other societies allowed to transact the business of an insurer under this section;]

(*d*) the provisions of this Chapter, in so far as they relate to the protection of third parties and to the issue and production of certificates, shall apply in respect of any insurance effected by the society;

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[1]Subs. by the Motor Vehicles (Amdt.) Act, 1947 (XXVII of 1947), s.8 (*with effect from the 1st March, 1949*).
[2]Omitted *ibid.* (*with effect from the 1st March, 1949*).
[3]Ins. *ibid*, (*with effect from the 1st March, 1949*).
[4]Subs. *ibid*., (*with effect from the 1st March, 1949*).
[5]Subs. *ibid*., (*with effect from the 1st March, 1949*).
[6]Ins. by the Motor Vehicles (Amdt.) Act, 1947 (XXVII of 1947), s.8 (*with effect from the 1st March, 1949*).

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(*e*) an independent authority not associated with the society shall be appointed by the Provincial Government to facilitate and assist in the settling of claims against the society;

(*f*) the society shall operate on an insurance basis, that is to say,—

(i) it shall levy its premiums in respect of a period not exceeding twelve months, during which period the insured shall be held covered in respect of all accidents arising, subject to the limits of liability specified in [1]* * * sub-section (2) of section 95;

(ii) it shall charge premiums estimated to be sufficient, having regard to the risks, to meet the capitalised value of all claims arising during the period of cover, together with an adequate charge for expenses attaching to the issue of policies and to the settlement of claims arising thereunder;

(*g*) the society shall furnish to the [2][Controller] of Insurance the returns required to be furnished by insurers under the provisions of the Insurance Act, 1938 (IV of 1938), and the [2][Controller] of Insurance may exercise in respect thereof any of the powers exercisable by him in respect of returns made to him under the said Act; and

[3][(*h*) the society shall, in respect of any business transacted by it of the nature referred to in clause (i) of the proviso to sub-section (1) of section 95, be deemed to be an insurer within the meaning of sub-section (1) of section 10 and sub-section (6) of section 13 of the Insurance Act,1938 (IV of 1938)].

[4][(2) The provisions of the Insurance Act, 1938 (IV of 1938), relating to the winding up of insurance companies shall, to the exclusion of any other law inconsistent therewith and subject to such modifications as may be prescribed, apply to the winding up of a co-operative society allowed to transact the business of an insurer under this section as if it were an insurance company; but save as hereinbefore provided, the Insurance Act, 1938 (IV of 1938), shall not apply to such society.]

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109. Duty to furnish particulars of vehicle involved in accident. A registering authority or the officer in charge of a police station shall, if so required by a person who alleges that he is entitled to claim compensation in respect of an accident arising out of the use of a motor vehicle, or if so required by an insurer against whom a claim has been made in respect of any motor vehicle, furnish to that person or to that insurer, as the case may be, on payment of prescribed fee any information at the disposal of the said authority or the said police officer relating to the identification marks and other particulars of the vehicle and the name and address of the person who was using the vehicle at the time of the accident or was injured by it.

110. Power to appoint persons to investigate and report on accidents. A Provincial Government may, by notification in the official Gazette, appoint a person or a body of persons to investigate and report on accidents involving the death of or bodily injury to any person arising out of the use of motor vehicles and the extent to which their claims to compensation have been satisfied

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[1]The words "clause (b) of omitted *ibid*.
[2]Subs. by the Motor Vehicles (Amdt.) Act, 1953 (XIX of 1953),s.6. (*with effect from the 15th May, 1950*).
[3]Subs. by the Motor Vehicles (Amdt.) Act, 1947 (XXVII of 1947), s.8 *(with effect from the 1st March, 1949)*.
[4]Subs. *ibid*. (*with effect from the 1st March, 1949*).

and to advise and assist such persons or their representatives in presenting their claims for compensation:

Provided that nothing in this section shall confer on any such person or body of persons the right to adjudicate in any way on the liability of the insurer or on the amount of damages to be awarded except at the express desires of the insurer concerned.

111. Power to make rules.— (1) The [1][Federal Government] may make rules for the purpose of carrying into effect the provisions of this Chapter.

(2) Without prejudice to the generality of the foregoing power, such rules may provide for—

(*a*) the forms to be used for the purposes of this Chapter;

(*b*) the making of applications for and the issue of certificates of insurance;

(*c*) the issue of duplicates to replace certificates of insurance [2][mutilated, defaced,] lost or destroyed;

(*d*) the custody, production, cancellation and surrender of certificates of insurance;

(*e*) the records to be maintained by insurers of policies of insurance issued under this Chapter;

(*f*) the identification by certificates or otherwise of persons or vehicles exempted from the provisions of this Chapter;

(*g*) the furnishing of information respecting policies of insurance by insurers;

(*h*) the carrying into effect of the provisions of section 108;

(*i*) adapting the provisions of this Chapter to vehicles brought into [3][Pakistan] by persons making only a temporary stay therein by applying those provisions with prescribed modifications; and

(*j*) any other matter which is to be or may be prescribed.

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CHAPTER IX

OFFENCES, PENALTIES AND PROCEDURE

125. Driving uninsured vehicles. Whoever drives a motor vehicle or causes or allows a motor vehicle to be driven in contravention of the provisions of section 94 shall be punishable with imprisonment which may extend to three months, or with fine which may extend to five hundred rupees, or with both.

[*Chapters IX, X (except section 125) and Schedules I to XI have been repealed in its application to the Province of West Pakistan by the Provincial Motor Vehicles Ordinance, 1965 (XIX of 1965), section 122 and 14th Schedule*.]

Date: 11-11-2024
157439

[1]Subs. by the Federal Adaptation of Laws Order, 1975 (F.A.O. No. IV of 1975) , Art. 2 and Table.
[2]Ins. by the Motor Vehicles (Amdt.) Act, 1947 (XXVII of 1947), s.9 (*with effect from the 1st March, 1949*).
[3]Subs. by the Central Laws (Statute Reform) Ordinance, 1960 (21 of 1960), s.3 and 2nd Sch. *(with effect from the 14th October, 1955),* for "the Provinces and the Capital of the Federation" which had been subs. by A.O., 1949, for "British India".

THE NATIONAL FUND FOR CULTURAL HERITAGE ACT, 1994

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4. Purposes and objectives of the Fund.
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6. Board of Governors.
7. Exemption from tax.
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THE NATIONAL FUND FOR CULTURAL HERITAGE ACT, 1994

ACT NO. VIII OF 1994

[8th June, 1994]

An Act to establish the National Fund for Cultural Heritage

WHEREAS it is expedient to provide for establishment of the National fund for Culture Heritage for conservation and preservation of Pakistan's national heritage and its proper maintenance and matters connected therewith or incidental thereto **:**

It is hereby enacted as follow :—

1. Short title, extent and commencement.—(1) This Act may be called the National Fund for Cultural Heritage Act, 1994.

(2) It extends to the whole of Pakistan.

(3) It shall come into force at once.

2. Definitions.— In this Act, unless there is anything repugnant in the subject or context.—

(a) "Board" means the Board of Governors set up under section 6 ;

(b) "Fund" means the National Fund for Culture Heritage established under section 3 ; and

(c) "national heritage" means the archaeological, architectural, historical and cultural heritage.

3. Establishment of the Fund. As soon as may be, after the commencement of this Act, the Federal Government shall establish the National Fund for Cultural Heritage to carry out the purposes of this Act.

4. Purposes and objectives of the Fund.— (1) The primary purpose of the fund is to promote the conservation and preservation of national heritage of Pakistan through various means, including financial and technical assistance, and to create awareness amongst the people for appreciating and preservation of archaeological, architectural, historical and cultural heritage of Pakistan.

(2) In particular and without prejudice to the foregoing purposes, the Fund shall be used to—

(a) undertake measures for preservation and conservation of cultural heritage having archaeological, historical and architectural value ;

(b) acquire or hold in lease any material and cultural property or part thereof;

(c) provide assistance for preservation and maintenance of a historical or archaeological monument or an archaeological site ;

(d) create and strengthen cooperation and coordination between international, national, provincial and regional organizations involved in conservation and preservation of cultural heritage ;

(e) provide financial and technical assistance towards preservation of national heritage, and for furtherance of academic, scientific and intellectual discourses on the subjects relevant thereto;

(f) undertake promotional activities for enhancement of resources of the fund ; and

(g) undertake and promote research and arrange materials for publication of periodicals monographs and publicity material, including pamphlets, newspapers and posters in furtherance of the objectives of the Act.

5. Sources of Fund.—(1) The Fund shall be financed from the following sources, namely:—

(a) grants from the Federal Government and Provincial Governments ;

(b) aid and assistance from local, national and international agencies ;

(c) contributions from the private organizations and individuals ; and

(d) income and earnings from, the movable and immovable properties acquired by, or leased to, the Fund.

(2) The amount credited to the Fund shall not lapse at the end of a financial year and shall be available for utilization at any time.

6. Board of Governors.— (1) The management, overall control and supervision of the affairs of the Fund shall vest in a Board of Governors consisting of the following members, namely:—

[1][(a) Federal Minister-in-charge of, Ministry of Minorities, Culture, Sports, Tourism and Youth Affairs…… Patron/Chairman.

(b) Secretary, Ministry of Minorities, Culture, Sports, Tourism and Youth Affairs…….. Member/Treasurer.

(c) Joint Secretary (Culture), Ministry of Minorities, Culture, Sports, Tourism and Youth Affairs…….. Member/Secretary.

(d) Finance Advisor (Culture), Ministry of Finance…….. Member.

(e) Director General, Federal Department of Archaeology and Museums…… Member.

(f) Ten eminent professionals in the field of Archaeology and National Heritage from private sector nominated by the Federal Government……. Members.]

[1]Subs. by Ord. LXXXVII of 2002, S.2. which was previously substituted by Amendment Act (Act. No. I of 1998), s.2.

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(2) The Members of the Board, other than *ex-officio* members, shall hold office for a term of three years or for such period as may be determined by the Federal Government and shall be eligible for re-appointment.

(3) No act or proceedings of the Board shall be invalid merely on the ground of the existence of a vacancy in, or a defect in the constitution of, the Board.

(4) The Secretariat of the Fund shall be at Islamabad and the Board may set up regional offices as, when and where required by it.

(5) The Board may appoint an Executive Committee for carrying out its functions as may be assigned to it by the Board.

7. Exemption from tax. Notwithstanding anything contained in the Income Tax Ordinance, 1979 (XXXI of 1979), all contributions and donations to the Fund shall be exempt from levy of tax.

8. Accounts of the Fund, **etc.—(**1) The accounts of the Fund shall be audited by the Auditor General of Pakistan.

(2) The Board may from time to time, submit reports to the Federal Government relating to the Fund and its activities.

9. Rules. The Board may make rules for carrying out the purposes of this Act.

10. Repeal of Ordinance V of 1994. The National Fund for Cultural Heritage Ordinance, 1994 (V of 1994), is hereby repealed.

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THE NATIONAL GUARDS ACT, 1973.

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THE NATIONAL GUARDS ACT, 1973

[1]ACT NO. LXI OF 1973

[12th *August,* 1973]

An Act to provide for the constitution and discipline of the National Guards.

WHEREAS it is expedient to provide for the constitution and discipline of the National Guards and matters ancillary thereto;

It is hereby enacted as follows :—

CHAPTER I

PRELIMINARY

1. Short title, application and commencement. —(1) This Act may be called the National Guards Act, 1973.

(2) It extends to the whole of Pakistan and applies to all persons subject to this Act, wherever they may be.

[2][(3) It shall come into force at once:

Provided that nothing in this Act shall be deemed to authorize the punishment of any person for any act or omission which was not punishable before the 24th day of December, 1973.]

2. Persons subject to this Act.— (1) Every person enrolled in the Mujahid Force or the Janbaz Force and every person who was subject to the Mujahid Force Ordinance, 1965 (XXII of 1965), immediately before the commencement of this Act, shall be subject to this Act wherever he may be and shall remain so subject until his discharge in accordance with this Act.

[3][(2) * * * * * * *]

3. Constituents of National Guards. The following four types of forces shall constitute the National Guards, namely:—

(a) the Mujahid Force; [3][and]

(b) the Janbaz Force [3][.]

[3][(c) * * * * *

(d) * * *]

[1]For Statement of Objects and Reasons, *see* Gaz. of P., 1973, Ext., Pt. III, p. 1388.

[2]Subs. and shall be deemed always to have been so *subs.* with effect from the 12th day of August, 1973 by the National Guards (Amdt.) Act, 1975 (57 of 1975), s. 2, for the original sub-section (3).

[3]Omitted, Added and Subs. by the National Guards (Amdt.) Ordinance, 2002 (XLII of 2002), ss. 2-3.

4. Definitions. In this Act, unless there is anything repugnant in the subject or context,—

(1) "Board" means a Board of Intermediate and Secondary Education;

(2) "college" means an institution affiliated to a Board or University;

(3) "commanding officer" means, —

(a) when used in relation to a person subject to this Act, the officer for the time being in command of the portion of the Force to which such person belongs or is attached; and

(b) when used with reference to any separate portion of the Force, the officer whose duty it is under the regulations of the Force, or, in the absence of such regulations, by its custom, to discharge with respect to that portion the functions of the commanding officer;

(4) "directorate of education" means any Provincial or regional directorate of education and includes a directorate of education in the Capital of the Federation;

(5) "Director-General" means the Director-General, National Guards, appointed by the Federal Government;

(6) "district" means a revenue district of a Province;

(7) "division" means a revenue division of a Province;

(8) "employer" means any person who employs another person for hire or reward, either directly or through a contractor, whether the terms of employment be expressed or implied, and includes, in the case of an establishment, the person responsible for the management, supervision and control of the establishment;

(9) "enrolled" means enrolled or re-enrolled in either of the Forces referred to in clauses (a) and (b) of section 3;

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(10) "Force" means any of the [1][two] constituents of the National Guards referred to in section 3;

(11) "independent company" means every company which does not form part of a battalion;

(12) "junior commissioned officer" means a person commissioned, gazetted or in pay as junior commissioned officer in the Force;

(13) "non-commissioned officer" means a person enrolled and holding a non-commissioned rank in the Force;

[1]Subs. by the National Guards (Amdt.) Ordinance, 2002 (XLII of 2002), s. 4.

(14) "officer" means a person commissioned, gazetted or in pay as an officer of the Force, but does not include a junior commissioned officer;

(15) "prescribed" means prescribed by rules;

(16) "regulations" means regulations made under this Act;

(17) "rules" means rules made under this Act; and

(18) "unit" means a unit of the Force.

CHAPTER II

CONSTITUTION AND CONTROL OF THE MUJAHID FORCE

5. Constitution of Mujahid Force. There shall be raised and maintained, in accordance with the provisions of this Act, a force to be designated the Mujahid Force.

6. Constitution and disbandment of units. The Federal Government, or any officer or authority empowered by it in this behalf, may constitute one or more units of the Mujahid Force to be recruited from persons residing in Pakistan and may disband or reconstitute any unit so constituted.

7. Personnel of the Mujahid Force. — (1) There shall be the following classes of personnel in the Mujahid Force, namely: —

(a) officers holding commissions in the Force granted by the President;

(b) junior commissioned officers holding commissions in the Force granted by the Chief of the Army Staff;

(c) non-commissioned officers appointed as such by the respective commanding officers; and

(d) Mujahids.

(2) An officer or a junior commissioned officer shall be deemed to be enrolled in the Force for so long as he holds commission therein.

8. Enrolment. — (1) Every male citizen of Pakistan who is of such age as may be prescribed may offer himself for enrolment in the Mujahid Force for service in any unit and any such person who satisfies the conditions laid down in the regulations may be enrolled for such period and in such manner as may be prescribed.

(2) Every person enrolled shall, without unnecessary delay, be appointed to a unit in which he has applied for service.

9. Transfer and attachment. Notwithstanding anything contained in section 8, any person appointed to a unit may—

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(a) with his consent, be transferred, whether on disbandment of the unit or otherwise, to another unit in such manner as may be prescribed; and

(b) at his request, be attached to another unit.

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CHAPTER III

CONSTITUTION AND CONTROL OF THE JANBAZ FORCE

10. Constitution of Janbaz Force. There shall be raised and maintained, in accordance with the provisions of this Act, a force to be designated the Janbaz Force.

11. Constitution and disbandment of Unit. The Federal Government, or any officer or authority empowered by it in this behalf, may constitute for any division or district one or more units to be recruited from persons residing in such division or district and may disband or reconstitute any unit so constituted.

12. Personnel of Janbaz Force. — (1) There shall be the following classes of personnel in the Janbaz Force, namely: —

(a) officers holding commissions in the Force granted by the President;

(b) junior commissioned officers holding commissions in the Force granted by the Chief of the Army Staff.

(c) non-commissioned officers appointed as such by the respective commanding officers; and

(d) Janbazes.

(2) An officer or a junior commissioned officer shall be deemed to be enrolled in the Force for so long as he holds commission therein.

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13. Enrolment. — (1) Any male citizen of Pakistan who is of such age as may be prescribed may offer himself for enrolment in the Janbaz Force for service in the unit constituted for the division or district in which he resides and any such person who satisfies the conditions laid down in the regulations may be enrolled for such period and in such manner as may be prescribed.

(2) Every person enrolled shall, without unnecessary delay, be appointed to a unit in which he has applied for service.

14. Transfer and attachment. Notwithstanding anything contained in section 13, any person appointed to a unit may —

(a) with his consent, be transferred, whether on disbandment of the unit or otherwise, to another unit in such manner as may be prescribed;

(b) at his request, be attached to another unit; and

(c) at his request, be employed for duties outside the division or district from which he is recruited.

CHAPTER IV

PROVISIONS APPLICABLE GENERALLY TO THE MUJAHID FORCE AND THE JANBAZ FORCE

15. Liability for military training. — (1) The persons referred to in sub-section (1) of section 2 shall be liable to be called up for training and, for the purpose of such training, their command and control shall be regulated according to the orders of the Director General or any authority empowered by him in this behalf.

(2) For calling up a person under sub-section (1) it shall be sufficient to broadcast or telecast over the Radio or Television or to publish in the newspapers a notice requiring such person, or the class of persons to which he belongs, to report to such authority and all such time and place as may be specified in the notices.

16. Liability to serve and perform embodied service. — (1) Every person referred to in sub-section (1) of section 2 shall be liable to serve in any unit to which he has been appointed or transferred or is for the time being attached and shall be subject to all rules and regulations.

(2) Every such person shall be liable to perform —

(a) service when called out with any portion of the Force by an order of the Director-General or any officer or authority empowered by him in this behalf, either to act in support of the civil power or departments or agencies of Government engaged in nation building activities or development programmes or to provide guards which, in the opinion of such officer or authority, are essential, or

(b) military service when the unit to which he belongs has been embodied to support or supplement the Pakistan Army by an order, directing such embodiment, of the Federal Government, or an authority empowered by it in this behalf.

(3) For calling out a person under sub-section (2), it shall be sufficient to broadcast or telecast over the Radio or Television and to publish in the newspapers a notice requiring such person, or the class of persons to which he belongs, to report to such authority and at such time and place as may be specified in the notice.

17. Discharge. — (1) Every person enrolled shall be entitled to receive his discharge from the Force on the expiration of the period for which he was enrolled and may, before the expiration of the period, be discharged from the Force by such authority and subject to such conditions if any, as may be prescribed:

Provided that a person enrolled who is for the time being engaged in military service shall not be entitled to receive his discharge before the termination of such service.

(2) Every person enrolled who becomes entitled to discharge under sub-section (1) shall be discharged with all convenient speed.

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18. Application of the Pakistan Army Act, 1952. — (1) Subject to the terms and conditions of his commission and any order of the prescribed authority made in this behalf, every officer and junior commissioned officer, when doing duty as such officer or junior commissioned officer, shall be subject to the provisions of the Pakistan Army Act, 1952 (XXXIX of 1952), and the rules and regulations made thereunder as if such officer or junior commissioned officer held the same rank in the Pakistan Army as he, for the time being, holds in the Force:

Provided that the said Act, rules and regulations shall, in their application to such persons when called out or embodied for service or military service under section 16 or during training in the Mujahid Force or the Janbaz Force be modified to such extent and in such manner as may be prescribed.

(2) Subject to any order of the prescribed authority made in this behalf, every non-commissioned officer, Mujahid and Janbaz of the Force —

(a) when undergoing training, or

(b) when called out or embodied for service or military service under section 16,

shall be subject to the Pakistan Army Act, 1952 (XXXIX of 1952), and the rules and regulations made there under, as if he held the same rank in the Pakistan Army as he, for the time being, holds in the Force:

Provided that the said Act, rules and regulations shall, in their application to such non-commissioned officer, Mujahid or Janbaz when embodied for or otherwise undergoing Training, be modified to such extent and in such manner as may be prescribed.

(3) Where any person while he is subject to the provisions of the Pakistan Army Act, 1952 (XXXIX of 1952), commits any offence punishable thereunder, he may, notwithstanding that he may have ceased to be so subject, be taken into and kept in custody and tried and punished for such offence in the same manner as he would have been liable to be tried and punished had he not ceased to be so subject.

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19. Presumption as to certain documents. When any person enrolled, other than an officer, is required by or in pursuance of any rule, regulation or order made under this Act to attend at any place, a certificate purporting to be signed by the prescribed officer stating that the person so required to attend has failed to attend in accordance with such requirement shall without proof of the signature or appointment of such officer, be evidence of the matter stated therein.

20. Persons subject to the Act to be deemed part of the Pakistan Army. For the purposes of sections 128, 130 and 131 of the Code of Criminal Procedure, 1898 (Act V of 1898), all officers, junior commissioned officers, non-commissioned officers and men of the Force when embodied for military service shall be deemed to be officers, junior commissioned officers, non-commissioned officers and soldiers respectively of the Pakistan Army.

21. Exemption from local taxation. On embodiment for military service, notwithstanding anything contained in any other law for the time being in force, no person shall be liable to pay any municipal or other tax in respect of any horse, bicycle, motor cycle, scooter, motor car or other conveyance which he is required or authorised by a general or special order of the Chief of the Army Staff to maintain in his capacity as a person enrolled in, or as a person otherwise connected with, the Force.

22. Treatment of period spent in training service, etc. — (1) The period spent in embodied service or training by any person enrolled shall count towards increment of pay, seniority, pension and gratuity or bonus, and shall be treated by his employer as period spent on duty.

(2) A person enrolled shall on embodiment be entitled to draw his pay and allowances from the Federal Government and to opt to draw these at the rates to which he was entitled immediately before his enrolment.

(3) The pay and allowances admissible to a person enrolled while he is on embodied service shall in no case be less favourable to him than those to which he was entitled during his training.

23. Extention of age limit. Where any maximum qualifying age has been fixed for regulating the eligibility of persons for admission to a competitive examination held for appointment to any service or post or any academic or professional institution or for appointment to any service or post, a person who has served in the Mujahid Force or the Janbaz Force shall, for the purpose of such eligibility, be entitled, notwithstanding anything contained in any other law for the time being in force or any rule, order or instrument, to the period actually spent by him in training or service in such force, or both in such training and in such service, being deducted from his age.

24. Reinstatement of persons called up for embodied service or training. — (1) Notwithstanding anything contained in any other law for the time being in force or in any contract or agreement, a person enrolled who has been called up for service or training shall, upon the termination of such service or training, be entitled to re-instatement in the employment from which he was released at the time he was called up and the employer shall re-instate such person in such employment or, if such re-instatement is less favourable to him than that to which he would, in the ordinary course, have been entitled, give him such employment as is not so less favourable:

Provided that the employer shall not be required to re-instate or employ any person enrolled if he does not apply or report to the employer for the purpose within one month of his release from such service or training.

(2) If any employer contravenes the provisions of sub-section (1), he shall be punishable with imprisonment for a term which may extend to six months, and with fine which may extend to ten thousand rupees, and the court convicting him shall direct that the employer shall also pay as compensation to the person enrolled concerned an amount equal to six months' remuneration of such person at the rate to which he was entitled when he was released.

(3) No court inferior to that of a Magistrate of the first class invested with powers under section 30 of the Code of Criminal Procedure, 1898 (Act V of 1898) shall try an offence under this section.

(4) No order made or proceedings taken under this section shall be called in question in any court.

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[1][CHAPTER V * *

CONSTITUTION AND CONTROL OF THE NATIONAL CADET CORPS * * *

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CHAPTER VI * *

CONSTITUTION AND CONTROL OF WOMEN GUARDS * * *

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CHAPTER VII

MISCELLANEOUS

36. Regrant of Commissions. The Federal Government or any prescribed authority may regrant commissions to suitable retired officers of the Pakistan Army having no reserve liability, for appointment in any of the Forces.

[2][**36A.** The Federal Government or any prescribed authority may re-employ suitable retired officers of the Pakistan Army having reserve liability for service with any of the Forces:

Provided that such re-employment shall not relieve the retired officers of their reserve liability.]

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[1]Omitted by the National Guards (Amdt.) Ordinance, 2002 (XLII of 2002), s. 5.

[2]New section 36A ins. by the National Guards (Amdt.) Act 1976 (35 of 1976). s. 2.

37. Provision of storage accommodation. The Provincial Government shall, on such terms as may be agreed upon between that Government and the Federal Government, provide storage accommodation for weapons and ammunition required for the training of the Janbaz Force[1][* * *].

38. Employer not to prevent employee from getting enrolled. — (1) No employer shall prevent or stop any person employed by him from getting himself enrolled under this Act.

(2) Any employer who contravenes the provisions of sub-section (1) shall be punishable with imprisonment for a term which may extend to three months, or with fine which may extend to five thousand rupees, or with both.

(3) No court inferior to that of a Magistrate of the first class invested with powers under section 30 of the Code of Criminal Procedure, 1898 (Act V of 1898), shall try an offence under this section.

39. Power to make rules. — (1) The Federal Government may make rules for carrying out the purposes of this Act.

(2) In particular and without prejudice to the generality of the foregoing power, such rules may —

(a) prescribe the period for which and the manner in which persons may be enrolled;

(b) prescribe the manner in which a person enrolled may be transferred;

(c) provide for and regulate the remuneration, allowances, gratuities or compensation to be paid to persons subject to this Act or to their dependants;

(d) prescribe the extent to which and the manner in which, if any, the provisions of the Pakistan Army Act, 1952 (XXXIX of 1952), and the rules and regulations made thereunder shall be modified in their application to the enrolled persons of the Force;

(e) prescribe the officers by whom a certificate referred to in section 19 may be signed;

(f) prescribe the authorities by whom, and the conditions subject to which persons enrolled may be discharged;

(g) prescribe the authorities by whom a unit may be constituted or disbanded;

[1]Omitted by the National Guards (Amdt.) Ordinance, 2002 (XLII of 2002), s. 6.

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(h) prescribe the training, compulsory or voluntary, for any person or class of persons enrolled and provide for the embodiment of any unit for that purpose;

(i) provide for the medical examination of persons offering themselves for enrolment under this Act; and

(j) provide for any other matter which may be necessary for effectively carrying the provisions of this Act into effect.

(3) All rules made under this Act shall be published in the official Gazette and on such publication shall have effect as if enacted in this Act.

40. Power to make regulations. The Chief of the Army Staff may make regulations, not inconsistent with this Act and the Rules, providing generally for all details connected with the organisation and personnel of the Force and for duties, [1][*] clothing, courses of instruction, equipment, pay and allowances, medical treatment, pensionary benefits, honours and awards, leave, conveyance and age limits for persons offering themselves for enrolment or training under this Act [2][and for the training of persons enrolled].

[3]**[40A. Rules and regulations to have retrospective effect.** Any rule or regulation made before the enactment of the National Guards (Amendment) Act, 1975 (LVII of 1975), shall be deemed to have been validly made and taken effect on the twelfth day of August, 1973; and any rule or regulation made within thirty days of such enactment may be made so as to have retrospective effect from any day not earlier than that day.]

41. [*Repeal*] *Omitted by the Federal Laws (Revision and Declaration) Ordinance, 1981 (XXVII of 1981), s. 3 and Sch., II.*

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[1]The word "training" omitted and shall be deemed always to have been so omitted with effect from 12th day of August, 1973 by the National Guards (Amdt.) Act, 1975 (57 of 1975), s.7.
[2]The certain words "added *ibid*."
[3]New S. 40A ins. *ibid.*, s.8.

THE NATIONAL TRAINING ORDINANCE, 1980

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THE NATIONAL TRAINING ORDINANCE, 1980

ORDINANCE No. IX of 1980

[20th March, 1980]

An Ordinance to constitute Training Boards to regulate and promote vocational training facilities in various fields.

WHEREAS it is expedient to constitute Training Boards to regulate and promote vocational training facilities in various fields and to provide for the financing of training programmes and for matters ancillary or incidental thereto ;

AND WHEREAS the President is satisfied that circumstances exist which render it necessary to take immediate action ;

NOW, *THEREFORE*, in pursuance of the Proclamation of the fifth day of July, 1977, read with the Laws (Continuance in Force) Order, 1977 (C.M.L.A. Order No; I of 1977), and in exercise of all powers enabling him in that behalf, the President is pleased to make and promulgate the following Ordinance :—

1. Short title, extent, commencement and application.—(1) This Ordinance may be called the National Training Ordinance, 1980.

(2) It extends to the whole of Pakistan ;

(3) It shall come into force at once.

(4) It applies to all establishments and institutions engaged in imparting vocational training.

2. **Definitions**.In this Ordinance, unless there is anything repugnant in the subject or context, —

(a) "establishment" means any office, firm, industrial unit, undertaking, shop or premises in which workmen are employed for the purpose of carrying on any industry ;

(b) "industry" means any business, trade, manufacture, calling, service, employment or occupation ;

(c) "institution" means a school, college or institute, by whatever name called, imparting vocational training ;

(d) "National Board" means the National Training Board constituted under section 3 ;

[1]**[(da)** "National Trade Testing Board" means National Trade Testing Board constituted by the National Training Board under sub-section (2) of section 4;]

(e) "Prescribed" means prescribed by regulations made under this Ordinance ;

(f) "Provincial Board" means a Provincial Training Board constituted under sub-section (2) of section 5 ; *[2]

[2]**[(fa)]** "Provincial Trade Testing Board" means Provincial Trade Testing Board constituted by the Provincial Training Board;

(fb) "Skill Development Council" means the Skill Development Council, constituted by the National Training Board under sub-section (2) of section 4;

(fc) "Technical Education and Vocational Training Authority" means the Technical Education and Vocational Training Authority constituted by the Provincial Government ; and]

(g) "Vocational Training" means training in any physical [2][and professional] skill, trade, calling, or occupation.

3. Constitution of the National Training Board.—(1) As soon as may be after the commencement of this Ordinance, the Federal Government shall constitute a National Board to be called the National Training Board.

(2) The National Board shall be a body corporate by the name of the National Training Board, having perpetual succession and a common seal, with power to acquire, hold and dispose of property, both movable or immovable, and shall by the said name sue and be sued.

[2][(3) The National Board shall consist of the following members, namely :—

(a) the Minister for Labour, and Manpower and Overseas Pakistanis who shall be Chairman of the National Board ;
(b) the Secretary to the Government of Pakistan in the Ministry of Labour, Manpower and Overseas Pakistanis, who shall be Vice Chairman of the National Board;

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[1] *Ins. by the ord. 2 of 2002,s.2.*
[2] *Omitted, ins and Subs. by Ord. 2 of 2002,ss. 2-3.*

(c) a representative of the Planning Commission ;

(d) a representative of the Ministry of Education ;

(e) a representative of the Ministry of Finance ;

(f) a representative of the Ministry of Science and Technology ;

(g) four representatives form employers of Chairman Skill Development Council, each province having one representative, to be appointed by the Chairman National Board on the recommendation of Employers' Federation of Pakistan;

(h) One women representative of employers to be appointed by the Chairman National Board, on the recommendation of Employers Federation of Pakistan;

(i) four representatives form workers, each province having one representative, to be appointed by the Chairman, National Board on the recommendation of National Workers' Organizations;

(j) one women representative of workers, to be appointed by the Chairman on the recommendation of the National Workers Organization;

(k) Chairman of the Provincial Training Board from each province; and

(l) Director of the Office of the National Board who shall also be the Secretary of the Board.]

(4) Members of the National Board shall hold office for such term as may be prescribed.

4. Functions of the National Board.—(1) The National Board shall —

(i) collaborate with the sources of labour market information as determined from a survey of establishments with a view to assessing on a continuing basis existing and future training needs, both local and foreign ;

(ii) Systematically study existing training programmes with respect to their relevance, duration and size and recommend such measures to be taken as seem desirable [1][to improve the quality of training].

(iii) establish criteria for evaluating and determining training programmes and facilities ;

[(iv) develop training syllabi and establish and specify national training standard and trade testing rules to ensure horizontal and vertical mobility;]

(v) supervise such training programmes as are funded from the Federal budget;

[1]**[(vi)** prepare national training plans, programmes and projects in view of local as well as foreign requirements and monitor their implementation;]

(vii) recommend to the Federal Government means for financing training programmes ;

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[1]*Subs. by Ord. 2 of 2002, ss. 4-6.*

(viii) promote and finance training of establishment-based or institution-based training officials and instructors ;

(ix) organise and conduct seminars and workshops for various types of personnel associated with training activities ;

(x) collect and compile statistics related to training ;

(xi) coordinate the working of Provincial Boards ;

(xii) review existing and proposed legislation on vocational training and recommend necessary legislative provisions with the concurrence of the Provincial Boards, [and Technical Education and Vocational Training Authority].

(xiii) issue to establishment [Provincial Boards, Technical Education and Vocational Training Authority] or institutions for compliance directives with in the framework of the approved plans and projects ; and

[1]**[(xiiia)** assist and establish institutions in collaboration with proivate sector to promote technical, vocational and in-plant training and skill development;

(xiiib) undertake registration and licensing of all establishment organizations or institutions which are offering or providing vocational training;

(xiiic) develop system and conduct trade testing and certification of skilled workers who have received vocational training through any source or acquired skills through experience or informal system;]

(xiv) do all other acts necessary for carrying out the purposes of this Ordinance.

(2) The National Board may set up such administrative and technical committees [1][skill development councils, authorities, trade testing boards or other such bodies] for the efficient performance of its functions, and entrust to such committees [1][skill development councils, authorities, trade testing boards to other such bodies] such functions as it may consider necessary.

5. Functions of the Provincial [1][Board] etc.—(1) Each Provincial [1][Board] shall —

(i) Publish an annual forecast of provincial skilled manpower requirements ;

(ii) identify and inspect vocational training schemes ;

(iii) maintain a register of approved training schemes ;

(iv) ensure uniformity of training standards ;

(v) approve training schemes and recommend them to the National Board for funding ;

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[1] *Amended by Ord. 2 of 2002, ss.4-5.*

(vi) supplement or provide advisory services to establishments and schemes offering vocational training; [*][1]

(vii) prepare an annual provincial training plan for meeting skilled manpower requirements [;][1]

[1][(viii) register and license all establishments, organizations or institutions which are offering vocational training; and

(ix) conduct trade tests and certify the skilled persons and trainers who may have received vocational traning through any souce or acquired the skill through experience or informal system.]

(2) Each Provincial Government may establish a Provincial Training Board consisting of such number of members, including its Chairman as the Provincial Government may appoint.

[1][(3) * * * * * * *]

6. ***Meetings and procedure.—*** [1][(1) The meetings of the National Board and a Provincial Board shall be held, as and when required but at least once in six months, at such time and place as Chairman of the respective Board may determine;

(2) Meetings of the National Board and the Provincial Boards shall be conducted in accordance with such procedure as may be prescribed.

[1][(3) The powers and functions of the Chairman of the National Board shall, during the absence of the Chairman, be performed by the Vice-Chairman of the National Board and during the absence of both the Chairman and the Vice Chairman, by such member of the National Training Board as the Chairman may, by order in writing direct .

[1][(4) In case of a Provincial Board, the powers and functions of the Chairman shall, during the absence of the Chairman, be performed be such member of the Provincial Board as its Chairman may, by order in writing direct.]

7. Officers and servants of the Boards.— (1) The National Board and a Provincial Board may appoint such officers and servants including advisors as it may consider necessary for the efficient performance of its functions.

(2) The terms and conditions of the officers and servants of each Board shall be such as may be prescribed.

8. Funds.— (1) All receipts of the National Board from any source whatsoever shall be credited to a Fund to be called the National Training Board Fund which shall vest in the National Board and from which allocations shall be made to Provincial Boards [or any other organization or institution working under the board].

(2) All receipts of the Provincial Board from the National Board or any source whatsoever shall be credited to a Fund to be called the Provincial Training Board Fund of the Province concerned.

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[1]*Amended by Ord. 2 of 2002,ss. 5-7.*

(3) A Fund under sub-section (1) or sub-section (2) shall be administered in such manner as may be prescribed and, until such manner is prescribed, by the Chairman of the National Board or the Provincial Board, as the case may be, and shall be applied to meet all expenditure connected with the execution of the schemes and measures for which the Board concerned is responsible and all charges necessary for the discharge of the functions of such Board under this Ordinance.

9. **Audit and account.**—(1) The National Board and the Provincial Boards shall maintain their accounts of receipts and expenditure in such manner as may be prescribed by the Auditor-General.

(2) The accounts of the National Board and the Provincial Boards shall be audited by the Auditor-General or any officer authorised by him in such manner as the Auditor-General may think fit.

(3) The Auditor-General shall, as soon as possible after completion of the audit, send to the National Board or the Provincial Board a report on the said accounts and the Board shall, with its comments thereon, forward it to the Federal Government or the Provincial Government, as the case may be.

10.Servants of the Boards, etc., to be public servants. Every servant of the National Board and the Provincial Boards and every person acting or purporting to act under this Ordinance shall be deemed to be a public servant within the meaning of section 21 of the Pakistan Penal Code (Act XLV of 1860).

11. Indemnity. No suit, prosecution or other legal proceeding shall lie against any person for anything in good faith done or intended to be done under this Ordinance.

12. Delegation of Powers. The National Board, with the approval of the Federal Government, and a Provincial Board, with the approval of the Provincial Government concerned, may delegate all or any of its powers to its Chairman, any of its committees or any officer of the Federal Government or a Provincial Government, as the case may be.

13. **Penalty for non-compliance with directives**. If an establishment or institution does not comply with any directive given by the National Board or a Provincial Board which is in accordance with its functions set out under this Ordinance, the head of the establishment or the institution, as the case may be shall be punishable with fine which may extend to ten thousand rupees and, in the case of a continuing non-compliance with the directive, with an additional fine which may extend to two hundred rupees for every day during which the non-compliance continues after conviction for the first such non-compliance.

14. Cognizance of offences.—(1) No court shall take cognizance of any offence punishable under this Ordinance save on a complaint made by the National Board or a Provincial Board or an officer authorised on behalf of either of the Boards.

(2) No court inferior to that of a Magistrate of the first class shall try any offence punishable under this Ordinance.

15. Power to exempt. The Federal Government or a Provincial Government may, by Notification in the official Gazette, exempt either conditionally or unconditionally any establishment or class of establishments or any institution imparting vocational training from all or any of the provisions of this Ordinance.

16. Power to make regulations. The National Board, in consultation with the Federal Government, and each Provincial Government, may make regulations for carrying out the purposes of this Ordinance.

THE NORTH-WEST FRONTIER CONSTABULARY ACT, 1915

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THE SCHEDULE.—CONDITIONS OF SERVICE

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THE NORTH-WEST FRONTIER CONSTABULARY ACT, 1915.

[1]ACT NO. XIII OF 1915

[1st October 1915*]*

An Act to provide for the regulation of the Frontier Constabulary in the North-West Frontier [2].*

WHEREAS it is expedient to provide for the regulation of the Frontier Constabulary in the North-West Frontier [2][*] ; It is hereby enacted as follows :—

1. Short title, extent, application and commencement.—(1) This Act may be called the North-West Frontier Constabulary Act, 1915 ;

(2) It extends to the whole of the North-West Frontier [2]*, and applies also to every member of the Constabulary, wherever he may be serving ; and

(3) It shall come into force on such day[3] as the [4][Federal Government] may, by notification in the official Gazette, appoint in this behalf.

2. Definition. In this Act, unless there is anything repugnant in the subject or context,—

(a) "member of the Constabulary" means a person other than a person appointed by the [4][Federal Government] who, at the commencement of this Act, is serving in the Frontier Constabulary, or who, after the commencement of this Act, has been appointed to the Frontier Constabulary under this Act and has signed a recruiting-roll on which the conditions of service contained in the Schedule are set forth:

Provided that every person who has for the space of six months been in the receipt of pay as a member of the Frontier Constabulary and been borne on the rolls of the Frontier Constabulary shall be deemed to be a member of the Constabulary, notwithstanding that he has not signed the said recruiting-roll:

(b) "Commandant" means a person appointed by the [4][Federal Government] to be a Commandant of the Frontier Constabulary:

(c) "active service" means service against hostile tribes, raiders or other hostile persons, or persons co-operating with or assisting such tribes, raiders or hostile persons:

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[1]For Statement of Objects and Reasons, *see* Gazette of India, 1915. Pt. V, p. 56 ; for Proceedings in Council, *see ibid*., Pt. VI, pp. 439 and 502.
This Act has been applied to Phulera in the Excluded Area of Upper Tanawal to the extent the Act is applicable in the N.-W.F.P., subject to certain modifications ; and also extended to the Excluded Area of Upper Tanawal (N.W.F.P.) other than Phulera with effect from such date and subject to such modifications as may be notified, *see* N.W.F.P (Upper Tanawal) (Excluded Area) Laws Regulation, 1950.
This Act and the rules, notifications and orders made thereunder, as in force in N -W.F.P. before the 15th July, 1975, have been applied to all the Provincially Administered Tribal Areas of N.- W.F.P. by Regulation III of 1975, s. 2 and Sch.
[2]The original word "Province" omitted by the Central Laws (Statute Reform) Ordinance, 1960 (21 of 1960), s. 3 and 2nd Sch. (*with effect from the 14th October, 1955*).
[3]The 15th October, 1915 ; *see* N.W.F.P Gazette., dated 29th November, 1915.
[4]Subs. by F.A.O., 1975, Art. 2 and Table, for "Central Government", which was previously amended by A. O., 1937, for "L. G.".

(d) the expressions "assault," "criminal force," "fraudulently," "reason to believe" and "voluntarily causing hurt" have the meanings assigned to them, respectively, in the Pakistan Penal Code. (XLV of 1860).

[1][* * * * * * *]

3. Power to maintain Frontier Constabulary.— [2][There shall continue to be a force, maintained by the [3][Federal Government], and called] the Frontier Constabulary, for the better protection and administration of the external frontier of [4][Pakistan] within the limits of or adjoining the North-West Frontier [5]* or any part thereof.

[6]**[3-A. Power to employ Frontier Constabulary in other parts of Pakistan.** Notwithstanding anything contained in section 3 or elsewhere in this Act, it shall be lawful, and shall be deemed always to have been lawful, for the [3][Federal Government] to employ the Frontier Constabulary outside the limits of or adjoining the North-West Frontier [7][in other parts of Pakistan for the better protection and administration of those parts].

4. Constitution of Constabulary. The Frontier Constabulary shall be constituted in such manner, and the members of the Constabulary shall receive such pay, pension, and other remuneration as shall from time to time [8]* * * be ordered by the [3][Federal Government].

5. Appointment and powers of superior officers.— (1) The [3][Federal Government] may appoint any person to be Commandant and may appoint other persons to be District Constabulary Officers or Assistant Constabulary Officers of the Frontier Constabulary, or of any part thereof constituted in any one or more districts.

(2) The Commandant and every other officer so appointed shall possess, and may exercise, such power and authority over the subordinate officers and members of the Constabulary at any time, under his command as is provided by or under this Act.

6. Appointment of subordinate officers and men. The appointment of all officers and men of the Frontier Constabulary, other than those mentioned in sub-section (1) of section 5, shall rest with the Commandant and the District Constabulary Officer who shall respectively exercise such powers, in such manner as may be prescribed by rules made under this Act.

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7. Superintendence, control and administration of Constabulary.— (1) The superintendence of, and control over, the Frontier Constabulary shall vest in the [3][Federal Government]; and the Frontier Constabulary shall be administered by the Commandant and the District Constabulary Officer in accordance with the provisions of this Act and of any rules made thereunder.

[1]Paragraph previously amended by A. O., 1937, has been omitted by the Federal Laws (Revision and Declaration) Ordinance, 1981 (27 of 1981), s. 3 and Sch II.
[2]Subs by A. O., 1937, for "The L. G. may continue to maintain a force, to be called".
[3]Subs by F.A.O., 1975, Art. 2 and Table, for "Central Government", which was previously amended by A. O., 1937, for "L. G.".
[4]Subs. by the Central Laws (Statute Reform) Ordinance, 1960 (21 of 1960), s.3 and 2nd Sch. (*with effect from the 74th October, 1955*), for the Provinces and the Capital of the Federation" which had been subs, by A. O., 1949. Arts. 3(2) and 4, for "British India".
[5]See foot-note 2 on preceding page.
[6]Section 3A ins. by the special Criminal Courts (Second Arndt.) Ordinance, 1942 (42 of 1942), s. 2.
[7]Subs by Ordinance 21 of 1960, s.3 and 2nd Sch. (*with effect from the 14th October 1955*), for "Province in a province other than that Province for the better protection and administration of that other province".
[8]The words "with the previous sanction of the G. G. in C." rep. by A. O., 1937.

(2) The District Constabulary Officer and the Constabulary of a district shall be under the general control and direction of the Deputy Commissioner of the district [1][or, when the Frontier Constabulary is employed under section 3A in [2][any part of Pakistan other than the North-West Frontier], under the general control and direction of the District Magistrate of the district].

(3) In exercising authority under sub-section (2) the Deputy Commissioner [1][or District Magistrate] shall be governed by such rules and orders as the [3][Federal Government] may make in this behalf.

8. More heinous offences.— (1) Every member of the Constabulary who commits any of the following offences, that is to say :—

(a) begins, excites, causes or conspires to cause or joins in any mutiny; or being present at any mutiny, does not use his utmost endeavours to suppress it, or knowing, or having reason to believe in, the existence of any mutiny, or of any intention to mutiny, or of any conspiracy against the State does not, without delay give information thereof to his commanding or other superior officer; or,

(b) uses, or attempts to use, criminal force to, or commits an assault on, his superior officer whether on or off duty knowing or having reason to believe him to be such ; or,

(c) shamefully abandons or delivers up any garrison, fortress, post or guard which is committed to his charge, or which it is his duty to defend ; or,

(d) directly or indirectly holds correspondence with, or assists or relieves any person in arms against the State, or omits to discover immediately to his commanding or other superior officer any such correspondence coming to his knowledge ; or,

who, while on active service,—

(e) disobeys the lawful command of his superior officer ; or,

(f) deserts the service ; or,

(g) being a sentry, sleeps upon his post, or quits it without being regularly relieved or without leave ; or,

(h) without authority, leaves his commanding officer, or his post or party, to go in search of plunder ; or,

(i) quits his guard, picquet, party, or patrol without being regularly relieved or without leave ; or,

(j) uses criminal force to, or commits an assault on, any person bringing provisions or other necessaries to camp or quarters, or forces a safeguard or, without authority, breaks into any house or any other place for plunder, or plunders, destroys, or damages any property of any kind ; or,

[1]Ins. by the North-West Frontier Constabulary (Amdt.) Ordinance, 1943 (42 of 1943), s. 3.
[2]Subs. by the Central Laws (Statute Reform) Ordinance, 1960 (21 of 1960), s. 3 and 2nd Sch. (*with effect from the 14th October, 1955*), for "a Province other than the North-West Frontier Province".
[3]Subs by F.A.O., 1975, Art. 2 and Table, for "Central Government", which was previously amended by A. O., 1937, for "L. G.".

(k) intentionally causes or spreads a false alarm in action or in camp, garrison, or quarters ; or,

(l) displays cowardice in the execution of his duty ;

shall be punishable with [1][imprisonment] for life or for a term of not less than seven years, or with imprisonment for a term which may extend to fourteen years, or with fine which may extend to three months' pay, or with fine to that extent in addition to such sentence of transportation or imprisonment, as the case may be, as may be passed upon him under this section.

(2) If any member of the Constabulary while on active service with a force beyond the limits of [2][Pakistan], is charged with committing any offence described in clause (c), clause (d), or clause (f), of sub-section (1), or the offence of culpable homicide amounting to murder, he may be summarily tired for such offence by the Political Officer accompanying the force, sitting with two other officers appointed by the Political Officer for this purpose.

(3) Every officer appointed under sub-section (2) shall be either –

[3][(a) an officer of the Pakistan Army, other than a junior commissioned officer, or,]

(b) a civil officer, of gazetted rank, or,

(c) a person appointed under section 5

Provided that, if circumstances permit, not less than once such officer shall be a Constabulary Officer appointed under section 5.

(4) If one or both of the officers sitting with the Political Officer concur with him in finding the accused guilty, and the Political Officer so directs, the accused shall be forthwith shot to death.

9. Less heinous offences. Every member of the Constabulary who commits any of the following offences, that is to say,—

(a) is in state of intoxication when on, or after having been warned for, any duty, or on parade or on the line of march ; or,

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(b) strikes or attempts to force any sentry ; or,

(c) being in command of a guard, picquet or patrol, refuses to receive any prisoner or person duly committed to his charge, or, without proper authority, releases any prisoner or person placed under his charge, or negligently suffers any such prisoner or person to escape ; or,

(d) being under arrest or in confinement, leaves his arrest or confinement, before he is set at liberty by proper authority; or,

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[1]Subs. by the Federal Laws (Revision and Declaration) Ordinance, 1981 (27 of 1981) s. 3 and Sch. II. for "transportation".
[2]Subs. by the Central Laws (Statute Reform) Ordinance, 1960 (21 of 1960), s. 3 and 2nd Sch. (*with effect from the 14th October, 195*5), for "the Provinces and the Capital of the Federation" which had been subs. by A. O., 1949, Arts. 3(2) and 4, for "British India".
[3]Subs. by the Federal Laws (Revision and Declaration) Act, 1951 (26 of 1951), s.4 and III Sch., for the original clause(a).

(e) is grossly insubordinate or insolent to his superior officer in the execution of his office ;or

(f) refuses to superintend or assist in the making of any field-work or other work of any description ordered to be made either in quarters or in the field ; or,

(g) strikes or otherwise ill-uses any member of the Constabulary subordinate to him in rank or position ; or,

(h) being in command at any post or on the march, and receiving a complaint that any one under his command has beaten or otherwise maltreated or oppressed any person, or has committed any riot or trespass, fails, on proof of the truth of the complaint, to have due reparation made, as far as possible, to the injured person or to report the case to the proper authority ; or,

(i) designedly or through neglect injures or loses or fraudulently disposes of, his arms, clothes, tools, equipments, ammunition, accoutrements or Frontier Constabulary necessaries, or any such articles entrusted to him or belonging to any other person ; or,

(j) malingers or feigns or produces disease or infirmity in himself or intentionally delays his cure, or aggravates his disease or infirmity ; or,

(k) with intent to render himself or any other person unfit for service, voluntarily causes hurt to himself or any other person ; or,

(l) does not, when called upon by his, superior officer so to do or upon ceasing to be a member of the Constabulary, forthwith deliver up, or duly account for, all or any arms, ammunition, stores, accoutrements, appointments or other property issued or supplied to him or in his custody or possession, as such member of the Constabulary ; or,

(m) knowingly furnishes a false return or report of the number or state of any men under his command or charge, or of any money, arms, ammunition, clothing, equipments, stores or other property in his charge, whether belonging to such men or to [1][the Government] or to any member of, or any person attached to, the Constabulary, or who, through design or culpable neglect, omits or refuses to make or send any return or report of the matters aforesaid ; or,

(n) absents himself without leave, or without sufficient cause overstays leave granted to him ; or,

(o) is guilty of any act or omission which, though not specified in the Act, is prejudicial to good order and discipline ; or,

Who, while not on active service,—

[1]The original word "Government" was first subs. by A. O., 1937 and then amended by A. O., 1961, Art. 2 (with effect from the 23rd March, 1956), to read as above.

(p) disobeys the lawful command of his superior officer; or,

(q) deserts the service ; or,

(r) being a sentry, sleeps upon his post, or quits it without being regularly relieved or without leave ; or,

(s) quits his guard, picquet, party, or patrol without being regularly relieved or without leave ; or,

(t) plunders, destroys or damages any property of any kind ; or,

(u) displays cowardice in the execution of his duty;

shall be punishable with imprisonment for a term which may extend to one year, or with fine which may extend to three months' pay, or with both.

10. Minor punishment.—(1) The Commandant or the District Constabulary Officer may, subject to any rules made under this Act, award in lieu of, or in addition to, suspension or dismissal, any of the following punishments to any member of the Constabulary who is, in the opinion of the Commandant or the District Constabulary Officer, as the case may be, guilty of disobedience, neglect of duty, or remissness in the discharge of any duty, or of rendering himself unfit to discharge his duty, or of other misconduct in his capacity as such member of the Constabulary, that is to say,—

(a) reduction in rank and emoluments ;

(b) fine to any amount not exceeding one month's pay and allowances ;

(c) confinement to quarters for a term not exceeding one month ;

(d) confinement in the quarter-guard for not more than twenty-eight days with or without punishment-drill or extra guard, fatigue or other duty ; and

(e) removal from any office of distinction or special emolument in the Constabulary.

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(2) The Commandant or the District Constabulary Officer, or an officer not being below the rank of Subedar, commanding a separate detachment or an outpost, or in temporary command at the headquarters of a district during the absence of the Commandant and the District Constabulary Officer may, without a formal trial, award to any member of the Constabulary who is subject to his authority any of the following punishments for the commission of any petty offence against discipline which is not otherwise provided for in this Act, or which is not of a sufficiently serious nature to call for a prosecution before a Criminal Court, that is to say,-

(a) confinement for not more than seven days in the quarter-guard or such other place as may be considered suitable, with forfeiture of all pay and allowances during its continuance ; and

(b) punishment-drill, or extra guard, fatigue or other duty, for not more than thirty days, with or without confinement to quarters.

(3) Any one of the punishments described in sub-section (1) or sub-section (2) may be awarded separately, or in combination with any one or more of the said punishments, respectively.

11. Place of imprisonment and liability to dismissal on imprisonment.— (1) Every person sentenced under this Act to imprisonment may be dismissed from the Frontier Constabulary, and shall be further liable to forfeiture of pay and allowances due, as well as of medals and decorations received and the public money due to him.

(2) Every such person shall, if he is so dismissed, be imprisoned in the nearest prison or such other prison as the [1][Federal Government] may, by general or special order, direct; but, if he is not also dismissed from the Frontier Constabulary, he may, if the Court or the Commandant so directs, be confined in the quarter-guard or such other place as the Court or the Commandant may consider suitable.

12. Deductions from pay and allowances. The following penal deductions may be made from the pay and allowances of a member of the Constabulary, that is to say,-

(a) all pay and allowances for every day of absence either on desertion or without leave, and for every day of imprisonment awarded by a Criminal Court or of confinement awarded by an Officer exercising authority under section 10 ;

(b) all pay and allowances for every day whilst he is in custody on a charge for an offence of which he is afterwards convicted ;

(c) all pay and allowances for every day on which he is in hospital on account of sickness certified by the proper Medical Officer attending on him at the hospital to have been caused by an offence under this Act committed by him ;

(d) all pay and allowances ordered to be forfeited under section 10 ; and

(e) any sum required to make good such compensation for any expenses caused by him, or for any loss of, or damage or destruction done by him to, any arms, ammunition, equipment, clothing, instruments, Frontier Constabulary necessaries or decoration, or to any buildings or property, as may be awarded by the Commandant or the District Constabulary Officer.

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13. Collective fines. Whenever any weapon or part of a weapon or ammunition forming part of the equipment of a company or other similar unit is lost or stolen, the Commandant may, after making such inquiry as he thinks fit, impose a collective fine upon the subordinate officers and men of such unit, or upon so many of them as, in his judgment, should be held responsible for such loss or theft.

14. Resignation and with drawal from the Constabulary. No member of the Constabulary shall be at liberty to –

(a) resign his appointment during the term of his engagement, except before the expiration of the first three months of his service ; or,

[1]Subs. by F.A.O., 1975, Art. 2 and Table, for "Central Government," which was previously amended by A. O., 1937, for "L. G.".

(b) withdraw himself from all or any of the duties of his appointment, without the permission in writing (to be previously obtained) of the Commandant or the District Constabulary Officer or other officer authorised by the Commandant to grant such permission.

15. General duties of members of the Constabulary.— (1) It shall be the duty of every member of the Constabulary promptly to obey and to execute all orders and warrants lawfully issued to him by any competent authority, to detect and bring offenders to justice, and to apprehend all persons whom he is legally authorised to apprehend, and for whose apprehension sufficient grounds exist.

(2) Every member of the Constabulary shall be liable to serve without and beyond, as well as within, the limits of [1][Pakistan].

16. Power and duties conferrable and imposable on members of the Constabulary. The [2][Federal Government] may, by general or special order, confer or impose upon any member of the Constabulary any of the powers or duties conferred or imposed on a Police officer of any class or grade by any enactment for the time being in force.

17. Protection for acts of members of the Constabulary.— (1) In any suit or proceeding against any member of the constabulary for any act done by him in pursuance of a warrant or order of a competent authority, it shall be lawful for him to plead that such act was done by him under the authority of such warrant or order.

(2) Such plea may be proved by the production of the warrant or order directing the act, and, if it is so proved, such member of the Constabulary shall thereupon be discharged from liability in respect of the act so done by him notwithstanding any defect in the jurisdiction of the authority which issued such warrant or order.

(3) All suits and proceedings (whether civil or criminal) against any person which may lawfully be brought for anything done or intended to be done under the powers conferred by, or in pursuance of, any provision of this Act or the rules thereunder, shall be commenced within three months after the act complained of was committed and not otherwise ; and notice in writing of such suit or proceeding and of the cause thereof shall be given to the defendant or his superior officer one month at least before the commencement of the suit or proceeding.

[3]**[17 A. Apprehension of deserters.**— (1) Whenever any member of the Constabulary deserts, his District Constabulary Officer shall give information of the desertion to such civil authorities as in his opinion may be able to afford assistance towards the capture of the deserter and such authorities shall, thereupon, take steps for the apprehension of the said deserter in like manner as if he were a person for whose apprehension a warrant had been issued by a Magistrate, and shall deliver the deserter, when apprehended, to Frontier Constabulary custody.

[1]Subs. by the .Central Laws (Statute Reform) Ordinance, 1960 (21 of 1960), s. 3 and 2nd Sch. (*with effect from the 14th October, 1955*), for " the Provinces and the Capital of the Federation" which had been subs. by A. O., 1949, Arts. 3 (2) and 4, for "British India".
[2]Subs. by F.A.O., 1975, Art. 2 and Table, for "Central Government", which was previously amended by A. O., 1937 , for "L. G.".
[3]Section 17-A ins. By the North-West Frontier Constantly (Amdt.) Act, 1965 (23 of 1965), s. 2.

(2) A provost marshal appointed under the Pakistan Army Act, 1952 (XXXIX of 1952) , the Pakistan Air Force Act, 1953 (VI of 1953), or the Pakistan Navy Ordinance, 1961(XXXV of 1961) , or any person legally exercising authority under him or on his behalf, may arrest without warrant any person whom he reasonably believes to be a member of the Constabulary and a deserter or absent without leave and bring him without delay before the nearest Magistrate as if he were a deserter from the Pakistan Army, the Pakistan Air Force or the Pakistan Navy.]

18. Authority to confer exclusive powers of Sessions Courts on Deputy Commissioner:- Notwithstanding anything contained in the Code of Criminal Procedure, 1898 (V of 1898), the [1][Federal Government] may declare that the Court of any Deputy Commissioner and no other Court, shall be deemed to be the Court of Session for the disposal of cases, or any class of cases, arising under this Act.

19. Criminal powers conferred with in Pakistan to be exercisable beyond Pakistan. Any person invested with any powers under the Code of Criminal Procedure, 1998 (V of 1898), for the disposal of any case under this Act within the limits of [2][Pakistan] shall, in relation to any case arising under this Act beyond such limits, have the same power and be subject to the same conditions as to appeal or otherwise as if such case had arisen within such limits.

20. Application of Act to other bodies enrolled for service on frontier.— The [2][Federal Government] [3]* * *may, by notification in the official Gazette, apply[4] with such modifications (if any) as it may think fit, any of the provisions of this Act and the rules thereunder to the Border Militia or to any persons for the time being enrolled for similar service on the external frontier of [2][Pakistan].

21. Power to make rules. The [1][Federal Government] may, by notification in the official Gazette, make rules[4] -

(a) regulating the functions and powers of the Deputy Commissioner [5][District Magistrate] Commandant, the District Constabulary Officer and the Assistant Constabulary Officer, respectively, under this Act ;

(b) regulating, [6]* * * the classes and grades of, and the remuneration to be paid to the officers and men of, and the conditions of service in the [7]Frontier Constabulary ;

(c) fixing the period of service for members of the Constabulary in any district or local area ;

[1]Subs. by F. A. O., 1975 Art. 2 and Table for " Central Government ", which was previously amended by A.O., 1937, for " L. G ".
[2]Subs. by the .Central Laws (Statute Reform) Ordinance, 1960 (21 of 1960), s. 3 and 2nd Sch. (*with effect from the 14th October, 1955*), for " the Provinces and the Capital of the Federation" which had been subs. by A. O., 1949, Arts. 3 (2) and 4, for "British India".
[3]The words "subject to the control of the G. G. in C." rep. by A. O., 1937.
[4]This Act has been applied with modifications to the Frontier Corps., viz., the Kurrum Militia, the Tochi Scouts and the South Waziristan Scouts *see* N: W.F.P. Chief Commissioner's Notification No. 1085-M., dated the 27th March, 1925.
[5]Ins. by the North-West Frontier Constabulary (Amdt.) Ordinance, 1943 (42 of 1943),. s. 4.
[6]The words "subject to the provisions of s. 4" rep. by A. O., 1937.
[7]For the Frontier Constabulary Leave Rules, *see* Gazette of India, 1944, Pt. I, Section I, p. 1050.

(d) regulating the award of minor punishments to Constabulary Officers under the powers conferred by section 10, and providing for appeals from, or the revision of orders under, that section, or the remission of fines imposed under that section, and the remission of deductions made under section 12 ;

(e) regulating the several or collective liability of members of the Constabulary in the case of the loss or theft of weapons and ammunitions ; and

(f) generally, for the purpose of carrying into effect the provisions of this Act.

22. [*Repeal.*] *Rep. by the Repealing Act, 1938 (1 of 1938), s. 2 and Sch.*

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[*See* section 2, clause (a)]

AFTER you have served for such periods as the [1][Federal Government] may have prescribed in this behalf in the Frontier Constabulary maintained under the North-West Frontier Constabulary Act, 1915, you may, at any time, when not on active service, apply for your discharge, through the officer to whom you may be subordinate, to the Commandant, or to the District Constabulary officer of the district in which you may be serving and you will be granted your discharge after three months from the date of your application, unless your discharge would cause the vacancies in the Frontier Constabulary to exceed one-tenth of the sanctioned strength, in which case you shall be bound to remain until this objection is waived by competent authority or removed. But when on active service you shall have no claim to a discharge, and you shall be bound to remain to do your duty until the necessity for retaining you in the Frontier Constabulary ceases, when you may make your application in the manner hereinbefore prescribed:

Provided that, if you wish to withdraw from the Frontier Constabulary, you may resign at any time before the expiration of the first three months of your service, but not afterwards until the completion of the period prescribed as aforesaid :

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Provided, also, that the Commandant or the District Constabulary Officer may, if he thinks fit, allow you to resign at any time on your giving three months' notice of your wish to do so.

Signature of the member of the Constabulary in acknowledgement of the above having been read to him. } A.B.

Signed in my presence after I had ascertained that A.B. understood the purport of what he signed. } C.D.

Commandant or, District Constabulary Officer.

Date: 11-09-2024

[1]Subs. by F. A. O., 1975 Art. 2 and Table for " Central Government ", which was previously amended by A.O. 1937, for " L. G ".

THE OBSTRUCTIONS IN FAIRWAYS ACT, 1881

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THE OBSTRUCTIONS IN FAIRWAYS ACT, 1881

[1]ACT NO. XVI OF 1881

[*15th March, 1881*]

An Act to empower the Government to remove or destroy obstructions in f airways, and to prevent the creation of such obstructions.

Preamble. WHEREAS it is expedient to empower the Government to remove or destroy obstructions to navigation in fairways leading to ports in [2][Pakistan], and to prevent the creation of such obstructions; It is hereby enacted as follows:—

1. Short title. This Act may be called the Obstructions in Fairways Act 1881;

[3]* * * * * * *

But nothing herein contained shall apply to vessels [4][belonging to, or hired by a contract made on behalf of, the [5][Government]].

2. Federal Government empowered to remove or destroy obstruction in fairway. Whenever, in any fairway leading to any port in [2][Pakistan], any vessel is sunk, stranded or abandoned, or any fishing-stake, timber of other thing is placed or left, [6][the [7][Federal Government]] may, if in its opinion such thing is, or is likely to become, an obstruction or danger to navigation,-

(a) cause such thing or any part thereof to be removed; or

(b) if such thing is of such a description or so situate that, [9][in the opinion of the [7][Federal Government]], it is not worth removing, cause the same or any part thereof to be destroyed.

3. Federal Government entitled to expenses incurred in removing obstruction. Whenever anything is removed under section 2, [10][the [7][Federal Government]] shall be entitled to receive a reasonable sum, having regard to all the circumstances of the case, for the expenses incurred in respect of such removal.

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Dispute concerning such expenses. Any dispute arising concerning the amount due under this section, in respect of anything so removed, shall be decided by the District Magistrate [8]* * * having jurisdiction at the place where such thing is, upon application to him for that purpose by either of the disputing parties; and such decision shall be final.

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[1]For the Statement of Objects and Reasons, *see* Gazette of India, 1881, Pt. V., p.3 ; for Proceedings in Council, *see ibid.,*1881*,* Supplement, pp. 19 and 405.
The Act has been extended to the whole of Pakistan by the Central Laws (Statute Reform) Ordinance, 1960 (21 of 1960), s. 3 and 2nd Sch. (with effect from the 14th October, 1955). .
[2]Subs. by Ord. 21 of 1960, s. 3 and 2nd Sch. (with effect from tbe 14th October, 1955), for" the Provinces and the Capital of the Federation" which had been subs. by A. O., 1949, Arts. 3(2) and 4, for "British India".
[3]The words "and it shall come into force at once" rep. by the Repealing and Amending Act, 1914 (10 of 1914).
[4]Subs. by A. O., 1937, for "belonging to Her Majesty or hired by Her Majesty or by the Secretary of State for India in Council" .
[5]Subs. by A.O., 1961, Art. 2, for" Crown" (with effect from the 23rd March, 1956).
[6]Subs. by A. O.,1937, for "the L. G., of the part of British India in which such port is situate".
[7]Subs. by F. A. O., 1975, Art. 2 and Table, for "Central Government".
[8]The words "or Presidency Magistrate" omitted by the Central Laws (Statute Reform) Ordinance, 1960 (21 of 1960) s. 3 and 2nd Sch. (with effect from the 14th October, 1955).
[9]Subs. by A. O., 1937, for "in he opinion of the L. G".
[10]Subs. ibid., for "the Govt.".

4. Notice of removal to be given by Federal Government. The [1][Federal Government] shall, whenever anything is removed under section 2, publish in the [2][official Gazette] a notification containing a description of such thing, and the time at which and the place from which the same was so removed.

5. Things removed may, in certain cases, be sold. If, after publishing such notification, such thing is unclaimed, or if the person claiming the same fails to pay the amount due for the said expenses and any customs-duties or other charges properly incurred by the [1][Federal Government] in respect thereof,

the [1][Federal Government] may sell such thing by public auction, if it is of a perishable nature, forthwith, and, if it is not of a perishable nature, at any time not less than six months after publishing such notification as aforesaid.

6. Proceeds how applied. On realizing the proceeds of such sale, the amount due for expenses and charges as aforesaid, together with the expenses of the sale, shall be deducted therefrom, and the surplus (if any) shall be paid to the owner of the thing sold, or, if no such person appear and claim such surplus, shall be held in deposit for payment, without interest, to any person thereafter establishing his right to the same:

Provided that he makes the claim within one year from the date of the sale.

7. "Vessel" to include tackle, cargo, etc. For the purposes of this Act, the term "vessel" shall be deemed to include also every article or thing or collection of things being or forming part of the tackle, equipment, cargo, stores or ballast of a vessel; and any proceeds arising from the sale of a vessel, and of the cargo thereof, or of any other property recovered therefrom, shall be regarded as a common fund.

8. Power to make rules to regulate and prohibit the placing of obstructions in fairways. The [3][Federal Government] may, from time to time, by notification in the [4][official Gazette], make rules to regulate or prohibit, in any fairway leading to a port in [5][Pakistan], the placing of fishing-stakes, the casting or throwing of ballast, rubbish or any other thing likely to give rise to a bank or shoal, or the doing of any other act which will in [6][its] opinion, cause, or be likely to cause, obstruction or danger to navigation.

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9. Penalty for breach of such rules. Whoever is guilty of any act or omission in contravention of the rules made under section 8 may be tried for such offence in any district[7]* * * in which he is found, and shall be punished with imprisonment for a term which may extend to six months, or with fine which may extend to five hundred rupees, or with both.

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[1]Subs. by F. A.O., 1975, Art. 2 and Table, for "Central Government" which was subs. by A. O., 1937 for "L.G.".
[2]Subs. by A. O., 1937, for "Local official Gazette".
[3]Subs. by F. A. O., 1975, Art. 2 and Table, for "Central. Government" which was subs. by A.O. 1937, for "G.G. in C".
[4]Subs. by A.O., 1937 for "Gazette of India".
[5]Subs. by Ord. 21 of 1960, s. 3 and 2nd Sch. (with effect from tbe 14th October, 1955), for "the Provinces and the Capital of the Federation" which had been subs. by A. O., 1949, Arts. 3(2) and 4, for "British India".
[6]Subs. by A. O.,1937, for "his".
[7]The words "or Presidency-town" omitted by A. O., 1949. Sch.

10. Compensation payable in certain cases for damage caused under this Act. Whenever the maintenance or creation of an obstruction in any fairway has become lawful by long usage or otherwise, and such obstruction is removed or destroyed under section 2, or its creation is regulated or prohibited under section 8, any person having a right to maintain or create such obstruction shall be entitled to receive from the [1][Federal Government] reasonable compensation for any damage caused to him by such removal, destruction, regulation or prohibition.

Every dispute arising concerning the right to such compensation, or the amount thereof, shall be determined according to the law for the time being in force relating to like disputes in the case of land needed for public purposes[2] and not otherwise ; and for the purposes of such law the fairway from or in which such obstruction was removed or destroyed, or in which its creation was regulated or prohibited, shall be deemed to be a part of the [3]* * * district in which the port to which such fairway leads is situated.

11. Certain action of the Government previous to passing of this Act be deemed to have been taken hereunder. Whenever any obstruction in a fairway leading to a port in [4][Pakistan] has been removed or destroyed, or whenever the creation of any such obstruction has been regulated or prohibited, by an order of the [1][Federal Government] or a [5][Provincial Government], previous to the passing of this Act, such removal, destruction, regulation or prohibition shall be deemed to have been effected under this Act.

12. Saving of other powers possessed by Federal Government. Nothing herein contained shall be deemed to prevent the exercise by [6][the [1][Federal Government]] of any other powers possessed by it in this behalf.

[7]**[13. Application to fairways in inland waterways**. All references in this Act to the [1][Federal Government] shall, in relation to fairways in inland waterways, be construed as references to the Provincial Government concerned.]

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Date: 16-09-2024

[1]Subs. by F. A. O., 1975, Art. 2 and Table, for "Central Government" which was subs. by A. O., 1937, for "Secretary of State for India in Council".
[2]*See,* the Land Acquisition Act, 1894 (1 of 1894).
[3]The words "Presidency-town or" omitted by A. O., 1949, Sch.
[4]Subs. by Ord. 21 of 1960, s. 3 and 2nd Sch. (with effect from tbe 14th October, 1955), for "the Provinces and the Capital of the Federation" which had been subs. by A. O., 1949, Arts. 3(2) and 4, for "British India".
[5]Subs. by A. O.,1937, for "L.G.".
[6]Subs. by A. O.,1937, for "the Govt.".
[7S.] 13 ins. by A. O., 1937.

THE OFFICIAL SECRETS ACT, 1923

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THE OFFICIAL SECRETS ACT, 1923

[1]ACT NO. XIX OF 1923

[2nd April, 1923]

An Act to consolidate and amend the law in [2][Pakistan] relating to official secrets.

[3][* * * * * * *]

WHEREAS it is expedient that the law relating to official secrets in [2][Pakistan] should be consolidated and amended;

It is hereby enacted as follows: —

1. Short title, extent and application. — (1) This Act may be called the [4][*] Official Secrets Act, 1923.

[5][(2) It extends to the whole of Pakistan, and applies also to all citizens of Pakistan and persons in the service of Government wherever they may be.]

2. Definitions. — In this Act, unless there is anything repugnant in the subject or context,—

(1) any reference to a place belonging to [6][Government] includes a place occupied by any department of the Government, whether the place is or is not actually vested in [6][Government] ;

[7][* * * * * * *]

(2) expressions referring to communicating or receiving include any communicating or receiving, whether in whole or in part, and whether the sketch, plan, model, article, note, document, or information itself or the substance, effect or description thereof only be communicated or received; expressions referring to obtaining or retaining any sketch, plan, model, article, note or document, include the copying or causing to be copied of the whole or any part of any sketch, plan, model, article, note, or document; and expressions referring to the communication of any sketch, plan, model, article, note or document include the transfer or transmission of the sketch, plan, model, article, note or document;

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[1]For Statement of Objects and Reasons, *see* Gazette of India, 1922, Pt. V, p. 210; and for Report of Select Committee, *see ibid.*, 1923, Pt. V, p. 61.

For temporary amendment of this Act during the continuance of war, and for a period of six months thereafter, *see* s. 6 of the Defence of India Act, 1939 (35 of 1939), since expired.

The Act has been extended to the Leased Areas of Baluchistan, *see* the Leased Areas (Laws) Order, 1950 (G.G.O. 3 of 1950), and applied in the Federated Areas of Baluchistan, *see* Gazette of India, 1937, Pt. I, p. 1499.

This Act has been extended to the Baluchistan States Union, *see* the Baluchistan States Union (Federal Laws) (Extension) Order, 1953 (G.G.O. 4 of 1953), as amended by the Baluchistan States Union (Federal Laws) (Extension) (Second Amdt.) Order, 1953 (G.G.O. 19 of 1953).

It has also been extended to the Khairpur State, *see* G.G.O. 5 of 1953, as amended by G.G.O. 25 of 1953.

It has also been extended to the State of Bahawalpur by the Bahawalpur (Extension of Federal Laws) Order, 1953 (G.G.O. 11 of 1953), as amended.

The Act has been and shall be deemed to have been brought into force in Gwadur with effect from the 8th September, 1958, by the Gwadur (Application of Central Laws) Ordinance, 1960 (37 of 1960), s. 2.

This Act has been applied with certain modifications to the Tribal Areas of West Pakistan by Regulation No. I of 1963, s. 2 and Sch. (*with effect from the 30th December, 1964*).

For notification of Procedure provided under this Act, *see* the Enemy Agents Ordinance, 1943 (1 of 1943).

[2]Subs. by the Central Laws (Statue Reform) Ordinance, 1960 (21 of 1960), s. 3 and 2nd Sch. (*with effect from the 14th October, 1955*), for "the Provinces and the Capital of the Federation" which had been subs. by A.O., 1949, for "British India".

[3]Preamble omitted by the Federal Laws (Revision and Declaration) Ordinance, 1981 (27 of 1981), s. 3 and Sch. II.

[4]The word "Indian" omitted by the Federal Laws (Revision and Declaration) Act, 1951 (26 of 1951), s. 3 and Sch II.

[5]Subs. by the Central Laws (Statue Reform) Ordinance, 1960 (21 of 1960), s. 3 and 2nd Sch. (*with effect from the 14th October, 1955*), for sub-section (2) as amended by A.O., 1937, A.O., 1949 and the Federal Laws (Revision and Declaration) Act, 1951 (26 of 1951).

[6]Subs. by A.O., 1961, Art. 2 and Sch., for "His Majesty" (*with effect from the 23rd March, 1956*).

[7]Cl. (1A) which was ins. by A.O., omitted by A.O., 1949.

[1][(2A) 'appropriate Government' means, in relation to matters enumerated in the [2][Federal Legislative List in the Fourth Schedule] to the Constitution, the [3][Federal Government] and, in relation to any other matter, the Provincial Government;]

[4][(3) "document" includes any written, unwritten, virtual, electronic, digital, or any other tangible or intangible instrument, and includes part of such document, the plans, measures, activities, contracts, agreements, memorandums, etc. related to procurements of supplies of or sales of munitions that relate to military capability and potential and would be needed by the state in time of peace and war:]

[4][(3A) "intelligence agency" means, *inter alia*, the Directorate General of Inter-Services Intelligence and Intelligence Bureau;]

(4) "model" includes design, pattern and specimen ;

[4][(5) "Munitions of war" includes the whole or any part of any ship, submarine, aircraft, tank, vehicles or similar engine, arms and ammunition, torpedo, or mine intended or adopted for use in war, and any other article, equipment, material, device or capability, system or platform including digital, physical, virtual, electronic, vehicular use by the Armed Forces, whether actual or proposed, intended for such use;]

(6) "Office under [5][Government]" includes any office or employment in or under any department of the Government [6][* * *];

(7) "photograph" includes an undeveloped film or plate ;

(8) "prohibited place" means—

(*a*) any work of defence, arsenal naval, military or air force establishment [4][office, or part of building] or station, mine, minefield, camp, ship or aircraft belonging to, or occupied by or on behalf of, [5][Government], any military telegraph or telephone so belonging or occupied, any wireless or signal station or office so belonging or occupied and any factory, dockyard or other place so belonging or occupied and used for the purpose of building, repairing, making or storing any munitions of war, or any sketches, plans, models or documents relating thereto, or for the purpose of getting any metals, oil or minerals of use in time of [4][peace and] war ;

(b) any place not belonging to [5][Government] where any munitions of war or any sketches, models, plans or documents relating thereto are being made, repaired, gotten or stored under contract with, or with any person on behalf of, [5][Government], or otherwise on behalf of [5][Government];

(c) any place belonging to or used for the purpose of [5][Government] which is for the time being declared by the [7][appropriate Government], by notification[8] in the [9][official Gazette], to be a prohibited place for the purposes of this Act on the ground that [4][any access, intrusion, approach, attack or] information with respect

[1]Subsection (2A) ins. by A.O., 1964, Art. 2 and Sch.
[2] Subs. by F.A.O., 1975, Art. 2 and Sch., for "Third Schedule".
[3]Subs. *ibid*., Art. 2 and Table for "Central Government".
[4]Subs. and Ins., by Act LXIII of 2023, s.2.
[5]Subs. by A.O., 1961 Art. 2 and Sch., for "His Majesty" (*with effect from the 23rd March, 1956*).
[6]The words "or of the Government of the United Kingdom or of any British possession" omitted *ibid*., (*with effect from the 23rd March, 1956*).
[7]Subs. by A.O., 1964, Art. 2 and Sch., for "Central Government" which had been subs. by A.O., 1937, for "G.G. in C.".
[8]For such notifin., see Gaz. of P., 1957, Ext., p. 1172; *ibid*., 1959, Pt. I, p 518 and *ibid*., 1960, Pt. I, p. 520.
[9]Subs. by A.O., 1937, for "Gazette of India".

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thereto, or damage thereto, would be useful to an enemy, and to which a copy of the notification in respect thereof has been affixed in English and in the vernacular of the locality ;

(d) any railway, road, way or channel [1][or any strategic infrastructure], or other means of communication by land or water [1][or air] (including any works or structures being part thereof or connected therewith) or any place used [1][for modern communication means,] for gas, water or electricity works or other works for purposes of a public character, or any place where any munitions [1][related to defence] of war or any sketches, models, plans, or documents relating thereto, are being made, repaired or stored otherwise than on behalf of [2][Government], which is for the time being declared[3] by the [4][appropriate Government] by notification in the [5][official Gazette], to be a prohibited place for the purposes of this Act on the ground that information with respect thereto, or the destruction or obstruction thereof, or interference there with, would be useful to an enemy, and to which a copy of the notification in respect thereof has been affixed in English and in the vernacular of the locality [:][6]

[7][Provided that where for declaring a prohibited place under sub-clause (c) or sub-clause (d) a notification in the official Gazette is not considered desirable in the interest of the security of the State, such declaration may be made by an order a copy or notice of which shall be prominently displayed at the point of entry to, or at a conspicuous place near, the prohibited place.].

[1][(e) any place occupied by armed forces for the purpose of war games, exercises, training, research and development, movement of troops, in camera briefings;

(f) any place, any land, building or a property situated in Pakistan or anywhere in the world having physical or virtual custody or storage of protected information or an asset, the access to and use of which is prejudicial to the safety or interest of Pakistan.]

[1][(8A) **"Enemy" for** the **purposes** of this Act means "any person who is directly or indirectly, intentionally working for or engaged with the foreign power, foreign agent, Non-State Actor, organization, entity, association or group guilty of a particular act tending to show a purpose that is prejudicial to the safety and interest of Pakistan;]

(9) "sketch" includes any photograph or other mode of representing any place or thing ; [1][*]

(10) "Superintendent of Police" includes any police officer of a like or superior rank, and any person upon whom the powers of a Superintendent of Police are for the purposes of this Act conferred by the [4][appropriate Government], [8][* * *] [1][;and]

[1][(11) "unauthorized access" means without authorization any physical, electronic, or virtual access or contact, direct or indirect, to a prohibited place, an information system, application, network, data, processed or derived, or any such document or resource or prohibited place which is not available for access by general public.]

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[1]Ins. and omitted by Act LXIII of 2023, s.2.
[2]Subs. by A.O., 1961 Art. 2 and Sch., for "His Majesty" (*with effect from the 23rd March, 1956*).
[3]For such declaration see Gaz. of P., 1955, Pt. I, p. 43 and 383; and *ibid*., 1958, Pt. I, p. 1470.
[4]Subs. by A.O., 1964, Art. 2 and Sch., for "Central Government" which had been subs. by A.O., 1937, for "G.G. in C.".
[5]Subs. by A.O., 1937, for "Gazette of India".
[6]Subs. by the Official Secrets (Amdt.) Act, 1966 (8 of 1966), s. 2, for semicolon.
[7]Proviso ins. *ibid*.
[8]The words "or by any L. G." omitted by A.O., 1964, Act. 2.

[1][**3. Offence.—** (1) A person shall commit an offence under this section **If** he intentionally for any purpose prejudicial to public order, defence, safety or interests of the State,—

(a) approaches, inspects, passes over or is in the vicinity of, or enters, attacks, destroys or otherwise undermines any prohibited place; or

(b) makes any sketch, plan, model, or note which is calculated to be or might be or is intended to be, directly or indirectly, useful to an enemy;

(c) obtains, collects, records or publishes or communicates to any other person any secret official code or password, or any electronic or modern device, sketch, plan, model, article or note or other document or information, in any manner whatsoever, which is calculated to be or might be or is intended to be, directly or indirectly, useful to an enemy of the State;

(d) gains unauthorized access to document or information from within or outside of Pakistan with or without use of electronic or modern devices;

(e) causes an unmanned vehicle or device to access, enter, inspect, pass over or under, approach or be in the vicinity of a prohibited place; and

(f) disclosure or retention of any activity, information, document, related to invention, research, development, production, maintenance, operation, storage and disposal of weapons, equipment or any capability of these forces, and access to or unauthorizedd disclosure of which is prejudicial to the safety and interest of Pakistan.]

(2) On a prosecution for an offence punishable under this section with imprisonment for a term which may extend to fourteen years, it shall not be necessary to show that the accused person was guilty of any particular act tending to show a purpose prejudicial to the safety or interests of the State, and, notwithstanding that no such act is proved against him, he may be convicted if, from the circumstances of the case or his conduct or his known character as proved, it appears that his purpose was a purpose prejudicial to the safety or interests of the State ; and if any sketch, plan, model, article, note, document, or information relating to or used in any prohibited place, or relating to anything in such a [1][prohibited place, related to work of defence during peace or war by land, sea or air] place, or any secret official code or password is made, obtained, collected, [1][retained,] recorded, published or communicated by any person other than a person acting under lawful authority, and from the circumstances of the case or his conduct or his known character as proved it appears that his purpose was a purpose prejudicial to the safety or interests of the State, such sketch, plan, model, article, note, document or information shall be presumed to have been made, obtained, collected, [1][retained,] recorded, published or communicated for a purpose prejudicial to the safety or interests of the State.

[2][(3) A person guilty of an offence under this section shall be punishable, —

(a) where the offence committed is intended or calculated to be, directly or indirectly, in the interest or for the benefit of [1][enemy], or is in relation to any work of defence, [1][military] arsenal, naval, military or air force establishment or station, mine, minefield, factory, dockyard, camp, ship or aircraft

[1]Subs. and Ins. by Act LXIII of 2023, s.3.
[2]Added by the Official Secrets (Amdt.) Act, 1966 (8 of 1966), s. 3.

or otherwise in relation to the naval, military or air force affairs of Pakistan or in relation to any secret official code, [1][with death, or] with imprisonment for a term which may extend to fourteen years; and

(b) in any other case, with imprisonment for a term which may extend to three years.]

[2]**[3A. Restriction against photographs, sketches, etc., of prohibited and notified areas.** — (1) No person shall, except under the authority of a written permit granted by or on behalf of the [3][appropriate Government], make any photograph, sketch, plan, model, note or representation of any kind of any prohibited place or of any other place or area [4][any document, work of defence, by using any digital, analogue or virtual device or means], notified by the [3][appropriate Government] as a place or area [4][any document, work of defence, by using any digital, analogue or virtual device or means] with regard to which such restriction appears to that Government to be expedient in the interests of the security of Pakistan, or of any part of or object in any such place or area [4][any document, work of defence, by using any digital, analogue or virtual device or means].

(2) The [3][appropriate Government] may, by general or special order make provision for securing that no photograph, sketch, plan, model, note or representation of any kind made under the authority of a permit granted in pursuance of subsection (1) shall be published unless and until the same has been submitted to and approved by such authority or person as may be specified in the order, and may retain or destroy or otherwise dispose of anything so submitted.

(3) If any person contravenes any of the provisions of this section, he shall be punished with imprisonment for a term which may extend to three years or with fine or with both.

(4) The [5][Federal Government] may by [6]notification in the official Gazette empower any Provincial Government to exercise all or any of the powers exercisable by the [5][Federal Government] under this section, or under sub-clause (c) or sub-clause (d) of clause (8) of section 2, or under clause (10) of that section.]

[4]**[4. Communications with enemy or foreign agents to be evidence of commission of certain offence.—]** (1) In any proceedings against a person for an offence under section 3, the fact that he has been in communication with, or attempted to communicate with, a foreign agent, whether within or without [7][Pakistan], shall be relevant for the purpose of proving that he has, for a purpose prejudicial to the safety or interests of the State, obtained or attempted to obtain information which is calculated to be or might be, or is intended to be, directly or indirectly, useful to an enemy.

[4][(2) For the purpose of this section, but without prejudice to the generality of the foregoing provision,—

(a) a person may be presumed to have been in communication with enemy or a foreign agent if—

(i) **Knowingly** he has, either within or without Pakistan visited the address of a foreign agent or consorted or associated with enemy or a foreign agent; or

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[1]Ins. by the Official Secrets (Amdt.) Act, 1968 (8 of 1968), s. 2.
[2]S. 3A ins. by the Official Secrets (Amdt.) Act, 1956 (10 of 1956), s. 2.
[3]Subs. by A.O., 1964, Art. 2 and Sch., for "Central Govt.".
[4]Ins. and Subs. by Act LXIII of 2023, s.4-5
[5]Subs. by F.A.O., 1975, Art. 2 and Table, for "Central Government".
[6]For notifin. empowering the Provincial Governments, the Chief Commissioner of Karachi and the Agent to the Governor General and Chief Commissioner in Baluchistan to exercise the powers exercisable by Central Government under this section and under cls. (c) and (d) of subsection (8) of section (2) and subsection (10) of section 2, see Gaz. of P., 1955, Ext., pp 1019, 1338 and 1470.
[7]Subs. by the Central Laws (Statue Reform) Ordinance, 1960 (21 of 1960), s. 3 and 2nd Sch. (*with effect from the 14th October, 1955*), for "the Provinces and the Capital of the Federation" which had been subs. by A.O. 1949, for "British India".

(ii) he either within or without Pakistan, has in possession the name or address of, an enemy or any other information regarding, an enemy foreign agent has been obtained by him from any other person;

(b) the expression "enemy or foreign agent" includes any person who is or has been or in respect of whom it appears that there are reasonable grounds for suspecting him of being or having been employed by, an enemy either directly or indirectly, for the purpose of committing an act, either within or without Pakistan, prejudicial to the safety or interests of the State, or who has or is reasonably suspected of having, either within or without Pakistan, committed, or attempted to commit, such an act in the interests of or an enemy;

(c) any address, whether within or without Pakistan, in respect of which it appears that there are reasonable grounds for suspecting it of being an address used for the receipt of communications intended for an enemy or a foreign agent; or any address at which an enemy or a foreign agent resides, or to which he resorts for the purpose of giving or receiving communications, or at which he carries on any business, may be presumed to be the address of an enemy or a foreign agent, and communications addressed to such an address to be communications with an enemy or a foreign agent.]

5. Wrongful communication, etc., of information. — (1) If any person having in his possession or control any secret official code or password or any sketch, plan, model, article, note, document or information which relates to or is used in a prohibited place [1][**or** relates to the activities of Armed Forces during peace and war] or relates to anything in such a place, or which has been made or obtained in contravention of this Act, or which has been entrusted in confidence to him by any person holding office under [2][Government], or which he has obtained [1][or retained] or to which he has had access owing to his position as a person who holds or has held office under [2][Government], or as a person who holds or has held a contract made on behalf of [2][Government], or as a person who is or has been employed under a person who holds or has held such an office or contract—

(*a*) wilfully communicates the code or password, sketch, plan, model, article, note, document or information to any person other than a person to whom he is authorised to communicate it, or a Court of Justice or a person to whom it is, in the interests of the State, his duty to communicate it ; or

(*b*) uses the information in his possession for the benefit of any [1][enemy] or in any other manner prejudicial to the safety of the State ; or

(*c*) retains the sketch, plan, model, article, note or document in his possession or control when he has no right to retain it, or when it is contrary to his duty to retain it, or wilfully fails to comply with all directions issued by lawful authority with regard to the return or disposal thereof ; or

(d) fails to take reasonable care of, or so conducts himself as to endanger the safety of, the sketch, plan, model, article, note, document, secret official code or password or information ;

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[1]Ins. by Act LXIII of 2023, s.6.
[2]Subs. by A.O., 1961, Art. 2, for "His Majesty" (*with effect from the 23rd March, 1956*).

he shall be guilty of an offence under this section.

(2) If any person voluntarily receives any secret official code or password or any sketch, plan, model, article, note, document or information knowing or having reasonable ground to believe, at the time when he receives it, that the code, password, sketch, plan, model, article, note, document or information is communicated in contravention of this Act, he shall be guilty of an offence under this section.

[1][(3) A person guilty of an offence under this section shall be punishable, —

(*a*) where the offence committed is a contravention of clause (a) of sub-section (1) and intended or calculated to be, directly or indirectly, in the interest or for the benefit of a foreign power, or is in relation to any work of defence, arsenal, naval, military or air force establishment or station, mine, mine-field, factory, dockyard, camp, ship or aircraft or otherwise in relation to the naval, military or air force affairs of Pakistan or in relation to any secret official code, [2][with death, or] with imprisonment for a term which may extend to fourteen years ; and

(*b*) in any other case, with imprisonment for a term which may extend to two years, or with fine, or with both.]

6. Unauthorized use of uniforms; falsification of reports, forgery, personation and false documents. —(1) If any person for the purpose of gaining admission or of assisting any other person to gain admission to a prohibited place or for any other purpose prejudicial to the safety of the State—

(*a*) uses or wears, without lawful authority, any naval, military, air force, police or other official uniform, or any uniform so nearly resembling the same as to be calculated to deceive, or falsely represents himself to be a person who is or has been entitled to use or wear any such uniform ; or

(*b*) orally, or in writing in any declaration or application, or in any document signed by him or on his behalf, knowingly makes or connives at the making of any false statement or any omission ; or

(*c*) forges, alters, or tampers with any passport or any naval, military, airforce, police, or official pass, permit, certificate, licence, or other document of a similar character (hereinafter in this section referred to as an official document) or knowingly uses or has in his possession any such forged, altered, or irregular official document ; or

(*d*) personates, or falsely represents himself to be, a person holding, or in the employment of a person holding office under [3][Government], or to be or not to be a person to whom an official document or secret official code or password has been duly issued or communicated, or with intent to obtain an official document, secret official code or password, whether for himself or any other person, knowingly makes any false statement ; or

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[1]Subs. by the Official Secrets (Amdt.) Act, 1966 (8 of 1966)., s. 4. for subsections (3) and (4).
[2]Ins. by the Official Secrets (Amdt.) Act, 1968 (8 of 1968), s. 3.
[3]Subs. by A.O., 1961, Art, 2, for "His Majesty" (*with effect from the 3rd March, 1956*).

(*e*) uses, or has in his possession or under his control, without the authority of the department of the Government or the authority concerned, any die, seal or stamp of or belonging to, or used, made or provided by, any department of the Government, or by any diplomatic, naval, military or air force authority appointed by or acting under the authority of [1][Government], or any die, seal or stamp so nearly resembling any such die, seal or stamp as to be calculated to deceive, or counterfeits any such die, seal or stamp, or knowingly uses, or has in his possession or under his control, any such counterfeited die, seal or stamp,

he shall be guilty of an offence under this section.

(2) If any person for any purpose prejudicial to the safety of the State —

(*a*) retains any official document, whether or not completed or issued for use, when he has no right to retain it, or when it is contrary to his duty to retain it, or wilfully fails to comply with any directions issued by any department of the Government or any person authorised by such department with regard to the return or disposal thereof ; or

(*b*) allows any other person to have possession of any official document issued for his use alone, or communicates any secret official code or password so issued, or, without, lawful authority or excuse, has in his possession any official document or secret official code or password issued for the use of some person other than himself, or, on obtaining possession of any official document by finding or otherwise, wilfully fails to restore it to the person or authority by whom or for whose use it was issued, or to a police officer ; or

(*c*) without lawful authority or excuse, manufactures or sells, or has in his possession for sale, any such die, seal or stamp as aforesaid ;

he shall be guilty of an offence under this section.

(3) A person guilty of an offence under this section shall be punishable with imprisonment for a term which may extend to two years, or with fine, or with both.

(4) The provisions of sub-section (2) of section 3 shall apply, for the purpose of proving a purpose prejudicial to the safety of the State, to any prosecution for an offence under this section relating to the naval, military or air force affairs of [1][Government], or to any secret official code in like manner as they apply, for the purpose of proving a purpose prejudicial to the safety or interests of the State, to prosecutions for offences punishable under that section with imprisonment for a term which may extend to fourteen years.

[2]**[6A. Unauthorized disclosure of identities, etc**.— (1) A person shall commit an offence who intentionally acting in any manner prejudicial to public order, safety, interests or defence of Pakistan, or any part thereof, discloses in such a manner that exposes the identity of such undisclosed persons in any manners the identity of the members of the intelligence agencies, or the informants or sources thereof.

[1]Subs. by A.O., 1961, Art. 2, for "His Majesty" (*with effect from the 23rd March, 1956*).
[2]Ins. by Act LXIII of 2023, s.7.

(2) Whoever commits an offence under sub-section (1) shall be liable to punishment of imprisonment for a term which may extend to three years, or with fine which may extend to one million rupees, or with both.

(3) Any person who abets, incites, conspires or attempts to commit the offence under sub-section (1) shall be liable to the same punishment provided for under sub-section (2).]

7. Interfering with officers of the Police or members of the armed forces of Pakistan. —(1) No person in the vicinity of any prohibited place shall obstruct, knowingly mislead or otherwise interfere with or impede, any police officer, or any member of [1][the armed forces of Pakistan] engaged on guard, sentry, patrol, or other similar duty in relation to the prohibited place.

(2) If any person acts in contravention of the provisions of this section, he shall be punishable with imprisonment which may extend to two years, or with fine, or with both.

8. Duty of giving information as to commission of offences. —(1) It shall be the duty of every person to give on demand to a Superintendent of Police, or other police officer not below the rank of Inspector, empowered by an Inspector-General [2][* * *] in this behalf, or to any member of [1][the armed forces of Pakistan] engaged on guard, sentry, patrol or other similar duty, any information in his power relating to an offence or suspected offence under section 3 or under section 3 read with section 9 and, if so required, and upon tender of his reasonable expenses, to attend at such reasonable time and place as may be specified for the purpose of furnishing such information.

(2) If any person fails to give any such information or to attend as aforesaid, he shall be punishable with imprisonment which may extend to two years, or with fine, or with both.

[3]**[9. Attempts, incitements, etc.—** Any person who incites to commit, conspires to commit, attempts to commit, aids or abets the commission of an offence under this Act shall be punishable with the same punishment, and be liable to be proceeded against in the same manner as if he had committed such offence.]

10. Penalty for harbouring spies. —(1) If any person knowingly harbours any person whom he knows or has reasonable grounds for supposing to be a person who is about to commit or who has committed an offence under section 3 or under section 3 read with section 9 or knowingly permits to meet or assemble in any premises in his occupation or under his control any such persons, he shall be guilty of an offence under this section.

(2) It shall be the duty of every person having harboured any such person as aforesaid or permitted to meet or assemble in any premises in his occupation or under his control any such persons as aforesaid, to give on demand to a Superintendent of Police or other police officer not below the rank of Inspector empowered by an Inspector-General [2][* * *] in this behalf, any information in his power relating to any such person or persons, and if any person fails to give any such information, he shall be guilty of an offence under this section.

(3) A person guilty of an offence under this section shall be punishable with imprisonment for a term which may extend to one year, or with fine, or with both.

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[1]Subs. by A.O., 1961, Art. 2 and Sch. for "His Majesty's forces" (*with effect from the 23rd March, 1956*).
[2]The words "or Commissioner of Police" omitted by A.O., 1949.
[3]Ins. by Act LXIII of 2023, s.8.

11. Search Warrants. —(1) If a [1][* * *] , Magistrate of the first class [2][* * *] is satisfied, by information on oath that there is reasonable ground for suspecting that an offence under this Act has been or is about to be committed, he may grant a search-warrant authorising any police officer named therein, not being below the rank of an officer in charge of a police station, to enter at any time any premises or place named in the warrant, if necessary, by force, and to search the premises or place and every person found therein, and to seize any sketch, plan, model, article, note or document, or anything of a like nature, or anything which is evidence of an offence under this Act having been or being about to be committed which he may find on the premises or place or any such person, and with regard to or in connection with which he has reasonable ground for suspecting that an offence under this Act has been or is about to be committed.

(2) Where it appears to a police officer, not being below the rank of Superintendent, that the case is one of great emergency, and that in the interests of the State immediate action is necessary, he may by a written order under his hand give to any police officer the like authority as may be given by the warrant of a Magistrate under this section.

(3) Where action has been taken by a police officer under sub-section (2) he shall, as soon as may be, report such action, [1][* * *] to the [2][Magistrate of the first class having jurisdiction].

12. Power to arrest. — [3][(1)] Notwithstanding anything in the Code of Criminal Procedure, 1898 (V of 1898),—

(a) [4][* * * * * * *]

[5][(*b*) an offence under this Act, other than an offence punishable with imprisonment for a term which may extend to [3][ten] years, shall be a cognizable and bailable offence ; and].

[6][(*c*) any member of the armed forces of Pakistan [3][or an intelligence agency] may, without an order from a Magistrate and without a warrant, arrest, in or in the vicinity of a prohibited place, any person who has been concerned in an offence under section 3, or under section 3 read with section 9, or under clause (a) or clause (b) of sub-section (1) of section 5, or under clause (a) of sub-section (1) of section 6, or against whom a reasonable complaint has been made or credible information has been received, or a reasonable suspicion exists of his having been so concerned, and shall without unnecessary delay take or send the person arrested before a Magistrate having jurisdiction in the case or before an officer in charge of a police-station, and thereupon the provisions of the said Code [3][shall be] applicable in respect of a person who, having been arrested without warrant, has been taken or sent before a Magistrate or before an officer in charge of a police-station shall apply to him.]

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[1]The words "Presidency Magistrate" omitted by A.O., 1949.
[2]Omitted by Ord. 68 of 2002, s. 2.
[3]Re-numbered, Subs. and Ins. by Act LXIII of 2023, s.9-10.
[4]Clause (a) omitted by the Official Secrets (Amdt.) Act, 1968 (8 of 1968), s. 5.
[5]Subs. *ibid.*, for clause (b), which was previously amended by Act 13 of 1952, s. 2 to read as above.
[6]Subs. by the Official Secrets (Amdt.) Act, 1967 (15 of 1967), s. 2, for clause (c).

[1][(2) **The** material seized during arrest of an accused by an **arresting** officer shall be handed over by him to the investigating officer or the head of the Joint Investigating Team as the case may be **and the same shall be admissible in evidence.**]

[1][12A. Investigation etc.— (1) An investigating officer under this Act shall be an officer of the Federal **Investigation** Agency not below the rank of BPS-17 or equivalent. The said Officer shall be designated by the Director General, Federal **Investigation** Agency for the purposes of investigation. If the Director General, Federal **Investigation** Agency deems necessary, he may constitute a Joint Investigation Team, **convened** by such officer and consisting of such other officers of intelligence agencies as he may appoint. The Joint Investigation Team may co-opt any additional person from any Federal or Provincial institution or department as it deems appropriate for investigation:

Provided that the offence relating to civil espionage shall be investigated by Federal Investigation Agency or Joint Investigation Team.

(2) The investigating officer or the JIT, as the case may be, shall complete the investigation in respect of cases triable by the Court established or designated under section 13 within thirty working days. The report under section 173 of the Code shall be signed and forwarded by the investigating officer appointed under sub-section (1) through public prosecutor to the court.]

13. Restriction on trial of offences. — [2][(1) No Court [3][inferior to] that of a Magistrate of the first class specially empowered in this behalf by the appropriate Government shall try any offence under this Act.]

(2) If any person under trial before a Magistrate for an offence under this Act at any time before a charge is framed claims to be tried by the Court of Session, the Magistrate shall, if he does not discharge the accused, commit the case for trial by that Court, notwithstanding that it is not a case exclusively triable by that Court.

(3) No Court shall take cognizance of any offence under this Act unless upon complaint made by order of, or under authority from, the [4][appropriate Government] [5][* * *] or some officer empowered by the [4][appropriate Government] in this behalf:

Provided that a person charged with such an offence may be arrested, or a warrant for his arrest may be issued and executed, and any such person may be remanded in custody or on bail, notwithstanding that such complaint has not been made, but no further or other proceedings shall be taken until such complaint has been made.

(4) For the purposes of the trial of a person for an offence under this Act, the offence may be deemed to have been committed either at the place in which the same actually was committed or at any place in [6][Pakistan] in which the offender may be found.

[7][* * * * * * *]

[1]Added and Ins. by Act LXIII of 2023, s.9-10
[2]Subs. by the Federal Laws (Revision and Declaration) Ordinance, 1981 (27 of 1981), s. 3 and Sch., II, for subsection (1), which was previously amended by various enactments.
[3]Subs. by Ord. 68 of 2002, s. 3.
[4]Subs. by A.O., 1937, for "G.G. in C.".
[5]The words "the L.G." rep., ibid.
[6]Subs. by the Central Laws (Statue Reform) Ordinance, 1960 (21 of 1960), s. 3 and 2nd Sch. (*with effect from the 14th October, 1955*), for "the Provinces and the Capital of the Federation" which had been subs. by A.O., 1949, for "British India".
[7]Subsection (5) which was ins. by A.O., 1937, omitted by A.O., 1964, Art. 2 and Sch.

[1][(6) The [2][appropriate Government] may, if it thinks fit, by general or special order direct that the procedure for the trial of an offence [3][under section 3, or under section 3 read with section 9, or under clause (a) or clause (b) of sub-section (1) of section 5, or] under clause (a) of sub-section (l) of section 6 shall be that prescribed for offences under the Enemy Agents Ordinance, 1943 (Ord. I of 1943), or under the Pakistan Criminal Law, Amendment Act, [4][1958 (XL of 1958)].

14. Exclusion of public from proceedings. —In addition and without prejudice to any powers which a Court may possess to order the exclusion of the public from any proceedings if, in the course of proceedings before a Court against any person for an offence under this Act or the proceedings on appeal, or in the course of the trial of a person under this Act, application is made by the prosecution, on the ground that the publication of any evidence to be given or of any statement to be made in the course of the proceedings would be prejudicial to the safety of the State, that all or any portion of the public shall be excluded during any part of the hearing, the Court may make an order to that effect, but the passing of sentence shall in any case take place in public.

15. Offences by companies, etc. — Where the person guilty of an offence under this Act is a company or corporation, every director and officer of the company or corporation with whose knowledge and consent the offence was committed shall be guilty of the like offence.

[5]**[16. Power to make rules.—** The Federal Government may make rules to carry out the **purposes** and **objects** of this Act.]

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[1]Subsection (6) ins by the Official Secrets (Amdt.) Act, 1952 (13 of 1952), s. 3.
[2]Subs. by A.O., 1964, Art. 2 and Sch., for "Central Government".
[3]Subs. by the Official Secrets (Amdt.) Act, 1967 (15 of 1967), s. 3, for "mentioned in clause (a) of section 12 or an offence".
[4]Subs. *ibid*., for "1948".
[5]Ins. by Act LXIII of 2023, s.11.

THE OFFICIAL TRUSTEES ACT, 1913

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THE OFFICIAL TRUSTEES ACT, 1913

[1]ACT No. II of 1913

[27th February, 1913]

An Act to consolidate and amend the Law constituting the office of Official Trustee.

WHEREAS it is expedient to consolidate and amend the law constituting the office of the Official Trustee; It is hereby enacted as follows:—

PART I
PRELIMINARY

1.Short title, extent and commencement. (1) This Act may be called the Official Trustees Act, 1913.

[2][(2) It extends to the whole of Pakistan.]

(3) It shall come into force on such date [3] as the [4][Federal Government], by notification in the [3][official Gazette], may direct.

2. Interpretation Clause. In this Act, unless there is anything repugnant in the subject or context,—

[5][(1) "Government" or "the Government" means in relation to any Province, the Provincial Government:[6] * * *:]

[7] * * * * * *

[8] * * * * * *

(4) "Prescribed" means prescribed by rules under this Act:

[8] * * * * * *

3. Extent of jurisdiction of High Courts. For the purposes of this Act the High Court [9]* * * * shall have jurisdiction throughout the [10][Province.]

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[1]For Statement of Objects and Reasons, *see* Gazette of India, 1912, Pt. V, p. 202 ; for Report of Select Committee, *see ibid.*, 1913, Pt. V, p. 19; and for Proceedings in Council, *see ibid.*, 1912, Pt. VI, p. 699 and *ibid.*, 1913, Pt. VI, pp. 15 and 28.
This Act has been extended to the Leased Areas of Baluchistan, *see* G. G. O. 3 of 1950 ; and applied in the Federated Areas of Baluchistan, see Gazette of India, 1937, Pt. I, p. 1499.
[2]Subs. by the Central Laws (Statute Reform) Ordinance, 1960 (21 of 1960), s. 3 and 2nd Sch. (*with effect from the 14th October, 1955*), for the original sub-section (2), as amended by A. O., 1937, A. O., 1949, and the Federal Laws (Revision and Declaration) Act, 1951 (26 of 1951), s. 8
[3]The 1st April, 1914, see Gen. R. & O.
[4]Subs. by F. A. O., 1975, Art. 2 and Table, for "Central Government", which was previously amended by A. O., 1937, for "G. G. in C."
[5]Subs. by A. O. 1937 for "Gazette of India".
[6]Subs. *ibid.*, for the original definition.
[7]Certain words and clauses (2) and (8) of section 2 omitted by the Federal Laws (Revision and Declaration) Ordinance, 1981 (27 of 1981), s. 3 and Sch.. II.
[8]Clauses (3), (5), (6) and (7) defining "Official Gazette," "Presidency of Bengal," "Presidency of Bombay," "Presidency of Madras," "Presidency and Revenues of the Government" were rep. by A. O., 1937.
[9]The words "at a Presidency-town" rep., *ibid*
[10]Subs. by Ordinance 27 of 1981, s. 2 and Sch.II, for "Division", which was previously amended by A.O., 1937, for "Presidency".

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PART II
THE OFFICE OF OFFICTAL TRUSTEE

[1][**4.Official Trustees.** (1) The Provincial Government for each Province shall appoint an Official Trustee.

(2) No person shall be appointed to the office of Official Trustee who is not an advocate practising in a High Court or a person already in the service of the State.]

5. Appointment and powers of Deputy Official Trustees. The Government may appoint a Deputy or Deputies to assist the Official Trustee; and any Deputy so appointed shall, subject to the control of the Government and the general or special orders of the Official Trustee, be competent to discharge any of the duties and exercise any of the powers of the Official Trustee, and, when discharging such duties or exercising such powers, shall have the same privileges and be subject to the same liabilities as the Official Trustee.

6. Official Trustee to be corporation sole to have perpetual succession and official seal and to sue and be sued in his corporate name. The Official Trustee shall be a corporation sole by the name of the Official Trustee of the [2][Province] for which he is appointed and, as such Official Trustee, shall have perpetual succession and an official seal, and may sue and be sued in his corporate name.

PART III
RIGHTS, POWERS, DUTIES AND LIABILITIES OF OFFICIAL TRUSTEE

7.General powers and duties of official Trustee.—(1) Subject to, and in accordance with, the provisions of this Act and the rules made thereunder, the Official Trustee may, if he thinks fit,—

(a) act as an ordinary trustee.

(b) be appointed trustee by a Court of competent jurisdiction.

(2) Save as hereinafter expressly provided, the Official Trustee shall have the same powers, duties and liabilities and be entitled to the same rights and privileges and be subject to the same control and orders of the Court as any other trustee acting in the same capacity.

(3) The Official Trustee may decline, either absolutely or except on such conditions as he may impose, to accept any trust.

(4) The Official Trustee shall not accept any trust under any composition or scheme of arrangement for the benefit of creditors, nor of any estate known or believed by him to be insolvent.

(5) The Official Trustee shall not, save as provided by any rules made under this Act, accept any trust for a religious purpose or any trust which involves the management or carrying on of any business.

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[1]Subs. ibid., for section 4, which was previously amended by various enactments.
[2]Subs. by the Federal Laws (Revision and Declaration) Ordinance, 1981 (27 of 1981), s. 3 and Sch., II, for "Division", which was previously amended by A. O., 1937, for "Presidency".

(6) The Official Trustee shall not administer the estate of a deceased person, unless he is expressly appointed sole executor of, and sole trustee under, the will of such person.

(7) The Official Trustee shall always be sole trustee, and it shall not be lawful to appoint the Official Trustee to be trustee along with any other person.

8. Official Trustee may with consent be appointed trustee of settlement by grantor.—(1) Any person intending to create a trust other than a trust which the Official Trustee is prohibited from accepting under the provisions of this Act may by the instrument creating the trust and with the consent of the Official Trustee, appoint him by that name or any other sufficient description to be the trustee of the property subject to such trust:

Provided that the consent of the Official Trustee shall be recited in the said instrument and that such instrument shall be duly executed by the Official Trustee.

(2) Upon such appointment the property subject to the trust shall vest in such Official Trustee, and shall be held by him upon the trusts declared in such instrument.

9. Appointment of Official Trustee as trustee by will. When the Official Trustee has by that name or any other sufficient description been appointed trustee under any will, the executor of the will of [1][the testator] or the administrator of his estate shall, after obtaining probate or letters of administration, notify in the prescribed manner the contents of such will to such Official Trustee; and, if such Official Trustee consents to accept the trust, then upon the execution by such executor or administrator of an instrument in writing transferring the property subject to the trust to the Official Trustee, such property shall vest in such Official Trustee, and shall be held by him upon the trusts expressed in the said will:

Provided that the consent of the Official Trustee shall be recited in the said instrument and that such instrument shall be duly executed by the Official Trustee.

10. Power of High Court to appoint Official Trustee to be trustee of property.—(1) If any property is subject to a trust other than a trust which the Official Trustee is prohibited from accepting under the provisions of this Act, and there is no trustee within the local limits of the ordinary or extraordinary original civil jurisdiction of the High Court willing or capable to act in the trust, the High Court may on application make an order for the appointment of the Official Trustee by that name with his consent to be the trustee of such property.

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(2) Upon such order such property shall vest in the Official Trustee and shall be held by him upon the same trusts as the same was held previously to such order, and the previous trustee or trustees (if any) shall be exempt from liability as trustees of such property save in respect of acts done before the date of such order.

(3) Nothing in this section shall be deemed to affect the provisions of the [2]* * * * the Trusts Act, 1882 (II of 1882).

11. Power of private trustees to appoint official Trustee to be trustee of property.—(1) If any property is subject to a trust other than a trust which the Official Trustee is prohibited from accepting under the provisions of this Act, and all the trustees or the surviving or continuing trustee or trustees and all persons beneficially interested in the trust are desirous that the Official Trustee shall be appointed in the room of such trustee or trustees, it shall be lawful for such trustee or trustees, by an instrument in writing to appoint the Official Trustee by that name or any other

[1]Subs. by the Repealing and Amending Act, 1919 (18 of 1919), s.2 and Sch..I, for "such testator".
[2]The words "the trustees and Mortgages' Powers Act, 1866, or" omitted by the Federal Laws (Revision and Declaration) Ordinance, 1981 (27 of 1981), s. 3 and Sch., II.

sufficient description with his consent to be the trustee of such property:

Provided that the consent of the Official trustee shall be recited in the said instrument and that such instrument shall be duly executed by him.

(2) Upon such appointment such property shall vest in the official Trustee and shall be held by him upon the same trusts as the same was held previously to such appointment, and the previous trustee or trustees shall be exempt from all liability as trustees of such. property save in respect of acts done before the date of such appointment:

12. Executor or administrator may pay to Official Trustee legacy, share, etc., of infant or lunatic.—(1) If any infant or lunatic is entitled to any gift, legacy or share of the assets of a deceased person, it shall be lawful for the person by whom such gift is made, or executor or administrator by whom such legacy or share is payable or transferable or any trustee of such gift, legacy or share, to transfer the same by an instrument in writing to the Official Trustee by that name or any other sufficient description with his consent.

Provided that the consent of the Official Trustee shall be recited in the said instrument and that such instrument shall be duly executed by the Official Trustee.

(2) Any money or property transferred to the Official Trustee under this section shall vest in him and shall be subject to the same provisions as are contained in this Act as to other property vested in such Official Trustee.

13. Official Trustee not to be required to give bond or security.—(1) No Official Trustee shall be required by any Court to enter into any bond or security on his appointment in any capacity under this Act.

(2) No Official Trustee or Deputy Official Trustee shall be required to verify otherwise than by his signature any petition presented by him under the provisions of this Act, and if the facts stated in any such petition are not within the Official Trustee's personal knowledge, the petition may be verified and subscribed by any person competent to make the verification.

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14. Entry of Official Trustee not to constitute notice of a trust. The entry of the Official Trustee by that name in the books of a company shall not constitute notice of a trust; and a company shall not be entitled to object to enter the name of the Official Trustee on its register by reason only that the Official Trustee is a corporation; and, in dealing with property, the fact that the person dealt with is the Official Trustee shall not of itself constitute notice of a trust.

15. Liability of Government.—(1) The revenues of the Government [1] * * * shall be liable to make good all sums required to discharge any liability which the Official Trustee, if he were a private trustee, would be personally liable to discharge, except when the liability is one to which neither the Official Trustee nor any of his officers has in any way contributed or which neither he nor any of his officers could by the exercise of reasonable diligence have averted, and in either of those cases the Official Trustee shall not, nor shall the revenues, [of the Government] [2]*** be subject to any liability.

[1]The words "of India" rep. by the Official Trustees and Administrator General's Act Amdt. Act, 1922 (21 of 1922), s. 3.
[2]The words "of the Govt. or" were ins. by the Official Trustees and Administrator General's Acts Amdt. Act, 1922 (21 of 1922), s. 3.

(2) Nothing in sub-section (1) shall be deemed to render the revenues [1][of the Government] [2]* * * or any Official Trustee appointed under this Act liable for anything done by or under the authority of any Official Trustee before the commencement of this Act.

16. Notice of suit not required in certain cases. Nothing in section 80 of the Code of Civil Procedure, 1908, shall apply to any suit against the Official Trustee in which no relief is claimed against him personally (V of 1908).

PART IV
FEES

17. Fees.—(1) There shall be charged in respect of the duties of the Official Trustee such fees, whether by way of percentage or otherwise, as the Government may prescribe:

Provided that in the case of a trust accepted by the Official Trustee before the commencement of this Act the fees prescribed under this section shall not exceed the fees leviable in respect of such trust under the Official Trustees Act, 1864[3], as subsequently amended (XVII of 1864).

(2) The fees under this section may be at different rates for different properties or classes of properties or for different duties, and shall, so far as may be, be arranged so as to produce an amount sufficient to discharge the salaries and all other expenses incidental to the working of this Act (including such sum ash Government may determine to be required to insure the revenues of the Government [4]* * against loss under this Act).

18. Disposal of fees.— (1) All expenses which might be retained or paid out of the trust fund, if the Official Trustee were a private trustee, shall be so retained or paid, and any fees leviable under this Act shall be retained or paid in like manner as and in addition to such expenses.

(2) The Official Trustee shall transfer and pay to such authority and in such manner and at such times as the Government may prescribe, all fees received by him under this Act, and the same shall be carried to the account and credit of the Government [5]* *.

PART V
AUDIT

THE PAKISTAN CODE

19. Auditors to be appointed to examine Official Trustee's accounts, etc., and to report to Government. (1) The accounts of the Official Trustee shall be audited at least once annually and at any other time if the Government so direct by the prescribed person and in the prescribed manner.

(2) The auditor shall examine such accounts, and shall forward to Government a statement thereof in the prescribed form, together with a report thereon and a certificate signed by him showing—

(a) whether the accounts contain a full and true account of everything which ought to be contained therein, and

(b) whether the books, which by any rules made under this Act are directed to be kept by the Official Trustee, have been duly and regularly kept, and

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[1]The words "of the Govt. or" were ins. by the Official Trustees and Administrator General's Acts Amdt. Act, 1922 (21 of 1922), s. 3.
[2]The words "or of the G. of I" rep. by A. O. , 1937.
[3]Rep. by the Official Trustees Act, 1913 (2 of 1913).
[4]The words "of India" rep. by Act 21 of 1922, s. 4.
[5]The words "of India" rep by the Official Trustees and Administrator Generals Acts Amdt. Act, 1922 (21 of 1922), s. 4.

(c) whether the trust funds and securities have been duly kept and invested and deposited in the manner prescribed by this Act or any rules made thereunder;

or (as the case may be) that such accounts are deficient, or that the Official Trustee has failed to comply with this Act or the rules made thereunder, in such respects as may be specified in such certificate.

20. Auditor's power to summon witnesses and to call for documents.—(1) Every auditor shall have the powers of a Civil Court under the Code of Civil Procedure, 1908.(V of 1908).

(a) to summon any person whose presence he may think necessary to attend him from time to time, and

(b) to examine any person, on oath to be by him administered, and

(c) to issue a commission for the examination on interrogatories or otherwise of any person, and

(d) to summon any person to produce any document or thing, the production of which appears to be necessary for the purposes of such audit or examination.

(2) Any person who, when summoned, refuses, or without reasonable cause neglects to attend or to produce any document or thing or attends and refuses to be sworn, or to be examined shall be deemed to have committed an offence within the meaning of, and punishable under, section 188 of the Pakistan Penal Code, and the auditor shall report every case of such refusal or neglect to Government. (XLV of 1860).

21. Costs of audit, etc., how paid. The cost of and incidental to every such audit and examination shall be determined in accordance with rules made by the Government and shall be defrayed in the prescribed manner.

22. Right of beneficiary to inspection and copies of accounts. Every beneficiary under a trust which is being administered by the Official Trustee shall, subject to such conditions and restrictions as may be prescribed, be entitled, at all reasonable times, to inspect the accounts of such trust, and the report and certificate of the auditor and, on payment of the prescribed fee, to be furnished with copies thereof or extracts therefrom, and nothing in the Trusts Act, 1882, shall affect the provisions of this section. (II of 1882).

PART VI
MISCELLANEOUS

23. Transfer to Government of accumulations in the hands of Official Trustee. When any moneys payable to a beneficiary under a trust have been in the hands of any Official Trustee for a period of twelve years or upwards whether before or after the commencement of this Act in consequence of the Official Trustee having been unable to trace the person entitled to receive the same, such moneys shall be transferred in the prescribed manner to the account and credit of the Government [1]* *.

Provided that no such moneys shall be so transferred if any suit or proceeding is pending in respect thereof in any Court.

[1]Subs. by A. O., 1937, for "Secretary of State for India in Council".

24. Mode of proceeding by claimant to recover money so transferred.— (1) If any claim is made to any moneys so transferred [and such claim is established to the satisfaction of the prescribed authority, the Government [1] * * shall pay to the claimant the amount in respect of which the claim is established.

(2) If such claim is not established to the satisfaction of the prescribed authority, the claimant may, without prejudice to his right to take any other proceedings for the recovery of such moneys, apply by petition to the High Court against the [1][Government] and, after taking such evidence as it thinks fit, such Court shall make such order on the petition in regard to the payment of such moneys as it thinks fit, and such order shall be binding on all parties to the proceedings:

[2]* * * * * *

(3) The Court may further direct by whom all or any part of the costs of such proceedings shall be paid.

25. Power of High Court to make orders in respect of property vested in Official Trustee. The High Court may make such orders as it thinks fit respecting any trust property vested in the Official Trustee, or the interest or produce thereof.

26. Who may apply for order under Act. Any order under this Act may be made, on the application of any person beneficially interested in any trust property or of any trustee thereof.

27. Order of Court to have effect of a decree. Any order made by a High Court under this Act shall have the same effect as a decree.

28. General powers of administration. The Official Trustee may, in addition to and not in derogation of any other powers of expenditure lawfully exercisable by him, incur expenditure—

(a) on such acts as may be necessary for the proper care and management of any property belonging to any trust administered by him; and

(b) with the sanction of the High Court on such religious, charitable and other objects and on such improvements as may be reasonable and proper in the case of such property.

29. Transfer of trust property by Official Trustee to original trustee or any other trustee. (1) Nothing in this Act shall be deemed to prevent the transfer by the Official Trustee of any property vested in him to—

(a) the original trustee (if any); or

(b) any other lawfully appointed trustee; or

(c) any other person if the Court so directs.

(2) Upon such transfer such property shall vest in such trustee, and shall be held by him upon the same trusts as those upon which it was held prior to such transfer, and the Official Trustee shall be exempt from all liability as trustee of such property except in respect of acts done before such transfer:

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[1]The words "of India" rep. by the Official Trustees and Administrator Generals Acts Amdt. Act, 1922 (21 of 1922), s. 4.
[2]Proviso which was ins. by A. O., 1937, omitted by A. O., 1949, Sch.

Provided that, in the case of any transfer under this section, the Official Trustee shall be entitled to retain out of the property any fees leviable in accordance with the provisions of this Act.

30. Rules.—(1) The Government shall make rules[1] for carrying into effect the objects of this Act and for regulating the proceedings of the Official Trustee in the discharge of his duties.

(2) In particular and without prejudice to the generality of the foregoing power, such rules may provide for—

(a) the accounts to be kept by the official Trustee and the audit and inspection thereof;

(b) the safe custody, and deposit of the funds and securities which come into the hands of the Official Trustee;

(c) the remittance of sums of money in the hands of the official Trustee in cases in which such remittances are required;

(d) the statements, schedules and other documents to be submitted by the Official Trustee to Government or to any other authority and the publication of such statements, schedules or other documents;

(e) the realization of the cost of preparing any such statements, schedules or other documents;

[2]* * * *

(f) subject to the provisions of this Act, the fees to be paid thereunder and the collection and accounting for any fees so fixed;

(g) the manner in which and the person by whom the costs of and incidental to any audit under the provisions of this Act are to be determined and defrayed;

(h) the manner in which summons issued under the provisions of section 20 are to be served and the payment of the expenses of any persons summoned are examined under the provisions of this Act and of any expenditure incidental to such examination;

(i) the acceptance by the Official Trustee of trusts for religious purposes and trusts which involve the management or carrying on of business; and

(j) any matter in this Act directed to be prescribed.

(3) Rules made under the provisions of this section shall be published in the official Gazette, and shall thereupon have effect as if enacted in this Act.

31. [*Division of Presidency into Provinces.*], *Rep. by A. O., 1937.*

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[1]For rules made by the G. G. in C. for other provinces, see local R. & O.

[2]Cl. (ee), which was ins by the Repealing and Amending, Act, 1914 (10 of 1914), was rep. by the Destruction of Records. Act, 1917 (5 of 1917) s. 6 and Sch.

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32. Saving of Provisions of Registration Act, 1908. Nothing contained in this Act shall be deemed to affect the provisions of the Registration Act, 1908. (XVI of 1908).

[1]**32A.** [*Saving.*] Omitted by the Federal Laws (Revision and Declaration) Ordinance, 1981 (XXVII of 1981), s. 3 and Second Schedule.

33. [*Repeals.*] Rep. by the Repealing Act, 1927 (XII of 1927), s. 2 and Schedule.

THE SCHEDULE.—[ENACTMENTS REPEALED.] *Rep. By the Repealing Act, 1927 (XII of 1927), s.2 and Schedule.*

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Date: 11-09-2024

[1]This section was previously amended by A. O,. 1937

THE OIL SEEDS COMMITTEE ACT, 1946

CONTENTS

1. Short title and extent
2. Definitions
3. Imposition of oilseeds cess
4. [Omitted.]
5. [Omitted.]
6. [Omitted.]
7. [Omitted.]
8. [Omitted.]
9. [Omitted.]
10. Delivery of monthly returns
11. Collection of duty of excise
12. Finality of assessment and recovery of unpaid duty of excise
13. Power to inspect mills and take copies of records and accounts
14. Information acquired to be confidential
15. [Omitted.]
16. [Omitted.]
17. Power of the Federal Government to make rules

17 A. Penalty for contravention of rules

18. [Omitted.]
19. Publication of rules and regulations

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THE OIL SEEDS COMMITTEE ACT, 1946

[1]ACT No. IX OF1946

[18th April, 1946]

[2][An Act to provide for the levy and collection of cesses on oils extracted from oilseeds and oilseeds exported from Pakistan].

[2][Whereas it is expedient to provide for the levy and collection of cesses on oils extracted from oilseeds and oilseeds exported from Pakistan ;]

It is hereby enacted as follows:—

1. Short title and extent.—[2][(1) This Act may be called the Oilseeds Cesses Act, 1946].

[3][(2) It extends to the whole of Pakistan.]

2. Definitions.—In this Act, unless there is anything repugnant in the sub ject or context,-

[4][* * * * * * *]

[4][(a)] "Collector" means the officer appointed by the [5][Federal Government] to perform in any specified area the duties of a Collector under the provisions of this Act and the rules made thereunder, and includes any officer sub ordinate to that officer whom he may by order in writing authorise to perform his duties under those provisions;

[6][* * * * * * *]

[4][* * * * * * *]

[4][(c)] "grower" means an agriculturist who grows oilseeds, with or without the aid of hired labour;

[4][(d)] "mill" means any place in which oilseeds are crushed with the aid of power, which is a factory as defined in section 2 of the Factories Act, 1934; (XXV of 1934).

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[1]The Act has been extended to___
(a) the Baluchistan States Union, see the Baluchistan States Union (Federal Laws) (Extension) Order, 1953 (G. G. O. 4 of 1953), as amended;
(b) the Khairpur State, see the Khairpur State (Federal Laws) (Exten sion) Order, 1953 (G. G. O. 5 of 1953), as amended; and
(c) the State of Bahawalpur, see the Bahawalpur (Extension of Federal Laws) Order, 1953 (G. G. O. 11 of 1953), as amended.
The Act has been and shall be deemed to have been brought into force in Gwadur (with effect from the 8th September, 1958), by the Gwadur (Appli cation of Central Laws)
Ordinance, 1960 (XXXVII of 1960), s. 2.

[2]Subs. by the Acts relating to Cesses on Agricultural Products (Amdt.) Ordinance, 1982 (X of 1982), s. 2 and Schedule for the long title, which was previously amended by Act 19
of 1960, s. 2.

[3]Subs. by the Central Laws (Statute Reform) Ordinance, 1960 (XXI of 1960), s. 3 and 2nd Sch. (with effect from the 14th October, 1955), for the original sub-section (2), as amended by A. O., 1949.

[4]Cls. (a) and (d) omitted, and clauses (b), (c), (e) and (f) relettered as clauses (a) (b), (c), and (d) respectively, by Act IX of 1950, s. 5.

[5]Subs. by F. A. O. 1975, Art. 2 and Table for "Central Government".

[6]Clause (b) omitted by Ord. X of 1982, s. 2 and Sch., which was previously amended by various enfiactments.

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[1][(e)] "oilseeds" does not include coconuts;

[1][(f)] "prescribed" means prescribed by rules made under this Act (XXV of 1934).

3. Imposition of oilseeds cess.—(1) There shall be levied and collected on and after the date of the commencement of this Act as cesses for the purposes of this Act,-

(*a*) on all oils extracted from oilseeds crushed in any mill in [2][Pakistan], whether the oilseeds are produced in or imported from outside [2][Pakistan], a duty of excise at the rate of one anna per maund, and

(*b*) on all oilseeds exported out of [2][Pakistan], to a destination outside [3][Pakistan], a duty of customs at the rate of two annas per maund:

Provided that the [4][Federal Government] may from time to time [5][* * *] ,fix by notification in the official Gazette [6][different] rate at which the duty of excise or duty of customs shall be levied and collected:

Provided further that no such duty of customs shall be levied on any oilseeds exported under a contract for export entered into before the aforesaid date.

[7][* * * * * * *]

[8][* * * * * * *]

4 to 8. [9][*Omitted*.]

9. [10][Omitted.]

10. Delivery of monthly returns.—(1) The owner of every mill shall furnish to the Collector, on or before the 7th day of each month, a return stating the total amount of oils extracted in the mill during the preceding month, together with such further information in regard thereto as may be prescribed:

Provided that no return shall be required in regard to oils extracted before the commencement of this Act.

(2) Every such return shall be made in such form and shall be verified in such manner as may be prescribed.

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[1]Cls. (g) and (h) relettered as clauses (e) and (f) respectively by the Oilseeds Committee (Amdt.) Act, 1950 (IX of 1950), s. 3.
[2]Subs. by the Central Laws (Statute Reform) Ordinance, 1960 (XXI of 1960), s. 3 and 2nd Sch. (with effect from the 14th October, 1955), for "the Provinces and the Capital of the Federation" which had been subs. by A. O., 1949, for "British India".
[3]Subs. by Act IX, of 1950, s. 6, for "India".
[4]Subs. by F. A. O., 1975, Art. 2 and Table, for "Central Government".
[5]The words "and after consulting the Committee" omitted by Act IX of 1950, s. 6.
[6]Subs. ibid., for "lesser".
[7]Subsection (2) omitted by the Acts relating to Cesses on Agricultural Products (Amdt.) Ordinance, 1982 (X of 1982), s. 2 and Schedule.
[8]Subsection (3) omitted by the Federal Laws (Revision and Declaration) Ordinance, 1981 (XXVII of 1981), s. 3 and ScheduleII.
[9]Omitted by the Oilseeds Committee (Amdt.) Act, 1950 (XIX of 1950), s. 7.
[10]Omitted by the Acts relating to Cesses on Agricultural Products (Amdt) Ordinance, 1982 (X of 1982), s. 2 and Schedule.

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11. Collection of duty of excise.—(1) On receiving any return made under section 10, the Collector shall assess the amount of the duty of excise payable under section 3 in respect of the period to which the return relates, and if the amount has not already been paid, shall cause a notice to be served upon the owner of the mill requiring him to make payment of the amount assessed within thirty days of the service of the notice.

(2) if the owner of any mill fails to furnish in due time the return referred to in sub-section (1) of section 10 or furnishes a return which the Collector has reason to believe is incorrect or defective, the Collector shall assess the amount, if any payable by him in such manner as may be prescribed, and the provisions of sub-section (1) shall thereupon apply as if such assessment had been made on the basis of a return furnished by the owner:

Provided that, in the case of a return which he has reason to believe is incorrect, or defective, the collector shall not assess the duty of excise at an amount higher than that at which it is assessable on the basis of the return without giving to the owner a reasonable opportunity of proving the correctness and completeness of the return.

(3) A notice under sub-section (1) may be served on the owner of a mill either by post or by delivering it or tendering it to the owner or his agent at the mill.

12. Finality of assessment and recovery of unpaid duty of excise.—(1) Any owner of a mill who is aggrieved by an assess ment made under section 11 may, within three months of service of the notice referred to in sub-section (1) of that section, apply to the District Judge, [1][* * *] for the cancellation or modification of the assessment and, on such application, the said Judge may cancel or modify the assessment and order the refund to such owner of the whole or part, as the case may be, of any amount paid thereunder.

(2) The decision under sub-section (1) of the District Judge [2][* * *] shall be final.

(3) Any sum recoverable under section 11 may be recovered as an arrear of land revenue.

13. Power to inspect mills and take copies of records and accounts.—(1) The Collector or any officer empowered by general or special order of the [3][Federal Government] in this behalf shall have free access at all reasonable times during working hours to any mill or to any part of any mill.

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(2) The Collector or any such officer may, at any time during working hours, with or without notice to the owner, examine the purchase, sale and stock records and accounts of any mill and take copies of or extracts from all or any of the said records or accounts for the purpose of testing the accuracy of any return or of informing himself as to the particulars regarding which information is required for the purposes of this Act or any rules made thereunder:

Provided that nothing in this section shall be deemed to authorise the examination of any description or formulae of any trade process.

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[1]The words and comma "or in a Presidencytown,
to the Chief Judge of the Small Cause Court" omitted by the Oilseeds Committee (Amdt.) Act, 1950 (IX of 1950), s. 9.
[2]The words and commas "or the Chief Judge of the Small Cause Court, as the case may be," omitted, ibid.
[3]Subs. by F. A. O., 1975, Art. 2 and Table, for "Central Government".

14. Information acquired to be confidential.—(1) All such copies and extracts and all information acquired by a Collector or any other officer from an inspection of any mill or warehouse or from any return submitted under this Act shall be treated as confidential.

(2) If the Collector or any such officer discloses to any person other than a superior officer any such information as aforesaid without the previous sanction of the [1][Federal Govern ment], he shall be punishable with imprisonment which may ex tend to six months and shall also be liable to fine:

Provided that nothing in this section shall apply to the dis closure of any such information for the purposes of a prosecution in respect of the making of a false return under this Act.

15 to 16. [2][Omitted.]

17. Power of the Federal Government to make rules.—(1) The [1][Federal Government] may, after previous pub lication, make rules for the purpose of carrying into effect the provisions of this

Act.

[3][* * * * * * *]

[4][17A. Penalty for contravention of rules. Rules made under section 17 may provide that a breach of any of them shall be punishable with fine not exceed ing one thousand rupees.]

18. [5][Omitted.]

19. Publication of rules and regulations.—All rules made under section 17 [6][* * *] shall be published in the [7][official Gazette].

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Date:-22.04.2024

[1]Subs. by F. A. O. 1975, Art. 2 and Table, for "Central Government".
[2]Omitted by the Oilseeds Committee (Amdt.) Act, 1950 (XIX of 1950) s.10.]
[3]Sub-section (2) omitted by the Oilseeds Committee (Amdt.) Act, 1950 (19 of 1950), s. 11.
[4]Section 17A ins. by the Coconut and Oilseeds Committees Acts (Amdt.) Ordinance, 1962 (25 of 1962), s. 3.
[5]Omitted by the Oilseeds Committee (Amdt.) Act, 1950, (XIX of 1950), s.12.
[6]The words "and all regulations made under section 18" omitted by Act 19 of 1950, s. 13.
[7]Subs. ibid., for "Gazette of India".

THE PAKISTAN ANIMAL QUARANTINE (IMPORT AND EXPORT OF ANIMALS AND ANIMAL PRODUCTS) ORDINANCE, 1979

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4. Operation of notification under section 3.
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THE PAKISTAN ANIMAL QUARANTINE (IMPORT AND EXPORT OF ANIMALS AND ANIMAL PRODUCTS) ORDINANCE, 1979.

ORDINANCE No. XLIX OF 1979

[17th September, 1979]

An Ordinance to regulate the import, export and quarantine of animals and animal products

WHEREAS it is expedient to regulate the import, export and quarantine of animals and animal products in order to prevent the introduction or spread of diseases and to provide for matters connected therewith or incidental thereto;

AND WHEREAS the President is satisfied that circumstances exist which render it necessary to take immediate action;

NOW, THEREFORE, in pursuance of the Proclamation of the fifth day of July, 1977, read with the Laws (Continuance in Force) Order, 1977 (*C. M. L. A. Order No. 1 of 1977*), and in exercise of all powers enabling him in that behalf, the President is pleased to make and promulgate the following Ordinance:—

1. Short title, extent and commencement.—(1) This Ordinance may be called the Pakistan Animal Quarantine (Import and Export of Animals and Animal Products) Ordinance, 1979.

(2) It extends to the whole of Pakistan.

(3) It shall come into force at once.

2. Definitions. In this Ordinance, unless there is anything repugnant in the subject or context,—

(a) "animal" includes all kinds of—

(i) birds;

(ii) cold-blooded creatures;

(iii) creatures by means of which any disease may be carried or transmitted;

(iv) crustacean;

(v) fish;

(vi) four-footed beasts which are not mammals;

(vii) mammals, except man; and

(viii) reptiles;

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(b) "animal product" means anything originating or made, whether in whole or in part, from an animal or from a carcass and includes blood, bones, casings, dairy products, eggs, fat, feedstuffs of animal origin, fish products, hair, hides, horns, hooves, hormones and their biological preparations, offals, seed materials for research purposes, semen, skins, tendons, viscera, wool and any other substance of animal origin which may be specified by the Federal Government by notification in the official Gazette;

(c) "carcase" means the carcass of an animal and includes any part or portion thereof;

(d) "diseased" means suffering from or carrying any infectious or contagious disease or such disease as may be declared by the Federal Government from time to time by notification in the official Gazette;

(e) "fodder" means hay, roughage, concentrate or any other substance used for feeding animals;

(f) "health certificate" means a certificate issued by a Quarantine Officer in respect of the health status of animals and animal products;

(g) "import" and "export" respectively means bringing into or taking out of Pakistan by sea, land or air;

(h) "litter" means any substance used as bedding for animals or for holding or containing animals in the process of transportation;

(i) "prescribed" means prescribed by rules;

(j) "points of entry" and "points of exit" mean the Islamabad Airport, Karachi Airport, Karachi Harbour, Lahore Airport, Peshawar Airport, Quetta Airport, the Chaman, Kuh-i-tuftan, Turkham, Khokhrapar and Lahore land routes and include any other authorised land, sea or air route declared by the Federal Government from time to time by notification in the official Gazette;

(k) "quarantine" means a site or premises provided or approved by the Federal Government for the isolation and examination of animals and animal products intended for import or export;

(l) "Quarantine Officer" means any veterinarian duly authorised by the Federal Government to exercise and perform the powers and functions of Quarantine Officer under this Ordinance; and

(m) "rules" means rules made under this Ordinance.

3. Power to regulate and prohibit import and export of animals and animal products.— (1) The Federal Government may, by notification in the official Gazette, prohibit, restrict or otherwise regulate, subject to such conditions as it may think fit to impose, the import or export of any animal or class of animals or animal products likely to introduce diseases to any other animal, animal product or man.

(2) A notification under this section may specify any animal or class of animals or animal products either generally or in any particular manner, whether with reference to the country of origin, or the route by which imported or otherwise.

(3) Any condition imposed under this section may require—

(a) the examination, inspection and detention in quarantine by the Quarantine Officer of the animals or animal products brought in or to be taken out ;

(b) the obtaining of health certificate ;

(c) the treatment or detention, confiscation and destruction of diseased animals or animal products ; and

(d) that any animal or class of animals or animal products shall not be imported or exported except by a specified agency of the Federal Government.

4. Operation of notification under section 3. A notification under section 3 shall operate as if it had been issued under section 16 of the Customs Act, 1969 (IV of 1969), and the officers of customs shall have the same powers in respect of any animal or animal product in respect of which such a notification has been issued as they have for the time being in respect of any article the importation or exportation of which is prohibited or restricted under the said Act, and all the provisions of that Act shall have effect accordingly.

5. Control of animals and animal products in quarantine. All animals and animal products detained in quarantine shall be under the control of the Quarantine Officer and shall be dealt with in the prescribed manner.

6. Powers, duties and functions of Quarantine Officer. Subject to the provisions of this Ordinance, the Quarantine Officer shall have the power to—

(a) inspect animals and animal products ;

(b) detain in and release from quarantine and determine the length of the quarantine period ;

(c) order the carrying out of the prescribed tests ;

(d) issue health certificate ;

(e) order destruction of such animals or animal products as may, after such examination and tests as may be prescribed, be found to be diseased ;

(f) order disposal of clothing, dung, fittings, fodder, harness or litter that may have been in contact with, or pertaining to, diseased animals and animal products ;

(g) require proper disinfection of any premises or aircraft or railway wagon or carriage or vessel or vehicle of any description used for carrying animals and animal products ;

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(h) approve conditions to be observed in export quarantine ;

(i) prohibit export of animals considered unfit to travel ;

(j) prohibit voyages of vessels carrying animals during adverse weather;

(k) inspect and issue certificates in respect of animals and animal products in transit ;

(l) deport any animal or animal product, at the expenses of the person importing such animal or animal product, the import of which is prohibited by the Federal Government ; and

(m) carry out such functions as are necessary for the successful operation and management of quarantine stations.

7. Cognizance of offence. No Court shall take cognizance of any offence under this Ordinance, except upon complaint in writing made by an officer authorised by the Federal Government in this behalf.

8. Penalties.—(1) Whoever contravenes or attempts to contravene any of the provisions of this Ordinance or the rules or any notification issued thereunder, shall, without prejudice to any penalty to which he may be liable under the provisions of the Customs Act, 1969 (IV of 1969), as applied by section 4, be punishable with imprisonment for a term which may extend to three years, or with fine which may extend to five thousand rupees, or with both.

(2) Any import of animals or animal products not accompanied by a valid import licence and the prescribed health certificate shall, if found free from infectious or contagious disease, be disposed of by the Federal Government in such manner as may be prescribed.

9. Appointment of officers and members of staff. The Federal Government may appoint such number of officers and members of staff as it may deem fit for carrying out the purposes of this Ordinance.

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10. Revision.—(1) Any person aggrieved by an order passed by the Quarantine Officer under this Ordinance may apply for revision to the Federal Government within thirty days from the date of issue of such order, and the decision of the Federal Government shall be final [1][:]

[1][Provided that no order on such revision shall be passed unless the applicant has been given an opportunity of being heard].

(2) The Federal Government may, on the receipt of an application under sub-section (1), stay the operation of the order of the Quarantine Officer till the disposal of the application.

11. Indemnity. No suit, prosecution or other legal proceedings shall lie against the Federal Government or the Quarantine Officer or any other person for anything in good faith done or intended to be done under this Ordinance, or the rules.

[1]Subs. and ins. by the Pakistan Animal Quarantine (Import and Export of Animals and Animal Products) (Amdt.) Act, 1985 (5 of 1985), s. 2.

12. Exemption. The Federal Government may, by notification in the official Gazette, exempt any animal or animal product from the operation of all or any of the provisions of this Ordinance, subject to such conditions, if any, as may be specified in the notification.

13. Delegation of powers. The Federal Government may, by notification in the official Gazette, delegate to a Provincial Government, or to any officer or authority of such Government, any of its powers under this Ordinance.

14. Power to make rules.— (1) The Federal Government may, by notification in the official Gazette, make rules[1] for carrying out the purposes of the Ordinance.

(2) In particular and without prejudice to the generality of the foregoing power, such rules may provide for all or any of the following matters, namely:—

(a) the conditions to be observed before, during and after importation of animals or animal products ;

(b) the procedure for the landing, inspection, quarantine, seizure, detention and treatment of animals and animal products ;

(c) methods of testing for identification of diseases ;

(d) the forms and fees for licences to import or export animals or animal products, health certificates, certificates of freedom from disease and certificates of vaccination, destruction, disinfection, onward movement and approval of export quarantine ;

(e) the limits of the points of entry and points of exit ;

(f) the quarantine charges and the recovery of costs of keeping animals and animal products therein ;

(g) the method of cleaning and disinfection ;

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(h) the manner of identification of imported animals ; and

(i) any other matter which is to be or may be prescribed.

15. [*Repeal*.] *Omitted by the Federal Laws (Revision and Declaration) Ordinance, 1981 (XXVII of 1981), s. 3 and II sch.*

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[1]For such rules see S.R.O. 1007(I)/80, dated 20-8-1980, Gaz. of P., 1980, Extra., Pt. II, pp. 1766-79.

THE PAKISTAN FISH INSPECTION AND QUALITY CONTROL ACT, 1997

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THE PAKISTAN FISH INSPECTION AND QUALITY CONTROL ACT, 1997

ACT NO. XXXV OF 1997

An Act to regulate quality and promote export of fish and fishery products from Pakistan

WHEREAS it is expedient to regulate quality and promote export of fish and fishery products andto prevent export of substandard quality of fish and fishery products and for matters connected therewith and ancillary thereto;

It is hereby enacted as follows:—

1. Short title, extent and commencement.—(1) This Act may be called the Pakistan Fish Inspection and Quality Control Act, 1997.

(2) It extends to the whole of Pakistan.

(3) It shall come into force at once.

2. Definitions. In this Act, unless there is anything repugnant in the subject or context—

(a) "certificate of quality and origin" means a certificate issued by the Director-General or an officer authorized by him certifying that the fish is wholesome and fit for human consumption or for any other purpose specified therein;

(b) "Director-General" means Director-General, Marine Fisheries Department;,

(c) "export" means export of fish and fishery products from Pakistan by any means to any place outside Pakistan;

(d) "fish" means all aquatic animals of inland, marine and brackish water origin, alive or dead, and includes prawns, shrimps, lobsters, crabs, oysters, clams, scallops, turtles, in salted, unsalted, semi-dried, dried, frozen, preserved, cured, or canned form and any other aquatic animal or animal product which the Director General, Marine Fisheries Department, may by an order declare to be fish for the purposes of this Act ;

(e) "fish exporter" means a person engaged in carrying on the business of export of fish and fishery products and registered with the registration authority;

(f) "fish inspection" means inspection of fish and fishery products by a Fishery Officer for the purpose of assessing the quality of the fish by inspecting sanitary and hygienic conditions and the physical, chemical and bacteriologicalexamination of fish and fishery products;

(g) "fish processing" means cleaning, filleting, icing, packing, canning, freezing, pickling, cooking, drying, semi-drying, salting, chilling, smoking, extraction

of oil, conversion into fish-meal or preparing fish in any other manner for marketing;

(h) "Fishery Officer" means an Officer duly authorized by the Federal Government to exercise the powers and perform the functions for carrying out the provisions of this Act;

(i) "Fishery product" means anything originating, produced or made, whether in whole or in part from a fish;

(j) "Inspection Committee" means a committee constituted under section 5;

(k) "prescribed" means prescribed by rules made under this Act;

(l) "processing plant" means an establishment, place or premises where fishes are processed;

(m) "quality" in respect of fish means a fish or fishery product conforming to the established standards prescribed under this Act;

(n) "quality control" means quality assurance of fish and fishery products conforming to standards prescribed under this Act or the rules made thereunder;

(o) "registration" means registration of a fish processing plant under this Act and "registered" shall be construed accordingly;

(p) "registration authority" means a Fishery Officer authorised by the Director-General, by an order in writing, to register fish processing plants under this Act or the rules made thereunder;

(q) "rules" means rules made under this Act; and

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(r) "unwholesome" means fish or fishery products that have an offensive or objectionable odour, flavour, colour, texture or substance associated with spoilage.

3. Registration of fish processing plants, etc.—(1) No fish processing plant shall process fish andfish products unless it is registered with the registration authority.

(2) The registration authority may, on receipt of an application from a fish processing plant, on payment of such fees and conditions as may be prescribed, issue a certificate of registration.

4. Registration of fish exporters.—(1) No person shall export fish or fishery products unless he isregistered with the registration authority.

(2) The registration authority may, on receipt of an application from a fish processing plant, on payment of such fees and conditions as may be prescribed, issue a certificate of registration.

5. Constitution and functions of Inspection Committee.—(1) The Federal Government shall constitute an Inspection Committee consisting of one representative each of the Export Promotion Bureau, the Marine Fisheries Department and a broad based trade association of fish processing plants.

(2) The functions of the Committee shall be—

(a) to conduct a survey, or surveys, of fish processing plants with a view to determining theirfitness for registration;

(b) to hear appeals against orders, decisions, action or omissions of Fishery Officers;

(c) to make recommendations to the Federal Government for the efficient functioning of theindustry, the removal of malpractices therein and the enhancement of exports; and

(d) to discharge such other functions as may be conferred on it under the rules.

6. Inspection of fish processing plant.—(1) A Fishery Officer may inspect any fish processing plant to ensure the observance of the provisions of this Act and the rules made thereunder.

(2) A Fishery Officer may, without any order from a Magistrate and without a warrant, arrest any person operating a fish processing plant without a valid registration granted under section 3.

7. Fish Export.—No person shall process and export or market for export or have in his possessionfor export or deal in, any fish or fish products intended for human consumption which are decomposed, unwholesome or contaminated with pathogenic organisms.

8. Handling of fish and fishery products.—No Person who is suffering from leprosy, tuberculoses,polio or such other contagious diseases as the Government may, by notification in the official Gazette, specify, shall handle, carry or process fish or work in a fish processing and packing plant or establishment.

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9. Quality evaluation of fish and fishery products.—All fish and fishery products found to be of sub-standard quality shall be detained by the Fishery Officer and shall be disposed of in such manner as may be prescribed.

10. Powers, duties and functions of Fishery Officer.—Subject to the provisions of this Act, the Fishery Officer shall exercise the following powers:-

(a) to carry out inspections of plants where fish and fishery products are processed for export;

(b) to carry out inspection of fish and fishery products for export;

(c) to register fish processing plants and exporters carrying on fish export business and issue registration certificates on the recommendation of the

Inspection Committee;

(d) to issue certificates of quality and origin for fish and fishery products when the quality is found to be satisfactory upon inspection ;

(e) to detain fish and fishery products when found to be unwholesome and unfit for human consumption upon inspection; and

(f) to carry on any other functions assigned by the Director-General which may be necessary for the successful regulation of quality and promotion of export of fish and fishery products.

11. Cognizance of offence.—No Court shall take Cognizance of any offence under this Act, exceptupon a complaint in writing made by an Officer authorized by the Federal Government in this behalf.

12. Penalties.—(1) Whoever contravenes, or attempts to contravene, any provision of this Act or the rules shall, without prejudice to any other penalty to which he may be liable, be punished-

(i) on a first conviction with fine which may extend to fifty thousand rupees;

(ii) on a second conviction to a fine which may extend to one hundred thousand rupees;

(iii) on a third conviction to a fine which may extend to two hundred thousand rupees; and

(iv) for any subsequent conviction with imprisonment for a term which may extend to one year or with fine which may extend to three hundred thousand rupees.

(2) No Court inferior to that of a Magistrate of the first class shall try an offence punishable underthis Act and notwithstanding anything contained in the Code of Criminal Procedure, 1898 (Act V of 1898), it shall be lawful for the Magistrate trying an offence under this Act to pass any sentence authorized by this Act.

(3) Any export of fish or fishery products which is not accompanied by a valid certificate of quality and origin, shall be detained, confiscated or disposed of by the Marine Fisheries Department, in such manner as may be prescribed.

(4) Where the person contravening any provision of this Act or the rules is a company or other body corporate, every director, manager, or other officer or agent thereof involved in the contravention shall be deemed to be guilty of such contravention.

(5) Whoever attempts to contravene, or abets the contravention of, any provision of this Act or the rules shall be deemed to have contravene the provisions of this Act or the rules.

13. Power to search.—Any Fishery Officer may search any fish processing plant or fish

consignment intended for export which he has reason to believe to be not fresh, decomposed, unwholesome or contaminated.

14. Seizure and disposal.—(1) If any Fishery Officer has reason to believe that any fish or fishery product intended for human consumption is decomposed, unwholesome or contaminated with pathogenic organisms, he may seize or detain the same and shall, at the time of seizure or detention, inform, in writing, the person from whose possession the seizure or detention is made, of the grounds for the said action.

(2) The seized or detained products shall be dealt with in accordance with the decision of the court before which the owner of the processing plant or fish exporter is prosecuted.

15. Revision.—(1) Any person aggrieved by an order passed by the Inspection Committee may apply for revision to the Federal Government within thirty days from the date of issue of such order and the decision of the Federal Government thereon shall be final.

(2) The Federal Government may, on receipt of an application under sub-section (1) above, stay the operation of the order of the Committee till the disposal of the application.

16. Indemnity.—No suit, prosecution or legal proceedings shall lie against the Federal Government, Marine Fisheries Department, a Fishery Officer or any other person for anything in good faith done or intended to be done under this Act or the Rules.

17. Delegation of powers.—The Federal Government may, by notification in the official Gazette, delegate to the Inspection Committee or the Fishery Officer or any officer or authority, its powers under this Act.

18. Power to make rules.—(1) The Federal Government (Marine Fisheries Department) may, by notification in the official Gazette, after consultation with the Inspection Committee make rules for carrying out the purposes of this Act.

(2) In particular and without prejudice to the generality of the foregoing power, such rules may provide for all or any of the following matters namely: —

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(a) the procedure of applying for registration;

(b) the conditions of registration;

(c) the fee to be charged for registration;

(d) the fee to be charged for a certificate of quality and origin for export of fish and fishery products;

(e) to hear appeals or revisions;

(f) the procedure for inspection of fish and fishery products;

(g) prescribing the samples procedure and the manner in which samples of fish and fishery products are selected for laboratory analysis;

(h) prescribing quality standards for fish and fishery products;

(i) regulation of handling, processing, packaging, storage and marketing of fish and fishery products;

(j) determining disposal procedure for fish and fishery products which do not conform with the prescribed requirements or are otherwise considered unwholesome or unsuitable for human consumption;

(k) the forms of registration and certificates of quality and origin;

(l) validation period for registered fish processing plants, fish exporters and the certificates ofquality and origin; and

(m) any other matter which is to be or may be prescribed in furtherance of the provisions of this Act.

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THE PAKISTAN HOTELS AND RESTAURANTS ACT, 1976

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THE PAKISTAN HOTELS AND RESTAURANTS ACT, 1976

ACT No. LXXXI OF 1976

[*1st December, 1976*]

An Act to provide measures for controlling and regulating the standards of service and amenities for tourists in hotels and restaurants

WHEREAS it is expedient to provide measures for controlling and regulating the standards of service and amenities for tourists in hotels and restaurants and for matters ancillary thereto or connected therewith;

AND WHEREAS the Provincial Assemblies of the Punjab, Sind and North-West Frontier Province, and Parliament, exercising the powers of the Provincial Assembly of Baluchistan under Article 234 of the Constitution of the Islamic Republic of Pakistan, have passed resolutions under Article 144 of the Constitution to the effect that Parliament may by law regulate the standards of service and amenities for tourists in hotels and restaurants;

It is hereby enacted as follows:—

1. Short title, extent, application and commencement.— (1) This Act may be called the Pakistan Hotels and Restaurants Act, 1976.

(2) It extends to the whole of Pakistan.

(3) It shall apply to all the hotels and restaurants in Pakistan.

(4) It shall come into force at once.

2. Definitions.— In this Act, unless there is anything repugnant in the subject or context,—

(a) "apprentice" means any person who has contracted with a hotel or a restaurant to perform the stipulated apprenticeship in such hotel or restaurant ;

(b) "Committee" means the committee set up by the Federal Government under section 4;

(c) "Controller" means a Controller appointed under section 3 and includes a Deputy Controller and an Assistant Controller and such other person as may be authorised by the Federal Government by notification in the official Gazette to perform all or any of the functions of the Controller;

(d) "customer" means a person availing facilities offered in a restaurant on monetary consideration ;

(e) "fair rates" means the rates fixed under section 10 and includes revised rates ;

(f) "guest" means a person who is in possession or enjoyment of accommodation provided to him in a hotel on monetary consideration ;

(g) "hotel" means a lodging, or boarding and lodging, establishment with a minimum of ten lettable bed rooms, provided for tourists on monetary consideration, which conforms to any of the prescribed minimum criteria, but does not include—

(i) a home or hostel which is exclusively or mainly used for the aged or invalid persons or students and is run by or under the control of a charitable or educational institution ; or

(ii) any rest house, hostel or circuit house exclusively meant for visiting Government officials or officials of other organisations, though run on a commercial basis ;

(h) "manager" means the person incharge of the management of a hotel or a restaurant;

(i) "owner" means the person who holds title to a hotel or restaurant and is entitled to receive the whole or any part of the earnings received from a guest or customer on account of accommodation or services provided in the hotel or restaurant, and includes a keeper or assignee for the time being discharging the responsibility of the owner in respect of such hotel or restaurant;

(j) "prescribed" means prescribed by rules made under this Act ;

(k) "public rooms" means rooms in a hotel which are meant for the common use of all guests ;

(l) "restaurant" means a public eating house providing standard and variety of cuisines on monetary consideration to tourists which conforms to the minimum prescribed criteria ;

(m) "service" means any service provided in a hotel or a restaurant ; and

(n) "tourist" means a person, whether a citizen of Pakistan or not, who stays over-night or more as a guest in a hotel at a place other than his normal place of residence.

3. Appointment of Controller, Deputy Controllers and Assistant Controllers.—(1) The Federal Government may, by notification in the official Gazette, appoint a person to be the Controller for the purposes of this Act and such number of Deputy Controllers and Assistant Controllers as may be necessary for the performance and discharge of such functions and duties as may be assigned to them by or under this Act and may, by general or special order, provide for the distribution or allocation of work to be performed by them.

(2) Subject to the provisions of this Act, the Controller shall perform his functions and discharge his duties under the general supervision and control of the Federal Government.

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(3) Subject to the provisions of this Act and of such orders as may from time to time be made by the Federal Government in this behalf, the Deputy Controllers and Assistant Controllers shall perform their functions and discharge their duties under the general supervision and control of the Controller.

4. Setting up of Advisory Committee. As soon as may be after the commencement of this Act, the Federal Government may set up a Hotels and Restaurants Committee, consisting of as many members as the Federal Government may determine, to aid and advise the Federal Government in relation to such matters relating to the administration of this Act as may be prescribed.

5. Registration of hotels and restaurants.—(1) The owner of every hotel and restaurant shall, within a period of two months from the commencement of this Act, or from the opening of the hotel or restaurant, or from the date on which this Act becomes applicable to such hotel or restaurant, whichever is later, apply to the Controller for registration of his hotel or restaurant and for determination of fair rates in relation thereto and, in the case of a hotel, also for its classification, on payment of such fee as may be prescribed.

(2) No hotel or restaurant shall be registered, unless—

(a) it conforms to the prescribed standard of health, hygiene and comfort, provided that the Controller may allow provisional registration subject to such conditions as he may deem fit and, for good and sufficient reasons, modify, alter or withdraw any such condition at any time ;

(b) it furnishes at its expense certificates of medical fitness from a Medical Officer of the civil hospital of the area in respect of its staff in such form as may be prescribed ;

(c) its building is structurally safe and adequately protected against fire or an accident arising out of electricity or gas and safety of the tourists is ensured.

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(3) The Controller, or an officer authorised by him in this behalf, or a member of the committee may, at any time, inspect the premises of a hotel or restaurant, call for any information, plan or data in respect of any matter concerning such hotel or restaurant or, at the cost of the owner, carry out, or require the owner to carry out, test of any articles or appliances or foodstuff.

6. Classification of hotels.—Subject to such general or particular directions as the Federal Government may issue, the Controller shall, according to the prescribed minimum criteria, by notification in the official Gazette, classify hotels, according to the star classification system, as—

(a) one star hotels, being hotels which conform to the prescribed minimum criteria of hotels of that class, but do not conform to the prescribed minimum criteria of a higher star class hotel ;

(b) two star hotels, being hotels which conform to the prescribed minimum criteria of hotels of that class, but do not conform to the prescribed minimum criteria of a higher star class hotel ;

(c) three star hotels, being hotels which conform to the prescribed minimum criteria of hotels of that class, but do not conform to the prescribed minimum criteria of a higher star class hotel;

(d) four star hotels, being hotels which conform to the prescribed minimum criteria of hotels of that class, but do not conform to the prescribed minimum criteria of a higher star class hotel ; and

(e) five star hotels, being hotels which conform to the prescribed minimum criteria of hotels of that class.

7. Issue of licence.— (1) Every owner shall, after registration of his hotel or restaurant under section 5, obtain a licence from the Controller on payment of such fee as may be prescribed.

(2) No owner shall carry on his business or, in the case of a hotel, use the classification star sign, without first getting the hotel or restaurant registered and obtaining a licence under this Act.

(3) A licence granted under this section shall, unless sooner suspended or cancelled, remain in force for a period of one year from the date of issue and may thereafter be renewed for a period of one year at a time on payment of the prescribed fee:

Provided that if an application for renewal of a licence is made before the expiry of the period of its validity, the licence shall continue in force until orders are passed on such application.

8. Refusal and cancellation of registration and licence.— (1) The Controller may refuse to register a hotel or restaurant if it does not conform to the minimum prescribed criteria.

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(2) The registration and licence of a hotel or restaurant may be cancelled or suspended, or the star classification of a hotel may be lowered, if—

(a) its owner is declared insolvent by a competent court;

(b) its business is wholly or partly discontinued or suspended without the approval of the Controller, except where such suspension or discontinuance is for the purposes of making repairs, improvements, renovations or expansion or, in the case of seasonal business, is for the period of the slack season, and the fact of such suspension or discontinuance in each case has been duly reported to the Controller in advance;

(c) its owner or any person acting on his behalf contravenes any of the provisions of this Act or the rules or orders made thereunder ;

(d) it ceases to conform to the requirements of registration under section 5 or, in the case of a hotel, to the prescribed minimum criteria for the class assigned to it ; or

(e) its owner fails to enter the names and other particulars of guests in the prescribed register.

9. Obligation of the transferee, etc., of a hotel and restaurant. Where a hotel or restaurant registered and licensed under this Act is transferred or assigned to, or devolves upon, any person, it shall be incumbent upon that person to report, within one month of its taking effect, to the Controller the fact of such transfer, assignment or devolution and obtain a fresh licence under this Act.

10. Controller to fix fair rates.—(1) The Controller may fix fair rates to be charged for board, lodging and other service provided in a hotel at such amount as, having regard to the prescribed principles governing fair rates and the classification of hotels, he deems just.

(2) The Controller may either fix a consolidated rate for lodging, board and service, or for lodging and service only or fair rates separately for—

(a) lodging with reference to the nature of the accommodation and the number of guests to be accommodated ;

(b) board, partial or full ; and

(c) other service.

(3) Fair rates may be fixed separately for daily and monthly guests.

Explanation.— A guest who agrees to reserve accommodation, or for whom accommodation is reserved, for a period of one month or more shall be deemed to be a monthly guest, provided he actually stays for one month or more or has actually paid in advance for one month ; and where the reservation is not for any specified period or is for a period less than a month, the guest shall be deemed to be a daily guest.

(4) The Controller may fix fair rates to be charged for board and other service provided in a restaurant at such amount, as having regard to the prescribed principles governing fair rates and to all the circumstances, he deems just.

(5) The Controller may from time to time revise the fair rates fixed by him under this section.

(6) An order fixing or revising fair rates shall take effect on the first day of such month following the month in which the order is made as may be specified therein.

(7) Until such time as fair rates are fixed in relation to any hotel or restaurant under this section, the rate, if any, charged by such hotel or restaurant, immediately before this Act becomes

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applicable to it, for equivalent lodging, board or service to that provided, shall be deemed to be the fair rates fixed under this section.

11. Controller to fix limit of persons to be accommodated in any room.—(1) The Controller may fix the maximum number of guests to be accommodated in each room or other unit of accommodation in a hotel.

(2) No room for which an order has been made under sub-section (1) shall be used to accommodate any number of guests in excess of the number specified in the order, except with the previous permission of the Controller in writing.

(3) The Controller may from time to time revise any order made by him under sub- section (1) so as to increase or reduce the number of guests specified in such order.

12. Rules of establishment of hotel and restaurant. Every owner shall prepare the rules of the establishment in respect of his hotel or restaurant conforming with the provisions of this Act and the rules made thereunder and get them approved by the Controller.

13. Fair rates, etc., to be displayed.—(1) The fair rates, the maximum number of guests that may be accommodated in a room or unit of accommodation in a hotel and the rules of the establishment shall be displayed in a conspicuous manner in the office and in the public rooms, if any, of every hotel.

(2) The fair rates and the rules of the establishment shall be displayed in a conspicuous manner in the office and the hall and rooms of every restaurant.

14. Reservation of accommodation at the instance of Controller.— (1) Subject to such directions as may be given in this behalf by the Federal Government, the Controller may by order direct the owner or the manager of a hotel to reserve in the hotel such accommodation as may be specified in the order.

(2) Subject to any direction by the Federal Government in this behalf, the Controller may allot the accommodation reserved under sub-section (1) to any person and such person shall thereupon be deemed to be a guest at the hotel in relation to the accommodation allotted to him.

(3) Where any accommodation is reserved under sub-section (1), the owner or the manager of the hotel shall make the accommodation so reserved, or such portion of it as the Controller may direct, available to the Controller for occupation by the person to whom it has been allotted, at the expiry of forty-eight hours from the service upon him of a notice in writing in this behalf by the Controller.

(4) Nothing in this section shall prevent the owner or the manager of the hotel from letting any accommodation reserved under sub-section (1) to a guest other than the person to whom such accommodation is allotted by the Controller, upon the condition that if and when a notice is received from the Controller under sub-section (3) such guest will vacate the accommodation within forty-eight hours of the receipt of such notice.

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15. Charge in excess of fair rates prohibited.—(1) Notwithstanding any agreement to the contrary, no owner shall charge a guest or customer any amount in excess of the fair rates.

(2) Any agreement for the payment of any charges in excess of the fair rates shall be void in respect of such excess, and shall be construed as if it were an agreement for payment of the fair rates.

(3) Any sum paid by a guest in excess of the fair rates shall be recoverable at any time within a period of six months from the date of payment from the owner or the manager of the hotel to whom it was paid, or from the legal representative of either of these persons, and without prejudice to any other mode of recovery which may be open to him, the guest may deduct such amount from any sum payable by him for his accommodation.

16. Controller's power to prohibit certain trades and occupations. The Controller may, by order in writing, prohibit, within one hundred yards of a hotel or restaurant, the carrying on of any trade, profession, occupation or industry which in his opinion is likely to be—

(i) injurious to the health and well being of guests or customers or a hazard to their safety ;

(ii) a nuisance as defined in the Pakistan Penal Code (Act XLV of 1860) ; or

(iii) offensive to good taste.

17. Eviction of guests.—(1) Except as hereinafter provided, no guest at a hotel shall be evicted or refused board or other service so long as he pays, or is ready and willing to pay, the fair rates and observes the displayed rules of the establishment and conforms with the provisions of this Act and the conditions prescribed thereunder.

(2) A guest or a customer who has been guilty of conduct which amounts to nuisance, or is a source of annoyance to other guests or customers, or threatens or intimidates any other guest or customer, or is likely to endanger the person or life of any individual in a hotel or restaurant, may be evicted by the owner or manager of the hotel or restaurant, provided that, if the owner or manager has good reason to apprehend an immediate breach of peace or commission of an offence by the guest or customer, he may use such force as may be necessary to restrain the guest or customer from so doing and shall immediately intimate the fact to the local police.

(3) Any guest or customer aggrieved by eviction or refusal of board or other services under sub-section (1) or sub-section (2) may lodge a complaint with the Controller who shall, after holding summary enquiry in the prescribed manner, pass such order as he may deem fit.

18. Procedure and powers of Controller.—(1) The Controller shall not refuse registration, or cancel or suspend the licence, of a hotel or restaurant, except after holding summary enquiry in the prescribed manner.

(2) For the purpose of holding an enquiry under sub-section (1) or any other enquiry which he may deem necessary for the purposes of this Act, the Controller shall have the same powers as are vested in a civil court in respect of—

(a) proof of facts by affidavit ;

(b) summoning and enforcing the attendance of any person and examining him on oath ;

(c) compelling the production of documents and other material evidence; and

(d) issuing commissions for the examination of witnesses.

19. Additional powers of Controller.—For the purposes of this Act, the Controller may—

(i) call for such information, reports, or returns from an owner or a manager as may be necessary for satisfying himself that the provisions of this Act, the rules and orders made thereunder are being duly complied with ;

(ii) require an owner or a manager to produce before himself or an officer designated by him for the purpose any book of account, document or other papers in his possession or power which contain or are believed to contain information relating to the hotel or restaurant of which he is the owner or manager ;

(iii) require an owner or a manager to undertake through an agency qualified to do so scientific tests of water, food and other articles of human consumption at the cost of the owner, to determine their quality and conformity with the requirements of health and hygiene ;

(iv) declare the site of any restaurant not registered under this Act, a fit site for a restaurant and issue directive to the management of such a restaurant to improve, within a period of six months from the date of such order, the conditions, services and facilities at the restaurant to conform to the prescribed minimum criteria ;

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(v) call for any other information relating to development of hotel industry.

20. Apprenticeship scheme and training policy of employees. — The Controller shall—

(i) ensure that apprentices in a hotel or restaurant do not exceed ten per cent of the employees in any specified trade ;

(ii) fix, with due regard to the salaries of the regularly employed staff, the stipend to be paid to an apprentice over and above the cost of his training and determine the duration of his apprenticeship ;

(iii) lay down the age limit, educational qualifications, standards of physical fitness and psychological and mental health of apprentices ;

(iv) direct the programming for training various categories of employees of hotels and restaurants at a recognised vocational institution at the various specialised courses run thereat so that the percentage of qualified trained staff in a hotel or restaurant attains, within a reasonable time, the minimum standard as may be determined by the Controller ; and

(v) lay down the maximum percentage of untrained staff that may be employed at a hotel or restaurant at any time.

21. Provision of medical facilities.—(1) The owner of every hotel registered and licenced under this Act shall provide the following medical facilities for guests, namely: —

(i) One and two star hotels:

(a) A doctor on call available in close proximity of the hotel premises.

(b) First aid equipment and a reasonable stock of life saving drugs.

(c) Two employees trained and qualified in first aid.

(d) Ensure availability of an ambulance, van or car to rush patients to a hospital in emergencies.

(ii) Three star hotels:

(a) As in sub clauses (a) to (c) in clause (i).

(b) A drug store or chemist's shop with twenty-four hours' service, if no existing in close proximity.

(c) An ambulance or van.

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(iii) Four and five star hotels:

(a) A doctor on call available in close proximity of the hotel premises.

(b) A separate consulting room with reasonable stock of life saving drugs and first aid equipment.

(c) Four employees trained and qualified in first aid.

(d) An ambulance or a van convertible into an ambulance in emergency.

(e) A drug or chemist's shop with twenty-four hours' service, if not existing in close proximity.

(2) The management of a hotel shall take all possible care and provide all necessary medical aid without any loss of time to a guest suffering from any serious attack, including heart attack and haemorrhage, or an accident.

22. Offences and Penalties.— (1) Any owner who fails to apply for registration within the time specified in section 5 shall be liable to pay to the Controller a penalty of such sum not exceeding five thousand rupees as the Controller may impose and, in the case of a continuing failure, an additional penalty which may extend to one thousand rupees for every day after the first during which he has persisted in the failure.

(2) Any owner or manager who serves any food or beverage which is injurious to health, or who does not take sufficient care to ensure protection of food and beverage against contamination through flies or in any other way, or serves any food or beverage in unclean or contaminated utensils, shall be liable to pay to the Controller a penalty of such sum not exceeding one thousand rupees as the Controller may impose.

(3) Any owner or manager who fails to comply with any order passed or direction given under the provisions of this Act by the Controller or any other authority prescribed in this behalf shall be liable to pay to the Controller a penalty of such sum not exceeding one thousand rupees as the Controller may impose.

(4) Any owner or manager who charges a guest or customer any amount in excess of the fair rates shall, in addition to refund such guest or customer the amount charged in excess of fair rates, be also liable to pay to the Controller a penalty of such sum not exceeding one thousand rupees as the Controller may impose for such excess charging for the first time and, in the case of any such subsequent excess charging, a penalty not exceeding two thousand rupees.

(5) If a restaurant not registered under this Act fails to carry out the directive issued under clause (iv) of section 19 within the period specified therein, the Controller may suspend the operation of such restaurant and may also impose a penalty of such sum not exceeding five thousand rupees as the Controller may impose on the owner of such restaurant.

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(6) If the owner or manager of a hotel or restaurant not licensed under this Act advertises it as a hotel or restaurant, or in any manner whatsoever uses the star sign, he shall be liable to pay to the Controller a penalty of such sum not exceeding one thousand rupees as the Controller may impose and, in the case of his continuing to so advertise or use the star sign, an additional penalty which may extend to two hundred rupees for every day after the first during which he so continues or uses star sign.

(7) Any owner who fails to comply with the provisions of section 21 shall be liable to one or more of the following penalties, namely:—

(a) Penalty of such sum not exceeding two thousand rupees as the Controller may impose ;

(b) forfeiture of licence ; and

(c) cancellation of registration.

23. Contravention by companies, etc. If the person contravening, or failing to comply with, any provision of this Act or any rule, order or direction made or issued thereunder is a company or other body corporate, every director, secretary or other officer or agent thereof, unless he proves that the contravention or failure took place without his knowledge or that he exercised due diligence to prevent its taking place, shall be liable to the penalty provided for such contravention or failure.

24. Mode of recovery.— Any sum imposed as penalty under this Act shall be recoverable as an arrear of land revenue.

25. Appeal and Revision.— Any person aggrieved by an order under this Act may, within thirty days of the date of the order, prefer an appeal to—

(a) the Deputy Controller, where such order has been passed by an Assistant Controller ;

(b) the Controller, where such order, not being an order passed in appeal under clause (a), has been passed by a Deputy Controller ;

(c) the prescribed appellate authority, where such order, not being an order passed in appeal under clause (b), has been passed by the Controller.

(2) The Federal Government may of its own motion, or on the application of any owner or manager aggrieved by an order passed under sub-section (1) within the prescribed time and in the prescribed manner, pass such order in relation thereto as it thinks fit:

Provided that no order against an owner or a manager shall be passed unless he has been given an opportunity of showing cause against it and of being heard.

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26. Indemnity.— No suit, prosecution or other legal proceeding shall lie against the Federal Government, the Controller, a Deputy Controller, an Assistant Controller, the Provincial Government, any officer or authority subordinate to the Federal Government or a Provincial Government, or a member of the Committee in respect of anything which is in good faith done or intended to be done under this Act.

27. Power to exempt — The Federal Government may, by notification in the official Gazette, exempt any hotel or restaurant from the operation of all or any of the provisions of this Act for such period, and on such conditions, if any, as may be specified in the notification.

28. Delegation of powers.—(1) The Federal Government may, by notification in the official Gazette, direct that all or any of its powers under this Act shall, subject to such conditions, if any, as may be specified in the notification, be exercised—

(a) by any officer or authority subordinate to the Federal Government ; or

(b) by any Provincial Government or by any officer or authority subordinate to such Government.

(2) A Provincial Government may, with the approval of the Federal Government, constitute a Hotels and Restaurants Committee to perform, within the Province, all or any of the functions of the Committee.

29. Power to make rules.—(1) The Federal Government may, by notification in theofficial Gazette, make [1]rules for carrying out the purposes of this Act.

(2) In particular and without prejudice to the generality to the foregoing power, such rules may provide for—

(a) fixation and revision of criteria for the registration and classification of hotels and restaurants ;

(b) lowering or altering the classification of a hotel, if in the opinion of the Controller it fails to maintain the prescribed standard of classification already assigned ;

(c) the manner of issuance of "Sign Shields" including star classification of hotels and restaurants for display in hotels and restaurants at conspicuous places ;

(d) principles governing fair rates;

(e) determining the format, content and display of fair rates for hotels and restaurants ;

(f) matters in relation to which the Committee may render aid and advice ;

(g) meetings of the Committee ;

(h) fixation of fees for registration and licences ;

(i) form of a certificate of medical fitness referred to in section 5 and the time at which it shall be submitted to the Controller ;

(j) manner of holding summary enquiry ; and

(k) any other matter which is to be or may be prescribed.

30. Other laws not applicable.— Nothing contained in the Sarais Act, 1867 (XXII of 1867), or the Karachi Hotels and Lodging-Houses (Control) Act, 1950 (LXV of 1950), shall apply to a hotel or restaurant to which this Act for the time being applies.

[2]**31. Repeal.** The Pakistan Hotels and Restaurants Ordinance, 1976 (XXXIX of 1976), is hereby repealed.

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[1]For the Pakistan Hotel and Restaurants Rules, 1977, *see* S.R.O. No. 1150(I)/77 dated 6/12/77, Gaz., of P., 1977, Ext., (Islamabad), Pt. II, pages 2017-2067.

[2]This Section has been omitted in its application to the Islamabad Capital Territory, *see* Ordinance No. 27 of 1981, s. 5 and Sch., IV.

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RGN Dated: 31-03-2026

THE PAKISTAN PLANT QUARANTINE ACT, 1976

CONTENTS

1. Short title, extent and commencement
2. Definitions
3. Power to prohibit or regulate import of certain articles
4. Operation of notification under section 3
5. Goods and articles import or transportation of which prohibited not to be carried
6. Penalty
7. Cognizance of offence
8. Indemnity
9. Delegation of powers
10. Power to make rules
11. *Repeal*

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THE PAKISTAN PLANT QUARANTINE ACT, 1976.

[1]Act No. LXXV of 1976

[*1st December, 1976*]

An Act to give effect in Pakistan to the International Plant Protection Convention, 1951.

WHEREAS it is expedient to give effect in Pakistan to the International Plant Protection Convention, 1951 and to provide for matters connected therewith;

It is hereby enacted as follows:—

1. Short title, extent and commencement.—(1) This Act may be called the Pakistan Plant Quarantine Act, 1976.

(2) It extends to the whole of Pakistan.

(3) It shall come into force at once.

2. Definitions. In this Act, unless there is anything repugnant in the subject or context,—

(a) "Convention" means the International Plant Protection Convention, 1951;

(b) "crop" includes all agricultural or horticultural crops and all trees, bushes, grass or plants;

(c) "import" means the bringing or taking by sea, land or air across any customs frontier as defined by the Federal Government and includes transportation by any means from one Province to another or from one place to another within a Province;

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(d) "infection" means infection by any insect, fungus, or other pest injurious to a crop or plant;

(e) "pest" means any living stage of any or all insects, mites, nematodes, slugs, snails, protozoa, or other invertebrate animals, fungi, bacteria, or other parasitic plants or reproductive parts thereof, virus or any organism, or any infectious substance which may directly or indirectly injure or cause disease to any crop or plant; and

(f) "plant" means all species of plants or parts thereof whether living or dead including stemps, branches, tubers, bulbs, corms, stocks, budwood, cuttings, layers, slips, suckers, roots, green-scum on stagnant pools, leaves, flowers, fruits and seeds.

[1]For Statement of Objects and Reasons, see Gaz. of P., 1976. Ext., Pt., III, p. 692.

3. Power to prohibit or regulate import of certain articles.—(1) The Federal Government may, by notification in the official Gazette, prohibit, restrict or otherwise regulate, subject to such conditions as it may think fit to impose, import of any article or class of articles likely to cause infection to any crop or plant, or of any pest generally or any class of pests.

(2) A notification under this section may specify any article or class of articles or any pest or class of pests either generally or in any particular manner, whether with reference to the country of origin, or the route by which imported or otherwise.

(3) Any condition imposed under a notification under this section may require—

(a) compliance with the provisions of the Convention;

(b) examination by authorised persons of goods articles of plant origin and pests brought in or to be taken out;

(c) obtaining of certificate of non-infection; and

(d) treatment or detention, confiscation and destruction of infected goods or articles of plant origin.

4. Operation of notification under section 3. A notification under section 3 shall operate as if it has been issued under section 16 of the Customs Act, 1969 (IV of 1969); and the officers of customs shall have the same powers in respect of any goods, articles of plant origin or pests in respect of which such a notification has been issued as they have for the time being in respect of any article the importation of which is prohibited or restricted under the said Act, and all the provisions of that Act shall have effect accordingly.

5. Goods and articles import or transportation of which prohibited not to be carried. When a notification has been issued under section, 3 then, notwithstanding anything contained in any other law for the time being in force, the person responsible for the booking of goods or parcels at any port, railway station, airport or other place,—

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(i) where the notification prohibits import, shall refuse to receive for carriage at, or to forward, or knowingly allow to be carried by sea, air, land, rail or other carrier from that port, station, airport or place anything of which the import has been prohibited; and

(ii) where the notification imposes any conditions upon import, shall so refuse unless the prescribed documents showing that the conditions have been fulfilled are produced.

6. Penalty. Whoever contravenes or attempts to contravene any of the provisions of this Act, or of any rules made or notification issued thereunder, shall, without prejudice to any confiscation or penalty to which he may be liable under the provisions of the Customs Act, 1969 (IV of 1969) as applied by section 4, be punishable with fine which may extend to five hundred rupees and, upon any subsequent conviction, with imprisonment for a term which may extend to six months, or with fine which may extend to two thousand rupees, or with both.

7. Cognizance of offence. No Court shall take cognizance of any offence under this Act except upon complaint in writing made by any officer authorised by the Federal Government in this behalf.

8. Indemnity. No suit, prosecution or other legal proceeding shall lie against any person for anything which is in good faith done or intended to be done under this Act.

9. Delegation of powers. The Federal Government may delegate to a Provincial Government, or to any officer or authority of such Government, any of its powers under this Act in so far as it relates to the prohibition or restriction of bringing or taking into or out of any place from or to another place within a Province or to the transportation from one place to another within a Province or to the sale of goods or articles of plant origin imported in contravention of any of the provisions of this Act.

10. Power to make rules.—(1) The Federal Government may, by notification in the official Gazette, make rules for carrying out the purposes of this Act.

(2) In particular and without prejudice to the generality of the foregoing power, such rules may provide for all or any of the following matters, namely:—

(a) the method and manner of examination and treatment of goods and articles of plant origin likely to cause infection to any crop or plant;

(b) the form of certificate of non-infection;

(c) the documents to be produced before goods or articles of plant origin are accepted for carriage; and

(d) the fees to be levied under this Act.

11. [*Repeal*.] *Omitted by the Federal Laws (Revision and Declaration) Ordinance, 1981 (XXVII of 1981), s. 3 and Sen., II.*

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THE PAKISTAN REFUGEES REHABILITATION FINANCE CORPORATION (DISSOLUTION) ORDINANCE, 1980

CONTENTS

1. Short title and commencement
2. Definitions
3. Transfer of undertaking, etc., of the Corporation
4. Dissolution of the Corporation
5. Supplementary powers

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THE PAKISTAN REFUGEES REHABILITATION FINANCE CORPORATION (DISSOLUTION) ORDINANCE, 1980

ORDINANCE No. I of 1980

[7th January, 1980]

An Ordinance to provide for the dissolution of the Pakistan Refugees Rehabilitation Finance Corporation.

WHEREAS it is expedient to provide for the dissolution of the Pakistan Refugees Rehabilitation Finance Corporation, and for matters ancillary thereto;

AND WHEREAS the President is satisfied that circumstances exist which render it necessary to take immediate action ;

NOW, THEREFORE, in pursuance of the Proclamation of the fifth day of July, 1977, read with the Laws (Continuance in Force) Order, 1977 *(C.M.L.A. Order No. I of 1977),* and in exercise of all powers enabling him in that behalf, the President is pleased to make and promulgate the following Ordinance :—

1. Short title and commencement.—(1) This Ordinance may be called the Pakistan Refugees Rehabilitation Finance Corporation (Dissolution) Ordinance, 1980.

(2) It shall come into force at once.

2. Definitions. In this Ordinance, unless there is anything repugnant in the subject or context,—

(a) "Corporation" mean the Pakistan Refugees Rehabilitation Finance Corporation established under the Pakistan Refugees Rehabilitation Finance Corporation Ordinance, 1959 (II of 1960) ; and

(b) "undertakings and properties" shall include loans, assets, rights, authorities, powers, properties, both movable and immovable, including lands, leases, leaseholds, reserve fund investments, shares, book debts, and all rights, interests and benefits in assignable contracts and choses in action.

3. Transfer of undertaking, etc., of the Corporation. Notwithstanding anything contained in the Pakistan Refugees Rehabilitation Finance Corporation Ordinance, 1959 (II of 1960) or in any law, agreement or contract for the time being in force, the Federal Government may, by order, [1]direct that,—

(a) the undertakings and properties of the Corporation shall be transferred to such body or authority as it may think fit, on such date, in such manner and to such extent as may be specified in the order, and the undertakings and properties so transferred shall be carried on by, and vest in the body or authority concerned ; and

[1]For such Order, *see* S.R.0:499(I)/80, dated 13-5-80, Gaz. of P., 1980, Extra., Pt. II. pp. 605-606.

(b) the officers, advisers and employees of the Corporation shall be transferred to, and appointed by, such body or authority as aforesaid, in such manner and on such terms and conditions as may be specified in the order.

4. Dissolution of the Corporation.—(1) As soon as may be after the order under section 3 has issued, the Federal Government may, by notification[1] in the official Gazette, direct that the Corporation shall be dissolved on such date as may be specified in the notification, and thereupon the Corporation shall stand dissolved.

(2) Upon the dissolution of the Corporation under sub-section (1),—

(a) the Pakistan Refugees Rehabilitation Finance Corporation Ordinance, 1959 (II of 1960) shall stand repealed ;

(b) all debts, liabilities and obligations incurred by the Corporation before its dissolution shall be deemed to be debts, liabilities and obligations incurred by the body or authority to which the undertakings and properties of the Corporation are transferred under section 3 ;

(c) all contracts entered into, and all matters and things engaged to be done, by, with or for the Corporation before its dissolution shall be deemed to be contracts entered into, and matters and things engaged to be done by, with or for such body or authority as aforesaid ; and

(d) all suits and other legal proceedings instituted by or against the Corporation before its dissolution shall be deemed to be suits and legal proceedings instituted by or against such body or authority as aforesaid.

5. Supplementary powers. Without prejudice to the foregoing provisions, the Federal Government may, in such manner as it may consider necessary or expedient, provide for ,—

(a) the removal of difficulties arising out of, or in connection with, the dissolution of the Corporation or in effectively carrying out the purposes of this Ordinance;

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(b) other matters supplemental or incidental to, or consequential upon, the dissolution of Corporation.

[1]For such notification, *see* S.R.O. 500(I)/80, dated 13-5-80, Gaz. of P., 1980, Extra., Pt. II p. 606.

THE PAKISTAN STUDY CENTRES, ACT 1976

CONTENTS

SECTIONS:

1	Short title, extent and commencement.
2	Definitions.
3	Establishment of Centre and the Institute.
4	Functions of Centre.
5	Functions of Institute.
6	Board of Governors.
7	Director.
8	Academic Committee.
9	Fund.
10	Audit and accounts, etc.
10A	Power to transfer Centres.
11	Power to make rules.
12	Power to make regulations.

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THE PAKISTAN STUDY CENTRES, ACT 1976.

[1]ACT No. XXVII OF 1976

[11th May, 1976]

An Act to provide for the establishment of Pakistan Study Centres in the Universities for the study of languages, literature, social structure, customs, attitudes and motivation, of the people of various regions of Pakistan.

WHEREAS it is expedient for national cohesion, to provide for the establishment of Pakistan Study Centres in the Universities for the study of languages, literature, social structure, customs, attitudes and motivation, of the people of various regions of Pakistan;

It is hereby enacted as follows:

1. Short title, extent and commencement.—(1) This Act may be called the Pakistan Study Centres Act, 1976.

(2) It extends to the whole of Pakistan.

(3) It shall come into force at once.

2. Definitions. In this Act unless there is anything repugnant in the subject or context,—

(a) "Board" means a Board of Governors referred to in sub-section (1) of section 6;

(b) "Centre" means a Pakistan Study Centre established under section 3 and, except in that section and section 4, includes the Institute;

(c) "Commission" means the University Grants Commission;

(d) "Director" means the Director of a Centre or Institute;

(e) "Institute" means the National Institute of Pakistan Studies, University of Islamabad;

(f) "regulations" means regulations made under section 12; and

(g) "rules" means rules made under section 11.

3. Establishment of Centre and the Institute. As soon as may be after the commencement of this Act, the Federal Government may by notification in the official Gazette, establish a Pakistan Study Centre in a University specified in the notification and the National Institute of Pakistan Studies in the University of Islamabad.

[1]For Statement of Objects and Reasons, *see* Gaz. of P., 1976, Ext., Pt. Ill, p. 334.

4. Functions of Centre. A Centre shall—

(a) engage in the study of languages, literature, social structure, customs, attitudes and motivation, of the people of various regions of Pakistan;

(b) establish under-graduate, graduate, post-graduate degree and other programmes in the relevant discipline in accordance with the standard and requirements of the University in which the Centre is established;

(c) promote co-operation in inter-disciplinary relationship with other centres, teaching and research establishments;

(d) arrange conferences, seminars and refresher courses for the development of teaching and research;

(e) promote teaching and research in particular subjects as assigned to it by the Federal Government in consultation with the University in which the Centre is established.

5. Functions of Institute. The Institute shall—

(a) engage in high-level teaching and research;

(b) train research workers;

(c) establish M.A., M.Phil, Ph.D. and other programmes in the relevant discipline in accordance with the standard requirements of the University of Islamabad;

(d) promote co-operation in inter-disciplinary relationship with other centres, teaching and research establishments;

(e) arrange conferences, seminars and refresher courses for the development of teaching and research; and

(f) conduct teaching and research in such particular field as is assigned to it by the Federal Government in consultation with the University of Islamabad.

6. Board of Governors.—(1) The management, overall control and supervision of the affairs of a Centre established in a University shall vest in a Board of Governors consisting of the following members, namely:—

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(a) Vice-Chancellor of the University, who shall also be its Chairman;

(b) a representative of the Commission;

(c) a representative of the Pakistan History Commission;

(d) a representative of the Ministry of Education;

(e) a representative of the National Educational Council;

(f) Dean of the Faculty of the University;

(g) two experts in the relevant discipline to be nominated by the Federal Government on the recommendation of the Commission;

(h) one expert in the relevant discipline to be nominated by the Syndicate of the University;

(i) one expert in the relevant discipline to be nominated by the Academic Council of the University;

(j) Director of the Centre.

(2) In particular and without prejudice to the generality of the foregoing provision, a Board shall have the power to—

(a) approve the academic and research programmes of the Centre with the concurrence of the Academic council of the Univeristy in which the centre is established;

(b) lay down rules of admission to the Centre;

(c) institute fellowships for promotion of research in the discipline concerned;

(d) create, suspend or abolish such posts as may be necessary;

(e) appoint teachers and other officers; and

(f) hold, control and administer the funds of the Centre.

(3) A member of a Board referred to in clause (g) of sub-section (1) shall hold office for such term as may be determined by the Federal Government.

(4) The meetings of a Board shall be held as and when called by the Chairman:

Provided that not less than two meetings shall be held in each year and the period between such meetings shall not be more than twelve months. .

(5) In the exercise of its powers and the performance of its functions, a Board shall be subject to such special or general instructions as may be issued by the Commission from time to time.

(6) A Board may, for the speedy and efficient working of the Centre, delegate to the Director such of its powers as it may deem necessary.

7. Director.—(1) The Director shall be appointed by the Federal Government after consultation with the Commission and the University in which the Centre concerned is established on such remuneration and other terms and conditions of service as may be determined by the Federal Government.

(2) The Director shall be the academic and executive head of the Centre and Secretary of the Board, and shall be responsible to the Board for carrying out the objectives of the Centre.

(3) The Director shall perform such other functions and exercise such powers as may be assigned or delegated to him by the Board.

(4) The Director may, by writing under his hand addressed to the Chairman, resign his office.

8. Academic Committee.—(1) At each Centre there shall be an Academic Committee consisting of the following members, namely:—

(a) Director of the Centre, who shall also be its convener;

(b) all Professors and Associate Professors of the Centre; and

(c) two experts to be nominated by the Commission.

(2) The Committee may associate such other experts as it may consider necessary.

(3) The Committee shall prepare and submit to the Board the academic and research programmes of the Centre.

9. Fund. Each Center shall have a fund to which shall be credited—

(a) grants made by the Federal Government, the Provincial Government and the Commission;

(b) contributions and donations from individuals, local bodies, corporations, institutions, organizations and agencies; and

(c) income from fees.

10. Audit and accounts, etc.(1) The accounts of a Centre shall be maintained in such form and manner as may be prescribed by rules.

(2) The accounts of a Centre shall be audited once in every year by an auditor appointed by the Commission on such remuneration, if any, to be paid by the Centre, as the Commission may fix.

(3) A Center shall submit, through the Commission, to the Federal Government a copy of its audited annual accounts, together with the observations of the Director, if any thereon, and a report on the activates of the Centre during the preceding year.

(4) A Centre shall furnish to the Federal Government such information relating to its activities as may be asked for by the Federal Government from time to time.

[1][**10A. Power to transfer Centres.** The Federal Government may, by Order published in the official Gazette and subject to such terms and conditions as may be specified therein, transfer any Centre to a University or, as the case may be, the Provincial Government.]

11. Power to make rules. The Federal Government may, by notification in the official Gazette, make rules for carrying out the purposes of this Act, including rules to regulate the financial and administrative matters relating to a Centre.

12. Power to make regulations. A Centre may, with the approval of the Commission, make such regulations concerning academic matters, not inconsistent with the rules, as it may consider necessary for carrying out the purposes of this Act.

[1]Ins. by Ord. LVIII of 02, s. 2 and Sch.

THE PAKISTAN TERRITORIAL FORCE ACT, 1950

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19. Exemption from local taxation
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THE PAKISTAN TERRITORIAL FORCE ACT, 1950

[1]ACT NO. L OF 1950

[23rd October, 1950]

An Act to constitute a Pakistan Territorial Force.

WHEREAS it is expedient to provide for the constitution of a Pakistan Territorial Force and for its administration and discipline;

It is hereby enacted as follows:—

1. Short title, extent and commencement.—(1) This Act may be called the Pakistan Territorial Force Act, 1950.

(2) It extends to the whole of Pakistan, and applies to persons enrolled in the Pakistan Territorial Force wherever they may be.

(3) It shall come into force at once.

2. Definitions. —In this Act, unless there is anything repugnant in the subject or context,—

"enrolled" means enrolled or re-enrolled in the Pakistan Territorial Force under this Act;

"non-commissioned officer" means a person holding non-commissioned rank in the Pakistan Territorial Force, and includes an acting non-commissioned officer;

"officer" means a commissioned officer or a junior commissioned officer;

"prescribed" means prescribed by rules made under this Act.

3. Constitution of Pakistan Territorial Force. —There shall be raised and maintained in the manner hereinafter provided a force to be designated the Pakistan Territorial Force:

Provided that the [2][Federal Government] shall establish all or any of the branches of the Force as circumstances may permit from time to time.

4. Constitution and disbandment of units.—(1) The [2][Federal Government] may constitute any corps or unit of the Pakistan Territorial Force and may disband or reconstitute any corps or unit so constituted.

(2) The [Federal Government] may constitute for any Province, [3][* * *] [4][* * *] a university corps consisting of one or more units of the Territorial Force, for the appointment thereto of students of, and

[1]The Act has been applied.
(i) to Baluchistan, with effect from the 23rd October, 1950, see Gaz. of P., 1952, P. 1, p. 119 ;
(ii) in the Federated Areas of Baluchistan, see Gaz. of P., 1953, Pt. 1, p. 152.
The Act has been extended to-
(i) the Leased Areas of Baluchistan, see the Leased Areas (Laws) Order, 1950 (G. G. O. 3 of 1950);
(ii) the Khairpur State, see the Khairpur (Federal Laws) (Extension) Order, 1953 (G. G. O. 5 of 1953); and
(iii) the Sate of Bahawalpur, see the Bahawalpur (Extension pf Federal Laws) Order, 1953 (G. G. O. 11 of 1953).
[2]Subs. by F.A.O. 1975. Art. 2 and Table.
[3]Omitted by A.O., 1964, Art. 2 and Sch.
[4]Omitted by the Federal, Laws (Revision and Declaration) Ordinance No. XXVII of 1981, s. 3 and 2nd Sch.

other persons connected with, a university established by law in Pakistan, or colleges affiliated to such a university, and may disband or reconstitute any unit so constituted.

5. Classes of officers.—(1) There shall be the following classes of officers in the Pakistan Territorial Force, namely:—

(a) commissioned officers, and

(b) junior commissioned officers.

(2) An officer shall be deemed to be enrolled in the Pakistan Territorial Force for so long as he holds a commission in that Force.

6. Enrolment.—(1) Any male person who is a citizen of, or is domiciled in, Pakistan [1]* * * may offer himself for enrolment in the Pakistan Territorial Force, and any such person who satisfies the prescribed conditions may be enrolled in the prescribed manner for such period, not exceeding six years, as may be prescribed.

(2) An applicant for enrolment may apply to be enrolled for service in any particular branch, corps or unit.

7. Appointment to corps or unit.—(1) Every person enrolled shall without unnecessary delay be appointed in the prescribed manner to a corps or unit constituted under section 4.

(2) Any person who has been enrolled for service in any particular branch, corps or unit shall be appointed to a corps or unit of that branch or to that corps or unit, as the case may be.

8. Transfer and attachment.—(1) Any person appointed to a corps or unit under section 7 may be transferred, whether on disbandment of the corps or unit or otherwise, to another corps or unit of the same branch of the Pakistan Territorial Force, in such manner as may be prescribed.

(2) Any person enrolled may be attached at his own request to any corps or unit of the Pakistan Territorial Force or to any unit of the Pakistan Army.

9. Change of residence.—(1) Any enrolled person who changes his residence otherwise than temporarily shall inform the prescribed authority of his new residence.

(2) The prescribed authority on being so informed may, subject to the provisions of section 8, transfer such person from the corps or unit in which he is serving to another corps or unit.

10. Discharges. —Every person enrolled shall be entitled to receive his discharge from the Pakistan Territorial Force on the expiation of the period for which he was enrolled and any such person may, before the expiration of that period, be discharged from the said Force by such authority and subject to such conditions as may be prescribed, and shall be so discharged on a recommendation of the officer commanding the unit in this behalf:

Provided that no person enrolled who is for the time being engaged in military service under the provisions of this Act shall be entitled to receive his discharge before the termination of such service.

[1]Omitted by the Federal, Laws (Revision and Declaration) Ordinance No. XXVII of 1981, s. 3 and 2nd Sch.

11. Liability to serve and perform military service. —(1) Every person enrolled shall, subject to such conditions as may be prescribed, be bound to serve in any corps or unit of the Pakistan Territorial Force to which he has been appointed or transferred, or is for the time being attached, and shall be subject to all rules and regulations that may be made under this Act relating to such crops or unit.

(2) Every person enrolled in a corps or unit other than a university corps or unit shall be liable to perform military service—

(a) when called out with any portion of the Pakistan Territorial Force by an order of the senior military officer present either to act in support of the civil power or to provide guards, which, in the opinion of such officer, are essential; or

(b) when any portion of the Pakistan Territorial Force to which he belongs has been embodied to support or supplement the Pakistan Army in the event of an emergency by a notification directing such embodiment issued by the [1][Federal Government] and published in the official Gazette; or

(c) when attached at his own request to any unit of the Pakistan Army.

12. Territorial limits of liability to and duration of, military service. —No person embodied under section 11 shall be required to perform military service beyond the limits of Pakistan save under a general or special order of the [1][Federal Government].

13. Application of Act VIII of 1911.—(1) Every officer of the Pakistan Territorial Force when doing duty as such officer, shall be [2][subject to the Pakistan Army Act, 1952 (XXXIX of 1952), and] the rules and regulations made thereunder, whereupon the said Act, rules and regulations shall apply to him as if he held the same rank in the Pakistan Army as he holds for the time being in the said Force, subject to the terms of his commission and the orders of the [3][President].

(2) Every non-commissioned officer and man of the Pakistan Territorial Force,—

(a) when called out or embodied for military service under section 11, or

(b) when attached to, or otherwise acting as part of, or with, any unit of the Pakistan Army, or

(c) when embodied for, or otherwise undergoing, military training in the prescribed manner, shall be [2][subject to the Pakistan Army Act, 1952, and] the rules and regulations made thereunder, whereupon the said Act, rules and regulations shall apply to him as if he held the same rank in the Pakistan Army as he holds for the time being in the said Force, subject to the orders of the [3][President]:

[1]Subs. by F.A.O. 1975, Art. 2 and Table.
[2]Subs. by the Repealing and Amending Ordinance No. X of 1965, s. 3 and 2nd Sch.
[3]Subs. by A.O., 1961, Art. 2.

Provided that the said Act, rules and regulations shall, in their application to such non-commissioned officers and men when embodied for or otherwise undergoing military training, be modified to such extent and in such manner as may be prescribed:

Provided further that non-commissioned officers and men of a university corps when undergoing training, shall, in respect of such training, be subject only to such disciplinary and other rules as may be prescribed.

(3) Where an offence punishable [1][under the Pakistan Army Act, 1952 (XXXIX of 1952), or,] as the case may be, under that Act as modified under sub-section (2), has been committed by any person whilst subject to that Act under the provisions of this section, such person may be taken into and kept in military custody and tried and punished for such offence, although he has ceased to be so subject as aforesaid in like manner as he might have been taken into and kept in military custody, tried or punished if he had continued to be so subject:

Provided that no such person shall be kept in military custody after he has ceased to belong to the Pakistan Territorial Force, unless he has been taken into or kept in military custody on account of the offence before the date on which he ceased so to belong; nor shall he be kept in military custody or be tried or punished for the offence after the expiry of two months from that date, unless his trial has already commenced before such expiry.

14. Summary trial and punishments. —In addition to, or in substitution for, any punishment or punishments to which he may be liable under [1][the Pakistan Army Act, 1952 (XXXIX of 1952), a junior commissioned officer,] non-commissioned officer or man of the Pakistan Territorial Force not being a member of a university corps, may be punished either by a criminal court or summarily by order of the prescribed authority for any offence under that Act, or for the contravention of any rule or regulation under this Act, with fine which may extend to fifty rupees, to be recovered in such manner and by such authority as may be prescribed:

Provided that no court inferior to that of a magistrate of the first class shall try any offence made punishable by or under this Act.

15. Presumption as to certain documents. —Where a junior commissioned officer, non-commissioned officer or man of the Pakistan Territorial Force is required by or in pursuance of any rule, regulation or order made under this Act to attend at any place, a certificate purporting to be signed by the prescribed officer, stating that the person so required to attend failed to do so in accordance with such requirement, shall without proof of the signature or appointment of such officer, be evidence of the matters stated therein.]

16. Power to make rules.—(1) The [2][Federal Government] may make rules to carry out the purposes of this Act.

(2) In particular and without prejudice to the generality of the foregoing powers, such rules may—

[1]Subs. by the Repealing and Amending Ordinance No. X of 1965, s. 3 and 2nd Sch.
[2]Subs. by F.A.O. 1975, Art. 2 and Table.

(a) prescribe the manner in which, the period for which and the conditions subject to which, persons may be enrolled under section 6;

(b) prescribe the manner in which persons enrolled may be appointed to corps and units under section 7 or transferred under section 8 or section 9;

(c) prescribe the authorities by which and the condition subject to which persons enrolled may be discharged under section 10;

(d) prescribe preliminary and periodical military training, compulsory and voluntary, for any persons or class of persons enrolled and provide for the embodiment of any corps or unit for that purpose;

(e) prescribe the military or other obligations to which members of a university corps shall be liable when undergoing military training and provide generally for the maintenance of discipline in such cases;

(f) provide for the medical examination of persons offering themselves for enrolment under section 6;

(g) provide for and regulate the remuneration, allowances, gratuities or compensation (if any) to be paid to any person or class of persons enrolled or to their dependents; and

(h) provide for any other matter which under this Act, is to be or may be prescribed.

(3) All rules made under this Act shall be published in the official Gazette, and on such publication shall have effect as if enacted in this Act.

17. Power to make regulations.—(1) The [1][Chief of the Army Staff] may make regulations not inconsistent with this Act, and the rules made thereunder, providing generally for all details connected with the organization and personnel of the Pakistan Territorial Force and for the duties, military training, clothing, equipment, allowances and leave of persons enrolled.

(2) In particular and without prejudice to the generality of the foregoing power, such regulations may specify the courses of training or instruction to be followed by any person or class of persons enrolled.

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18. Certain persons subject to this Act to be deemed part of Pakistan Army for certain purpose. —For the purposes of sections 128, 130 and 131 of the Code of Criminal, Procedure, 1898 (V of 1898), all officers, non-commissioned officers and men of the Pakistan Territorial Force who have been appointed to a corps or unit shall be deemed to be officers, non-commissioned officers and soldiers, respectively, of Pakistan Army.

19. Exemption from local taxation. —No person shall be liable to pay any municipal or other tax in respect of any horse, bicycle, motor bicycle, motor car, or other means of conveyance which he is authorised by regulations made under section 16 to maintain in his capacity as a person enrolled in or otherwise connected with the Pakistan Territorial Force.

20. [*Repeal*.] *Rep. by the Repealing and Amending Ordinance, 1965 (10 of 1965), s. 2 and 1st Sch.*

RI - Date: 13-05-2024

[1]Subs. by F.A.O. 1975, Art. 2 and Table.

THE PAY-AS-YOU-EARN SCHEME ACT, 1973

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1. Short title and commencement
2. Definitions
3. The Scheme
4. Power to make rules
5. [Omitted]

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THE PAY-AS-YOU-EARN SCHEME ACT, 1973

Act No. XXXI of 1973

[9th February, 1973]

An Act to provide for introducing a scheme for the import of machinery and equipment on credit for establishing certain industrial units and enterprises

WHEREAS it is expedient to provide for introducing a scheme for the import of machinery and equipment on credit for certain industrial units and enterprises;

It is hereby enacted as follows:—

1. Short title and commencement.—(1) This Act may be called the Pay-As-You-Earn Scheme Act, 1973.

(2) It shall come into force at once.

2. Definitions.—In this Act, unless there is anything repugnant in the subject or context,—

(a) "Prescribed" means prescribed by the Scheme or the rules made under this Act; and

(b) "Scheme" means the scheme brought into force under section 3.

3. The Scheme.—(1) The Federal Government may prepare and, by notification in the official Gazette, bring into force a scheme, to be known as the Pay-As-You-Earn Scheme, for the import of machinery and equipment on credit for the establishment of an industrial unit or enterprise and requiring that the cost of the machinery or equipment so imported, and such other charges in foreign exchange as may be prescribed, shall be met from out of the export earnings of such industrial unit or enterprise.

(2) The Scheme may specify, among other things, the categories of industrial units or enterprises for the establishment of which machinery or equipment may be imported under the Scheme, the proportion of export earnings which may be utilized by an industrial unit or enterprise for meeting charges in foreign exchange, the procedure for sanctioning of projects and scrutiny of list of importable machinery, and the terms and conditions of foreign credits.

4. Power to make rules.—(1) The Federal Government may, by notification in the official Gazette, make rules for the administration of the Scheme.

(2) Any rules made under sub-section (1) may provide that an industrial unit or enterprise shall,—

(a) if it fails to repatriate to Pakistan any foreign exchange which it is required by the Scheme to repatriate ; or

(b) if the prescribed percentage of its export earnings is not sufficient to meet the cost of the machinery and equipment and the other prescribed charge in foreign exchange,

be liable to pay to the State Bank of Pakistan by way of penalty a sum not exceeding twenty-seven per cent, of the value in Pakistan rupees of the amount of foreign exchange it fails to repatriate or, as the case may be, of the amount by which its export earnings fall short of the aggregate of the cost and charges referred to in clause (b).

(3) Any amount payable by an industrial unit or enterprise as a penalty under the rules made under sub-section (1) shall be recoverable as an arrear of land revenue.

5. [1] [Omitted]

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[1]*Omitted by the Federal Laws (Revision and Declaration) Ordinance, 1981 (XXVII of1981), s. 3 and Sch, II.*

THE PETROLEUM ACT, 1934

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THE PETROLEUM ACT, 1934

ACT No. XXX of 1934

[6th *September,* 1934]

An Act to consolidate and amend the law relating to the import, transport, storage, production, refining and blending of petroleum and other inflammable substances.

WHEREAS it is expedient to consolidate and amend the law relating to the import, transport, storage, production, refining and blending of petroleum and other inflammable substances ;

It is hereby enacted as follows:—

PRELIMINARY.

1. Short title, extent and commencement. (1) This Act may be called the Petroleum Act, 1934.

[1][(2) It extends to the whole of Pakistan.]

(3) It shall come into force on such date[2] as the [3][Federal Government] may, by notification in the [4][official Gazette], appoint.

2. Definitions. In this Act, unless there is anything repugnant in the subject or context, —

(a) "petroleum" means any liquid hydrocarbon or mixture of hydrocarbons, and any inflammable mixture (liquid, viscous or solid) containing any liquid hydrocarbon ;

[5][(b) "petroleum class A" means petroleum having flashpoint below twenty-four degrees centigrade;

(ba) "petroleum class B" means petroleum having flashpoint [6][of] twenty-four degrees centigrade and above, but below fifty-five degrees centigrade;

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[1]Subs. by the Central Laws (Statute Reform) Ordinance, 1960 (XXI of 1960), s. 3 and 2nd Schedule.
[2]The 30th March, 1937 *see* Gazette of India, 1937, Pt. I, p. 632.
[3]Subs. by the Federal Adaptation of Laws Order, 1975 (P.O. No. 4 of 1975), Art. 2 and Table.
[4]Subs. by the Government of India (Adaptation of Indian Laws) Order, 1937.
[5]Subs. by Act No. XLII of 2023, s. 2.
[6]Subs. by Act No. XXVI of 2025, s. 2.

(bb) "petroleum class C" means petroleum having flashpoint of fifty-five degrees centigrade and above, but below ninety-three degrees centigrade;

(bc) "excluded petroleum" means petroleum having flashpoint of ninety-three degrees centigrade and above;]

(c) "flashing-point" of any petroleum means the lowest temperature at which it yields a vapour which will give a momentary flash when ignited, determined in accordance with the provisions of Chapter II and the rules made thereunder ;

[1][(d) 'to transport' means to move petroleum from one place to another within Pakistan, by land, sea or air, and includes moving from one place to another in Pakistan across territory which is not part of Pakistan ;]

(e) "to import" petroleum means to bring it into [1][Pakistan] by land, sea or air, otherwise than during the course of transport ;

(f) "to store" petroleum means to keep it in any one place, but does not include any detention happening during the ordinary course of transport ;

(g) "motor conveyance" means any vehicle, vessel or aircraft for the conveyance of human beings, animals or goods, by land, water or air, in which petroleum is used to generate the motive power ;

(h) "prescribed" means prescribed by rules made under this Act [2][;]

[2][(i) "illegal sale of petroleum" means sale of petroleum products without having a valid storage licence granted under this Act and the rules made there under;

(j) "oil marketing company" means a company or organization having a valid marketing licence front Oil and Gas Regulatory Authority for doing the activity of purchasing or obtaining refined oil products from refineries in Pakistan or from or through sources abroad, for selling, distributing or marketing directly or through agents or dealers at dispensing outlets or filling stations;

(k) "dealer" shall have the same meaning as assigned thereto in sub-clause (viii) rule 2 of the Pakistan Oil Rules, 2016; and

(l) "serious bodily injury" shall have the same meaning as assigned thereto in clause k of section 3, of the Mines Act, 1923 (IV of 1923).]

CHAPTER I

CONTROL OVER PETROLEUM.

3. Import, transport and storage of petroleum. (1) No one shall import, transport or store any petroleum save in accordance with the rules made under section 4.

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[1]Subs. by the Central Laws (Statue Reform) Ordinance, 1960, (XXI of 1960), s. 3 and 2nd Schedule.
[2]Subs. and added by Act No. XLII of 2023, s. 2.

(2) Save in accordance with the conditions of any licence for the purpose which he may be required to obtain by rules made under section 4, no one shall import any [1][petroleum class A], and no one shall transport or store any petroleum.

4. Rules for the import, transport and storage of petroleum. The [2][Federal Government] may make rules—

(*a*) prescribing places where petroleum may be imported and prohibiting its import elsewhere ;

(*b*) regulating the import of petroleum ;

(*c*) prescribing the periods within which licences for the import of [1][petroleum class A] shall be applied for, and providing for the disposal, by confiscation or otherwise, of any [1][petroleum class A] in respect of which a licence has not been applied for within the prescribed period or has been refused and which has not been exported ;

(*d*) regulating the transport of petroleum ;

(*e*) specifying the nature and condition of all receptacles and pipe-lines in which petroleum may be transported;

(*f*) regulating the places at which and prescribing the conditions subject to which petroleum may be stored ;

(*g*) specifying the nature, situation and condition of all receptacles in which petroleum may be stored ;

(*h*) prescribing the form and conditions of licences for the import of [1][petroleum class A], and for the transport or storage of any petroleum, the manner in which applications for such licences shall be made, the authorities which may grant such licences and the fees which may be charged for such licences ;

(*i*) determining in any class of cases whether a licence for the transport of petroleum shall be obtained by the consignor, consignee or carrier ;

(*j*) providing for the granting of combined licences for the import, transport and storage of petroleum, or for any two of such purposes ;

(*k*) prescribing the proportion in which any specified poisonous substance may be added to petroleum, and prohibiting the import, transport or storage of petroleum in which the proportion of any specified poisonous substance exceeds the prescribed proportion ; [4][*]

[4][(*kk*) prescribing the mechanism for real-time and information technology enabled digital tracking, storage monitoring and dispensing of petroleum products at petrol stations, storage points and *en route* by coordinating actions of authorities either jointly or separately; and]

(*l*) generally, providing for any matter which in [4][its] opinion is expedient for proper control over the import, transport and storage of petroleum.

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[1]Subs. by Act No. XLII of 2023, ss. 3-4.
[2]Subs. by the Federal Adaptation of Laws Order, 1975 (P.O. No. 4 of 1975), Art. 2 and Table.
[3]Omitted and Ins. by Act No. XXVI of 2025, s.3.
[4]Subs. by the Government of India (Adaptation of Indian Laws) Order, 1937.

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5. Production, refining and blending of petroleum.— (1) No one shall produce, refine or blend petroleum save in accordance with the rules made under sub-section (2).

(2) The [1][Federal Government] may make rules—

(*a*) prescribing the conditions subject to which petroleum may be produced, refined or blended ; and

(*b*) regulating the removal of petroleum from places where it is produced, refined or blended and preventing the storage therein and removal therefrom, except as [2][petroleum class A], of any petroleum which has not satisfied the prescribed tests.

[3](3) [* * * * * * *]

6. Receptacles of [2][petroleum class A] to show a warning. All receptacles containing [2][petroleum class A] shall have a stamped, embossed, painted or printed warning, either on the receptacle itself or, where that is impracticable, displayed near the receptacle, exhibiting in conspicuous characters the words "Petrol" or "Motor Spirit", or an equivalent warning of the dangerous nature of the petroleum :

Provided that this section shall not apply to—

(a) any securely stoppered glass, stoneware or metal receptacle of less than [2][ten liters] capacity containing [2][petroleum class A] which is not for sale, or

(b) a tank incorporated in a motor conveyance, or attached to an internal combustion engine, and containing petroleum intended to be used to generate motive power for the motor conveyance or engine, or

(c) a pipe-line for the transport of petroleum, or

(d) any tank which is wholly underground, or

(e) any class of receptacles which the [1][Federal Government] may, by notifications in the [3][official Gazette], exempt from the operation of this section.

7. No licence needed for small stocks of [2][petroleum class B] not in bulk. Notwithstanding anything contained in this Chapter, a person need not obtain a licence for the transport or storage of [2][petroleum class B] if the total quantity in his possession at any one place does not exceed [2][two thousand liters] and none of it is contained in a receptacle exceeding [2][eight hundred liters] in capacity.

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[1]Subs. by the Federal Adaptation of Laws Order, 1975 (P.O. No. 4 of 1975), Art. 2 and Table.
[2]Subs. by Act No. XLII of 2023, ss. 5-7.
[3]Omitted and subs. by the Government of India (Adaptation of Indian Laws) Order, 1937.

8. No licence needed for small quantities of [1][petroleum class A].—(1) Notwithstanding anything contained in this Chapter, a person need not obtain a licence for the import, transport or storage of [1][petroleum class A] not intended for sale if the total quantity in his possession does not exceed [1][thirty liters].

(2) [1][Petroleum class A] possessed without a licence under this section shall be kept in securely stoppered receptacles of glass, stoneware or metal which shall not in the case of receptacles of glass or stoneware exceed [1][one liter] in capacity or in the case of receptacles of metal [1][twenty-five liters] in capacity.

9. Exemptions for motor conveyances and stationary engines.—(1) The owner of a motor conveyance, who complies with requirements of the law for the time being in force relating to the registration and licensing of such conveyance and its driver or pilot and the owner of any stationary internal combustion engine, shall not be required to obtain a licence—

(*a*) for the import, transport or storage of any petroleum contained in any fuel tank incorporated in the conveyance or attached to the internal combustion engine, or

(*b*) for the transport or storage of [1][petroleum class A], not exceeding [1][hundred liters] in quantity in addition to any quantity possessed under clause (*a*),

provided the petroleum is intended to be used to generate motive power for the motor conveyance or engine:

[2][Provided further that the total quantity of [1][petroleum class A] which may be stored without a licence under clause (b) shall not exceed [1][hundred liters], notwithstanding that such owner may possess other motor conveyances or engines.]

(2) The [1][petroleum class A] transported or stored without a licence under clause (*b*) [2][of sub-section (1)] shall be kept as provided in sub-section (2) of section 8, and, if it exceeds [1][thirty liters] in quantity, shall be stored in an isolated place which does not communicate with any room where any person resides or works or in any room where persons assemble.

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10. No licence needed by railway administration acting as carrier. Notwithstanding anything contained in this Chapter, a railway administration, as defined in section 3 of the Railways Act, 1890 (IX of 1890), need not obtain any licence for the import or transport of any petroleum in its possession in its capacity as carrier.

11. Exemption of [1][excluded petroleum]. Nothing in this Chapter shall apply to any petroleum which has its flashing-point not below [1][ninety-three degrees centigrade].

12. General power of exemption. The [3][Federal Government] may, by notification in the [4][official Gazette], exempt any petroleum specified in the notification from all or any of the provisions of this Chapter.

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[1]Subs. by Act No. XLII of 2023, ss. 8-10
[2]Added and ins. by Act No. XXV of 1940, s. 2.
[3]Subs. by the Federal Adaptation of Laws Order, 1975 (P.O. No. 4 of 1975), Art. 2 and Table.
[4]Subs. by the Government of India (Adaptation of Indian Laws) Order, 1937.

13. Inspection of places. The [1][Federal Government] may authorise any officer by name or by virtue of office to enter any place where petroleum is being imported, stored, produced, refined or blended, or is under transport, and inspect all receptacles, plant and appliances used in connection with petroleum in order to ascertain if they are in accordance with the provisions of this Chapter and the rules made thereunder.

(2) The [1][Federal Government] may make rules regulating the procedure of officers authorised under this section.

CHAPTER II

THE TESTING OF PETROLEUM

14. Inspection and sampling of petroleum.— (1) The [1][Federal Government] may, by notification in the [2][official Gazette], authorise any officer by name or by virtue of office to enter any place where petroleum is being imported, transported, stored, produced, refined or blended and to inspect and take samples for testing of any petroleum found therein.

(2) The [1][Federal Government] may make rules—

(*a*) regulating the taking of samples of petroleum for testing,

(*b*) determining the cases in which payment shall be made for the value of samples taken, and the mode of payment, and

(*c*) generally, regulating the procedure of officers exercising powers under this section.

15. Standard Test Apparatus.—(1) A standard apparatus for determining the flashing-point of petroleum shall be deposited with an officer to be appointed in this behalf by the [3][Secretary of the Division concerned], by notification in the [2][official Gazette].

(2) Such apparatus shall be engraved with the words "Standard Test Apparatus", and shall be verified and corrected from time to time and replaced when necessary, in accordance with rules made under section 21.

(3) The Standard Test Apparatus shall, on payment of the prescribed fee, be open to inspection at all reasonable times by any person wishing to inspect it.

16. Certification of other test Apparatus.— (1) The officer appointed under section 15 shall, on payment of the prescribed fee, if any, compare with the Standard Test Apparatus any apparatus for determining the flashing-point of petroleum which may be submitted to him for this purpose.

(2) If any apparatus is found by him to agree with the Standard Test Apparatus within prescribed limits, the officer shall engrave such apparatus with a special number and with the date of

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[1]Subs. by the Federal Adaptation of Laws Order, 1975 (P.O. No. 4 of 1975), Art. 2 and Table.
[2]Subs. by the Government of India (Adaptation of Indian Laws) Order, 1937.
[3]Subs. by Act No. XLII of 2023, s.11.

the comparison, and shall give a certificate in respect of it in the prescribed form, certifying that on the said date the apparatus was compared with the Standard Test Apparatus and was found to agree with it within the prescribed limits, and specifying any corrections to be made in the results of tests carried out with the apparatus.

(3) A certificate granted under this section shall be valid for such period as may be prescribed.

(4) A certificate granted under this section shall, during the period for which it is valid, be proof, until the contrary is proved, of any matter stated therein.

(5) The officer shall keep a register in the prescribed form of all certificates granted by him under this section.

17. Testing officers. [1][(1)] The [1][Secretary of the Division concerned] may authorise any officer by name or by virtue of office to test petroleum of which samples have been taken under this Act, or which may have been submitted to him for test by any person, and to grant certificates of the results of such tests.

[1][(2) the following testing officers may be authorized under sub-section (1), namely;—

a. Director General, Director, Deputy Director, and Assistant Director of the Department of Explosives

b. Chemical Examiner, Customs House, Karachi, and

c. Chemical Examiner, Customs House, Lahore.]

18. Manner of test. All tests of petroleum made under this Act shall be made with a test apparatus in respect of which there is a valid certificate under section 16, shall have due regard to any correction specified in that certificate, and shall be carried out in accordance with rules made under section 21.

19. Certificate of testing.—(1) The testing officer after testing samples of petroleum shall make out a certificate in the prescribed form, stating whether the petroleum is [1][petroleum class A] or [1][petroleum class B], and, if the petroleum is [1][petroleum class B], the flashing-point of the petroleum.

(2) The testing officer shall furnish the person concerned, at his request, with a certified copy of the certificate, on payment of the prescribed fee, and such certified copy may be produced in any Court in proof of the contents of the original certificate.

(3) A certificate given under this section shall be admitted as evidence in any proceedings which may be taken under this Act in respect of the petroleum from which the samples were taken, and shall, until the contrary is proved, be conclusive proof that the petroleum is [1][petroleum class A] or [1][petroleum class B], as the case may be, and, if the petroleum is [1][petroleum class B], of its flashing-point.

[1]Numbered, subs. and added by Act No. XLII of 2023, ss. 12-13.

20. Right to require re-test.— (1) The owner of any petroleum, or his agent, who is dissatisfied with the result of the test of the petroleum may, within seven days from the date on which he received intimation of the result of the test, apply to the officer empowered under section 14 to have fresh samples of the petroleum taken and tested.

(2) On such application and on payment of the prescribed fee, fresh samples of the petroleum shall be taken in the presence of such owner or agent or person deputed by him, and shall be tested in the presence of such owner or agent or person deputed by him.

(3) If, on such re-test, it appears that the original test was erroneous, the testing officer shall cancel the original certificate granted under section 19, shall make out a fresh certificate, and shall furnish the owner of the petroleum, or his agent, with a certified copy thereof, free of charge.

21. Power to make rules regarding tests. The [1][Federal Government] may make rules—

(a) for the specification, verification, correction and replacement of the Standard Test Apparatus ;

(b) prescribing fees for the inspection of the Standard Test Apparatus ;

(c) regulating the procedure in comparing a test apparatus with the Standard Test Apparatus ;

(d) prescribing the form of certificate to be given in respect of a test apparatus so compared, and the period for which such certificates shall be valid ;

(e) prescribing the form of the register of such certificates ;

(f) prescribing fees for comparing a test apparatus with the Standard Test Apparatus ;

(g) regulating the procedure of testing officers in carrying out tests of petroleum, providing for the averaging of results where several samples of the same petroleum are tested, and prescribing the variations from standard temperatures which may be allowed ;

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(h) prescribing the form of certificates of tests of petroleum and the fees which may be charged therefor ;

(i) providing, where the results of the testing of samples raise a doubt as to the uniformity of the quality of the petroleum in any lot under test, for the division of the lot into sub-lots, and for the selection and testing of samples of each sub-lot and for the averaging of results in accordance with the results of tests of those samples ;

(j) prescribing fees for re-tests under section 20 and providing for their refund where the original test was erroneous ; and

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[1]Subs. by the Federal Adaptation of Laws Order, 1975 (P.O. No. 4 of 1975), Art. 2 and Table.

(k) generally, regulating the procedure of all officers performing duties connected with the testing of petroleum, and providing for any matter incidental to such testing.

22. Special rules for testing viscous or solid forms of Petroleum. The [1][Federal Government] may also make rules providing specially for the testing of any form of petroleum which is viscous or solid or contains sediment or thickening ingredients, and such rules may modify or supplement any of the provisions of this Chapter or of the rules made under section 21 in order to adapt them to the special needs of such tests.

CHAPTER III

PENALTIES AND PROCEDURE

23. General penalty for offences under this Act.— (1) Whoever—

(*a*) in contravention of any of the provisions of Chapter I or of any of the rules made thereunder, imports, transports, stores, produces, refines or blends any petroleum, or

(*b*) contravenes any rule made under section 4 or section 5, or

[2][(*c*) being the holder of a licence issued under section 4 or a person for the time being placed by the holder of such licence in control or in charge of any place where petroleum is being imported or stored, or is under transport, contravenes any condition of such licence or suffers any condition of such licence to be contravened, or]

(*d*) being for the time being in control or in charge of any place where petroleum is being imported, stored, produced, refined or blended or is under transport, refuses or neglects to show to any officer authorised under section 13 any receptacle, plant or appliance used in such place in connection with petroleum, or in any way obstructs or fails to render reasonable assistance to such officer during an inspection, or

(*e*) being for the time being in control or in charge of any place where petroleum is being imported, transported, stored, produced, refined or blended, refuses or neglects to show to any officer authorised under section 14 any petroleum in such place, or to give him such assistance as he may require for the inspection of such petroleum, or refuses to allow him to take samples of the petroleum, or

(*f*) being required, under section 27, to give information of an accident fails to give such information as so required by that section,

shall be punishable with fine which may extend to [3][equal to licence fee or as determined by the Federal Government from time to time] rupees.

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[1]Subs. by the Federal Adaptation of Laws Order, 1975 (P.O. No. 4 of 1975), Art. 2 and Table.
[2]Subs. by Act No. III of 1942, s. 2.
[3]Subs. by Act No. XLII of 2023, s.14.

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(2) If any person, having been convicted of an offence punishable under sub-section (1), is again guilty of any offence punishable under that sub-section, he shall be punishable for every such subsequent offence with fine which may extend to [1][two times licence fee or as determined by the Federal Government from time to time] rupees.

[1][(3) whoever—

[2][(a) illegally imports, transports, stores, sales produce, refines or blends any petroleum shall be punishable with the fine of one million rupees; and

(b) whoever repeats offence under clause (a), shall be liable to pay fine of five million rupees.]

[2][(3A) Any facility used for storage and selling of petroleum products to general public, without having obtained prior license thereof from relevant authority in terms of rules made under section 4, shall be liable to sealing and ail machinery, equipment, materials, storage tanks, receptacles and petroleum products being employed or sold therein shall be liable to confiscation by the Deputy Commissioner or any officer authorized by him not below the rank of Assistant Commissioner, as the case may be and the owner thereof shall fine of ten million Rupees.

(3B) Any facility selling petroleum products whose license for storage granted by the Department of Explosives in form K, under the rules made in terms of section 4, has either expired or cancelled shall be allowed a grace period of six months, from the date of expiry or cancellation of such license, to get the license renewed or restored under the applicable laws failing which such facility shall be liable to closure and all machinery, equipment, materials, storage tanks, receptacles and petroleum products being employed or sold therein shall be liable to confiscation by the Deputy Commissioner or any officer authorized by him not below the rank of Assistant Commissioner, as the case may be and the owner thereof fine of one million Rupees:

Provided that the Department of Explosives shall renew the license within one month from the date of receipt of the application, required documents, and the prescribed fee. If the concerned officer fails to renew the license within the stipulated period, he shall record, in writing, the reasons for such delay:

Provided further that an appeal against the refusal or failure to renew a license shall lie to the Secretary of the Petroleum Division. Appeal may be filed within thirty days from the date of the announcement of the decision of the officer concerned.

(3C) Any premises or facility and it's owner licensed in terms of rules made under section 4 that is found to be involved in the storage or sale of smuggled petroleum products shall be liable to closure and all machinery, equipment, materials, storage tanks and petroleum products being employed or sold therein shall be liable to confiscation by the Deputy Commissioner or any officer authorized by him not below the rank of Assistant Commissioner, as the case may be, and a fine of hundred million Rupees, and the Department of Explosives shall cancel the license of such premises or facility, as the case may be.

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[1]Subs. by Act No. XLII of 2023, s.14.
[2]Subs. and ins. by Act No. XXVI of 2025, s.4.

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(3D) Any means of transportation involved in transporting smuggled petroleum products, and petroleum products contained therein, shall be confiscated by the appropriate officers as notified under clause (b) of section 2 of the Customs Act, 1969 (IV of 1969).

(3E) Any goods confiscated by the Deputy Commissioner or any officer authorized by him not below the rank of Assistant Commissioner, as the case may be, shall be handed over to appropriate Officers of Customs in accordance with the provisions of the Customs Act, 1969 (IV of 1969) and the provisions of the said act shall *mutatis mutandis* apply to the detention, seizure, adjudication and confiscation of such goods.]

(4) Where in any accident loss of human life or serious bodily injury to persons has occurred and the accident happens due to contravention of any of the provisions of this Act or of any of the rules made thereunder, offender shall be punishable with fine up to ten million rupees.]

24. Confiscation of petroleum and receptacles.— (1) In any case in which an offence under clause (a) or clause (*b*) or clause (*c*) of sub-section (1) of section 23 has been committed, [1][and convicted, the Deputy Commissioner, or any officer authorized by him not below the rank of Assistant Commissioners as the case may be having jurisdiction] may direct that—

(*a*) the petroleum in respect of which the offence has been committed, or

(*b*) where the offender is convicted of importing, transporting or storing petroleum exceeding the quantity he is permitted to import, transport or store, as the case may be, the whole of the petroleum in respect of which the offence was committed,

shall, together with the receptacles in which it is contained, be confiscated.

[1][(2) Any person aggrieved by the decision or order made under sub-section (1) may prefer an appeal before the concerned Court of sessions within thirty days from the date of communication of such decision or order.]

[2]**[25. Jurisdiction.**— The offences punishable under this Act shall be triable by [1][Court of Sessions.]

26. Power of entry and search.— (1) The [2][Minister-incharge] may, by notification in the [3][official Gazette], authorise any officer by name or by virtue of office to enter and search any place where he has reason to believe that any petroleum is being imported, transported, stored, produced, refined or blended otherwise than in accordance with the provisions of this Act and the rules made thereunder, and to [1][seal, seize], detain or remove any or all of the petroleum in respect of which in his opinion an offence under this Act has been committed.

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[1]Subs. by Act No. XXVI of 2025, ss. 5-7.
[2]Subs. by Act No. XLII of 2023, ss.15-16.
[3]Subs. by the Government of India (Adaptation of Indian Laws) Order, 1937.

(2) The provisions of the Code of Criminal Procedure, 1898 (V of 1898), relating to searches shall, so far as they are applicable, apply to searches by officers authorised under this section.

(3) The [1][Federal Government] may make rules regulating the procedure of authorised officers in the exercise of their powers under this section subject, however, to the provisions of sub-section (2).

27. Reports of accidents with petroleum. Where any accident by explosion or fire, which is attended with loss of human life or serious injury to person or property, occurs as the result of the ignition of petroleum or petroleum vapour, or occurs in or near any place where petroleum is kept and under circumstances making it likely that it was the result of such ignition, the person for the time being in charge of the petroleum shall forthwith give information to the nearest [2][Deputy Commissioner [3][and] the office of the Department of explosives] or to the officer in charge of the nearest police station.

28. Inquiries into serious accidents with petroleum.— (1) The inquiry mentioned in section 176 of the Code of Criminal Procedure, 1898 (V of 1898), shall [4][* * *] be held in all cases where any person has been killed by an accident which the Magistrate has reason to believe was the result of the ignition of petroleum or petroleum vapour.

(2) Any Magistrate empowered to hold an inquest may also hold an inquiry under the said section into the cause of any accident which he has reason to believe was the result of the ignition of petroleum or petroleum vapour, if such accident was attended by serious injury to person or property, notwithstanding that no person was killed thereby.

(3) [5][* * * * * * *]

(4) The result of all inquiries held in pursuance of this section [6][and of any inquiry held by a coroner in a case to which sub-section (1) refers] shall be submitted as soon as may be to the [2][Secretary of the Division concerned] [6][the [5][2][Director General] in Pakistan]] and the Provincial Government].

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CHAPTER IV

SUPPLEMENTAL

29. Provisions relating to rules.— (1) In making any rules under this Act, the [1][Federal Government] may—

(*a*) provide for any matter ancillary to such rules for which in [7][its] opinion provision is necessary to protect the public from danger arising from the import, transport, storage, production, refining or blending of petroleum, and

(*b*) make special provision for the special circumstances of any Province or place.

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[1]Subs. by the Federal Adaptation of Laws Order, 1975 (P.O. No. 4 of 1975), Art. 2 and Table.
[2]Subs. by Act No. XLII of 2023, ss. 17-18.
[3]Subs. by Act No. XXVI of 2025, s. 8.
[4]Omitted by the Federal Laws (Revision and Declaration) Ordinance, 1981 (XXVII of 1981), s. 3 and Sch. II.
[5]Omitted and subs. by the Adaptation of Central Acts and Ordinances Order, 1949 (Order No. 4 of 1949) (Order No. 4 of 1949), Art. 3.
[6]Ins. by Act No. XXV of 1940, s. 3.
[7]Subs. by the Government of India (Adaptation of Indian Laws) Order, 1937.

(2) Every power to make rules conferred by this Act is subject to the condition of previous publication.

(3) All rules made under this Act shall be published in the [1][official Gazette] [1][* * *].

30. Power to apply Act to other substances.— (1) The [3][Federal Government] may, by notification in the [1][official Gazette], apply any or all of the provisions of this Act, and of the rules made thereunder with such modifications as [1][it] may specify, to any dangerously inflammable substance, other than an explosive, and thereupon the provisions so applied shall have effect as if such substance had been included in the definition of petroleum.

(2) The [2][Federal Government] may make rules providing specially for the testing of any substance to which any of the provisions of this Act have been applied by notification under sub-section (1), and such rules may supplement any of the provisions of Chapter II in order to adapt them to the special needs of such tests.

31. Power to limit powers of local authorities over petroleum. Where any enactment confers powers upon any local authority in respect of the transport or storage of petroleum, the [3][Federal Government] may, by notification in the [1][official Gazette],—

(*a*) limit the operation of such enactment, or

(*b*) restrict the exercise of such powers, in any manner [1][it] deems fit.

32. [3][* * * * * * *]

THE SCHEDULE.— [3][* * * * * * *]

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Date: 06-10-2025

[1]Subs. and omitted by the Government of India (Adaptation of Indian Laws) Order, 1937.
[2]Subs. by the Federal Adaptation of Laws Order, 1975 (P.O. No. 4 of 1975), Art. 2 and Table.
[3]Rep. by the Repealing Act, 1938 (I of 1938), s. 2 and Sch.

THE PETROLEUM PRODUCTS PETROLEUM LEVY AND CLIMATE SUPPORT LEVY ORDINANCE, 1961

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THE FIRST SCHEDULE

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THE PETROLEUM PRODUCTS PETROLEUM LEVY AND CLIMATE SUPPORT LEVY ORDINANCE, 1961

ORDINANCE No. XXV OF 1961

[1st *July*, 1961]

An Ordinance to provide for the levy and collection of a [1][Petroleum Levy][2][and Climate Support Levy] on petroleum products and for matters connected therewith.

WHEREAS it is expedient to provide for the levy and collection of a [1][Petroleum Levy] [2][and Climate Support Levy] on petroleum products and for matters connected therewith;

NOW, THEREFORE, in pursuance of the Proclamation of the seventh day of October, 1958, and in exercise of all powers enabling him in that behalf, the President is pleased to make and promulgate the following Ordinance:—

1. Short title, extent and commencement.—(1) This Ordinance may be called the Petroleum Products [1][(Petroleum Levy)] [2][and Climate Support Levy] Ordinance, 1961.

(2) It extends to the whole of Pakistan.

(3) It shall come into force at once, and shall be deemed to have taken effect on the first day of August, 1959.

2. Definitions.—In this Ordinance, unless there is anything repugnant the subject or context,—

(1) "Company" means a company specified in the Second Schedule [3][and includes a person engaged in the manufacturing, refining or reclaiming of lubricating oil from used lubricating oil];

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[1]Subs. by the Finance Act, 2010(Act No. XVI of 2010), s. 2 (w.e.f. 01-07-10).
[2]Ins. by the Finance Act, 2025 (Act No. XIX of 2025), s.3.
[3]Added by Ordinance No. XVIII of 1984, s. 2.

[1][(1A) "depot" includes the premises set apart for manufacturing, refining or reclaiming lubricating oil from used lubricating oil in any manner;]

(2) [2][* * * * * * *]

(3) [2][* * * * * * *]

[3][(4) "fixed sale price" means such *ex*-refinery sale price or, as the case may be, *ex*-installation, *ex*-retail outlet or *ex*-depot sale price as —

(a) the Federal Government, by notification in the official Gazette; or

(b) a company specified in the Second Schedule and authorised by the Federal Government, in respect of any petroleum product specified in the First Schedule, through electronic and press media, may declare to be the fixed sale price.]

[4][(4A) "inland freight margin" means the amount as determined in accordance with the rules made under section 6 to represent the inland transportation expenses of petroleum products from companies' installation to their retail outlets or depots ;]

[4][(4B) "installation" means such premises set apart for the storage of petroleum products as the [5][Federal Government] may, by notification in the official Gazette, declare to be an installation for the purposes of this Ordinances ;]

[2][(4Ba) [6][* * * * * * *]]

[7][(4C) "licensee" means the licensee defined in the Compressed Natural Gas (Production and Marketing) Rules, 1992, or the Liquefied Petroleum Gas (Production and Distribution) Rules, 2001, as the case may be, and as specified by rules made under section 6 ;]

(4D) [8][* * * * * * *]

(5) "Petroleum Product" means any petroleum product specified in the First Schedule [8][and includes Compressed Natural Gas and Liquefied Petroleum Gas]; [9][*]

(6) "Prescribed price" means the [10][*ex*-refinery price or as the case may be, the *ex*-installation, *ex*-retail outlet or *ex*-depot sale price] as determined in accordance with the rules made under section 6 [11][; and]

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[12][(7) "Refinery" means a refinery specified in the Fourth Schedule.]

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[1]Ins. by Ordinance No. XVIII of 1984, s. 2.
[2]Omitted and ins. by Finance Ordinance, 2001 (Ordinance No. XXV of 2001), s. 3. (*w.e.f 1st July of 2001*)
[3]Subs. by the Finance Ordinance,2002 (Ordinance No. XXVII of 2002), s. 3.
[4]Ins. and shall be deemed to have been so ins. on the first day of July 1966, by Ordinance No. XXII of 1971, s. 2.
[5]Subs. by Federal Adaptation of Laws Order, 1975 (P.O.No. 4 of 1975), Art. 2 and Table.
[6]Omitted by the Finance Act, 2009 (Act No. I of 2009), s. 7 (w.e.f 01-07-09).
[7]Ins. by the Finance Act, 2008 (Act No. I of 2008), s. 2 (w.e.f 01-07-08).
[8]Omitted by the Finance Act, 2010 (Act No. XVI of 2010), s. 2 (w.e.f 01-07-10).
[9]Omitted and shall be deemed always to have been so omitted Ordinance No. XXII of 1971, s. 2
[10]Subs. and shall be deemed always to have been so subs., *ibid*.
[11]Subs. *ibid*.
[12]Added and shall be deemed always to have been so added, *ibid*.

[1][**3.**—[2][(1) Every company, refinery and licensee shall pay to the Federal Government, a petroleum levy [3][and climate support levy] on petroleum products at such [3][rates as may respectively] be notified by the Federal Government in the official Gazette, from time to time.]

(2) Nothing in sub-section (1) shall apply to a petroleum product produced by a refinery or, as the case may be, purchased by a company, for export.

(3) Any amount due and payable under sub-section (1) and not paid within the time allowed by the Federal Government, or any officer authorized by it in that behalf, shall be recoverable as an arrear of land revenue.]

[3][(4) A Climate Support Levy shall be levied at the rate of two rupees and fifty paisa (Rs. 2.5) per liter on Motor Spirit and High Speed Diesel for Financial Year 2025-26, which shall be enhanced to five rupees per liter for Financial Year 2026-27. The Climate Support Levy on Furnace Oil shall be levied at the rate of two rupees and fifty paisa (Rs. 2.5) per liter (Rs. 2,665/MT) for Financial Year 2025-26, which shall be enhanced to five rupees per liter for Financial Year 2026-27 in addition to the Petroleum Levy at the rate notified by the Federal Government from time to time.]

[4][**3A.—Power to grant exemption from payment, authorise refund and procedure for collection and refund of [2][Petroleum Levy] [3][and Climate Support Levy].** (1) Subject to such conditions, limitations or restrictions as it may think fit to impose, the [6][Federal Government] may, in such general cases as it may prescribe by rules or in particular cases by special order, exempt a refinery [2][, licensee] or company from the payment of the [5][Petroleum Levy] [3][and Climate Support Levy] in respect of all or any of the petroleum products or authorise the refund in whole or in part of the [5][Petroleum Levy] [3][and Climate Support Levy] paid by a refinery [2][, licensee] or company.

(2) Subject to any rules made under this Ordinance, the [5][Petroleum Levy] [3][and Climate Support Levy] shall be collected,—

(a) in respect of imported petroleum products, in the same manner as an import duty payable under the [7][Custom Act, 1969 (IV of 1969)], is collected; and

(b) in respect of petroleum products produced in Pakistan, in the same manner as a duty of excise leviable under the [5][Federal Excise Act, 2005] [5][***] is collected.

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[7][(3) The provisions of the Customs Act, 1969 (IV of 1969), or, as the case may be, the provisions of the [5][Federal Excise Act, 2005] [5][***] shall, so far as may be, apply to the levy, collection and refund of the [5][Petroleum Levy] [3][and Climate Support Levy].]

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[1]Subs. by Finance Ordinance, 2001 (Ordinance No. XXV of 2001), s. 3.
[2]Subs. and ins. by Act No. XXII of 2011, ss. 2-3.
[3]Ins., subs. and added by Finance Act, 2025 (Act No. XIX of 2025), s. 3.
[4]Ins. & shall be deemed to have been so ins., on the first day of January 1968 by Ordinance No. XXII of 1971, s. 4.
[5]Subs. and omitted by the Finance Act, 2010 (Act No. XVI of 2010), s. 2 (w. e. f 01-07-2010).
[6]Subs. by the Federal Adaptation of Laws Order, 1975 (P. O No. 4 of 1975), Art. 2 and Table.
[7]Subs. by Federal Law (Revision and Declaration) Ordinance No. XXVII of 1981, s. 3 and Sch. II.

4. Maximum sale price.—(1) Notwithstanding anything contained in any other law, no company shall sell [1][*ex*-refinery, *ex*-installation, *ex*-retail outlet or *ex*-depot] any petroleum product at a price higher than the fixed sale price.

(2) A contravention of sub-section (1) shall be deemed to be a contravention of an order made under section 3 of the [2][Price Control and Prevention of Profiteering and Hoarding Act, 1977 (XXIX of 1977], and all the provisions of that Act shall have effect accordingly.

(3) Nothing in this Ordinance shall be deemed to have or ever to have had the effect of retrospectively creating any offence or of retrospectively enhancing the punishment for any offence provided in any law for the time being in force.

5. Allowance to be made for [3][Petroleum Levy][4][and Climate Support Levy] for purposes of income-tax.— Notwithstanding anything contained in any other law, the amount of the [3][Petroleum Levy][4][and Climate Support Levy] paid by a company under section 3 shall be an expenditure for which allowance is to be made in computing profits or gains under [3][Income Tax Ordinance, 2001 (XLIX of 2001)] [3][***].

6. Power to make rules.— (1) The [5][Federal Government] may, by notification in the official Gazette, make rules[6] for carrying out the purposes of this Ordinance and any such rules may be retrospective from any date not earlier [7][than] the first day of August, 1959.

(2) In particular and without prejudice to the generality of the foregoing power, such rules may provide—

(a) for the determination of the [8][fixed sale price and] prescribed price;

[9][(aa) for the determination of the inland freight margin;]

[10][(aaa) for the manner of payment and refund of, and exemption from the payment of, the [3][Petroleum Levy][4][and Climate Support Levy] ;]

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[1]Subs. and shall be deemed always to have been so subs. by Ordinance No. XXII of 1971, s. 5.
[2]Subs. by the Federal Laws Revision and Declaration Ordinance No. XXVII of 1981, s. 3 and Sch., II.
[3]Subs. and omitted by the Finance Act, 2010 (Act No. XVI of 2010), s. 2 (w. e. f. 01-07-2010).
[4]Ins. by the Finance Act, 2025 (Act No. XIX of 2025), s.3.
[5]Subs. by the Federal Adaptation of Laws Order, 1975 (P. O No. 1 of 1975), Art. and Table.
[6]For the Petroleum Products (Development Surcharge) Rules, 1961 see Gaz. of P.1961, Ext pp. 1069-1074.
[7]Sic. Should read "than".
[8]Ins. and shall be deemed always to have been so ins. by Ordinance No. XXII of 1971, s. 6
[9]Ins. and shall be deemed to have been so ins. on the first day of July, 1966, *ibid.*
[10]Ins. and shall be deemed to have been so ins. on the first day of January, 1968, *ibid.*

(b) for any other matter for which there is no provision or no sufficient provision in this Ordinance and for which provision is, in the opinion of the [1][Federal Government], necessary in order to give effect to the purposes of this Ordinance.

7. Power to amend Schedules.—[2][The] [1][Federal Government] may, from time to time, by notification in the official Gazette, make such amendments and modifications in the Schedules as it thinks fit.

[3]**[8. Delegation of powers.—**The [1][Federal Government] may, by notification in the official Gazette, direct that all or any of its powers under this Ordinance or the rules made thereunder shall, in such circumstances and under such conditions, if any, as may be specified in the direction, be exercised also by an officer or authority subordinate to the [1][Federal Government [4][****]].]

[4][* * * * * * *]

[4]**[9. Validation.—**Notwithstanding anything contained in any law, rules or judgment of a Court, the petroleum development levy levied and collected from a company during the period from the 1st day of March, 2010, [5][to the coming into force of the Petroleum Products (Petroleum Levy) (Amendment), Act, 2011(XXII of 2011)], shall be deemed to have been validly and lawfully levied and collected and shall not be refunded. So much of such levy as has not been paid, collected or realized during the said period shall be recoverable in accordance with the provisions of this Ordinance and the rules made thereunder.]

THE FIRST SCHEDULE
List of Petroleum Products
[*See* section 2 (6)]

S. No.	Nomenclature in common use in Pakistan.	Nomenclature in common use internationally by the Oil Industry and as used in Platt's Daily Reporting Service.
1.	Aviation Spirit 73 On u/I.	Avgas Grade 73 clear.
2.	Aviation Spirit 100/130 ON.	Avgas Grade 100/130.
3.	Aviation Spirit 115/145 ON.	Avgas Grade 115/145.
4.	Aviation Turbine Fuel.	Turbine Fuel 1 (-56F).
5.	Motor Spirit.	79 Octane.
6.	Vaporising Oil.	Tractor Vaporising Oil.
7.	Superior Kerosine.	Kerosine.
8.	Inferior Kerosine.	No. 2 Fuel.
9.	High Speed Diesel.	48/52 Diesel Index.
10.	Light Diesel Oil.	(90 % No. 2 Fuel, 10 % Bunker 'C' Fuel).

[1]Subs. by Federal Adaptation of Laws Order, 1975 (P. O No. 4 of 1975), Art. 2 and Table.
[2]Subs. by the Finance Act, 2025(Act No. XIX of 2025), s. 3.
[3]Added by Ordinance No. XXII of 1971, s. 7.
[4]Omitted & Added. by the Finance Act, 2010 (Act No. XVI of 2010), s. 2 (w.e.f. 01-07-2010)
[5]Subs. by Act No. XXII of 2011, s. 4

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[1][11.	* *	* *]
[2][12.	[3][Lubricating Oil including Base Oil and Lubricating Oil reclaimed from used Lubricating Oil.]	MVI, HVI, LVI.
[4][13.	* *	* * * *
[5][14.	Jute Batching Oil]	
[6][15.	Automotive Gas 100 OCT]	
[7][16.	* * * *	
[8][17.	Motor Gasoline 90 Octane R.	Motor Gasoline 90 R.]
[9][18.	JP – 4……	
[10][19.	All types of NAPHTHA / [11][*]	
[12][20.	Methyl Tertiary Butyl Ether (MTBE)]	
[13][21.	Premium Motor Gasoline 87 RON]	
[14][22.	JP – 8	JP – 8]
[15][23.	E-10 Gasoline	Ethanol E-10 Gasoline]
[16][24.	Denatured	Denatured Fuel Ethonol for blending with Gasoline]
[17][25.	Regasified Liquefied Natural Gas (RLNG) or any volumes supplied in lieu thereof through a swap arrangement.	RLNG]
[18][26	Furnace Oil	Bunker 'C'.]

[1]Omittted by S.R.O.450 (1)/2000, dt 01-07-2000.

[2]Item 12 and 13 were added by S.R.O. 143 ®/66, dt. 16th August, 1966, see Gaz of P., 1966.Ext., p.812.

[3]Subs. by Ordinance No. XVIII of 1984, s. 3.

[4]Omitted by S.R.O 499(1)/96, dt, 13-06-96.

[5]Added by S.R.O No. 6(R) /67, dated the 18th January, 1967, see Gaz. of p. 1967, Ext., p.25.

[6]Added by S.R.O. No. 78(R)/67, dated the 29th May, 1967, see Gaz. of P., 1967, Ext.p. 297.

[7]S. No. 16 omitted by S.R.O. No. 166(1)71, dated the 22nd May, 1971, see Gaz of P., 1971, Ext.p. 494, which was previously added by S.R.O No. 139(R)/67,dt, the 17th July, 1967, see Gaz. of p. 1967, Ext.p.784.

[8] Added by S.R.O No. 214(1)/69, dt, the 1st October, 1969 see, Gaz, of P., 1967, Ext., p.859.

[9]Added by S.R.O No. 385(1)/72, dt, the 13th June, 1972, see. Gaz., of P., 1972, Ext., Pt.II,p. 346.

[10]Added by S.R.O No. 1610(1)/73, dt, the 20th Nov, 1973, see. Gaz. of. P.1973, Ext., Pt. II, p.2347.

[11]Omitted by S.R.O. 450(1)/2000, dt, 01-07-2000.

[12]Added by S.R.O 51(1)/94, dt, 18-01-94.

[13]Added by S.R.O 865(1)/99, dt. 22-07-99.

[14]Added by S.R.O 772(1)/06, dt, 27-07-06.

[15] Added by S.R.O.731(1)/2009,dt 15-08-2009.

[16] Added by S.R.O. 759(1)/2015, dt 28-08-2009.

[17] Added by S.R.O. 405(1)/2015, dt 07-05-2015.

[18]Added by the Finance Act, 2025 (Act No. XIX of 2025), s.3.

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THE SECOND SCEHDULE

List of Companies

[1][1. M/s. Pakistan State Oil Company Ltd.

2. M/s. Caltex Oil (Pakistan) Ltd.

3. M/s. Shell (Pakistan) Ltd.

4. M/s/ Attock Refinery Ltd.

5. M/s. Pakistan Oil-fields Limited, Rawalpindi.

6. M/s. Attock Petroleum Ltd. Islamabad.]

[2][7. M/s. Pakistan Arab Refinery Company Ltd. (PARCO).

8. M/s. TOTAL-PARCO Pakistan Ltd.

9. M/s. Bosiear Pakistan Ltd.]

[3][10. M/s. Admore Gas (Pvt.) Ltd.]

[4][11. M/s. Hascombe Storage (Pvt.) Ltd.]

[5][12. M/s. Askar Oil Services (Pvt.) Ltd.]

[6][13 Sui Northern Gas Pipelines Limited

14 Sui Southern Gas Company Limited]

THE THIRD SCEHDULE

[7][* * * * * * *]

THE FOURTH SCEHDULE

List of Refineries

[See section 2 (7)]

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[8][1. Attock Oil Refinery Ltd.,. Rawalpindi.

2. Pakistan Refinery Ltd., Karachi.

3. National Refinery Ltd., Karachi.]

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[1]Subs. by S.R.O 525 (1)/98,dt, 05-06-98
[2]Added by S.R.O 476 (1)/02,dt, 26-07-02
[3]Added by S.R.O 431 (1)/2004,dated, 04-06-2004
[4]Added by S.R.O 690 (1)/06, dt, 30-06-2006.
[5]Added by S.R.O 846(1)/06, dt, 17-08-06.
[6]Added by S.R.O. 405(1)/2015, dt 07-05-2015.
[7]Omitted by Finance Ordinance, 2002 (Ordinance No. XXVII of 2002), s. 3.
[8]Subs. by S.R.O 89(1)/79, dt, 23rd Jan 1979, see Gaz., of P., 1979, Pt-II, p-244, for the entries under the heading "List of refineries" which were previously amended by various S.R..O,s from time to time.

[1][4. Dhodak Refinery]

[2][5. Pak Arab Refinery Ltd. Muzzaffargarh.]

[3][6. Bosicar Pakistan Ltd.]

THE FIFTH SCEHDULE

[4][* * * * * * *]

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[1]Added by S.R.O 905(1)/94, dt, 14-9-94.
[2]Added by S.R.O 637(1)/2000,dt, 09-09-2000 .
[3]Added by S.R.O 477(1)/2002, dt. 26-07-2002.
[4]Omitted by the Finance Act, 2025 (Act No. XIX of 2025), s.3.

THE POWER ALCOHOL ORDINANCE, 1959

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1. Short title, extent and commencement
2. Definitions
3. Production of power alcohol
4. Power to regulate production and disposal of power alcohol
5. Power to direct use of power alcohols as motive power
6. Penalty
7. Delegation of powers
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9. Power to exemption

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THE POWER ALCOHOL ORDINANCE, 1959

ORDINANCE No. LIX OF 1959

[2*nd December*, 1959]

An Ordinance to make provision for certain matters connected with the development of the power alcohol industry.

WHEREAS it is expedient to make provision for certain matters connected with the development of the power alcohol industry under Federal control ;

NOW, THEREFORE, in pursuance of the Proclamation of the seventh day of October 1958, and in exercise of all powers enabling him in that behalf, the President is pleased to make and promulgate the following Ordinance :—

1. Short title, extent and commencement.—(1) This Ordinance may be called the Power Alcohol Ordinance, 1959.

(2) It extends to the whole of Pakistan.

(3) This section and section 2 shall come into force at once, and the rest of the Ordinance or such portion thereof shall come into force in such area and on such date as the [1][Federal Government] may, by notification in the official Gazette, specify in this behalf.

2. Definitions.— In this Ordinance, unless there is anything repugnant in the subject or context—

(a) "molasses" means the heavy dark coloured residual syrup drained away in the final stage of the manufacture of sugar by vacuum pans in sugar factories either from sugar cane or by refining gur, when such a syrup has fermentable sugars (expressed as reducing sugars) but does not include the final residual left in the manufacture of sugar by the open pan process ;

(b) "petrol" means dangerous petroleum as defined in clause (b) of section 2 of the Petroleum Act, 1934 ;

(c) "power alcohol" means ethyl alcohol containing not less than 99.5 *per centum* by volume of ethanol measured at sixty degrees Fahrenheit corresponding to 74.4 overproof strength.

3. Production of power alcohol.—(1) No person shall manufacture power alcohol from any substance other than molasses or such other substance as may be specified by the [1][Federal Government] by notification in the official Gazette.

(2) If any dispute arises as to whether any substance is or is not molasses or such other substance as may be specified under sub-section (1), the decision of an officer authorized by the [1][Federal Government] in this behalf regarding such dispute shall be final and shall not be called in question in any Court.

[1]Subs. by The Federal Adaptation of Laws Order 1975 (President's Order No. 4 of 1975, Art. 2 and Table.

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4. Power to regulate production and disposal of power alcohol.— The [1][Federal Government] may regulate the production and disposal of power alcohol by any distillery situated in any area in which this section is in force.

5. Power to direct use of power alcohols as motive power.— (1) The [1][Federal Government] may, by notification in the official Gazette, direct that in such area as may be specified therein no petrol shall be sold or kept for sale except with an admixture of power alcohol.

(2) The proportion of petrol and power alcohol in such mixture shall in any area and for any purpose be such as may from time to time be specified by the [1][Federal Government] by notification in the official Gazette but such proportion of power alcohol in the case of mixture with petrol meant for use as motive power for any motor vehicle shall not be more than twenty-five *per centum* or less than five *per centum* by volume.

(3) The power alcohol to be employed for such mixture shall be obtained from such distilleries as may from time to time be specified by the [1][Federal Government] by notification in the official Gazette.

6. Penalty.— Whoever contravenes any of the provisions of section 3 or section 5 or any order issued thereunder shall be punishable with imprisonment of either description for a term which may extend to six months, or with fine which may extend to one thousand rupees, or with both, and in the case of a continued contravention with a further fine which may extend to one hundred rupees for every day during which the contravention is continued after conviction therefor.

7. Delegation of powers.— The [1][Federal Government] may, by notification in the official Gazette, direct that any power conferred by this Ordinance shall, subject to such conditions, if any, as may be specified in the direction, be exercisable also by—

(a) such officer or authority subordinate to the [1][Federal Government], or

(b) such Provincial Government or such other authority subordinate to a Provincial Government, as may be specified in the direction.

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8. Power to make rules.—(1) The [1][Federal Government] may, by notification in the official Gazette, make rules for the purpose of carrying into effect the provisions of this Ordinance.

(2) In particular and without prejudice to the generality of the foregoing powers, such rules may—

(a) provide for the licensing of the manufacture of power alcohol ;

(b) prescribe the specifications and tests in respect of purity of power alcohol intended for admixture with petrol in order to ensure its suitability for use in motor vehicles ;

(c) fix the price at which power alcohol may be sold for the purpose of admixture with petrol ;

(d) provide for imposing and collecting a duty of excise on power alcohol intended for admixture with petrol ;

[1]Subs. by F.A.O., 1975, Art. 2 and Table, for "Central Government".

(e) prescribe conditions in respect of the transport and storage of power alcohol intended for admixture with petrol and for the manner in which the admixture is to be effected ;

(f) prescribe the submission by a manufacturer of power alcohol or importer or distributor of petrol of returns regarding the power alcohol and petrol manufactured, purchased, stored or sold, as the case may be;

(g) provide for denaturing of power alcohol at the distilleries ;

(h) provide for any other matter which is to be or may be prescribed under this Ordinance.

(3) Rules made under this Ordinance may provide that any contravention of any such rule shall render the offender liable on conviction to a fine not exceeding one thousand rupees.

9. Power to exemption.— The [1][Federal Government] may, by notification in the official Gazette declare that any of the provisions of this Ordinance shall not apply to any case or class of cases.

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Date: 17-12-2024

[1]Subs. by The Federal Adaptation of Laws Order 1975 (President's Order No. 4 of 1975, Art. 2 and Table.

THE PRIVY PURSES (CHARGED EXPENDITURE) ACT, 1968

CONTENTS

1 Short title

2 Expenditure on privy purse to be charged expenditure

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THE PRIVY PURSES (CHARGED EXPENDITURE) ACT, 1968

Act No. IX of 1968

[7th *June,* 1968]

An Act to declare the expenditure relating to privy purses of Rulers of certain former States to be a charge on the Central Consolidated Fund

WHEREAS it is expedient to declare the expenditure relating to privy purses of Rulers of certain former States to be a charge on the Central Consolidated Fund;

It is hereby enacted as follows:—

1. Short title.— This Act may be called the Privy Purses (Charged Expenditure) Act, 1968.

2. Expenditure on privy purse to be charged expenditure.—Where, under any agreement for the time being in force between the [1][Federal Government] and the Ruler of a former State which at any time was in accession with Pakistan or his successor, any sum is payable as privy purse by the [1][Federal Government], such sum shall be charged on the [1][Federal Consolidated Fund] and be paid out of that Fund and shall be deemed always to have been so charged and paid.

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Date:- 21.03.2024

[1]Subs. by the F.A.O., 1975 (P.O.4)., Art. 2 and Table.

THE PROTECTION OF ECONOMIC REFORMS ACT, 1992

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1. Short title, extent and commencement
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5. Immunities to foreign currency accounts
6. Protection of fiscal incentives for setting up of industries
7. Protection of transfer of ownership to private sector
8. Protection of foreign and Pakistani investment
9. Secrecy of Banking transaction
10. Protection of financial obligation
11. Rules

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THE PROTECTION OF ECONOMIC REFORMS ACT, 1992.

ACT No. XII OF 1992

[23rd July, 1992]

An Act to provide for furtherance and protection of economic reforms

WHEREAS it is necessary to create a liberal environment for savings and investments; and other matters relating thereto;

AND WHEREAS a number of economic reforms have been introduced and are in the process of being introduced to achieve the aforesaid objectives;

AND WHEREAS it is necessary to provide legal protection to these reforms in order to create confidence in the establishment and continuity of the liberal economic environment created thereby;

It is hereby enacted as follows:—

1. Short title extent and commencement.— (1)This Act, may be called the Protection of Economic Reforms Act, 1992.

(2) It extends to the whole of Pakistan.

(3) It shall come into force at once.

2. Definitions.— In this Act, unless there is anything repugnant in the subject or context,—

(a) "Government" includes both the Federal Government and any Provincial Government;

(b) "economic reforms" means economic policies and programmes, laws and regulations announced, promulgated or implemented by the Government on and after the seventh day of November, 1990, relating to privatization of public sector enterprises, and nationalized banks, promotion of savings and investments, introduction of, fiscal incentives for industrialization and deregulation of investment, banking, finance, exchange and payments systems, holding and transfer of currencies; and

(c) all other expressions used in this Ordinance shall have the meaning respectively assigned to them under the relevant laws.

3. Act to Override other laws. The provisions of this Act shall have effect notwithstanding anything contained in the Foreign Exchange Regulation Act, 1947 (VII of 1947), the Customs Act, 1969 (IV of 1969), the Income Tax Ordinance, 1979 (XXXI of 1979), or any other law for the time being in force.

4. Freedom to bring, hold, sell and take out foreign currency.— (1) All citizens of Pakistan resident in Pakistan or outside Pakistan and all other persons shall be entitled and free to bring, hold, sell, transfer and take out foreign exchange within or out of Pakistan in any form and

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shall not be required to make a foreign currency declaration at any stage nor shall anyone be questioned in regard to the same.

[1][(2) Nothing in sub-section (1) shall apply to

(a) any foreign exchange borrowed under any general permission given by the State Bank of Pakistan under sub-section (1) of section 4 of the Foreign Exchange Regulations Act, 1947 (VII of 1947);

(b) any payment from abroad for good exported from Pakistan;

(c) proceeds of securities issued or sold to non-residents;

(d) any payment received from abroad for services rendered in, or from Pakistan;

(e) earnings or profits of the overseas offices or branches of Pakistani firm and companies including banks; and

(f) any foreign exchange purchased from an authorized dealer in Pakistan for any purpose.]

5. Immunities to foreign currency accounts.—(1) All citizens of Pakistan resident in Pakistan or outside Pakistan who hold foreign currency accounts in Pakistan, and all other persons who hold such accounts, shall continue to enjoy immunity against any inquiry from the Income Tax Department or any other taxation authority as to the source of financing of the foreign currency accounts [1][:]

[1][Provided that such immunity shall not be available to citizens of Pakistan residing in Pakistan and to firms, companies and other bodies registered or incorporated in Pakistan in respect of any new foreign currency account opened or deposits created on or after the 16th day of December, 1999 or to any incremental deposits thereafter in an existing foreign currency account]; and

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(2) The balances in the foreign currency accounts and income there from shall continue to remain exempted from the levy of wealth-tax and income tax and compulsory deduction of Zakat at source. [1][:]

[1][Provided that such exemption shall not be available to citizens of Pakistan residing in Pakistan and to firms, companies and other bodies registered or incorporated in Pakistan in respect of any balance n a new foreign currency account opened or deposits created on or after the 16th day of December, 1999 or to incremental deposits created on or after the 16th day of December, 1999 in an existing foreign currency account and income therefrom.]

(3) The banks shall maintain complete secrecy in respect of transactions in the foreign currency accounts.

[1] Numbered, added and subs. by Ordinance 21 of 1999, ss.2 & 3.

(4) The State Bank of Pakistan or other banks shall not impose any restrictions on deposits in and withdrawals from the foreign currency accounts and restrictions if any shall stand withdrawn forthwith.

6. Protection of fiscal incentives for setting-up of industries. The fiscal incentives for investment provided by the Government through the statutory orders listed in the Schedule or otherwise notified shall continue in force for the term specified therein and shall not be altered to the disadvantage of the investors.

7. Protection of transfer of ownership to private sector. The ownership, management and control of any banking, commercial, manufacturing or other company, establishment or enterprise transferred by the Government to any person under any law shall not again be compulsorily acquired or taken over by the Government for any reason whatsoever.

8. Protection of foreign and Pakistani Investment. No foreign, industrial or commercial enterprise established or owned in any form by a foreign or Pakistani investor for private gain in accordance with law, and no investment in share or equity of any company, firm, or enterprise, and no commercial bank or financial institution established, owned or acquired by any foreign or Pakistani investor, shall be compulsorily acquired or taken over by the Government.

9. Secrecy of Banking Transaction. Secrecy of bonafide banking transactions shall be strictly observed by all banks and financial institutions, by whosoever owned, controlled or managed.

10. Protection of financial obligation. All financial obligations incurred including those under any instrument, or any financial and contractual commitment made by or on behalf of the Government shall continue to remain in force, and shall not be altered to the disadvantage of the beneficiaries.

11. Rules. The Federal Government may make rules for carrying out the purposes of this Act.

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(*See* section 6)

1. Notification No. SRO 1283 (1)/90, dated the 13th December, 1990, issued under sub-section (2) of section 14 of the Income Tax Ordinance, 1979 (XXXI of 1979).

2. Notification No. SRO 1284 (1)/90, dated the 13th December, 1990, issued under section 19 of the Customs Act, 1969 (IV of 1969).

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SCHEDULE II.—[*Repealed.***]**

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THE PROVINCIAL INSOLVENCY ACT, 1920

[1]Act No. V OF 1920

[*25th February, 1920*]

An Act to consolidate and amend the Law relating to Insolvency [2]** * *, *as administered by Courts having jurisdiction outside* [3]** * * *the* [4]*[Karachi Division].*

WHEREAS it is expedient to consolidate and amend the law relating to insolvency [2]* * *, as administered by Courts having jurisdiction outside [3]* * * [5][the Karachi Division]; it is hereby enacted as follows :—

1. Short title and extent.—(1) This Act may be called the Provincial Insolvency Act, 1920.

[6][(2) It extends to the whole of Pakistan except the Karachi Division [7]* *.

2. Definitions.—(1) In this Act, unless there is anything repugnant in the subject or context,-

(a) "creditor" includes a decree-holder, "debt" includes a judgment-debt, and "debtor" includes a judgment-debtor ;

(b) "District Court" means the principal Civil Court of original jurisdiction in any area [8][outside the limits of the ordinary original civil jurisdiction of the [9][High Court of Sind] as defined in section 2 of the [10][Insolvency (Karachi Division and Dacca) Act (III of 1909)];

(c) "prescribed" means prescribed by rules made under this Act ;

(d) "property" includes any property over which or the profits of which any person as a disposing power, which he may exercise for his own benefit ;

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[1]For statement of Objects and Reasons, *see* Gazette of India, 1918, Pt. V, p.63 ; for Report of Select Committee, *see ibid*., 1919, Pt. V, p.119; and *ibid*., 1920, Pt. V, p.9 ; and for Proceedings in Council, *see ibid*., 1918, Pt. VI, pp. 761 and 1322, and *ibid*., 1920, Pt. VI, pp.15 and 389.
This Act has been amended in the Punjab by Punjab Acts 7 of 1934 and 3 of 1939 ; in Sind by Sind Act 25 of 1939 ; and in the Taluka of Karachi by Bom. Act 3 of 1935.
It has been amended in its application to the Province of West Pakistan by West Pakistan Ordinance 8 of 1959.
It has been extended by notification under section 5 of the Scheduled Districts Act, 1874 (14 of 1874), to—
Sind—see Gazette of India, 1920, Pt.I, p. 2052;
Scheduled Districts in the N.W.F.P—*see* Gazette of India, 1920, Pt. II, p. 910 ;
Baluchistan—*see* Baluchistan local R.& O.
It has been extended to the Leased Areas of Baluchistan; *see* the Leased Areas (Laws) Order, 1950 (G.G.O.3 of 1950) ; and also applied in the Federated Areas of Baluchistan, *see* Gazette of India, 1937, Pt. I. p. 1499.
[2]The words "in British India" omitted by A. O., 1949.
[3] The words "the Presidency-towns and" omitted, *ibid.*
[4] Subs. by F.A.O., 1975, Art, 2 and Sch., for "towns of Karachi and Dacca", which was previously amended by various enactments.
[5] The original words "the town of Rangoon" have successively been amended by the Insolvency (Amdt.) Act, 1926 (9 of 1926), s.11, A.O., 1937, and Ord. 21 of 1960, s. 3 and 2nd Sch. (*with affect from the 14th October, 1955*), to read as above.
[6]Sub-section (2) has successively been amended by A.O., 1949, Ord. 21 of 1960, s. 3 and 2nd Sch. (*with effect from the 14th October, 1955*), the Repealing and Amending Ordinance, 1961 (1 of 1961) and A.O., 1964, Art. 2 and Sch., to read as above.
[7]The words "and Dacca" omitted by F.A.O., 1975, Art. 2 and Sch.
[8]The original words "outside the local limits for the time being of the Presidency-towns and of the Town of Rangoon", have successively been amended by the Insolvency (Amdt.) Act, 1926 (9 of 1926), s. 11, A. O. 1937 and A. O. 1949, to read as above.
[9]Subs, by the Federal Laws (Revision and Declaration) Ordinance, 1981 (27 of 1981), s. 3 and Sch.II, for "Bench of the High Court of West Paksitan at Karachi", which was previously by various enactments.
[10]Subs. by A.O., 1964, Art 2 and Sch., for "Insolvency (Dacca and the Federal Territory of Karachi) Act" which had been subs. by Ord. 1 of 1961 s. 3 and 2nd Sch., for "Insolvency (Capital of the Federation and Dacca), Act".

(e) "secured creditor" means a person holding a mortgage, charge or lien on the property debtor or any part thereof as a security for a debt due to him from the debtor ; and

(f) "transfer of property" includes a transfer of any interest in property and the creation of any charge upon property.

(2) Words and expression used in this Act and defined in the Code of Civil Procedure, 1908 (V of 1908), and not hereinbefore defined shall have the same meanings as those respectively attributed to them by the said Code.

PART I

CONSTITUTION AND POWERS OF COURT

3. Insolvency Jurisdiction.—(1) The District Courts shall be the Courts having jurisdiction under this Act :

Provided that the [1][Provincial Government] may, by notification in the [2][official Gazette], invest any Court subordinate to a District Court with jurisdiction in any class of cases, and any Court so invested shall within the local limits of its jurisdiction have concurrent jurisdiction with the District Court under this Act.

(2) For the purpose of this Act, a Court of Small Causes shall be deemed to be subordinate to the District Court.

4. Power of Court to decide all questions arising in insolvency.—(1) Subject to the provision of this Act, the Court shall have full power to decide all questions whether of title or priority, or of any nature whatsoever, and whether involving matters of law or of fact, which may arise in any case of insolvency coming within the cognizance of the Court, or which the Court may deem it expedient or necessary to decide for the purpose of doing complete justice or making a complete distribution of property in any such case.

(2) Subject to the provisions of this Act and notwithstanding anything contained in any other law for the time being in force, every such decision shall be final and binding for all purposes as between, on the one hand, the debtor and the debtor's estate and, on the other hand, all claimants against him or it and all persons claiming through or under them or any of them.

(3) Where the Court does not deem it expedient or necessary to decide any question of the nature referred to in sub-section (1), but has a reason to believe that the debtor has a saleable interest in any property, the Court may without further inquiry sell such interest in such manner and subject to such conditions as it may think fit.

5. General powers of Courts.— (1) Subject to the provisions of this Act, the Court, in regard to proceedings under this Act, shall have the same powers and shall follow the same procedure as it has and follows in the exercise of original civil jurisdiction.

(2) Subject as aforesaid, High Courts and District Courts, in regard to proceedings under this Act in Courts subordinate to them shall have the same powers and shall follow the same procedure as they respectively have and follow in regard to civil suits.

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[1]Subs. by A.O., 1937, for "L. G.".
[2]Subs, *ibid*, for "local official Gazette".

PART II

PROCEEDINGS FROM ACT OF INSOLVENCY TO DISCHARGE

Acts of Insolvency

6. Acts of insolvency. A debtor commits an act of insolvency in each of the following cases namely :—

(a) If in [1][Pakistan] or elsewhere, he makes a transfer of all or substantially all his property to a third person for the benefit of his creditors generally ;

(b) If, in [1][Pakistan] or elsewhere, he makes a transfer of his property or of any part thereof, with intent to defeat or delay his creditors;

(c) If, in [1][Pakistan] or elsewhere, he makes any transfer of his property, or of any part thereof, which would, under this or any other enactment for the time being in force, be void as a fraudulent preference if he were adjudged an insolvent ;

(d) if, with intent to defeat or delay his creditors,—

(i) he departs or remains out of the [1][Pakistan],

(ii) he departs from his dwelling-house or usual place of business or otherwise absents himself,

(iii) he secludes himself so as to deprive his creditors of the means of communicating with him ;

(e) if any of his property has been sold in execution of the decree of any Court for the payment of money ;

(f) if he petitions to be adjudged an insolvent under the provisions of this Act ;

(g) if he gives notice to any of his creditors that he has suspended, or that he is about to suspend, payment of his debts ; or

(h) if he is imprisoned in execution of the decree of any Court for the payment of money.

Explanation.- For the purposes of this section the act of an agent may be the act of the principal.

Petition

7. Petition and adjudication.— Subject to the conditions specified in this Act, if a debtor commits an act of insolvency, an insolvency petition may be presented either by a creditor or by the debtor, and the Court may on such petition make an order (hereinafter called an order of adjudication) adjudging him an insolvent.

Explanation.- The presentation of a petition by the debtor shall be deemed an act of insolvency within the meaning of this section, and on such petition the Court may make an order of adjudication.

[1]Subs by the Central Laws (Statute Reform) Ordinance, 1960 (21 of 1960), s. 3 and 2nd Sch. (*with effect from the 14th October, 1955*), for "the Provinces and the Capital of the Federation" which had been subs. by A. O., 1949, for "British India".

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8. Exemption of corporation, etc., from insolvency proceedings.— No insolvency petition shall be presented against any corporation or against any association or company registered under any enactment for the time being in force.

9. Conditions on which creditor may petition.— **(1)** A creditor shall not be entitled to present in insolvency petition against a debtor unless—

(a) the debt owing by the debtor to the creditor, or, if two or more creditors join in the petition, the aggregate amount of debts owing to such creditors, amounts to five hundred rupees, and

(b) the debt is a liquidated sum payable either immediately or at some certain future time, and

(c) the act of insolvency on which the petition is grounded has occurred within three months before the presentation of the petition.

(2) If the petitioning creditor is a secured creditor, he shall in his petition either state that he is willing to relinquish his security for the benefit of the creditors in the event of the debtor being adjudged insolvent, or give an estimate of the value of the security. In the latter case, he may be admitted as a petitioning creditor to the extent of the balance of the debt due to him after deducting the value so estimated in the same way as if the were an unsecured creditor.

10. Conditions on which debtor may petition.— (1) A debtor shall not be entitled to present an insolvency petition, unless he is unable to pay his debts and—

(a) his debts amount to five hundred rupees; or[1]

(b) he is under arrest or imprisonment in execution of the decree of any Court for the payment of money ; or

(c) an order of attachment in execution of such a decree has been made, and is subsisting, against his property.

(2) A debtor is respect of whom an order of adjudication [2][whether made under the [3][Insolvency (Karachi Division) [4]* * Act], or under this Act (III of 1909)] has been annulled, owing to his failure to apply, or to prosecute an application for his discharge, shall not be entitled to present an insolvency petition without the leave of the Court by which the order of adjudication was annulled. Such Court shall not grant leave unless it is satisfied either that the debtor was prevented by any reasonable cause from presenting or prosecuting his application, as the case may be, or that the petition is founded on facts substantially different from those contained in the petition on which the order of adjudication was made.

11. Court to which petition shall be presented. Every insolvency petition shall be presented to a Court having jurisdiction under this Act in any local area in which the debtor ordinarily resides or carries on business, or personally works for gain, or if he has been arrested or imprisoned, where he is in custody :

[1]In its application to the Punjab, a new clause (*aa*) has been ins. here by the Punjab Relief of Indebtedness Act, 1934 (Punjab 7 of 1934), s. 3.
[2] Subs. by the Insolvency (Amdt.) Act, 1927 (11 of 1927), s. 4 for "made under this Act".
[3]Subs. by A.O., 1964, Art. 2 and Sch., for "Insolvency (Dacca and the Federal Territory of Karachi) Act", which had been subs. by the Repealing and Amending Ordinance, 1961 (1 of 1961), s. 3 and 2nd Sch., for "Insolvency (Capital of the Federation and Dacca), Act".
[4]The words, "and Dacca" omitted by F.A.O., 1975, Art.2 and Sch.,

Provided that no objection as to the place of presentment shall be allowed by any Court in the exercise of appellate or revisional jurisdiction unless such objection was taken in the Court by which the petition was heard at the earliest possible opportunity, and unless there has been a consequent failure of justice.

12. Verification of petitions. Every insolvency petition shall be in writing and shall be signed and verified in the manner prescribed by the Code of Civil Procedure, 1908 (V of 1908), for signing and verifying plaints.

13. Contains of petition.— (1) Every insolvency petition presented by a debtor shall contain the following particulars, namely :—

(*a*) a statement that the debtor is unable to pay his debts ;

(*b*) the place where he ordinarily resides or carries on business or personally works for gain, or, if he has been arrested or imprisoned, the place where he is in custody ;

(*c*) the Court (if any) by whose order he has been arrested or imprisoned, or by which an order has been made for the attachment of his property, together with particulars of the decree, in respect of which any such order has been made ;

(*d*) the amount and particulars of all pecuniary claims against him, together with the names and residences of his creditors so far as they are known to, or can by the exercise of reasonable care and diligence be ascertained by him ;

(*e*) the amount and particulars of all his property together with—

(*i*) a specification of the value of all such property not consisting of money;

(*ii*) the place or places at which any such property is to be found ; and

(*iii*) a declaration of his willingness to place at the disposal of the Court all such property save in so far as it includes such particulars (not being his books of account) as are exempted by the Code of Civil Procedure, 1908 (V of 1908), or by any other enactment for the time being in force from liability to attachment and sale in execution of a decree ;

(*f*) a statement whether the debtor has on any previous occasion filed a petition to be adjudged an insolvent, and (where such a petition has been filed)—

(*i*) if such petition has been dismissed, the reasons for such dismissal, or

(*ii*) if the debtor has been adjudged an insolvent, concise particulars of the insolvency, including a statement whether any previous adjudication has been annulled and, if so, the grounds therefor.

(2) Every insolvency petition presented by a creditor or creditors shall set forth the particulars regarding the debtor specified in clause (*b*) of sub-section (1), and shall also specify—

(*a*) the act of insolvency committed by such debtor, together with the date of its commission ; and

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(*b*) the amount and particulars of his or their pecuniary claim or claims against such debtor.

14. Withdrawal of petitions. No petition, whether presented by a debtor or by a creditor, shall be withdrawn without the leave of the Court.

15. Consolidation of petitions. Where two or more insolvency petitions are presented against the same debtor, or where separate petitions are presented against joint debtors, the Court may consolidate the proceedings or any of them, on such terms as the Court thinks fit.

16. Power to change carriage of proceedings. Where the petitioner does not proceed with due diligence on his petition, the Court may substitute as petitioner any other creditor to whom the debtor may be indebted in the amount required by this Act in the case of petitioning creditor.

17. Continuance of proceedings on death of debtor. If a debtor by or against whom an insolvency petition has been presented dies, the proceedings in the matter shall, unless the Court otherwise orders, be continued so far as may be necessary for the realisation and distribution of the property of the debtor.

18. Procedure for admission of petition. The procedure laid down in the Code of Civil Procedure, 1908 (V of 1908), with respect to the admission of plaints, shall, so far as it is applicable, be followed in the case of insolvency petitions.

19. Procedure on admission of petition.— (l) Where an insolvency petition is admitted, the Court shall make an order fixing a date for hearing the petition.

(2) Notice of the order under sub-section (1) shall be given to creditors in such manner as may be prescribed.

(3) Where the debtor is not the petitioner, notice of the order under sub-section (1) shall be served on him in the manner provided for the service of summons.

20. Appointment of interim receiver. The Court when making an order admitting the petition may, and where the debtor is the petitioner ordinarily shall, appoint an interim receiver of the property of the debtor or of any part thereof, and may direct him to take immediate possession thereof or of any part thereof, and the interim receiver shall thereupon have such of the powers conferrable on a receiver appointed under the Code of Civil Procedure, 1908 (V of 1908), as the Court may direct. If an interim receiver is not so appointed, the Court may make such appointment at any subsequent time before adjudication, and the provisions of [1][this section] shall apply accordingly.

21. Interim proceedings against debtor. At the time of making an order admitting the petition or at any subsequent time before adjudication the Court may either of its own motion or on the application of any creditor make one or more of the following orders, namely :—

(1) order the debtor to give reasonable security for his appearance until final orders are made upon the petition, and direct that, in default of giving such security, he shall be detained in the civil prison ;

[1]Subs. by the Repealing and Amending Act, 1939 (34 of 1939), s. 2 and Sch. I for "this sub-section".

(2) order the attachment by actual seizure of the whole or any part of the property in the possession or under the control of the debtor, other than such particulars (not being his books of account) as are exempted by the Code of Civil Procedure, 1908 (V of 1908), or by any other enactment for the time being in force from liability to attachment and sale in execution of a decree ;

(3) order a warrant to issue with or without bail for the arrest of the debtor, and direct either that he be detained in the civil prison until the disposal of the petition, or that he be released on such terms as to security as may be reasonable and necessary :

Provided that an order under clause (2) or clause (3) shall not be made unless the Court is satisfied that the debtor, with intent to defeat or delay his creditors or to avoid any process of the Court,—

(*i*) has absconded or has departed from the local limits of the jurisdiction of the Court or is about to abscond or to depart from such limits, or is remaining outside them, or

(*ii*) has failed to disclose or has concealed, destroyed, transferred or removed from such limits, or is about to conceal destroy transfer or remove from such limits, any documents likely to be of use to his creditors in the course of hearing or any part of his property other than such particulars as aforesaid.

22. Duties of debtors. The debtor shall on the making of an order admitting the petition produce all books of account, and shall at any time thereafter give such inventories of his property, and such lists of his creditors and debtors and of the debts due to and from them respectively , submit to such examination in respect of his property or his creditors, attend at such times before the Court or receiver, execute such instruments, and generally do all such acts and things in relation to his property as may be required by the Court or receiver, or as may be prescribed.

23. Release of debtor.-(1) At the time of making an order admitting the petition or at any subsequent time before adjudication, the Court may, if the debtor is under arrest or imprisonment in execution of the decree of any Court for the payment of money, order his release on such terms as to security as may be reasonable and necessary.

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(2) The Court may at any time order any person who has been released under this section to be re-arrested and re-committed to the custody from which he was released.

(3) At the time of making any order under this section, the Court shall record in writing its reason therefor.

24. Procedure at hearing.— (1) On the day fixed for the hearing of the petition, or on any subsequent day to which the hearing may be adjourned, the Court shall require proof of the following matters, namely:—

(a) that the creditor or the debtor, as the case may be, is entitled to present the petition :

Provided that, where the debtor is the petitioner, he shall, for the purpose of proving his inability to pay his debts, be required to furnish only such proof as to satisfy the Court that there are *prima facie* grounds for believing the same and the Court, if and when so satisfied, shall not be bound to hear any further evidence thereon ;

(*b*) that the debtor, if he does not appear on a petition presented by a creditor, has been served with notice of the order admitting the petition ; and

(c) that the debtor has committed the act of insolvency alleged against him.

(2) The Court shall also examine the debtor, if he is present, as to his conduct, dealings and property in the presence of such creditors as appear at the hearing, and the creditors shall have the right to question the debtor thereon.

(3) The Court shall, if sufficient cause is shown, grant time to the debtor or to any creditor to produce any evidence which appears to it to be necessary for the proper disposal of the petition.

(4) A memorandum of the substance of the examination of the debtor and of any other oral evidence given shall be made by the Judge, and shall form part of the record of the case.

25. Dismissal of petition.— (1) In the case of a petition presented by a creditor, where the Court is not satisfied with the proof of his right to present the petition or of the service on the debtor of notice of the order admitting the petition, or of the alleged act of insolvency, or is satisfied by the debtor that he is able to pay his debts, on that for any other sufficient cause no order ought to be made, the Court shall dismiss the petition.

(2) In the case of a petition presented by a debtor, the Court shall dismiss the petition if it is not satisfied of his right to present the petition.

26. Award of compensation.— (1) Where a petition presented by a creditor is dismissed under sub-section (1) of section 25, and the Court is satisfied that the petition was frivolous or vexatious, the Court may, on the application of the debtor, award against such creditor such amount, not exceeding one thousand rupees, as it deems a reasonable compensation to the debtor for the expense or injury occasioned to him by the petition and the proceedings thereon, and such amount may be realised as if it were a fine.

(2) An award under this section shall bar any suit for compensation in respect of such petition and the proceedings thereon.

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Order of Adjudication

27. Order of adjudications.— (1) If the Court does not dismiss the petition, it shall make an order of adjudication, and shall specify in such order the period within which the debtor shall apply for his discharge.

(2) The Court may, if sufficient cause is shown, extend the period within which the debtor shall apply for his discharge, and in that case shall publish notice of the order in such manner as it thinks fit.

28. Effect of an order of adjudication.— (1) On the making of an order of adjudication, the insolvent shall aid to the utmost of his power in the realisation of his property and the distribution of the proceeds among his creditors.

(2) On the making of an order of adjudication, the whole of the property of the insolvent shall vest in the Court or in a receiver as hereinafter provided, and shall become divisible among the creditors, and thereafter, except as provided by this Act, no creditor to whom the insolvent is indebted in respect of any debt provable under this Act shall during the pendency of the insolvency proceedings

have any remedy against the property of the insolvent in respect of the debt, or commence any suit or other legal proceeding, except with the leave of the Court and on such terms as the court may impose.

(3) For the purposes of sub-section (2), all goods being at the date of the presentation of the petition on which the order is made, in the possession, order or disposition of the insolvent in his trade or business, by the consent and permission of the true owner, under such circumstances that he is the reputed owner thereof, shall be deemed to be the property of the insolvent.

(4) All property which is acquired by or devolves on the insolvent after the date of an order of adjudication and before his discharge shall forthwith vest in the Court or receiver, and the provisions of sub-section (2) shall apply in respect thereof.

(5) The property of the insolvent for the purposes of this section shall not include any property (not being books of account) which is exempted by the Code of Civil Procedure, 1908 (V of 1908), or by any other enactment for the time being in force from liability to attachment and sale in execution of a decree.

(6) Nothing in this section shall affect the power of any secured creditor to realise or otherwise deal with his security, in the same manner as he would have been entitled to realise or deal with it if this section had not been passed.

(7) An order of adjudication shall relate back to, and take affect from, the date of the presentation of the petition on which it is made.

29. Stay of pending proceeding. Any Court in which suit or other proceeding is pending against a debtor shall, on proof that an order of adjudication has been made against him under this Act, either stay the proceeding, or allow it to continue on such terms as such Court may impose.

30. Publication of order of adjudication. Notice of an order of adjudication stating the name, address and description of the insolvent, the date of the adjudication, the period within which the debtor shall apply for his discharge, and the Court by which the adjudication is made, shall be published in the [1][official Gazette] and in such other manner as may be prescribed.

Proceedings consequent on order of Adjudication

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31. Protection order.— (1) Any insolvent in respect of whom an order of adjudication has been made may apply to the Court for protection, and the Court may on such application make an order for the protection of the insolvent from arrest or detention.

(2) A protection order may apply either to all the debts of the debtor, or to any of them as the Court may think proper, and may commence and take effect at and for such time as the Court may direct, and may be revoked or renewed as the Court may think fit.

(3) A protection order shall protect the insolvent from being arrested or detained in prison for any debt to which such order applies, and any insolvent arrested or detained contrary to the terms of such an order shall be entitled to his release :

Provided that no such order shall operate to prejudice the rights of any creditor in the event of such order being revoked or the adjudication annulled.

[1]Subs. by A.O., 1937, for "local official Gazette".

(4) Any creditor shall be entitled to appear and oppose the grant of a protection order.

32. Power to arrest after adjudication. At any time after an order of adjudication has been made, the Court may, if it has reason to believe on the application of any creditor or the receiver that the debtor has absconded or departed from the local limits of its jurisdiction with intent to avoid any obligation which has been, or might be, imposed on him by or under this Act, order a warrant to issue for his arrest, and on his appearing or being brought before it, may, if satisfied that he was absconding or had departed with such intent, order his release on such terms as to security as may be reasonable or necessary, or, if such security is not furnished, direct that he shall be detained in the civil prison for a period which may extend to three months.

33. Schedule of creditors.— (1) When an order of adjudication has been made under this Act, all persons alleging themselves to be creditors of the insolvent in respect of debts provable under this Act shall tender proof of their respective debts by producing evidence of the amount and particulars thereof, and the Court shall, by order, determine the persons who have proved themselves to be creditors of the insolvent in respect of such debts, and the amount of such debts, respectively, and shall frame a schedule of such persons and debts :

Provided that, if, in the opinion of the Court, the value of any debt is incapable of being fairly estimated, the Court may make an order to that effect, and thereupon the debt shall not be included in the schedule.

(2) A copy of every such schedule shall be posted in the Courthouse.

(3) Any creditor of the insolvent may, at any time before the discharge of the insolvent, tender proof of his debt and apply to the Court for an order directing his name to be entered in the schedule as a creditor in respect of any debt provable under this Act, and not entered in the schedule, and the Court, after causing notice to be served on the [1][receiver] and other creditors who have proved their debts, and hearing their objections (if any), shall comply with or reject the application.

34. Debts provable under the Act.— (1) Debts which have been excluded from the schedule on the ground that their value is incapable of being fairly estimated and demands in the nature of unliquidated damages arising otherwise than by reasons of a contract or a breach of trust shall not be provable under this Act.

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(2) Save as provided by sub-section (1), all debts and liabilities, present or future, certain or contingent, to which the debtor is subject when he is adjudged an insolvent, or to which he may become subject before his discharge by reason of any obligation incurred before the date of such adjudication, shall be deemed to be debts provable under this Act.

Annulment of Adjudication

35. Power to annual adjudication of insolvency. Where, in the opinion of the Court, a debtor ought not to have been adjudged insolvent, or where it is proved to the satisfaction of the Court that the debts of the insolvent have been paid in full, the Court shall, on the application of the debtor, or of any other, person interested, by order in writing, annul the adjudication [2][and the Court may, of its own motion or on application made by the receiver or any creditor, annul any adjudication made on the petition of a debtor who was, by reason of the provisions of sub-section (2) of section 10, not entitled to present such petition].

[1]Subs. by the Provincial Insolvency (Amdt.) Act, 1926 (39 of 1926), s. 2, for "insolvent".
[1]Ins. by the Insolvency (Amdt.) Act, 1927 (11 of 1927), s. 5.

36. Power to cancel one of concurrent orders of adjudication. If, in any case in which an order of adjudication has been made, it shall be proved to the Court by which such order was made that insolvency proceedings are pending in another Court against the same debtor, and that the property of the debtor can be more conveniently distributed by such other Court, the Court may annul the adjudication or stay all proceedings thereon.

37. Proceedings on annulment.—(1) Where an adjudication is annulled, all sales and dispositions of property and payments duly made, and all acts theretofore done, by the Court or receiver, shall be valid; but, subject as aforesaid, the property of the debtor who was adjudged insolvent shall vest in such person as the Court may appoint, or, in default of any such appointment, shall revert to the debtor to the extent of his right or interest therein on such conditions (if any) as the Court may, by order in writing, declare.

(2) Notice of every order annulling an adjudication shall be published in the [1][official Gazette] and in such other manner as may be prescribed.

Compositions and schemes of arrangement

38. Compositions and schemes of arrangement.— (1) Where a debtor, after the making of an order of adjudication, submits a property for a composition in satisfaction of his debts, or a proposal for a scheme of arrangement of his affairs, the Court shall fix a date for the consideration of the proposal, and shall issue a notice to all creditors in such manner as may be prescribed.

(2) If, on the consideration of the proposal, a majority in number and three-fourths in value of all the creditors whose debts are proved and who are present in person or by pleader, resolve to accept the proposal, the same shall be deemed to be duly accepted by the creditors.

(3) The debtor may at the meeting amend the terms of his proposal if the amendment is, in the opinion of the Court, calculated to benefit the general body of creditors.

(4) Where the Court is of opinion, after hearing the report of the receiver, if a receiver has been appointed, and after considering any objections which may be made by or on behalf of any creditor, that the terms of the proposal are not reasonable or are not calculated to benefit the general body of creditors, the Court shall refuse to approve the proposal.

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(5) If any facts are proved on proof of which the Court would be required either to refuse, suspend or attach conditions to the debtor's discharge, the Court shall refuse to approve the proposal unless it provides reasonable security for payment of not less than six annas in the rupee on all the unsecured debts provable against the debtor's estate.

(6) No composition or scheme shall be approved by the Court which does not provide for the payment in priority to other debts of all debts directed to be so paid in the distribution of the property of an insolvent.

(7) In any other case the Court may either approve or refuse to approve the proposal.

[1]Subs. by A.O., 1937, for "local official Gazette".

39. Order on approval. If the Court approves the proposal, the terms shall be embodied in an order of the Court, and [1]* * * the order of adjudication shall be annulled, and the provisions of section 37 shall apply, and the composition or scheme shall be binding on all the creditors [2][so far as relates to any debt due to them from the debtor and provable under this Act].

40. Power to re-adjudge debtor insolvent. If default is made in the payment of any instalment due in pursuance of the composition or scheme, or if it appears to the Court that the composition or scheme cannot proceed without injustice or undue delay, or that the approval of the Court was obtained by fraud, the Court may, if it thinks fit, re-adjudge the debtor insolvent and annul the composition or scheme but without prejudice to the validity of any transfer or payment duly made or of anything duly done under or in pursuance of the composition or scheme. When a debtor is re-adjudged insolvent under this section, all debts provable in other respects which have been contracted before the date of such re-adjudication shall be provable in the insolvency.

Discharge

41. Discharge.— (1) A debtor may, at any time after the order of adjudication and shall, within the period specified by the Court, apply to the Court for an order of discharge, and the Court shall fix a day, notice whereof shall be given in such manner as may be prescribed, for hearing such application, and any objections which may be made thereto.

(2) Subject to the provisions of this section, the Court may, after considering the objections of any creditor and, where a receiver has been appointed, the report of the receiver—

(*a*) grant or refuse an absolute order of discharge ; or

(*b*) suspend the operation of the order for a specified time ; or

(*c*) grant an order of discharge subject to any conditions with respect to any earnings or income which may afterwards become due to the insolvent, or with respect to his after-acquired property.

42. Cases in which Court must refuse an absolute discharge.— (1) The Court shall refuse to grant an absolute order of discharge under section 41 on proof of any of the following facts, namely:—

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(*a*) that the insolvent's assets are not of a value equal to eight annas in the rupees on the amount of his unsecured liabilities, unless he satisfies the Court that the fact that the assets are not of a value equal to eight annas in the rupee on the amount of his unsecured liabilities has arisen from circumstances for which he cannot justly be held responsible ;

(*b*) that the insolvent has omitted to keep such books of account as are usual and proper in the business carried on by him and as sufficiently disclose his business transactions and financial position within the three years immediately preceding his insolvency ;

(*c*) that the insolvent has continued to trade after knowing himself to be insolvent ;

[1]The words "the Court shall frame a schedule in accordance with the provisions of section 33" rep. by the Provincial Insolvency (Amdt.) Act, 1935 (10 of 1935), s. 2.
[2]Subs. *ibid.*, for "entered in the said schedule so far as relates to any debts entered therein.".

(*d*) that the insolvent has contracted any debt provable under this Act without having at the time of contracting it any reasonable or probable ground of expectation (the burden of proving which shall lie on him) that he would be able to pay it ;

(*e*) that the insolvent has failed to account satisfactorily for any loss of assets or for any deficiency of assets to meet his liabilities ;

(*f*) that the insolvent has brought on, or contributed to, his insolvency by rash and hazardous speculations, or by unjustifiable extravagance in living, or by gambling, or by culpable neglect of his business affairs ;

(*g*) that the insolvent has, within three months preceding the date of the presentation of the petition, when unable to pay his debts as they became due, given an undue preference to any of his creditors ;

(*h*) that the insolvent has on any previous occasion been adjudged an insolvent or made a composition or arrangement with his creditors ;

(*i*) that the insolvent has concealed or removed his property or any part thereof, or has been guilty of any other fraud or fraudulent breach of trust.

(2) For the purposes of this section, the report of the receiver shall be deemed to be evidence ; and the Court may presume the correctness of any statement contained therein.

(3) The powers of suspending, and of attaching conditions to, an insolvent's discharge may be exercised concurrently.

43. Adjudication to be annulled on failure to apply for discharge.— (1) If the debtor does not appear on the day fixed for hearing his application for discharge or on such subsequent day as the Court may direct, or if the debtor does not apply for an order of discharge within the period specified by the Court, the order of adjudication shall be annulled, and the provisions of section 37 shall apply accordingly.

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(2) Where a debtor has been released from custody under the provisions of this Act and the order of adjudication is annulled under sub-section (1), the Court may, if it thinks fit, re-commit the debtor to his former custody, and the officer incharge of the prisoner to whose custody such debtor is so re-commited shall receive such debtor into his custody according to such re-commitment, and thereupon all processes which were in force against the person of such debtor at the time of such release as aforesaid shall be deemed to be still in force against him as if no order of adjudication had been made.

44. Effect of order of discharge.— (1) An order of discharge shall not release the insolvent from—

(*a*) any debt due to the [1][Government] ;

(*b*) any debt or liability incurred by means of any fraud or fraudulent breach of trust to which he was a party;

[1]Subs by A.O., 1961, Art. 2, for "Crown" (*with effect from the 23rd March, 1956*)

(*c*) any debt or liability in respect of which he has obtained forbearance by any fraud to which he was a party ; or

[1][(*d*) any liability under an order for maintenance of a wife or child.]

(2) Save as otherwise provided by sub-section (1), an order of discharge shall release the insolvent from all debts provable under this Act.

(3) An order of discharge shall not, release any person who, at the date of the presentation of the petition, was a partner or co-trustee with the insolvent, or was jointly bound or had made any joint contract with him or any person who was surety for him.

PART III

ADMINISTRATION OF PROPERTY

Method of Proof of debts

45. Debt payable at a future time. A creditor may prove for a debt not payable when the debtor is adjudged an insolvent as if it were payable presently, and may receive dividends equally with the other creditors, deducting therefrom only rebate of interest at the rate of six per centum per annum computed from the declaration of a dividend to the time when the debt would have become payable, according to the terms on which it was contracted.

46. Mutual dealings and set-off. Where there have been mutual dealings between an insolvent and a creditor proving or claiming to prove a debt under this Act, an account shall be taken of what is due from the one party to the other in respect of such mutual dealings and the sum due from the one party shall be set-off against any sum due from the other party, and the balance of the account, and no more, shall be claimed or paid on either respectively.

47. Secured creditors.— **(1)** Where a secured creditor realises his security, he may prove for the balance due to him, after deducting the net amount realised.

(2) Where a secured creditor relinquishes his security for the general benefit of the creditors, he may prove for his whole debt.

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(3) Where a secured creditor does not either realise or relinquish his security, he shall, before being entitled to have his debt entered in the schedule, state in his proof the particulars of his security, and the value at which he assesses it, and shall be entitled to receive a dividend only in respect of the balance due to him after deducting the value so assessed.

(4) Where a security is so valued, the Court may at any time before realisation redeem it on payment to the creditor of the assessed value.

(5) Where a creditor, after having valued his security, subsequently realises it, the net amount realised shall be substituted for the amount of valuation previously made by the creditor, and shall be treated in all respects as an amended valuation made by the creditor.

(6) Where a secured creditor does not comply with the provisions of this section, he shall be excluded from all share in any dividend.

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[1]Subs. by the Federal Laws (Revision and Declaration) Ordinance, 1981 (27 of 1981), s. 3 Sch. II, for clause (d).

48. Interest.— (1) On any debt or sum certain whereon interest is not reserved or agreed for, and which is overdue when the debtor is adjudged an insolvent, and which is provable under this Act, the creditor may prove for interest at rate not exceeding six per centum per annum—

(*a*) if the debt or sum is payable by virtue of a written instrument at a certain time, from the time when such debt or sum was payable to the date of such adjudication ; or

(*b*) if the debt or sum is payable otherwise, from the time when a demand in writing has been made giving the debtor notice that interest will be claimed from the date of the demand until the time of payment to the date of such adjudication.

(2) Where a debt which has been proved under this Act includes interest or any pecuniary consideration in lieu of interest, the interest or consideration shall, for the purposes of dividend, be calculated at a rate not exceeding six per centum per annum, without prejudice to the right of a creditor to receive out of the debtor's estate any higher rate of interest to which he may be entitled after all the debts proved have been paid in full.

49. Mode of proof.— (1) A debt may be proved under this Act by delivering, or sending by post in a registered letter, to the Court an affidavit verifying the debt.

(2) The affidavit shall contain or refer to a statement of account showing the particulars of the debt, and shall specify the vouchers (if any) by which the same can be substantiated. The Court may at any time can for the production of the vouchers.

50. Disallowance and reduction of entries in schedule.— (1) Where the receiver thinks that a debt has been improperly entered in the schedule, the Court may, on the application of the receiver and after notice to the creditor, and such inquiry (if any) as the Court thinks necessary, expunge such entry or reduce the amount of the debt.

(2) The Court may also, after like inquiry, expunge an entry or reduce the amount of a debt upon the application of creditor where no receiver has been appointed, or where the receiver declines to interfere in the matter or, in the case of a composition or scheme, upon the application of the debtor.

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Effect of insolvency on antecedent transactions

51. Restriction of rights of creditor under execution.— (1) Where execution of a decree has issued against the property of a debtor, no person shall be entitled to the benefit of the execution against the receiver except in respect of assets realised in the course of the execution by sale or otherwise before the date of the admission of the petition.

(2) Nothing in this section shall affect the rights of a secured creditor in respect of the property against which the decree is executed.

(3) A person who in good faith purchases the property of a debtor under a sale in execution shall in all cases acquire a good title to it against the receiver.

52.Duties of Court executing decree as to property taken in execution. Where execution of a decree has issued against any property of a debtor which is saleable in execution and before the sale thereof notice is given to the Court executing the decree that an insolvency petition by or against the debtor has been admitted, the Court shall, on application, direct the property, if in the possession of the Court, to be delivered to the receiver, but the costs of the suit in which the decree was made and of

the execution shall be a first charge on the property so delivered, and the receiver may sell the property or an adequate part thereof for the purpose of satisfying the charge.

53. Avoidance of voluntary transfer. Any transfer of property not being a transfer made before and in consideration of marriage or made in favour of a purchaser or incumbrancer in good faith and for valuable consideration shall, if the transferor is adjudged insolent [1][on a petition presented] within two years after the date of the transfer, be voidable as against the receiver and may be annulled by the Court.

54. Avoidance of preference in certain cases.— (1) Every transfer of property, every payment made, every obligation incurred, and every judicial proceeding taken or suffered by any person unable to pay his debt as they become due from his own money in favour of any creditor, with a view of giving that creditor a preference over the other creditors, shall, if such person is adjudged insolvent on a petition presented within three months after the date thereof, be deemed fraudulent and void as against the receiver, and shall be annulled by the Court.

(2) This section shall not effect the rights of any person who in good faith and for valuable consideration has acquired a title through or under a creditor of the insolvent.

[2]**[54A. By whom petitions for annulment may be made**. A petition for the annulment of any transfer under section 53, or of any transfer, payment, obligation or judicial proceeding under section 54, may be made by the receiver or with the leave of the Court, by any creditor who has proved his debt and who satisfies the Court that the receiver has been requested and has refused to make such petition.]

55. Protection of bona fide transactions. Subject to the foregoing provisions of this Act with respect to the effect of insolvency on an execution, and with respect to the avoidance of certain transfers and preferences, nothing in this Act shall invalidate in the case of an insolvency—

(a) any payment by the insolvent to any of his creditors ;

(b) any payment or delivery to the insolvent ;

(c) any transfer by the insolvent for valuable consideration ; or

(d) any contract or dealing by or with the insolvent for valuable consideration :

Provided that any such transaction takes place before the date of the order of adjudication, and that the person with whom such transaction takes place has not at the time notice of the presentation of any insolvency petition by or against the debtor.

Realisation of Property

56. Appointment of receiver.-(1) The Court may, at the time of the order of adjudication, or at any time afterwards, appoint a receiver for the property of the insolvent, and such property shall thereupon vest in such receiver.

(2) Subject to such conditions as may be prescribed, the Court may—

[1]Ins. by the Insolvency Law (Amdt.) Act, 1930 (10 of 1930), s. 6.
[2]S. 54A ins. by the Provincial Insolvency (Amdt.) Act, 1926 (39 of 1926).

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(*a*) require the receiver to give such security as it thinks fit duly to account for what he shall receive in respect of the property ; and

(*b*) by general or special order, fix the amount to be paid as remuneration for the services of the receiver out of the assets of the insolvent.

(3) Where the Court appoints a receiver, it may remove the person in whose possession or custody any such property as aforesaid is from the possession or custody thereof :

Provided that nothing in this section shall be deemed to authorise the Court to remove from the possession or custody of property any person whom the insolvent has not a present right so to remove.

(4) Where a receiver[1] appointed under this section—

(*a*) fails to submit his accounts at such periods and in such form as the Court directs, or

(*b*) fails to pay the balance due from him thereon as the Court directs , or

(*c*) occasions loss to the property by his wilful default or gross negligence,

the Court may direct his property to be attached and sold, and may apply the proceeds to make good any balance found to be due from him or any loss so occasioned by him.

(5) The provisions of this section shall apply, so far as may be, to interim receivers appointed under section 20.

57. Power to appoint Official Receiver.—(1) The [2][Provincial Government] may appoint such persons as it thinks fit (to be called "Official Receivers") to be receivers under this Act within such local limits as it may prescribe.

(2) Where any Official Receiver has been so appointed for the local limits of the jurisdiction of any Court having jurisdiction under this Act, he shall be the receiver for the purpose of every order appointing a receiver or an interim receiver issued by any such Court, unless the Court for special reasons otherwise directs.

(3) Any sum payable under clause (*b*) of sub-section (2) of section 56 in respect of the services of an Official Receiver shall be credited[3] to such fund as the [2][Provincial Government] may direct.

(4) Every Official Receiver shall receive such remuneration out of the said fund or otherwise as the [2][Provincial Government] may fix in this behalf, and no remuneration whatever beyond that so fixed shall be received by the Official Receiver as such[3].

58. Powers of Court if no receiver appointed. Where no receiver is appointed, the Court shall have all the rights of, and may exercise all the powers conferred on, a receiver under this Act.

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[1]In the application of the Act to the taluka of Karachi, certain words have been ins. at this place by the Karachi Insolvency (Amdt.) Act, 1935 (Bom.3 of 1935), s. 3.

[2]Subs. by A.O., 1937 for "L.G.".

[3]In the application of the Act to the taluka of Karachi, certain words have been ins. in sub-section (3) of s. 57; and new ss. 57A to 57E have been ins. after s. 57, by the Karachi Insolvency (Amdt.) Act, 1935 (Bom. 3 of 1935), s. 3.

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59. Duties and powers of receiver. Subject to the provisions of this Act, the receiver shall, with all convenient speed, realise the property of the debtor and distribute dividends among the creditors entitled thereto, and for that purpose may—

(a) sell all or any part of the property of the insolvent ;

(b) give receipts for any money received by him;

and may, by leave of the Court do all or any of the following things, namely :—

(c) carry on the business of the insolvent so far as may be necessary for the beneficial winding up of the same ;

(d) institute, defend or continue any suit or other legal proceedings relating to the property of the insolvent ;

(e) employ a pleader or other agent to take any proceedings or do any business which may be sanctioned by the Court ;

(f) accept as the consideration for the sale of any property of the insolvent a sum of money payable at a future time subject to such stipulations as to security and otherwise as the Court thinks fit ;

(g) mortgage or pledge any part of the property of the insolvent for the purpose of raising money for the payment of his debts ;

(h) refer any dispute to arbitration, and compromise all debts, claims and liabilities, on such terms as may be agreed upon ; and

(i) divide in its existing form amongst the creditors, according to its estimated value, any property which, from its peculiar nature or other special circumstances, cannot readily or advantageously be sold.

[1]**[59A. Power to require information regarding insolvent's property**.—(1) The Court, if specially empowered in this behalf by an order of the [2][Provincial Government], or any officer of the Court so empowered by a like order, may, on the application of the receiver or any creditor who has proved his debt, at any time after an order of adjudication has been made, summon before it in the prescribed manner any person known or suspected to have in his possession any property belonging to the insolvent, or supposed to be indebted to the insolvent, or any person whom the Court or such officer, as the case may be, may deem capable of giving information respecting the insolvent or his dealings or property, and the Court or such officer may require any such person to produce any documents in his custody or power relating to the insolvent or to his dealings or property.

(2) If any person so summoned, after having been tendered a reasonable sum, refuses to come before the Court or such officer at the time appointed, or refuses to produce any such document, having no lawful impediment made known to and allowed by the Court or such officer, the Court or such officer may, by warrant, cause him to be apprehended and brought up for examination.

[1]S. 59A ins. by the Provincial Insolvency (Amdt.) Act, 1926 (39 of 1926), s. 4.
[2]Subs. by A.O., 1937, for "L.G.".

60. Special provisions in regard to immovable property.— (1) In any local area in which a declaration has been made under section 68 of the Code of Civil Procedure, 1908 (V of 1908), and is in force, on sale of immovable property paying revenue to the Government or held or let for agricultural purposes shall be made by the receiver ; but, after the other property of the insolvent has been realised, the Court shall ascertain—

(*a*) the amount required to satisfy the debts proved under this Act after deducting the monies already received ;

(*b*) the immoveable property of the insolvent remaining unsold ; and

(*c*) the incumbrances (if any) existing thereon ;

and shall forward a statement to the Collector containing the particulars aforesaid; and thereupon the Collector shall proceed to raise the amount so required by the exercise of such of the powers conferred on him by paragraphs 2 to 10 of the Third Schedule to the said Code as he thinks fit, and subject to the provisions of those paragraphs so far as they are applicable, and shall hold at the disposal of the Court all sums that may come to his hands by the exercise of such powers.

(2) Nothing in this Act shall be deemed to affect any provisions of any enactment for the time being in force prohibiting or restricting the execution of decrees or orders against immoveable property; and any such provisions shall be deemed to apply to the enforcement of an order of adjudication made under this Act as if it were such a decree or order.

Distribution of Property

61. Priority of debts.—(1) In the distribution of the property of the insolvent, there shall be paid in priority to all other debts :—

(*a*) all debts due to the [1][Government] or to any local authority ; and

(*b*) all salary or wages, not exceeding twenty rupees in all, of any clerk, servant or labourer in respect of services rendered to the insolvent during four months before the date of the presentation of the petition.

(2) The debts specified in sub-section (1) shall rank equally between themselves, and shall be paid in full, unless the property of the insolvent is insufficient to meet them, in which case they shall abate in equal proportions between themselves.

(3) Subject to the retention of such sums as may be necessary for the expenses of administration or otherwise, the debts specified in sub-section (1) shall be discharged forthwith in so far as the property of the insolvent is sufficient to meet them.

(4) In the case of partners, the partnership property shall be applicable in the first instance in payment of the partnership debts, and the separate property of each partner shall be applicable in the first instance in payment of his separate debts. Where there is a surplus of the separate property of the partners, it shall be dealt with as part of the partnership property; and where there is a surplus of the partnership property, it shall be dealt with as part of the respective separate property in proportion to the rights and interests of each partner in the partnership property.

[1]Subs. by A.O., 1961, Art. 2, for "Crown" (*with effect from the 23rd March, 1956*).

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(5) Subject to the provisions of this Act, all debts entered in the schedule shall be paid rateably according to the amounts of such debts respectively and without any preference.

(6) Where there is any surplus after payment of the foregoing debts, it shall be applied in payment of interest from the date on which the debtor is adjudged an insolvent at the rate of six per centum per annum on all debts entered in the schedule.

62. Calculation of dividends.— (1) In the calculation of dividends, the receiver shall retain in his hands sufficient assets to meet—

(*a*) debts provable under this Act and appearing, from the insolvent's statement or otherwise, to be due to persons resident in places so distant that in the ordinary course of communication they have not had sufficient time to tender their proofs ;

(*b*) debts provable under this Act, the subject of claims not yet determined ;

(*c*) disputed proofs or claims ; and

(*d*) the expenses necessary for the administration of the estate or otherwise.

(2) Subject to the provisions of sub-section (1), all money in hand shall be distributed as dividends.

63. Right of creditor who has not proved debt before declaration of a dividend. Any creditor who has not proved his debt before the declaration of any dividend or dividends shall be entitled to be paid, out of any money for the time being in the hands of the receiver, any dividend or dividends which he may have failed to receive before that money is applied to the payment of any future dividend or dividends; but he shall not be entitled to disturb the distribution of any dividend declared before his debt was proved by reason that he has not participated therein.

64. Final dividend. When the receiver has realised all the property of the insolvent or so much thereof as can, in the opinion of the Court, be realised without needlessly protracting the receivership, he shall declare a final dividend; but before so doing, he shall give notice in manner prescribed to the persons whose claims to be creditors have been notified but not proved, that if they do not prove their claims within the time limited by the notice, he will proceed to make a final dividend without regard to their claims. After the expiration of the time so limited, or if the Court, on application by any such claimant, grants him further time for establishing his claim, then on the expiration of such further time, the property of the insolvent shall be divided among the creditors entered in the schedule without regard to the claims of any other persons.

[1]**[65. No suit for dividend.** No suit for a dividend shall lie against the receiver; but where the receiver refuses to pay any dividend, the Court may, on the application of any creditor who is entered in the schedule, order him to pay it, and also to pay out of his own money interest thereon for the time that it is withheld, and the costs of the application.

66. Management by and allowance to insolvent.— (1) The Court may appoint the insolvent himself to superintend the management of the property of the insolvent or of any part thereof, or to carry on the trade (if any) of the insolvent for the benefit of the creditors, and in any other respect to aid in administering the property in such manner and on such terms as the Court may direct.

[1]In its application to the taluka of Karachi, this section has been amended by the Karachi Insolvency (Amdt.) Act, 1935 (Bom. 3 of 1935), s. 3.

(2) The Court may, from time to time, make such allowance as it may think just to the insolvent out of his property for the support of himself and his family, or in consideration of his services if he is engaged in winding up his estate; but any such allowance may, at any time, be varied or determined by the Court.

67. Right of insolvent to surplus. The insolvent shall be entitled to any surplus remaining after payment in full of his creditors with interest as provided by this Act, and of the expenses of the proceedings taken thereunder.

[1]**[67A. Committee of inspection.—(1)** The Court may, if it thinks fit, authorise the creditors who have proved their debts to appoint a committee of inspection for the purpose of superintending the administration of the insolvent's property by the receiver.

(2) The persons appointed to a committee of inspection shall be creditors who have proved their debts or persons holding general powers-of-attorney from such creditors.

(3) The committee of inspection shall have such powers of control over the proceedings of the receiver as may be prescribed.]

Appeal to court against receiver

68. Appeal to Court against receiver. If the insolvent or any of the creditors or any other persons is aggrieved by any act or decision of the receiver, he may apply to the Court, and the Court may confirm, reverse or modify the act or decision complained of, and make such order as it thinks just :

Provided that no application under this section shall be entertained after the expiration of twenty-one days from the date of the act or decision complained of.

PART IV

PENALTIES

69. Offences by debtors. If a debtor, whether before or after the making of an order of adjudication,—

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(*a*) wilfully fails to perform the duties imposed on him by section 22 or to deliver up possession of any part of his property which is divisible among his creditors under this Act, and which is for the time being in his possession or under his control to the Court or to any person authorised by the Court to take possession of it, or

(*b*) fraudulently with intent to conceal the state of his affairs or to defeat the objects of this Act,—

(*i*) has destroyed or otherwise wilfully prevented or purposely withheld the production of any document relating to such of his affairs as are subject to investigation under this Act, or

(*ii*) has kept or caused to be kept false books, or

[1]S. 67A ins. by the Provincial Insolvency (Amdt.) Act, 1926 (39 of 1926), s. 5.

(*iii*) has made false entries in or withheld entries from or wilfully altered or falsified any document relating to such of his affairs as are subject to investigation under this Act, or

(*c*) fraudulently with intent to diminish the sum to be divided among his creditors or to give an undue preference to any of his creditors ;—

(*i*) has discharged or concealed any debt due to or from him, or

(*ii*) has made away with, charged, mortgaged or concealed any part of his property of any kind whatsoever,

he shall be punishable on conviction [1]* * * with imprisonment which may extend to one year.

[2]**[70. Procedure on charge under section 69**. Where the Court is satisfied, after such preliminary inquiry, if any, as it thinks necessary, that there is ground for inquiring into any offence referred to in section 69 and appearing to have been committed by the insolvent, the Court may record a finding to that effect and make a complaint of the offence in writing to a Magistrate of the first class having jurisdiction, and such Magistrate shall deal with such complaint in the manner laid down in the Code of Criminal Procedure, 1898 (V of 1898).]

71. Criminal liability. Where an insolvent has' been guilty of any of the offences specified in section 69, he shall not be exempt from being proceeded against therefor by reason that he has obtained his discharge or that a composition or scheme of arrangement has been accepted or approved.

72. Undischarged insolvent obtaining credit.— (1) A undischarged insolvent obtaining credit to the extent of fifty rupees or upwards from any person without informing such person that he is an undischarged insolvent shall, on conviction by a Magistrate, be punishable with imprisonment for a term which may extend to six months, or with fine or with both.

(2) Where the Court has reason to believe that an undischarged insolvent has committed the offence referred to in sub-section (1), the Court, after making any preliminary inquiry that may be necessary, may send the case for trial to the nearest Magistrate of the first class, and may send the accused in custody to take sufficient security for his appearance before such Magistrate ; and may bind over any person to appear and give evidence on such trial.

73. Disqualifications of insolvent.— (1) Where a debtor is adjudged or re-adjudged insolvent under this Act, he shall, subject to the provisions of this section, be disqualified from—

(*a*) being appointed or acting as a Magistrate ;

(*b*) being elected to any office of any local authority where the appointment to such office is by election or holding or exercising any such office to which no salary is attached ; and

(c) being elected to sitting or voting as member of any local authority.

(2) The disqualifications which an insolvent is subject to under this section shall be removed, and shall cease if—

[1]The words "by the Court" rep. by the Repealing Act, 1927 (12 of 1927), s. 2 and Sch.

[2]Subs. by the Insolvency (Amdt.) Act, 1926 (9 of 1926), s. 11, as amended by the Repealing and Amending Act, 1927 (10 of 1927), s. 3 and Sch. II, for the original section.

(*a*) the order of adjudication is annulled under section 35, or

(*b*) he obtains from the Court an order of discharge, whether absolute or conditional, with a certificate that his insolvency was caused by misfortune without any misconduct on his part.

(3) The Court may grant or refuse such certificate as it thinks fit, but any order of refusal shall be subject to appeal.

PART V

SUMMARY ADMINISTRATION

74. Summary administration. When a petition is presented by or against a debtor, if the Court is satisfied by affidavit or otherwise that the property of the debtor is not likely to exceed in value five hundred rupees[1], the Court may make an order that the debtor's estate be administered in a summary manner, and thereupon the provisions of this Act shall be subject to the following modifications, namely:-

(*i*) unless the Court otherwise directs, no notice required under this Act shall be published in the [2][official Gazette] ;

(*ii*) on the admission of a petition by a debtor, the property of the debtor shall vest in the Court as a receiver;

(*iii*) at the hearing of the petition, the Court shall inquire into the debts and assets of the debtor and determine the same by order in writing, and it shall not be necessary to frame a schedule under the provisions of section 33;

(*iv*) the property of the debtor shall be realised with all reasonable despatch, and thereafter, when practicable, distributed in a single dividend;

(*v*) the debtor shall apply for his discharge within six months from the date of adjudication; and

(*vi*) such other modifications as may be prescribed with the view saving expense and simplifying procedure :

Provided that the Court may at any time direct that the ordinary procedure provided for in this Act shall be followed in regard to the debtor's estate, and thereafter the Act shall have effect accordingly.

PART VI

APPEALS

75. Appeals.— (1) The debtor, any creditor, the receiver or any other person aggrieved by a decision come to or an order made in the exercise of insolvency jurisdiction by a Court subordinate to a District Court may appeal to the District Court, and the order of the District Court upon such appeal shall be final:

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[1]In Punjab *read* "two thousand rupees", *see* Punjab Relief of Indebtedness Act, 1934 (Punjab 7 of 1934), s. 4.
[2]Subs. by A.O., 1937, for "local official Gazette".

Provided that the High Court, for the purpose of satisfying itself that an order made in any appeal decided by the District Court was according to law, may call for the case and pass such order with respect thereto as it thinks fit:

Provided further, that any such person aggrieved by a decision of the District Court on appeal from a decision of a subordinate Court under section 4 may appeal to the High Court on any of the grounds mentioned in sub-section (1) of section 100 of the Code of Civil Procedure, 1908 (V of 19080).

(2) Any such person aggrieved by any such decision or order of a District Court as is specified in Schedule I, come to or made otherwise than in appeal from an order made by a subordinate Court, may appeal to the High Court.

(3) Any such person aggrieved by any other order made by a District Court otherwise than in appeal from an order made by a subordinate Court may appeal to the High Court by leave of the District Court or of the High Court.

(4) The periods of limitation for appeals to the District Court and to the High Court under this section shall be thirty days and ninety days, respectively.

PART VII

MISCELLANEOUS

76. Costs. The costs of any proceeding under this Act, including the costs of maintaining a debtor in the civil prison, shall, subject to any rules made under this Act, be in the discretion of the Court in which the proceeding is had.

77. Courts to be auxiliary to each other. All Courts having jurisdiction in insolvency and the officers of such Courts, respectively, shall severally act in aid of and be auxiliary to each other in all matters of insolvency, and an order of a Court seeking aid with a request to another of the said Courts shall be deemed sufficient to enable the latter Court to exercise, in regard to the matters directed by the order, such jurisdiction as either of such Courts could exercise in regard to similar matters within their respective jurisdictions.

78. Limitation.—(1) The provisions of sections 5 and 12 of the Limitation Act, 1908 (IX of 1908), shall apply to appeals and applications under this Act, and for the purpose of the said section 12, a decision under section 4 shall be deemed to be a decree.

(2) Where an order of adjudication has been annulled under this Act, in computing the period of limitation prescribed for any suit or application for the execution of a decree (other than a suit or application in respect of which the leave of the Court was obtained under sub-section (2) of section 28) which might have been brought or made but for the making of an order of adjudication under this Act, the period from the date of the order of adjudication to the date of the order of annulment shall be excluded :

Provided that nothing in this section shall apply to a suit or application in respect of a debt provable but not proved under this Act.

79. Power to make rules.—[1][(1) The High Court may, with the previous sanction of the Provincial Government, make rules for carrying into effect the provisions of this Act.]

[1]Subs. by A.O., 1937, for the original sub-section.

(2) In particular and without prejudice to the generality of the foregoing power, such rules may provide—

(*a*) for the appointment and remuneration of receivers (other than Official Receivers), the audit of the accounts of all receivers and the cost of such audit,

(*b*) for meetings of creditors,

(*c*) for the procedure to be followed where the debtor is a firm, [1]*

(*d*) for the procedure to be followed in the case of estates to be administered in a summary manner, [2][and

(*e*) for any matter which is to be or may be prescribed.]

(3) All rules made under this section shall be published [3]* * * in the [4][official Gazette] [5]* * * and shall, on such publication, have effect as if enacted in this Act.

80. Delegation of powers to Official Receivers.—(1) The High Court, with the like sanction, may from time to time direct that, in any matters in respect of which jurisdiction is given to the Court by this Act, the Official Receiver shall, subject to the directions of the Court, have all or any of the following powers, namely:—

[6]* * * * * * *

(*b*) to frame schedules and to admit or reject proofs of creditors ;

[6]* * * * * * *

(*e*) to make interim orders in any case of urgency ; and

(*f*) to hear and determine any unopposed or *ex -parte* application.

(2) Subject to the appeal to the Court provided for by section 68, any order made or act done by the Official Receiver in the exercise of the said powers shall be deemed the order or act of the Court.

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81. Power of Provincial Government to bar application of certain provisions to certain Courts. Any [7][Provincial Government] [8]* * * may, by notification in the [9][official Gazette], declare that any of the provisions of this Act specified in Schedule II shall not apply to insolvency proceedings in any Court or Courts having jurisdiction under this Act in any part of the territories administered by such [1][Provincial Government].

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[1]The word "and" rep. by the Provincial Insolvency (Amdt.) Act, 1926 (39 of 1926), s. 6.
[2]Ins. *ibid.*
[3]The words "in the Gazette of India or" rep. by A.O., 1937.
[4]Subs. *ibid.*, for "local official Gazette".
[5]The words "as the case may be" rep., *ibid*.
[6]Cls. (a), (c) and (d) rep. by Act 39 of 1926, s. 7.
[7]Subs. by A.O., 1937, for "L.G.".
[8] The words "with the previous sanction of the G.G. in C.", rep. by the Devolution Act, 1920 (38 of 1920), s. 2 and Sch. I.
[9]Subs. by A.O., 1937, for "local official Gazette".

82. Savings. Nothing in this Act shall—

(a) affect the [1][Insolvency (Karachi Division [2]* *) Act (III of 1909)], [3]* * * or

(b) apply to cases to which Chapter IV of the Dekkhan Agriculturists Relief Act, 1879 (XVII of 1879), is applicable.

83. Repeals. [4]* * * * * * *

(2) Where in any enactment or instrument in force at the date of the commencement of this Act, reference is made to Chapter XX (of Insolvent Judgment-debtors) of the Code of Civil Procedure, 1877 (X of 1877), or of the Code of Civil Procedure 1882 (XIV of 1882), or to any section of either of those Chapters, such reference shall, so far as may be practicable, be construed as applying to this Act or to the corresponding section thereof.

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[1]Subs. by A.O., 1964, Art. 2 and Sch., for "Insolvency (Dacca and the Federal Territory of Karachi) Act" which had been subs. by the Repealing and Amending Ordinance, 1961 (1 of 1961), s. 3 and 2nd Sch., for "Insolvency (Capital of the Federation and Dacca) Act".
[2]The words "and Dacca" omitted by F.A.O., 1975, Art. 2 and Sch.,
[3]The words and figures "or section 8 of the Lower Burma Courts Act 1900" rep. by the Repealing and Amending Act, 1930 (8 of 1930), s. 3 and Sch. II.
[4]Sub-section (1) rep. by the Repealing Act, 1927 (12 of 1927), s. 2 and Sch.

SCHEDULE I

[*See* section 75(2)]

Decisions and Orders from which an appeal lies to the High Court under section 75 (2).

Section	Nature of decision or order
4	Decision of questions of title, priority, etc., arising in insolvency.
25	Order dismissing a petition.
26	Order awarding compensation.
27	Order of adjudication.
33	Orders regarding entries in the schedule.
35	Order annulling adjudication.
37	Order declaring the conditions on which the debtor's property shall revert to him on annulment of adjudication.
41	Order on application for discharge.
50	Order disallowing or reducing entries in the schedule.
53	Order annulling a voluntary transfer.
54	Decision that a transfer of property is a preference in favour of a creditor.
[1]*	* * * * * * *

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[1]The entry relating to s. 69 was rep. by the Repealing Act, 1927 (12 of 1927), s. 2 and Sch.

SCHEDULE II

(*See* Section 81)
Provisions of the Act application of which may be barred by
[1][*Provincial Governments*].

Provisions of the Act.	Subject.
Section	
26 ..	Award of compensation.
28, sub-section (3) ..	Reputed property of an insolvent.
34 ..	Debts provable under the Act.
38	
39 ..	Compositions and schemes of arrangement.
40	
42, sub-sections (1) and (2)	Obligation to refuse absolute discharge.
45	
47	
48	Method of proof of debts.
49	
50	
51	
52	
53	Effect of insolvency on antecedent transactions.
54	
55	

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[1]Subs. by A.O., 1937, for "Local Governments."

SCHEDULE II—contd.

Provisions of the Act.	Subject
61 [exept clause (*a*) of sub-section (1) and sub-section (4)]	Priority of debts.
62	Dividends
63	
64	
65	
66	Management by and allowance to insolvent.
72	Penalty for obtaining of credit by undischarged insolvent.

SCHEDULE III.—[ENACTMENTS REPEALED.] Rep. by the Repealing Act, 1927 (XII of 1927), s. 2 and Sch.

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Date: 11-09-2024

THE PUBLIC ORDER (MEETINGS) ORDINANCE, 1958

CONTENTS

1. Short title, extent and commencement
2. Definitions
3. Disorderly conduct at public meeting
4. Carrying of offensive weapons
5. Insulting language and incitement
6. Offences to be cognizable and non-bailable
7. Penalty

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THE PUBLIC ORDER (MEETINGS) ORDINANCE, 1958

ORDINANCE NO. IX OF 1958

[1st *July*, 1958]

An Ordinance to make provision for the preservation of public order on the occasion of public meetings and to prevent disturbance thereat.

WHEREAS it is expedient to make provision for the preservation of public order on the occasion of public meetings and to prevent disturbance thereat;

AND WHEREAS the National Assemble is not in session and the President is satisfied that circumstances exist which render immediate action necessary;

NOW, THEREFORE, in exercise of the powers conferred by Article 69 of the Constitution and of all other powers enabling him in that behalf, the President is pleased to make and promulgate the following Ordinance, namely:—

1. Short title, extent and commencement.— (1) This Ordinance may be called the Public Order (Meetings) Ordinance, 1958.

(2) It extends to the [1][Karachi Division].

(3) It shall come into force at once.

2. Definitions.— In this Ordinance,—

(a) "meeting" means a meeting held for the purpose of the discussion of matters of public interest or for the purpose of the expression of views on such matters;

(b) "public meeting" includes any meeting in a public place and any meeting which the public or any section thereof are permitted to attend, whether on payment or otherwise;

(c) "public place" means any highway, public park or garden, any sea beach, and any public bridge, road, lane, footway, square, court, alley or passage, whether a thoroughfare or not; and includes any open space to which, for the time being, the public have or are permitted to have access, whether on payment or otherwise;

(d) "public servant" has the same meaning as assigned to it in section 21 of the Pakistan Penal Code (Act XLV of 1860).

[1] Subs. by A.O., 1964, Art. 2 and Sch., for "Federal Territory of Karachi" which had been subs. by the Repealing and Amending Ordinance, 1961 Ordinance No. I of 1961), s. 3 and 2nd Sch., for "Federal Capital".

3. Disorderly conduct at public meeting.—(1) Any person who at a public meeting acts in a disorderly manner for the purpose of preventing the transaction of the business for which the meeting was called together shall be guilty of an offence.

(2) Any person who incites others to commit an offence under this section shall be guilty of a like offence.

4. Carrying of offensive weapons.— Any person, not being a public servant acting in his capacity as such, who, while present in a public meeting, has with him any offensive weapon shall be guilty of an offence.

5. Insulting language and incitement.— Any person who in any public place or at any public meeting uses threatening, abusive or insulting words or behaviour with intent to provoke a breach of the peace or whereby a breach of the peace is likely to be occasioned shall be guilty of an offence under this Ordinance.

6. Offences to be cognizable and non-bailable.— Notwithstanding anything in the Code of Criminal Procedure, 1898 (Act V of 1898), an offence under this Ordinance shall be cognizable and non-bailable.

7. Penalty.— An offence under this Ordinance shall be punishable with rigorous imprisonment which may extend to two years, or with fine, or with both.

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Date: 23-12-2024

THE PUBLIC ORDER (POLITICAL UNIFORMS) ORDINANCE, 1958

CONTENTS

1. Short title, extent and commencement
2. Interpretation
3. Prohibition of uniforms in connection with political objects
4. Prohibition of quasi-military organisations
5. Offences to be cognizable and non-bailable
6. Punishment

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THE PUBLIC ORDER (POLITICAL UNIFORMS) ORDINANCE, 1958.

ORDINANCE NO. XV OF 1958

[19*th September*, 1958]

An Ordinance to prohibit the wearing of uniforms in connection with political purposes and the maintenance by private persons of associations of a military or semi-military character, and matters connected therewith.

WHEREAS it is expedient to prohibit the wearing of uniforms in connection with political purposes and the maintenance by private persons of associations of a military or semi-military character, and matters connected therewith ;

AND WHEREAS the National Assembly is not in session and the President is satisfied that circumstances exist which render immediate action necessary ;

NOW, THEREFORE, in exercise of the powers conferred by Article 69 of the Constitution and of all other powers enabling him in that behalf, the President is pleased to make and promulgate the following Ordinance, namely :—

1. Short title, extent and commencement.—(1) This Ordinance may be called the Public Order (Political Uniforms) Ordinance, 1958.

(2) It extends to the whole of Pakistan.

(3) It shall come into force at once.

2. Interpretation.—In this Ordinance, unless there is anything repugnant in the subject or context,—

" Meeting " means a meeting held for the purpose of the discussion of matters of public interest or for the purpose of the expression of views on such matters ;

" Private premises " means premises to which the public have access (whether on payment or otherwise) only by permission of the owner, occupier, or lessee of the premises ;

" Public meeting " includes any meeting in a public place and any meeting which the public or any section thereof are permitted to attend, whether on payment or otherwise.

3. Prohibition of uniforms in connection with political objects.—Subject as hereinafter provided, any person who in any public place or at any public meeting marches or parades in military order or wears uniform signifying his association with any political organization or with the promotion of any political object shall be guilty of an offence :

Provided that if the District Magistrate is satisfied that the wearing of any such uniform as aforesaid on any ceremonial, anniversary, or other special occasion will not be likely to involve risk of public disorder, he may, with the previous consent of the [1][Provincial Government], by written order permit the wearing of such uniform on that occasion either absolutely or subject to such conditions as may be specified in the order.

[1]Subs. by the Central Adaptation of Laws Order, 1964 (President's Order No. 1 of 1964), Art. 2 and Schedule.

4. Prohibition of quasi-military organisations.—(1) If the members of adherents of any association of persons, whether incorporated or not, are—

(a) organised or trained or equipped for the purpose of enabling them to be employed in usurping the functions of the police or of the armed forces of Pakistan ; or

(b) organised and trained or organised and equipped either for the purpose of enabling them to be employed for the use or display of physical force in promoting any political object, or in such manner as to arouse reasonable apprehension that they are organised and either trained or equipped for that purpose ;

then any person who takes part in the control and management of the association, or in so organising or training as aforesaid any members or adherents thereof, shall be guilty of an offence under this section :

Provided that in any proceedings against a person charged with the offence of taking part in the control or management of such an association as aforesaid it shall be a defence to that charge to prove that he neither consented to nor connived at the organisation, training or equipment of members or adherents of the association in contravention of the provisions of this section.

(2) In any criminal proceedings under this section proof of things done or of words written, spoken or published (whether or not in the presence of any party to the proceedings) by any person taking part in the control or management of an association or in organising, training or equipping members or adherents of an association shall be admissible as evidence of the purposes for which, or the manner in which, members or adherents of the association (whether those persons or others) were organised, or trained, or equipped.

(3) Nothing in this section shall prohibit employment of a reasonable number of persons as stewards without any distinctive uniforms to assist in the preservation of order at any public meeting held upon private premises, or the making of arrangements for that purpose or the instruction of the persons to be so employed in their lawful duties as such stewards, or their being furnished with badges or other distinguishing signs.

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5. Offences to be cognizable and non-bailable.—Offences under this Ordinance shall be cognizable and non-bailable.

6. Punishment.—An offence under this Ordinance shall be punishable with imprisonment for two years or with fine which may extend to one thousand rupees or with both.

———————

RGN Date: 18-09-2024

THE REGIONAL DEVELOPMENT FINANCE CORPORATION AND SMALL BUSINESS FINANCE CORPORATION (AMALGAMATION AND CONVERSION) ORDINANCE 2001

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1. Short title, extent and commencement
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6. Continuation of taking deposits and other business
7. Continuation of service in the company
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12. Power to make rules
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THE REGIONAL DEVELOPMENT FINANCE CORPORATION AND SMALL BUSINESS FINANCE CORPORATION (AMALGAMATION AND CONVERSION) ORDINANCE 2001

ORDINANCE No. LVI OF 2001

[*19th October, 2001*]

An Ordinance to amalgamate the Regional Development Finance Corporation and the Small Business Finance Corporation and to convert them into a public limited company

WHEREAS it is expedient to provide for the amalgamation and conversion of the Regional Development Finance Corporation and the Small Business Finance Corporation into a public limited company and for matters connected therewith or ancillary thereto;

AND Whereas the President is satisfied that the circumstances exist which render it necessary to take immediate action;

NOW, THEREFORE, in pursuance of the Proclamation of Emergency of the fourteenth day of October, 1999, and the Provisional Constitution Order No. 1 of 1999, read with the Provisional Constitution (Amendment) Order No.9 of 1999, and in exercise of all powers enabling him in that behalf, the President of the Islamic Republic of Pakistan is pleased to make and promulgate the following Ordinance:

1. Short title, extent and commencement.— (1) This Ordinance may be called the Regional Development Finance Corporation and Small Business Finance Corporation (Amalgamation and Conversion) Ordinance, 2001.

(2) It extends to the whole of Pakistan.

(3) It shall come into force at once.

2. Definitions.—(1) In this Ordinance, unless there is anything repugnant in the subject or context,—

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(a) "assets" means rights, and powers of every description and includes all properties, movable or immovable, tangible or intangible, mortgages, charges and claims in the name of the RDFC or SBFC, as the case may be;

(b) "company" means the company, formed and registered pursuant to section 4;

(c) "contracts" means; all contracts, agreements, bonds, guarantees, indemnities, representations, obligations, undertakings and other legal documents and instruments of every description executed by or on behalf of the RDFC or SBFC, as the case may be, including employment, investment, sales and financial contracts with whomsoever;

*(d) "effective date" means the date specified in the Order;

* i.e. 1-1-2001,vide S.R.O. 898(I)/2001, dt. 29-12-2001.

(e) "liabilities" means all liabilities lawfully incurred by the RDFC or SBFC, as the case may be, and includes duties of every kind imposed thereon;

(f) "order" means an order made by the Federal Government under subsection (1) of section 5;

(g) "proceedings" includes applications, appeals, awards, reviews and revisions filed of pending in any suit, arbitration or other legal or administrative proceedings;

(h) "R.D.F.C." means the Regional Development Finance Corporation established under the Regional Development. Finance Corporation Ordinance, 1985 (XXXII of 1985);

(i) "S.B.F.C." means the Small Business Finance Corporation established under` the Small Business Finance Corporation Act, 1972 (XXIX of 1972);

(j) "transfer" means the transfer of assets, contracts, liabilities, proceedings and undertakings of the R.D.F.C. or S.B.F.C., as the case may be, to the company and

(k) "undertaking" includes all projects, ventures and any other operations undertaken by the R.D.F.C. or S.B.F.C., as the case may be, individually or in collaboration with some other person,

(2) All expressions and words used but not defined in this Ordinance shall have the same meanings as in the Companies Ordinance, 1984 (XLVII of 1984).

3. Amalgamation of the RDFC and SBFC—Within ninety days of the promulgation of this Ordinance, the Federal Government shall, in consultation with the R.D.F.C. and S.B.F.C: and their shareholders, prepare a scheme for the amalgamation of the R.D.F.C. and S.B.F.C. into a company.

4. Registration of the company.— (1) Pursuant to the scheme for amalgamation made under section 3, the Federal Government shall, in collaboration with the shareholders of the R.D.F.C. and S.B.F.C., form a public limited company and register the same under the Companies Ordinance, 1984 (XLVII of 1984).

(2) Notwithstanding anything contained in section 470 of the Companies Ordinance, 1984 (XLVII of 1984), and the Sixth Schedule thereto, the company shall be exempt from the payment of any registration fee or any other charges for the purpose of its registration.

(3) The value ascribed to the assets and liabilities transferred to, and vested in the company by the Federal Government under the order shall represent the fair net value of the assets for taxation, depreciation or any other purposes.

(4) No stamp duty or any other charges shall be payable by the company under -any law for the time being in force for the transfer and vesting of the assets, contracts, liabilities, proceedings or undertakings of the R.D.F.C. and S.B.F.C. to the company or any shares or securities issued in favour of the shareholders or financiers of the R.D.F.C. and S.B.F.C. by the company.

5. Transfer and vesting of assets, contracts, liabilities, proceedings and undertakings.— (1) Subject to section 3, after the registration of the company, the Federal Government shall by an order, published in the official Gazette, direct that all the assets, contracts, liabilities, proceedings and undertakings of the R.D.F.C. and S.B.F.C. stand transferred to, and vest in the company on the date specified therein, on such terms and conditions as may be determined by the Federal Government in this behalf.

(2) The order shall, inter alia, provide for the following, namely:—

(a) the transfer of all the assets, contracts, liabilities, proceedings and undertakings of the R.D.F.C. and S.B.F.C., to the company;

(b) the allotment of shares or debentures of the company to the shareholders, debenture-holders or bond-holders of the R.D.F.C. and S.B.F.C. in proportion to their shares, debentures, bonds or other securities in the R:D.F.C. or S.B.F.C, as the case may be, after determining the net asset value of both the R.D.F.C. and S.B.F.C. the effective date;

(c) the dissolution of the R.D.F.C. and S.B.F.C. from the effective date; and

(d) such incidental, consequential and supplemental matters as are necessary to secure the amalgamation and transfer under this ordinance.

(3) Without prejudice to the provisions of section 146 of the Companies Ordinance,1984 (XLVII of 1984), the company shall, upon transfer, continue all undertakings of the R.D.F.C. and S.B.F.C. as were being carried on immediately prior to the effective date.

6. Continuation of taking deposits and other business.—(1) Notwithstanding anything contained in any other law for the time being in force, the company shall take and maintain existing deposits, continue, lending and any other business which were being undertaken by the R.D.F.C. and S.B.F.C., respectively, without prejudice to its application to the State Bank of Pakistan for a licence to transact banking business.

(2) The company shall be authorised to use the word "bank" or any of its derivatives as a part of its name.

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Explanation.—For the purposes of this section the expression "existing deposits" means deposits received by the company as part of the transfer.

7. Continuation of service in the company.— (1) All permanent employees of the R.D.F.C. and S.B.F.C., who were continuously in the service of the R.D.F.C. or, as the case may be, S.B.F.C. for a period of one year immediately before the effective date shall stand transferred to, and become the employees of, the company as of the effective date on the same terms and conditions and shall be subject to the same rules and regulations as were applicable to them before the effective date.

(2) No person transferred to the company pursuant to subsection (1) shall be entitled to any compensation as a consequence of transfer to the company.

8. Contracts and proceedings.—(1) All contracts subsisting or having effect immediately before the effective date, to which the R.D.F.C. or S.B.F.C. may have been a party or beneficiary, shall be deemed to have been made by the company.

(2) All proceedings by or against or relating to the R.D.F.C. or al S.B.F.C. pending on the effective date before any Court, tribunal arbitrator or any other authority shall be continued, prosecuted of the defended, enforced and executed by or against the company in the same manner and to the same extent as might have been continued prosecuted, defended, enforced and executed by or against the R.D.F.C. or S.B.F.C., as the case may be.

9. Bar to jurisdiction.—No Court, tribunal, arbitrator or authority shall question, or permit to be called in question, any transfer or order made, anything done, or action taken or purported to be made, done or taken under this Ordinance.

10. Indemnity.— No suit, prosecution of other legal proceedings shall lie against the Federal Government, the R.D.F.C., the S. B. F. C. the company or any other person for anything which is in good faith hone or intended to be done under this Ordinance or any rule or order made thereunder.

11. Ordinance to override other laws, etc.—This Ordinance, shall have effect notwithstanding anything contained in any other law for the time being in force, or in any agreement, contract, decree, order or any other instrument whatsoever.

12. Power to make rules. The Federal Government may, by Notification in the official Gazette, make rules for carrying out the purposes of this Ordinance.

13. Removal of difficulties.—If any difficulty arises in giving effect to any provision of this Ordinance, the Federal Government may make such order, not inconsistent with the provisions of this Ordinance, as may appear to it to be necessary, for the purpose of removing the difficulty:

Provided that no such power shall be exercised after the expiry of two years from the commencement of this Ordinance.

14. Repeal.—The Regional Development Finance Corporation Ordinance, 1985 (XXXII of 1985), and the Small. Business Finance Corporation Act, 1972 (XXIX), shall stand repealed on the effective date.

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THE REGISTERED DESIGNS ORDINANCE, 2000

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THE REGISTERED DESIGNS ORDINANCE, 2000

Ordinance No. XLV of 2000

[7th September, 2000]

An Ordinance to repeal and to re-enact the law relating to industrial designs

WHEREAS it is expedient to repeal and re-enact the law relating to the protection of industrial designs, and for matters ancillary thereto or connected therewith;

AND WHEREAS, the National Assembly and the Senate stand suspended in pursuance of the Proclamation of Emergency of the fourteenth day of October, 1999, and the Provisional Constitution Order No. 1 of 1999;

AND WHEREAS, the President is satisfied that circumstances exist which render it necessary to take immediate action;

NOW. THEREFORE, in pursuance of the Proclamation of Emergency of the fourteenth day of October, 1999, and Provisional Constitution Order No. 1 of 1999, as well as Order No. 9 of 1999, and in exercise of all powers enabling him in that behalf, the President of the Islamic Republic of Pakistan is pleased to make and promulgate the following Ordinance.

CHAPTER I
PRELIMINARY

1. Short title, extent and commencement.— (l) This Ordinance may be called the Registered Designs Ordinance, 2000.

(2) It extends to the whole of Pakistan.

(3) It shall come into force at once.

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2. Definitions.— In this Ordinance, unless there is anything repugnant in the subject or context,—

(a) "article" means any article of manufacture and includes any part of an article if made and sold separately;

(b) "assignee" includes the legal representative of a deceased assignee, and any references to the assignee of any person include references to the assignee of the legal representative or assignee of that person;

(c) "Convention country" means, a country declared as such under section 11;

(d) "registration of design" means the right to prevent third parties from applying a design to an article and from making, importing, selling, hiring or offering for sale or hire any article in respect of which a design is registered, being an article to which the registered design or a design not substantially different from the

registered design has been applied, and from making anything enabling such article to be made as aforesaid, except with the license or written consent of the registered proprietor;

(e) "design" means features of shape, configuration, pattern or ornament applied to an article by any industrial process or means, being features which in the finished article appeal to and are judged solely by the eye, but does not include a method or principle of construction or features of shape or configuration which are dictated solely by technical and functional considerations;

(f) "Patent Office" means the Patent Office established, or deemed to have been established under section 4;

(g) "prescribed" means prescribed by rules;

(h) "proprietor" or creator of a design means,—

(i) where the author or creator of the design, for good consideration, executes the work for some other person, the person for whom the design is so executed;

(ii) where a design or the right to apply a design to an article becomes vested, whether by assignment, transmission or operation of law, in any person other than the original proprietor, either alone or jointly with the original proprietor, in respect and to the extent in and to which the design or right has been so vested, that other person or, as the case may be, the original proprietor and that other person;

(iii) if and to the extent to which two or more persons have created the same design independently of each other, the person whose application has the earliest filing date or, if priority is claimed, the earliest validity claimed priority date shall have the right to the registration of industrial design, as long as the said application is not withdrawn, abandoned or rejected; and

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(iv) in any other case, the author or creator of the design as may be assigned or as may be transferred by succession;

(i) "register" means the register of designs kept in pursuance of section 13;

(j) "registered proprietor or agent", in respect of a design, means the person for the time being entered in the register of designs as proprietor of the design;

(k) "registrar" means the Controller of Patents and Designs appointed under section 3 of the Patents Ordinance, 2000;

(I) "rules" means rules made under this Ordinance; and

(m) "set of articles" means a number of articles of the same general character ordinarily on sale or intended to be used together, to each of which the same

design, or the same design with modifications or variations not sufficient to alter the character or substantially to affect the identity thereof, is applied; and

(i) any reference in this Ordinance to an article in respect of which a design is registered shall, in the case of a design registered in respect of a set of articles, be construed as a reference to any article of that set; and

(ii) any question arising under this Ordinance whether a number of articles constitute a set of articles shall be determined by the Registrar; and, notwithstanding anything contained in this Ordinance, any determination of the Registrar under this sub-section shall be final.

CHAPTER II
REGISTERABLE DESIGNS AND PROCEEDINGS FOR REGISTRATION

3. Registerable designs.— (1) A design may, upon application made by the person claiming to be the proprietor, be registered under this Ordinance in respect of any article or the set of articles specified in the application.

(2) Subject to the provisions of this Ordinance, a design shall not be registered unless it is new or original and, in particular, shall not be so registered in respect of any article if it is the same as a design which before the date of the application for registration has been registered in Pakistan, or published anywhere in the world in respect of the same or any other article or differs from such a design only in immaterial details or in feature which are variants commonly used in the trade.

Explanation.—Designs are not new or original if they do not significantly differ from known designs or combination of design features.

(3) For the purposes of novelty, any disclosure to the public of the industrial design shall not be taken into consideration if it occurred within twelve months preceding the filing date or, where applicable, the priority date, of the application and if it was by reason or in consequence of acts committed by the applicant or his predecessor in title or of an abuse committed by a third party with regard to the applicant or his predecessor in title.

(4) The Federal Government may make rules to provide for excluding from registration under this Ordinance designs that are contrary to public order or morality.

4. Establishment of Patent Office.— There shall be established an office to be called the Patent Office and, until a Patent Office is established under this section, the Patent Office functioning under the Patents and Designs Act, 1911 (II of 1911) shall continue to function and shall be deemed to have been established under this Ordinance.

5. Proceedings for registration.— (1) An application for the registration of a design shall be in the prescribed form and shall be filed at the Patent Office in the prescribed manner.

(2) For the purpose of deciding whether a design is new or original, the Registrar may make such inquiries, if any, as he thinks fit.

(3) The Registrar may refuse any application for the registration of a design or may register the design, in pursuance of the application subject to such modifications, if any, as he thinks.

(4) An application which, owing to any default or neglect on the part of the applicant, has not been completed so as to enable registration to be effected within the prescribed time shall be deemed to be abandoned.

(5) Except as otherwise expressly provided in this Ordinance, a design when registered shall be registered as of the date on which the application for registration was made, or such other, date, whether earlier or later than that date, as the Registrar may in any particular case direct:

Provided that no proceedings shall be taken in respect of any infringement committed before the date on which the certificate of registration of the design under this Ordinance is issued.

(6) An appeal shall lie to the High Court from any decision of the Registrar under sub-section (3).

6. Registration of same design in respect of other articles, etc.— (1) Where the registered proprietor of a design registered in respect of any article makes an application—

(a) for registration in respect of one or more other articles of the registered design, or

(b) for registration in respect of the same or one or more other articles of a design consisting of the registered design with modifications or variations not sufficient to alter the character or substantially to affect the identity thereof,

the application shall not be refused and the registration made on that application shall not be invalidated by reason only of the previous registration or publication of the registered design:

Provided that the period of registration of a design registered by virtue of this section shall not extend beyond the expiration of the original and any extended period of registration in the original registered design.

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(2) Where any person makes an application for the registration of a design in respect of any article and either—

(a) that design has been previously registered by another person in respect of some other article; or

(b) the design to which the application relates consists of a design previously registered by another person in respect of the same or some other article with modifications or variations not sufficient to alter the character or substantially to affect the identity thereof,

then, if at any time while the application is pending the applicant becomes the registered proprietor of the design previously registered, the foregoing provisions of this section shall apply as if at the time of making the application the applicant had been the registered proprietor of that design.

CHAPTER III

EFFECT OF REGISTRATION, ETC.

7. Registration of designs.— (1) The registration of a design under this Ordinance shall give to the registered proprietor the registration in the registered design for a period of ten years from the date of registration.

(2) The owner of a registered design shall have the right to exclude third parties, not having his consent, from making, selling or working articles bearing or embodying a design which is a copy of the registered design when such acts are undertaken for commercial purposes.

(3) The Registrar shall extend the period of registration for a second period of ten years from the expiration of the original period and for a third period of ten years from the expiration of the second period if an application for extension of the period oi' registration for the second or third period is made in the prescribed form before the expiration of the original period or the second period, as the case may be, and if the prescribed fee is paid before the expiration of the relevant period or if such application is made and the said fee is paid within such further period, not exceeding six months, as may be, specified in a request made to the Registrar and accompanied by the prescribed additional fee.

(4) The owner of a registered industrial design may surrender it by written declaration to the Registrar who shall record the surrender in the Register and publish it. The surrender shall have effect on the date it is thus recorded.

8. Infringement.— (1) If any person infringes a registered proprietor's right, the registered proprietor may bring a suit against him for the recovery of damages and for an injunction against the continuation of the infringement:

Provided that, for the purposes of grant of a temporary injunction, the registered proprietor must show that he has a *prima facie* case and that his design is valid and that it has been infringed by the defendant.

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(2) When the Court makes a decree in a suit under this Ordinance, it shall send a copy of the decree to the Registrar who shall cause an entry thereof to be made in the register.

9. Exemption of innocent infringer from liability for damages.— In proceedings for the infringement of right in a registered design, damages shall not be awarded against a defendant who proves that at the date of the infringement he was not aware, and had no reasonable ground for supposing, that the design was registered and a person shall not be deemed to have been aware or to have had reasonable grounds for supposing as aforesaid by, reason only of the marking of an article with word “registered” or any abbreviation thereof, or any word or words expressing or implying that the design applied to the article has been registered, unless the number of the design accompanied the word or words or the abbreviation in question:

Provided that nothing in this section shall affect the power of the Court to grant an injunction in any proceedings for infringement of copyright in a registered design.

10. **Cancellation of registration.**— (1) Any person interested may by a petition made at any time after the registration of a design to the High Court or within two years of the registration of a

design to the Registrar, seek cancellation of the registration of a design on the following grounds, namely:

(a) the industrial design should not have been registered because the specific substantive requirements prescribed in this Ordinance have not been fulfilled;

(b) the industrial design is contrary to public order or morality; or

(c) person is whose name the industrial design is registered has no right to it.

(2) An appeal shall lie to the High Court from any order of the Registrar under sub-section (1), and the Registrar may at any time refer any such petition to the High Court, and the High Court shall decide any petition so referred.

CHAPTER IV
INTERNATIONAL ARRANGEMENTS

11. Notification as to convention countries.— The Federal Government may, by notification in the official Gazette, declare any country specified in the notification to be a convention country for the purposes of this Ordinance, in addition to the members of World Trade Organization.

12. Registration of design where application for protection in convention country has been made.— (1) An application for registration of a design in respect of which protection has been applied for in a convention country may be made in accordance with the provisions of this Ordinance by the person by whom the application for protection was made or by his legal representative or assignee:

Provided that no application shall be made under this section after the expiration of six months from the date of the application for protection in a convention country or, where more than one such application for protection has been made, from the date of the first application.

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(2) A design registered on an application made under this section shall be registered as of the date of the application for protection in the convention country or, where more than one such application for protection has been made, the date of the first such application:

Provided that no proceedings shall be taken in respect of any infringement committed before the date on which the certificate of registration of the design under this Ordinance is issued.

(3) The applicant may withdraw the application at any time during its pendency.

(4) An application for the registration of a design made under this section shall not be refused, and the registration of a design on such an application shall not be invalid, by reason only of the registration or publication of the design in Pakistan during the period specified in the proviso to sub-section (1) as that within which the application for registration may be made.

CHAPTER V
REGISTER OF DESIGNS, ETC.

13. Register of designs.— (1) There shall be kept at the Patent Office under the control of the Registrar a register of designs in which there shall be entered the names and addresses of proprietors of registered designs, notices of assignments and of transmissions of registered designs, and such other matters as may be prescribed or as the Registrar may think fit.

(2) Subject to the provisions of this Ordinance and the rules, the register shall, at all convenient times, be open to inspection by the public and certified copies sealed with the seal of the Patent Office of any entry in the register shall be given to any person requiring them on payment of the prescribed fee.

(3) The register shall *be prima facie* evidence of any matters required or authorized under this Ordinance to be entered therein.

(4) No notice of any trust, whether expressed, implied or constructive shall be entered in the register.

(5) The Patent Office shall publish in the official Gazette all the publication provided for in this Ordinance.

14. Certificate or registration.— (1) The Registrar shall grant a certificate of registration in the prescribed form to the registered proprietor of a design when the design is registered.

(2) The Registrar may, in a case where he is satisfied that the certificate of registration has been lost or destroyed, or in any other case in which he thinks it expedient, furnish one or more copies of the certificate.

15. Registration of assignments, etc.— (1) Where any person becomes entitled by assignment, transmission or by operation of law to a registered design or to a share in a registered design, or becomes entitled as mortgagee, licensee or otherwise to any other interest in a registered design, he shall apply to the Registrar in the manner prescribed for the registration of his title as proprietor or co-proprietor or, as the case may be, of notice of his interest in the register.

(2) Without prejudice to the provisions of sub-section (I), an application for the registration of title of any person becoming entitled by assignment to a registered design or a share in a registered design, or becoming entitled by virtue of a mortgage, license or other instrument to any other interest in a registered design, may be made in the prescribed manner by the assignor, mortgagor, licensor or other party to that instrument, as the case may be.

(3) Where an application is made under sub-section (1) or sub-section (2) for the registration of title of any person, the Registrar shall upon proof of title to his satisfaction—

(a) where that person is entitled to a registered design or a share in registered design, register him in the register as proprietor or co-proprietor of the design and enter in the register particulars of the instrument or event by which he derives title; or

(b) where that person is entitled to any other interest in the registered design, enter in the register notice of his interest, with particulars of the instrument, if any, creating it.

(4) Subject to any rights vested in any other person of which notice is entered in the register, the person or persons registered as proprietor of a registered design shall have power to assign, grant licences in respect of, or otherwise deal with the design and to give effectual receipts for any consideration for any such assignment, licence or dealing:

Provided that any equities in respect of the design may be enforced in like manner as in respect of any other movable property.

(5) Except for the purposes of an application to rectify the register, a document in respect of which no entry has been made in the register under sub-section (3) shall not be admitted in any Court as evidence of the title of any person to a registered design or share of or interest in a registered design unless the court otherwise directs.

16. Rectification of register.— (1) The High Court may, on the application of any aggrieved person, order the register to be rectified by the making of any entry therein or the variation, or deletion, of any entry therein.

(2) In proceedings under this section, the High Court may determine any question which it may be necessary or expedient to decide in connection with the rectification of the register.

(3) Notice of any application to the High Court under this section shall be given in the manner as may be prescribed to the Registrar who shall be entitled to appear and be heard on the application and shall appear if so directed by the Court.

(4) Any order made by the High Court under this section shall direct that notice of the order shall be served on the Registrar in the manner as may be prescribed and the Registrar shall, on receipt of the notice, rectify the register accordingly.

17. Power to correct clerical errors.— (1) The Registrar may, in accordance with the provisions of this section, correct any error in an application for the registration or in the representation of a design or any error in the register.

(2) A correction may be made in pursuance of this section either upon a request in writing made by any interested person and accompanied by the prescribed fee.

(3) Where the Registrar proposes to make any such correction under sub-section's (1) and (2), otherwise than in pursuance of a request made under sub-section (2), he shall give notice of the proposal to the registered proprietor or the applicant for registration of the design, as the case may be, and to any other person who appears to him to be concerned and shall give them an opportunity of being heard before making the correction.

18. Inspection of registered design.— (1) Subject to the provisions of this Ordinance and the rules, the representation or specimen of a design registered under this Ordinance shall be open to inspection at the Patent Office on and after the day on which the certificate of registration is issued.

(2) In the case of a design registered in respect of an article of any class prescribed for the purposes of this sub-section, no representation or specimen of the design filed in pursuance of the application shall, until the expiration of such period after the day on which the certificate of registration is issued as may be prescribed in relation to articles of that class, be open to inspection at the Patent

Office except by the registered proprietor, a person authorised in writing by the registered proprietor, or a person authorised by the Registrar or by the Court:

Provided that where the Registrar proposes to refuse an application for the registration of any other design on the ground that it is the same as the first mentioned design or differs from that design only in immaterial details or in features which are variants commonly used in the trade, the applicant shall be entitled to inspect the representation or specimen of the first-mentioned design filed in pursuance of the application for registration of that design.

(3) In the case of a design registered in respect of any article of any class as may be prescribed for the purposes of subsection (2), the representation or specimen of the design shall not, during the period prescribed aforesaid, be inspected by any person under this section except in the presence of the Registrar or an officer acting under him; and, except in the case of an inspection authorized by the proviso to that sub-section, the person making the inspection shall not be entitled to take a copy of the representation or specimen of the design or any part thereof.

(4) Where an application for the registration of a design has been abandoned, or refused neither the application for registration nor any representation or specimen of the design filed in pursuance thereof shall at any time be open to inspection at the Patent Office or be published by the Registrar.

19. Information as to existence of registration.— On the request of any person furnishing such information as may enable the Registrar to identify the design, and on payment of the prescribed fee, the Registrar shall inform him whether the design is registered, and if so, in respect what articles and whether any extension of the period of registration has been granted and shall state the date of registration and the name and address of the registered proprietor.

20. Evidence of entries, documents, etc.— (1) A certificate purporting to be signed by the Registrar and certifying that any entry which he authorised by or under this Ordinance, to make has or has not been made, or that any other thing which he is so authorized, to do has or has not been done shall be ***prima facie*** evidence of the matters so certified.

(2) A copy of any entry in the register or of any representation, specimen or document kept in the Patent Office or an extract from the register or any such document, purporting to be certified by the Registrar and sealed with the seal of the Patent Office, shall be admitted in evidence without further proof and without production of the original.

CHAPTER VI
SUPPLEMENTARY PROVISIONS ON THE LEGAL PROCEEDINGS

21. Certificate of contested validity of registration.— (1) If in any proceedings before a Court the validity of the registration of a design is contested, and it is found by the Court that the design is validly registered, the Court may certify that the validity of the registration of the design was contested in these proceedings.

(2) Where any such certificate has been granted then if in any subsequent proceedings before the Court for infringement of the copyright in the registered design or for cancellation of the registration of the design in the High Court, a final order or judgment is made or given in favour of the registered proprietor, he shall, unless the Court otherwise directs, be entitled to full costs:

Provided that this sub-section shall not apply to the costs of any appeal to the High Court in any proceedings referred to in sub-section (2).

22. Remedy for groundless threats of infringement proceedings.— (1) Where any person whether entitled to or interested in a registered design or an application for registration of a design, by circulars, advertisements or otherwise threatens any other person with proceedings for infringement of the registration in a registered design, any person aggrieved thereby may institute a suit against him for any relief specified in sub-section (2).

(2) Unless in any suit under sub-section (1), the defendant proves that the acts in respect of which proceedings were threatened constitute or, if done, would constitute, an infringement of the registration in a registered design the registration of which is not shown by the plaintiff to be invalid, the plaintiff shall be entitled to the following reliefs, namely:—

(a) a declaration to the effect that the threats are. unjustifiable;

(b) an injunction against the continuance of the threats; and

(c) such damages, if any, as he has sustained thereby.

(3) For the avoidance of doubt it is hereby declared that a mere notification that a design is registered does not constitute a threat of proceedings within the meaning of this section.

CHAPTER VII
POWERS AND DUTIES OF REGISTRAR

23. Exercise of discretionary powers of Register.— Without prejudice to the provisions of this Ordinance requiring, the Registrar to hear any party to proceedings thereunder, or to give to any such party an opportunity of being heard, the Registrar shall give to any applicant for registration of a design an opportunity of being heard to the applicant before exercising adversely any discretion vested in the Registrar by or under this Ordinance.

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24. Costs and security for costs.— (I) The Registrar may, in any proceedings before him under this Ordinance, by order award to any party such costs as he may consider reasonable, and direct how and by which parties they are to be paid, and any such costs shall be recoverable as an arrears of land revenue.

(2) If any party, by whom application is made to the Registrar for the cancellation of the registration of a design or for the grant of a licence in respect of a registered design, or by whom notice of appeal is given from any decision of the Registrar under this Ordinance, neither resides nor carries on business in Pakistan, the Registrar, or, in the case of appeal, the High Court, may require him to give security for the costs of the proceedings or, as the case may be, appeal, and if no security is given may treat the application or, as the case may be appeal as abandoned.

25. Evidence before Registrar.— (1) The evidence to be given in any proceedings before the Registrar under this Ordinance may be given by affidavit or in such manner as may be prescribed, but the Registrar may if he thinks fit in any particular case take oral evidence in lieu of, or in addition to, such evidence as aforesaid and may allow any witness to be cross-examined on his affidavit.

(2) The Registrar shall, in respect of the examination of witnesses on oath and the discovery and production of documents, have all the powers of a Civil Court and the provisions applicable to the attendance of witnesses in proceedings before such Court shall apply to the attendance of witnesses in proceedings before the Registrar.

26. Power of Registrar to refuse to deal with certain agents.— The Registrar may refuse to recognize in respect of any business under this Ordinance any agent who is not entitled to practice as a patent agent before the Controller of Patents and Designs under the Patents Ordinance, 2000.

CHAPTER VIII
OFFENCES AND PENALTIES

27. Offence and penalties.— If any person fails to comply with any direction given under section 7 or makes or causes to be made an application for the registration of a design in contravention of that section,' he shall be punishable with imprisonment for a term which may extend to two years, or with fine which may extend to twenty thousand rupees, or with both.

28. Falsification of register, etc.— If any person makes or causes to be made a false entry in the register, or a writing falsely purporting to be a copy of any entry in the register, or produces or tenders or causes to be produced or tendered in evidence any such writing, knowing the .entry or writing to be false, he shall be punishable with imprisonment for a term which may extend to two years, or with fine which may extend to twenty thousand rupees, or with both.

29. Falsely representing design as registered.— (1) If any person falsely represents that a design applied to any article sold by him is registered in respect of that article, he shall be punishable with fine which may extend to one thousand rupees.

(2) For the purpose of sub-section (1), a person who sells an article having stamped, engraved or impressed thereon or otherwise applied thereto the word "registered", or any other word expressing or implying that the design applied to the article is registered, shall be deemed to represent that the design applied to the article is registered in respect of that article.

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(3) If any person, after the registration of a registered design has expired, marks any article to which the design has been applied with the word "registered", or any word or words implying that there is a subsisting registration of the design, or causes any such article to be so marked, he shall be punishable with fine which may extend to two hundred rupees.

30. Offences by companies.— Where an offence under this Ordinance is committed by a body corporate, every person who at the time of the commission of the offence is a director, general manager, secretary or other similar officer of the body corporate, or is purporting to act in any such capacity, shall be deemed to be guilty of that offence unless he proves that the offence was committed without his consent or connivance and that he exercised, all such diligence to prevent the commission of the offence as he ought to have exercised having regard to the nature of his functions in that capacity and to all the circumstances.

CHAPTER IX
MISCELLANEOUS

31. Power to make rules.— (1) The Federal Government may, by notification in the official Gazette, make rules for carrying out the purposes of this Ordinance.

(2) In particular and without prejudice to the generality of the foregoing power such rules may provide for—

(a) prescribing the form of application for registration of designs and of any representations or specimens of designs or other documents which may be filed at the Patent Office, and for requiring copies to be furnished of any such representations, specimens or documents;

(b) regulating the procedure to be followed in connection with any application or request to the Registrar or in connection with any proceedings before the Registrar and for authorizing the rectification of irregularities of procedure;

(c) regulating the keeping of the register,

(d) authorizing the publication and sale of copies of representations of designs and other documents in the Patent Office; and

(e) any other matter which has to be or may be prescribed.

(3) The power to make rules under this section shall be subject to the condition that of the rules shall be made after previous publication.

32. Fees.— (1) There shall be paid in respect of the registration of designs, and applications therefor, and in respect of other matters with relation to the designs under this Ordinance, such fees as may be prescribed.

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(2) A proceeding in respect of which a fee is payable under this Ordinance or the rules made thereunder shall be of no effect unless the fee has been paid.

33. Service of notices, etc, by post.— Any notice required or authorized to be given by or under this Ordinance, and any application or other document so authorized or required to be made or filed, may be given, made or filed by post or by hand.

34. Saving.— Nothing contained in this Ordinance—

(a) shall be construed as authorizing or requiring the Registrar to register a design the use of which would, in his opinion, be contrary to the public policy or morality; and

(b) shall affect the right of the Federal Government or of any person deriving the directly or indirectly from the Federal Government to sell or use articles forfeited under the laws relating to customs or excise.

35. Instructions from the Federal Government.— In the exercise of his powers and the discharge of his functions, the Registrar shall be guided on questions of policy by the instructions, if any, given to him from time to time by the Federal Government which shall be the sole judge as to whether a question is a question of policy.

36. Repeal.— Clause (5) of section 2 and sections 43,44,45,46,47, 48, 49, 50, 51, 51A, 51B, 52, 53, and 54 of the Patents and Designs Act, 1911, (II of 1911) are hereby repealed.

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THE REGISTERED LAYOUT-DESIGNS OF INTEGRATED CIRCUITS ORDINANCE, 2000

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THE REGISTERED LAYOUT-DESIGNS OF INTEGRATED CIRCUITS ORDINANCE, 2000

ORDINANCE No. XLIX of 2000

[12th September, 2000]

An Ordinance to provide for the registration of layout-designs of integrated circuits

WHEREAS Pakistan is a signatory to the Agreement for the Establishment of the World Trade Organization and the Agreement on Trade Related Aspects of Intellectual Property Rights for the purpose of reduction of distortions and impediments to international trade and for effective and adequate protection of intellectual property rights, and with a view to meet obligations of Pakistan under the aforesaid Agreements and to promote technological developments in the country, it is expedient to provide for promotion of the development of semiconductor integrated circuits by establishing a system for legal protection of registered layout-designs of integrated circuits, and for matters ancillary thereto or connected therewith;

AND WHEREAS, the National Assembly and the Senate stand suspended in pursuance of the Proclamation of the fourteenth day of October, 1999, and the Provisional Constitution Order No. 1 of 1999;

AND WHEREAS, the President is satisfied that circumstances exist which render it necessary to take immediate action;

NOW, THEREFORE, in pursuance of the Proclamation of Emergency of the fourteenth day of October, 1999, and Provisional Constitution Order No. 1 of 1999, as well as Order No. 9 of 1999, and in exercise of all powers enabling him in that behalf, the President of the Islamic Republic of Pakistan is pleased to make and promulgate the following Ordinance :—

1. Short title, extent and commencement:— (1) This Ordinance may be called the Registered Layout-Designs of integrated Circuits Ordinance, 2000.

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(2) It extends to the whole of Pakistan.

(3) It shall come into force at once.

2. Definitions :—In this Ordinance, unless there is anything repugnant in the subject or context,—

(a) "Controller" means the Controller of Patents appointed under the Patents Ordinance, 2000;

(b) "District Court" has the meanings assigned to that expression by the Code of Civil Procedure, 1908 (Act V of 1908).

(c) "integrated circuit" means a product, in its final form or an intermediate form, in which the elements, at least one of which is an active element, and some or

all of the interconnections are integrally formed in or on a piece of material which is intended to perform an electronic function;

(d) "layout-design" means a three dimensional disposition, howsoever expressed, of the elements, at least one of which is an active element and of some or all of the interconnection of an integrated circuit or such a three dimensional disposition prepared for an integrated circuit intended for manufacture;

(e) "Patent Office" means the Patent Office established under the Patents Ordinance, 2000;

(f) "prescribed" means prescribed by rules made under this Ordinance;

(g) "protection" means the right to layout-design protection as provided under section 4;

(h) "registration" means registration under section 8;

(i) "right-holder" means the natural person who, or legal entity which, shall be the beneficiary of the protection referred to in section 4; and

(j) "regulations" means regulations made under this Ordinance.

3. Originality :— (1) A layout-design shall be considered to be original if it is the result of its creator's own intellectual effort and is not commonplace among creators and manufacturers of layout-designs of integrated circuits at the time of its creation.

(2) A layout-design consisting of a combination of elements and inter-connections that are commonplace shall be considered to be original if the combination taken as a whole fulfils the conditions specified in sub-section (1).

4. Right to protection:— (1) The right to layout design protection shall be available under this Ordinance if and to the extent, the layout-design is original within the meaning of section 3 and has been subject of application for registration.

(2) The right to layout-design protection shall belong to the creator of the layout-design. Where several persons have jointly created a layout-design, then such right shall belong to them jointly.

(3) Where the layout-design has been created in execution of commission or an employment contract, the right to layout design protection shall belong, in the absence of contractual provisions to the contrary, to the person who commissioned the work or to the employee.

(4) The right to layout-design protection shall be assignable or transferable by succession.

(5) The right to layout-design protection shall not depend upon whether or not the integrated circuit which incorporates the registered layout-design is itself incorporated in an article.

5. Effect of protection:—(1) Subject to section 17, the protection shall have the effect that the following acts shall be unlawful if performed without the authorization of the right-holder, namely:—

(i) reproducing, whether by incorporation in an integrated circuit or otherwise, the registered layout-design in its entirety or any part thereof, except the act of reproducing any part that does not comply with the requirement of originality referred to in section 3; and

(ii) importing, selling or otherwise distributing for commercial purpose the registered layout-design, or an integrated circuit in which the registered layout-design is incorporated or an article incorporating such an integrated circuit in so far as it continues to contain an unlawfully reproduced layout-design.

(2) The following acts shall not require the authorization of the right holder, namely:—

(i) reproduction of the registered layout-designs for private purposes or for the sole purpose of evaluation, analysis, research or teaching

(ii) the incorporation in an integrated circuit of a layout-design created on the basis of such analysis or evaluation and which is itself original under section 3 or the performance of any of the acts referred to in sub-section (1) in respect of that layout-design;

(iii) the performance of any of the acts referred to in clause (ii) of sub-section (1) where the act is performed in respect of a registered layout-design, or in respect of an integrated circuit in which such a layout design is incorporated, that has been put on the market by or with the consent of, the right holder;

(iv) the performance of any of the acts referred to in clause (ii) of sub-section (1) in respect of an integrated circuit incorporating an unlawfully reproduced layout-design or any article incorporating such an integrated circuit where the person performing or ordering such an act did not know, when acquiring the integrated circuit or the article incorporating such an integrated circuit, that it incorporated an unlawfully reproduced layout-design. However, after the time that such person has received sufficient notice that the layout-design was unlawfully reproduced that person may perform any of the said acts only with respect to the stock on hand, or ordered before such time, and shall be liable to pay to the right holder a sum equivalent to a reasonable royalty such as would be payable under a freely negotiated licence in respect of such a layout-design; or

(v) the performance of any of the acts referred to in clause (ii) of sub-section (1) where the act is performed in respect of an identical layout-design which is original and has been created independently by a third party.

6. Commencement and duration of protection:—The protection of a layout-design registered under this Ordinance shall commence on the date of the first commercial exploitation anywhere in the world and shall terminate at the end of the tenth calendar year from the date of such first commercial exploitation.

7. Application for registration:— (1) An application for the registration of a layout design shall be in writing and shall be filed with the Patent Office. A separate application shall be filed for each layout-design.

(2) An application for the registration of a layout-design may either be filed only if a layout-design has not been commercially exploited or has been commercially exploited for not more than two years.

(3) An application submitted under sub-section (1) shall—

(i) contain a request for registration of the layout-design in the Register of Layout-Designs and a brief an precise designation thereof;

(ii) indicate the name, address, nationality and, if different from the address, the habitual residence of the applicant;

(iii) be accompanied by—

(a) the power of attorney, appointing the representative of the applicant, if any;

(b) a copy or drawing of the layout-design and a sample of the integrated circuit alongwith information defining the electronic function which the integrated circuit is intended to perform, however, the applicant may omit such parts of the copy or drawing related to the manner of manufacture of the integrated circuit, provided that the parts submitted are sufficient to allow the identification of the layout-design; and

(c) payment of the prescribed fee to the Patent Office;

(iv) specify the date of first commercial exploitation of the layout-design somewhere in the world; and

(v) provide particulars establishing the right to layout-design protection under section 4.

(4) Where the application does not duly comply with the requirements of sub-section (3), the Controller shall inform the applicant about the defects and ask him to make necessary corrections within the prescribed time-limit.

(5) The Controller shall accord as the filing date to be the date of receipt of the complete application in accordance with the requirements of sub-section (3).

(6) The Controller shall confirm the filing date and communicate it to the applicant.

(7) If the defects are not corrected within the time-limit referred to in sub-section (4), the application shall be deemed not to have been filed.

8. Registration:— (1) The Controller shall, where the application complies with the requirement of section 7, after such enquiry as he thinks fit, register the layout-design in the Register of Layout-Designs.

(2) The registration of a layout-design shall be published in the official Gazette.

9. Register of Layout-Designs:— (1) The Patent Office shall maintain a register to be called the "Register of Layout-Designs" in which it shall, for each registered layout-design, effect all the recordings provided for in this Ordinance.

(2) The Register of Layout-Designs shall contain the number, title, filing date and the date of first commercial exploitation of the layout-design as well as the name and address of the right holder and other particulars as may be prescribed.

(3) Any person may consult the Register of Layout Designs and obtain extracts therefrom, on payment of the prescribed fee.

10. Right to transfer and subsequent rectification of Register of Layout-Designs:— (1) Where the essential contents of an application have been taken from the layout-design of another person without his consent, such person may, in writing, request the Controller to transfer the application to him.

(2) Where the application has already resulted in a registration, that person may, within three years from the publication of the registration, in writing, request the Controller to transfer the registration to him and to rectify the entry in the Register of Layout-designs accordingly.

(3) The Controller shall send forthwith a copy of such a request to the right-holder, and, within the prescribed period and in the prescribed manner, such right-holder may send to the Controller a counter-statement of the grounds on which he relies.

(4) If the right-holder sends a counter-statement, the Controller shall furnish a copy thereof to the person requesting the transfer and, after hearing the parties, if either or both wish to be heard, and considering the merits of the case, shall decide whether the application or registration should be transferred and, where applicable, whether the Register of Layout-Designs should be rectified

11. Change in the ownership of a protected layout-design:—(1) Any change in the ownership of a protected layout-design shall be in writing.

(2) Once the layout-design has been registered the change in ownership at the request of any interested party, made to the Patent Office, shall be recorded and published by the Controller. Such change shall have no effect against third parties until such recording is effected.

(3) An application for change in ownership shall be accompanied by such fee as may be prescribed.

12. Contractual licences:— (1) Any licence contract concerning a registered layout-design shall be submitted to the Patent Office which shall keep its contents confidential but shall publish a reference thereto.

(2) The licence contract shall have no effect against third parties until such submission as referred to in sub-section (1) has been made.

13. Cancellation.—(1) Any interested person may apply for cancellation of registration of a layout-design on the grounds that:—

(i) the layout-design is not protectable under sections 3 and 4;

(ii) the right holder is not entitled to protection under section 4; or

(iii) the layout-design has not been commercially exploited anywhere in the world before the filing of the application for registration.

(2) Where the grounds for cancellation are established with respect only to a part of the layout-design, only the corresponding part of the registration shall be cancelled.

(3) An application for cancellation of the registration of the layout-design under sub-sections (1) and (2) shall be filed with the District Court in writing. The request shall state the grounds on which it is based.

(4) Any cancelled layout-design registration, or part thereof, shall be regarded as null and void from the date of the commencement of protection.

(5) The final decision of the District Court shall be communicated to the Controller who shall record it and publish a reference thereto as soon as possible.

14. **Representation:**—Where an applicant's ordinary residence or principal place of business is outside Pakistan he shall be represented by a legal practitioner resident and practicing in Pakistan.

15. Infringement and enforcement of right:— (1) Infringement shall consist of the performance of any act which is unlawful under section 5.

(2) On the request of the right holder, or of his licensee if the latter has requested the right holder to institute court proceedings for a specific relief and the right holder has refused or failed to do so within a reasonable period, the District Court may grant an injunction to prevent infringement or an imminent infringement and award damages and grant any other remedy provided for in the relevant law in force.

(3) An action under sub-section (2) may be initiated only after a layout-design has been registered under section 8.

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16. Offences and penalties:— (1) Any person who, without authorization knowingly performs any act which is unlawful under section 5 shall be guilty of an offence punishable with imprisonment for a term which may extend to two years, or with fine which shall not be less than two hundred thousand rupees, or with both.

(2) The Court may also order the seizure, forfeiture and destruction of the layout-designs of integrated circuits or article; and of any materials or implements having been predominantly used in the commission of the offence.

17. Exploitation by a Government agency or third person:— (1) Subject to sub-section **(**2), where—

(i) the public interest, in particular, national security, nutrition, health or the development of other vital sectors of the national economy requires the exploitation of a registered layout-design for public non-commercial use; or

(ii) a judicial or administrative body has determined that the manner of exploitation of a registered layout-design, by the right-holder, or his licensee, is anticompetitive, and the Federal Government is satisfied that exploitation of the layout-design in accordance with the provisions of this section would remedy such practice,

the Federal Government may, even without the consent of the right holder, decide that a Government agency or a third person designated by the Federal Government may exploit the layout-design.

(2) The Federal Government shall, before taking any decision under sub-section (1), give the right-holder and any interested person an opportunity of being heard if he wishes to be heard.

(3) The exploitation of a layout-design shall be limited to the purpose for which it was authorized under sub-section (1), and shall be subject to the payment to the right-holder of an adequate remuneration therefore taking into account the economic value of the said authorization as the Federal Government may determine.

(4) Upon request of the right-holder, or of the beneficiary of the authorization under sub-section (1), the Federal Government may after hearing the parties, if either or both wish to be heard, vary the terms of the decision authorizing the exploitation of the layout-design to the extent that changed circumstances justify such variation.

(5) Upon the request of the right-holder, the Federal Government shall terminate the authorization if it is satisfied that the circumstances which led to the decision have ceased to exist and are unlikely to recur or that the beneficiary of the authorization under sub-section (1) has failed to comply with the terms of such authorization.

(6) Notwithstanding the provisions of sub-section (5), the Federal Government shall not terminate an authorization if it is satisfied that the adequate protection of the legitimate interests of the beneficiary of the authorization justifies the maintenance of such authorization.

(7) Where a third person has been designated by the Federal Government, the authorization may only be transferred with the enterprise or business of the beneficiary of authorization or with the part of the enterprise or business within which the layout-design is being exploited.

(8) A request for grant of authorization under sub-section (1) shall be accompanied by evidence that the right-holder has received, from the person seeking the authorization, a request for a contractual licence but that person has been unable to obtain such licence on reasonable commercial terms and conditions and within a reasonable time:

Provided that this sub-section shall not apply in cases of—

(i) national emergency or other circumstantial urgency provided that in such cases the owner of the patent shall be informed of decision of the Federal Government as soon as reasonably practicable;

(ii) public non-commercial use; and

(iii) anti-competitive practices determined as such by a judicial or administrative body in accordance with clause (ii) of sub-section (1).

18. Exercise of discretionary power and extension of time:— (1) The Controller shall give any party to any proceeding before him an opportunity of being heard before exercising any discretionary power under the provisions of this Ordinance which may adversely affect such party.

(2) The Controller may, if he is satisfied that the circumstances justify it, upon receiving a written request therefor, extend the time for doing any act or taking any proceeding under this Ordinance, upon notice to the parties concerned and upon such terms as he may direct.

19. Appeal:— (1) An appeal shall lie to the High Court in cases of dispute relating to the application of this Ordinance and in matters which under this Ordinance are required to be referred to a District Court.

(2) An appeal shall lie to the High Court against the decision of the Federal Government under section 17.

(3) An appeal shall lie to the High Court against any decision taken by the Controller under this Ordinance in particular the registration of a layout-design, by any interested party and such appeal shall be referred within two months of the date of such decision.

20. Surrender of right:— (1) The right-holder may surrender his right to protection only with the approval of the sole use grantee, or ordinary use grantee and pledgee, if any.

(2) A sole use grantee may surrender his sole use right to protection only with the approval of the ordinary use grantee and pledgee, if any.

(3) An ordinary use grantee may surrender his ordinary use right to protection only with the approval of the pledgee, if any.

21. Power to make rules:— (1) The Federal Government may, by notification in the official Gazette, make rules for carrying out the purposes of this Ordinance.

(2) In particular and without prejudice to the generality of the foregoing power, such regulations may provide for—

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(a) payment of fee in connection with an application for registration of layout-design of' integrated circuit and matters related thereto; and

(b) fee to be paid to the Patent Office for obtaining copies of the relevant record of the registered layout-design of integrated circuit from the Patent Office.

22. Power to make regulations:—The Controller may, with the approval of Federal Government, make regulations, not inconsistent with the rules, for carrying out the purposes of this Ordinance.

THE REGISTRATION OF FOREIGNERS ACT, 1939

CONTENTS

1. Short title and extent
2. Definitions
3. Power to make rules
4. Burden of proof
5. Penalties
6. Power to exempt from application of Act
7. Protection to persons acting under this Act
8. Application of other laws not barred
9. [Omitted]

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THE REGISTRATION OF FOREIGNERS ACT, 1939

ACT NO. XVI OF 1939

[8th *April*, 1939]

An Act to provide for the registration of foreigners in [1][Pakistan]

WHEREAS it is expedient to provide for the registration of foreigners entering, being present in, and departing from, [1][Pakistan];

It is hereby enacted as follows:—

1. Short title and extent.—(1) This Act may be called the Registration of Foreigners Act, 1939.

(2) It extends to [1][the whole of Pakistan].

2. Definitions. In this Act—

[2][(a) "foreigner" means a person who is not a citizen of Pakistan;]

(b) "prescribed" means prescribed by rules made under this Act.

3. Power to make rules. The [3][Federal Government] may after previous publication, by notification in the official Gazette, make rules with respect to foreigners for any or all of the following purposes, that is to say—

(a) for requiring any foreigner entering, or being present in, [1][Pakistan] to report his presence to a prescribed authority within such time and in such manner and with such particulars as may be prescribed;

(b) for requiring any foreigner moving from one place to another place in [2][Pakistan] to report, on arrival at such other place, his presence to a prescribed authority within such time and in such manner and with such particulars as may be prescribed;

(c) for requiring any foreigner who is about to leave [1][Pakistan] to report the date of his intended departure and such other particulars as may be prescribed to such authority and within such period before departure as may be prescribed;

(d) for requiring any foreigner entering, being present in, or departing from, [1][Pakistan] to produce, on demand by a prescribed authority, such proof of his identity as may be prescribed;

[1]Subs. by Act No. VIII of 1950, ss. 2-3
[2]Subs. by Act No. XXXV of 1957, s. 2.
[3]Subs. by the Federal Adaptation of Laws Order, 1975 (P. O. No. 4 of 1975), Art. 2 and Table.

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(e) for requiring any person having the management of any hotel, boarding-house, sarai or any other premises of like nature to report the name of any foreigner residing therein for whatever duration, to a prescribed authority within such time and in such manner and with such particulars as may be prescribed;

(f) for requiring any person having the management or control of any vessel or aircraft to furnish to a prescribed authority such information as may be prescribed regarding any foreigner entering, or intending to depart from, [1][Pakistan] in such vessel or aircraft, and to furnish to such authority such assistance as may be necessary or prescribed for giving effect to this Act ;

(g) for providing for such other incidental or supplementary matters as may appear to the [2][Federal Government] necessary or expedient for giving effect to this Act.

4. Burden of proof. If any question arises with reference to this Act or any rule made there under, whether any person is or is not a foreigner, or is or is not a foreigner of a particular class or description, the onus of proving that such person is not a foreigner or is not a foreigner of such particular class or description, as the case may be, shall, notwithstanding anything contained in the Evidence Act, 1872 (I of 1872), lie upon such person.

5. Penalties. Any person who contravenes, or attempts to contravene, or fails to comply with, any provision of any rule made under this Act shall be punished, if a foreigner, with imprisonment for a term which may extend to one year or with fine which may extend to one thousand rupees or with both, or if not a foreigner, with fine which may extend to five hundred rupees.

6. Power to exempt from application of Act. The [2][Federal Government] may, by order, declare that any or all of the provisions of the rules made under this Act shall not apply, or shall apply only with such modifications or subject to such conditions as may be specified in the said order, to or in relation to any individual foreigner or any class or description of foreigner:

Provided that a copy of every such order shall be placed on the table of [3][* * *] the [2][Federal] Legislature as soon as may be after its promulgation.

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7. Protection to persons acting under this Act. No suit, prosecution or other legal proceeding shall lie against any person for anything which is in good faith done or intended to be done under this Act.

[1]Subs. by Act No. VIII of 1950, s. 4.
[2]Subs. by the Federal Adaptation of Laws Order, 1975 (P. O. No. 4 of 1975), Art. 2 and Table.
[3]Omitted by the Adaptation of Central Acts & Ordinances Order, 1949 (Order No. 4 of 1949), Art. 3 and Sch.

8. Application of other laws not barred. The provisions of this Act shall be in addition to, and not in derogation of, the provisions of the Foreigner Act, [1][1946 (XXXI of 1946)] and any other law for the time being in force.

9. [2][* * * * * * *].

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[1]Subs. by Act No. VIII of 1950, s. 5.
[2]Omitted by the Federal Laws (Revision and Declaration) Ordinance, 1981 (XXVII of 1981), s. 2 and Sch. II.

THE RIGHT TO FREE AND COMPULSORY EDUCATION ACT, 2012

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11. No capitation fee and screening procedure.
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17. Terms and conditions of service of teachers.

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THE RIGHT TO FREE AND COMPULSORY EDUCATION ACT, 2012

ACT NO. XXIV OF 2012

An Act to provide for free and compulsory education to all children of the age of five to sixteen years

WHEREAS it is expedient to provide free and compulsory education to all children of the age of five to sixteen years in schools established by the Federal Government and Local Government in Islamabad Capital Territory;

It is hereby enacted as follows:—

1. Short title, extent and commencement.—(1) This Act may be called the Right to Free and Compulsory Education Act, 2012.

(2) It shall extend to the Islamabad Capital Territory.

(3) It shall come into force on such date and in such areas, as the Federal Government may, by notification in the Official gazette, appoint.

2. Definitions.—In this Act, unless there is anything repugnant in the subject or context,—

(a) "Appropriate Government" means,—

(i) in relation to a school established, owned or controlled by the Federal Government, the Federal Government; and

(ii) in relation to a school established, owned or controlled by the Local Government, the Local Government;

(b) "capitation fee" means any donation, contribution or payment, by whatever name, other than the fee notified by the school or the appropriate Government;

(c) "child" means a child including a child with special education needs, male or female, of the age of five to sixteen years of age;

(d) "disadvantaged child" means a child who belongs to a socially and economically disadvantaged class, or group or belongs to such parent whose annual income is lower than the minimum limit specified by the appropriate Government, by the notification in the Official gazette;

(e) "education" means the prescribed education for a child by the academic authority, notified by the Government;

(f) "Education Advisory Council" means the Education Advisory Council established under this Act;

(g) "free education" means education free of any education related costs including expenditure on stationery, school bags, and transport.

(h) "notification" means a notification published in the Official gazette;

(i) "parent" includes a person having the care and custody of a child and includes a natural guardian or legal guardian so appointed or declared by a Court.

(j) "prescribed" means prescribed by rules made under this Act;

(k) "School" means any registered school imparting prescribed education and includes a,—

(i) A school established, owned or controlled by the appropriate Government;

(ii) A school receiving aid or grants from the appropriate Government to meet the whole or part of its expenses; and

(iii) A school not receiving any kind of aid or grants from the appropriate Government to meet its expenses.;

(l) "screening procedure" means the method of selection for admission of a child, in preference over another, other than a random method; and

(m) "special education" means educational programmes and practices designed for students as handicapped or gifted students, whose mental ability, physical ability, emotional functioning, etc. require special teaching approaches, equipment, or care within or outside a regular classroom.

3. Right of child to free education.—(1) Every child, regardless of sex, nationality or race, shall have a fundamental right to free and compulsory education in a neighbourhood school.

(2) No child shall be liable to pay any kind of fee, charges, expenses, etc., which may prevent him from pursuing and completing the education.

(3) It is the obligation of the appropriate Government to,—

(a) provide free education to every child;

(b) ensure admission of children of migrant families;

(c) ensure compulsory admission, attendance and completion of education;

(d) ensure safely of travel of the child and the teacher to and from school;

(e) ensure availability of a neighbourhood school;

(f) ensure that the disadvantaged child is not discriminated against and prevented from, on any grounds whatsoever, pursuing and completing education:

(g) provide infrastructure including school building, playgrounds, laboratories, teaching learning material and reaching staff;

(h) monitor functioning of schools within its jurisdiction;

(i) decide the academic calendar;

(j) provide all training facilities for teachers and students;

(k) ensure good quality education conforming to the prescribed standards and norms;

(l) ensure timely prescribing of curriculum and courses of study for education; and

(m) provide proper training facility for teachers.

4. Special provisions for education.—Where a child has not been admitted in any school or though admitted, could not complete his education, then he shall be admitted in an appropriate class in a formal or non-formal school:

Provided that he shall, in order to be *at par* with others, have a right to receive special training, in such a manner, and within one academic year.

5. Right of transfer to other school.—(1) Where in a school, there is no provision for completion of the prescribed education, a child shall have a right to seek transfer to any other school for completing his education.

(2) Where a child is required to move from one school to another, for any reason whatsoever, such child shall have a right to seek transfer to any other school for completing his education.

(3) for seeking admission in such other school, the in-charge of the school where such child was last admitted, shall immediately issue the transfer certificate:

Provided that delay in producing the transfer certificate shall not be a ground for cither delaying or denying admission in such other school:

Provided further that the in-charge of the school delaying issuance of transfer certificate or delaying or denying admission shall be liable for disciplinary action under the service rules.

6. Duty of appropriate Government to establish school.—(1) The appropriate Government shall, for carrying out the provisions of this Act, establish, within such limits of neighbourhood as may be prescribed, a school, within a period of three years from the commencement of this Act.

(2) The appropriate Government shall encourage enterprises, institutions and other segments of society, by offering incentives, to establish schools to facilitate free and compulsory education.

(3) The appropriate Government shall establish a system of grants-in-aid to support the school attendance of poor students.

7. Sharing of financial and other responsibilities.—(1) The Federal Government and the Local Government, if any, shall have concurrent responsibility for providing funds for carrying out the provisions of this Act.

(2) The Federal Government may provide to the Local Government as grants-in-aid such percentage of expenditure for education as it may determine, from time to time, in consultation with the Local Government.

(3) The Federal Government shall establish or specify, through notification, an academic authority to lay down the curriculum and evaluation procedures, including approval of syllabi and textbooks for students, to develop and enforce standards for training of teachers, and to provide technical support and resources for planning and capacity building of teachers and education managers.

8. Duty of parents.—(1) The parent of a child shall, except in the case of a reasonable excuse, cause a child to attend a school in the neighbourhood until the said child has completed the prescribed education.

(2) Reasonable excuse for the purpose of sub-section (1) shall include any of the following cases namely;—

(a) where the School management Committee is satisfied that the child is incapable of attending school by reason of any infirmity or mental incapacity or it is not desirable that the child should be compelled to carry on his study further; or

(b) where there is no School in the neighbourhood.

9. Appropriate Government to provide pre-school education.—The appropriate Government may make necessary arrangements for providing free pre-school education and early childhood care for the children above the age of three years until they join the school for education.

10. Responsibility of private school for free education.—For the purposes of this Act, a school,—

(a) specified in sub-clauses (i) and (ii) of clause (k) of Section 2, shall provide free education to such proportion of children admitted therein as its annual aid or grant so received bears to its annual recurring expenses; and

(b) in sub-clause (iii) of clause (k) of Section 2, shall admit in class I and then in every class, to the extent of at ten percent of the strength of that class, disadvantaged children in the neighbourhood and provide free education till the educational level of that school:

Provided that where a school specified in clause (b), imparts preschool education, the provisions of clauses (a) and (b) shall apply for admission to such pre-school education.

11. No capitation fee and screening procedure.—(1) No school or person shall, while admitting a child, collect any capitation fee and subject the child or his parents or parent to any screening procedure.

(2) Any school or person, if in contravention of the provisions of sub-section (1),—

(a) receives capitation fee, shall be punishable with fine which may extend to twenty times the capitation fee charged for the first contravention and fifty thousand rupees for each subsequent contravention; and

(b) subjects a child or parent to screening procedure, shall be punishable with fine which may extend to fifty thousand rupees for the first contravention and one hundred thousand rupees for each subsequent contravention.

12. Proof of age for admission.—For the purposes of admission to a school, the age of a child shall be determined on the basis of the Form-B of NADRA and birth certificate issued as prescribed:

Provided that no child shall be denied admission in a school for lack of proof of age.

13. No denial of admission and expulsion.—(1) A child shall be admitted in a school at the commencement of every academic year:

Provided that no child shall be denied admission if such admission is sought subsequent to termination of admission period of the academic year:

Provided that any child subsequently admitted shall complete his studies in such manner as may be prescribed.

(2) No child admitted in a school shall be expelled from school till the completion of the prescribed education.

(3) No child shall be subjected to corporal punishment or mental harassment.

(4) Whoever contravenes the provisions of this section, shall be liable to disciplinary action under the service rules.

14. Registration of Schools.—(1) No school, other than a school established, owned or controlled by the appropriate Government, after the commencement of this Act, be established or function, without obtaining a certificate of registration from the prescribed authority.

(2) The prescribed authority shall issue the certificate of registration in such form, within such period, in such manner, and subject to such conditions, as may be prescribed:

Provided that no such registration shall be granted to a school unless it fulfils the prescribed norms and standards.

(3) The prescribed authority shall, on the contravention of the conditions of registration, by an order in writing, withdraw registration:

Provided that registration shall not be so withdrawn without giving a reasonable opportunity of being heard to such school:

Provided further that such order shall contain a direction as to which of the neighbourhood school, the children studying in the so de-registered school, shall be shitted.

(4) The appropriate Government or an authorized officer may take such steps as it or he may deem necessary to close a unregistered or de-registered educational institution.

(5) Any person who establishes or runs a school without obtaining certificate of registration, or continues to run a school after withdrawal of registration, shall be liable to fine which may extend to two hundred thousand rupees and in case of continuing contraventions, to a fine of twenty five thousand rupees for each day during which such contravention continues.

15. Norms and standards of school.—(1) No school shall be established or registered or continue to Function, unless it fulfils the prescribed norms and standards.

(2) Where a school established before the commencement of this Act does not conform to the prescribed norms and standards, it shall take steps to conform to prescribed norms and standards at its own expense, within a period of two years.

(3) Where a school fails to conform to the prescribed norms and standards within two years, the prescribed authority shall withdraw registration granted to such school.

(4) Any person who continues to run a school after the registration is withdrawn, shall be liable to fine which may extend to two hundred thousand rupees and in case of continuing contraventions, to a fine of twenty five thousand rupees for each day during which such contravention continues.

16. School Management Committee.—(1) Every school, other than a school specified in sub-clause (iii) of clause (k) of Section 2, shall constitute a School Management Committee consisting of the representatives of the appropriate Government, teachers, parents of children admitted in such school:

Provided that at-least two-thirds of members of such Committee shall be parents:

Provided further that one-third of members of such Committee shall be women.

(2) The School Management Committee shall perform the following functions, namely:-

(a) monitor the general working of the school;

(b) ensure that the prescribed norms and standards are observed;

(c) ensure that the education policy of the appropriate Government is implemented;

(d) prepare and recommend the annual development plan;

(e) monitor the utilization of the aids and grants received from the appropriate Government or any other source; and

(f) perform such other functions as may be prescribed or entrusted to it by the appropriate Government.

(3) The School Management Committee shall also ensure that every child required to attend a school under this Act attends a school and for this purpose, it shall take all steps as maybe considered necessary or as may be prescribed by Government.

(4) Where a School Management Committee is satisfied that a parent who is required under this Act to cause a child to attend a school has failed to do so, the School Management Committee, after giving the parent an opportunity of being heard and after such enquiries as it considers necessary, may puss an order directing the parent to cause such child to attend a school on and from a date which shall be specified in the order.

(5) Any parent who fails to comply with an order issued under sub-section (4) of this section, shall on conviction be punishable with fine which may extend to five thousand rupees and with further fine which may extend to five hundred rupees for every day after the conviction for which the failure continues or with imprisonment which may extend to three month or with both.

(6) Any employer of a child, who is required under this Act to attend a School, after receiving due warning from the School Management Committee, continues to employ a child, whether on remuneration or otherwise, shall on conviction, be punishable with fine which may extend to fifty thousand rupees or with imprisonment which may extend to six month or with both and with a further fine which may extend to one thousand rupees for every day after the conviction for which the non-attendance at a school continues.

17. Terms and conditions of service of teachers.—(1) No person shall be appointed as a teacher unless he possesses the prescribed qualifications.

(2) Where the persons having the prescribed qualifications are not available, the appropriate Government may, by notification, relax the prescribed qualifications, for a period not exceeding two years:

Provided that a teacher, who at the commencement of this Act does not possess the prescribed qualifications, shall acquire such qualifications within a period of two years.

18. Duties of teachers.—(1) A teacher shall perform the following duties, namely:—

(a) maintain regularity and punctuality in attending the school;

(b) complete the curriculum and syllabi within the specified time;

(c) assess the learning abilities of every child and supplement additional instructions, if any, as required;

(d) all round development of the child;

(e) building up child's knowledge, potentiality and talent;

(f) adopt learning through activities, discovery and exploration in a child friendly and child-centered manner;

(g) make the child free of fear, trauma and anxiety and help the child to express views freely;

(h) hold regular meetings with parents and share with them the relevant information about the child; and

(i) perform such other duties as may be prescribed.

(2) A teacher committing default in performance of duties specified in sub-section (1), shall be liable to disciplinary action under the applicable service laws.

19. Other teachers related matters.—(1) The appropriate Government shall ensure that the prescribed pupil-teacher ratio, is maintained in each school within one year from the date of commencement of this Act.

(2) The appointing Government shall ensure that vacancies of teachers in a school shall not exceed ten per cent of the total sanctioned strength and such vacancy shall be filled within four months.

(3) No teacher shall be deployed for any non-educational purposes other than the population census, disaster relief duties or duties relating to elections.

(4) Every child completing his education shall be awarded a proper certificate, in such form and in such manner, as may be prescribed.

(5) The grievances, if any, of a teacher shall immediately be redressed in such manner as may be prescribed.

20. Monitoring of child's right to education.—(1) The appropriate Government, shall, in addition to the functions assigned to them under this Act, also perform the following functions, namely:-

(a) take all necessary measures for the effective implementation of the child rights under this Act; and

(b) inquire into complaints relating to child's right and take appropriate action.

(2) Any person having any grievance relating to the rights of a child under this Act may make a written complaint to the appropriate Government.

(3) After receiving the complaint under sub-section (2), the appropriate Government shall decide the matter within the period of one month after affording a reasonable opportunity of being heart to the parties concerned.

21. Medical and dental inspection of children.—(1) Every school shall, so far as it is reasonable and practicable so to do, provide for the medical and dental inspection, at appropriate intervals, of the students.

(2) The school may require the parent of a student to cause the student to undergo medical or dental inspection in accordance with arrangements made by the school authorities, or by a registered medical or dental practitioner, and a person who fails without reasonable excuse to comply with the requirement shall be guilty of an offence and shall, on conviction, be liable to a fine not exceeding five thousand rupees.

22. Education Advisory Council.—(1) The appropriate Governments shall constitute an Education Advisory Council consisting of such number of members, not exceeding nine, to be appointed from amongst persons having knowledge and practical experience in the field of the education, child rights and child development to advise the appropriate Governments on implementation of the provisions of this Act in an effective manner.

(2) The Education Advisory Council shall also ensure that every child required to attend a school under this Act attends a school and for this purpose it shall take all steps as may be considered necessary or as may be specified by Government.

(3) The terms and conditions of the appointment of members of the Education Advisory Council shall be such as may be prescribed.

23. Awards.—(1) The teachers, educational administrators, educational researchers, individuals and organizations who meet the set criteria may be awarded the prescribed awards.

(2) The students with excellent achievements in learning and training may be awarded the prescribed awards.

24. No Advertisement without Registration.—(1) No person shall promote an educational institution, whether by advertisement, prospectus, brochure or otherwise, unless the educational institution has been registered or a provisional certificate of registration has been issued.

(2) A person who contravenes sub-section (1) shall be guilty of an offence and shall, on conviction, be liable to a fine not exceeding one hundred thousand rupees or to imprisonment for a term not exceeding one year or to both.

25.Inspections and directions.—(1) The appropriate Government shall, from time to time, inspect or cause to be inspected a registered educational institution for the purpose of ascertaining that this Act and the rules made under this Act have been and are being complied with.

(2) The appropriate Government may issue such guidelines and give such directions as it deems fit for the proper implementation of the provisions of this Act.

(3) Every school shall provide such information as may be required by the appropriate Government.

26. Prosecution of the offences.—(1) No prosecution for offences punishable under this Act shall be instituted except upon a complaint with the previous sanction of the appropriate Government.

(2) All the offences under this Act are bailable and compoundable.

(3) The authorized officer in a ease where he deems it fit and proper so to do, may compound any offence committed by a person which is punishable under this Act on payment, within such time as may be specified in the order, of such sum of money, as may be so specified, which shall not exceed fifty per centum of the amount of the maximum fine to which the person would have been liable if he had been convicted of the offence.

27. Protection of action taken in good faith.—No suit or other legal proceeding shall lie against the appropriate Government, the School Management Committee or any other person, in respect of anything which is in good faith done, in pursuance of this Act, or any rules or order made there under.

28. Repeal.—The Islamabad Capital Territory Compulsory Primary Education Ordinance, 2002 (XIV of 2002) shall stand repealed:

Provided that such repeal shall not affect the previous operations of the law under repeal or order passed or anything duly done or suffered there under.

29. Powers to make rules.—(1) The appropriate Government may, by notification, make rules, for carrying out the provisions of this Act.

(2) Without prejudice to the generality of the foregoing powers, such rules may provide for all or any of the following matters, namely:—

(a) the area or limits for establishment of a neighbourhood school;

(b) the manner of maintenance of records of children:

(c) determining the age of child;

(d) the extended period for admission and the manner of completing study if admitted after the extended period;

(e) the manner of giving special training and the time-limit thereof;

(f) the authority, the form and manner of making application for Certificate of Registration;

(g) the form, the period, the manner and the conditions for issuing Certificate of Registration;

(h) the manner of giving opportunity of hearing under this Act;

(i) the functions of School Management Committees;

(j) school annual development plan;

(k) the salary and allowances payable to, and the terms and conditions of service of teachers;

(l) the duties to be performed by the teachers;

(m) the manner of redressing grievances of teachers, students or any other person;

(n) the form and manner of awarding certificate for completion of the education; and

(o) the allowances and other terms and conditions of appointment of members of the relevant Education Advisory Council.

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THE RIOT AND CIVIL COMMOTION RISKS INSURANCE ORDINANCE, 1947

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SCHEDULE

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THE RIOT AND CIVIL COMMOTION RISKS INSURANCE ORDINANCE, 1947

ORDINANCE No. III OF 1947

[7th November, 1947]

An Ordinance to provide for the insurance of certain property against Riot and Civil Commotion *Risks.*

WHEREAS an emergency has arisen which makes it necessary to provide for the insurance of certain property against Riot and Civil Commotion Risks;

Now, THEREFORE, in exercise of the powers conferred by section 42 of the Government of India Act, 1935, the Governor-General is pleased to make and promulgate the following Ordinance, namely:—

1. Short title, extent and applications.—(1) This Ordinance may be called the Riot and Civil Commotion Risks Insurance Ordinance, 1947.

(2) It extends to the whole of [1][* * *] Pakistan.

(3) The [2][Federal Government] may, by notification in the official Gazette, apply it to the whole of [1][Pakistan] or any part thereof from such date and in such manner as may be specified in the said notification.

2. Definitions.—In this Ordinance, unless there is anything repugnant in the subject or context—

(1) "factory" means a factory as defined in clause (j) of section 2 of the Factories Act, 1934 (XXV of 1934);

(2) "factory buildings" includes all buildings comprised in the factory, and such other buildings (including residential buildings for staff and workmen, hospitals and welfare centers) within a radius of two miles from the main factory as are in the same ownership or occupation as the factory and are used for the purposes of the factory;

(3) "the Fund" means the Riot and Civil Commotion Insurance Fund constituted under section II; hereafter mentioned.

(4) "Riot and Civil Commotion Risks" means the risks of—loss or damage (including loss or damage due to fire or explosion) directly caused by persons taking part in riots or civil commotions or by strikers or locked out workers or by persons of malicious intent acting on behalf of or in connection with any political organization; also loss or damage (including loss or damage due to fire or explosion) directly caused by the action of any lawfully constituted Authority in connection with the foregoing perils only:

[1]Omitted and subs. by the Central Laws (Adaptation) Order, 1961 (P. O. 1 of 1961), Art. 2 and Sch., (*with effect from the 23rd March,* 1956).
[2]Subs. by the Federal Adaptation of Laws Order, 1975 (P. O. 4 of 1975), Art. 2 and Table.

Provided always that the following shall be expressly excluded from the scope of this section:—

(i) Loss or damage caused by any of the perils hereby insured against, if such loss or damage either in origin or extent is directly or indirectly, proximately or remotely, occasioned by or contributed to by any of the following occurrences, or, either in origin or extent directly or indirectly, proximately or remotely, arises out of or in connection with any of such occurrences, namely:

War, invasion, act of foreign enemy, hostilities or war like operations, (whether war be declared or not);

(ii) Loss or damage occasioned by cessation of work;

(iii) Consequential loss or damage of any kind or description whatsoever including delay, deterioration and loss of market.

(5) "prescribed" means prescribed by rules made by the [1][Federal Government] under this Ordinance.

3. Properties insurable under this Ordinance.—(1) Subject to the provisions of this Ordinance every factory, factory buildings and other moveable or immoveable property described in the Schedule shall be deemed to be the property insurable under this Ordinance.

(2) The [1][Federal Government] may, by notification in the official Gazette, from time to time amend the Schedule by adding thereto or omitting therefrom any kind of property.

4. Ownership.—Save in so far as is otherwise expressly provided in this Ordinance, any property shall, subject to the provisions of this section, be deemed for the purposes of this Ordinance, to be owned—

(a) if the ownership of the property is for the time being vested in a person in relation to whom the property is insurable under this Ordinance, by that person;

(b) if the ownership of the property is not so vested, by any person in relation to whom the property is insurable under this Ordinance and who is for the time being entitled either unconditionally or conditionally, to have the ownership of the property vested in him :

Provided that where—

(*i*) any property would, under the foregoing provisions of this sub-section, be deemed to be owned by a person in whom the property therein is vested otherwise than in the course of a business carried on by him in the Province, or who is entitled to have the ownership of the property vested in him otherwise than in the course of such a business, and

(*ii*) any person carrying on business in the Province is for the time being entitled to sell the property as agent, the property shall be deemed to be owned by the last mentioned person.

[1]Subs. by the Federal Adaptation of Laws Order, 1975 (P. O. 4 of 1975), Art. 2 and Table.

5. [1][Repealed]

6. [1][Repealed]

7. Employment of agents by [2][Federal Government]. The [2][Federal Government] may employ or authorise the employment of any person or firm as prescribed in order to act as its agent for any of the purposes of this Ordinance and may pay to the persons or firms so employed such remuneration as the [2][Federal Government] thinks fit.

8. [1][Repealed]

9. Recovery of premiums unpaid.—(1) [3][* * *] where any person has failed to insure as, or to the full amount required by this Ordinance and has thereby evaded the payment by way of premium of any money which he would have had to pay but for such failure, an officer authorised in this behalf by the [2][Federal Government] may determine the amount, payment of which has been evaded. The amount so determined shall be payable by such person and shall be recoverable from him as an arrear of land revenue and shall be a first charge on the property in respect of which the default was made.

(2) A person against whom a determination is made under sub-section (1) may, within the prescribed period appeal against such determination to the [2][Federal Government] whose decision shall be final.

10. [1][Repealed]

11. Riot and Civil Commotion Insurance Fund.—(1) The [2][Federal Government] shall establish or cause to be established a Fund in a Province for the purposes of this Ordinance, to be called the Riot and Civil Commotion Insurance Fund into which shall be paid all sums received by the [2][Federal Government] by way of Insurance premiums under the Riot and Civil Commotion Insurance Scheme or by way of payments made on composition of offences under section 15, or ordered to be paid under section 545 of the Code of Criminal Procedure, 1898 (V of 1898), in any prosecution under this Ordinance, and out of which shall be paid all sums required for the [4][discharge] by the [2][Federal Government] of any of its liabilities under the Riot and Civil Commotion Insurance Scheme, or for the payment by the [2][Federal Government] of the remuneration and expenses of agents employed for the purposes of that Scheme.

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(2) If, at any time, when a payment is to be made out of the Fund, the sum standing to the credit of the Fund is less than the sum required for the making of that payment, an amount equal to the deficiency shall be paid into the Fund as an advance out of general revenues.

(3) If, at any time, the amount standing to the credit of the Fund exceeds the sum which, in the opinion of the [2][Federal Government], is likely to be required for the making of payments out of the Fund, the excess shall be paid into general revenues.

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[1]Rep. by Ord. No. XXII of 1948, s. 2, (*with effect from the 1st November, 1948*).
[2]Subs. by the Federal Adaptation of Laws Order, 1975 (P. O. 4 of 1975), Art. 2 and Table.
[3]Rep. by the Federal Laws (Revision and Declaration) Act, 1951 (XXVI of 1951), s. 3 and 2nd Sch.
[4]Subs. *ibid.*, s. 4 and 3rd Sch.

(4) The [1][Federal Government] shall prepare in such form and manner as may be prescribed, and shall publish either annually or at such shorter intervals as may be prescribed, an account of all sums received into and paid out of the Fund.

12. Powers of [1][Federal Government] to obtain information.—(1) Any person authorised in this behalf by the [1][Federal Government] may, for the purpose of ascertaining whether or not the requirements of this Ordinance have been complied with—

(a) require any person carrying on in any part of [2][Pakistan] the business of fire insurance or an owner of property to submit to him such accounts, books or other documents or to furnish to him such information as he may reasonably think necessary, or

(b) at any reasonable time enter any premises occupied by any person carrying on in any part of the [2][Pakistan] any such business or by such owner of the property, and inspect the premises and require any person found therein who is for the time being in charge thereof to produce to him and allow him to examine such accounts, books or other documents as may relate to the business carried on in the premises or to furnish to him such information as he may reasonably think necessary.

(2) Whoever willfully obstructs any person in the exercise of his powers under this section or fails without reasonable excuse to comply with a request made thereunder shall, in respect of each occasion on which any such obstruction or failure takes place, be punishable with fine which may extend to five hundred rupees.

(3) Whoever in purporting to comply with his obligations under this section, knowingly or recklessly makes a statement false in a material particular, shall be punishable with fine which may extend to one thousand rupees.

13. Refund of premiums in certain cases.—(1) Where property of any description has been insured by an owner for any period, and before that period has elapsed property of that description has ceased, by virtue of a notification under sub-section (2) of section 3, to be property insurable under this Ordinance, the person who has insured such property shall be entitled to a proportionate refund of premium.

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(2) In any other case the [1][Federal Government] may, at its discretion, order a refund to be made of any sum paid or purporting to have been paid as premium in respect of any policy issued or purporting to have been issued under this Ordinance.

(3) On and after the eighth day of November, 1947, no suit shall be maintainable in any civil court against the [1][Federal Government] or a person acting as agent of the [1][Federal Government] under section 7 for the refund of money paid or purporting to have been paid as premium in respect of any policy issued or purporting to have been issued under this Ordinance.

14. Limitation on prosecution.—No prosecution for any offence punishable under this Ordinance shall be instituted against any person except by or with the consent of the [1][Federal Government] or any authority on whom powers are conferred in this behalf by the [1][Federal Government].

[1]Subs. by the Federal Adaptation of Laws Order, 1975 (P. O. 4 of 1975), and Table.
[2]Subs. by the Central Laws (Adaption) Order, 1961 (P.O. No. 1 of 1961), Art. 2 and Sch., (*with effect from the 23rd March,* 1956).

15. Composition of offences.—Any offence punishable under sub-section (2) of section 8 may, either before or after the institution of the prosecution, be compounded by the [1][Federal Government] or by any authority on whom powers are conferred in this behalf by the [1][Federal Government], on payment for credit to the Fund of such sum as the [1][Federal Government] or such authority, as the case may be, thinks fit.

16. Bar of legal proceedings.—No suit, prosecution or other legal proceeding shall lie against any person for anything which is in good faith done or intended to be done under this Ordinance.

17. Power to make rules.—(1) The [1][Federal Government] may, by notification in the official Gazette, make rules to carry into effect the provisions of this Ordinance.

(2) Without prejudice to the generality of the foregoing power, such rules may prescribe—

(*a*) the forms of the policies of insurance referred to in sub-section (2) of section 6, the maximum period in respect of which such policies shall be issued, the rates at which premiums on such policies shall be payable and the minimum amount which shall be payable as any one premium on such policies;

(*b*) persons or firms to be prescribed for the purposes of section 7;

(*c*) the procedure in making determination and in presenting appeals from determination made under section 9;

(*d*) the form of and the manner of preparing the account referred to in sub-section (4) of section 11 and the intervals at which such account shall be published.

SCHEDULE

(1) Cotton Ginning Factories including the factory buildings.

(2) Cotton Pressing Factories including the factory buildings.

(3) Cotton in (1) and (2) above.

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RGN Date: 08-10-2024

[1]Subs. by the Federal Adaptation of Laws Order, 1975 (P. O. 4 of 1975), Art. 2 and Table.

THE RULES AND REGULATIONS CONTINUANCE ACT, 1937

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1. Short title

2. Continuance in force of rules and regulations made under Act IX of 1910 and Act V of 1923

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THE RULES AND REGULATIONS CONTINUANCE ACT, 1937

ACT NO. XXIV OF 1937

[*7th October, 1937*]

An Act to provide for the continuance in force of certain rules and regulations.

WHEREAS it is expedient to provide for the continuance in force of certain rules made under the Electricity Act, 1910 (IX of 1910), and certain regulations made under the Boilers Act, 1923 (V of 1923);

It is hereby enacted as follows:—

1. Short title. This Act may be called the Rules and Regulations Continuance Act, 1937.

2. Continuance in force of rules and regulations made under Act IX of 1910 and Act V of 1923. Rules made before the 31st day of March, 1937, under section 37 of the Electricity Act, 1910 (IX of 1910), and regulations made before the 28th day of March, 1937 (X of 1937), under section 28 of the Boilers Act, 1923 (V of 1923), by the Governor General in Council shall, on and from the said dates respectively, be deemed to have been made under the said sections of the said Acts by the authority substituted for the Governor General in Council by the Indian Electricity (Amendment) Act, 1937, and the Indian Boilers (Amendment) Act, 1937 (XI of 1937), respectively, and shall continue to be in force until superseded by rules or regulations made under the said sections of the said Acts by the [2][Electricity Board or the Boilers Board], as the case may be.

———————

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Date: 22-07-2024

[1]Subs. by A.O.,1964, Art. 2 and Sch.

THE SIND TEXTILE BOARD ORDINANCE, 1949

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7. Members of the Committee not to be remunerated
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9. Subscriptions, liability and interest of members
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14. Winding up of the Board
15. Power to make rules
16. Act VII of 1913 not apply to Board
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18. Existing Board deemed to be Board established by this Ordinance

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THE SIND TEXTILE BOARD ORDINANCE, 1949

ORDINANCE NO. X OF 1949.

[13th July, 1949]

AN
ORDINANCE

to incorporate and regulate the Sind Textile Board.

WHEREAS an emergency has arisen which makes it necessary to incorporate and regulate a trading corporation in [1][*** * ***] Sind for the purpose of improving the procurement and wholesale distribution of cloth [1][therein];

NOW, THEREFORE, in exercise of the powers conferred by Section 42 of the Government of India Act, 1935, the Governor-General is pleased to make and promulgate the following Ordinance:—

1. Short title, extent and commencement. (1) This Ordinance may be called the Sind Textile Board Ordinance, 1949.

(2) It extends to [1][* * *] Sind and the [2][Karachi Division].

(3) It shall come into force at once and shall be deemed to have taken effect on the 5th day of December 1947.

2. Interpretation. In this Ordinance, unless there is anything repugnant in the subject or context,—

(a) "cloth" means cloth either manufactured wholly from cotton or manufactured partly from cotton and partly from other material and containing not less than 10 per cent of cotton by weight;

(b) "Director" means the Director of Civil Supplies, Sind, and includes the Assistant Director of Civil Supplies (Textiles), Sind;

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(c) "Government" means the [1][Provincial Government];

(d) "prescribed" means prescribed by rules made under this Ordinance;

(e) "regulations" means regulations made under section 13;

(f) "scheduled bank" means a bank included in the Second Schedule to the State Bank of Pakistan Order, 1948;

(g) "wholesale dealer" means a person engaged in wholesale business in cloth.

[1]Omitted and subs. by the Central Laws (Statute Reform) Ordinance No. XXI of 1960, s. 3 and 2nd Sch.
[2]Subs. by A. O., 1964, Art. 2 and Sch.

3. Establishment and Incorporation of the Sind Textile Board. (1) As soon as may be after the commencement of this Ordinance, there shall be established in the manner hereinafter provided a trading corporation for the purpose of improving the procurement and wholesale distribution of cloth in [1][* * *] Sind.

(2) The said trading corporation shall be a body corporate by the name of the Sind Textile Board (hereinafter referred to as the Board) having perpetual succession and a common seal and shall by the said name sue and be sued.

4. There shall be a Chairman and a Vice Chairman of the Board who shall be elected in such manner and shall hold office for such term as may be prescribed.

5. Management of the Board. (1) There shall be constituted for the purpose of administering the affairs of the Board an Executive Committee, hereinafter referred to as the Committee.

(2) The affairs of the Board shall be administered by the Committee which shall consist of the Chairman and Vice-Chairman of the Board, who shall be Chairman and Vice-Chairman respectively of the Committee and nine other members who shall be elected for this purpose and shall hold office until the next election.

(3) The term of office of the members of the Committee shall be such as may be prescribed.

(4) No act done or decision taken by the Committee shall be called in question on the ground merely of the existence of any vacancy therein or defect in its constitution or on the ground that the Board is not at any time fully established.

6. In the event of any vacancy in the office of Chairman or Vice-Chairman of the Board or of a member of the Committee, otherwise than at the end of his term of office the person elected to succeed him shall hold office only for the unexpired portion of that term.

7. Members of the Committee not to be remunerated. No Chairman or Vice-Chairman or any member of the Committee or of any sub-committee or any person co-opted to serve on any sub-committee shall be entitled to receive for his services in such capacity any remuneration from the funds of the Board or otherwise.

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8. Membership of the Board. (1) The Board shall consist of not more than seventy members who may be individuals or firms or corporate bodies.

(2) Subject to the provisions of this Ordinance a person shall be eligible to be a member of the Board who—

(a) is a wholesale cloth dealer;

(b) is able to contribute in full towards the capital of the Board as set out hereinafter; and

(c) is in the opinion of the Committee a suitable person and one who will forward the interests of the Board.

[1]Omitted by the Central Laws (Statute Reforms) Ordinance No. XXI of 1960, s.4 and 2nd Sch.

(3) Any person claiming to be eligible as aforesaid and desiring to be a member on the Board may apply to the Committee in this behalf in the manner prescribed.

(4) The Committee shall consider all applications received by it under this section, and if it is satisfied that an applicant is eligible as aforesaid, it shall recommend to the Director that the eligibility of the applicant for membership of the Board may be admitted.

(5) In considering an application recommended under the preceding sub-section the Director may require the applicant to furnish him with such further evidence of eligibility for membership as aforesaid as he may specify.

(6) If the Director accepts the recommendation of the Committee, he shall notify the applicant in writing that his eligibility for membership as aforesaid has been admitted.

(7) The decision of the Director under this section shall be final, and no order passed by him admitting or rejecting an application under this section shall be called in question on any ground in any court.

9. Subscriptions, liability and interest of members. (1) Every member of the Board shall subscribe towards the funds of the Board a sum of not less than one lakh of rupees.

(2) Any person applying to be a member of the Board shall, not later than the prescribed date, subscribe in full a sum not less than as aforesaid towards the funds of the Board, and upon making such subscription shall become a member of the Board and shall be entitled to one vote.

(3) The interest of each member of the Board in the earnings of the Board available at any time for distribution among the members of the Board shall be in proportion to the amount at that time standing to his credit in the books of the Board and shall continue for so long as he remains a member of the Board.

10. Conduct of Business of the Board. Subject to the provisions of the next succeeding section all matters involving in the opinion of the Committee substantial questions of policy and all such other matters as may be specified in the regulations shall be decided by the Board, and all other affairs of the Board, save as may be prescribed, shall be administered by the Committee:

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Provided that the decision of the Committee in any such matter as may be specified in the regulations shall be submitted for the approval of the Board.

11. General Control by Government. The activities of the Board shall be subject to the general control of the Government and the Board shall comply with any directions of a general or special nature which the Government or the Director or any other officer authorised by either in this behalf may give to it.

12. Accounts and Finance. (1) The accounts of the Board shall be maintained and audited in such manner and in accordance with such provisions as may be prescribed and the funds of the Board shall be deposited in such scheduled banks as may be approved by the Committee.

(2) Subject to such conditions as may be prescribed, the Committee may, on behalf of the Board, take such loan from or enter into such other arrangements with any scheduled bank as are, in the opinion of the Committee, necessary in the interest of the members of the Board or for forwarding the purposes of the Board.

(3) The Committee may secure loans from any scheduled bank or banks either against cash security or against hypothecation of stocks.

13. Procedure. (1) A general meeting of members of the Board shall be convened at such time and at such place and its proceedings shall be conducted in such manner as may be prescribed.

(2) The Board may make regulations, not inconsistent with the provisions of this Ordinance and the rules made thereunder—

(a) specifying the matters to be decided by the Committee and the matters in respect of which decisions of the Committee shall be submitted for the approval of the Board;

(b) imposing such conditions or restrictions as it thinks fit on the powers of the Committee;

(c) enabling the Committee to co-opt other members of the Board to serve on the Committee and to constitute sub-committees from amongst its members and empowering such sub-committees to co-opt additional members, whether members of the Board or not, having special knowledge of the subject with which a particular sub-committee is concerned;

(d) providing for the convening of meetings of the Committee or sub-committees, the time and place at which such meetings shall be held, the number of members necessary to constitute a quorum at such meetings and the procedure and the conduct of business thereat.

14. Winding up of the Board. (1) The Board shall continue in being until it is wound up in accordance with the provisions of this section.

(2) Subject as hereinafter provided the Board may be wound up—

(a) by the order of the Government; or

(b) by a resolution passed by a majority of the Board.

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(3) In the case of a winding-up by an order under clause (a) of sub-section (2) the order shall not take effect until such date, not being a date less than three months after the date of the order, as the Government or the Director may specify by notification in the official Gazette.

(4) In the case of a winding-up by a resolution under clause (b) of sub-section (2) the resolution shall not take effect until the expiry of a period of three months from the date on which the resolution is communicated to the Government, and during the said period the Board, notwithstanding anything in the said resolution, shall be bound to comply with any direction of the Government or of the Director or of any officer of the Supply Department of the Administration of the [1][Karachi Division].

[1]Subs. by A. O., 1964, Art. 2 and Sch.

(5) Notwithstanding anything in the foregoing sub-sections of this section the Board shall be deemed not to have been wound up until all sums due to the Government or to the Central Government or to any bank to which a guarantee has been given by the Government for advancing any loan to the Board have been repaid in full and a certificate to that effect has been obtained from the Government and from the [1][Federal Government].

(6) Every person who is, or who at any time has been, a member of the Board whether as established by the Government or by this Ordinance, shall be liable jointly and severally to contribute to the assets of the Board to the extent that those assets may at the winding up be insufficient to pay the debts of the Board, and no resignation or transfer of shares whenever made shall operate to exempt any such person from such liability.

(7) For removing doubts it is hereby declared that any notice of winding up given by the Sind Textile Board before the commencement of this Ordinance shall be void.

15. Power to makes rules. (1) The Government may by notification in the Official Gazette make rules to carry out the purposes of this Ordinance.

(2) In particular, and without prejudice to the generality of the foregoing provision such rules may: —

(a) provide for the manner in which the accounts of the Board shall be maintained and audited and generally for all matters relating to the finances of the Board for which it is necessary or expedient to make provision;

(b) lay down the conditions subject to which the Committee may take loans from or enter into arrangements with any scheduled bank under section 12;

(c) provide for the convening of general meetings of member of the Board, the times and places at which such meetings shall be held and the procedure and conduct of business thereat;

(d) provide for any other matter which is under this Ordinance to be prescribed.

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(3) Rules made under this section may apply to the Board any of the provisions of the Companies Act, 1913 (VII of 1913) with such modification as may be considered necessary for adapting them to the requirements of the Board.

16. Act VII of 1913 not apply to Board. Save as expressly provided by or under this Ordinance, the provisions of the Companies Act, 1913, shall not apply to, or in relation to, the Board.

17. Bar of legal proceedings. No suit, prosecution or other legal proceedings shall lie against any person for anything done or in good faith intended to be done, under this Ordinance.

18. Existing Board deemed to be Board established by this Ordinance. (1) The Sind Textile Board established by the Government on the fifth day of December, 1947, shall be deemed to have been established under this Ordinance, and any person who at the commencement of this Ordinance is or has been a member of that Board or of the Committee or of any sub-committee under that Board shall be deemed to be or to have been a member of the Board or Committee or sub-committee, as the case may be, established or constituted under this Ordinance ; and all contracts, rights and liabilities

[1]Subs. by F.A.O., 1975 Art. 2 and Table.

of whatever kind, whether arising out of any contract or in any other manner whatsoever of that Board or of any member thereof as such member shall be deemed accordingly to be contracts, rights and liabilities of the Board or of that member of the Board, constituted under this Ordinance.

(2) Notwithstanding anything in section 4 any person holding office as Chairman or Vice-Chairman at the commencement of this Ordinance shall continue to hold office for such term as the Government may prescribe.

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RGN Date: 13-06-2024

THE SPORTS (DEVELOPMENT AND CONTROL) ORDINANCE, 1962

CONTENTS

1. Short title, extent and commencement
2. Definitions
3. Establishment of the Board
4. Name, Constitution, powers and functions of a Board
5. Exclusive right to make rules for the development, control and uniformity of Sports throughout Pakistan

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THE SPORTS (DEVELOPMENT AND CONTROL) ORDINANCE, 1962

ORDINANCE N0. XVI OF 1962

[2nd May, 1962]

An Ordinance to regulate the development and control of Sports

WHEREAS it is expedient to regulate the development and control of Sports in Pakistan;

NOW, THEREFORE, in pursuance of the Proclamation of the seventh day of October, 1958, and in exercise of all powers enabling him in that behalf, the President is pleased to make and promulgate the following Ordinance:—

PART I

1. Short title, extent and commencement.—(1) This Ordinance shall be called the Sports (Development and Control) Ordinance, 1962.

(2) It extends to the whole of Pakistan.

(3) It shall come into force at once.

2. Definitions.—In this Ordinance, unless there is anything repugnant in the subject or context,—

(i) "Sports" shall include Hockey, Football, Athletics, Wrestling, Cricket, Weight-lifting, Squash Rackets, Swimming, Boxing, Cycling, Basketball, Golf, Volleyball, Rifle Shooting, Table Tennis, Badminton, Lawn Tennis, Polo, Racing, Body-Building, Skiing, Mountaineering, and any other activity which the [1][Federal Government] may, by notification in the official Gazette, specify.

(ii) "Board" means a Board constituted under this Ordinance, for the control of Sports in Pakistan.

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PART II

3. Establishment of the Board.—(1) As soon as may be after the commencement of this Ordinance, the [1][Federal Government] may, for the purposes of promoting and developing uniform standards of competition in Sports in Pakistan comparable to the standards prevailing internationally, and regulating and controlling sports in Pakistan on a national basis, by notification in the official Gazette, constitute, one or more boards for the control of Sports in Pakistan.

(2) A Board shall be a body corporate having perpetual succession and a common seal with power to acquire, hold and dispose of property, both movable and immovable.

[1]Subs. by F.A.O., 1975.

4. Name, Constitution, powers and functions of a Board.—The name, Constitution, powers and functions of a Board shall be such as may be determined by the [1][Federal Government].

5. Exclusive right to make rules for the development, control and uniformity of Sports throughout Pakistan.—A Board may make rules and regulations for carrying its objects into effect.

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RGN Date: 20-05-2024

[1]Subs. by F.A.O., 1975.

THE STAGE-CARRIAGES ACT, 1861

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1. Definition of stage-carriage
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19. Omitted

20. Jurisdiction

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[1][THE STAGE-CARRIAGES ACT, 1861]

[2]Act No. XVI OF 1861

[7th July, 1861]

An Act for licensing and regulating Stage-Carriages

WHEREAS it is expedient to license and to regulate stage carriages in [3][Pakistan] it is enacted as follows :—

1. Definition of stage-carriage. Every carriage drawn by one or more [4]horses which shall ordinarily be used for the purpose of conveying passengers for hire to or from any place in [5][Pakistan] shall, without regard to the form or construction of such carriage, be deemed to be a stage-carriage within the meaning of this Act:

[6][* * * * * * *]

2. Carriage to be licensed. No carriage shall be used as a stage-carriage unless licensed by a [7]Magistrate [8]* * *.

3. Power to refuse license. The Magistrate [9][* * *] to whom the application for a license of stage-carriage is made may refuse to license the same if he shall be of opinion that such stage-carriage is unserviceable or is unsafe or unfit for public accommodation or use.

Particulars of license. If a Magistrate [9][* * *] as aforesaid shall grant a license, the license shall set forth the number thereof, the name and residence of the proprietor of the stage-carriage, the place at which his head office is held, the largest number of passengers and the greatest weight of luggage to be carried in or on such carriage, the number of horses by which such carriage is to be drawn, and the name of the place at which such carriage is licensed.

4. Charge for and duration of license. [10][For every such license there shall be paid by the proprietor of the stage-carriage the sum of five rupees or such less sum as the [11][Provincial Government] may fix, and such license shall be in force for one year from the date thereof.]

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[1]Short title given by the Short Titles Act, 1897 (14 of 1897).
Cf. "The Stage-Carriages Act, 1832" (2.& 3 Wm IV, c. 120); "The London Hackney Carriages Act, 1833" (3 & 4 Wm. IV, c. 48); "The Railway Passenger Duty Act, 1842" (5 & 6 Vict., c. 79) ; "The Railway Passenger Duty Act 1847" (10 &11 Vict.,c.42); "The Excise Act, 1848" (11 & 12 Vict.,c.118), s. 2:
This Act as amended by the Stage-Carriages Act (1861) Amendment Act 1898 (1 of 1898), has been declared to apply to all the Provinces and the Capital of the Federation, but not so as to supersede or contravene provisions of local laws dealing with the same subject-*see* s. 22. For local laws, *see* the Bombay Public Conveyance Act, 1920 (Bom. 7 of 1920) C.f. also the Hackney Carriage Act, 1879 (14 of 1879).
It has been declared in force in Baluchistan under s. 3 of the British Baluchistan Laws ResuIation, 1913 (2 of 1913).

[2]The Act has been declared in force in British Baluchistan by Baluchistan Regulation II of 1913, s. 3.
It has also been extended to the Leased Areas of Baluchistan, *see* the Leased Areas (Laws) Order, 1950 (G.G.O. 3 of 1950); and applied in the Federated Areas of Baluchistan, *see* Gaz. of India, 1937, Pt. l, p. 1499.
This Act has been repealed to the extent of Islamabad Capital Territory, *see* Ordinance: No. 27 of 1981, s. 4 and 3rd sch.

[3]Subs. by the Central Laws (Statute Reform) Ordinance, 1960 (21 of 1960) s. 3. and 2nd Sch. (with effect from the 14th October, 1955), for" the Provinces and the Capital of the Federation" which was subs. for" British India" by A. O. 1949, Arts. 3 (2) and 4.

[4]All expressions and provisions in this Act applied to horses, also apply to all other animals employed in drawing stage-carriages, *see* section 21, infra.

[5]Subs. by the Central Laws (Statute Reform) Ordinance, 1960 (21 of 1960), s.3 and 2nd Sch. (*with effect from the 14th October, 1955*), for "the Provinces and the Capital of the Federation" which was subs. for "British India" by A.O., 1949, Arts. 3(2) and 4.

[6]Proviso to s.1 which read:- "Provided that this Act shall not apply to carriages not ordinarily used for journeys of a greater distance than twenty miles" rep. by s.2 of the Stage- Carriages Act, (1861) Amendment Act, 1898 (1 of 1898)

[7]For definition of "Magistrate" , *see* s. 21, infra.

[8]The words "or by the *Commissioner of Police of a Presidency-town" rep. by the Federal Laws (Revision and Declaration) Act, 1951 (26 of 1951), s. 3 and II Sch. The word "Chief" was previously rep. by the Repealing and Amending Act, 1914 (10 of 1914), s. 3 and Sch. II.

[9]The words "or *Commissioner of Police" rep. by Act 26 of 1951, s. 3 and Sch. II. The word "Chief" was previously rep. by Act 10 of 1914, s. 3 and Sch. II.

[10]Subs. by Act 1 of 1898, s. 3, for the original paragraph.

[11]Subs, by A.O., 1937, for "L.G".

When a licensed stage-carriage is transferred to a new proprietor within the year, the name of such new proprietor shall, on application to that effect, be substituted in the license for the name of the former proprietor without any further payment for that year; and every person who appears by the license to be the proprietor shall be deemed to be such proprietor for all the purposes of this Act.

5. Particulars to be painted on conspicuous part of carriage. On any stage-carriage being licensed the proprietor there of shall cause the number of the license and all the other particulars of the license to be distinctly painted in the English language and character upon a conspicuous part of such stage-carriage.

6. Penalty for letting carriage without having particulars painted. The proprietor of any licensed stage-carriage who shall let such stage-carriage for hire without the particulars specified in section 3 being painted on such carriage in the manner directed in the last preceding section shall be liable to a fine not exceeding one hundred rupees.

7. Penalty for letting for hire unlicensed carriage. Whoever lets for hire any stage-carriage without the same being licensed as provided by this Act, shall be liable, on a first conviction, to a fine not exceeding one hundred rupees, and on any subsequent conviction, to a fine which may extend to five hundred rupees.

8. Penalty for allowing carriage to be drawn by fewer animals or more passengers, etc., to be carried than provided by license. Any proprietor, or agent of a proprietor, or any driver of a licensed stage-carriage, who knowingly permits such carriage to be drawn by a less number of horses, or who knowingly permits a larger number of passengers, or a greater weight of luggage, to be carried by such stage-carriage than shall be provided by the license, shall be liable on a first conviction to a fine not exceeding one hundred rupees, and on any subsequent conviction, to a fine which may extend to five hundred rupees.

In every case where such stage-carriage shall be proved to have been drawn by a less number of horses, or to have carried a larger number of passengers or a greater weight of luggage, than shall be provided by the license, the proprietor of such carriage shall be held to have knowingly permitted such offence, unless he shall prove that the offence was not committed with his connivance, and that he had taken every reasonable precaution and had made reasonable provision to prevent the commission of the offence.

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9. Penalty for ill-treating animals. Any person who shall cruelly beat, ill-treat, over-drive, abuse, torture or cause or procure to be cruelly beaten, ill-treated, over-driven, abused or tortured, any horse employed in drawing or harnessed to any stage-carriage, or who shall harness to or drive in any stage-carriage any horse which from sickness, age, wounds or other cause is unfit to be driven in such stage-carriage, shall for every such offence be liable to a fine not exceeding one hundred rupees.

10. Revocations of license. Any Magistrate [1][* * *] within the local limits of whose jurisdiction any stage-carriage shall ply, or who has granted the license of any stage-carriage may cancel the license of such stage-carriage if it shall appear to him that such stage-carriage or any horse or any harness used with such carriage is unserviceable or unsafe or otherwise unfit for public accommodation or use.

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[1]The words "or*Commissioner of Police" omitted by A. O., 1949, Sch.
The word "Chief" was previously rep. by the Repealing and Amending Act, 1914 (10 of 1914), s. 3 and Sch. II.

11. Penalty for not conforming to provisions of section 5. In any station or place in which a Magistrate shall reside and be, any police-officer may, in any place within two miles of the office of such Magistrate, seize any stage-carriage with the horse harnessed thereto, if the full particulars of the license of such stage carriage be not distinctly painted on such stage-carriage in the manner provided in section 5 of this Act.

Such carriage with the horse harnessed thereto shall be taken without delay by such police-officer before such Magistrate, who shall forthwith proceed to hear and determine the complaint of such police-officer; and, if there upon any fine is imposed by such Magistrate and such fine is paid, such stage-carriage and horse shall be immediately released; and if such fine be not paid, such stage-carriage and horse may be detained for twenty days as security for the payment thereof; and if the fine be not sooner paid, they may be sold and the proceeds applied (so far as they extend) to the payment of the said fine, and all costs and charges incurred on account of the detention and sale; and the surplus (if any), when claimed, shall be paid to the proprietor of such carriage and horse; and if such surplus be not claimed within a further period of two months from such sale, the same shall be forfeited to the State.

If the proceeds of such sale do not fully pay the fine and costs and charges aforesaid, the balance may be recovered as hereinafter provided.

12. Penalty for misconduct on part of drivers. If any driver of any stage-carriage, or any other person having the care thereof, shall, through intoxication, neglect or by wanton or furious driving or by any other misconduct, endanger the safety of any passenger or other person, or shall injure or endanger the property of the proprietor of such stage-carriage or of any other person, every such person so offending shall be liable to a fine not exceeding one hundred rupees.

13. Penalty when recoverable from proprietor. Whenever the driver of any stage-carriage or the owner of any horse employed in drawing any stage-carriage shall have committed any offence against this Act for the commission whereof any penalty is by this Act imposed, other than an offence specified in section 8, and such driver or owner shall not be known, or being known cannot be found, or if the penalty cannot be recovered from such driver or owner, the proprietor of such carriage shall be liable to every such penalty as if he had been the driver of such carriage or owner of such horse at the time when such offence was committed :

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Proviso. Provided that if any such proprietor shall make out, to the satisfaction of the Magistrate before whom any complaint or information shall be heard, by sufficient evidence, that the offence was committed by such driver or owner without the privity or knowledge of such proprietor, and that no profit, advantage or benefit, either directly or indirectly, has accrued or can accrue to such proprietor therefrom, and that he has used his endeavor to find out such driver or owner, and has done all that was in his power to recover the amount of the penalty from him, the Magistrate may discharge the proprietor from such penalty, and shall levy the same upon such driver or owner when found.

14. Issue of summons. Whenever any charge is made before any magistrate of any offence under this Act on which it is necessary to issue a summons to the proprietor of a stage-carriage, the Magistrate shall issue such summons directed to such proprietor or his nearest agent, and may transmit such summons by letter-post, which shall be deemed to be good service thereof.

The letter shall be registered at the post-office, and the cost of the registration shall be borne by the Government in the first instance, but may be charged as costs in the case.

The summons shall allow a reasonable time, in reference to the distance to which the summons is sent, for the appearance of such proprietor or his agent as aforesaid.

15. Adjudication of penalties. All penalties incurred under this Act shall be adjudged by Adjudication a Magistrate [1][* * *] as aforesaid, and all orders made under of penalties this Act by such Magistrate [1][* * *] shall be final.

16. Recovery of penalties, etc. All penalties imposed under this Act, or any balance of any fine, costs or charges as mentioned in section 11 of this Act, may in case of non-payment or non-recovery thereof be levied by distress and sale of the moveable property of the offender by warrant under the hand of the Magistrate who imposed the same.

17. Offender may be apprehended and detained in custody until return of warrant of distress. In case any such penalties shall not be forthwith paid, such Magistrate may order the offender to be apprehended and detained in safe custody until the return can be conveniently made to such warrant of distress, unless the offender shall give security to the satisfaction of such Magistrate for his appearance at such place and time as shall be appointed for the return of the warrant of distress.

18. Imprisonment of offender if distress not sufficient. If upon the return of such warrant it shall appear that no sufficient distress can be had whereon to levy such penalty, and the same shall not be forthwith paid, or in case it shall appear to the satisfaction of such Magistrate by the confession of the offender or otherwise that he has not sufficient goods and chattels whereupon such penalty could be levied if warrant of distress were issued, such Magistrate may, by warrant under his hand, commit the offender, [2][* * *] to prison, there to be imprisoned, according to the discretion of such officer, for any term not exceeding two calendar months when the amount of penalty shall not exceed fifty rupees, and for any term not exceeding four calendar months when the amount shall not exceed one hundred rupees, and for any term not exceeding six calendar months in any other case, the commitment to be determinable in each of the cases aforesaid on payment of the amount.

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19. [Recovery of penalty and cost from European British subjects.] Omitted by A. O.,1961, Art. 2 and Sch. (with effect from the 23rd March, 1956).

20. Jurisdiction. On complaint made before any Magistrate of any offence committed under this Act, it shall not be necessary to prove that the offence was committed within the local limits of such Magistrate or other officer.

[1]The words "or *Commissioner of Police" omitted by A. O., 1949, Sch. The word "'Chief" was previously rep. by the Repealing and Amending Act 1914 (10 of 1914), s. 3 and Sch. ll.
[2]The original words "provided he is not a European British subject" omitted by A. O., 1961, Art. 2 and Sch. (with effect from the 23rd March, 1956).

[1]**[20A. Power to make rules.**—(1) The [2][Provincial Government] may, by notification in the official Gazette, make 3rules to carry out the purposes and objects of this Act in the territories under its administration or any part of the said territories.

(2) In particular and without prejudice to the generality of the foregoing power, such rules may—

(a) prescribe forms for licenses under this Act, the sums payable for the same and the conditions on which they may be granted, and the cases in which they may be revoked ;

(b) provide for the inspection of stage-carriages, and of the animals Employed in drawing them; and

(c) regulate the number and length of the stages for which animals may be driven in stage-carriages and the manner in which they shall be harnessed and yoked.

(3) In making any rule under this section, the 2[Provincial Government] may direct that a breach thereof shall be punishable with fine which may extend to one hundred rupees.]

21. Interpretation-clause "Magistrate." The term "Magistrate" in this Act shall include all Magistrates and other persons exercising the powers of a 4Magistrate:

[5][* * * * * * *]

Act applicable to all animals used for drawing-carriages. [6][All expressions and provisions which in this Act are applied to horses shall also apply to all other animals employed in drawing any carriage ordinarily used for the purpose of conveying passengers for hire to or from any place in [7][Pakistan] :]

[8][* * * * * * *]

[9]**[22. Extent of Act.** This Act, as amended by subsequent Acts, extends to [10][the whole of Pakistan]; but it shall not apply to carriages ordinarily plying for hire within the limits of any municipality or cantonment or other place in which any law for the regulation of carriages is for the time being in force.

23. Power to Provincial Government to exempt. The [2][Provincial Government] may, by notifications in the official Gazette, exempt any carriages or class of carriages from all or any of the provisions of this Act.]

Date: 13-09-2024

[1]Ins. by the Stage-Carriages Act (1861) Amendment Act, 1898 (1 of 1898), section 4.
[2]Subs. by A. O., 1937, for "L. G.".
[3]For rules under section 20A *see* different Local Rules and Orders.
[4]As to officers exercising the powers of a Magistrate, *see* s. 3 (2) of the Code of Criminal Procedure, 1898 (Act 5 of 1898).
[5]The definition of British India was rep. by A. O., 1937. *See* now the General Clauses Act, 1897 (10 of 1897), s. 3 (7) and s. 4A. (1).
[6]Subs. by s. 1 of the Stage-Carriages Act (1861) Amendment Act, 1876(16 of 1876), for the original third clause.
[7]Subs. by the Central Laws (Statute Reform) Ordinance, 1960 (21 of 1960), s. 3 and 2nd Sch. (with effect from the 14th October, 1955), for "the Provinces and the Capital of the Federation" which was subs. for "British India" by A. O., 1949, Arts. 3(2) and 4.
[8]The clauses relating to "number" and "gender" rep. by the Repealing and Amending Act, 1914 (10 of 1914).s. 3 and Sch. II.
[9]Ss. 22 and 23 were added by s. 5 of the Stage Carriages Act (1861) Amendment Act, 1898 (1 of 1898). The original s. 22 regarding the commencement of this Act as originally passed was rep. by the Repealing Act, 1870 (14 of 1870).
[10]Subs. by the Central Laws (Statute Reform) Ordinance, 1960 (21 of 1960), s.3 and 2nd Sch. (with effect from the 14th October, 1955), for "all the Provinces and the Capital of the Federation" which was previously subs. for the whole of British India" by A. O., 1949 Arts. 3(2) and 4.

THE STANDARD TIME (INTERPRETATION OF REFERENCES) ORDINANCE, 1943

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1. Short title and commencement
2. Interpretation of references to Standard Time

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THE STANDARD TIME (INTERPRETATION OF REFERENCES) ORDINANCE, 1943

[1]ORDINANCE No. VI OF 1943

[20th January, 1943]

An Ordinance to provide for the interpretation in enactments in force in [2][Pakistan] of references to [3] Standard Time.*

WHEREAS an emergency has arisen which makes it necessary to provide for the interpretation in enactments in force in [2][Pakistan] of references to [3]* Standard Time;

Now, THEREFORE, in exercise of the powers conferred by section 72 of the Government of India Act, as set out in the Ninth Schedule to the Government of India Act, 1935 (26 Geo. 5,c.2.) , the Governor General is pleased to make and promulgate the following Ordinance: —

1. Short title and commencement.—(1) This Ordinance may be called the [3]* Standard Time (Interpretation of References) Ordinance, 1943.

(2) It shall come into force at once.

2. Interpretation of references to Standard Time.—While any order of the [4][Federal Government] is in force fixing [3]* Standard Time by reference to Greenwich Mean Time as being in advance of Greenwich Mean Time by an interval other than five and one-half hours, any reference in any enactment in force in [2][Pakistan] to [3]*Standard Time shall, notwithstanding that such reference may define [3]*Standard Time as being five and one-half hours in advance of Greenwich Mean Time, be interpreted as a reference to [3]*Standard Time as fixed for the time being by the order of the [4][Federal Government].

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Dated.28.04.2025

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[1]The Ordinance has been applied to—

(*i*) Baluchistan, *see* Notification No. 18-W., dated the 8th February, 1943, Gazette of India, 1943, Pt. I. p. 192;

(*ii*) Such of the Baluch tribal areas beyond the western boarder of the Dera Ghazi Khan District of the Punjab as are not included in the Baluchistan tribal areas, in so far as the same may be applicable and subject to any amendments to which it is for the time being subject in the Provinces, etc., *see* Notification No. 27-W., dated the 3rd March, 1943, Gazette of India, 1943, Pt. I, p. 266.

It has been extended to the Leased Areas of Baluchsitan by the Leased Areas (Laws) Order, 1950 (G. G. O. 3 of 1950).

This Ordinance has been extended to the whole of Pakistan with effect from the 14th October, 1955, by the Central Laws (Statute Reform) Ordinance, 1960 (21 of 1960), s. 3 and 2nd Sch.

[2]Subs. by the Central Laws (Statute Reform) Ordinance, 1960 (Ordinance No. XXI of 1960), s.3 and 2nd Sch. (*with effect from the 14th October, 1955*).

[3]Rep. by the Federal Laws (Revision and Declaration) Act, 1951 (Act No. XXVI of 1951), s .3 and 2nd Sch.

[4]Subs. by the Federal Adaptation of Laws Order, 1975 (President's Order No. 4 of 1975), Art. 2 and Table.

THE SUGAR EXPORT SUBSIDY FUND ORDINANCE, 1970

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1. Short title, extent and commencement
2. Definitions
3. Levy of sales tax and excise duty
4. Sugar export Subsidy Fund
5. Registration of contracts
6. Power to call for information, etc.
7. Penalty
8. Offences by companies, etc.
9. Cognizance of offences
10. Protection of action taken in good faith
11. Power to make rules

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THE SUGAR EXPORT SUBSIDY FUND ORDINANCE, 1970

*ORDINANCE NO. XX OF 1970

[26th October, 1970]

An Ordinance to provide for the establishment of a Sugar Export Subsidy Fund for promoting export of sugar.

WHEREAS it is expedient to provide for the establishment of a Sugar Export Subsidy Fund for promoting export of sugar;

AND WHEREAS, during the absence of the President and Chief Martial Law Administrator abroad, the Minister for Health, Labour and Family Planning is performing the functions of President as Acting President in pursuance of clause (a) of paragraph 3 of the State Arrangements Regulation (Martial Law Regulation No. 55);

NOW, THEREFORE, in pursuance of the Proclamation of the 25th day of March, 1969, read with the Provisional Constitution Order and the Regulation aforesaid, and in exercise of all powers enabling him in that behalf, the Acting President is pleased to make and promulgate the following Ordinance:—

1. Short title, extent and commencement.—(1) This Ordinance may be called the Sugar Export Subsidy Fund Ordinance, 1970.

(2) It extends to Baluchistan, the North-West Frontier Province, the Punjab and Sind.

(3) It shall come into force at once.

2. Definitions. In this Ordinance, unless there is anything repugnant in the subject or context,—

(a) "export" means taking to any place outside Pakistan by any means;

(b) "prescribed" means prescribed by rules made under this Ordinacne;

(c) "sugar" does not include *khandsari* and Palmyra sugar;

(d) "sugar-cane" means the plant *saccharum officinarum* which is commonly known as the sugar-cane and from which sugar is obtained.

3. Levy of sales tax and excise duty.—(1) There shall be levied and collected in such manner as may be prescribed—

(a) sales tax on sugar-cane sold to the sugar mills at the rate of twenty-five paisa per maund; and

(b) excise duty—

(i) on sugar-cane grown by sugar mills at the rate of twenty-five paisa per maund, and

(ii) on sugar produced by sugar mills at the rate of one rupee per maund.

* The Ordinance has been declared to be validly made by the Competent authority, *see* the validation of Laws Act, 1975 (LXIII of 1975).

(2) The sales tax and excise duty levied under sub-section (1) shall be in addition to any sales tax or excise duty imposed on sugar-cane or sugar by or under any other law for the time being in force.

4. Sugar Export Subsidy Fund.—(1) There shall be established a fund to be called the Sugar Export Subsidy Fund to which shall be credited the proceeds of the sales tax and excise duty levied and collected under section 3 after deducting the cost of collection.

(2) The Sugar Export Subsidy Fund shall be applied for the purpose of subsidising export of sugar to such extent and in such manner as the [1][Federal Government] may, from time to time, decide.

(3) The [1][Federal Government] may, by special order, authorise repayment from out of the Sugar Export Subsidy Fund of the excise duty paid on so much of the sugar produced by a sugar mill as is exported by such mill.

5. Registration of contracts. The [1][Federal Government] may, by general or special order, require any contract or class of contracts for export of sugar to be registered in such manner and with such authority as may be specified in the order.

6. Power to call for information, etc.—(1) The [1][Federal Government] may, at any time, by order, direct any sugar mill to maintain such accounts and to furnish to the [1][Federal] Board of Revenue or to any officer of the [1][Federal Government] such returns or other information relating to crushing of sugar-cane and production of sugar within such time and giving such particulars as may be specified in the order.

(2) Any person authorised in this behalf by the [1][Federal Government] or by the [1][Federal] Board of Revenue may at all reasonable times enter any sugar factory or any place or premises where sugar is manufactured, stored or kept for sale and may require the production for his inspection of any book, register, record or other paper kept therein and ask for any information relating to the crushing of sugar-cane and production of sugar.

7. Penalty. A person shall be punishable with imprisonment for a term which may extend to three years, or with fine, or with both, if he —

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(a) contravenes or fails to comply with any order or direction issued under this Ordinance; or

(b) when required by any order made under this Ordinance to make any statement or furnish any information, makes a statement or furnishes information which he knows or has reasonable cause to believe to be false or does not believe to be true; or

(c) makes any such statement as aforesaid in any book, account, record, declaration, return or other document which he is required by any such order to maintain or furnish; or

(d) maintains double sets of books, accounts or any other records, in which the entries are not identical.

[1] Subs. by F.A.O., 1975, Art. 2 and Table.

8. Offences by Companies, etc. Where any person guilty of an offence under this Ordinance is a company or other body corporate, every director, manager, secretary or other officer, and every agent and servant thereof and, in the case of an unlimited company or a company limited by guarantee, also every member thereof shall be punishable as if he had committed such offence:

Provided that no such director, manager, secretary or other officer and no such agent, servant, or member shall be prosecuted under this Ordinance except with the previous approval of the [1][Federal] Board of Revenue; and the [1][Federal] Board of Revenue shall not give such approval if it is satisfied after giving such director, manager, secretary, officer, agent, servant or member an opportunity of showing cause against prosecution that the offence was committed without his knowledge or that he used due diligence to prevent its commission.

9. Cognizance of offences. No court shall take cognizance of an offence punishable under this Ordinance except on a report in writing of the facts constituting such offence made by the [1][Federal] Board of Revenue or any person authorised by it in this behalf.

10. Protection of action taken in good faith. No suit, prosecution or other legal proceedings shall lie against the [1][Federal Government] or any authority or person exercising any power under this Ordinance for anything which is in good faith done or intended to be done under this Ordinance or any rules or orders made thereunder.

11. Power to make rules. The [1][Federal Government] may make rules for carrying out the purposes of this Ordinance.

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RGN Dated: - 04.01.2024

[1] Subs. by F.A.O., 1975, Art. 2 and Table.

THE SUGAR-CANE ACT, 1934

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THE SUGAR-CANE ACT, 1934

ACT NO. XV OF 1934

[1st May, 1934]

An Act to regulate the price of sugar-cane intended for use in sugar factories.

WHEREAS it is expedient, for the purpose of assuring to sugar-cane growers a fair price for their produce, to regulate the price at which sugar-cane intended to be used in the manufacture of sugar may be purchased by or for factories; It is hereby enacted as follows:—

1. Short title, extent and commencement.—(1) This Act may be called the Sugar-cane Act, 1934.

[1][(2) It extends to the whole of Pakistan.]

(3) This section shall come into force at once; the remaining sections of this Act shall come into force in any Province on such date as the [2][Provincial Government] may, by notification in the [2][official Gazette], appoint in that behalf.

2. Definitions. In this Act, unless there is anything repugnant in the subject or context,—

(1) "controlled area" means any area specified in a notification issued under sub-section (1) of section. 3;

(2) "factory" means any premises (including the precincts thereof) wherein twenty or more workers are working or were working on any day of the preceding twelve months and in any part of which any manufacturing process connected with the production of sugar is being carried on or is ordinarily carried on with the aid of power; and

(3) "sugar" means any form of sugar containing more than ninety percent of sucrose.

3. Declaration of controlled areas, and fixing of prices.—(1) The [2][Provincial Government] may, by notification in the [2][official Gazette], declare any area specified in the notification to be a controlled area for the purposes of this Act.

(2) [2][* * *] the [2][Provincial Government] may, by notification in the [2][official Gazette], fix a minimum price or minimum prices for the purchase in any controlled area of sugar-cane intended for use in any factory.

(3) The [2][Provincial Government] may, by notification in the [2][official Gazette], prohibit in any controlled area the purchase of sugar-cane intended for use in any factory otherwise than from the grower of the sugar-cane or from a person licensed by the [2][Provincial Government] to act as a purchasing agent.

[1]Subs. by the Central Laws (Statute Reform) Ordinance, 1960 (XXI of 1960), s. 3 and 2nd Sch. (*with effect from the 14th October, 1955*).
[2]Subs. by Adaptation Order. 1937.

4. Previous publication of notifications under section 3.—Not less than thirty days before the issue of any notification under sub-section (1) or sub-section (2) of section 3, the [1][Provincial Government] shall publish in the [1][official Gazette] and in such other manner (if any) as it thinks fit a draft of the proposed notification specifying a date on or after which the draft will be taken into consideration, and shall consider any objection or suggestion which may be received from any person with respect to the draft before the date so specified.

5. Penalty for purchase of sugar-cane in contravention of notification under section 3.—Whoever in any controlled area purchases any sugar-cane intended for use in a factory at a price less than the minimum price fixed therefor by notification under sub-section (2) of section 3 or in contravention of any prohibition made under sub-section (3) of section 3 shall be punishable with fine which may extend to two thousand rupees.

6. Sanction for prosecution under this Act.—No Court shall take cognizance of any offence punishable under section 5 except upon complaint made by order of, or under authority from, the District Magistrate.

7. Power of Provincial Government to make rules.—(1) The [1][Provincial Government] may, by notification in the [1][official Gazette], make rules for the purpose of carrying into effect the objects of this Act.

(2) In particular and without prejudice to the generality of the foregoing power, such rules may provide for —

(*a*) the carrying out of inquiries preliminary to the exercise of the powers conferred by section 3;

(*b*) establishing Advisory Committees for any purpose connected with the administration of this Act and defining the powers, functions and procedure of such Committees;

(*c*) the issue of licences to purchasing agents, the fees for such licences, and the regulation of the purchase and sale of sugar-cane by and to such agents;

(*d*) the organisation of growers of sugar-cane into societies for the sale of sugar-cane to factories;

(*e*) the authorities by which any functions under this Act or the rules made thereunder are to be performed; and

(*f*) the records, registers and accounts to be maintained for ensuring compliance with the provisions of this Act.

(3) In making any rule under sub-section (1) or under clause (c) or clause (f) of sub-section (2), the [1][Provincial Government] may provide that a breach of the rule shall, where no other penalty is provided by this Act, be punishable with fine not exceeding two thousand rupees.

8. Power of Provincial Government to make rules.—The [2][Provincial Government] after previous publication may, by notification in the [1][official Gazette], make rules providing for the exemption of factories or any class of factories from the provisions of this Act.

Date: 09-08-2024

[1]Subs. by Adaptation Order. 1937.
[2]Subs. by the Federal Adaptation of Laws Order, 1975, (P. O. 4 of 1975) Art. 2 and table, for "Central Government" which was subs. by A. O., 1937, for "G. G. in C.".

THE SURVEY FOR DOCUMENTATION OF NATIONAL ECONOMY ORDINANCE, 2000

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THE SURVEY FOR DOCUMENTATION OF NATIONAL ECONOMY ORDINANCE, 2000

ORDINANCE No. XV of 2000

[24th May, 2000]

An Ordinance to provide for documentation of economy

WHEREAS there is large scale non-reporting and underreporting of assets held, income earned, taxable activities carried out, excisable services provided and manufacturing carried out it is expedient to provide for documentation of economy and for matters connected therewith or incidental thereto;

AND WHEREAS the National Assembly and the Senate stand suspended in pursuance of the Proclamation of Emergency of the fourteenth day of October, 1999, and the Provisional Constitution Order No. 1 of 1999;

AND WHEREAS the President is satisfied that circumstances exist which render it necessary to take immediate action;

NOW, THEREFORE, in pursuance of Proclamation of Emergency of the fourteenth day of October, 1999, and Provisional Constitutional Order No. 1 of 1999, as well as Order No. 9 of 1999, and in exercise of all powers enabling him in that behalf, the President of the Islamic Republic of Pakistan is pleased to make and promulgate the following Ordinance:—

1. Short title, extent and commencement:—(1) This Ordinance may be called the Survey for Documentation of National Economy Ordinance, 2000.

(2) It extends to the whole of Pakistan.

(3) It shall come into force at once.

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2. Role and constitution of survey teams:— (1) The Central Board of Revenue may constitute survey teams in such manner and in such number as it may deem fit to carry out survey of non-reporting and under-reporting of manufacturing sales, economic activities, income, wealth and assets.

(2) Such survey teams may consist of officials from the departments working under Central Board of Revenue and such other departments of the Federal Government or the Provincial Government, Utility agencies, autonomous bodies, development authorities, cooperative housing societies, Metropolitan Corporations and Municipal Committees as the Central Board of Revenue may deem fit to include in the survey teams. Members of Armed Forces of Pakistan will form part of all survey and registration activity.

3. Filling of questionnaires:—(1) For the purpose of carrying out survey under this Ordinance, survey teams shall subject to such instructions and directions as may be issued by the Central Board of Revenue, use the questionnaires set out in the First Schedule, the Second Schedule and the Third Schedule to this Ordinance and the information collected through these questionnaires shall be deemed

to be an information collected for the purpose of assessment and determination of turnover, value or tax liabilities under the laws administered by the Central Board of Revenue.

(2) Every person to whom a survey team gives both or any of the questionnaires specified in sub-section (1) shall be bound to fill in and provide the correct information asked for therein within such time as may be allowed and in such manner as may be directed by the survey team at the time of survey.

[1][(3) Notwithstanding anything contained in sub-section (1), the cases where a person holding National Tax Number does not declare the value of stocks as per entry at Serial No. 13 of the questionnaire set out in the First Schedule to this Ordinance, declaration of stocks made by such person in his income tax return for the assessment year commencing on the first day of July, 2000, under the Income Tax Ordinance, 1979 (XXXI of 1979) shall be deemed to be an information collected under this Ordinance and all the provisions of this Ordinance shall apply accordingly.

(4) The information collected through the questionnaires, referred to in sub-section (1), shall be used for the purpose of assessment and determination of turnover, value, wealth, income or tax liabilities under the laws administered by the Central Board of Revenue,—

(a) in the case of a person holding National Tax Number, in respect of financial year in which survey is carried out and for preceding financial years commencing on or after the first day of July, 1999; and

(b) in other cases, in respect of financial year in which survey is carried out and preceding financial years.]

4. Penalty, etc:— (1) Any person who refuses or fails to fill in, or does not provide information asked for in any of the questionnaires specified in sub-section (1) of section 3 or fills in or provides false information shall be guilty of an offence punishable with imprisonment for a term which may extend to three months, or with fine which may extend to rupees twenty five thousand, or with both.

(2) If the person contravening any provisions of this Ordinance is a company, every person, who at the time the offence was committed, was in charge of, and was responsible to, the company for the conduct of business of the company as well as the company shall be deemed to be guilty of the offence and shall be liable to be proceeded against and punished accordingly:

Provided that nothing contained in this sub-section shall render any such person liable to any punishment provided in sub-section (1) if he proves that the offence was committed without his knowledge or that he exercised due diligence to prevent the commission of such offence.

(3) Notwithstanding anything contained in sub-section (2) where the offence under this Ordinance has been committed by a company and it is proved that the offence was committed with the consent or connivance of, or is attributable to any neglect on the part of any director, manager, secretary or other officer of the company, such director, manager, secretary or other officer shall be guilty of offence and shall be liable to be proceeded against and punished accordingly.

Explanation.— For the purpose of this sub-section—

[1]New sub-sections(3) and (4) added by the Finance (Amdt.) Ordinance, 2000 (21 of 2000), s.8.

(a) "company" means anybody corporate and includes a firm or association of individuals; and

(b) "director", in relation to a firm means a partner in the firm.

[1][**5. Cognizance of offence, etc:**— (1) Notwithstanding anything contained in the Code of Criminal Procedure, 1898, (Act V of 1898)—

(a) no Magistrate other than an Executive Magistrate of the first class shall try an offence under this Ordinance;

(b) a Magistrate trying an offence under this Ordinance shall have the power to try such offence summarily in accordance with the procedure laid down for summary trial in the said Code.

(2) Notwithstanding anything contained in section 32 of the Code of Criminal Procedure, 1898, (Act V of 1898) of it shall be lawful for an Executive Magistrate of the first class to pass any sentence authorised by this Ordinance.]

6. Ordinance not to derogate from other Laws:— The provisions of this Ordinance shall be in addition to, and not in derogation of, any other law for the time being in force.

7. Power to make rules:— The Central Board of Revenue may, by notification in the official Gazette, make rules for carrying out the purposes of this Ordinance.

8. Removal of difficulties:— If any difficulty arises in giving effect to the provisions of this Ordinance, the Central Board of Revenue, may make such order, not inconsistent with the provisions of this Ordinance, as may appear to it to be necessary for removing the difficulty.

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[1]Sub. by the Finance (Amdt.) Ordinance, 2000 (21 of 2000), s.8 for the original section 5.

THE SYSTEM OF *SARDARI* (ABOLITION) ACT, 1976.

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1. Short title, Commencement and application
2. Definition
3. Abolition of system of *Sardari*
4. Saving
5. Penalty
6. Repeal

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THE SYSTEM OF *SARDARI* (ABOLITION) ACT, 1976.

[1]ACT NO. XL OF 1976

[*19th May*, 1976]

An Act to provide for the abolition of the system of Sardari and for matters ancillary thereto.

WHEREAS the system of *Sardari*, prevalent in certain parts of Pakistan, is the worst remnant of the oppressive feudal and tribal system which, being derogatory to human dignity and freedom, is repugnant to the spirit of democracy and equality as enunciated by Islam and enshrined in the Constitution of the Islamic Republic of Pakistan and opposed to the economic advancement of the people;

AND WHEREAS the Proclamation of Emergency referred to in Article 280 of the Constitution of the Islamic Republic of Pakistan is in force;

It is hereby enacted as follows:—

1. Short title, Commencement and application.—(1) This Act may be called the System of *Sardari* (Abolition) Act, 1976.

(2) It extends to the whole of Pakistan.

(3) It shall come into force at once.

2. Definition. In this Act, unless there is anything repugnant in the subject or context, "*Sardar* "means a person who is recognized as a *Sardar*, Tumandar or Chief of the tribe or who, under any custom or usage or otherwise, exercises any of the powers, or enjoys any of the privileges, mentioned in section 3.

3. Abolition of system of *Sardari*. Notwithstanding any custom or usage, as from the commencement of this Act, the system of *Sardari* shall stand abolished and no person shall—

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(a) exercise any judicial powers not expressly conferred on him by or under any law for the time being in force; or

(b) maintain any private jail ; or

(c) save as provided in the Code of Criminal Procedure, 1898 (Act V of 1898) or any other law for the time being in force, arrest or keep in custody any person; or

(d) take free labour from any person or compel any person to labour against his will; or

[1]For Statement of Objects and Reasons, *see* Gaz., of P., 1976, Ext., Pt. Ill, p. 487.

(e) demand or receive, by reason of being or having been a *sardar*, any tribute or any other payment, whether in cash or in kind; or

(f) be in possession of, or derive any benefit from, any land belonging to a tribe, by reason of being or having been a Sardar of the tribe.

4. Saving. Nothing in this Act shall be deemed to prevent the Government from granting to any person such individual service allowance as it may deem fit and requiring such person to discharge such duties and perform such functions as Government may from time to time direct.

5. Penalty. Whoever contravenes any provision of this Act shall be punishable with imprisonment of either description for a term which may extend to three years, or with fine which may extend to ten thousand rupees, or with both.

6. Repeal. The System of *Sardari,* (Abolition) Ordinance, 1976 (XV of 1976) is hereby repealed.

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THE TEA (CONTROL OF PRICES, DISTRIBUTION AND MOVEMENT) ORDINANCE, 1960

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32. Power to make rules

33. Power to exempt.

34. Ordinance in addition to Other Laws, etc.

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THE TEA (CONTROL OF PRICES, DISTRIBUTION AND MOVEMENT) ORDINANCE, 1960

ORDINANCE No. XXVIII OF 1960

[6th July, 1960]

An Ordinance to provide for special measures for the control of prices, distribution and movement of tea.

WHEREAS it is expedient to provide for special measures for the control of prices, distribution and movement of tea;

Now, THEREFORE, in pursuance of the Proclamation of the seventh day of October, 1958, and in exercise of all powers enabling him in that behalf, the President is pleased to make and promulgate the following Ordinance:-

1. Short title extent and commencement.—(1) This Ordinance may be called the Tea (Control of Prices, Distribution and Movement) Ordinance, 1960.

(2) It extends to the whole of Pakistan.

(3) It shall come into force at once.

2. Definitions.—In this Ordinance, unless there is anything repugnant in the subject or context,—

(a) "approved dealer" means a dealer in tea registered under this Ordinance as a bidder, blender, importer, wholesaler or retailer;

[1][(aa) 'appropriate Government' means, in relation to matters pertaining import of tea from outside Pakistan, and trade and commerce between the Provinces the [2][Federal Government] and, in relation to other matters, the Provincial Government;]

(b) "bidder" means a person who bids at internal tea auctions for the purpose of buying tea either for himself or on behalf of others, and includes a broker;

(c) "blender" means a person engaged in the business of buying and blending tea and preparing packets or other containers of tea for distribution;

(d) "brewed tea" means tea prepared for drinking, whether with or without milk, sugar or gur;

(e) "broker" includes a commission agent;

[1]Clause (aa) ins. by A. O., 1964, Art. 2 and Sch.
[2]Subs. by F.A.O., 1975 Art. 2 and Table, for "Central Government".

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(f) "Controller-General" means the Controller-General of Prices and Supplies appointed by the [1][appropriate Government], and includes any Additional, Deputy or Assistant Controller-General so appointed, and any other officer authorized by the [1][appropriate Government] to exercise all or any of the powers of the Controller-General under this Ordinance;

(g) "dealer" means a person who deals in tea as a bidder, blender, importer, wholesaler or retailer;

(h) "importer" means a person who imports into Pakistan tea from outside Pakistan;

(i) "prescribed" means prescribed by rules made under this Ordinance;

(j) "retailer" means a person carrying on the business of selling tea in retail, whether in conjunction with any other business or not;

(k) "tea" includes blended and unblended tea, leaf, tea fanning, tea dust, tea contained in packets or other containers and brewed tea; and

(l) "wholesaler" means a person carrying on the business of selling tea wholesale, whether in conjunction with any other business or not.

3. Registration of dealers.—(1) The Controller-General shall maintain separate registers, in such form as may be prescribed, for the registration of bidders, blenders, importers, wholesalers and retailers, and may register any person in such register on an application made to him, giving such particulars, in such form, and on payment of such fees as may be prescribed, and subject to such conditions, if any, as the Controller-General may think fit to impose.

(2) The Controller-General may require any person applying for registration under sub-section (1) to furnish such further particulars and information and to produce such documents as the Controller-General may consider necessary for the purpose.

(3) The Controller-General shall notify in the official Gazette the name of every person registered under sub-section (1).

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(4) Nothing in this section shall be construed as precluding a person registered in any one of the registers maintained under sub-section (1) from being registered in any other register so maintained.

4. Power to refuse suspended or cancel registration.— (1) No dealer shall be entitled to registration under sub-section (1) of section 3 as of right, and registration may be refused, or, if granted, may be suspended or cancelled for any one of the following reasons, that is to say,—

(a) for contravening or failing to comply with any provision of this Ordinance, or the rules or orders made thereunder;

(b) for contravening or failing to comply with any condition imposed by the Controller-General at the time of registration under section 3;

[1]Subs, by A. O., 1964, Art. 2 and Sch., "Central Government".

(c) for under-invoicing or over-invoicing the value of imports or exports of tea;

(d) for obtaining or attempting to obtain registration under this Ordinance by fraudulent means or wilful misrepresentation;

(e) for indulging in activities which in the opinion of the Controller-General are detrimental to public interest.

(2) Any person aggrieved by an order under sub-section (1) may appeal against the order to the [1][appropriate Government], within such time as may be prescribed, and the order of the [1][appropriate Government] thereon shall be final.

5. Forward transaction banned.—(1) All sales at internal auctions of tea shall be on immediate payment basis, and all kinds of speculative forward transactions in tea are hereby prohibited.

(2) Any such transaction as aforesaid outstanding immediately before the promulgation of this Ordinance shall, notwithstanding anything in any agreement, contract, deed or other document, be void.

6. Restrictions on dealings in tea.—No person, not being an approved dealer, shall at any one time hold in stock, purchase, sell, or agree to purchase or sell tea weighing three hundred pounds or more.

7. Duty to declare possession of excess stocks.—Any person having in his possession a quantity of tea exceeding that permitted by or under this Ordinance shall forthwith report the fact to the Controller-General and shall take such action as to the storage, distribution and disposal of the excess quantity as the Controller-General may direct.

8. Fixation of prices.—The Controller-General may, from time to time, by notification in the official Gazette, fix the maximum prices up to which any variety of tea may be sold by (a) a blender, (b) an importer, (c) a wholesaler, (d) a retailer, or (e) any other person or class of persons, and no person shall sell or resell tea at prices higher than the prices so fixed.

Explanation.— It shall not be a contravention of this section to sell or resell tea at prices lower than the prices fixed under this section.

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9. Fixation of quantities of tea to be held by approved dealers etc.,—The Controller-General may, by notification in the official Gazette, fix in respect of any grade or variety of tea—

(a) the maximum quantity which may at any time be possessed by an approved dealer or class of approved dealers ;

(b) the maximum quantity which may in any one transaction be sold by an approved dealer or class of approved dealers to another approved dealer or class of approved dealers ; and

[1]Subs. by A. O., 1964, Art. 2 and Sch., for "Central Government".

(c) the maximum quantity which may at any one time be purchased by any approved dealer or class of approved dealers.

10. Restrictions on possession and sale of tea where maximum is fixed under section 9.— No approved dealer shall—

(a) have in his possession at any one time stock of tea exceeding the maximum fixed by notification under clause (a) of section 9, or,

(b) sell or offer for sale to any person in any one transaction tea exceeding the maximum fixed by notification under clause (b) of section 9.

11. Power to order sale.—The Controller-General may by order in writing require any approved dealer to sell to such person or persons such quantity of tea as may be specified in the order, and may issue such incidental or supplementary instructions in writing to any approved dealer in regard to the sale thereof as he thinks fit.

12. Restrictions on movements of tea.— Notwithstanding any agreement to the contrary, the Controller-General or any other officer empowered in this behalf by the [1][appropriate Government] may, by a general or special order in writing, prohibit the transport of tea from one place to another within Pakistan by or on behalf of any dealer or other person, and direct such dealer or person to sell or deliver the whole or any part of the tea held by him to any person or persons specified in the order.

13. Information to be furnished by importers.—(1) Every importer, shall, within fourteen days from the date of receiving intimation of dispatch of any consignment of tea from any place outside Pakistan, furnish to the Controller-General by registered post, acknowledgement due, the following information in respect of the consignment, namely:-

(a) grade or variety and quantity of tea included in the consignment ;

(b) expected date and place of arrival of the consignment in Pakistan; and

(c) how the stocks of tea are proposed to be disposed of on arrival.

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(2) Every importer shall, within fourteen days of the clearance of the consignment from the customs, furnish to the Controller-General the following information supported by original documents in respect of the consignment, namely :—

(a) grade or variety and quantity of tea included in the consignment ;

(b) landed cost of the consignment showing C.I.F. value, customs duty, sales tax, and other incidental charges, if any, separately.

14. Disposal of imports.— No importer shall sell or otherwise dispose of any consignment of tea imported by him except in accordance with such written instructions as may be issued to him by the Controller General in this behalf.

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[1]Subs. by A. O., 1964, Art. 2 and Sch., for "Central Government".

15. Declaration of godowns, store-houses and ware-houses.— Any dealer may be required by the Controller-General to declare the situation and descriptive particulars of any place other than his usual place of business where he keeps or stores tea, and after making such declaration he shall not keep or store tea elsewhere than at such place or his usual place of business.

16. Information to be furnished by blenders.— Every blender shall furnish to the Controller-General so as to reach him by the fifteenth day of each calendar month the following information, namely:—

(a) grade or variety and actual or estimated quantity of tea blended during the preceding calendar month ;

(b) the actual or estimated cost of blending such tea ; and

(c) the manner in which and the persons to whom the blender proposes to dispose of the same.

17. Maintenance of records, etc.—(1) Every approved dealer shall keep such books, accounts and records relating to the business carried on by him as the Controller-General may require from time to time.

(2) Every dealer or other person holding stocks of tea and every person employed in connection with the business of such dealer or other person, on being required so to do either by notice served on him or by special or general direction issued by the Controller-General, shall-

(a) produce before such person as may be specified in the notice or direction such accounts and other documents as may be specified in the notice or direction ;

(b) furnish to the Controller-General such estimates, returns and other information relating to the business as may be specified in the notice or direction ; and

(c) permit any person or persons of a class or description mentioned in the notice or direction to enter upon, inspect and search with a view to securing compliance with this Ordinance or the rules or orders made thereunder any premises used for or in connection with the business, and seize all stocks of tea in respect of which such person or persons have reason to believe that a contravention of this Ordinance or the rules or orders made thereunder has been, is being, or is about to be, committed.

18. Marking of process and exhibition of price lists.—(1) Every blender shall mark the retail sale price on each packet or other container of tea or on a label affixed to each packet or container.

(2) Every dealer shall maintain and exhibit on his premises a price list of all kinds of tea exposed or intended for sale.

(3) No dealer shall destroy, efface or alter or cause to be destroyed, effaced or altered the prices marked and exhibited under sub-sections (1) and (2).

19. Cash memorandum to be given in certain cases.— Every dealer when selling tea for cash shall, if the sale for five rupees or more in all cases, and if the sale is for less than five rupees,

when so requested by the purchaser, give the purchaser a cash memorandum containing particulars of the transaction:

Provided that the provisions of this section shall apply only to those dealers who are liable to pay income-tax.

20. Refusal to sell.— No dealer shall without reasonable excuse refuse to sell to any person any quantity of tea not exceeding the maximum fixed by or under this Ordinance.

Explanation.— The possibility or expectation of obtaining a higher price at a later date shall not be deemed to be a reasonable excuse within the meaning of this section, but it shall not be a contravention of this section to refuse to supply tea to a retailer or a consumer in excess of his normal quota or reasonable requirements determined in accordance with the established system of distribution, in case such system is equitable and is in keeping with established commercial and trade practice.

21. Offences and penalties.—(1) If any person contravenes any provision of this Ordinance or any rule or order made thereunder, he shall be punishable with imprisonment for a term which may extend to three years or with fine or with both, and any Court trying such contravention may direct that any stocks of tea in respect of which such contravention has been made shall be forfeited to Government.

(2) The owner of any vessel, conveyance or animal carrying any tea in respect of which any provision of this Ordinance or any rule or order made thereunder has been contravened shall, if the carrying is part of the transaction involving the contravention and if he knew or had reason to believe that the contravention was being committed, be deemed to have contravened the provisions of this Ordinance, and in addition to the punishment to which he is liable under sub-section (1), the vessel, conveyance or animal shall also be liable to be forfeited to Government.

22. Attempts and abetments.— Any person who attempts to contravene, or abets the contravention of any provision of this Ordinance or any rule or order made thereunder shall be deemed to have contravened the provisions of this Ordinance.

23. Offences by corporations.— If the person contravening any provision of this Ordinance or any rule or order made thereunder is a company or other body corporate, every director, manager, secretary or other officer or agent thereof shall, unless he proves that the contravention took place without his knowledge or that he exercised all due diligence to prevent such contravention, be deemed to be guilty of such contravention.

24. False statements.— Any person who,—

(a) when required by or under this Ordinance to make any statement or furnish any information, makes any statement or furnishes any information which is false in any material particular and which he knows or has reasonable cause to believe to be false, or does not believe to be true, or

(b) makes any statement as aforesaid in any book, account, record, declaration, return or other document which he is required by or under this Ordinance to maintain or furnish,

shall be punishable with imprisonment for a term which may extend to three years or with fine or with both.

[1]**25. Cognizance of offences.—** No court shall take cognizance of an offence punishable under this Ordinance except with the previous sanction in writing of the [2][appropriate Government], [3][* * *] or of an officer or other authority empowered for the purpose by the [2][appropriate Government] [4][* * *].

26. Power to try offences summarily.— Any magistrate or bench of magistrates empowered for the time being to try in a summary way the offences specified in sub-section (1) of section 260 of the Code of Criminal Procedure, 1898, may, on application in this behalf being made by the prosecution, try in accordance with the provisions contained in sections 262 to 265 of the said Code any offence punishable under this Ordinance, (Act V of 1898).

27. Special provisions regarding fines.— Notwithstanding anything contained in section 32 of the Code of Criminal Procedure, 1898, it shall be lawful for any magistrate of the first class especially empowered by the Provincial Government in this behalf to pass a sentence of fine exceeding one thousand rupees on any person convicted of an offence under this Ordinance, (Act V of 1898).

28. Presumption as to orders.—(1) No order made in exercise of any power conferred by or under this Ordinance shall be called in question in any Court.

(2) Where any order purports to have been made and signed by an authority in exercise of any power conferred by or under this Ordinance, a court shall, within the meaning of the Evidence Act, 1872, (I of 1872) presume that such order was so made by that authority.

29. Protection of action taken in goods faith.—(1) No suit or prosecution or other legal proceeding shall lie against any person for anything which is in good faith done or intended to be done in pursuance of this Ordinance or any rule or order made thereunder.

(2) No suit or other legal proceeding shall lie against the Government for any damage caused or likely to be caused by anything which is in good faith done or intended to be done in pursuance of any provision of this Ordinance or any rule or order made thereunder.

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30. Delegation of powers.—The [2][appropriate Government] may, by notified order[5], direct that all or any of its powers under this Ordinance or the rules made thereunder shall in relation to such matters and subject to such conditions, if any, as may be specified in the direction, be exerciseable also by—

(a) such officer or authority subordinate to the [2][appropriate Government], or

[1]For notification authorizing the Government of East and West Pakistan and the Administrator of Karachi under this section, see Gaz. of P., 1960, Ext., p. 1584a.
[2]Subs. by A. O., 1964, Art. 2 and Sch., for "Central Government".
[3]The original words and commas "or if it is authorised by the Central Government in this behalf, of the Provincial Government", omitted ibid.
[4]The original words "or by the Provincial Government so authorized" omitted ibid.
[5]For notification, see Gaz. of P., 1960, Ext., pp. 1923 a-1.

(b) [1][where [2][Federal Government] is the appropriate Government, such Provincial Government or such officer or authority subordinate to a Provincial Government,

as may be specified in the direction.

31. Ordinance not to apply to Government transactions.— Nothing in this Ordinance shall apply to the possession or sale of any quantity of tea by a dealer or other person in the course of the fulfilment of a contract entered into with the [2][Federal Government] or a Provincial Government.

32. Power to make rules.— The [3][appropriate Government] may by notification in the official Gazette make rules[4] for carrying out the purposes of this Ordinance.

[5]33. Power to exempt.— The [3][appropriate Government] may, by order notified in the official Gazette, exempt any person or class of persons or any grade, variety or stock of tea from the operation of all or any of the provisions of this Ordinance to such extent and subject to such conditions, if any, as may be specified in the order.

34. Ordinance in addition to Other Laws, etc.— The provisions of this Ordinance shall be in addition to and not in derogation of any other laws for the time being in force relating to the control of prices, distribution and movement of tea.

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Date:-22.04.2024

[1]Ins. by A. O., 1964, Art,. 2 and Sch.,
[2]Subs. by F.A.O. 1975, Art., 2 and Table for "Central Government".
[3]Subs. by A.O., 1964 Art. 2 and Sch., for "Central Government".
[4]For the Tea (Registration of Dealers) Rules, 1960 see Gaz. Of P. 1960. Ext. p. 1363-1365.
[5]For notification under this section, see Gaz. of P., 1960, Ext., p. 1847a.

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THE TEA ORDINANCE, 1959

ORDINANCE NO. XLVI OF 1959

[8*th* *August*, 1959]

An Ordinance to provide measures for the expansion of export of tea, for the setting up of bodies to establish new tea gardens and rehabilitate derelict tea gardens, and generally for the promotion of the tea industry, and for levying a cess on tea produced in Pakistan

WHEREAS it is expedient to provide measures for the expansion of export of tea, for the setting up of bodies to establish new tea gardens and rehabilitate derelict tea gardens, and generally for the promotion of the tea industry, and for levying a cess on tea produced in Pakistan;

NOW, THEREFORE, in pursuance of the Proclamation of the seventh day of October, 1958, and in exercise of all powers enabling him in that behalf, the President is pleased to make and promulgate the following Ordinance:—

CHAPTER I
PRELIMINARY

1. Short title, extent and commencement.— (1) This Ordinance may be called the Tea Ordinance, 1959.

(2) It extends to the whole of Pakistan.

(3) It shall come into force at once.

2. Definitions.—In this Ordinance, unless there is anything repugnant in the subject or context,—

(a) "Board" means the Pakistan Tea Board constituted under section 3;

[1][**(**aa) "Collector" means a Collector of Customs appointed under section 3 of the Customs Act, 1969 (IV of 1969);]

(b) "Committee" means the [2][Tea Development Committee] constituted under section 9;

(c) "estate" means a tea estate and includes a tea garden or a part of tea estate or garden;

(d) "export" means to take out of Pakistan by land, sea or air to any place outside Pakistan;

(e) "owner" includes any agent of an owner;

(f) "prescribed" means prescribed by rules, made under this Ordinance;

[1]Cl. (aa) was ins. by the Tea (Amdt.) Ordinance, 1960 (I of 1960), s. 2. has been subs. by the Federal Laws (Revision and Declaration) Ordinance, 1981 (XXVII of 1981), s. 3 and Sch. II.
[2]Subs. by Ord. No. I of 1960, s. 2, for "Development Committee".

(g) "tea" means the commodity known as tea made from the leaves of the plant *Camellia Thea* [1][*or Camellia Sinnensis*] including adjacent tender stalks or green tea but excluding tea waste; and

(h) "tea seed" includes seeds, roots, stumps, cuttings, buds and any living portion of the plant *Camellia Thea* [1]*[or Camellia Sinnensis]* which may be used to propagate that plant.

CHAPTER II
PAKISTAN TEA BOARD

3. Constitution of Pakistan Tea Board.—(1) As soon as may be, the [1][Federal Government] shall constitute a body to be called the Pakistan Tea Board consisting of the following members, that is to say:—

[2][(a) A Chairman to be appointed by the [1][Federal Government] ;]

[3][(aa)] [4][three] members elected by the Pakistan Tea Association [5][* * *];

(b) two members elected by the Tea Traders Association of Pakistan of whom one shall represent the tea brokers and shippers [6][and the other the tea traders];

(c) one member to be nominated by the [1][Federal Government] [7][to represent the estates under proprietary management];

[8][* * * * * * *]

[9][(e) two persons possessing special knowledge of tea or tea cultivation, or agriculture, [10][to be nominated by the Federal Government] ;]

(f) one person to be elected by the recognized labour unions of tea gardens;]

[11][(g) one officer serving under the [1][Federal Government] in the Ministry of Commerce to be nominated by the [1][Federal Government].]

(2) The [1][Federal Government] shall publish in the official Gazette the names of all the members of the Board and thereupon the Board shall be deemed to be constituted.

(3) Members of the Board shall, subject to the provisions of sub-section (4), hold office for three years, and shall be eligible for re-election or re-nomination.

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[1]Ins. *ibid.*
[1]Subs. by F.A.O., 1975, Art. 2 and Table, for "Central Government".
[2]Cl. (a) was ins. by the Tea (Amdt.) Ordinance, 1962 (LXVI of 1962), s. 2.
[3]The original cl. (a) was renumbered as cl. (aa), *ibid.*
[4]Subs. by the Tea (Amdt.) Ordinance, 1960 (I of 1960), s. 3, for "four".
[5]Omitted by P.O. 4 of 1975, Art. 2 and Sch.
[6]Added by Ord. No. I of 1960, s. 3.
[7]Subs. *ibid.*, for certain words.
[8]Omitted by P.O., 4 of 1975, Art. 2 and Sch.
[9]The original cl. (e) was subs. by Ord. No. I of 1960, s. 3.
[10]Subs. by P.O. 4 of 1975, Art. 2 and Sch.
[11]The original cl. (g) as amended by Ord. No. LXVI of 1962, has been subs. by the Tea (Amdt.) Ordinance, 1965 (XIV of 1965), s. 2.

(4) When a member of the Board dies, resigns or ceases to reside in Pakistan [2][or to represent the particular interest which he was elected or nominated to represent] or becomes incapable of acting, the vacancy shall be filled by a fresh election or nomination, as the case may be, and any person so elected or nominated shall hold office for the un-expired term of his predecessor.

(5) If any authority or body entitled to elect or nominate a member under this section makes default in electing or nominating a member within the prescribed time, the [1][Federal Government] may make nomination to fill the vacancy.

(6) No act or proceeding of the Board shall be invalid merely on the ground of the existence of any vacancy in, or any defects in the constitution of, the Board.

(7) Until the Board is constituted under this section, the Pakistan Tea Board constituted under sub-section (1) of section 3 of the Pakistan Tea Act, 1950 (XII of 1950), and functioning immediately before the commencement of this Ordinance shall continue to function, and while so functioning, shall be deemed to be a Board constituted under this section.

[3][(8) The Board shall be a body corporate by the name of the Pakistan Tea Board, having perpetual succession and a common seal, with power to acquire, own and dispose of any property and shall, by the said name, sue and be sued.]

4. Functions of the Board.—The functions of the Board shall be to [4][undertake such business, or to acquire take over or manage the business of such concern, as the [1][Federal Government] may direct ; to] regulate, control and promote the [5][cultivation and] export of tea ; to organise and assist in special research connected with tea cultivation and tea industry]; [5][to regulate and control the sale of tea;] to collect statistics from growers, manufactures or dealers of tea and other persons on any matter relating to tea and the tea industry; to fix grading standards of tea and provide for training in tea tasting ; and generally, to take such measures as may appear advisable in the interests of the tea industry of Pakistan ; and to perform such other functions as the [1][Federal Government] may, from time to time, direct.

5. Control of the Board.— (1) The Board shall be subject to the superintendence and control of the [1][Federal Government], and in the discharge of its functions shall be guided by such general or special instructions as may, from time to time, be given to it by the [1][Federal Government].

(2) The [1][Federal Government] may cancel, suspend or modify, as it thinks fit, any act of the Board, and the records of the Board shall be open to inspection by any officer authorized in this behalf by the [1][Federal Government].

6. Imposition of tea cess.—There shall be levied and collected, for the purposes of this Ordinance, a cess on all tea produced in Pakistan, at such rate not exceeding two rupees and eight annas per one hundred pounds of tea as the [1][Federal Government] may, by notification in the official Gazette, fix.

7. Application of proceeds of cess.— (1) The proceeds of the cess after deducting the cost of collection, if any, shall be paid to the Board and shall be applied by the Board for meeting the expenses of measures taken in the performance of its functions [6][, for payment, of contributions to any international organisation connected with tea,] and for contributing towards a contributory

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[1]Subs. by F.A.O., 1975, Art. 2 and Table, for "Central Government".
[2]Ins. by the Tea (Amdt.) Ordinance, 1960 (I of 1960), s. 3.
[3]Sub-section (8) was added by the Laws Amendment Ordinance, 1965 (XXXIX of 1965), s. 4.
[4]Ins. by the Laws Amendment Ordinance 1965 (XXXIX of 1965), s.4.
[5]Ins. by the Tea (Amdt.) Ordinance, 1960 (I of 1960), s. 4.
[6]Ins. *ibid.*, s. 5.

provident fund constituted and maintained in such manner as may be prescribed for the benefit of the employees of the Board.

(2) The Board may, subject to any rules made in this behalf borrow on the security of the cess for any purpose for which it is authorized under sub-section (1) to expend its funds.

8. Keeping of accounts and audit and annual reports.—(1) The Board shall publish annual reports and shall keep regular accounts of all moneys received and expended by it.

(2) The accounts shall be audited every year by auditors approved in this behalf by the [1][Auditor-General of Pakistan], and such auditors shall have power to disallow any item, which has, in their opinion, been expended otherwise than for the purpose of this Ordinance.

CHAPTER III
[2][TEA DEVELOPMENT COMMITTEE]

9. Constitution of Tea Development Committee.—(1) The [3][Federal Government] may set up a Committee of the Board, to be known as the [4][Tea Development Committee], consisting of—

(a) The Chairman of the Board.

[5][* * * * * * *]

[6][* * * * * * *]

(2) A member of the Committee, not being a Government servant shall receive such allowances as the [3][Federal Government] may determine.

(3) A member of the Committee shall cease to be so when he ceases to be a member of the Board.

10. Functions of the Committee.— (1) The functions of the Committee shall be to establish new tea gardens to acquire and rehabilitate derelict tea gardens in accordance with such schemes as may be approved by the [3][Federal Government] and generally to render assistance to the existing gardens to improve their production.

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(2) The Committee may, with the approval of the [3][Federal Government], sell or transfer its tea gardens after they are established, or rehabilitated to any Pakistani national, firm or company.

11. Grants and loans by Government to the Committee.—The [3][Federal Government] may make grants or give loans from the general revenues to the Committee to carry out its functions and may, subject to such conditions as it may impose, authorize the Committee to give loans to any person, firm or company at concessional rates for the improvement and expansion of tea estates [7][or tea factories] and to borrow money from banks on the security of the assets of its gardens.

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[1]Subs. by F.A.O., 1975 Art. 2 and Sch.
[2]Subs. by the Tea (Amdt.) Ordinance, 1960 (I of 1960), s. 6, for "Development Committee".
[3]Subs. by F.A.O., 4 of 1975, Art. 2 and Table, for "Central Government".
[4]Subs. by Ord. No. I of 1960., s. 7, for "Development Committee".
[5]Cl. (aa) ins. by the Tea (Amdt.) Ordinance, 1962 (LXVI of 1962), s. 3, omitted by the Tea (Amdt.) Ordinance, 1965 (XIV of 1965), s.3.
[6]Omitted by P.O. 4 of 1975, Art. 2 and Sch.
[7]Ins. by the Tea (Amdt.) Ordinance, 1960 (I of 1960), s. 8.

12. Appointment of officials by the Committee.—The Committee may, subject to the approval of the [1][Federal Government], appoint such officers, advisers and employees for the efficient performance of its functions as may be necessary.

13. Keeping of accounts.—(1) The Committee shall keep accounts of all moseys received and expended by it.

(2) The accounts maintained by the Committee shall be audited by the auditors appointed for the purpose by the Board with the previous approval of the [1][Federal Government].

(3) A statement of the accounts as audited [2][together with a report on its activities] shall be furnished by the Committee to the Board and to the [1][Federal Government] as soon as possible after the end of each financial year.

CHAPTER IV
CONTROL OVER [3][CULTIVATION AND] EXPORTS

[4][**13A. Power to direct compulsory expansion.**— (1) The [1][Federal Government] may, by general or special order, direct the owner of an estate to plant or replant tea on such minimum area in that estate every year as may be specified in the order.

(2) Any owner of an estate who fails to comply with any direction issued under sub-section (1) shall be liable to pay a fine to be computed at the rate of one thousand rupees per year per acre of land in respect of which he makes default till such time as the default is made good.

(3) The fine imposed under sub-section (2) shall be realized as a public demand or as an arrear of land revenue].

14. Export allotment and its distribution.—(1) The [1][Federal Government] may, in consultation with the Board, by notification in the official Gazette, fix the export allotment of tea [5][for each tea year, that is to say, a year commencing on the first day of April, and ending on the thirty-first day of March next following].

[6][(2) The export allotment fixed under sub-section (1) may be distributed among such tea estates, in such proportion, and in such manner, as the [1][Federal Government] may from time to time determine.]

15. Export auctions.—(1) The [1][Federal Government] may direct that all tea intended for export [7][or such part thereof as it may specify] shall be sold in a special set of auctions to be known as export auctions to be held for this purpose.

(2) Every estate for which an export quota is fixed for any year shall during the course of that year sell in the export auctions the full amount of its quota [8][or such part thereof as may be specified by the [2][Federal Government]].

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[1]Subs. by the F.A.O., 1975, Art. 2 and Table, for "Central Government".
[2]Ins. *ibid.*,s. 9.
[3]Ins. by the Tea (Amdt.) Ordinance, 1960 (I of 1960), s. 10.
[4]Section 13A was ins *ibid.*, s. 11.
[5]Subs. by the Tea (Amdt.) Ordinance, 1965 (XIV of 1965), s. 4, for "each year".
[6]Subs. by Ord. No. I of 1960, s. 12 for original sub-section 2.
[7]Subs. *ibid.*,
[8]Ins. by the Tea (Amdt.) Ordinance 1965, (XIV of 1965), s. 5.

16. Export of tea purchased at export auctions.— (1) All tea purchased in the export auctions shall be exported by or on behalf of the purchaser within a period of [1][four] months from the date of the purchase and every such purchaser shall have the right to obtain an export licence required under section 17 for the full quantity required to be exported under this section.

(2) The [2][Federal Government] may, in special circumstances, permit a purchaser to export in lieu of tea purchased in the export auctions an equivalent quantity of tea purchased otherwise than in such auctions.

17. Control of export of tea and tea seeds.—(1) No tea shall be exported except under a licence issued by or on behalf of the Board in such form and in accordance with such conditions as may be prescribed.

(2) No tea seed shall be exported except under a permit issued by or on behalf of the [2][Federal Government].

(3) The breach of the provisions of this section shall be punishable as if it were an offence under [3][item 9 of section 156 of the Customs Act, 1969 (IV of 1969) and the provisions of section 157] and Chapter XVII of that Act shall apply accordingly.

18. Registration of contracts.—The [2][Federal Government] may, by general or special order, require any contracts or class of contracts, for sale of tea for export to be registered with such organisation and in such manner as maybe specified in the order.

19. Power to prohibit transport storage or sale.—The [2][Federal Government] may, by general or special order, direct any [4][person] or class of [5][persons] not to transport, store, buy, sell or otherwise dispose of any tea or tea of a specified description except in such manner and under such conditions as may be specified.

[6]**[19A. Limitation of application of certain provisions of this Chapter.—**Nothing in sections 14 to 19 of this Chapter shall apply to tea:—

(a) proved to the satisfaction of the Collector to have been imported into Pakistan from any place outside Pakistan,

(b) shipped as stores on board any vessels, in such quantity as the Collector considers reasonable having regard to the number of the crew and passengers, and the length of the voyage on which the vessel is about to depart, or

(c) exported as samples by post or as air freight in packages not exceeding twenty pounds avoirdupois in weight].

CHAPTER V
MISCELLANEOUS

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[1]Subs. by the Tea (Amdt.) Ordinance, 1960 (I of 1960), s. 13, for "three".
[2]Subs. by F.A.O., 1975 Art. 2 and Table, for "Central Government".
[3]Subs. by the Federal Laws (Revision and Declaration) Ordinance, 1981 (XXVII of 1981), s. 3 and II Sch.
[4]Subs. by the Tea (Amdt.) Ordinance, 1960 (I of 1960), s. 14, for "exporter".
[5]Subs. *ibid*., for "exporters".
[6]Section 19A was ins. *ibid*., s. 15.

20. Power to call for information etc.—(1) The [1][Federal Government] may, for the purposes of this Ordinance at any time, by notified order, direct such person or class of persons as may be specified in the order to maintain such accounts and furnish such returns or other information relating to their business of cultivation, production, manufacture, sale or purchase of tea to the [1][Federal Government] or to such officer or authority subordinate to the [1][Federal Government] or the Provincial Government within such period, and giving such particulars as may be specified.

(2) Any person authorised in this behalf by the [1][Federal Government] or by the Board or any member authorised by the Chairman of the Board in writing or any officer of the Board may, at all reasonable times, enter any tea estate or any place or premises where tea or tea waste is manufactured, stored, kept or exposed for sale and may require the production for his inspection of any book, register, record or other paper kept therein and ask for any information relating to the cultivation, production, manufacture, storage or keeping for sale of tea or tea waste.

21. Delegation of powers.—The [1][Federal Government] may, by notified order, direct that any power conferred upon it by or under this Ordinance, shall, in relation to such matters and subject to such conditions, if any, as may be specified in the order, be exercisable also, by—

(i) the Board, or

(ii) such officer or authority subordinate to the [1][Federal Government] or such Provincial Government or such officer or authority subordinate to the Provincial Government as may be specified in the direction.

22. Power to exempt.—The [1][Federal Government] may by order exempt any person or class of persons from the operation of all or any of the provisions of this Ordinance [2][to such extent and subject to such conditions as may be specified in the order].

23. Penalties.—(1) Any person who contravenes or fails to comply with any provision of this Ordinance except [3][section 13A and] section 17 or of any order or direction issued under this Ordinance shall be punished with imprisonment for a term which may extend to three years or with fine or with both.

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(2) Where any person as aforesaid is a company or a body corporate, every director, manager, secretary, or other officer, and every agent and servant thereof, and in the case of an unlimited company or a company limited by guarantee, also any of its members, shall, subject to the provisions of the next succeeding sub-section, be punishable as if he had contravened the provisions of this Ordinance.

(3) No such director, manager, secretary or other officer and no such agent, servant or member as is referred to in subsection (2) shall be prosecuted under this Ordinance unless he has been given an opportunity by the [1][Federal Government] to show cause, within such time as the [1][Federal Government] may specify why he should not be prosecuted, and if it is made to appear to the satisfaction of the [1][Federal Government] at any time before the institution of the prosecution that he has used due diligence to enforce the observance of the provisions of this Ordinance and the orders and directions issued there-under or that the offence has been committed without his knowledge or against his consent, the [1][Federal Government] shall forbear further proceedings against him:

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[1]Subs. by F.A.O., 1975, Art. 2 and Table, for "Central Government".
[2]Added by the Tea (Amdt.) Ordinance, 1960 (I of 1960), s. 16.
[3]Ins. *ibid.*, s. 17.

Provided that nothing in this sub-section shall prevent the [1][Federal Government] from proceeding against him further if on discovery of new facts it sees reason to do so.

24. False statement.—If any persons—

(i) when required by any order made under this Ordinance to make any statement or furnish any information, makes any statement or furnishes any information, which is false in any material particular and which he knows or as has reasonable cause to believe to be false or does not believe to be true, or

(ii) makes any such statement as aforesaid in any book, account, record, declaration, return or other document which he is required by any such order to maintain or furnish, or

(iii) maintains double sets of books, accounts or any other records, in which the entries are not identical, he shall be punishable with imprisonment for a term which may extend to three years or with fine or with both.

25. Protection of action taken in good faith.—No suit, prosecution or legal proceedings shall lie against the Board or any member thereof or any person acting on its behalf in respect of anything done in good faith under this Ordinance or any rules made under this Ordinance.

26. Cognizance of offences.—No court shall take cognizance of any offence punishable under this Ordinance except on a report in writing of the facts constituting such offence made by the Board or a person authorized by the Board.

27. Special provision regarding fines.—Notwithstanding anything contained in section 32 of the Code of Criminal Procedure, 1898 (Act V of 1898), it shall be lawful for any Magistrate of the First Class specially empowered by the Provincial Government in this behalf to pass a sentence of fine exceeding one thousand rupees on any person convicted under this Ordinance.

28. Presumption as to orders.—Where an order purports to have been made and signed by an authority in exercise of any power conferred by or under this Ordinance, a court shall, within the meaning of the Evidence Act, 1872 (I of 1872) presume that such order was so made by that authority.

29. Power to make rules.— The [1][Federal Government] may, by notification in the official Gazette, make rules for carrying out the purposes of this Ordinance.

30. Power to make bye-laws.—(1) The Board may make bye-laws not inconsistent with this Ordinance and the rules made thereunder.

(2) All bye-laws made under this section shall be subject to the previous approval of the [1][Federal Government].

31. [2][* * * * * * *]

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Dated: 05.04.24

[1]Subs. by F.A.O., 1975, Art. 2 and Table, for "Central Government".
[2]Rep. by the Repealing and Amending Ordinance, 1965 (X of 1965), s. 2 and 1st Sch.

THE TOLLS ACT, 1851

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SCHEDULE [Repeal]

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[1][THE [2]* TOLLS ACT, 1851]

ACT No. VIII OF 1851

[4th July, 1851]

An Act for enabling Government to levy Tolls on Public Roads and Bridges.

Preamble. WHEREAS it is expedient to enable Government to levy tolls upon roads and bridges; It is enacted as follows:-

1. *[Repeal of Acts]* Rep. by the Repealing Act, 1870 (XIV of 1870).

Extent. [3][**1A.** This Act extends to the Province of the Punjab and the Federal Government may, by notification in the official Gazette, extend it to any other Province.]

[4][**1B.** Definition**.**] *Omitted by the Federal Laws (Revision and Declaration) Ordinance, 1981 (XXVII of 1981), s. 3 and Sch. II.*

[5][**2. Power to levy tolls on roads and bridges made or repaired by the Federal Government.** The Federal Government may cause such rates of tolls as it thinks fit to be levied upon any road or bridge which has been, or shall hereafter be, made or repaired at the expense of the Federal Government; and place the collection of such tolls under the management of such persons as may appear to it proper; and all persons employed in the management and collection of such tolls shall be liable to the same responsibility as would belong to them if employed in the collection of land revenue.]

3. Their powers for recovery of toll. In case of non-payment of any such toll on demand, the officers appointed to collect the same may seize any of the carriages or animals on which it is chargeable, or any part of their burden of sufficient value to defray the toll; and, if any toll remains undischarged for twenty-four hours, with the cost arising from such seizure, the case shall be brought before the officer appointed to superintend the collection of the said toll, who may sell the property seized for discharge of the toll, and all expenses occasioned by such non-payment, seizure and sale, and cause any balance that may remain to be returned, on demand, to the owner of the property; and the said officer, on receipt of the property, shall forthwith issue a notice that, at noon of the next day, exclusive of Sunday, or any closed holiday, he will sell the property by auction:

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[1]Short title given by the Short Titles Act, 1897 (14 of 1897).
This Act should be read with the Tolls Act, 1864 (15 of 1864), and the Tolls Act, 1888 (8 of 1888).
Under s. 1 of Act 8 of 1888, this Act is deemed to be in force throughout the territories administered by the Lieutenant Governor of the Punjab on the 5th September, 1888 and to have been in force, from the 21st August 1857, in the territories for the time being administered as part of the Punjab.
It has been declared, by notification under s. 3(a)of the Scheduled Districts Act, 1874 (14 of 1874), to be in force in the Districts of Hazara, Peshawar, Kohat, Bannu, Dera Ismail Khan and Dera Ghazi Khan. [Portions of the Districts of Hazara, Bannu, Dera Ismail Khan and Dera Ghazi Khan and the Districts of Peshawar and Kohat now form the N.W.F.P., see Gazette of India, 1901. Pt. 1, p. 857, and ibid., 1902, Pt. I, p. 575].
It has also been applied to Phulera in the Excluded Area of Upper Tanawal to the extent the Act is applicable in the N.W.F.P., subject to certain modifications; and extended to the Excluded Area of Upper Tanawal (N.W.F.P.) other than Phulera with effect from such date and subject to such modifications as may be notified__ see N.W.F.P. (Upper Tanawal) (Excluded Area) Laws Regulation, 1950. .
[2]The word "Indian" omitted by A. O., 1949, Sch.
[3]Subs. by the Federal Laws (Revision and Declaration) Ordinance, 1981 (27 of 1981) s. 3 and Sch. II. for section lA which was previously amended by A.O., 1937,A. O., 1949, Sch. and A. O., 1961, Art. 2, to read as above.
[4]Ins. by F. A. O., 1975, Art. 2 and Sch.
[5]Section 2 subs. by Ordinance 27 of 1981, s. 3 and II Sch. This section was previously amended by the Devolution Act, 1938 (20 of 1938) and subsequently amended by A. O., 1937, to read as above.

Release of seized property on tender of dues. Provided that, if, at any time before the sale has actually begun, the person whose property has been seized shall tender the amount of all the expenses incurred, and of double the toll payable by him, the said officer shall forthwith release the property seized.

4. Exemptions from payment of toll. No tolls shall be paid for the passage [1] * * * of Police officers on duty, or of any person or property in their custody, but no other exemption from payment of the toll levied under this Act shall be allowed.

5. Assistance of collectors by Police officers. All Police-officers shall be bound to assist the toll-collectors, when required, in the execution of this Act; and, for that purpose, shall have the same power which they have in the exercise of their common police-duties.

6. Penalty for offences under Act., Compensation to person aggrieved, Saving of his right to sue. Every person, other than the persons appointed to collect the tolls under this Act, who shall levy or demand any toll on any public road or bridge, or for passing through any bazar situated thereon, and also every person who shall unlawfully and extortionately demand, or take any other or higher toll than the lawful toll, or under colour of this Act seize or sell any property knowing such seizure or sale to be unlawful, or in any manner unlawfully extort money or any valuable thing from any person under colour of this Act, shall be liable on conviction before a Magistrate to imprisonment for any term not exceeding six calendar months, or to fine not exceeding two hundred rupees, any part of which fine may be awarded by the Magistrate to the person aggrieved; but this remedy shall not be deemed to bar or affect his right to have redress by suit in the Civil Court [2] * * *.

7. Exhibition of table of tolls, and statement of penalties. A table of the tolls authorized to be taken at any toll-gate or station shall be put up in a conspicuous place near such gate or station legibly written or printed in English words and figures, and also in those of the vernacular language of the district, to which shall be annexed, written or printed in like manner, a statement of the penalties for refusing to pay the tolls and for taking any un-lawful toll.

8. Application of proceeds of tolls.— The tolls levied under this Act shall be deemed public revenue [3]* * *.

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[4]**[9. Power to compound tolls.** Any person entrusted with the management of the collection of tolls under this Act may in his discretion compound for any period not exceeding one year with any persons for a certain sum to be paid by such person for himself or for any vehicle or animal kept by him, in lieu of the rates of toll authorised to be levied under this Act.]

[SCHEDULE.] Rep. by the Devolution Act, 1920 (XXXVIII of 1920), s. 2 and Sch. I.

Date: 13-09-2024

[1]The words "of troops and military stores and equipages on their march or" rep. by the Indian Tolls (Army) Act, 1901 (2 of 1901), s. 8.
[2]The words "of the Zillah" rep. by the Repealing Act, 1876 (12 of 1876).
[3]The words "but the net proceeds thereof shall be applied wholly to the construction, repair and maintenance of roads and bridges within the presidency in which they are levied" rep. by A. O., 1937. The word "presidency" is to be deemed to have meant the territories under the administration of any L. G. see the Tolls Act, 1888 (8 of 1888), s. 2(2), since repealed. *See* also, in this connection, paragraph 4(b) of the India and Burma (Transitory Provisions) Order, 1937.
[4]Section 9 added by the Federal Laws (Revision and Declaration) Ordinance, 1981 (27 of 1981) s. 3, and Sch. II.

THE TRAMWAYS ACT, 1886

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THE TRAMWAYS ACT, 1886

[1]ACT No. XI OF 1886

[12*th March*, 1886]

An Act to facilitate the construction and to regulate the working of Tramways

WHEREAS it is expedient to facilitate the construction and to regulate the working of tramways; It is hereby enacted as follows:—

PRELIMINARY

1. Short title and commencement.—(1) This Act may be called the [2]* Tramways Act, 1886; and

(2) It shall come into force at once.

2. Local extent.—[3][(1) It extends in the first instance to [4][the Punjab] and the [5][North-West Frontier Province].]

[6][(2) This Act may by notification in the official Gazette be extended to the whole or any part of the said territories by the Provincial Government concerned.]

3. Definitions. In this Act, unless there is something repugnant in the subject or context,— (1) "local authority" means a municipal committee, district board, body of port commissioners or other authority legally entitled to, or entrusted by [7][the [8][Federal Government] or any Provincial Government] with, the control or management of a municipal or local fund:

[9][* * * * * * *]

(2) "road" means the way of a road, street, thorough fare, passage or place along or across which a tramway authorized under this Act is, or is intended to be, laid, and includes the surface-soil and sub-soil of a road, and the footway, berms, drains and ditches of a road, and any bridge, culvert or causeway forming part of a road:

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(3) "road-authority", in relation to a road, means—

(a) if a local authority maintains and repairs the road, then that authority;

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[1]For Settlement of Objects and Reasons, *see* Gazette of India, 1885, Pt. V, p. 308 ; for Report of the Select Committee, *see ibid*., 1886, Pt. IV, p. 131; and for Proceedings in Council, *see ibid*., 1885, Supplement, p. 1544 ; and *ibid*., 1886, Supplement, pp. 7 and 418.
This Act has been extended to the town of Karachi and its suburbs, *see* Bombay Gazette, 1887, Pt. I. p. 899.
For separate Acts on the subject of tramways in Karachi, *see* the Karachi Tramways Act, 1883 (Bom 2 of 1883).
[2]The word "Indian" omitted by A.O.,1949, Sch.
[3]Subs. *ibid*., for the original sub-section(I).
[4]Subs. by the Federal Laws (Revision and Declaration) Act, 1951 (26 of 1951), s. 8, for "West Punjab".
[5]Subs. by F.A.O, 1975, Art. 2 and Sch., for "North West Frontier" which was amended by the Central Laws (Statute Reform) Ordinance, 1960 (21 of 1960), s. 3 and 2nd Sch. (with effect from the 14th October, 1955), to read as above.
[6]Subs. by A.O.,1937, for the original sub-section (2).
[7]Subs. *ibid*., for "the Govt.".
[8]Subs. by F. A.O., 1975, Art. 2 and Table, for "Central Government".
[9]Clause (1a) which was ins, by A.O.,1961, Art. 2 and Sch. (*with effect from the 23rd March, 1956*), has been omitted by A.O.,1964, Art. 2 and Sch.

(b) if a local authority does not maintain and repair the road, and the road is neither vested in [1][Government] nor maintained and repaired by [2][the [3][Federal Government] or any Provincial Government], then the person in whom the road is vested; and

(c) if a local authority does not maintain and repair the road, and the road is vested in [1][Government] or maintained and repaired by [2][the [3][Federal Government] or any Provincial Government], then [4][the Government for whose purposes a road is so vested or by which the road is maintained and repaired, as the case may be]:

(4) "circle", in relation to a local authority or road authority, means the area within the control of that authority:

[5][(5) "tramway" means a tramway having one, two or more rails, and includes–

(a) any part of a tramway, or any siding, turnout, connection, line or track belonging to a tramway;

(*b*) any electrical equipment of a tramway; and

(*c*) any electric supply-line transmitting power from a generating station or sub-station to a tramway or from a generating station to a sub-station from which power is transmitted to a tramway.]

(6) "order" means an order authorizing the construction of a tramway under this Act, and includes a further order substituted for, or amending, extending or varying, that order:

(7) "promoter" means a local authority or person in whose favour an order has been made, and includes a local authority or person on whom the rights and liabilities conferred and imposed on the promoter by this Act and by the order and any rules made under this Act as to the construction, maintenance and use of the tramway, have devolved:

(8) "undertaking" includes all moveable and immoveable property of the promoter suitable to and used by him for the purposes of the tramway:

(9) "carriage", in the case of a tramway on which steam-power or any other mechanical power [6][or electrical power] is used, includes an engine worked on the tramway for the purpose of producing [6][or utilizing] that power:

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[1]Subs. by A.O.,1961, Art. 2, for "Her Majesty" (*with effect from the 23rd March, 1956*).
[2]Subs. by A.O., 1937, for "the Govt.".
[3]Subs. by F.A.O., 1975, Art. 2 and Table, for "Central Government".
[4]Subs. by A.O., 1937, for "the L. G.".
[5]Subs. by the Indian Tramways (Amdt.) Act, 1911 (5 of 1911), s. 2, for the original clause.
[36]Ins. by the Indian Tramways (Amdt.) Act, 1911 (5 of 1911), s. 3.

(10) "toll" includes any charge leviable in respect of the use of a tramway:

(11) "lessee" means a person to whom a lease has been granted of the right of user of a tramway and of demanding and taking the authorized tolls:

(12) "District Magistrate" includes an officer empowered by the [1][Government] by name or by virtue of his office to discharge within any local area all or any of the functions of a District Magistrate under this Act:

(13) "District Court" means a principal Civil Court of original jurisdiction, and includes a High Court having ordinary original civil jurisdiction:

(14) "Col1ector" means the chief officer in charge of the revenue-administration of a district, and includes an officer empowered by the [1][Government] by name or by virtue of his office to discharge within any local area the functions of a Collector under this Act: [2]*

(15) "prescribed" means prescribed by rules made by the [1][Government] under this Act: [3][and [4][(16) "Government" means the Provincial Government].]

ORDERS AUTHORIZING THE CONSTRUCTION OF TRAMWAYS

4. Application for and consent necessary to making of order.—(1) The [1][Government] may make an order authorizing the construction of a tramway in a circle on application made:—

(*a*) by the local authority of the circle with the consent of the road-authority of any road or part of a road which is to be traversed by the tramway and of which the local authority is not itself the road-authority; or

(b) by any person with the consent of the local authority of the circle, and of the road-authority of any road or part of a road which is to be traversed by the tramway and of which the local authority is not the road authority:

[5][* * * * * * *]

(2) A local authority shall not make an application for an order or be deemed to consent to an application being made by any person for an order, unless the making of the application or the giving of the consent has been approved by the local authority in manner prescribed.

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[1]Subs. by A. O., 1937, for "L. G.".
[2]The word "and" rep., *ibid.*
[3]1ns. *ibid*.
[4]Clause (16) which was ins. by A.O., 1937, and subsequently amended by. A.O., 1949, Sch. and A.O., 1961, Art. 2 and Sch. (with effect from the 23rd March, 1956) has been subs. by A. O., 1964, Art.2 and Sch.
[5]The proviso to sub-section 4(1) rep. by A.O., 1937

5. Consent of local or road-authority not necessary in certain cases. When it is proposed to lay a tramway in two or more circles, and a local authority or road-authority having control in either or any of the circles does not consent thereto, or attaches conditions to its consent, the [1][Government] may, nevertheless, make an order authorizing the construction of the tramway in the circle, or by the order impose on the promoter any conditions which it deems fit, if, after considering the reasons of the authority for withholding its consent or attaching the conditions thereto, it is satisfied that the construction of the tramway in the circle is expedient, or, as the case may be, that the conditions attached by the authority to its consent ought not to be imposed.

6. Procedure for making order.—(1) The [1][Government] on receiving an application shall consider it, and, if satisfied as to the propriety of proceeding thereon, publish in the official Gazette, and in such other manner as it deems sufficient for giving information to persons interested, a draft of a proposed order authorizing the construction of the tramway.

(2) A notice shall be published with the draft stating that any objection or suggestion which any person may desire to make with respect to the proposed order will, if submitted to the [1][Government] on or before a date to be specified in the notice, be received and considered.

(3) If, after considering any objections or suggestions which may have been made with respect to the draft on or before the date so specified, the [1][Government] is of opinion that the application should be granted, with or without addition or modification, or subject or not to any restriction or condition, it may make an order accordingly.

(4) Every order authorizing the construction of a tramway shall be published in the official Gazette in English, and in the other prescribed language or languages, if any; and that publication shall be conclusive proof that the order has been made as required by this section.

7. Contents of order.—(1) An order made under section 6 shall empower the promoter therein specified to construct an maintain the tramway therein described in the manner therein provided, and shall specify the time within which the tramway shall be commenced and the time within which it shall be completed and opened for public traffic.

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(2) The order may also provide in manner consistent with this Act, for all or any of the following, among other matters, that is to say:—

(*a*) a period before the expiration of which the tramway shall not be commenced, and the conditions subject to which the local authority, when it is not itself the promoter, may, within that period elect to be substituted in the place of the promoter in respect of the undertaking or of so much thereof as is within its circle; and the limits of time within which, and the terms upon which, the local authority may, after the tramway has been constructed, require the promoter to sell to it the undertaking or so much thereof as is within its circle;

[1]Subs. *ibid.*, for "L. G.".

(b) the acquisition by the promoter of land for the purposes of the tramway, and the disposal by him of land which has been acquired but is no longer required for those purposes;

(c) the conditions subject to which roads may be opened and broken up for the purposes of the construction or maintenance of the tramway or any part thereof, and the method of, and materials to be used in, the reinstating of the roads, and the approval of the method and materials by the [1][Government] or the road-authority before the commencement of the work;

(d) the conditions on which the tramway may be constructed over a bridge or across a railway or tramway when the carriageway over the bridge is to form part of the tramway or when the tramway is to cross a railway or another tramway on the level;

[2][(e) the space which shall ordinarily intervene between the outside of the carriageway on either side of a road whereon the tramway is to be constructed, and—

(*i*) in the case of a tramway having one rail, the rail of the tramway, or

(ii) in the case of a tramway having two or more rails, the nearest rail of the tramway,
and the conditions on which a smaller space may be permitted;]

(f) the gauge of the tramway, the rails to be used, and the mode in which, and the level at which, they shall be laid and maintained; and the adoption and application by the promoter of such improvements in the rails, and in, their situation, and in the sub-structure upon which they rest, as the [1][Government] may from time to time require;

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(g) the portion of the road or roads traversed by the tramway to be kept in repair by the promoter; the maintenance by the promoter to the satisfaction of the [1][Government] or the road-authority, or both, of that portion of the road or roads; and the liability of the promoter, on the requisition of the [1][Government], from time to time to adopt and apply such improvements in the tramway as the [1][Government] may consider necessary or desirable for the safety or convenience of the public, and to alter the position or level of the tramway to suit future alterations in the road or roads;

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[1]Subs. by A.O., 1937, for "L. G.".

[2]Subs. by the Indian Tramways (Amdt) Act, 1911 (5 of 1911), s. 4, for the original clause.

(h) the application of material excavated by the promoter in the construction or maintenance of the tramway;

(i) the provision of such crossings, passing-places, sidings, junctions and other works, in addition to those specified in or authorized by the order, as may from time to time be necessary or convenient to the efficient working of the tramway;

(j) the powers which may from time to time be exercised by the [1][Government], the local authority, the road-authority or any person in respect of sewers, drains, telegraph-lines, gas-pipes, water-pipes or other things in or on land occupied by the tramway; the notice (if any) to be given of the intended exercise of those powers; the manner in which the powers shall be exercised; and the extent to which the tramway and the traffic thereon may be interfered with in the exercise thereof;

(k) the conditions subject to which the promoter may from time to time interfere with, or alter or require the alteration of the position of, drains (not being sewers or main drains), telegraph-lines, gas-pipes, water-pipes or other things as aforesaid;

(l) the provision of a temporary tramway in place of a part of a tramway which has been removed, or of which the use has been discontinued by reason of the execution of any work affecting a road along which the part of the tramway was laid, or by reason of the use of the road being interrupted by floods or other cause;

(m) the motive power to be used on the tramway, and the conditions on which steam-power or any other mechanical power [2][or electrical power] may be used;

(n) the nature, dimensions, fittings, appliances and apparatus of the carriages to be used on the tramway, and the inspection and examination thereof by officers of the [1][Government] or the local authority, and the liability of the promoter or lessee, on the requisition of the [1][Government], from time to time, to adopt and apply such improvements in the carriages, and in the fittings, appliances and apparatus, as the [1][Government] may consider necessary or desirable for the safety or convenience of the public;

(o) the traffic which may be carried on the tramway, the traffic which the promoter or lessee shall be bound to carry, and the traffic which he may refuse to carry; the tolls to be leviable by the promoter or lessee, and the periodical revision thereof by the [1][Government]; and the regulation of the traffic and of the levy of the tolls;

[1]Subs. by. A. O., 1937, for "L. G.".

[2]Ins. by the Indian Tramways (Amdt.) Act, 1911 (5 of 1911), s. 5.

(p) the use of the tramway free of toll by the local authority, with its own carriages, for specified purposes, during specified hours, with power to the local authority to make such sidings and other works as may be necessary for communication between its premises and the tramway;

(q) the conditions subject to which the promoter may transfer the undertaking, or any part thereof, by sale, mortgage, lease, exchange or otherwise; and the conditions subject to which the local authority may be the transferee;

(r) the performance by the [1][Government] or by the local authority or road-authority of any work required by the Act or the order to be done by the promoter; and

(s) the penalty to be incurred by the promoter or lessee for failure to observe any condition or direction contained in the order, and the application of the penalty when recovered.

(3) The [1][Government] may, in providing in the order for the acquisition of land for the purposes of a tramway of which the promoter is not a company, direct that land may be acquired for the promoter under the provisions of the Land Acquisition Act, [2][1894(I of 1894)], in the same manner and on the same conditions as it might be acquired for the purposes of the tramway if a company were the promoter.

(4) The order shall imply the condition–

(a) in the case of a tramway of which a local authority is the promoter, that a lease thereof shall be granted only in manner by this Act provided; and

(b) in the case of a tramway of which a local authority is not the promoter, that a lease thereof shall be only of the right of user and of demanding and taking the authorized tolls, and shall not confer or impose on the lessee any of the powers or duties of the promoter in respect of the construction or maintenance of the tramway.

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8. Further order.—(1) The [1][Government] may, on the application of the promoter, revoke, amend, extend or vary the order by a further order.

(2) An application for a further order shall be made in the same manner and subject to the same conditions as an application for an order.

(3) The [1][Government] may, in its discretion, either grant or reject the application.

[1]Subs. by A.O., 1937, for "L.G.".
[2]Subs. by the Federal Laws (Revision and Declaration) Ordinance, 1981 (27 of 1981), s. 3 and 2nd Sch., for "1870".

(4) If it grants the application, it shall make the further order in the same manner as an order, except that no addition to, or modification of, the rights, powers and authorities asked for in the application, or restriction or condition with respect thereto, shall be made or imposed by the further order without the consent in writing of the promoter.

9. **Power to authorize joint work by local authorities.**—(1) Subject to, and in accordance with, the provisions of this Act, the [1][Government] may, on a joint application, or on two or more separate applications, make an order empowering two or more local authorities, respectively, jointly to construct the whole, or separately to construct parts, of a tramway, and jointly or separately to own the whole or parts thereof.

(2) All the provisions of this Act which relate to the construction of tramways shall extend and apply to the construction of the whole and the separate parts of the tramway, and the form of the order may be adapted to the circumstances of the case.

10. Cessation of powers given by an order.—(1) If a promoter authorized by an order to construct a tramway—

(a) does not within the time specified in the order substantially commence the construction of the tramway, or

(b) having commenced the construction suspends it without a reason sufficient in the opinion of the [1][Government] to warrant the suspension, or

(c) does not within the time specified in the order complete the tramway and open it for public traffic, the following consequences shall ensue:—

(i) the powers given by the order to the promoter for constructing the tramway and otherwise in relation thereto shall, unless the [1][Government], by special direction in writing, prolongs the time or condones the suspension, cease to be exercised except as to so much of the tramway as is then completed;

(ii) as to so much of the tramway as is then completed, the [1][Government] may either permit, or refuse to permit, the powers given by the order to continue;

(iii) if the [1][Government] refuses to permit the powers to continue, then so much of the tramway as is then completed may be dealt with, under the provisions of this Act relating to the discontinuance of tramways, as a tramway of the working whereof the discontinuance has been proved to the satisfaction of the [1][Government].

(2) A notification published by the [1][Government] in the official Gazette to the effect that on a date specified in the notification the construction of a tramway had not been substantially commenced or a tramway had not been completed and opened for public traffic, or that the construction of a tramway had been suspended without sufficient reason, shall, for the purposes of this section be conclusive proof of the matter stated therein.

[1] Subs. by A. O., 1937, for "L.G.".

CONSTRUCTION AND MAINTENANCE OF TRAMWAYS

11. Mode of formation of tramway. A tramway shall be constructed and maintained in the manner provided by the order.

12. Inspection of tramway before opening. A tramway, or portion or extension of, or addition to, a tramway, shall not be opened for public traffic [1][until it has been inspected and certified to be fit for such traffic by an engineer appointed [2][by the Government]].

13. Agreement between road authority and promoter as to repair of roadway. Subject to the provisions of any order for the time being in force with respect to the matters mentioned in section 7, sub-section (2), clause *(g)* the road-authority and the promoter may from time to time enter into agreements as to the keeping in repair of the whole or a part of a road traversed by a tramway, and as to the proportion to be paid by either of them of the expense of keeping the road or part in repair.

TRAFFIC ON TRAMWAYS

14. Rights of promoter and the public over tramways.—(1) The promoter of a tramway shall, subject to the provisions of sub-section (2) and to the other provisions of this Act and of the order, have the exclusive use of the tramway for carriages with flange-wheels or other wheels suitable to run on the rail described in the order as the rail to be used on the tramway:

Provided that nothing in this Act or in the order or any rule made under this Act shall affect the right of any person authorized to use a tramway or railway to pass across a tramway constructed under this Act with carriages having wheels suitable to run on the rail thereof.

(2) The public shall have a right to pass along or across any part of a road along or across, which a tramway is constructed, whether on or off the tramway, with carriages not having flange-wheels or other wheels suitable to run on the rail of the tramway:

Provided—

(a) that this sub-section shall not apply where the tramway is constructed on land the right to the exclusive possession of which has been acquired by the promoter; and

(b) that the [1][Government] may by an order authorize the construction of a tramway on any part of a road with rails raised above the surface of the road, if it is satisfied that the convenience of the public will not be injuriously affected thereby.

15. Tolls leviable by promoter or lessee.—(1) The promoter or lessee may demand and take, in respect of the tramway, tolls not exceeding the limits specified in or determinable under the order, or, if the order contains no provision in this behalf, then such sums as may from time to time be fixed by the promoter or lessee with the previous sanction of the [1][Government].

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[1]Subs. *ibid*., for "until an engineer appointed in this behalf by the L.G. has inspected it and certified it to be fit for such traffic".
[2]Subs. by A. O., 1964, Art. 2 and Sch., for the dash and clauses (a) and (b) as amended by A.O., 1949, Sch.

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(2) A list of all the tolls authorized to be levied shall be exhibited, in such languages as the District Magistrate may direct, in a conspicuous place inside and outside each of the carriages used upon the tramway.

16. Carriage of dangerous or offensive goods.—(1) A person shall not be entitled to carry or to require to be carried, on a tramway constructed under this Act, any goods of a dangerous or offensive nature.

(2) A person taking such goods with him on the tramway shall, before entering the carriage, give notice of their nature to the servant of the promoter or lessee in charge of the carriage.

(3) A person sending such goods by the tramway shall distinctly mark their nature on the outside of the package containing them, or otherwise give notice thereof in writing to the servant of the promoter or lessee with whom he leaves them for the purpose of their being sent by the tramway.

(4) Any servant of the promoter or lessee may refuse to carry upon the tramway a parcel which he suspects to contain goods of a dangerous or offensive nature, and, if any such parcel bas been received for the purpose of being carried upon the tramway, may stop the transit thereof until he is satisfied as to the nature of its contents.

(5) Where a servant of the promoter or lessee refuses under sub-section (4) to carry a parcel which has been received for the purpose of being carried upon the tramway, he shall, as soon as may be, give notice of his refusal to the consignor or consignee if he refuses at a time when neither of them is present.

LICENSES TO USE TRAMWAYS

17. Grant to third parties of licenses to use tramway in certain events. If, at any time after a tramway or part of a tramway has been for three years opened for public traffic in a circle, the local authority of the circle represents in writing to the [1][Government] that the public is deprived of the full benefit of the tramway or of the part thereof, the [1][Government] may, if after considering any statement which the promoter or lessee or both may desire to make, and after such further enquiry as it deems necessary, it is satisfied as to the truth of the representation, grant a license to any person to use the tramway conformably to this Act and to the order and the rules made under this Act, subject to the following provisions, namely:—

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(a) the license shall be for a period not less than one year or more than three years from the date of the license, but the [1][Government] may in its discretion renew it;

(b) the license shall be to use the whole of the tramway for the time being opened for public traffic, or such part or parts of the tramway as the [1][Government,] having regard to the cause for granting the license, thinks fit;

(c) the license shall specify the number of carriages which the licensee shall run upon the tramway, the mode in which, and times at which, the carriages shall be run, the tolls to be paid to the promoter or lessee by the licensee for the use of the tramway, and the tolls, being those for the time being leviable by the promoter or lessee, which the licensee may demand and take for the use of his carriages;

[1] Subs. by A. O., 1937, for "L.G.".

(d) the licensee and his officers and servants shall permit one person, duly authorized for that purpose by the promoter or lessee, to travel free of toll in or upon each carriage of the licensee run upon the tramway for the whole or any part of a journey;

(e) any provision of this Act, or of the order or rules made under this act, relating to the functions of a servant of a promoter or lessee shall be construed, so far as may be, as referring to a servant of the licensee; and

(f) the [1][Government] may revoke, alter or modify the license for any cause sufficient in its opinion to warrant the revocation, alteration or modification thereof.

18. Licensee to give to promoter or lessee an account of traffic. A licensee shall, on demand, give to an officer or servant authorized in that behalf by the promoter or lessee an exact account in writing, signed by the licensee, of the number of passengers, or number or quantity of goods, conveyed by any and every carriage used by him on the tramway.

DISCONTINUANCE OF TRAMWAYS

19. Cessation of powers of promoter and lessee on discontinuance of tramway. If it is proved to the satisfaction of the [1][Government], at any time after the opening of a tramway for public traffic, that the working of the tramway, or any part thereof, has been a practically discontinued, for the space of three months, without a reason sufficient, in the opinion of the [1][Government], to warrant the discontinuance, the [1][Government], if it thinks fit, may, by notification in the official Gazette, declare that the powers of the promoter and of the lessee, if any, in respect of the tramway or the part thereof of which the working has been so discontinued, shall, from the date of the notification, be at an end; and thereupon the said powers shall cease and determine, except in so far as they may be purchased by a local authority in manner by this Act provided.

20. Powers of road-authority on cessation of powers of promoter.—(1) Where a notification has been published under section 19, the road-authority may, at any time after the expiration of two months from the date of the notification, remove the tramway or part of the tramway of which the working has been so discontinued, and used the materials thereof in reinstating the road.

(2) The promoter shall pay to the road-authority the cost incurred by that authority in removing the tramway or the part thereof and in reinstating the road.

(3) The cost shall be certified by an officer of the road-authority, and his certificate, countersigned by the District Magistrate, shall be conclusive proof as to the cost incurred.

(4) If the promoter does not pay the amount so certified within one month after the delivery to him of the certificate or of a copy thereof, the road-authority may, without any previous notice to the promoter and without prejudice to any other remedy which it may have for the recovery of the amount, sell and dispose of such materials of the tramway or part thereof removed as it has not used in reinstating the road, either by public auction or by private sale, and for such sum or sums, and to such person or persons, as it thinks fit, and may, out of the proceeds of the sale, pay and reimburse itself the amount of the cost aforesaid and of the expenses of the sale, and shall pay over the residue (if any) of the proceeds of the sale to the promoter.

[1]Subs. by A. O., 1937, for "L.G.".

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INSOLVENCY OF PROMOTER

21. Proceedings in case of insolvency of promoter.—(1) If, at any time after the opening of a tramway in a circle for public traffic, it appears to the road-authority or local authority of the circle that the promoter of the tramway is insolvent, so that he is unable to maintain the tramway, or to work it with advantage to the public, and either of those authorities makes a representation to that effect to the [1][Government], the [1][Government] may, if after considering any statement which the promoter may desire to make, and after such further enquiry as it deems necessary, it is satisfied as to the truth of the representation, declare, by notification in the official Gazette, that the powers of the promoter shall, at the expiration of six months from the publication of the notification, be at an end; and the powers of the promoter shall cease and determine at the expiration of that period, except in so far as they may be purchased by a local authority in manner by this Act provided.

(2) Where a notification has been published under sub-section (1), the road-authority may, at any time after the expiration of six months from the date thereof, remove the tramway in the same manner, and subject to the same provisions as to the payment of the cost of the removal and to the same remedy for recovery of the cost, in every respect as in cases of removal under section 20.

PURCHASE OF TRAMWAYS

22. Future purchase of undertaking by local authority.—(1) Where the promoter of a tramway in a circle is not the local authority, the local authority, with the previous sanction of the [1][Government], may—

(a) within such limits of time as may be specified in this behalf in the order, or

(b) if a time was not specified in the order, then within six months after the expiration of a period of twenty one years from the date of the order, and within six months after the expiration of every subsequent period of seven years, or

(c) within two months after the publication of a notification under section 19 or within six months after the publication of a notification under section 21, by notice in writing, require the promoter to sell to the local authority his undertaking or the part thereof which is within the circle of the local authority; and thereupon the promoter shall sell the same upon the terms specified in the order, or, if the terms were not specified in the order, then upon the terms of paying the then value of the undertaking or of the part thereof, exclusive of any allowance for past or future profits of the undertaking or any compensation for compulsory sale or other consideration whatsoever.

(2) A requisition shall not be made under sub-section (1) unless the making thereof has been approved by the local authority in manner prescribed.

(3) When a sale has been made under this section, all the rights, powers and authorities of the promoter in respect of the undertaking or part thereof sold, or, where a notification has been published under section 19 or section 21, all the rights, powers and authorities of the promoter previous to the publication of the notification in respect of the undertaking or part thereof sold, shall be transferred to the authority to whom the undertaking or part has been sold, and shall vest in, and may be exercised by, that authority in the same manner as if the tramway had been constructed by it under an order made under this Act.

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[1]Subs. by A. O., 1937, for "L.G.".

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(4) Subject to, and in accordance with, the preceding provisions of this section, two or more local authorities may jointly purchase an undertaking or so much thereof as is within their circles.

WORKING OF TRAMWAYS OWNED BY LOCAL AUTHORITIES

23. Lease of, or working of, tramway by local authority.—(1) When a local authority has under the authority of an order completed a tramway, or has under the provisions of this Act or of an order acquired possession of a tramway, it may, by a lease to be approved by the [1][Government] let to any person at the right of user of the tramway and of demanding and taking the authorized tolls.

(2) On the determination of a lease the local authority may from time to time let the right for such further term and on such conditions as the [1][Government] may approve.

(3) Every lease made under this section shall imply a condition of re-entry if at any time after the making thereof it is proved to the satisfaction of the [1][Government] that the lessee has practically discontinued the working of the tramway leased, or of any part thereof, for the space of one month without a reason sufficient, in the opinion of the [1][Government], to warrant the discontinuance.

(4) Notice of the intention of the local authority to make a lease shall be given in manner prescribed.

(5) If the local authority cannot by means of a lease obtain what it deems to be a fair rent for the tramway, it may itself, with the previous sanction of the [1][Government] and for such term as the [1][Government] directs, place and run carriages upon the tramway, and demand and take the authorized tolls in respect of the use of the carriages.

RULES

24. Power to make rules.—(1) In addition to any other power to make rules expressly or by implication conferred by this Act, the l[Government] may make rules consistent with this Act—

(a) as to the form in which an application for an order shall be made;

(b) as to the costs to be paid by an applicant in respect of an order, and the time when, and the place where, those costs shall be paid;

(c) as to the payment of money or lodgment of securities, by way of deposit, by the applicant for an order before the order is published under section 6, sub-section (4), or a further order is made under section 8 the investment of money so paid; the disposal of interest or dividends from time to time accruing due on money or securities so paid, lodged or invested; the application of the money or securities or the produce thereof to the discharge of any liability incurred by the promoter; and the forfeiture, repayment or return of the money or securities;

[1]Subs. by A. O., 1937, for "L.G.".

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(d) as to the plans and sections of any works to be deposited by applicants for orders or by promoters;

(e) for regulating the use of steam-power or any other mechanical power [2][or electrical power] on a tramway;

(f) as to any matter specified in section 7, sub-section (2), clauses (c), (d), (e), (j) and (k), as a matter which may be provided for in an order, when that matter has not been so provided for, or has not, in the opinion of the [1][Government], been effectually so provided for;

(g) as to the periodical submission, by promoters, lessees and licensees, of accounts of traffic and receipts to the [1][Government] or as that Government directs, and as to the forms in which those accounts are to be submitted;

(h) as to the accidents of which report is to be made to the [1][Government] or as that Government directs;

(i) as to any matter respecting which rules may be made under this section by a local authority or a promoter or lessee; and

(j) generally, as to any other matter or thing in respect of which it may seem to the [1][Government] to be expedient to make rules for carrying out the purposes of this Act.

(2) A local authority may, from time to time, with the previous sanction of the [1][Government], make rules consistent with this Act and with the order and any rules made by the [1][Government] under this Act, for regulating—_

(a) the rate of speed to be observed in travelling upon a tramway within the circle of the local authority;

(b) the use of animal power on the tramway;

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(c) the distances at which carriages using the tramway are to be allowed to follow one after the other;

(d) the stopping of carriages using the tramway, and the notice to be given to the public of their approach;

(e) the manner in which carriages using the tramway after sunset and before sunrise are to be lighted;

(f) the traffic on roads along or across which the tramway is laid;

(g) the number of passengers which may be carried in any carriage;

[1]Subs. by A. O., 1937, for "L.G.".
[2]1ns. by the Indian Tramways (Amdt.) Act, 1911 (5 of 1911), s. 6.

(h) the licensing and control of drivers, conductors and other persons having charge of the carriages of the promoter or lessee or a licensee; and,

(i) generally, the mode of use of the tramway:

[2][* * * * * * *]

(3) The promoter or lessee of a tramway may, from time to time, with the previous sanction of the [1][Government], make rules consistent with this Act and with the order and any rules made under this Act—

(a) for preventing the commission of any nuisance in or upon any carriage, or in or against any premises, belonging to him; and

(b) for regulating the travelling in any carriage belonging to him.

(4) The [1][Government] may cancel any rule made by a local authority or by a promoter or lessee under this section.

25. Power to impose penalty by rule. The authority making any rule under section 24 may direct that a breach of it shall be punishable with fine which may extend,—

(a) if the authority making the rule is the [1][Government], to two hundred rupees, and,

(b) if that authority is a local authority or a promoter or lessee, to twenty rupees;

and, when the breach is a continuing breach, with a further fine which may extend,__

(c) if the authority making the rule is the [1][Government], to fifty rupees, and,

(d) if that authority is a local authority or a promoter or lessee, to five rupees, for every day after the first during which the breach continues.

26. Procedure for making, and publication of, rules.—(1) Every authority having power to make rules under any section of this Act shall, before making the rules, publish a draft of the proposed rules for the information of persons likely to be affected thereby.

(2) The publication shall be made, in the case of rules made by the [1][Government], in such manner as may in its opinion be sufficient for giving information to persons interested, and, in the case of rules made by a local authority or by a promoter or lessee, in manner prescribed.

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[1]Subs. by A. O., 1937, for "L.G.".

[2]Proviso which was ins. by A. O., 1937, of the G. of I. Act, 1935 (26 Geo. 5, c. 2) s. 181 (3) and definition of railway, has been omitted by A. O., 1964, Art. 2 and Sch.

(3) There shall be published with the draft a notice specifying a date, not earlier than the expiration of one month after the date of publication, at or after which the draft will be taken into consideration.

(4) The authority shall receive and consider any objection or suggestion which may be made by any person with respect to the draft before the date so specified.

(5) The publication in the official Gazette of a rule purporting to be made under this Act shall be conclusive proof that it has been duly made.

OFFENCES

27. Penalty for failure of promoter, lessee or licensee to comply with act or order. If a promoter—

(a) constructs or maintains a tramway otherwise than in accordance with the order, or

(b) opens the tramway for traffic, or permits it to be so opened, before it has been inspected and certified in manner required by section 12, or

(c) fails to observe any requirement or condition of the order for neglect or breach whereof no penalty has been expressly provided in the order,

or if a promoter, lessee or licensee runs a carriage on a tramway otherwise than in accordance with the order,

he shall (without prejudice to the enforcement or specific performance of the requirements of this Act or of the order, or to any other remedy which may be obtained against him in a Code of Civil Judicature), on complaint made by the [1][Government] or by the local authority or road-authority or by the District Magistrate or, with the previous sanction of the District Magistrate, by any person injuriously affected by the act or omission, be punished with fine which may extend to two hundred rupees, and in the case of a continuing offence to a further fine which may extend to fifty rupees for every day after the first during which the offence continues to be committed.

28. Penalty for obstructing promoter in exercise of his powers. If any person without lawful excuse, the burden of proving which shall lie upon him, wilfully obstructs any person acting under the authority of the promoter in the lawful exercise of his powers in constructing or maintaining a tramway, or injures or destroys any mark made for the purpose of setting out the line of the tramway, he shall be punished with fine which may extend to fifty rupees.

29. Penalty for interfering with tramway. If any person without lawful excuse, the burden of Penal proving which shall lie upon him, wilfully does any of the following things namely:—

(a) interferes with, removes or alters any part of a tramway constructed under this Act, or of the works connected therewith, or

[1]Subs. by A.O., 1937, for "L.G.".

(b) places or throws upon or across any such tramway any wood, stone, refuse or other thing, or

(c) does anything in such a manner as to obstruct any carriage using any such tramway, or

(d) abets within the meaning of the Pakistan Penal Code (XLV of 1860) the doing of, or attempts to do, anything mentioned in clause (a), clause (b), or clause (c),

he shall (without prejudice to any other remedy which may be obtained against him in a Court of Civil Judicature) be punished with fine which may extend to one hundred rupees.

30. **Penalty for using tramway with carriage having flange wheels.** If any person, except under a lease from, or by agreement with, the promoter, or under license from the [1][Government] granted under this Act, uses on a tramway, otherwise than as permitted by section 14, a carriage having flange-wheels or other wheels suitable to run on the rail of the tramway, he shall be punished with a fine which may extend to two hundred rupees.

31. Penalty for evading payment of proper toll.—(1) If any person travelling or having travelled in a carriage of the promoter or lessee or of a licensee evades or attempts to evade payment of toll, or if any person having paid toll for a certain distance wilfully proceeds in any such carriage beyond that distance and does not pay the additional toll for the additional distance or attempts to evade payment thereof, or if any person wilfully refuses or neglects on arriving at the point to which he has paid toll to quit the carriage, he shall be punished with fine which may extend to ten rupees.

(2) When a person commits an offence under this section and refuses on demand of a servant of the promoter, lessee or licensee to give his name and residence, or gives a name or residence which the servant has reason to believe to be false, he may be arrested and taken to the nearest police-station by the servant or any person whom the servant may call to his aid.

(3) When the person is taken to the police-station he shall with the least possible delay be forwarded to the nearest Magistrate, unless his true name and residence are ascertained, in which case he shall be released on his executing a bond for his appearance before a Magistrate if so required.

32. Penalty for taking or sending dangerous or offensive goods without giving notice. If any person takes or sends by tramway any goods of a dangerous or offensive nature without giving the notice required by section 16, he shall be punished with fine which may extend to fifty rupees.

33. Penalty for licensee not giving to promoter or lessee an account of traffic or giving false account.—(1) If a licensee fails on damand to give the account mentioned in section18, or, with intent to evade the payment of tolls, gives a false account when he is called upon to give an account under that section, he shall be punished with fine which may extend to fifty rupees.

[1]Subs. by A.O., 1937, for "L.G.".

(2) The fine shall be in addition to any tolls payable by the licensee to the promoter or lessee in respect of the passengers or goods conveyed by the carriage or carriages used by the licensee on the tramway.

34. Saving of prosecutions under other laws. Nothing in this Act shall prevent a person from being prosecuted under any other law for an act or omission which constitutes an offence against this Act or the rules made under it, or from being liable under that other law to any other or higher punishment or penalty than that provided by this Act or the rules made under it:

Provided that a person shall not be punished twice for the same offence.

SETTLEMENT OF DIFFERENCES

35. Differences between promoters or lessees and authorities.—(1) If any difference arises between the promoter or lessee on the one hand and the [1][Government], or the local authority, or the road-authority, or a person having the charge of any sewers, drains, telegraph-lines, gas-pipes, water-pipes or other things in or on land occupied by the tramway, on the other hand, with respect to any interference or control exercised or claimed to be exercised by, or on behalf of, either party by virtue of this or any other Act, or of the order or the rules made under this Act, or with respect to the propriety of, or the mode of, the execution of any work, or with respect to any compensation to be made by or to the promoter or lessee, or on the question whether any work is such as ought reasonably to satisfy the [1][Government] or the road-authority or both, or with respect to any other subject or thing regulated by, or comprised in, this Act or the order or the rules made under this Act, and not otherwise expressly provided for therein, the matter in difference shall, except where the parties elect to proceed under [2][the Arbitration Act, 1940], (X of 1940) be settled, on the application of either a party, by a referee.

(2) Where the difference is—

(a) between the promoter or lessee on the one hand and the [1][Government], either as such or as the road authority, on the other, or

(b) between the promoter on the one hand and the local authority on the other, with respect to the sum to be paid by the local authority for an undertaking or part of an undertaking which that authority has required the promoter to sell under section 22,

the referee shall be the District Court within the jurisdiction of which the tramway is situate, or, where the tramway is within the jurisdiction of more than one District Court, the District Court within the jurisdiction of which the greater part of the tramway is situate.

(3) In other cases the referee shall be appointed by the [1][Government].

(4) Except where the referee is the District Court, the powers and procedure of the referee may be prescribed.

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[1]Subs. by A.O., 1937, for "L.G.".

[2]Subs. by the Federal Laws (Revision and Declaration) Ordinance, 1981 (27 of 1981), s. 3 and 2nd Sch., for "section 523 of the Code of Civil Procedure".

(5) In the case of a difference between a promoter on the one hand and a local authority on the other, with respect to the sum to be paid by the local authority for an undertaking or part of an undertaking which that authority has required the promoter to sell under section 22, an appeal shall lie to the High Court from the award of the referee as from an original decree of the District Court.

(6) In the case of every other difference the award of the referee shall be final.

RECOVERY OF TOLLS

36. Recovery of moneys due from promoters and in certain cases, from lessees. Any of the following moneys, namely, any rent due to a local authority from a lessee, any penalty recoverable from a promoter or lessee under an order, any sum payable by a promoter or lessee under an award of a referee, the cost of the performance under this Act by the [1][Government] or by a local authority or road-authority of any work required by this Act or by an order to be done by a promoter, and the cost incurred by a road-authority in removing a tramway and reinstating a road under this Act, may, without prejudice to any other remedy that the authority to which the money is due may have by suit or otherwise, be recovered by that authority, on application made in this behalf to the Collector, as if the sum due were an arrear of land-revenue due by the promoter or lessee or his surety (if any):

Provided that nothing in this section shall authorize the arrest of the promoter or lessee or his surety in execution of any process issued by the Collector.

37. Recovery of tolls from licensee.—(1) If a licensee fails to pay on demand the tolls due for the use of a tramway, the promoter or lessee to whom the tolls are due may, without prejudice to the remedy which he may have by suit, apply to a Magistrate to recover the amount of the tolls and the Magistrate may, after giving notice to the licensee, if possible, and allowing him an opportunity of being heard, proceed to recover the amount by distress and sale of any carriages or other moveable property of the licensee which may be found on the tramway or on premises connected therewith.

(2) When a licensee has failed to pay on demand the tolls due from him, the promoter or lessee to whom the tolls are due may seize any carriage or other moveable property of the licensee on the tramway or on premises connected therewith, and detain the same for forty-eight hours unless the tolls are sooner paid.

(3) When application is made to a Magistrate under subsection (1), he may make an interim order of distraint pending his final decision.

38. Recovery of tolls from passengers. Any tolls due to a promoter, lessee or licensee from a passenger may be recovered either by suit or, on application to a Magistrate having jurisdiction within any local area in which any part of the tramway is laid, by distress and sa1e of any moveable property belonging to the passenger within the local limits of the jurisdiction of the Magistrate.

[1]Subs. by A.O., 1937, for "L.G.".

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SAVINGS

39. Promoter to have right of user only.—(1) Notwithstanding anything contained in this Act, or in an order or any rule made under this Act, a promoter shall not acquire any right other than that of user only over a road along or across which he lays a tramway, nor shall anything contained in this Act, or in an order or any rule made under this Act, exempt the promoter of a tramway, or any other person using the tramway, from the payment of such charges as may lawfully be levied in respect of the use of a road or bridge along or across which the tramway is laid.

(2) The [1][Provincial Government] may, if it thinks fit, fix rates at which a promoter, lessee or licensee may compound for the charges payable in respect of the use of a road or bridge.

40. **Saving of power over roads traversed by tramways.—**(1) Nothing in this Act, or in an order or any rule made under this Act, shall take away or abridge any power which a road authority, local authority or other person has by law to break up, widen, alter, divert or improve a road, railroad or tramway along or across which a tramway is laid.

(2) The road-authority, local authority or other person executing any work referred to in sub-section (1) shall not be liable to pay to a promoter, lessee or licensee any compensation for injury done to a tramway by the execution of the work or for loss of traffic occasioned by the reasonable use of any powerfully exercised for the execution thereof.

41. Saving of power of local authority and police to regulate traffic or roads. Nothing in this Act, or in an order or any rule made under this Act, shall affect the powers of a local authority or of a Magistrate or police-officer to regulate the passage of traffic along or across a road along or across which a tramway is laid; and the authority, Magistrate or officer aforesaid may exercise its or his powers as well on as off the tramway and with respect as well to the traffic of a promoter, lessee or licensee as to the traffic of other persons.

SUPPLEMENTAL PROVISIONS

42. Promoters, lessees and licencees to be responsible for all injuries. A promoter, lessee or licensee shall be answerable for all injuries happening through his act or default or through the act or default of any person in his employment, by reason or in consequence of any of his carriages or works, and shall save harmless all authorities and persons collectively and individually, and their officers and servants, from all damages and costs in respect of injuries so happening.

43. Want of funds not a sufficient reason for default. For the purposes of this Act want of funds shall not be deemed to be a sufficient reason for the suspension of the construction, or the discontinuance of the working, of a tramway by a promoter or lessee.

44. Power to exempt from municipal taxation. When a tramway is constructed under this Act within the limits of a municipality, the [1][Provincial Government] may exempt the animals, plant, rolling-stock, yards, workshops, engine-sheds, [2][electrical generating stations or sub-stations] and depots of the promoter, lessee or licensee, for such period as it thinks fit, from all or any municipal taxes leviable within those limits.

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[1]Subs. by A.O., 1937, for "L.G.".
[2]Ins. by the Indian Tramways (Amdt.) Act, 1911 (5 of 1911), s. 7.

45. Application by local authorities of local funds to tramways.—(1) The fund to or with the control or management of which the local authority of a municipality, cantonment or district is entitled or entrusted shall, notwithstanding anything in any enactment respecting the purposes to which that fund may be applied, be applicable, subject to the control of the [1][appropriate Government], to the payment of expenses incidental to the exercise of the powers and functions which may be vested in, or exercised by, a local authority under this Act.

(2) The fund shall also be applicable, with the previous sanction of the [1][appropriate Government], to a guarantee of the payment of interest on money to be applied, with the concurrence in writing of the local authority, within the limits of the local area under its control, to any of the purposes to which the fund might be applied by the local authority under sub-section (1).

[2][(3) In this section 'the appropriate Government' means the Government, [3][Federal] or Provincial, whose executive authority extends over the local authority in question.]

46. Extension of Act to existing tramways. The [1][Government] may, with the consent of the local authority and road-authority and of the promoter and his lessee (if any), extend any part of this Act, or any rules made under this Act either with or without modification, to the whole or any part of a tramway constructed, or authorized by the [1][Government] to be constructed, before the passing of this Act, and may withdraw any part of the Act or any rules so extended.

47. Prohibition of construction of tramways except under this Act.—(1) A tramway of which the construction has not been authorized by the [1][Government] before the passing of this Act shall not, after the passing of this Act, be constructed for public traffic in any place to which this Act extends, except in pursuance of an order made under this Act.

(2) A person constructing a tramway in contravention of sub-section (1) of this section,

or after the passing of this Act maintaining or using for public traffic, otherwise than in pursuance of an order made under this Act, a tramway which was not constructed, or authorized by the [1][Government] to be constructed, before the passing of this Act,

shall be liable, on the complaint of the [1][Government] or local authority, to double the penalty to which a promoter acting otherwise than in accordance with an order is liable under section 27.

48. Transfer of control on exclusion of local area from circle of local authority. If at any time a local area comprising a tramway to which this Act or any part thereof or any rule thereunder applies ceases to be included in the circle of a local authority, the functions of that authority under this Act, or the part thereof or the rule thereunder, and under the order (if any), shall, in respect of that local area, devolve on the [1][Government] or, if that Government so directs, on the local authority of the circle in which the tramway has been included.

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[1]Subs. by A.O., 1937, for "L.G.".
[2]Sub-section (3) ins. *ibid.*,
[3]Subs. by F. A. O., 1975, Art. 2 and Table, for "Central".

49. [*Explanation and amendment of section* 54 *of Railway Act.*] *Rep. by the Railways Act,* 1890 *(IX of* 1890), *s.* 2 *and Sch. I.*

50. Powers of Government exercisable from time to time. All powers conferred by this Act on [1][the Government] may be exercised from time to time as occasion requires.

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Date: 05-09-2024

[1]The original words a "L.G.". have successively been amended by A.O., 1937 and A.O., 1964, Art. 2 and Sch., to read as above.

THE TREASURE-TROVE ACT, 1878

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THE TREASURE-TROVE ACT, 1878

[1]ACT No. VI Of 1878

[*13th February,* 1878]

An Act to amend the law relating to Treasure-trove

Preamble. WHEREAS it is expedient to amend the law relating to treasure-trove; It is hereby enacted as follows:-

PRELIMINARY

Short title. This Act may be called the [2]* Treasure-trove Act, 1878.

Extent. It extends to [3][the whole of Pakistan.]

[4]* * * * * * *

2. [*Repeal of enactments*.] *Rep. by the Amending Act,* 1891 (*XII of* 1891).

3. Interpretation-clause. In this Act-

"Treasure." "treasure" means anything of any value hidden in the soil, or in anything affixed thereto:

"Col1ector." "Col1ector" means (1) any Revenue-officer in independent charge of a district, and (2) any officer appointed by the [3][Provincial Government] to perform the functions of a Collector under this Act.

"Owner." When any person is entitled, under any reservation in an instrument of transfer of any land or thing affixed thereto, to3 treasure in such land or thing, he shall, for the purposes of this Act, be deemed to be the owner of such land or thing.

PROCEDURE ON FINDING TREASURE

THE PAKISTAN CODE

4. Notice by finder of treasure. Whenever any treasure exceeding in amount or value ten rupees is found, the finder shall, as soon as practicable, give to the Collector notice in writing—

(a) of the nature and amount or approximate value of such treasure;

(b) of the place in which it was found;

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[1]For the Statement of Objects and Reasons, *see* Gazette of India, 1876, Pt. V., p. 1463; for discussions in Council, *see ibid.,* Supplement, pp. 1288 and 1326 ; *ibid.,* 1878 pp. 207 and 287.
This Act has been declared to be in force in Balochistan by the British Balochistan Laws Regulation, 1913 (2 of 1913), s. 3 ;
It has also been extended to the Leased Areas of Balochistan, *see* the Leased Areas (Laws) Order, 1950 (G.G. O. 3 of 1950); and also applied in the Federated Areas of Balochistan, *see* Gazette of India,1937, Pt. I, p.1499.
It has been applied to Phulera in the Excluded Area of Upper Tanawal to the extent the Act is applicable in the N.W.F.P., subject to certain modifications; and extended to the Excluded Area of Upper Tanawal (N.W.F.P.) other than Phulera with effect from such date and subject to such modifications as may be notified; *See* N.W.F.P. (Upper Tanawal) (Excluded Area) Laws Regulation, 1950.
[2]The word "Indian" rep. by the Federal Laws (Revision and Declaration) Act, 1951 (26 of 1951), s. 3 and II Sch.
[3]Subs. by the Central Laws (Statute Reform) Ordinance, 1960 (21 of 1960), s.3 and 2nd Sch. (with effect from the 14th October, 1955), for "all the Provinces and the Capital of the Federation" which had been subs. by A. O., 1949, Arts. 3(2) and 4, for "the whole of British India".
[4]The words "And it shall come into force at once" rep. by the Repealing and Amending Act, 1914 (10 of 1914).

(c) of the date of the finding; and either deposit the treasure in the nearest Government treasury, or give the Collector such security as the Collector thinks fit, to produce the treasure at such time and place as he may from time to time require.

5. Notification requiring claimants to appear. On receiving a notice under section 4, the collector shall after making such enquiry (if any) as he thinks fit, take the following steps (namely):-

(a) he shall publish a notification in such manner as the [1][Provincial Government] from time to time prescribes in this behalf, to the effect that on a certain date *(mentioning it)* certain treasure *(mentioning its nature, amount and approximate value)* was found in a certain place *(mentioning it)*; and requiring all persons claiming the treasure, or any part thereof, to appear personally or by agent before the Collector on a day and at a place therein mentioned, such day not being earlier than four months, or later than six months, after the date of the publication of such notification;

(b) when the place in which the treasure appears to the Collector to have been found was at the date of the finding in the possession of some person other than the finder, the Collector shall also serve on such person a special notice in writing to the same effect.

6. Forfeiture of right on failure to appear. Any person having any right to such treasure or any part thereof, as owner of the place in which it was found or otherwise, and not appearing as required by the notification issued under section 5, shall forfeit such right.

7. Matters to be enquired into and determined by the Collector. On the day notified under section 5, the Collector shall cause the treasure to be produced before him, and shall enquire as to and determine—

(a) the person by whom, the place in which, and the circumstances under which, such treasure was found; and

(b) as far as is possible, the person by whom, and the circumstances under which, such treasure was hidden.

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8. Time to be allowed for suit by person claiming the treasure. If, upon an enquiry made under section 7, the Collector sees reason to believe that the treasure was hidden within one hundred years before the date of the finding, by a person appearing as required by the said notification and claiming such treasure, or by some other person under whom such person claims, the Collector shall make an order adjourning the hearing of the case for such period as he deems sufficient, to allow of a suit being instituted in the Civil Court by the claimant, to establish his right.

9. When treasure may be declared ownerless. If upon such enquiry the Collector sees no reason to believe that the treasure was so hidden; or if, where a period is fixed under section 8, no suit is instituted as aforesaid within such period to the knowledge of the Collector; or if such suit is instituted within such period, and the plaintiff's claim is finally rejected; the Collector may declare the treasure to be ownerless.

[1]Subs. by A. O., 1937, for "L. G.".

Appeal against such declaration. Any person aggrieved by a declaration made under this section may appeal against the same within two months from the date thereof to the Chief Controlling Revenue-authority[1].

Subject to such appeal, every such declaration shall be final and conclusive.

10. Proceedings subsequent to declaration. When a declaration bas been made in respect of any treasure under section 9, such treasure shall, in accordance with the provisions hereinafter contained, either be delivered to the finder thereof, or be divided between him and the owner of the place in which it has been found in manner hereinafter provided.

11. When no other person claims as owner of place, treasure, to be given to finder. When a declaration has been made in respect of any treasure as aforesaid, and no person other than the finder of such treasure has appeared as required by the notification published under section 5 and claimed a share of the treasure as owner of the place in which it has been found, the Collector shall deliver such treasure to the finder thereof.

12. When only one such person claims and his claim is not disputed, treasure to be divided. When a declaration has been made as aforesaid in respect of any treasure, and only one person other than the finder so of such treasure has so appeared and claimed, and the claim of such person is not disputed by the finder, the Collector shall proceed to divide the treasure between the finder and the person so claiming according to the following rule (namely):-

If the finder and the person so claiming have not entered into any agreement then in force as to the disposal of the treasure, three-fourths of the treasure shall be allotted to such finder and the residue to such person. If such finder and such person have entered into any such agreement, the treasure shall be disposed of in accordance therewith:

Provided that the Collector may, in any case, if he think fit, instead of dividing any treasure as directed by this section,-

(a) allot to either party the whole or more than his share of such treasure, on such party paying to the Collector for the other party such sum of money as the Collector may fix as the equivalent of the share of such other party, or of the excess so allotted, as the case may be ; or

(b) sell such treasure or any portion thereof by public auction, and divide the sale-proceeds between the parties according to the rule hereinbefore prescribed:

Provided also that, when the Collector has by his declaration under section 9 rejected any claim made under this Act by any person other than the said finder or person claiming as owner of the place in which the treasure was found, such division shall not be made until after the expiration of two months without an appeal having been presented under section 9 by the person whose claim has been so rejected, or when an appeal has been so presented, after such appeal has been dismissed.

and shares to be delivered to parties. When the Collector has made a division under this section, at he shall deliver to the parties the portions of such treasure or the two money in lieu thereof, to which they are respectively entitled under such division.

[1]For definition of Chief Controlling Revenue-authority, *see* the General Clauses Act, 1897 (10 of 1897), s. 3 (9a).

13. In case of dispute as to ownership of place, proceedings to be stayed. When a declaration has been made as aforesaid in respect of any treasure, and two or more persons have appeared as aforesaid and each of them claimed as owner of the place where such treasure was found, or the right of any person who has so appeared and claimed is disputed by the finder of such treasure, the Collector shall retain such treasure and shall make an order staying his proceedings with a view to the matter being enquired into and determined by a Civil Court.

14. Settlement of such dispute. Any person who has so appeared and claimed may, within one month from the date of such order, institute a suit in the Civil Court to obtain a decree declaring his right; and in every such suit the finder of the treasure and all persons disputing such claim before the Collector shall be made defendants.

15. and division thereupon. If any such suit is instituted and the plaintiff's claim is finally established therein, the Collector shall, subject to the provisions of section 12 divide the treasure between him and the finder.

If no such suit is instituted as aforesaid or if the claims of the plaintiff's in all such suits are finally rejected, the Collector shall deliver the treasure to the finder.

16. Power to acquire the treasure on behalf of Government. The Collector may, at any time after making a declaration under section 9, and before delivering or dividing the treasure as hereinbefore provided, declare by writing under his hand his intention to acquire on behalf of the Government the treasure, or any specified portion thereof, by payment to the persons entitled thereto of a sum equal to the value of the materials of such treasure or portion, together with one-fifth of such value, and may place such sum in deposit in his treasury to the credit of such persons; and thereupon such treasure or portion shall be deemed to be the property of Government, and the money so deposited shall be dealt with, as far as may be, as if it were such treasure or portion.

17. Decision of Collector final, and no suit to lie against him for acts done *bona fide*. No decision passed or act done by the Collector under this Act shall be called in question by any Civil Court, and no suit or other proceeding shall lie against him for anything done in faith in exercise of the powers hereby conferred.

18. Collector to exercise powers of Civil Court. A Collector making any enquiry under this Act may exercise any power conferred by the Code of Civil Procedure[1] on a Civil Court for the trial of suits.

19. Power to make rules. The [2][Provincial Government] may, from time to time, make rules[3] consistent with this Act to regulate proceedings hereunder.

Such rules shall, on being published in the [4][official Gazette] have the force of law.

PENALTIES

[1]*See* now the Code of Civil Procedure, 1908 (Act 5 of 1908).
[2]Subs. by A.O., 1937, for "L. G."
[3]For rules made under this section, *see* different local Rules and Orders.
[4]Subs. by A.O., 1937, for "local Gazette".

20. Penalty on finder failing to give notice, etc. If the finder of any treasure fails to give the notice, or does not either make the deposit or give the security, required by section 4, or alters or attempts to alter such treasure so as to conceal its identity, the share of such treasure, or the money in lieu thereof to which he would otherwise be entitled, shall vest in [1][Government], and he shall, on conviction before a Magistrate, be punished with imprisonment for a term which may extend to one year, or with fine, or with both.

21. Penality on owner abetting offence under section 20. If the owner of the place in which any treasure is found abets, within the meaning of the Pakistan Penal Code (XLV of 1860), any offence under section 20, the share of such treasure, or the money in lieu thereof to which he would otherwise be entitled, shall vest in [1][Government], and he shall, on conviction before a Magistrate, be punished with imprisonment which may extend to six months, or with Fine, or with both.

SCHEDULE.-[*Rep. by the Amending Act,* 1891 *(XII of* 1891).]

THE PAKISTAN CODE

Date: 16-09-2024

[1]Subs. by A.O., 1961, Art. 2, for "Her Majesty" (with effect from the 23rd March, 1956).

THE USURIOUS LOANS ACT, 1918

CONTENTS

1. Short title and extent
2. Definitions
3. Re-opening of transactions
4. Insolvency proceedings

THE PAKISTAN CODE

THE USURIOUS LOANS ACT, 1918

[1]ACT No. X OF 1918

[*22nd March, 1918*]

An Act to give additional powers to Courts to deal in certain cases with usurious loans of money or in kind.

WHEREAS it is expedient to give additional powers to Courts to deal in certain cases with usurious loans of money or in kind ;

It is hereby enacted as follows :-

1. Short title and extent.— (1) This Act may be called the Usurious Loans Act, 1918.

[2][(2) It extends to the whole of Pakistan.]

(3) The [3][Provincial Government] may, by notification in the [4][official Gazette], direct that it shall not apply to any area, class of persons, or class of transactions which it may specify in its notification.

2. Definitions. In this Act, unless there is anything repugnant in the subject or context,—

(1) "Interest" means rate of interest and includes the return to be made over and above what was actually lent, whether the same is charged or sought to be recovered specifically by way of interest, or otherwise.

(2) "Loan" means a loan whether of money or in kind and includes any transaction which is, in the opinion of the Court, in substance a loan.

(3) "Suit to which this Act applies" means any suit-

(a) for the recovery of a loan made after the commencement of this Act ; or

(b) for the enforcement of any security taken or any agreement, whether by way of settlement of account or otherwise, made, after the commencement of this Act, in respect of any loan made either before or after the commencement of this Act ; [5][or

(c) for the redemption of any security given after the commencement of this Act in respect of any loan made either before or after the commencement of this Act.]

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[1]For Statement of Objects and Reasons, *see* Gazette of India, 1917. Pt. V, p. 86 ; for Report of Select Committee, *see ibid*., 1918, Pt. V., p. 47 ; and for Proceedings in Council, *see ibid*., 1917, Pt. VI, pp. 714, 815 and *ibid.*, 1918, Pt. VI, pp. 94 and 707.
This Act has been applied to Phulera in the excluded Area of Upper Tanawal to the extent the Act is applicable in the N.-W.F.P., subject to certain modifications ; and also extended to the Excluded Area of Upper Tanawal (N.-W F. P.) other than Phulera with effect from such date and subject to such modifications as may be notified. *see* N.-W. F. P. (Upper Tanawal) (Excluded Area) Laws Regulation, 1950.
It has been amended in the Punjab by the Punjab Act 7 of 1934 and in the N.-W.F.P. by the N.W.F.P Act 4 of 1935.
[2]Subs. by the Central Laws (Statue Refrom) Ordinance, 1960 (21 of 1960), s. 3 and 2nd Sch. (*with effect from the 14th October, 1955*), for the original sub-section (2) as amended by A. O., 1949 and the Federal Laws (Revision and Declaration) Act, 1951 (26 of 1951), s. 3.
It has also been extended to the Leased Areas of Balochistan, see the Leased Areas (Laws) Order, 1950 (G. G. O. 3 of 1950); and applied in the Federated Areas of Baluchistan see Gazette of India, 1937, Pt. I, p. 1499.
[3]Subs. By A. O., 1937, for "L.G".
[4]Subs by A. O., 1937, for "local official Gazette".
[5]Ins. by the Usurious Loans (Amdt.) Act, 1926 (28 of 1926), s. 2.

3. Re-opening of transactions.— (1) Notwithstanding anything in the Usury Laws Repeal Act, 1855 (XXVIII of 1855), where, in any suit to which this Act applies, whether heard *ex- parte* or otherwise, the Court has reason to believe,—

(a) that the interest is excessive ; and

(b) that the transaction was, as between the parties thereto, substantially unfair,

the Court may exercise all or any of the following powers, namely, may —

(i) re-open the transaction, take an account between the parties, and relieve the debtor of all liability in respect of any excessive interest ;

(ii) notwithstanding any agreement, purporting to close previous dealings and to create a new obligation, reopen any account already taken between them and relieve the debtor of all liability in respect of any excessive interest, and if anything has been paid or allowed in account in respect of such liability, order the creditor to repay any sum which it considers to be repayable in respect thereof ;

(iii) set aside either wholly or in part or revise or alter any security given or agreement made in respect of any loan, and if the creditor has parted with the security, order him to indemnify the debtor in such manner and to such extent as it may deem just :

Provided that, in the exercise of these powers, the Court shall not-

(i) re-open any agreement purporting to close previous dealings and to create a new obligation which has been entered into by the parties or any persons from whom they claim at a date more than [1][twelve] years from the date of the transaction ;

(ii) do anything which affects any decree of a Court.

Explanation.— In the case of a suit brought on a series of transactions the expression "the transaction" means, for the purposes of proviso (i), the first of such transactions.

(2) (a) In this section "excessive" means in excess of that which the Court deems to be reasonable having regard to the risk incurred as it appeared, or must be taken to have appeared, to the creditor at the date of the loan.

(b) In considering whether interest is excessive under this section, the Court shall take into account any amounts charged or paid, whether in money or in kind, for expenses, inquiries, fines, bonuses, premia, renewals or any other charges, and if compound interest is charged, the preiods at which it is calculated and the total advantage which may reasonably be taken to have been expected from the transaction.

[1]Subs. by the Usurious Loans (Amdt.) Act, 1926 (28 of 1926), s. 3, for "six".

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(c) In considering the question of risk, the Court shall take into account the presence or absence of security and the value thereof, the financial condition of the debtor and the result of any previous transactions of the debtor, by way of loan, so far as the same were known, or must be taken to have been known, to the creditor.

(d) In considering whether a transaction was substantially unfair, the Court shall take into account all circumstances materially affecting the relations of the parties at the time of the loan or tending to show that the transaction was unfair, including the necessities or supposed necessities of the debtor at the time of the loan so far as the same were known, or must be taken to have been known, to the creditor.

Explanation.—Interest may of itself be sufficient evidence that the transaction was substantially unfair.

(3) This section shall apply to any suit , whatever its form may be, if such suit is substantially one for the recovery of a loan or for the enforcement of any agreement or security in respect of a loan [1][or for the redemption of any such security].

(4) Nothing in this section shall affect the rights of any transferee for value who satisfies the Court that the transfer to him was *bona fide*, and that he had at the time of such transfer no notice of any fact which would have entitled the debtor as against the lender to relief under this section.

For the purposes of this sub-section, the word "notice" shall have the same meaning as is ascribed to it in Section 4 of the Transfer of Property Act, 1882 (IV of 1882).

(5) Nothing in this section shall be construed as derogating from the existing powers or jurisdiction of any Court.

4. Insolvency proceedings. On any application relating to the admission or amount of a proof of a loan in any insolvency proceedings, the Court may exercise the like powers as may be exercised under section 3 by a Court in a suit to which this Act applies.

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Date: 11-09-2024

[1]Ins. by the Usurious Loans (Amdt.) Act, 1926 (28 of 1926), s. 3.

THE WAR INJURIES (COMPENSATION INSURANCE) ACT, 1943

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2. Definitions
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4. Limitation on right to receive compensation otherwise than under this Act and Ordinance VII of 1941
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[1][THE FIRST SCHEDULE]

THE SECOND SCHEDULE

THE PAKISTAN CODE

THE WAR INJURIES (COMPENSATION INSURANCE) ACT, 1943

[1]ACT NO. XXIII OF 1943

[*2nd September, 1943*]

An Act to impose on employers a liability to pay compensation to workmen sustaining war injuries and to provide for the insurance of employers against such liability

WHEREAS it is expedient to impose on employers a liability to pay compensation to workmen sustaining war injuries and to provide for the insurance of employers against such liability;

It is hereby enacted as follows :—

1. Short title, extent and commencement.—(1) This Act may be called the War Injuries (Compensation Insurance) Act, 1943.

[2][(2) It extends to the whole of Pakistan.]

(3) It shall come into force on such date[3] as the [4][Federal Government] may, by notification in the official Gazette, appoint.

2. Definitions.—In this Act, unless there is anything repugnant in the subject or context,—

(a) "adult" and "minor" have the meanings assigned to those expressions in the Workmen's Compensation Act, 1923 (V of 1923);

(b) "employer" includes any body of persons whether incorporated or not and any managing agent of an employer and the legal representative of a deceased employer, and when the services of a workman are temporarily lent or let on hire to another person by the person with whom the workman has entered into a contract of service or apprenticeship, means the latter person while the workman is working for that other person;

(c) "the Fund" means the War Injuries Compensation Insurance Fund Constituted under section 11;

(d) "gainfully occupied person" and "war injury" have the meanings assigned to those expressions in the War Injuries Ordinance, 1941 (Ord. VII of 1941).

(e) "partial disablement" means, where the disablement is of a temporary nature such disablement as reduces the earning capacity of a workman in any employment in which he was engaged at the time the injury was sustained, and where the disablement is of a permanent nature, such disablement as reduces his earning capacity in any employment which he was capable of under taking at that time;

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[1]The Act has been applied to Baluchistan by Notifn. No. 183-F., dated the 20th October, 1943, *see* Gazette of India, 1943, Pt. I, p. 1157.
[2]Subs. by the Central Laws (Statute Reform) Ordinance, 1960 (XXI of 1960), s. 3 and 2nd Sch. (*with effect from the 14th October, 1955*), for sub-section (2), as amended by A. O., 1949.
[3]The 16th November, 1943, *see* Gazette of India, 1943, Pt. I, p. 1258.
[4]Subs. by F. A. O., 1975, Art. 2 and Table, for "Central Government".

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Provide that every injury specified in items 2 to 9 of [1][the First Schedule] shall be deemed to result in permanent partial disablement;

(f) "prescribe" means prescribed by rules made under section 20 ;

[2][(ff) "termination of hostilities" means the date declared under clause (3) of section 2 of the War Injuries Ordinance, 1941 (Ord. VII of 1941), to be the date of termination of hostilities;]

(g) "total disablement" means such disablement, whether of a temporary or permanent nature, as incapacitates a workman for all work which he was capable of performing at the time the injury was sustained :

Provided that permanent total disablement shall be deemed to result from the permanent total loss of the sight of both eyes or from an injury specified in item 1 of [1][the First Schedule] or from any combination of injuries specified in items 2 to 9 of [1][the First Schedule] where the aggregate percentage of disability as specified in that Schedule against those injuries amounts to one hundred percent.

(h) the "Scheme" means the War Injuries Compensation Insurance Scheme referred to in sub-section (1) of section 7 ;

(i) "wages" means wages as defined in the Workmen's Compensation Act, 1923, and "monthly wages" has of the Workmen's Compensation Act, 1923 (VIII of 1923), and shall be calculated for the purposes of this Act in the manner laid down in that section ;

(j) "workman" means any person (other than an a person whose employment is of a casual nature and who is employed otherwise than for the purposes of the employers' trade or business) who is employed in any of the employments specified in section 6.

3. Compensation payable under the Act by the whom and how payable.—(1) There shall, subject to such conditions as may be specified in the Scheme, be payable by an employer, in respect of a war injury sustained by a gainfully occupied person who is a workman to whom this Act applies, compensation, in addition to any relief provided under the War Injuries Ordinance, 1941(Ord. VII of 1941), of the amount and kind provided by section 5:

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Provided that where an employer has taken out a policy of insurance as required by sub-section (1) of section 9 and has made all payments by way of premium thereon which are subsequently due from him in accordance with the provisions of the Scheme, or where by the provisions [3][of sub-section (1) of section 9 or] of subsection (2) of section 12 the employer is not required to insure, the [4][Federal Government] shall assume and discharge on behalf of the employer the employer's liability to pay compensation under this sub-section.

(2) The compensation payable under this Act shall be payable in accordance with the provisions made in this behalf contained in the Scheme.

(3) This section shall be binding on the [5][Government].

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[1]Subs. by the War Injuries (Compensation Insurance) (Amdt.) Ordinance, 1944 (LIV of 1944), s. 2, for "the Schedule".
[2]Subs. by the JWar Injuries (Compensation Insurance) (Amdt.) Ordinance, 1965 (XXXIV of 1965), s. 2, for clause (ff), which was ins. by the War Injuries (Compensation Insurance) Amdt. Ordinance, 1945 (XLI of 1945), s. 2.
[3]Ins. by the War Injuries (Compensation Insurance) Amdt. Ordinance, 1944 (LIV of 1944), s. 3.
[4]Subs. by F. A. O., 1975, Art. 2 and Table, for "Central Government".
[5]Subs. by A. O., 1961, Art. 2, for "Crown" (*with effect from the 23rd March, 1956*).

4. Limitation on right to receive compensation otherwise than under this Act and Ordinance VII of 1941.—(1) Where any person has a right apart from the provisions of this Act and of the War Injuries Ordinance, 1941 (Ord. VII of 1941), to receive compensation (whether in the form of gratuity, pension, compassionate payment or otherwise) or damages from an employer in respect of a war injury in respect of which compensation is payable under this Act, the right shall extend only to so much of such compensation or damages as exceeds the amount of compensation payable under this Act.

5. Amount of compensation.—(1) The compensation payable under this Act shall be as follows, namely:—

(a) where death results from the injury—

(i) in the case of an adult-the amount payable in a like case under the Workmen's Compensation Act, 1923 (VIII of 1923), reduced by seven hundred and twenty rupees, and

(ii) in the case of a minor-two hundred rupees ;

(b) where permanent total disablement results from the injury—

(i) in the case of an adult-the amount payable in a like case under the Workmen's Compensation Act, 1923 (VIII of 1923), reduced by one thousand and eight rupees, and

(ii) in the case of a minor-the monthly payment payable in a like case to an adult under the Scheme made under the War Injuries Ordinance, 1941(Ord. VII of 1941), for so long as he remains a minor, and thereafter as in the following sub clause;

(c) where permanent partial disablement results from the injury—

(i) in the case of an injury specified in [1][the First Schedule]-such percentage of the compensation which would have been payable in the case of permanent total disablement as is specified therein as being the percentage of disablement;

(ii) in the case of an injury not specified in [1][the First Schedule], the percentage of such compensation specified in [1][the First Schedule], for a disablement held by a competent medical authority acting under the Scheme made under the War Injuries Ordinance, 1941(Ord. VII of 1941), to be of corresponding degree ;

(iii) where more injuries than one are sustained-the aggregate of the compensation payable in respect of those injuries, so however as not to exceed in any case the compensation which would have been payable if permanent total dilatability had resulted from the injuries;

[1]Subs. by the War Injuries (Compensation Insurance) Amdt. Ordinance, 1944 (LIV of 1944), s. 4, for "the Schedule".

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(d) where temporary disablement, whether total or partial, results from the injury—

(i) in the case of an adult-the half-monthly payments payable in a like case under the Workmen's Compensation Act, 1923 (VIII of 1923), reduced in each case for so long as he receives any payment under the Scheme made under the War Injuries Ordinance, 1941(Ord. VII of 1941), by seven rupees, and

(ii) in the case of a minor the half monthly payments payable in a like case under the Workmen's Compensation Act, 1923 (VIII of 1923), for so long as he remains a minor, and thereafter as in the foregoing sub-clause.

(2) Where the monthly wages of a workman are more than three hundred rupees the compensation payable under this Act shall be the amount payable under the provisions of sub-section (1) in the case of a workman whose monthly wages are more than two hundred rupees.

6. Workmen to whom the Act applies.—The workmen to whom this Act applies are—

(a) workmen employed in any employment or class of employment to which the [1][Pakistan Essential Services (Maintenance) Act, 1952, has been declared under section 3 thereof] to apply, whether such declaration is or not subsequently revoked;

(b) workmen employed in any factory as defined in clause (j) of section 2 of the Factories Act, 1934;

(c) workmen employed in any mine within the meaning of the Mines Act, 1923;

(d) workmen employed in any major port ;

(e) workmen employed on any estate which is maintained for the purpose of growing cinchona, coffee, rubber or tea, and on which on any day in the preceding twelve months twenty-five or more persons have been employed as workmen ;

(f) workmen employed in any employment specified in this behalf by the [2][Federal Government] by notification in the official Gazette.

7. War Injuries Compensation Insurance Scheme.—(1) The [2][Federal Government] shall, by notification in the official Gazette, put into operation a scheme to be called the War Injuries Compensation Insurance Scheme whereby provision is made for all matters necessary to give effect to the purposes of this Act and whereby the [2][Federal Government] undertakes, in relation to employers of workmen to whom this Act applies, the liabilities of insuring such employers against liabilities incurred by them to workmen under this Act and the Scheme.

[1]Subs. by the War Injuries (Compensation Insurance) (Amdt.) Ordinance, 1965 (XXXIV of 1965), s. 3, for "Essential Services (Maintenance) Ordinance, 1941, has been declared under section 3 of that Ordinance".
[2]Subs. by F. A.O., 1975, Art. 2 and Table, for "Central Government".

(2) The Scheme shall secure that any liability of the [1][Federal Government] as insurer under the Scheme is determined by a policy of insurance issued in the prescribed form by a person acting on behalf of the [1][Federal Government].

(3) The Scheme may provide that it shall come into operation or shall be deemed to have come into operation on such date [2][not earlier than the date declared under clause (3) of section 2 of the War Injuries Ordinance, 1941, to be the date of the commencement of hostilities,] as may be specified therein.

(4) The Scheme may be amended at any time by the [1][Federal Government].

(5) Without prejudice to the generality of the provisions of sub-section (1), the Scheme may—

(a) make provisions regulating the payment of the compensation payable under this Act and the Scheme, including provision for punishment by fine not exceeding one thousand rupees for the contravention of any requirement of the Scheme;

(b) make provision specifying the persons to whom and the proportions and manner in which payments under this Act shall be made;

(*c*) specify conditions or circumstances which will disentitle a workman to the compensation payable under this Act, and make it an express or implied condition of any policy of insurance issued under the Scheme that the payment of compensation in defiance of such specification is not covered by the policy;

(*d*) specify the conditions or circumstances under which the compensation payable to a workman may be withheld, cancelled, reduced or reviewed if the award made under the Scheme made under the War Injuries Ordinance, 1941 (Ord. VII of 1941), is withheld, cancelled, reduced or reviewed ;

(*e*) provide for cases in which an employer has of his own accord undertaken a part or the whole of the liability imposed by this Act ;

(*f*) provide for the final assessment of the total premium due on a policy of insurance under the Scheme [3][either as the equivalent of advance payments of premium already made by an employer, or as a percentage of the total wages hills of an employer for the periods with reference to which the amount of any advance payments made by him was fixed or] as a percentage of the total wages bill of an employer for a period of not less than twelve or more than fifteen months immediately preceding the termination of [4][* * *] hostilities, and for the assessment of the total premium due on a policy which has ceased to be in force before the termination of [4][* *] hostilities owing to the employer having gone our of business;

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[1]Subs. by F. A.O., 1975, Art. 2 and Table, for "Central Government".
[2]Ins. by the War Injuries (Compensation Insurance) (Amdt.) Ordinance, 1965 (XXXIV of 1965), s. 4.
[3]Ins. by the War Injuries (Compensation Insurance) Amdt. Ordinace, 1944 (LIV of 1944), ss. 5 and 6.
[4]The original words "the present' omitted by the War Injuries (Compensation Insurance) (Amdt.) Ordinance, 1965 (XXXIV of 1965), s. 4.

(*g*) provide for the recovery from an employer of the total premium due on policy of insurance including provision for its recovery by periodic advance payments of an amount based on a percentage of his total wages bill for any prescribed period, the separate funding of the payments so made by each employer, and the eventual adjustment of the total premium as finally assessed against the total of such periodic payments;

[1][Provided that, where the amount of the periodic payment based on the total wages bill of the prescribed period is less than eight rupees, it shall be increased to eight rupees :]

Provided [1][further] that the first of such periodic payments shall [1][subject to the aforesaid minimum of eight rupees] be an amount representing not more than four annas per hundred rupees of the wages bill for the period by reference to which the amount of the payment is fixed :

Provided further that such periodic payments shall not be more frequent than once in each quarter of a year:

Provided further that the rate of any periodic payment after the first shall [1][subject to the aforesaid minimum of eight rupees] not be higher than the rate estimated to raise the amount in the Fund after repayment of the advances, if any, paid into the Fund by the [2][Federal Government] under sub-section (2) of section 11, to a sum of rupees fifteen lakhs.

8. Employment of agents by the Federal Government.—The [2][Federal Government] may employ or authorise the employment of any person or firm to act as its agents for any of the purposes of this Act, and may pay to persons or firms so employed such remuneration as the [2][Federal Government] thinks fit.

9. Compulsory insurance.— (1) Every employer of workmen to whom this Act applies or is subsequently made applicable [1][except an employer whose total wages bill for any quarter after the commencement of this Act has never exceeded fifteen hundred rupees] shall, before such date as may be prescribed, or before the expiry of such period as may be prescribed after his having first become such an employer, take out a policy of insurance issued in accordance with the Scheme, whereby he is insured until the termination of [3][* *] hostilities or until the date, if any, prior to the termination of [3][* *] hostilities at which he ceases to be an employer to whom this section applies, against all liabilities imposed on him by this Act.

(2) Whoever contravenes the provisions of sub-section (1) or, having taken out a policy of insurance as required by that sub-section, fails to make any payment by way of premium thereon which is subsequently due from him in accordance with the provisions of the Scheme shall be punishable with fine which may extend to one thousand rupees and shall also be punishable with a further fine which may extend to five hundred rupees for every day after having been so convicted on which the contravention or failure continues.

(3) This section shall not bind the [4][Government] nor, unless the [5][Federal Government] by notification in the official Gazette otherwise orders, any [6][Government] Railway.

[1]Ins. by the War Injuries (Compensation Insurance) Amdt. Ordinace, 1944 (LIV of 1944), ss. 5 and 6.
[2]Subs. by F. A.O., 1975, Art. 2 and Table, for "Central Government".
[3]The original words "the present' omitted by the War Injuries (Compensation Insurance) (Amdt.) Ordinance, 1965 (XXXIV of 1965), s. 5.
[4]Subs. by A. O., 1961, Art. 2, for "Crown" (*with effect from the 23rd March, 1956*).
[5]Subs. by F. A.O., 1975, Art. 2 and Sch., for "Provincial Government".
[6]Subs. by A. O., 1961, Art. 2 and Sch., for "Federal" (*with effect from the 23rd March, 1956*).

10. Prohibition of certain insurance business.—(1) After the date on which the Scheme is put into operation no person shall, except as a person authorised by the [1][Federal Government] as its agent to issue policies in pursuance of the Scheme, carry on the business of insuring employers in [2][Pakistan] against the liabilities for insurance against which the Scheme provides.

(2) Nothing in sub-section (1) applies to any policy of insurance entered into before the date on which the Scheme is put into operation and current after that date or to any policy of insurance covering liabilities undertaken in excess of the liabilities imposed by this Act.

(3) Whoever contravenes the provisions of sub-section (1) shall be punishable with fine which may extend to five thousand rupees and with a further fine which may extend to one thousand rupees for every day after the first on which the contravention continues.

11. War Injuries Compensation Insurance Fund.—(1) The [3][Federal Government] shall establish a fund for the purposes of this Act to be called the War Injuries Compensation Insurance Fund into which shall be paid all sums received by the [3][Federal Government] by way of insurance premiums under the Scheme or by way of payments made on composition of offences under section 17 [4][* * *] or by way of expenses or compensation awarded by a Court under section 545 of the Code of Criminal Procedure, 1898 (V of 1898), out of any fine imposed under this Act, or by way of penalties imposed under the Scheme, and out of which shall be paid all sums required for the discharge by the [3][Federal Government] of any of its liabilities under this Act or the Scheme, or for the payment by the [3][Federal Government] of the remuneration and expenses of agents employed for the purposes of the Scheme, or for the payment by the [3][Federal Government] of the costs of administering the Scheme:

Provided that no payment from the Fund shall be made in discharge of any liability of the [5][Government] to pay compensation to workmen employed by it.

(2) If at any time the sum standing to the credit of the Fund is less than the sum for the time being necessary for the adequate discharge of the purposes of the Fund, the [3][Federal Government] shall pay into the Fund as an advance out of general revenues such amount as the [3][Federal Government] considers necessary.

(3) If when all payments which have to be made out of the Fund have been defrayed, any balance remains in the Fund, the balance shall be constituted into a Fund to be utilized and administered by the [3][Federal Government] for the benefit of workmen.

(4) The [3][Federal Government] shall prepare in such form and manner as may be prescribed and shall publish every six months an account of all sums received into and paid out of the Fund.

12. Principals and contractors.—(1) Where a person (in this section referred to as the principal) uses, in the course of or for the purposes of his trade or business, the services of workmen temporarily lent or let on hire to him by arrangement with another person with whom the workmen have entered into contracts of service or apprenticeship,

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[1]Subs. by F. A.O., 1975, Art. 2 and Sch., for "Provincial Government".
[2]Subs. by the Central Laws (Statute Reform) Ordinance, 1960 (XXI of 1960), s. 3 and 2nd Sch. (*with effect from the 14th October, 1955*), for "the Provinces and the Capital of the Federation" which had been subs. by A. O., 1949, for "British India".
[3]Subs. by F. A.O., 1975, Art. 2 and Table, for "Central Government".
[4]Certain words which were first ins. by the War Injuries (Compensation Insurance) (Amdt.) Ordinance, 1944 (LIV of 1944), s. 7 and then amended by A. O., 1949, omitted by the War Injuries (Compensation Insurance) (Amdt.) Ordinance, 1965 (XXXIV of 1965), s. 6.
[5]Subs. by A. O., 1961, Art. 2, for "Crown" (*with effect from the 23rd March, 1956*.)

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or in the course of or for the purposes of his trade or business, contracts with any other person for the execution by or under such other person of the whole or any part of any work which is ordinarily part of the trade or business of the principal (either such other person being in this section referred to as the contractor) the principal shall obtain from the contractor the name of the agent of the [1][Federal Government] acting under section 8 with whom he intends to insure, and shall report to that agent the existence of his arrangement or contract with the contractor.

(2) Notwithstanding anything elsewhere contained in this Act, in any such case as is referred to in sub-section (1), it shall not be necessary for the contractor to insure against the liabilities imposed on him by this Act in respect of workmen employed by him whose services are lent or let on hire on such an arrangement or used in the execution of work on such a contract as is referred to in sub-section (1), where the arrangement or contract is for a term of less than one month.

(3) The Scheme may make provision for the supply by a contractor to a principal of any information necessary to enable the purposes of this section to be carried out including provision for punishment by fine not exceeding one thousand rupees for the contravention of any requirement of the Scheme.

13. Power of Federal Government to obtain information.—(1) Any person authorised in this behalf by the [1][Federal Government] may, for the purpose of ascertaining whether the requirements of this Act and of the Scheme have been complied with, require any employer to submit to him such accounts, books or other documents or to furnish to him such information or to give such certificates as he may reasonably think necessary.

(2) Whoever willfully obstructs any person in the exercise of his powers under this section or fails without reasonable excuse to comply with any request made thereunder shall, in respect of each occasion on which any such obstruction or failure takes place, be punishable with fine which may extend to one thousand rupees.

(3) Whoever in purporting to comply with his obligations under this section knowingly or recklessly makes a statement false in a material particular shall be punishable with fine which may extend to one thousand rupees.

14. Recovery of premium unpaid.—(1) Without prejudice to the provisions of sub-section (2) of section 9, where any person has failed to insure as or to the full amount required by this Act and the Scheme and has thereby evaded the payment by way of premium of any money which he would have had to pay in accordance with the provisions of the Scheme but for such failure, an officer authorised in this behalf by the [1][Federal Government] may determine the amount payment of which has been so evaded, and the amount so determined shall be payable by such person and shall be recoverable from him as provided in sub-section (2).

(2) Any sum payable in accordance with the provisions of the Scheme by way of premium on a policy of insurance issued under the Scheme and any amount determined as payable under sub-section (1) shall be recoverable as an arrear of land-revenue.

(3) Any person against whom a determination is made under sub-section (1) may, within the prescribed period, appeal against such determination to the [1][Federal Government] whose decision shall be final.

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[1]Subs. by F. A.O., 1975, Art. 2 and Table, for "Central Government".

15. Payment of compensation where employer has failed to insure.—Where an employer has failed to take out a policy of insurance as required by sub-section (1) of section 9, or having taken out a policy of insurance as required by that sub-section has failed to make the payments by way of premium thereon which are subsequently due from him in accordance with the provisions of the Scheme, payment of any compensation for the payment of which he is liable under this Act may be made out of the Fund, and the sum so paid together with a penalty of such amount not exceeding the sum so paid as may be determined by an officer authorised in this behalf by the [1][Federal Government] shall be recoverable from the employer as an arrear of land revenue for payment into the Fund.

16. Limitation of prosecutions.—No prosecution for any offence punishable under this Act shall be instituted against any person except by or with the consent of the [1][Federal Government] or an authority authorised in his behalf by the [1][Federal Government.]

17. Compensation of offences.—Any offence punishable under sub-section (2) of section 9 may, either before or after the institution of the prosecution, be compounded by the [1][Federal Government] or by any authority authorised in this behalf by the [1][Federal Government] on payment for credit to the Fund of such sum as the [1][Federal Government] or such authority, as the case may be, thinks fit.

18. Bar of legal proceedings.—(1) No suit, prosecution or other legal proceeding shall lie against any person for anything which is in good faith done or intended to be done under this Act.

(2) No suit shall be maintainable in any civil Court against the [1][Federal Government] or a person acting as its agent under section 8 for the refund of any money paid or purporting to have been paid by way of premium on a policy of insurance taken out or purporting to have been taken out under this Act.

19. Power to exempt employers.—The [1][Federal Government] shall exempt any employer from the provisions of this Act on the employer's request, if satisfied that he has before the commencement of this Act entered into a contract with insurers substantially covering the liabilities imposed on him by this Act, for so long as that contract continues.

20. Power to make rules.—(1) The [1][Federal Government] may, by notification in the official Gazette, make rules to carry into effect the provisions power, of this Act.

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(2) Without prejudice to the generality of the foregoing such rules may prescribe—

(a) the principles to be followed in ascertaining the total wages bill of an employer including provision for the exclusion therefrom of certain categories of wages or of certain elements included in the definition of wages;

(b) the form of the policies of insurance referred to in sub-section (2) of section 7 ;

(c) the period referred to in clause (g) of sub-section (5) of section 7 ;

[2][* * * * * * *]

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[1]Subs. by F. A.O., 1975, Art. 2 and Table, for "Central Government".

[2]Clause (d) omitted by the War Injuries (Compensation Insurance) Amendment Ordinance, 1944 (LIV of 1944),s.8.

(e) the date and the period referred to in sub-section (5) of section 7 ;

(f) the form of and the manner of preparing and publishing the account referred to in sub-section (4) of section 11 ;

(g) the periods referred to in sub-section (3) of section 14.

[1][Application of the Scheme to Acceding State or non-Acceding State.] Omitted by the War Injuries (Compensation Insurance) (Amdt.) Ordinance, 1965 (XXXIV of 1965), 8. 7.

[1][THE FIRST SCHEDULE]

[*See section 2 and 5* (1)]

Item No.	Injury	Percentage of disability.
1	Loss of two or more limbs.	
	Lunacy.	
	Jacksonian epilepsy.	100
	Very severe facial disfigurement.	
2	Loss of right arm above or at the elbow.	90
3	Severe facial disfigurement.	
	Total loss of speech.	
	Loss of left arm above or at the elbow.	70
	Loss of right arm below the elbow.	
	Loss of leg at or above the knee.	
4	Loss of left arm below the elbow.	
	Loss of leg below the knee.	60
	Permanent total loss of hearing.	
5	Loss of one eye.	
	Loss of right thumb or four fingers of right hand.	50
6	Loss of all toes of both feet above knuckle.	
	Loss of left thumb or four fingers of left/ hand or three fingers of right hand.	40
7	Loss of all toes of one foot above knuckle.	
	Loss of all toes of both feet at or below knuckle.	30

[1]This section had successively an amended by the War injuries (Compensation Insurance) Amendment Ordinance, 1944 (LIV of 1944), s.9A.O., 1949, the Repealing and Amending Ordinance, 1961 (I of 1961), s.3 and 2nd Sch., and A.O., 1964, Art. And Sch.

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8	Limited restriction of movement of joints through injury without penetration, limited functions of limb through fracture.	
	Loss of two fingers of either hand.	20
	Compound fracture of thumb or two or	
	more fingers of either hand with impaired function.	
9	Loss of one phalanx of thumb.	
	Loss of index finger.	10
	Loss of great toe.	

THE SECOND SCHEDULE

Omitted by A.O., 1949

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Dated: 05.04.24

THE WEIGHTS AND MEASURES (INTERNATIONAL SYSTEM) ACT, 1967

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18. [Omitted.]

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25. [Omitted.]
26. [Omitted.]
27. [Omitted.]
28. [Omitted.]
29. [Omitted.]
30. [Omitted.]
31. [Omitted.]
32.. Validity of weights and measures duly stamped.
33. [Omitted.]
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THE FIRST SCHEDULED
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THE WEIGHTS AND MEASURES (INTERNATIONAL SYSTEM) ACT, 1967

[1]Act No. V of 1967

[10th June, 1967]

An Act to establish standards of weights and measures based on the 2 [International] system.

WHEREAS it is expedient to establish standards of weights and measures based on the 3 [International] system and to provide for matters connected therewith;

It is hereby enacted as follows:—

1. Short title, extent and commencement.— This Act may be called the Weights and Measures 3 [International] system Act, 1967.

(2) It extends to the whole of Pakistan.

(3) It shall come into force on such date as the [4][Federal Government] may, by notification in the official Gazette, appoint and different dates may be appointed in respect of different provisions of this Act, or for different areas or for different classes of goods or classes of undertakings.

2. Definitions. In this Act, unless there is anything repugnant in the subject or context**,**—

(1) "ampere" means that constant current which, flowing in two parallel straight conductors of infinite length, of negligible circular cross section and placed at a distance of one meter from each other in vacuum, produces a force of 2 x 10 —7 newtons per metre length between the conductors;

(2) "Assistant Controller" means an Assistant Controller of Weights and Measures appointed under section 14;

(3) "candela" means one-sixtieth part of luminous intensity normally emitted by one centimetre square of integral radiator (black body) at the temperature of solidification of platinum;

(4) "commercial weight or measure" means a weight or measure used or intended to be used in any transactions of trade or commerce;

(5) "Controller" means the Controller of Weights and Measures appointed under section 14 and includes a Deputy Controller of Weights and Measures and an Assistant Controller of Weights and Measures;

(6) "Deputy Controller" means a Deputy Controller of Weights and Measures appointed under section 14;

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[1]For Statement of Objects and Reasons, see Gaz. of P. 1966, Ext. (Dacca),p.213.

The Act has been brought into force with ef ect from the 1st day of july, 1974, in respect of certain undertaking specified in S.R.O. 893 (I)/74, see , Gaz. of P., 974, Ext.pt. II, pp. 1070 1071.

For such Notifin.enforcing the Act in respect of certain undertaking see Gaz. of p., 1974, Ext.pt. II.pp. 10701071 and 1782; *ibid.*, (Islamabad), p.1922; *ibid*., 1975, Ext. Pt.III., p. 18, ibid, p.841.

[2]Subs. by the Weights and Measures (Metric System) (Amdt.) Act, 1974 (29 of 1974),s.2, for "Metric".

[3]Subs. *ibid*., for "Metric".

[4]Subs. *ibid*., for "Central Government".

(7) "First General Conference of Weights and Measures" means the Conference General *des poids et* measures held at Paris in 1889;

(8) "Inspector" means an Inspector of Weights and Measures appointed under section 14 and includes an Assistant Inspector of Weights and Measures;

(9) "International Bureau of Weights and Measures" means the Bureau International des poids et measures *et Sevres* in France;

(10) "kilogram" means the mass of the Platinum-irridium cylinder deposited at the International Bureau of Weights and Measures and declared international prototype of the kilogramme by the First General Conference of Weights and Measures;

(11) "litre" is the volume occupied by the mass of one kilogram of pure air free water at the temperature of its maximum density and under normal atmospheric pressure;

(12) "measuring instrument" includes any instrument for measuring length, area, volume or capacity but does not include a weighing instrument;

(13) "metre" means the length equal to 1,650,763.73 wave-lengths, in vacuum, of the radiation corresponding to the transition between the 2p and 5d levels of the Krypton atom of mass 86;

1 [(13a) "mole" means the amount of substance of a system which contains as many elementary entities as there are atoms in 0.012 Kilograms of carbon 12 ;]

(14) "normal atmospheric pressure" means the pressure exercised by 1,01, 325 newtons per square metre, a newton being the force which imparts to a mass of one kilogram an acceleration of one meter per second per second;

(15) "prescribed" means prescribed by rules;

(16) "reference standards" means the sets of weights and measures prepared under section 10;

(17) "rules" means rules made under this Act;

[2][(18) "second" means the duration of 9,192, 631, 770 periods of the radiation corresponding to the transition between the two hyperfine levels of the ground state of the cesium-133 atom;]

(19) "secondary standard" means the sets of weights and measures prepared under Section 11;

(20) "stamping" means marking in such manner as to be, so far as practicable, indelible and includes casting, engraving, etching and branding;

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[1] Ins. by the Weights and Measures (Metric System) (Amdt.) Act, 1974 (29 of 1974), s.3.
[2] subs. By the Weights and Measures (Matric system) (Amdt.) Act, 1974 (29 of 9074), s.3 for cl. 18

[1][(20 A) "standard instrument" means the set of weighing instruments and measuring instruments prepared under section 13;]

(21) "standard measure" means such a standard of measure specified in sub-section (1) of section 8, as does not relate to mass;

(22) "standard weight" means such a standard of measure specified in sub-section (1) of section 8 as relates to mass;

(23) "trade", with its grammatical variations, means any sale, bargain, transaction, dealing or contract and includes collection of tolls and duties;

(24) "verify", with its grammatical variations, means verify or reverify in accordance with the provisions of this Act and the rules;

(25) "weighing instrument" means any instrument for measuring weight and inciudes scales, with the weights belonging thereto, scalebeams, balances, spring balances, steelyards and other weighing machines;

2 [(25A) "working instrument" means the set of weighing instruments and measuring instruments prepared under section 13A;]

(26) "working standard" means the sets of weights and measures prepared under section 12.

3. Certain units of measure.— (1) The unit of electric current shall be an ampere.

(2) The unit of luminous intensity shall be a candela.

[2]**[4. Scale of temperature.**— The kelvin, unit of thermodynamic temperature, is the fraction 1/273.16 of the thermodynamic temperature of the triple point of water.].

5. Certain primary units of measure.— (1) The primary unit of mass shall be a kilogram:

Provided that in the case of pearls and precious stones the primary unit of mass shall be a carat which is equal to one five-thousandth of one kilogram.

(2) The primary unit of length shall be a metre.

(3) The primary unit of area shall be the square metre.

(4) The primary unit of volume shall be the cubic metre.

(5) The primary unit of capacity shall be a litre.

(6) The primary unit of time shall be a second.

6. National prototype of certain Primary units.— (1) The 2 [Federal Government] shall cause to be prepared a national prototype of the kilogram and shall cause the same to be certified in terms of the international prototype of kilogram and shall deposit the same in such custody and at such place as it may deem fit.

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[1]Subs. by the Weights and Measures (Metric System) (Amdt.) Act, 1974 (29 of 1974), s.3, for cl.18.
[2] Ins. by the Weights and Measures (International Systems) (Amdt.) Ordinance, 1978 (16 of 1978), s.4, for "section 4"
[3] Subs. ibid s. 2, for "Central Government".

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(2) The [1][Federal Government] shall cause to be prepared a national prototype of the metre and shall cause the same to be certified by the International Bureau of Weights and Measures and shall deposit the same in such custody and at such place as it may deem fit.

7. Secondary units of measure. The [1][Federal Government] may, by notification in the official Gazette, declare the magnitude and denomination of such units of measure as it deems fit to be the secondary units of measure under this Act:

Provided that every such secondary unit except that of time shall be an integral positive or negative power of ten of the relevant primary unit.

8. Standard of measure.– (1) The primary units of measure referred to in section 5 and the secondary units of measure declared under section 7 shall be the standards of measure.

(2) The weight at any place of the primary unit of mass referred to in sub-section (1) of section 5 shall be the standard unit of weight at that place.

9. Conversion of existing weights and measures into standard of measure.– (1) The value expressed in terms of any weight set forth in subsection (1) of Section 3 of the Standards of Weight Act, 1939 (IX of 1939), or in terms of any Measure expressed in inches, feet, yards, miles or nautical miles or in gallons may be converted into the value expressed in terms of the appropriate standard of measure at the rate specified in the First Schedule.

(2) The [2][Federal Government] may, by notification in the official Gazette, specify the rates at which the value expressed in terms of any weight or measure other than those referred to in sub-section (1) may be converted into the value expressed in terms of the standard of measure.

(3) All references in any enactment or in any notification, rule or order under any enactment or in any contract, deed or other instrument to a value expressed in terms of any weight or measure shall be construed as references to that value expressed in terms of the appropriate standard of measure converted thereto at the rates specified in the First Schedule or in a notification issued under sub-section (2), as the case may be.

(4) Where in any transaction the value expressed in terms of any weight or measure is required to be converted into the value expressed in terms of the standard of measure under this section, the calculation, for the purposes of such transaction, shall be made in such manners as may be prescribed.

10. Reference standards.– (1) The [2][Federal Government] shall cause to be prepared as many sets of such standards of measure specified in sub-section (1) of Section 8 or multiples or sub-multiples thereof, to be called reference standards as it may consider expedient and shall cause the measure of each such set to be authenticated as having been ascertained from the primary units of measure.

(2) The reference standards shall be kept at such place, in such custody and in such manner as may be prescribed.

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[1]subs. *ibid* s. 2, for "Central Government".
[2]Subs. by the Weights and Measures (Metric System) (Amdt.) Act, 1974 (29 of 1974), s.3, for "Central Government"

11. Secondary standards.— (1) For the purpose of verifying the correctness of the working standards the [1][Federal Government] may cause to be prepared as many sets of standard weights and standard measures, to be called secondary standards, as it may consider expedient and shall cause each such set to be authenticated as having been verified with the reference standards.

(2) The secondary standards shall be kept at such places, in such custody and in such manner as may be prescribed and shall be verified with the reference standards at least once in every five years and marked with the date of such verification.

12. Working standards.— (1) For the purpose of verifying the correctness of commercial weights and measures [2][each Provincial Government] may cause to be prepared as many sets of standard weights and standard measures, to be called working standards, as it may consider expedient and shall cause each such set to be authenticated as having been verified with the secondary standards [.][3]

[4] * * * * * * *

(2) The working standards shall be kept at such place, in such custody and in such manner as may be prescribed [5][by the Provincial Government] and shall be verified with the secondary standards or reference standards, as the case may be, at such intervals and in such manner as may be prescribed and marked with the date of such verification

(3) A working standard which has not been verified at any interval prescribed therefor shall not, after the expiry of the day closing the interval, be used until it has been verified and marked with the date of verification.

13. Standard weighing and measuring instruments.— [6][(1) For the purpose of verifying the correctness of the working weighing instruments and working measuring instruments, the Federal Government may cause to be prepared as many sets of standard weighing instruments and standard measuring instruments, to be called the standard instruments, as it may consider expedient, and the correctness of such instruments shall be verified, and the date of such verification shall be marked, in such manner as may be prescribed];

(2) The standard weighing instruments and standard measuring instruments shall be kept at all places where the secondary standards [7] * * * are kept.

[8]7[13A. Working weighing and measuring instruments.— (1) For the purpose of verifying the correctness of the weighing instruments and measuring instruments used in trade or commerce, the Provincial Government may cause to be prepared as many sets of working weighing instruments and working measuring instruments, to be called the working instruments, as it may consider expedient and shall cause each such set to be authenticated as having been verified with the standard weighing instruments and standard measuring instruments.

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[1] Subs. by the Weights and Measures (International System) (Amdt.) Act, 1974 (29 of 1974), s. 3,

[2]Subs. by the Weights and Measures (International System) (Amdt.) Ordinace, 1978 (16 of 1978), s. 3, for "the Federal", which was previously amended by Act 29 of 1974, s. 2, for "Central Government".

[3]Subs. *ibid*., for colon.

[4]Proviso omitted *ibid*.,

[5]Ins. *ibid*.,

[6]Subs. *ibid*., for sub-section (1), s.4.

[7]Omitted *ibid*.,ss.,4 and 6.

[8]New section 13 A ins. *ibid*., s.5

(2) The working instruments shall be kept at such place, in such custody and in such manner as may be prescribed by the Provincial Government and shall be verified with the standard instruments at such intervals and in such manner as may be prescribed and marked with the date of such verification.

(3) A working instrument which has not been verified at an interval prescribed therefor shall not, after the expiry of the day closing the interval, be used until it has been verified and marked with the date of verification.]

14. Appointment of Controllers, Inspectors, etc.— (1) The 1 [Federal Government] may appoint a Controller of Weights and Measures 2* * * and as many Deputy Controllers, Assistant Controllers, Inspectors and Assistant Inspectors of Weights and Measures as it may deem fit.

(2) Subject to the provisions of this Act and the rules, all Deputy Controllers, Assistant Controllers, Inspectors, and Assistant Inspectors shall perform their functions under the general superintendence and control of the Controller.

(3) The Deputy Controllers and Assistant Controllers may, in addition to the powers and duties conferred or imposed on them by or under this Act, exercise any power or discharge any duty so conferred or imposed on an Inspector.

(4) The 1 [Federal Government] may, by general or special order, define the local limits within which each 3 [Deputy Controller, Assistant Controller and] Inspector shall exercise the powers and discharge the duties conferred or imposed on an Inspector by or under this Act.

(5) Every Controller, Deputy Controller.— Assistant Controller, Inspector and Assistant Inspector shall be deemed to be a public servant within the meaning of section 21 of the Pakistan Penal Code (ACT XLV of 1860).

15. Verification and stamping by Inspectors.— An Inspector shall, at such place 4 [and at such time as the Controller may direct, verify a working standard or working instrument brought or referred] to him for the purpose and shall, if he finds it correct and in conformity with this Act and the rules, stamp it with a stamp of verification in the prescribed manner.

[5][16. Power to inspect and verify working standards and working instruments.— (1) An Inspector may, after notice to the Provincial Government by the Controller, inspect and verify with a reference standard, secondary standard or standard instrument any working standard or working instrument.

(2) Where a working standard or working instrument inspected and verified under sub-section (1) is not found to be what it purports to be, the Inspector may detain it under seal and shall inform the Controller of such detention, and the Controller shall refer the matter to the Provincial Government for such action as it thinks necessary.]

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[1]Subs. by the Weights and Measures (Metric System) (Amdt.) Act, 1974 (29 of 1974), s.2. for "Central Government".
[2]Omitted by the Weights and Measures (International System) (Amdt.) Ordinance, 1978 (16 of 1978), s.6.
[3] Ins, *ibid*., s.6.
[4]Subs. *ibid*., s.7, for certain words.
[5]Subs. *ibid*., s. 8, for section 16.

17. *[Power to inspect and verify the contents of sealed packages and containers.] Omitted by the Weights and Measures (International System) (Amendment) Ordinance, 1978 (XVI of 1978), s.9.*

18. *[Power to adjust weights and measures.] Omitted by the Weights and Measures (International System) (Amdt.), Ordinance, 1978 (XVI of 1978),s. 9.*

19. *[Manufacturers, etc., to maintain records and documents] Omitted by the Weights and Measures (International System) (Amdt.) Ordinance, 1978 (XVI of 1978), s. 9.*

20. *[Penalty for neglect or refusal to produce weight or measure, etc. for inspection.] Omitted by the Weights and Measures (International System) (Amdt.) Ordinance, 1978 (XVI of 1978), s. 9*

21. *[Penalty for breach of duty by Controller, etc.,] Omitted by the Weights and Measures (International System) (Amdt.) Ordinance, 1978 (XVI of 1978), s. 9.*

22. Prohibition of use of weights and measures other than standard weights and measures.— (1) Notwithstanding anything contained in any other law or any custom or usage or practice, no unit of measure, other than a standard weight or standard measure, shall, after the expiry of six months from the date on which this section has come into force in any area or in relation to any goods or undertakings, be used, except as permitted under sub-section (2), in such area or in relation to such goods or undertakings in any transaction of trade or commerce or in any dealing or contract.

(2) The 1 [Federal Government] may, by notification in the official Gazette, permit the continuance of the use in any area in which, or in relation to any class of goods or undertakings in respect of which, this section has come into force, of such weight or measure which was in use immediately before the date of such coming into force, for such period not exceeding three years from that date, as may be specified in the notification.

(3) Whoever contravenes the provisions of sub-section (1) shall be punishable with rigorous imprisonment for a term which may extend to six months, or with fine which may extend to two thousand and five hundred rupees, or with both.

23. *[Prohibition of demanding or receiving a quantity different from that determined in terms of standard weight, etc.,] Omitted by the Weights and Measures International System (Amdt.), Ordinance, 1978 (XVI of 1978), s. 9.*

24. Power to direct the use of weights only, or measures only, in certain areas.— (1) The 1 [Federal Government] may, by notification in the official Gazette, direct that no transaction, dealing or contract shall be made in such area, from such date, subject to such conditions and in respect of such trade or class of trades as may be specified therein, except by weight only or except by measure only.

(2) Whoever contravenes the provisions of sub-section (1) shall be punishable with fine which may extend to five thousand rupees.

25. *[Commercial weights and measures to bear mark of denomination] Omitted by the Weights and Measures (International System) (Amdt.) Ordinance, 1978 (XVI of 1978), s. 9.*

[1]Subs. by the Weights and Measures (Metric System) (Amdt.) Act, 1974 (29 of 1974), s. 2, for "Central Government".

26. *[Prohibition of sale, etc.,of unstamped commercial weights and measures] Omitted by the Weights and Measures (International System) (Amdt.) Ordinance, 1978 (XVI of 1978), s. 9.*

27. *[Prohibition of the manufacture, etc., of weights and measures without licence.] Omitted by the Weights and Measures (International System) (Amdt.) Ordinance, 1978 (XVI of 1978), s. 9.*

28. *[Marking of weight or measure on sealed containers.] Omitted by the Weights and Measures (International System) (Amdt.) Ordinance, 1978 (XVI of 1978), s. 9.*

29. *[Penalty for forging or using forged stamps or weights, measures etc.] Omitted by the Weights and Measures (International System) (Amdt.) Ordinance, 1978 (XVI of 1978), s. 9.*

30. *[Penalty for using or selling forged weight, measure, etc.] Omitted by the Weights and Measures (International System) (Amdt.) Ordinance, 1978 (XVI of 1978), s. 9.*

31. *[Offences by companies.] Omitted by the Weights and Measures (International System) (Amdt.) Ordinance, 1978 (XVI of 1978), s. 9.*

32. Validity of weights and measures duly stamped. A weight, measure, weighing instrument or measuring instrument, stamped in the [1][manner prescribed by the Provincial Government] shall be a legal weight, measure, weighting instrument or measuring instrument in all areas in which this Act has come into force, unless it is found to be false or defective, and shall not be liable to be re-stamped by reason merely of the fact that it is used in any place other than that in which it was originally stamped.

33. *[Stamped weight, etc. to be presumed to be correct.] Omitted by the Weights and Measures (International System) (Amdt.) Ordinance, 1978 (XVI of 1978), s.11.*

34. Limits of error to be tolerated in weights and measures. The [2][Federal Government] may prescribe the limits of error which may be tolerated**.—**

(a) in secondary standards referred to in Section 11;

(b) in working standards referred to in Section 12;

(c) in commercial weights and measures or in selling articles by weight or measure generally or as regards any trade or class of trades; and

(d) in weighing instruments and measuring instruments.

35. *[Appeal.] Omitted by the Weights and Measures (International System) (Amdt.) Ordinance, 1978 (XVI of 1978), s. 11.*

36. Indemnity. No suit, prosecution or other legal proceeding shall lie against any person in respect of anything which is in good faith done or intended to be done in pursuance of this Act or the rules.

37. Cognizance of offences.— No Court shall take cognizance of an offence punishable under this Act except upon complaint in writing made by the Controller or Inspector or any other person authorised in this behalf by the [2][Federal Government] by a general or special order.

[1]Subs. by the Weights and Measures (International System) (Amdt.) Ordinance, 1978 (16 of 1978), s. 10, for "prescribed manner".
[2]Subs. by the Weights and Measures (Metric System) (Amdt.) Act, 1974 (29 of 1974), s. 2, for "Central Government".

38. *[Forfeiture of weights, measures, etc.]. Omitted by the Weights and Measures (International System) (Amdt.) Ordinance, 1978 (XVI of 1978), s. 11.*

39. Power to exempt.— (1) The [2][Federal Government] may, subject to such conditions, if any, as it may deem fit to impose, by notification in the official Gazette, exempt any Government institution or any commodity or trade from all or any of the provisions of this Act.

(2) Any notification issued under sub-section (1) shall, at the earliest opportunity, be laid before the National Assembly which may, by a resolution passed by it, amend, vary or rescind such notification.

1Subs. by the Weights and Measures (Metric System) (Amdt.) Act, 1974 (29 of 1974), s. 2 for "Central Government".

(3) A notification issued under sub-section (1) shall stand amended, varied or rescinded, according as a resolution to that effect is passed by the National Assembly, upon the passing of such resolution.

40. Delegation of powers. The [1][Federal Government] may, by notification in the official Gazette, direct that all or any of the powers exercisable by it under this Act, other than those under Section 39, or the rules shall, in relation to such matters as may be specified in the notification, be exercisable also by a Provincial Government.

41. Power to make rules.— (1) The [1][Federal Government] may, by notification in the official Gazette, make rules to carry out the purposes of this Act.

(2) In particular and without prejudice to the generality of the foregoing power, such rules may provide for all or any of the following matters, namely:—

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(a) the preparation of the standards of measure;

(b) the custody of the sets of reference standards, secondary standards and 2 [standard instruments], and the periodical verification and adjustment thereof;

(c) the limits of error which may be tolerated in secondary standards working standards, 3 [standard instruments, working instruments,] weights, measures, weighing instruments and measuring instruments used or intended to be used in trade or commerce, or in the actual weighing or measuring of articles in the course of any trade or class of trades;

(d) the manner in which the value expressed in terms of any weight or measure other than in terms of standard of measure may be converted thereto;

(e) the material of which and the designs and specifications according to which working standards may be made the agency, by which such standards may be

made, the person by whom or the authority by which and the manner in which such standards may be stamped and authenticated 4 * * * ;

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[1]Subs. by the Weights and Measures (Metric System) (Amdt.) Act, 1974 (29 of 1974), s. 2, for "Central Government".
[2]Subs. by the Weights and Measures (International System) (Amdt.) Act, 1978 (16 of 1978), s. 12, for "working standards".
[3] Ins. *ibid.*,
[4]Certain words omitted **ibid**.

(f) the procedure for the verification and marking of working standards, the person by whom, the place at which and the intervals at which, they may be marked;

(g) the material of which and the designs and specifications according to which secondary standards may be made, the place at which and the custody and manner in which such standards may be kept;

(h) the procedure for verification and marking of secondary standards and the manner in which they may be marked;

(i) the number of [1][standard weighing instruments and standard measuring instruments] to be kept, the manner in which they may be verified and stamped and necessary particulars regarding the same;

2* * * * * * *

(l) the powers, functions and duties of the Controller [3]Deputy Controller, Assistant Controllers, Inspector and Assistant Inspector];

(m) the qualifications, powers, functions and duties of Inspectors;

(n) the verification and stamping of [4][working standards and working instruments].

[2] * * * * * * *

(t) any other matter necessary for giving effect to the purposes of this Act.

(3) In making any rules under this section, the [5][Federal Government] may provide that a breach thereof shall be punishable with fine which may extend to five hundred rupees.

42. Repeal.— (1) The enactments specified in Part I of the Second Schedule shall stand repealed in an area in which or in relation to any goods or undertaking in respect of which this Act comes into force.

(2) The enactments specified in Part II of the Second Schedule shall, to the extent to which they contain any provision which corresponds to any provision of this Act, stand repealed.

(3) If, immediately before the commencement of this Act or any provision thereof in any area or in relation to any class of goods or undertakings, there is in force in that area or in relation to that class of goods or undertakings, any law which corresponds to this Act or to any such provision thereof and which is not repealed by sub-section (1) or sub-section (2), that corresponding law shall stand repealed.

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[1]Subs. by the Weights and Measures (International (System (Amdt.) Ordinance, 1978 (16 of 1978), s. 12, for certain words.
[2]Cls.(j) (k),(o),(p),(q)' (r) and (s) *ibid*.
[3]Added *ibid*.,
[4]Subs. *ibid*., for certain words.
[5]Subs. by the Weights and Measures (Metric System) (Amdt.) Act, 1974 (29 of 1974), s. 2, for "Central Government

THE FIRST SCHEDULE

[*See* section 9(1)]

STANDARD OF WEIGHT

1	grain	__	0.000064799	kilogram
1	ounce	__	0.0283495	kilogram
1	pound	__	0.4535924	kilogram
1	cwt	__	50.802	kilograms
1	ton	__	1016.05	kilograms
1	tola	__	0.0116638	kilogram
1	seer	__	0.93310	kilogram
1	maund	__	37.3242	kilograms

STANDARD OF LENGTH AND CAPACITY

1	inch	__	0.0255	metre (exact)
1	foot	__	0.3048	metre (exact)
1	yard	__	0.9144	metre (exact)
1	mile	__	1609.344	metres (exact)
1	nautical mile	__	1852	metres
1	Imperial gallon	__	4.54596	litres

THE PAKISTAN CODE

THE SECOND SCHEDULE

(See section 42)

PART I

1. The Measures of Length Act, 1889 (II of 1889).
2. The Standards of Weight Act, 1939 (IX of 1939)

PART II

1. The Weights and Measures of Capacity Act, 1871 (XXXI of 1871).
2. The Sind Weights and Measures Act, 1932(Sindh Act XV of 1932).
3. The Bombay Weights and Measures Act, 1932, as applicable to Karachi Division.
4. The Punjab Weights and Measures Act, 1941 (Punjab Act XII of 1941).
5. The Bahawalpur State Weights and Measures Act, 1946.
6. The NorthWest Frontier Weights and Measures Act, 1947 (N.W.F.P. Act XXIII of 1947).

THE PAKISTAN CODE

THE WHITE PHOSPHORUS MATCHES PROHIBITION ACT, 1913

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1. Short title, extent and commencement
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3. Prohibition of importation
4. Prohibition of use of white phosphorous in manufacture of matches
5. Power of Inspector of Factories to take samples of material used in manufacture
6. Prohibition of sale

THE PAKISTAN CODE

THE WHITE PHOSPHORUS MATCHES PROHIBITION ACT, 1913

[1]ACT No. V of 1913

[7th Match, 1913]

An Act to prohibit the importation, manufacture and sale of matches made with white phosphorus.

WHEREAS it is expedient to prohibit the importation, manufacture and sale of matches made with white phosphorus; It is hereby enacted as follows:—

1. Short title, extent and commencement.—(1) This Act may be called the White Phosphorus Matches Prohibition Act, 1913.

[2][(2) It extends to the whole of Pakistan.]

(3) It shall come into force on the first day of July, 1913, with the exception of section 6, which shall come into force on the first day of July, 1914.

2. Definition. In this Act "white phosphorus" means the substance commonly known as white or yellow phosphorus.

3. [Prohibition of importation by addition to section 18, Act VIII of 1878.] Rep. by the Repealing Act, 1938 (I of 1938), s. 2 and Schedule.

4. Prohibition of use of white phosphorous in manufacture of matches.—(1) No person shall use white phosphorus in the manufacture of matches.

(2) Any person who uses, or permits the use by any person under his control, of white phosphorus in the manufacture of matches, shall be punishable with fine which may extend to two hundred rupees.

5. Power of Inspector of Factories to take samples of material used in manufacture.—(1) Every person who manufactures matches shall allow an Inspector of Factories appointed under the [3][Factories Act, 1934] , at any time to take for analysis sufficient samples of any material in use or mixed for use, in such manufacture:

Provided that any such person may, at the time the sample is taken, and on providing the necessary appliances, require the Inspector to divide the sample so taken into two parts, and to mark, seal and deliver to him one part.

(2) Any person who refuses to permit any such Inspector of Factories as aforesaid to take a sample, in accordance with the provisions of sub-section (1), shall be punishable with fine which may extend to two hundred rupees.

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[1]For Statement of Objects and Reasons, *see* Gazette of India, 1912, Pt. V, p. 220 ; for Report of Select Committee, *see ibid.*, 1913, Pt. V, p. 35; and for Proceedings in Council, *see*, ibid., 1913, Pt. VI, pp. 16, 64 and 146.
This Act has been declared to be in force in Baluchistan by the British Baluchistan Laws Regulation, 1913 (2 of 1913), s. 3.
It has also been extended to the Leased Areas of Baluchistan, *see* the Leased Areas (Laws) Order, 1950 (G. G. O. 3 of 1950); and applied to the Federated Areas of Baluchistan, *see* Gazette of India, 1937, Pt. I. p. 1499.
This Act has been amended to the extent of Islamabad Capital Territory, *see* ordinance No. 27 of 1981, s. 5 and 4th Sch.
[2]Subs. by the Central Laws (Statute Reform) Ordinance, 1960 (21 of 1960), s. 3 and 2nd Sch. (*with effect from the 14th October, 1955*), for the original sub-section (2) as amended by A. O., 1949, Arts. 3 (2) and 4.
[3]Subs. by Ord. XXVII of 1981, s. 5 and Sch. IV (only to the extent of Islamabad Capital Territory).

6. Prohibition of sale.—**(**1) No person shall sell, or offer or expose for sale, or have in his possession for the purposes of sale, any matches made with white phosphorus.

(2) Any person who contravenes the provisions of sub-section (1) may, on complaint to a [1][* *], [2]Magistrate of the first class, be ordered to forfeit any such matches in his possession, and any matches so forfeited shall be destroyed or otherwise dealt with as the Magistrate may direct.

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Date: 11-09-2024

[1]The words "Presidency Magistrate" omitted by A.O., 1949 Sch.
[2] Omitted by Ord. XXVIII of 1981, s. 5 , Sch. IV (only to the extent of Islamabad Capital Territory)

THE WILD BIRDS AND ANIMALS PROTECTION ACT, 1912

CONTENTS

1. Short title and extent
2. Application of Act
3. Close time
4. Penalties
5. Confiscation
6. Cognizance of offences
7. Power to grant exemption
8. Savings
9. [*Repeal.*]

THE SCHEDULE

THE PAKISTAN CODE

THE WILD BIRDS AND ANIMALS PROTECTION ACT, 1912

[1]ACT No. VIII OF 1912

[18th September, 1912]

An Act to make better provision for the protection and preservation of certain wild birds and animals.

WHEREAS it is expedient to make better provision for the protection and preservation of certain wild birds and animals ;

It is hereby enacted as follows:—

1. Short title and extent. (1) This Act may be called the Wild Birds and Animals Protection Act, 1912 ; and

[2][(2) It extends to the whole of Pakistan.]

2. Application of Act. (1) This Act applies, in the first instance, to the birds and animals specified in the Schedule, when in their wild state.

(2) The [3][Provincial Government] may, by notification in the [4][official Gazette], apply the provisions of this Act to any kind of wild bird or animal, other than those specified in the Schedule, which, in its opinion, it is desirable to protect or preserve.

3. Close time. The [3][Provincial Government] may, by notification in the [4][official Gazette], declare the whole year or any part thereof to be a close time throughout the whole or any part of its territories for any kind of wild bird or animal to which this Act applies, or for female or immature wild birds or animals of such kind ; and, subject to the provisions hereinafter contained, during such close time, and within the areas specified in such notification, it shall be unlawful—

(a) to capture any such bird or animal, or to kill any such bird or animal which has not been captured before the commencement of such close time ;

(b) to sell or buy, or offer to sell or buy, or to possess, any such bird or animal which has not been captured or killed before the commencement of such close time, or the flesh thereof ;

(c) if any plumage has been taken from any such bird captured or killed during such close time, to sell or buy, or to offer to sell or buy, or to possess, such plumage.

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[1]For Statement of Objects and Reasons, *see* Gazette of India, 1912, Pt. V, p. 2 ; for Report of Select Committee, *see ibid*., 1912, Pt. V, p. 173 ; and for Proceedings in Council, *see ibid*., 1912, Pt. VI, pp. 57 and 691.
This Act has been extended to the Leased Areas of Baluchistan, *see* G. G. O. 3 of 1950 ; and applied in the Federated Areas of Baluchistan, *see* Gazette of India, 1937, Pt. I, p. 1499.
The Act has been amended in its application to Baluchistan by Regulation III of 1942.
It has been repealed in its application to the N.W.F.P. by the N.W.F.P. Wild Birds and Wild Animals Protection Act, 1950 (N.W.F.P. Act 13 of 1950).
The Act has been rep. in its application to the Province of Punjab by Punjab Ordinance XXI of 1972, s. 42 *w.e.f.* the 25th October, 1972 which was temporarily enacted by the Punjab Act VI of 1973 and on the expiry of the Ordinance as so enacted, by Punjab Act II of 1974, s. 48.
This Act has been rep. to the extent of Islamabad Capital Territory, *see*, Ordinance No. XXVII of 1981, s. 4 and 3rd Sch.
[2]Subs. by the Central Laws (Statute Reform) Ordinance, 1960 (21 of 1960), s. 3 and 2nd Sch., (*with effect from the 14th October, 1955*), for the original sub-section (2) as amended by A. O., 1949, and the Federal Laws (Revision and Declaration) Act, 1951 (26 of 1951), s. 8.
[3]Subs. by A. O., 1937, for "L. G.".
[4]Subs. *ibid.*, for "local official Gazette".

4.Penalities. (1) Whoever does or attempts to do, any act in contravention of section 3, shall be punishable with fine which may extend to fifty rupees.

(2) Whoever, having already been convicted of an offence under this section, is again convicted thereunder shall, on every subsequent conviction, be punishable with imprisonment for a term which may extend to one month, or with fine which may extend to one hundred rupees, or with both.

5. Confiscation. (1) When any person is convicted of an offence punishable under this Act, the convicting Magistrate may direct that any bird or animal in respect of which such offence has been committed, or the flesh or any other part of such bird or animal, shall be confiscated.

(2) Such confiscation may be in addition to the other punishment provided by section 4 for such offence.

6. Cognizance of offences. No Court inferior to that of [1]* * * a Magistrate of the second class shall try any offence against this Act.

7. Power to grant exemption. Where the [2][Provincial Government] is of opinion that, in the interests of scientific research, such a course is desirable, it may grant to any person a license, subject to such restrictions and conditions as it may impose, entitling the holder thereof to do any act which is by section 3 declared to be unlawful.

8. Savings. Nothing in this Act shall be deemed to apply to the capture or killing of a wild animal by any person in defence of himself or any other person, or to the capture or killing of any wild bird or animal in *bona fide* defence of property.

9. [*Repeal.*] *Rep. by the Second Repealing and Amending Act, 1914 (XVII of 1914), s. 3 and Schedule II.*

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THE SCHEDULE

THE PAKISTAN CODE

(i) Bustards, ducks, floricans, jungle fowl, partridges, peafowl, pheasants, pigeons, quail, sand-grouse, painted snipe, spurfowl, wood-cock, herons, egrets, rollers, and king-fishers.

(ii) Antelopes, asses, bison, buffaloes, deer, gazelles, goats, hares, oxen, rhinoceroses and sheep.

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Date: 11-09-2024

[1]The original words "a Presidency Magistrate or" omitted by A. O., 1961, Art. 2 and Sch. (*with effect from the 23rd March, 1956*).
[2]Subs. by A.O., 1937, for "L. G.".